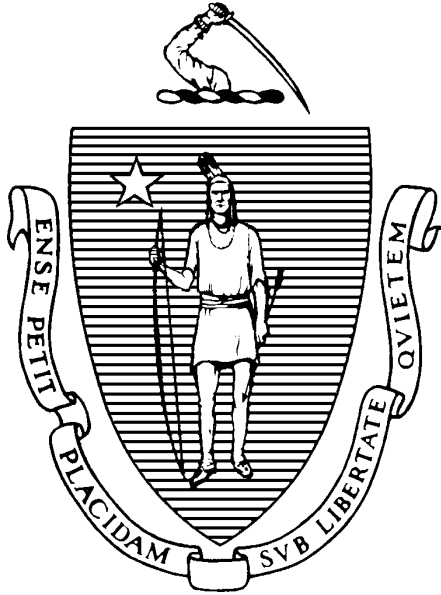
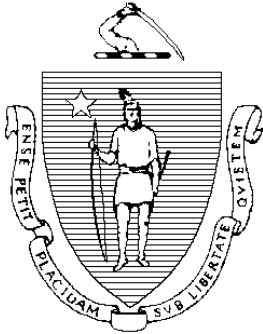




The Massachusetts Register

Published by:
The Secretary of the Commonwealth,
William Francis Galvin, Secretary

\$15.00



THE COMMONWEALTH OF MASSACHUSETTS
Secretary of the Commonwealth - William Francis Galvin

The Massachusetts Register
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Notice of Expiration of Emergency Regulations

There are no Notice of Expiration of Emergency Regulations.

Emergency Regulations

101 CMR	Executive Office of Health and Human Services	
446.00	COVID-19 Payment Rates for Certain Community Health Care Providers	43
	<i>Updates and adds rates for COVID-19 vaccine administration and treatment; adds rates for in-home COVID-19 vaccinations and pooled COVID-19 testing; and establishes supplemental payments for community health centers (CHCs).</i>	
209 CMR	Division of Banks and Loan Agencies	
18.00	Conduct of the Business of Debt Collectors and Loan Servicers	47
	<i>St. 2020, c. 358 includes several provisions relative to student loan servicing, including the creation of M.G.L. c. 93L. M.G.L. c. 93L requires the licensure of certain student loan servicers not otherwise exempt from licensure, establishes standards for licensure by the Division, sets forth prohibited conduct, and sets forth other provisions. St. 2020, c. 358 also includes an “automatic federal student loan servicer” license. To implement St. 2020, c. 358, the amendments expressly incorporate the new student loan servicer licenses into the current regulation setting forth the requirements for licensure, as well as providing standards for conduct and prohibited practices, among other provisions.</i>	
48.00	Licensee Recordkeeping	49
	<i>Sets forth procedures and requirements for recordkeeping by the Division’s licensees. St. 2020, c. 358 includes several provisions relative to student loan servicing, including the creation of M.G.L. c. 93L. M.G.L. c. 93L requires the licensure of certain student loan servicers not otherwise exempt from licensure, establishes standards for licensure by the Division, sets forth prohibited conduct, and sets forth other provisions. St. 2020, c. 358 also includes an “automatic federal student loan servicer” license. In order to help implement St. 2020, c. 358, the amendments expressly incorporate the new student loan servicer license into the regulation setting forth the recordkeeping requirements for all the Division’s licensees.</i>	

Permanent Regulations

101 CMR	Executive Office of Health and Human Services	
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317.00	Rates for Medicine Services	53
	<i>Governs the payment rates used by all governmental units for medical services provided to publicly aided patients.</i>	
318.00	Rates for Radiology Services	55
	<i>Governs the payment rates used by all governmental units for radiology care and services provided to publicly aided patients.</i>	
118 CMR	Disabled Persons Protection Commission	
1.00	Scope and Authority	57
	<i>Describes the scope, purpose, and authority of the operations of the Disabled Persons Protection Commission.</i>	
2.00	Definitions	59
	<i>Includes those definitions applicable to the registry of care providers against whom the Commission has made a substantiated finding of registrable abuse by adding: care provider; department; division; employer; mandated reporter; registry; and registrable abuse. Additional modifications are made to existing definitions to clarify their intent.</i>	
3.00	Reporters	61
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4.00	Screening of Reports and Referrals to Other Agencies	63
	<i>Details the Commission's procedures for screening, referring, and assigning allegations of abuse of persons with disabilities.</i>	
5.00	Investigations	65
	<i>Establishes the requirements for investigations conducted by and on behalf of the Commission, the standards to be used in delaying or deferring the investigation, and the review and oversight standards to be used by the Commission.</i>	
6.00	Formal Commissioners' Investigations	67
	<i>Establishes the requirements for initiation and conducting of Commissioners' Investigation, the actions to be taken as a result of the conducting of such investigation, and the requirements for the delay or deferral of Commissioners' Investigation.</i>	
7.00	Protective Services	69
	<i>Establishes the responsibilities and obligations of the Commission in ensuring that protective services are provided to persons with disabilities who are subjects of reports made to the Commission and who require such protective services.</i>	
8.00	Petition for Protective Order	71
	<i>Establishes the requirements for the filing of a petition for court ordered protective services pursuant to M.G.L. c. 19C, § 7.</i>	

9.00	Records	73
	<i>Governs the protections afforded to and release of information in the possession of the Commission.</i>	
10.00	Annual Reports	75
	<i>Identifies the manner in which the Commission shall make annual reports of its activities to the Governor and the General Court.</i>	
11.00	Interagency Agreements	77
	<i>Identifies the circumstances and purpose for which the Commission may enter into interagency agreements in furtherance of the Commission's statutory mandate.</i>	
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	<i>Identifies that in pursuing its statutory mandate the Commission will not discriminate against any party to an investigation.</i>	
13.00	Advisory Council	81
	<i>Establishes an Advisory Council to assist the Commission in developing policies that are consistent with and responsive to the needs of persons with disabilities.</i>	
14.00	Filing Objections and Administrative Review	83
	<i>Governs the petition process available to certain parties to a M.G.L. c. 19C investigation and the objection process available to data subjects.</i>	
15.00	Department and Employer Registry-related Hiring and Retention Procedures	85
	<i>Establishes the standards for the Department and Employers to vet prospective and current employers through the registry of abusers of persons with intellectual and developmental disabilities as required by St. 2020, c. 19. Describes processes for ensuring compliance as well as the resolution of disputes regarding the identity of care providers.</i>	
225 CMR	Department of Energy Resources	
14.00	Renewable Energy Portfolio Standard - Class I - Correction	87
454 CMR	Department of Labor Standards	
25.00	Occupational Safety and Health for Public Sector Workers	89
	<i>Provides public-sector employees safe and healthful work environments free from recognized hazards that may cause serious injury, physical harm, or death on par with the level of protection provided under the Occupational Safety and Health Act of 1970.</i>	
29.00	Civil Administrative Penalties	91
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801 CMR	Executive Office for Administration and Finance	
4.00	Rates - <i>Compliance</i>	93
830 CMR	Department of Revenue	
63.00	Taxation of Corporations	95
	<i>Explains the provisions of the brownfields tax credit for environmental Response Actions, as set out in M.G.L. c. 62, § 6(j) and M.G.L. c. 63, § 38Q. An Eligible Person that remediates certain contaminated properties may be eligible for a credit against their Massachusetts personal income tax or corporate excise liability equal to a percentage of the Net Response and Removal Costs incurred for the remediation in compliance with M.G.L. c. 21E. 830 CMR 63.38Q.1 explains who is eligible for the credit, Eligible Costs, and the limitations on how much credit may be claimed in any tax year. Also sets out rules regarding the carryforward of unused credits, the transfer, sale or assignment of unused credits, recapture rules, and the appeals process where the credit is fully or partially denied.</i>	

Acts 2021

CHAPTER NUMBER	BILL NUMBER	TITLE	DATE
1	H 54	Establishing a Sick Leave Bank for George Monfreda, an Employee of the Department of Mental Health.	1/26/2021
2	S 6	Establishing a Sick Leave Bank for Alexis Orloff, an Employee of the Worcester County Sheriff's Office.	1/26/2021
3	H 67	Providing for a Vacancy in the Office of Mayor of the City of Boston.	2/26/2021
4	H 72	Providing for the Terms of Certain Bonds to Be Issued by the Commonwealth.	3/10/2021
5	H 73	Further Providing for Early Voting by Mail.	3/16/2021
6	S 15	Establishing a Sick Leave Bank for Michael L Rodrigues, an Employee of the Trial Court of the Commonwealth.	3/25/2021
7	S 37	Establishing a Sick Leave Bank for Rachel Pride, an Employee of the Department of Youth Services.	3/25/2021
8	S 9	Creating a Next-generation Roadmap for Massachusetts Climate Policy.	3/26/2021
9	H 90	Financing a Program for Improvements to the Unemployment Insurance Trust Fund and Providing Relief to Employers and Workers in the Commonwealth <i>Pursuant to Article 56, as amended by Article 90, Section 3, of the Amendments to the Constitution, the Governor sent a separate letter to the Senate and the House of Representatives setting forth recommended amendments to: SECTIONS 13, 14, 15, 16, 17, 22, and 29.</i>	4/1/2021
10	S 33	Directing the City of Boston Police Department to Waive the Maximum Age Requirement for Police Officers for Daryle Lamonica.	4/7/2021
11	H 99	Concerning the Acting Mayor of Holyoke.	4/7/2021
12	S 24	Validating the Results of the Annual Town Meeting and the Annual Town Election Held in the Town of Hubbardston.	4/21/2021
13	S 31	Authorizing Certain Investments by the Treasurer of the Town of East Bridgewater.	5/7/2021
14	S 41	Amending the Charter of the City of Everett.	5/15/2021

Acts 2021

CHAPTER NUMBER	BILL NUMBER	TITLE	DATE
15	H 3770	Financing the Reconstruction of the Soldiers' Home in Holyoke. <i>Pursuant to Article 63, as amended by Article 90, Section 4, of the Amendments to the Constitution, the Governor disapproved the following items Items Disapproved: SECTION: 5 The objections of the Governor notwithstanding and in the manner prescribed by the Constitution, on June 30, 2021 the House of Representatives and in concurrence on July 1, 2021 the Senate passed the following item: SECTION 5.</i>	5/25/2021
16	H 3702	Providing for Massachusetts COVID-19 Emergency Paid Sick Leave.	5/28/2021
17	H 3709	Addressing City Council Vacancies in the City of Brockton.	6/4/2021
18	H 100	Establishing a Sick Leave Bank for Stephen Melchin, an Employee of the Trial Court of the Commonwealth.	6/9/2021
19	H 98	Authorizing Trevor J. Seaboyer to Take the Civil Service Examination for the Position of Firefighter in the City of Haverhill Notwithstanding the Maximum Age Requirement.	6/9/2021
20	S 2475	Relative to Extending Certain COVID-19 Measures Adopted during the State of Emergency.	6/16/2021
21	H 92	Authorizing the Town of Berlin to Continue the Employment of Paul Kenneth Clark.	6/17/2021
22	H 3827	Relative to Transferring Federal Funds to the Federal COVID-19 Response Fund.	6/28/2021
23	H 3905	Making Certain Appropriations for Fiscal Year 2022 before Final Action on the General Appropriation Bill.	6/28/2021
24	H 4002	Making Appropriations for the Fiscal Year 2022 for the Maintenance of the Departments, Boards, Commissions, Institutions and Certain Activities of the Commonwealth, for Interest, Sinking Fund and Serial Bond Requirements and for Certain Permanent Improvements.	7/16/2021
25	H 3903	Financing Improvements to Municipal Roads and Bridges.	7/16/2021

STATE REGISTER OF HISTORIC PLACES

WEEKS OF: February 28, 2021 – July 7, 2021

For further information call the Massachusetts Historical Commission (617-727-8470)

ACTIONS TAKEN UNDER 950 CMR 71.00			
Town/Property/Agency	Finding	Date	
NONE			
ADDITIONAL LISTINGS UNDER 950 CMR 71.00			
Town/Name/Address	Designation	Date	Number of Properties
Bourne Aptuxet Trading Post Museum Historic District 6 Aptuxet Rd	NRDIS	3/25/2021	24
Groton First Parish Church of Groton and Parish House 1 Powderhouse Rd	NRIND	3/16/2021	2
Newburyport Central Congregational Church 14 Titcomb St	PR	1/16/2021	1
Newburyport Morse, Rev. James – Williams, Enoch House 190 High St	PR	4/29/2021	2
Otis East Otis Schoolhouse 2 Old Blandford Rd	NRIND	5/27/2021	4
Salem Salem Athenaeum 337 Essex St	PR	4/20/2021	1
Westfield Fowler, Landlord Tavern 171 Main St	PR	2/26/2021	1
Westfield Lambson Furniture Company Building 89 Elm St	PR	4/30/2021	1

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The Commonwealth of Massachusetts
Executive Office of Health and Human Services
One Ashburton Place, Room 1109
Boston, MA 02108

Division of Health Care Finance and Policy

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Administrative Bulletin 21-19
114.1 CMR 41.00: Rates of Payment for Services Provided to
Industrial Accident Patients by Hospitals

Effective July 1, 2021

Publication of Payment on Account Factors (PAFs) for Hospital Services

The Executive Office of Health and Human Services (EOHHS), pursuant to 114.1 CMR 41.05(1) and (3) and in accordance with Section 123 of Chapter 224 of the Acts of 2012, is publishing the Payment on Account Factors (PAFs) for acute and nonacute hospital services provided to industrial accident patients effective July 1, 2021.

Due to the delay in hospital cost reporting required pursuant to 957 CMR 9.04: *Hospital Cost Reporting* in response to the COVID-19 pandemic, the current PAFs for acute and nonacute hospital services will continue through December 31, 2021, when it is anticipated that updated PAFs for acute and nonacute hospital services will be published effective January 1, 2022.

The application of the PAF to all billed charges payable pursuant to 114.1 CMR 41.00 results in the payment of the average percentage of charges paid by the private sector to each hospital for its services. This payment calculation is deemed to meet the test of reasonable cost of medical services prescribed by M.G.L. c. 152, the Workers' Compensation Act. No lesser amount will be paid unless agreed to by the provider, insurer, and employer.

Listed below are the PAFs for acute and nonacute hospital services provided on or after July 1, 2021.

Acute Hospitals	PAF
Anna Jaques Hospital	55.01%
Athol Memorial Hospital	35.88%
Baystate Franklin Medical Center	50.15%
Baystate Medical Center	53.28%
Baystate Noble Hospital	46.06%
Baystate Wing Hospital	42.16%
Berkshire Medical Center	64.75%
Beth Israel Deaconess Hospital - Milton	53.72%

Acute Hospitals	PAF
Beth Israel Deaconess Hospital - Needham	56.39%
Beth Israel Deaconess Hospital - Plymouth	45.53%
Beth Israel Deaconess Medical Center	57.05%
Boston Medical Center	42.80%
Brigham and Women's Faulkner Hospital	43.75%
Brigham and Women's Hospital	45.99%
Cambridge Health Alliance	51.19%
Cape Cod Hospital	67.62%
Cooley Dickinson Hospital	53.41%
Dana-Farber Cancer Institute	43.55%
Emerson Hospital	47.04%
Fairview Hospital	67.98%
Falmouth Hospital	67.20%
Harrington Memorial Hospital	50.32%
Heywood Hospital	48.54%
Holyoke Medical Center	51.05%
Lahey Health - Winchester Hospital	55.79%
Lahey Hospital and Medical Center	53.06%
Lawrence General Hospital	47.50%
Lowell General Hospital	46.85%
Marlborough Hospital - A member of the UMass Memorial Health Center	27.18%
Martha's Vineyard Hospital	71.03%
Massachusetts Eye and Ear Infirmary	46.80%
Massachusetts General Hospital	43.28%
MelroseWakefield Healthcare	50.63%
Mercy Medical Center	53.32%
MetroWest Medical Center	25.39%
Milford Regional Medical Center	50.50%
Morton Hospital - A Steward Family Hospital Inc.	76.10%
Mount Auburn Hospital	62.91%
Nantucket Cottage Hospital	70.84%
Nashoba Valley Medical Center - A Steward Family Hospital Inc.	45.21%
New England Baptist Hospital	71.13%
Newton-Wellesley Hospital	42.64%
North Shore Medical Center	42.94%
Northeast Hospital	49.96%
Saint Vincent Hospital	31.94%
Signature Healthcare Brockton Hospital	41.86%
South Shore Hospital	59.84%
Southcoast Hospitals Group	48.78%
Steward Carney Hospital Inc.	76.74%
Steward Good Samaritan Medical Center	75.47%
Steward Holy Family Hospital Inc.	69.30%

Acute Hospitals	PAF
Steward Norwood Hospital Inc.	69.77%
Steward Saint Anne's Hospital Inc.	58.95%
Steward St. Elizabeth's Medical Center	77.42%
Sturdy Memorial Hospital	74.02%
Tufts Medical Center	47.62%
UMass Memorial Health Alliance - Clinton Hospital	30.08%
UMass Memorial Medical Center	37.30%

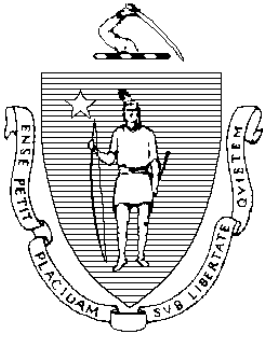
Acute Hospital Median PAF for Out-of-State and New Hospitals

50.56%

Nonacute Hospitals	PAF
Curahealth Stoughton	Median
Fairlawn Rehabilitation Hospital	58.97%
HealthSouth Braintree Rehabilitation Hospital	50.84%
HealthSouth New England Rehabilitation Hospital	56.80%
HealthSouth Rehabilitation Hospital of Western Massachusetts	55.54%
McLean Hospital	Median
Spaulding Hospital Cambridge	48.97%
Spaulding Rehabilitation Hospital - Cape Cod	44.79%
Spaulding Rehabilitation Hospital	42.42%
TaraVista Behavioral Health Center	Median
Vibra Hospital of Western Massachusetts	Median
Whittier Rehab Hospital Bradford	34.42%
Whittier Rehab Hospital Westborough	34.48%

Nonacute Hospital Median PAF for Out-of-State and New Hospitals

48.97%



THE COMMONWEALTH OF MASSACHUSETTS
Secretary of the Commonwealth - William Francis Galvin

**NOTICES OF PUBLIC REVIEW OF PROSPECTIVE REGULATIONS
PUBLISHED IN COMPLIANCE WITH M.G.L. c. 30A, §§ 2 AND 3**

July 23, 2021

Banks and Loan Agencies, Division of	209 CMR 18.00 & 48.00	8/4/21 @ 10:00 A.M. Written comments accepted until 8/11/21 @ 5:00 P.M.
Health and Human Services, Executive Office of	101 CMR 446.00	7/30/21 @ 10:00 A.M. Written testimony accepted until 7/30/21 @ 5:00 P.M.
Law Enforcement, Office of	323 CMR 6.00	8/5/21 @ 10:00 A.M. - 12:00 A.M. Written comments accepted until 8/9/21 @ 5:00 P.M.
Public Health, Department of	105 CMR 301.000	8/19/21 @ 10:00 A.M. Comments accepted until 8/20/21 @ 5:00 P.M.
	105 CMR 316.000	7/30/21 @ 10:00 A.M. Testimony accepted until 7/30/21 @ 5:00 P.M.
State Lottery Commission	961 CMR 2.00	8/12/21 @ 11:00 A.M. Written comments accepted until 8/13/21 @ 4:00 P.M.



COMMONWEALTH OF MASSACHUSETTS

Office of Consumer Affairs and Business Regulation

DIVISION OF BANKS

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THE COMMONWEALTH OF MASSACHUSETTS

DIVISION OF BANKS

NOTICE OF PUBLIC HEARING

AMENDMENTS TO 209 CMR 18.00: CONDUCT OF THE BUSINESS OF DEBT COLLECTORS, STUDENT LOAN SERVICERS, AND THIRD PARTY LOAN SERVICERS

AND

209 CMR 48.00 LICENSEE RECORD KEEPING

Wednesday, August 4, 2021 at 10:00 a.m.

Pursuant to the provisions of G.L. c. 93L, as added by St. 2020, c. 358, s. 65 and in accordance with the provisions of Massachusetts General Laws chapter 30A, section 2, a public hearing will be held on Wednesday, August 4, 2021 at 10:00 a.m. at which comments will be received by the Division of Banks (Division) relative to amendments to 209 CMR 18.00 *et seq.* and 209 CMR 48.00 *et seq.*, which were filed as Emergency Regulations effective July 1, 2021.

The link providing information regarding the hearing will be posted by Tuesday, August 3, 2021 by 12:00 noon, and will be available at www.mass.gov/dob/. While it is not necessary to pre-register to provide oral testimony, anyone who emails their intention to provide oral testimony at the hearing in advance will receive preference in the order of testimony provided. Such optional notice must include the person's name, telephone number, and email address and should be sent to dob.comments@mass.gov via email by Tuesday, August 3, 2021 by 5:00 p.m. In addition, written testimony can also be provided in advance via email to dob.comments@mass.gov. If there are any questions, please contact the Division's Legal Unit at 617-956-1525.

209 CMR 18.00: Conduct of the Business of Debt Collectors, Student Loan Servicers, and Third Party Loan Servicers

Chapter 358 of the Acts of 2020 sets forth several provisions relative to student loan servicing, including the creation of G.L. c. 93L, which requires the licensure of certain student loan servicers by the

Division. The amendments to 209 CMR 18.00 would expressly incorporate the new student loan servicer licenses into the current regulation setting forth the requirements for licensure, as well as providing standards for conduct and prohibited practices, among other provisions. The amendments add the particular application requirements and licensing standards for student loan servicers, as well as the requirements for licensure as an automatic federal student loan servicer. In addition, the amendments incorporate the student loan servicers and automatic federal student loan servicers into the applicable existing provisions governing the requirements for office locations, changes in ownership, and the filing of annual reports. There are also amendments relative to unfair servicing practices as well as standards of conduct and unfair or deceptive acts or practices. In addition, there is a section relative to confidentiality of examination and investigation records for debt collectors, student loans servicers, automatic federal student loan servicers, and loan servicers.

209 CMR 48.00: Licensee Record Keeping

The purpose of 209 CMR 48.00: *Licensee Record Keeping* is to establish procedures and requirements for record keeping by the Division's licensees. In order to implement Chapter 358, the amendments to 209 CMR 48.00 would expressly incorporate the new student loan servicer license into the regulation setting forth the record keeping requirements for all of the Division's licensees. The amendments make the following changes: adding student loan servicers and automatic federal student loan servicers to the definition of "licensee" so that they are included within the requirements of the regulation; incorporating the specific record retention period for student loans servicers; and including the specific time period within which student loan servicers must respond to records requests from the Commissioner.

There are other technical updates to both regulations as well.

Written comments may be submitted to the Division on the proposed amendments until Wednesday, August 11, 2021 at 5:00 p.m. Copies of the amendments are available at, and copies may be obtained from, the Massachusetts Division of Banks, at www.mass.gov/dob/.

Small Business Impact Statement

(As required by M.G.L. c. 30A §§ 2, 3 & 5)

CMR No: 209 CMR 18.00: Conduct of the Business of Debt Collectors and Loan Servicers

Estimate of the Number of Small Businesses Impacted by the Regulation:

The Division of Banks estimates that there will be 34 student loan servicers and 2 automatic federal student loan servicers (collectively referred to as “student loan servicers” below) subject to the proposed amendments. While it is difficult to estimate what percentage may be small businesses, it is possible that there could be some that are.

Select Yes or No and Briefly Explain

Yes ☒	No ☐	Will small businesses have to create, file, or issue additional reports? The submission of an annual report containing limited information is required for all Division licensees, and the regulation would require this of student loan servicers, as well.
Yes ☒	No ☐	Will small businesses have to implement additional recordkeeping procedures? The Division maintains record keeping requirements for all of its licensees, and the regulation would require this of student loan servicers as well. Such student loan servicers likely already maintain record keeping procedures, so it is unclear whether the Division’s regulation would create an additional requirement.
Yes ☐	No ☒	Will small businesses have to provide additional administrative oversight? Student loan servicers will not have to provide additional oversight as a result of the proposed amendments.
Yes ☐	No ☒	Will small businesses have to hire additional employees in order to comply with the proposed regulation? Student loan servicers will not have to hire additional employees in order to comply with the proposed amendments.
Yes ☐	No ☒	Does compliance with the regulation require small businesses to hire other professionals (e.g. a lawyer, accountant, engineer, etc.)? Student loan servicers will not have to hire other professionals for compliance as a result of the proposed amendments.
Yes ☐	No ☒	Does the regulation require small businesses to purchase a product or make any other capital investments in order to comply with the regulation? Student loan servicers will not have to purchase any products or make any other capital investments in order to comply with the proposed amendments.
Yes ☐	No ☒	Are performance standards more appropriate than design/operational standards to accomplish the regulatory objective? (Performance standards express requirements in terms of outcomes, giving the regulated party flexibility to achieve regulatory objectives and design/operational standards specify exactly what actions regulated parties must take.)

		The purpose of the proposed amendments to 209 CMR 18.00 is to implement the licensure of student loan servicers by the Division, pursuant to new G.L. c. 93L
Yes ☐	No ☒	Do any other regulations duplicate or conflict with the proposed regulation? No other regulations duplicate or conflict with the proposed amendments to the regulation.
Yes ☒	No ☐	Does the regulation require small businesses to cooperate with audits, inspections or other regulatory enforcement activities? All licensed student loan servicers are subject to examination and regulatory oversight by the Division.
Yes ☐	No ☒	Does the regulation require small businesses to provide educational services to keep up to date with regulatory requirements? These proposed amendments do not require additional educational services.
Yes ☐	No ☒	Is the regulation likely to <i>deter</i> the formation of small businesses in Massachusetts? The decision to seek licensure as a student loan servicer is based on many economic factors. The amendment of this regulation would not likely encourage or discourage an individual from seeking licensure as a student loan servicer.
Yes ☐	No ☒	Is the regulation likely to <i>encourage</i> the formation of small businesses in Massachusetts? As noted above, the decision to seek licensure as a student loan servicer is based on many economic factors. The amendment of this regulation would not likely encourage or discourage an individual from seeking licensure as a student loan servicer.
Yes ☐	No ☒	Does the regulation provide for less stringent compliance or reporting requirements for small businesses? No less stringent requirements can be established in the regulation based on the size of the entity.
Yes ☐	No ☒	Does the regulation establish less stringent schedules or deadlines for compliance or reporting requirements for small businesses? No less stringent requirements can be established for individuals by regulation.
Yes ☐	No ☒	Did the agency consolidate or simplify compliance or reporting requirements for small businesses? The compliance requirements cannot be consolidated or simplified for individuals by regulation.
Yes ☐	No ☒	Can performance standards for small businesses replace design or operational standards without hindering delivery of the regulatory objective? As noted above, the purpose of the proposed amendments to 209 CMR 18.00 is to implement the licensure of student loan servicers by the Division, pursuant to new G.L. c 93L
Yes ☐	No ☒	Are there alternative regulatory methods that would minimize the adverse impact on small businesses? There are no alternative regulatory methods available.

Small Business Impact Statement

(As required by M.G.L. c. 30A §§ 2, 3 & 5)

CMR No: 209 CMR 48.00: Licensee Record Keeping

Estimate of the Number of Small Businesses Impacted by the Regulation:

The Division of Banks estimates that there will be 34 student loan servicers and 2 automatic federal student loan servicers (collectively referred to as “student loan servicers” below) subject to the proposed amendments. While it is difficult to estimate what percentage may be small businesses, it is possible that there could be some that are.

Select Yes or No and Briefly Explain

Yes ☐	No ☒	Will small businesses have to create, file, or issue additional reports? The Division maintains record keeping requirements for all of its licensees, and the regulation would require this of student loan servicers as well. Such student loan servicers likely already maintain record keeping procedures, so it is unclear that the amendments to 209 CMR 48.00 would result in additional reports. Note: Under the proposed amendments to a separate regulation, 209 CMR 18.00, the submission of an annual report containing limited information is required for all Division licensees, and the regulation would require this of student loan servicers, as well.
Yes ☐	No ☒	Will small businesses have to implement additional recordkeeping procedures? As noted above, the Division maintains record keeping requirements for all of its licensees, and the regulation would require this of student loan servicers as well. Such student loan servicers likely already maintain record keeping procedures, so it is unclear whether the Division’s regulation would create an additional requirement.
Yes ☐	No ☒	Will small businesses have to provide additional administrative oversight? Student loan servicers will not have to provide additional oversight as a result of the proposed amendments.
Yes ☐	No ☒	Will small businesses have to hire additional employees in order to comply with the proposed regulation? Student loan servicers will not have to hire additional employees in order to comply with the proposed amendments.
Yes ☐	No ☒	Does compliance with the regulation require small businesses to hire other professionals (e.g. a lawyer, accountant, engineer, etc.)? Student loan servicers will not have to hire other professionals for compliance as a result of the proposed amendments.

Yes ☐	No ☒	Does the regulation require small businesses to purchase a product or make any other capital investments in order to comply with the regulation? Student loan servicers will not have to purchase any products or make any other capital investments in order to comply with the proposed amendments.
Yes ☐	No ☒	Are performance standards more appropriate than design/operational standards to accomplish the regulatory objective? (Performance standards express requirements in terms of outcomes, giving the regulated party flexibility to achieve regulatory objectives and design/operational standards specify exactly what actions regulated parties must take.) The purpose of the proposed amendments to 209 CMR 48.00 is to include student loan servicers in the Division's regulation regarding record keeping requirements for licensees.
Yes ☐	No ☒	Do any other regulations duplicate or conflict with the proposed regulation? No other regulations duplicate or conflict with the proposed amendments to the regulation.
Yes ☒	No ☐	Does the regulation require small businesses to cooperate with audits, inspections or other regulatory enforcement activities? All licensed student loan servicers are subject to examination and regulatory oversight by the Division.
Yes ☐	No ☒	Does the regulation require small businesses to provide educational services to keep up to date with regulatory requirements? These proposed amendments do not require additional educational services.
Yes ☐	No ☒	Is the regulation likely to <i>deter</i> the formation of small businesses in Massachusetts? The decision to seek licensure as a student loan servicer is based on many economic factors. The amendment of this regulation would not likely encourage or discourage an individual from seeking licensure as a student loan servicer.
Yes ☐	No ☒	Is the regulation likely to <i>encourage</i> the formation of small businesses in Massachusetts? As noted above, the decision to seek licensure as a student loan servicer is based on many economic factors. The amendment of this regulation would not likely encourage or discourage an individual from seeking licensure as a student loan servicer.
Yes ☐	No ☒	Does the regulation provide for less stringent compliance or reporting requirements for small businesses? No less stringent requirements can be established in the regulation based on the size of the entity.
Yes ☐	No ☒	Does the regulation establish less stringent schedules or deadlines for compliance or reporting requirements for small businesses? No less stringent requirements can be established for individuals by regulation.
Yes ☐	No ☒	Did the agency consolidate or simplify compliance or reporting requirements for small businesses? The compliance requirements cannot be consolidated or simplified for individuals by regulation.

Yes ☐	No ☒	Can performance standards for small businesses replace design or operational standards without hindering delivery of the regulatory objective? As noted above, the purpose of the proposed amendments to 209 CMR 48.00 is to include student loan servicers in the regulation regarding licensee record keeping requirements.
Yes ☐	No ☒	Are there alternative regulatory methods that would minimize the adverse impact on small businesses? There are no alternative regulatory methods available.

**Commonwealth of Massachusetts
Executive Office of Health and Human Services**

NOTICE OF PUBLIC HEARING

Pursuant to the authority of M.G.L. c. 118E and in accordance with M.G.L. c. 30A, a remote public hearing will be held on Friday, July 30, 2021, at 10 a.m. relative to the emergency adoption of:

101 CMR 446.00: COVID-19 Payment Rates for Certain Community Health Care Providers

The amendments to 101 CMR 446.00 add rates and codes for certain COVID-19 vaccines, vaccine administration, and monoclonal antibody treatments. The amendments also update rates for existing vaccine administration codes and establish supplemental payments for community health centers (CHCs). Rates for the actual vaccines and monoclonal antibodies will be set at \$0.00 because they are provided free-of-charge by the federal government. In addition, the amendments add rates for in-home COVID-19 vaccinations and pooled COVID-19 testing.

Technical corrections were also made throughout the regulation for consistency.

The regulation went into effect as an emergency on June 30, 2021. There is no fiscal impact on cities and towns.

If you would like to testify at the hearing, please register online at www.mass.gov/service-details/executive-office-of-health-and-human-services-public-hearings. To join the hearing online, go directly to [EHS Public Hearings Meeting Room](#). Alternatively, go to <https://zoom.us/join> and enter meeting ID 935 397 8200 and passcode 800606. To join the hearing by phone, call (646) 558-8656 and enter meeting ID 935 397 8200# when prompted.

You may also submit written testimony instead of, or in addition to, live testimony. To submit written testimony, please email your testimony to ehs-regulations@mass.gov as an attached Word or PDF document or as text within the body of the email with the name of the regulation in the subject line. All written testimony must include the sender's full name, mailing address, and organization or affiliation, if any. Individuals who are unable to submit testimony by email should mail written testimony to EOHHS, c/o D. Briggs, 100 Hancock Street, 6th Floor, Quincy, MA 02171. Written testimony must be submitted by 5:00 p.m. on Friday, July 30, 2021. EOHHS specifically invites comments as to how the amendments may affect beneficiary access to care.

To review the emergency regulation, go to www.mass.gov/service-details/executive-office-of-health-and-human-services-public-hearings or request a copy in writing from MassHealth Publications, 100 Hancock Street, 6th Floor, Quincy, MA 02171.

Special accommodation requests may be directed to the Disability Accommodations Ombudsman by email at ADAAccommodations@state.ma.us or by phone at (617) 847-3468 (TTY: (617) 847-3788 for people who are deaf, hard of hearing, or speech disabled). Please allow two weeks to schedule sign language interpreters.

EOHHS may adopt a final, revised version of the emergency regulation taking into account relevant comments and any other practical alternatives that come to its attention.

In case of inclement weather or other emergency, hearing cancellation announcements will be posted on the MassHealth website at www.mass.gov/service-details/executive-office-of-health-and-human-services-public-hearings.

July 6, 2021

Small Business Impact Statement

(As required by M.G.L. c. 30A §§ 2, 3 & 5)

CMR No: 101 CMR 446.00: COVID-19 Payment Rates for Certain Community Health Care Providers

Estimate of the Number of Small Businesses Impacted by the Regulation: 20,000 potential physician providers; 250 pharmacy providers

Select Yes or No and Briefly Explain

Yes ☐	No ☒	Will small businesses have to create, file, or issue additional reports? No. Small businesses will not have to create, file, or issue additional reports.
Yes ☐	No ☒	Will small businesses have to implement additional recordkeeping procedures? No. Small businesses will not have to implement additional recordkeeping procedures.
Yes ☐	No ☒	Will small businesses have to provide additional administrative oversight? No. Small businesses will not have to provide additional administrative oversight.
Yes ☐	No ☒	Will small businesses have to hire additional employees in order to comply with the proposed regulation? No. Small businesses will not have to hire additional employees in order to comply with the proposed regulation.
Yes ☐	No ☒	Does compliance with the regulation require small businesses to hire other professionals (e.g. a lawyer, accountant, engineer, etc.)? No. Small businesses are not required to hire other professionals to comply with the regulation.
Yes ☐	No ☒	Does the regulation require small businesses to purchase a product or make any other capital investments in order to comply with the regulation? No. Small businesses are not required to purchase a product or make any other capital investments in order to comply with the regulation.
Yes ☐	No ☒	Are performance standards more appropriate than design/operational standards to accomplish the regulatory objective? (Performance standards express requirements in terms of outcomes, giving the regulated party flexibility to achieve regulatory objectives and design/operational standards specify exactly what actions regulated parties must take.) No. The regulation is required by statute under M.G.L. Chapter 118E Section 13C, and establishes the rates to be paid by governmental units to providers of non-institutional health care services, including community health center services and COVID-19-related community health care services such as COVID-19 vaccines, vaccine administration, and treatment.
Yes ☐	No ☒	Do any other regulations duplicate or conflict with the proposed regulation? No. No other regulations duplicate or conflict with the proposed regulation.
Yes ☒	No ☐	Does the regulation require small businesses to cooperate with audits, inspections or other regulatory enforcement activities? Yes. The regulation requires providers to periodically comply with audits, inspections, and other regulatory activities.
Yes ☐	No ☒	Does the regulation require small businesses to provide educational services to keep up to date with regulatory requirements?

		No. The regulatory amendments do not require small businesses to provide educational services to keep up with regulatory requirements.
Yes ☐	No ☒	Is the regulation likely to <i>deter</i> the formation of small businesses in Massachusetts? No. The regulation is unlikely to deter or encourage the formation of small businesses in Massachusetts as this regulation governs payments for COVID-19 vaccines, vaccine administration, treatment and testing to publicly aided individuals, and establishes supplemental payments for community health centers. It is applied uniformly regardless of whether or not the provider is a small business.
Yes ☐	No ☒	Is the regulation likely to <i>encourage</i> the formation of small businesses in Massachusetts? No. The regulation is unlikely to deter or encourage the formation of small businesses in Massachusetts as this regulation governs payments for COVID-19 vaccines, vaccine administration, treatment and testing to publicly aided individuals, and establishes supplemental payments for community health centers. It is applied uniformly regardless of whether or not the provider is a small business.
Yes ☐	No ☒	Does the regulation provide for less stringent compliance or reporting requirements for small businesses? No. This regulation requires providers to submit documentation requested by the Commonwealth for purposes of utilization and provider review to ensure compliance with requirements, including the timelines for reporting, and the regulation is applied uniformly regardless of whether or not the provider is a small business.
Yes ☐	No ☒	Does the regulation establish less stringent schedules or deadlines for compliance or reporting requirements for small businesses? No. This regulation requires providers to submit documentation requested by the Commonwealth for purposes of utilization and provider review to ensure compliance with requirements, including the timelines for reporting, and the regulation is applied uniformly regardless of whether or not the provider is a small business.
Yes ☐	No ☒	Did the agency consolidate or simplify compliance or reporting requirements for small businesses? No. This regulation requires providers to submit documentation requested by the Commonwealth for purposes of utilization and provider review to ensure compliance with requirements, including the timelines for reporting, and the regulation is applied uniformly regardless of whether or not the provider is a small business.
Yes ☐	No ☒	Can performance standards for small businesses replace design or operational standards without hindering delivery of the regulatory objective? No. The regulation establishes uniform conditions of payment for COVID-19 vaccines, vaccine administration, treatment and testing to publicly aided individuals, and establishes supplemental payments for community health centers. These conditions of payment are applied uniformly, regardless of the size of the provider's business, to maintain consistency in the care provided to publicly aided individuals.
Yes ☐	No ☒	Are there alternative regulatory methods that would minimize the adverse impact on small businesses? No. The regulation does not have an adverse impact on small businesses and governs payments for COVID-19 vaccines, vaccine administration, treatment and testing to publicly aided individuals, and establishes supplemental payments for community health centers. It is applied uniformly regardless of whether or not the provider is a small business.



THE COMMONWEALTH OF MASSACHUSETTS MASSACHUSETTS ENVIRONMENTAL POLICE

251 CAUSEWAY ST., SUITE 101
BOSTON, MASSACHUSETTS 02114-2153

Office of Law Enforcement

Telephone: (617) 626-1650

Fax: (617) 626-1670

NOTICE OF PUBLIC HEARING

Notice is hereby given that the Office of Law Enforcement within the Executive Office of Energy and Environmental Affairs, under its authority pursuant to M.G.L. c. 90B and in accordance with M.G.L. c.30A, will hold a public hearing on proposed amendments to the Commercial Whitewater Use Regulation at 323 CMR 6.00. The regulation establishes rules of conduct and operation of commercial activities on the Deerfield River and is being updated to cover commercial tubing operators in addition to commercial whitewater operators, improve public safety provisions and establish a consistent code of conduct for customers of commercial operators.

A remote public hearing will be conducted at the following date and time to receive comments on the proposed revisions.

Thursday, August 5, 2021, 10:00 a.m. – 12:00 p.m.

The hearing will be held by live video and or telephone access through Zoom Webinar.

<https://us02web.zoom.us/j/85387989720>

Or join by phone:

US: +1- 301-715-8592

Webinar ID: 853 8798 9720

International numbers available: <https://us02web.zoom.us/j/kcqmOwliu4>

Testimony may be presented orally or in writing at the hearing. Written comments will be accepted until 5 p.m. on Monday, August 9, 2021. Written testimony must be submitted by email to Massachusetts.EnvironmentalPolice@mass.gov or by mail to Massachusetts Environmental Police, 251 Causeway Street, Suite 101, Boston, MA 02114.

Copies of the proposed regulations are available on the Executive Office of Energy and Environmental Affairs website at <https://www.mass.gov/lists/energy-and-environmental-affairs-laws-regulations> or may be obtained by calling Megan Marcelonis at 857-214-0702.

For special accommodations for this event or to obtain this information in an alternative format, you may contact Megan Marcelonis at 857-214-0702.

Executive Office of Energy and Environmental Affairs
Kathleen A. Theoharides, Secretary

Small Business Impact Statement

(As required by M.G.L. c. 30A §§ 2, 3 & 5)

CMR No: 323 CMR 6.00 Whitewater Rafting

Estimate of the Number of Small Businesses Impacted by the Regulation: 5

Select Yes or No and Briefly Explain

Yes ☐	No ☒	Will small businesses have to create, file, or issue additional reports?
Yes ☐	No ☒	Will small businesses have to implement additional recordkeeping procedures?
Yes ☒	No ☐	Will small businesses have to provide additional administrative oversight? Tubing companies will need to ensure compliance with safety standards
Yes ☐	No ☒	Will small businesses have to hire additional employees in order to comply with the proposed regulation?
Yes ☐	No ☒	Does compliance with the regulation require small businesses to hire other professionals (e.g. a lawyer, accountant, engineer, etc.)?
Yes ☒	No ☐	Does the regulation require small businesses to purchase a product or make any other capital investments in order to comply with the regulation? Tubes will need to be numbered. We believe the 2 commercial tubing operators already use commercial grade tubes.,
Yes ☐	No ☒	Are performance standards more appropriate than design/operational standards to accomplish the regulatory objective? (Performance standards express requirements in terms of outcomes, giving the regulated party flexibility to achieve regulatory objectives and design/operational standards specify exactly what actions regulated parties must take.)
Yes ☐	No ☒	Do any other regulations duplicate or conflict with the proposed regulation?
Yes ☒	No ☐	Does the regulation require small businesses to cooperate with audits, inspections or other regulatory enforcement activities? OLE would be empowered to inspect books and records of regulated entities.
Yes ☐	No ☒	Does the regulation require small businesses to provide educational services to keep up to date with regulatory requirements?
Yes ☐	No ☒	Is the regulation likely to <i>deter</i> the formation of small businesses in Massachusetts?
Yes ☐	No ☒	Is the regulation likely to <i>encourage</i> the formation of small businesses in Massachusetts?

Yes ☐	No ☒	Does the regulation provide for less stringent compliance or reporting requirements for small businesses?
Yes ☐	No ☒	Does the regulation establish less stringent schedules or deadlines for compliance or reporting requirements for small businesses?
Yes ☐	No ☒	Did the agency consolidate or simplify compliance or reporting requirements for small businesses?
Yes ☐	No ☒	Can performance standards for small businesses replace design or operational standards without hindering delivery of the regulatory objective?
Yes ☐	No ☒	Are there alternative regulatory methods that would minimize the adverse impact on small businesses?



The Commonwealth of Massachusetts
Executive Office of Health and Human Services
Department of Public Health
250 Washington Street, Boston, MA 02108-4619

CHARLES D. BAKER
Governor

KARYN E. POLITO
Lieutenant Governor

MARYLOU SUDDERS
Secretary

MARGRET R. COOKE
Acting Commissioner

Tel: 617-624-6000
www.mass.gov/dph

NOTICE OF PUBLIC HEARING

Notice is hereby given pursuant to M.G.L. c. 30A, §2, that the Department of Public Health will hold a public hearing and comment period on proposed amendments to 105 CMR 301.000: *Cancer Registry*.

The public hearing will be held on Thursday, August 19, 2021, at 10:00 a.m. The hearing will be conducted on a **moderated conference call**. The information for the moderated conference call is:

Dial-in Telephone Number: 888-390-5007
Participant Passcode: 5416765
To Testify Press: *1

A copy of the proposed amendments to 105 CMR 301.000 may be viewed on the Department's website at <http://mass.gov/dph/proposed-regulations> or requested from the Office of the General Counsel by calling 617-624-5220.

Speakers who testify at the public hearing are requested to provide a copy of their oral comments. The Department encourages all interested parties to submit comments electronically to Reg.Testimony@mass.gov or by mail to William Anderson, Office of the General Counsel, Department of Public Health, 250 Washington Street, Boston, MA 02108. All submissions must include the sender's full name and address.

When electronically submitting comments, type "Cancer Registry" in the subject line and attach a Word document with your comments or type your comments in the body of your email.

The Department will post all testimony that complies with these instructions on its website. **All comments must be submitted by 5:00 p.m. on Friday, August 20, 2021.** All comments received by the Department may be released in response to a request for public records.

If you are deaf or hard of hearing, or are a person with a disability who requires accommodation, please contact Alex Gomez at least 5 days before the hearing at Tel # 617-624-5928, Fax # 617-624-5075, email Alex.Gomez@mass.gov, or TTY # 617-624-6001.



Small Business Impact Statement <i>(As required by M.G.L. c. 30A §§ 2, 3 & 5)</i>		
Agency: Department of Public Health		
CMR No: 105 CMR 301.000: <i>Cancer Registry</i>		
Estimate of the Number of Small Businesses Impacted by the Regulation: Most of the impact of these amendments will be on hospitals, which would not be considered small businesses, but the following entities also report data and some could be considered small businesses: Four endoscopy centers, 15 surgical centers, 13 commercial pathology laboratories, 11 medical practice associations, five radiation/oncology centers, ten urology centers, and 17 dermatology centers.		
Select Yes or No and Briefly Explain		
Yes ☐	No ☒	Will small businesses have to create, file, or issue additional reports? No additional reports are required by these amendments.
Yes ☐	No ☒	Will small businesses have to implement additional recordkeeping procedures? Small businesses will not have to implement additional recordkeeping procedures as a result of these amendments.
Yes ☐	No ☒	Will small businesses have to provide additional administrative oversight? Small businesses will not have to provide additional administrative oversight as a result of these amendments.
Yes ☐	No ☒	Will small businesses have to hire additional employees in order to comply with the proposed regulation? Small businesses will not have to hire additional employees as a result of these amendments.
Yes ☐	No ☒	Does compliance with the regulation require small businesses to hire other professionals (e.g. a lawyer, accountant, engineer, etc.)? Small businesses will not have to hire other professionals as a result of these amendments.
Yes ☐	No ☒	Does the regulation require small businesses to purchase a product or make any other capital investments in order to comply with the regulation? Small businesses will not have to purchase a product or make capital investments as a result of these amendments.
Yes ☐	No ☒	Are performance standards more appropriate than design/operational standards to accomplish the regulatory objective? (Performance standards express requirements in terms of outcomes, giving the regulated party flexibility to achieve regulatory objectives and design/operational standards specify exactly what actions regulated parties must take.) The law requires regulatory requirements.
Yes ☐	No ☒	Do any other regulations duplicate or conflict with the proposed regulation? No other regulations duplicate or conflict with these proposed amendments..
Yes ☒	No ☐	Does the regulation require small businesses to cooperate with audits, inspections or other regulatory enforcement activities?

		The regulations do require regulated facilities, including any small businesses, to cooperate with reporting requirements and data requests.
Yes ☐	No ☒	Does the regulation require small businesses to provide educational services to keep up to date with regulatory requirements? The proposed amendments do not require small businesses to provide educational services.
Yes ☐	No ☒	Is the regulation likely to <i>deter</i> the formation of small businesses in Massachusetts? The regulation is not likely to deter the formation of small businesses in Massachusetts.
Yes ☐	No ☒	Is the regulation likely to <i>encourage</i> the formation of small businesses in Massachusetts? The regulation is not likely to encourage the formation of small businesses in Massachusetts.
Yes ☐	No ☒	Does the regulation provide for less stringent compliance or reporting requirements for small businesses? The regulation does not provide for less stringent compliance or reporting requirements for small businesses. All regulated facilities must follow the same reporting standards.
Yes ☐	No ☒	Does the regulation establish less stringent schedules or deadlines for compliance or reporting requirements for small businesses? The regulation does not establish less stringent schedules or deadlines for compliance or reporting requirements for small businesses. All regulated facilities must follow the same reporting requirements.
Yes ☐	No ☒	Did the agency consolidate or simplify compliance or reporting requirements for small businesses? The Department did not consolidate or simplify compliance or reporting requirements for small businesses.
Yes ☐	No ☒	Can performance standards for small businesses replace design or operational standards without hindering delivery of the regulatory objective? Performance standards cannot replace design or operational standards without hindering delivery of the regulation's objective.
Yes ☐	No ☒	Are there alternative regulatory methods that would minimize the adverse impact on small businesses? There are no alternative regulatory methods that would minimize the adverse impact of this regulation on small businesses.



The Commonwealth of Massachusetts
Executive Office of Health and Human Services
Department of Public Health
250 Washington Street, Boston, MA 02108-4619

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Tel: 617-624-6000
www.mass.gov/dph

NOTICE OF PUBLIC HEARING

Notice is hereby given pursuant to M.G.L. c. 30A, §2, that the Department of Public Health will hold a public hearing on the emergency repeal of 105 CMR 316.000, *Use of Face Masks or Coverings in Response to the COVID-19 Pandemic*.

Since the promulgation of the regulation, COVID-19 vaccines have been authorized and over 3.5 million Commonwealth residents are now fully vaccinated against the disease and the federal Centers for Disease Control and Prevention (CDC) updated its guidance regarding mask usage on May 13, 2021. On May 28, 2021, Governor Baker terminated the State of Emergency effective June 15, 2021. At that time he also rescinded COVID-19 Order No. 67, the Further Revised Order Regarding Face Coverings, effective May 29, 2021, following the new CDC guidance.

Accordingly, this regulation was repealed on an emergency basis because public health data and COVID-19 vaccination rates in the Commonwealth indicated that such repeal was necessary. The observance of notice and a public hearing prior to the proposed repeal of the regulation would result in a broad requirement that people in the Commonwealth wear masks and face coverings in most locations, despite the current data that support the use of masks under more narrow and prescribed circumstances.

As required by M.G.L. c. 30A, §2, the Department now intends to hold a public hearing regarding the repeal of this regulation. The public hearing will be held virtually on **Friday, July 30, 2021**, at 10:00 a.m. as a moderated conference call. The information for the conference call is below:

Dial in Telephone Number: 888-390-5007
Participant Passcode: 8082527

Speakers are requested to provide a copy of their oral testimony. The Department encourages all interested parties to submit testimony electronically to the following address: reg.testimony@mass.gov. Please submit electronic testimony as an attached Word document or as text within the body of an email and type "Face Mask and Coverings regulation repeal" in the subject line. All submissions must include the sender's full name and address. The Department will post all electronic testimony that complies with these instructions on its website. Parties who are unable to submit electronic testimony should mail submissions to William Anderson, Office of the General Counsel, Department of Public Health, 250 Washington Street, Boston, MA 02108. All written or oral comments submitted to the Department may be posted on the Department's website and released in response to a request for public records. All testimony must be submitted by 5:00 p.m. on Friday, July 30, 2021.

If you are deaf or hard of hearing, or are a person with a disability who requires accommodation, please contact Alex Gomez at least 5 days before the hearing at Tel # 617-624-5928, Fax # 617-624-5075, email Alex.Gomez@mass.gov, or TTY # 617-624-6001.

Small Business Impact Statement <i>(As required by M.G.L. c. 30A §§ 2, 3 & 5)</i>		
Agency: Department of Public Health		
CMR No: 105 CMR 316.000, Use of Face Masks and Coverings in Response to the COVID-19 Pandemic		
Estimate of the Number of Small Businesses Impacted by the Regulation: The emergency repeal of this regulation does not directly or specifically impact small businesses, as it will repeal requirements regarding the use of face masks or coverings for all individuals in the Commonwealth.		
Select Yes or No and Briefly Explain		
Yes ☐	No ☒	Will small businesses have to create, file, or issue additional reports? The Department does not anticipate that the emergency repeal of this regulation will not require small businesses to create, file, or issue reports.
Yes ☐	No ☒	Will small businesses have to implement additional recordkeeping procedures? The Department does not anticipate that the emergency repeal of this regulation will require small businesses keep records.
Yes ☐	No ☒	Will small businesses have to provide additional administrative oversight? The Department does not anticipate that the emergency repeal of this regulation will require small businesses to provide additional administrative oversight.
Yes ☐	No ☒	Will small businesses have to hire additional employees in order to comply with the proposed regulation? The Department does not anticipate that the emergency repeal of this regulation will require small businesses have to hire additional employees in order to comply.
Yes ☐	No ☒	Does compliance with the regulation require small businesses to hire other professionals (e.g. a lawyer, accountant, engineer, etc.)? The Department does not anticipate that small businesses will require professional services to comply with the emergency repeal of this regulation as the emergency regulation.
Yes ☐	No ☒	Does the regulation require small businesses to purchase a product or make any other capital investments in order to comply with the regulation? The emergency repeal of this regulation does not require that small businesses purchase any product or make any capital investments in order to comply.
Yes ☐	No ☒	Are performance standards more appropriate than design/operational standards to accomplish the regulatory objective? (Performance standards express requirements in terms of outcomes, giving the regulated party flexibility to achieve regulatory objectives and design/operational standards specify exactly what actions regulated parties must take.)

		This question is not applicable as the emergency repeal of this regulation does not require design/operational standards.
Yes ☐	No ☒	Do any other regulations duplicate or conflict with the proposed regulation? This emergency repeal of this regulation does not duplicate or conflict with other regulations.
Yes ☐	No ☒	Does the regulation require small businesses to cooperate with audits, inspections or other regulatory enforcement activities? The emergency repeal of this regulation does not require small businesses to cooperate with audits, inspections, or other regulatory enforcement activities.
Yes ☐	No ☒	Does the regulation require small businesses to provide educational services to keep up to date with regulatory requirements? This question is not applicable as the emergency repeal of this regulation does not require educational services.
Yes ☐	No ☒	Is the regulation likely to <i>deter</i> the formation of small businesses in Massachusetts? This emergency repeal of this regulation is not likely to deter or encourage the formation of small businesses in Massachusetts.
Yes ☐	No ☒	Is the regulation likely to <i>encourage</i> the formation of small businesses in Massachusetts? This emergency repeal of this regulation is not likely to deter or encourage the formation of small businesses in Massachusetts.
Yes ☐	No ☒	Does the regulation provide for less stringent compliance or reporting requirements for small businesses? The emergency repeal of this regulation does not specifically apply to small businesses.
Yes ☐	No ☒	Does the regulation establish less stringent schedules or deadlines for compliance or reporting requirements for small businesses? The emergency repeal of this regulation does not specifically apply to small businesses.
Yes ☐	No ☒	Did the agency consolidate or simplify compliance or reporting requirements for small businesses? The emergency repeal of this regulation does not consolidate or simplify reporting requirements for small business.
Yes ☐	No ☒	Can performance standards for small businesses replace design or operational standards without hindering delivery of the regulatory objective? This question is not applicable as this emergency repeal of this regulation does not establish design or operational standards.

Yes ☐	No ☒	Are there alternative regulatory methods that would minimize the adverse impact on small businesses? The emergency repeal of this regulation does not specifically apply to small businesses.
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DEBORAH B. GOLDBERG
Treasurer and Receiver General

MICHAEL R. SWEENEY
Executive Director

NOTICE OF PUBLIC HEARING

Notice is hereby provided that in accordance with M.G.L. c. 30A, §2, the Massachusetts State Lottery Commission will hold a public hearing for purposes of gathering comments relative to proposed amendments to 961 CMR 2.00: Rules and Regulations. The amendments are authorized by M.G.L. c. 10, §24.

The amendments to 961 CMR 2.00 increase the number of drawings conducted for Powerball and Lucky for Life.

Due to the COVID-19 emergency, the Massachusetts State Lottery Commission will hold this public hearing remotely on Thursday, **August 12, 2021 at 11:00 a.m.** To participate in the remote public hearing by telephone, call 1-(415) 655-0001 and enter meeting number 172 068 2693# when prompted.

A copy of the proposed amendments referenced above may be downloaded by visiting www.masslottery.com. Anyone wishing to offer comments may participate in the remote public hearing at the designated date and time above or submit written comments. Those who wish to receive a written copy of the proposed amendments, or to submit written comments, may do so by sending an email to cporche@masslottery.com, or by mail to Cecelia Porche, Massachusetts State Lottery Commission, 150 Mount Vernon Street, Dorchester, MA 02125. Written comments must be received by 4:00 p.m. on August 13, 2021.

Additionally, attached please find the accompanying Small Business Impact Statement in accordance with M.G.L. c.30A, §2.



Supporting the 351 Cities and Towns of Massachusetts

150 Mount Vernon Street, Suite 300 • Dorchester • Massachusetts • 02125-3573 • Tel: 781-849-5555 • www.masslottery.com



DEBORAH B. GOLDBERG
Treasurer and Receiver General

MICHAEL R. SWEENEY
Executive Director

SMALL BUSINESS IMPACT STATEMENT

The Massachusetts State Lottery Commission (“Commission”) hereby files this small business impact statement in accordance with G.L. c.30A, §2 relative to the proposed amendments in 961 CMR 2.00: Rules and Regulations; notice of which was filed this day with the Secretary of the Commonwealth.

The amendments to 961 CMR 2.00 increase the number of drawings conducted for Powerball and Lucky for Life. These regulations are governed by M.G.L. c. 10, §24.

These amendments may increase consumer purchases and revenue for Lottery agents, some of which are small businesses. In accordance with G.L. c.30A, §2, the Commission offers the following responses:

1. Estimate of the number of small businesses subject to the proposed regulation:

There are approximately 7,400 licensed Lottery agents, approximately 5,900 of whom would be considered a small business. These amendments may increase consumer purchases and revenue for Lottery agents. There is minimal impact caused by these regulations as agents will conduct ongoing Lottery business.

2. State the projected reporting, recordkeeping and other administrative costs required for compliance with the proposed regulation:

There are no projected additional reporting, recordkeeping or administrative costs created by these regulations that would affect small businesses.

3. State the appropriateness of performance standards versus design standards:

These regulations do not implicate a design or performance standard that would affect small businesses.



4. Identify regulations of the promulgating agency, or of another agency or department of the commonwealth, which may duplicate or conflict with the proposed regulation:

The Commission is not aware of duplicate or conflicting regulations.

5. State whether the proposed regulation is likely to deter or encourage the formation of new businesses in the commonwealth:

These regulations are not likely to deter or encourage the formation of new businesses in the Commonwealth.

MASSACHUSETTS STATE LOTTERY COMMISSION,

/s/ Gregory M. Polin

By: _____
GREGORY M. POLIN
GENERAL COUNSEL

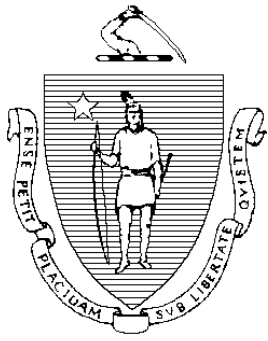
July 7, 2021

Date: _____



Supporting the 351 Cities and Towns of Massachusetts

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THE COMMONWEALTH OF MASSACHUSETTS

Secretary of the Commonwealth - William Francis Galvin

2020 CUMULATIVE TABLE TO THE MASSACHUSETTS REGISTER

1434 - 1448

The Cumulative Tables lists all regulations and amendments thereto published in the Massachusetts Register during the current year. The Table is published in each Register.

State agencies are listed in the Table as they appear in the Code of Massachusetts Regulations (CMR or Code) in CMR numerical order which is based on the cabinet structure. For example, all Human Service agencies are prefaced by the number "1" and are designated as 101 CMR through 130 CMR.

The Cumulative Tables published in the last issue of previous years will have a listing of all regulations published for that year. These Registers are:

April 6, 1976 - 1977	Register: # 88	Date: 1999	Register: # 885
1978	138	2000	911
1979	193	2001	937
1980	241	2002	963
1981	292	2003	989
1982	344	2004	1016
1983	396	2005	1042
1984	448	2006	1068
1985	500	2007	1094
1986	546	2008	1120
1987	572	2009	1146
1988	598	2010	1172
1989	624	2011	1198
1990	650	2012	1224
1991	676	2013	1250
1992	702	2014	1276
1993	729	2015	1302
1994	755	2016	1329
1995	871	2017	1355
1996	Supp. # 2 807	2018	1381
1997	833	2019	1407
1998	859	2020	1433

		<i>Issue</i>	<i>Effective Date</i>
101 CMR	Executive Office of Health and Human Services		
21.00	COVID-19 Testing for Staff at Agency Facilities - <i>Compliance</i> (MA Reg. # 1429).....	1434	10/5/20
22.00	Requirement to Disclose COVID-19 Test Results to EOHHS - <i>Compliance</i> (MA Reg. # 1429).....	1434	10/5/20
204.00	Rates of Payment to Resident Care Facilities.	1436	2/5/21
206.00	Standard Payments to Nursing Facilities.....	1434	1/8/21
	- <i>Emergency</i>	1437	2/2/21
	- <i>Compliance</i> (MA Reg. # 1437).....	1443	2/2/21
307.00	Rates for Psychiatric Day Treatment Center Services.....	1446	6/25/21
316.00	Rates for Surgery and Anesthesia Services.....	1448	7/23/21
317.00	Rates for Medicine Services.	1448	7/23/21
318.00	Rates for Radiology Services.....	1448	7/23/21
320.00	Clinical Laboratory Services - <i>Emergency</i>	1435	1/1/21
		1439	3/19/21
346.00	Rates for Certain Substance-related and Addictive Disorders Programs.	1436	2/5/21
	- <i>Correction</i> (MA Reg. # 1436).....	1437	2/5/21
		1447	7/9/21
350.00	Home Health Services - <i>Emergency</i>	1437	1/29/21
	- <i>Compliance</i> (MA Reg. # 1437).....	1442	1/29/21
351.00	Rates of Payment for Certain Adult Foster Care Services.	1438	3/5/21
353.00	Payment for Primary Care Clinician Plan Services and Primary Care ACO Participating Primary Care Provider Services.	1443	5/14/21
359.00	Rates for Home and Community Based Services.	1437	1/29/21
	- <i>Compliance</i> (MA Reg. # 1437).....	1442	1/29/21
413.00	Payments for Youth Intermediate-term Stabilization Services.	1443	5/14/21
414.00	Rates for Family Stabilization Services.....	1446	6/25/21
415.00	Rates for Community-based Day Support Services.....	1446	6/25/21
419.00	Rates for Supported Employment Services.....	1447	7/9/21
421.00	Rates for Adult Housing and Community Support Services.....	1446	6/25/21
427.00	Rates for Certain Youth and Young Adult Support Services.	1447	7/9/21
428.00	Rates for Certain Independent Living Communities and Services. ...	1447	7/9/21
429.00	Rates for Certain Sexual and Domestic Violence Services.....	1447	7/9/21
430.00	Rates for Program of Assertive Community Treatment Services.	1447	7/9/21
431.00	Rates for Certain Respite Services.	1446	6/25/21
432.00	Rates for Certain Lead Agency Services.....	1444	5/28/21
445.00	COVID-19 Payment Rates for Certain Day Programs - <i>Emergency</i> ... - <i>Emergency Refile</i> (MA Reg. # 1435).	1435	1/8/21
		1441	1/8/21
		1446	6/25/21
446.00	COVID-19 Payment Rates for Certain Community Health Care Providers - <i>Emergency</i>	1435	12/31/20
	- <i>Correction</i> (MA Reg. # 1435).....	1437	12/31/20
		1439	3/19/21
	- <i>Emergency</i>	1448	6/30/21
103 CMR	Department of Correction		
481.00	Inmate Mail.	1440	4/2/21

		<i>Issue</i>	<i>Effective Date</i>
104 CMR	Department of Public Health		
27.00	Licensing and Operational Standards for Mental Health Facilities		
	- <i>Emergency</i>	1440	3/18/21
	- <i>Compliance</i> (MA Reg. # 1440).....	1446	3/18/21
33.00	Designation and Appointment of Qualified Mental Health		
	Professionals - <i>Emergency</i>	1440	3/18/21
	- <i>Compliance</i> (MA Reg. # 1440).....	1446	3/18/21
105 CMR	Department of Public Health		
140.000	Licensure of Clinics.....	1443	5/14/21
150.000	Standards for Long-term Care Facilities.	1440	4/2/21
316.00	Use of Face Masks or Coverings in Response to the COVID-19		
	Pandemic - <i>Emergency</i>	1446	6/10/21
700.000	Implementation of M.G.L. c. 94C.....	1436	2/5/21
106 CMR	Department of Transitional Assistance		
704.000	Transitional Cash Assistance Program: Financial Eligibility.....	1439	4/1/21
118 CMR	Disabled Persons Protection Commission		
1.00	Scope and Authority.	1448	7/23/21
2.00	Definitions.	1448	7/23/21
3.00	Reporters.	1448	7/23/21
4.00	Screening of Reports and Referrals to Other Agencies.....	1448	7/23/21
5.00	Investigations.....	1448	7/23/21
6.00	Formal Commissioners' Investigations.....	1448	7/23/21
7.00	Protective Services.....	1448	7/23/21
8.00	Petition for Protective Order.	1448	7/23/21
9.00	Records.	1448	7/23/21
10.00	Annual Reports.	1448	7/23/21
11.00	Interagency Agreements.	1448	7/23/21
12.00	Nondiscrimination.	1448	7/23/21
13.00	Advisory Council.....	1448	7/23/21
14.00	Filing Objections and Administrative Review.	1448	7/23/21
15.00	Department and Employer Registry-related Hiring and Retention		
	Procedures.	1448	7/23/21
130 CMR	Division of Medical Assistance		
450.000	Administrative and Billing Regulations		
	- <i>Correction</i> (MA Reg. # 1374).....	1439	10/1/18
		1446	7/1/21
501.000	Health Care Reform: MassHealth: General Policies.....	1443	5/14/21
	- <i>Correction</i> (MA Reg. # 1443).....	1445	5/14/21
506.000	MassHealth: Financial Requirements.....	1446	7/1/21
515.000	MassHealth: General Policies.....	1443	5/14/21
	- <i>Correction</i> (MA Reg. # 1443).....	1445	5/14/21
520.000	MassHealth: Financial Eligibility.....	1446	7/1/21

		<i>Issue</i>	<i>Effective Date</i>
205 CMR	Massachusetts Gaming Commission		
133.00	Voluntary Self-exclusion.....	1434	1/8/21
134.00	Licensing and Registration of Employees, Vendors, Junket Enterprises and Representatives, and Labor Organizations - <i>Compliance</i> (MA Reg. # 1433).....	1437	12/4/20
146.00	Gaming Equipment.	1434	1/8/21
		1444	5/28/21
153.00	Community Mitigation Fund.	1434	1/8/21
209 CMR	Division of Banks and Loan Agencies		
18.00	Conduct of the Business of Debt Collectors and Loan Servicers - <i>Emergency</i>	1448	7/1/21
48.00	Licensee Recordkeeping - <i>Emergency</i>	1448	7/1/21
225 CMR	Department of Energy Resources		
14.00	Renewable Energy Portfolio Standard - Class I.	1447	7/9/21
	- <i>Correction</i> (MA Reg. # 1447).....	1448	7/9/21
15.00	Renewable Energy Portfolio Standard - Class II.....	1447	7/9/21
244 CMR	Board of Registration in Nursing		
3.00	Registered Nurse and Licensed Practical Nurse.	1445	6/11/21
4.00	Advanced Practice Registered Nursing - <i>Emergency</i>	1446	6/10/21
5.00	Continuing Education.	1445	6/11/21
7.00	Investigations, Complaints and Board Actions.	1445	6/11/21
8.00	Licensure Requirements.	1445	6/11/21
9.00	Standards of Conduct.	1445	6/11/21
10.00	Definitions and Severability.	1445	6/11/21
248 CMR	Board of State Examiners of Plumbers and Gas Fitters		
3.00	General Provisions Governing the Conduct of Plumbing and Gas Fitting Work Performed in the Commonwealth.	1442	4/30/21
4.00	Massachusetts Fuel Gas Code.	1442	4/30/21
5.00	Amendments to NFPA 54.	1442	4/30/21
10.00	Uniform State Plumbing Code.....	1442	4/30/21
11.00	Education and Experience Standards and Requirements for Licensure.	1442	4/30/21
	- <i>Correction</i> (MA Reg. # 1442).....	1447	4/30/21
310 CMR	Department of Environmental Protection		
7.00	Air Pollution Control - <i>Emergency</i>	1434	12/21/20
	- <i>Correction</i> (MA Reg. # 1434).....	1438	12/21/20
	- <i>Compliance</i> (MA Reg. # 1434).....	1439	12/21/20
22.00	Drinking Water - <i>Correction</i> (MA Reg. # 1427).....	1437	10/2/20
60.00	Air Pollution Control for Mobile Sources - <i>Emergency</i>	1434	12/21/20
	- <i>Compliance</i> (MA Reg. # 1434).....	1439	12/21/20

		<i>Issue</i>	<i>Effective Date</i>
321 CMR	Division of Fisheries & Wildlife		
3.00	Hunting.	1445	6/11/21
322 CMR	Division of Marine Fisheries		
4.00	Fishing and Shellfish Equipment.	1445	6/11/21
		1447	7/9/21
6.00	Regulation of Catches.	1438	3/5/21
		1440	4/2/21
		1442	4/30/21
		1445	6/11/21
7.00	Permits.	1438	3/5/21
		1445	6/11/21
12.00	Protected Species.	1438	3/5/21
		1447	7/9/21
400 CMR	Executive Office of Housing and Economic Development		
5.00	COVID-19 Emergency Regulations.	1438	3/5/21
6.00	Notices to Quit during the COVID-19 State of Emergency		
	- <i>Emergency</i>	1435	12/31/20
	- <i>Compliance</i> (MA Reg. # 1435).	1438	12/31/20
	- <i>Emergency</i>	1447	6/24/21
430 CMR	Department of Unemployment Assistance		
24.00	COVID-19 Emergency Regulations - Employer Relief - <i>Emergency</i>	1442	4/15/21
	- <i>Emergency</i>	1445	5/24/21
	- <i>Emergency</i>	1447	6/14/21
453 CMR	Department of Labor and Workforce Development		
6.00	The Removal, Containment or Encapsulation of Asbestos.	1440	4/2/21
454 CMR	Department of Labor Standards		
22.00	Deleading and Lead-safe Renovation - <i>Correction</i> (MA Reg. # 1330).	1440	1/13/17
25.00	Occupational Safety and Health for Public Sector Workers.	1448	7/23/21
28.00	The Removal, Containment, Maintenance, or Encapsulation of		
	Asbestos.	1440	4/2/21
29.00	Civil Administrative Penalties.	1448	7/23/21
31.00	COVID-19 Workplace Safety Regulations - <i>Emergency</i>	1445	5/27/21
458 CMR	Department of Family and Medical Leave		
2.00	Family and Medical Leave - <i>Emergency</i>	1434	12/21/20
	- <i>Compliance</i> (MA Reg. # 1434).	1439	12/21/20
3.00	COVID-19 Emergency Regulations - <i>Emergency</i>	1434	12/21/20

		<i>Issue</i>	<i>Effective Date</i>
540 CMR	Registry of Motor Vehicles		
25.00	Certification, Installation, Use and Maintenance of Ignition Interlock Devices.....	1447	7/9/21
603 CMR	Department of Elementary and Secondary Education		
2.00	Accountability and Assistance for School Districts and Schools.	1447	7/9/21
4.00	Vocational Technical Education.	1447	7/9/21
7.00	Educator Licensure and Preparation Program Approval.....	1447	7/9/21
27.00	Student Learning Time - <i>Emergency</i>	1434	12/16/20
	- <i>Compliance</i> (MA Reg. # 1434).....	1439	12/16/20
	- <i>Emergency</i>	1440	3/8/21
	- <i>Compliance</i> (MA Reg. # 1440).....	1445	3/8/21
606 CMR	Department of Early Education and Care		
15.00	Early Education and Out of School Time Capital Fund Program - <i>Compliance</i> (MA Reg. # 1430).....	1436	10/23/20
700 CMR	Department of Transportation		
13.00	Approval of Access to Massachusetts Department of Transportation Highways and Other Property.	1447	7/9/21
701 CMR	Executive Office of Transportation and Construction		
3.00	Privacy and Confidentiality.....	1437	2/19/21
760 CMR	Department of Housing and Community Development		
57.00	RAFT COVID-19 Emergency Regulations - <i>Emergency</i>	1434	12/16/20
	- <i>Compliance</i> (MA Reg. # 1434).....	1438	12/16/20
801 CMR	Executive Office for Administration and Finance		
4.00	Rates - <i>Emergency</i>	1442	4/13/21
	- <i>Compliance</i> (MA Reg. # 1442).....	1448	4/13/21
803 CMR	Department of Criminal Justice Information Services		
2.00	Criminal Offender Record Information (CORI) - <i>Emergency Refile</i> . .	1434	6/29/20
	- <i>Emergency Refile</i> (MA Reg. # 1434).	1440	6/29/20
		1445	6/11/21
5.00	Criminal Offender Record Information (CORI) - Housing.....	1445	6/11/21
7.00	Criminal Justice Information System (CJIS).....	1445	6/11/21
8.00	Obtaining Criminal Offender Record Information (CORI) for Research Purposes.	1445	6/11/21
11.00	Consumer Reporting Agency (CRA).....	1445	6/11/21

		<i>Issue</i>	<i>Effective Date</i>
830 CMR	Department of Revenue		
62A.00	Income Tax - <i>Compliance</i> (MA Reg. # 1433).....	1438	12/8/20
62C.00	State Tax Administration - <i>Emergency</i>	1444	5/6/21
64G.00	Room Occupancy Excise - <i>Emergency</i>	1444	5/6/21
935 CMR	Cannabis Control Commission		
500.000	Adult Use of Marijuana.	1434	1/8/21
	- <i>Correction</i> (MA Reg. # 1434).....	1436	1/8/21
	- <i>Correction</i> (MA Reg. # 1434).....	1441	1/8/21
501.000	Medical Use of Marijuana.	1434	1/8/21
	- <i>Correction</i> (MA Reg. # 1434).....	1436	1/8/21
	- <i>Correction</i> (MA Reg. # 1434).....	1441	1/8/21
502.000	Colocated Adult-use and Medical-use Marijuana Operations.....	1434	1/8/21
946 CMR	Massachusetts Development Finance Agency		
4.00	Devens Regional Enterprise Zone: General Provisions.	1441	4/16/21
950 CMR	Office of the Secretary of the Commonwealth		
32.00	Public Records Access.....	1445	6/11/21
961 CMR	State Lottery Commission		
2.00	Rules and Regulations - <i>Emergency</i>	1443	4/21/21
	- <i>Emergency</i>	1446	6/11/21
	- <i>Compliance</i> (MA Reg. # 1443).....	1447	4/21/21
974 CMR	Devens Enterprise Commission		
1.00	Administration.	1446	6/25/21
3.00	Site Plan Approval.....	1446	6/25/21
4.00	Industrial Performance Standards.	1446	6/25/21
8.00	Public Health.	1446	6/25/21



THE COMMONWEALTH OF MASSACHUSETTS

William Francis Galvin

Secretary of the Commonwealth

Regulation Filing *To be completed by filing agency*CHAPTER NUMBER: **101 CMR 446.00**CHAPTER TITLE: **COVID-19 Payment Rates for Certain Community Health Care Providers**AGENCY: **Executive Office of Health and Human Services**SUMMARY OF REGULATION: *State the general requirements and purposes of this regulation.*

101 CMR 446.00 governs the payment rates paid by MassHealth and other governmental purchasers for certain COVID-19-related community health care services rendered to publicly aided individuals by providers.

REGULATORY AUTHORITY: **M.G.L. c. 118E**AGENCY CONTACT: **Deborah M. Briggs, MassHealth Publications** PHONE: **617-847-3302**ADDRESS: **100 Hancock Street, 6th Floor, Quincy, MA 02171****Compliance with M.G.L. c. 30A**EMERGENCY ADOPTION - *if this regulation is adopted as an emergency, state the nature of the emergency.***Please see the attached emergency justification.**

PRIOR NOTIFICATION AND/OR APPROVAL - *If prior notification to and/or approval of the Governor, Legislature or others was required, list each notification, and/or approval and date, including notice to the Local Government Advisory Commission.*

Executive Order 145 Notification: June 30, 2021**Executive Order 562 Approval: June 30, 2021**

PUBLIC REVIEW - *M.G.L. c. 30A sections 2 and/or 3 requires notice of the hearing or comment period, including a small business impact statement, be filed with the Secretary of the Commonwealth, published in appropriate newspapers, and sent to persons to whom specific notice must be given at least 21 days prior to such hearing or comment period.*

Date of public hearing or comment period: _____

FISCAL EFFECT - *Estimate the fiscal effect of the public and private sectors.*

For the first and second year: Est. \$0.72M annually for COVID-19 vaccines/related services; SFY21 \$48.97M for CHC one-time payment; \$93.5M for pooled testing/in-home vaccination.

For the first five years: _____

No fiscal effect: _____

SMALL BUSINESS IMPACT - *M.G.L. c. 30A section 5 requires each agency to file an amended small business impact statement with the Secretary of the Commonwealth prior to the adoption of a proposed regulation. If the purpose of this regulation is to set rates for the state, this section does not apply.*

Date amended small business impact statement was filed: N/A

CODE OF MASSACHUSETTS REGULATIONS INDEX - *List key subjects that are relevant to this regulation:*

PROMULGATION - *State the action taken by this regulation and its effect on existing provisions of the Code of Massachusetts Regulations (CMR) or repeal, replace or amend. List by CMR number:*

101 CMR 446.00 is being amended.

ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.* ATTEST:

SIGNATURE: SIGNATURE ON FILE DATE: Jun 30 2021

Publication - *To be completed by the Regulations Division*

MASSACHUSETTS REGISTER NUMBER: 1448 DATE: 07/23/2021

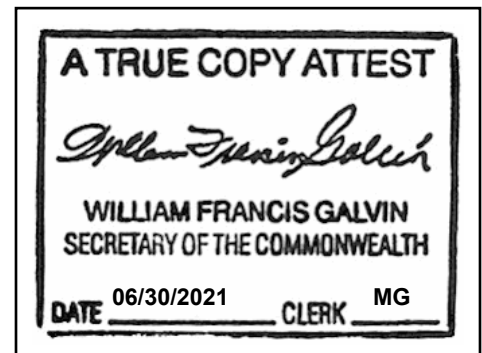
EFFECTIVE DATE: 06/30/2021

CODE OF MASSACHUSETTS REGULATIONS

Remove these pages: Insert these pages:

This is an Emergency
Regulation.

There are no Replacement
Pages.



EMERGENCY ADOPTION: Nature of the Emergency

The amendment to 101 CMR 446.00 is promulgated as an emergency regulation because observance of the requirements of notice and a public hearing would be contrary to the public interest. The President of the United States declared an emergency due to the coronavirus disease 2019 (COVID-19) pandemic, and to enable the immediate preservation of the public health. Additionally, the Executive Office of Health and Human Services (EOHHS) has the authority to establish rates of payment for health care services and social service programs pursuant to M.G.L. Chapter 118E, section 13D.

EOHHS finds that immediate adoption of the amendment to the regulation is necessary to preserve the public health, safety, or general welfare. Specifically, EOHHS is promulgating these amendments to the regulation to update and add rates for COVID-19 vaccine administration and treatment; add rates for in-home COVID-19 vaccinations and pooled COVID-19 testing; and establish supplemental payments for community health centers (CHCs). These changes are necessary to ensure access to these services and providers.

101 CMR 446.00: COVID-19 PAYMENT RATES FOR CERTAIN COMMUNITY HEALTH CARE PROVIDERS

Section

- 446.01: General Provisions
- 446.02: Definitions
- 446.03: General Rate Provisions and Payment
- 446.04: Special Contracts
- 446.05: Reporting Requirements
- 446.06: Severability

446.01: General Provisions

(1) Scope and Purpose. 101 CMR 446.00 governs the rates of payment to certain community health care providers to be used by all governmental units for services provided to publicly aided individuals. The rates set forth in 101 CMR 446.03(1), (4) and (5) also apply to such services paid for by governmental units for individuals covered by M.G.L. c. 152 (the Workers' Compensation Act). These rates are for services related to Coronavirus Disease 2019 (COVID-19).

(2) Applicable Dates of Service. Rates contained in 101 CMR 446.00 apply for dates of service on or after February 4, 2021, except as otherwise noted.

(3) Disclaimer of Authorization of Services. 101 CMR 446.00 is not authorization for or approval of the services for which rates are determined pursuant to 101 CMR 446.00. Governmental units that purchase services are responsible for the definition, authorization, and approval of care and services provided to publicly aided individuals.

(4) Coverage. The rates of payment in 101 CMR 446.00 constitute payment in full for all services provided by an eligible provider, including administration and professional supervision services. The payment rates will apply to COVID-19 services provided by eligible providers to publicly aided individuals under the conditions described by the purchasing governmental unit.

(5) Coding Updates and Corrections. EOHHS may publish service code updates and corrections in the form of an administrative bulletin. Updates may reference coding systems including, but not limited to, the Healthcare Common Procedure Coding System (HCPCS). The publication of such updates and corrections will list

- (a) codes for which the code numbers change, with the corresponding cross references between existing and new codes and the codes being replaced. Rates for such new codes are set at the rate of the code that is being replaced;
- (b) codes for which the code number remains the same, but the description has changed;
- (c) deleted codes for which there are no corresponding new codes; and
- (d) codes for entirely new services that require pricing, or codes that had been previously added at individual consideration (I.C.). EOHHS may list and price these codes according to the rate methodology used in setting rates when Medicare fees are available. When Medicare fees are not available, EOHHS may apply I.C. payment for these codes until appropriate rates can be developed.

(6) Administrative Bulletins. EOHHS may issue administrative bulletins to clarify its policy on and understanding of substantive provisions of 101 CMR 446.00, or to issue coding updates and corrections under 101 CMR 446.01(5).

446.02: Definitions

As used in 101 CMR 446.00, terms have the meanings in 101 CMR 446.02, except as otherwise provided.

446.02: continued

Clinical Care Team. The staff necessary to provide I&R Services to guests at an I&R site. The clinical care team may include physicians, nurse practitioners, physician assistants, registered nurses, licensed practical nurses, certified nursing assistants, home health aides, masters of social work, licensed independent clinical social workers, and administrative support staff. EOHHS may approve other staff types to be part of the clinical care team, including staff with different clinical qualifications than those listed herein, as appropriate. The make-up of the clinical care team for each I&R community health center will be established in the special conditions amendment to each I&R community health center's provider contract.

Commonwealth COVID-19 Vaccination Plan. The plan describing the administration of COVID-19 vaccinations within the Commonwealth, including eligibility criteria and phasing, available at www.mass.gov/info-details/massachusetts-covid-19-vaccination-phases.

COVID-19 Services. Services relating to the March 10, 2020 Declaration of State of Emergency within the Commonwealth due to the 2019 novel coronavirus (COVID-19), for which payment rates are set under 101 CMR 446.00.

Eligible Additional Individuals. As determined by the governmental unit or its designee, any

- (a) family member of an eligible resident currently residing in the eligible resident's household; or
- (b) home health worker who provides regular care to an eligible resident in the eligible resident's household.

Eligible Provider. A person, partnership, corporation, governmental unit, or other entity that provides authorized COVID-19 services and that also meets such conditions of participation as have been or may be adopted from time to time by a governmental unit purchasing COVID-19 services.

Eligible Resident. A Massachusetts resident determined to be eligible for in-home vaccination services by the governmental unit or its designee.

EOHHS. The Executive Office of Health and Human Services established under M.G.L. c. 6A.

Governmental Unit. The Commonwealth of Massachusetts or any of its departments, agencies, boards, or commissions, or political subdivisions.

Household. A home or residence within the Commonwealth in which at least one eligible resident resides, including congregate care facilities and other congregate housing, but excluding any facility or unit licensed by DPH as a long-term-care facility or unit pursuant to 105 CMR 150.000: *Standards for Long-term Care Facilities*.

In-home Vaccination Provider. An eligible provider who provides in-home vaccination services pursuant to a contract between the governmental unit and the eligible provider.

In-home Vaccination Services. COVID-19 vaccine administration services performed in a household by an in-home vaccination provider pursuant to a contract between the governmental unit and the in-home vaccination provider.

I&R Community Health Center. A community health center that has agreed to provide services at an I&R site through an executed special conditions amendment to its provider contract.

I&R Services. The services that the clinical care team at an I&R community health center must provide, as provided by the special conditions amendment to the provider contract.

I&R Site. A location, such as a hotel or motel, that separately contracts with EOHHS to provide safe, isolated lodging for individuals with a COVID-19 diagnosis.

446.02: continued

Other Vaccinable Individuals. Residents of the Commonwealth who are neither eligible residents nor eligible additional individuals, but who are otherwise eligible to receive a COVID-19 vaccination in accordance with the Commonwealth's COVID-19 vaccination plan.

Publicly Aided Individual. A person for whose medical and other services a governmental unit is in whole or in part liable under a statutory program.

Waste Prevention Vaccinations. COVID-19 vaccinations administered by an in-home vaccination provider to other vaccinable individuals in any setting solely to avoid wasting COVID-19 vaccine doses that would otherwise spoil.

446.03: General Rate Provisions and Payment

(1) Community Health Centers.

(a) General Rate Determination. Rates of payment for services for which 101 CMR 446.03(1) applies are the lowest of

1. the eligible provider's usual fee to patients other than publicly aided individuals;
2. the eligible provider's actual charge submitted; or
3. the schedule of allowable fees set forth in 101 CMR 446.03(1)(c), taking into account appropriate modifiers and any other applicable rate provisions in accordance with 101 CMR 446.03(1).

(b) Defined Terms. Terms used in 101 CMR 446.03(1), that have not been defined elsewhere in 101 CMR 446.00, have the meanings ascribed to those terms in 101 CMR 304.02: *Definitions*.

(c) Allowable Fee for I&R Services through Alternative Payment Methodology.

1. Governmental units may pay I&R community health centers for I&R services they provide through a weekly, facility-specific, all-inclusive rate established through the alternative payment methodology described in 101 CMR 446.03(1)(c)a. through c. This rate must be set forth and agreed to by each I&R community health center and the governmental unit through a contract or special conditions amendment to the provider contract, sufficient to cover the following allowable costs associated with the provision of I&R services, as agreed to by the governmental unit and the I&R community health center.

- a. The direct labor costs for the clinical care team, staffed appropriately to meet the clinical and administrative needs of the I&R site.
- b. The costs to acquire and maintain sufficient amounts of medical supplies necessary to provide I&R services at the I&R site.
- c. Appropriate set-up and other one-time costs associated with the provision of I&R services at the I&R site, which may include information technology equipment and services and office supplies.
- d. For the costs described in 101 CMR 446.03(1)(c)1. through 3. to be considered allowable, the cost must, at a minimum, be reasonable, directly related to the provision of I&R services, and identified in the contract or special conditions amendment to the I&R community health center's provider contract.

2. Billing and Disbursement of Payment. I&R community health centers must bill the governmental unit for the I&R services provided pursuant to 101 CMR 446.03(1)(c) and a contract or special conditions amendment to the provider contract through weekly invoice. The government unit will pay the I&R community health center for such services weekly, upon receipt of such invoice, consistent with the terms of the contract or special conditions amendment to the provider contract.

(d) Supplemental Payments to Community Health Centers.

1. Subject to federal approval, community health centers that are federally qualified health centers in Massachusetts will receive one-time, health center-specific supplemental payments to account for services rendered during calendar year 2021. The one-time, health center-specific supplemental payment will be paid to each community health center by the end of the second calendar quarter of 2021. A community health center's health center-specific supplemental payment was calculated based on the following components:

446.03: continued

- a. an amount equal to a portion of the community health center's average monthly claims, based on annualized data from January and February 2020, paid by MassHealth and MassHealth managed care entities, as determined by EOHHS;
 - b. as applicable, the amount that would have been paid to the community health center, if not for the scheduled decrease to the community health center's 340B supplemental payment under 101 CMR 304.04(3): *340B Transition Supplemental Payments*, which took effect on January 1, 2021; and
 - c. as applicable, an amount determined by EOHHS for the heightened costs faced by community health centers with greater than 100,000 annual individual medical visits, based on annualized data from January and February 2020.
2. The supplemental payments, as described in 101 CMR 446.03(1)(d)1., will equal the following amounts for each community health center:

Community Health Center	Supplemental Payment
Boston Health Care for the Homeless	\$4,839,557
Brockton Neighborhood Health Center, Inc.	\$2,810,993
Caring Health Center, Inc.	\$1,318,873
Charles River Community Health	\$666,458
Community Health Center of Cape Cod	\$774,741
Community Health Center of Franklin County	\$353,940
Community Health Connections Family Health Center	\$1,418,345
Community Health Programs CHC	\$491,729
Dimock Community Health Center	\$876,407
Duffy Health Center	\$361,499
Edward M. Kennedy Community Health Center	\$1,713,369
Family Health Center of Worcester	\$2,545,653
Fenway Community Health Center	\$1,700,062
Greater Lawrence Family Health Center, Inc.	\$5,340,713
Greater New Bedford Community Health Center	\$1,329,984
Harbor Health Services, Inc.	\$1,780,265
Harvard Street Neighborhood Health Center	\$379,641
Healthfirst Family Care Center, Inc.	\$841,430
Hilltown Community Health Centers, Inc.	\$295,175
Holyoke Health Center	\$2,910,268
Island Health Care	\$30,351
Lowell Community Health Center	\$2,738,370
Lynn Community Health Center	\$3,909,622
Manet Community Health Center	\$832,276
Mattapan Community H C	\$402,987
North End Waterfront Health	\$336,460
North Shore Community Health, Inc.	\$815,613
Outer Cape Health Services, Inc.	\$586,726
South Cove Community Health Center	\$1,978,226
Springfield Health Services for the Homeless	\$138,746
Stanley Street Treatment and Resources (SSTAR)	\$2,832,520
Uphams' Corner Health Center	\$715,148
Whittier Street Health Center	\$908,376
TOTAL	\$48,974,525

- (2) Medicine.
- (a) General Rate Determination. Rates of payment for services for which 101 CMR 446.03(2) applies are the lowest of
- 1. the eligible provider's usual fee to patients other than publicly aided individuals;
 - 2. the eligible provider's actual charge submitted; or
 - 3. the schedule of allowable fees set forth in 101 CMR 446.03(2)(e), taking into account appropriate modifiers and any other applicable rate provisions in accordance with 101 CMR 446.03(2).

446.03: continued

- (b) Individual Consideration. Medical services services designated "I.C." are individually considered items. The governmental unit or purchaser analyzes the eligible provider's report of services rendered and charges submitted under the appropriate unlisted services or procedures category. The governmental unit or purchaser determines appropriate payment for procedures designated I.C. in accordance with the following standards and criteria:
1. the amount of time required to perform the service;
 2. the degree of skill required to perform the service;
 3. the severity or complexity of the patient's disease, disorder, or disability;
 4. any applicable relative-value studies;
 5. any complications or other circumstances that may be deemed relevant;
 6. the policies, procedures, and practices of other third-party insurers;
 7. the payment rate for prescribed drugs as set forth in 101 CMR 331.00: *Prescribed Drugs*; and
 8. a copy of the current invoice from the supplier.
- (c) Defined Terms. Terms used in 101 CMR 446.03(2) that have not been defined elsewhere in 101 CMR 446.00 have the meanings in 101 CMR 317.02: *General Definitions*.
- (d) Codes and Modifiers.
1. Except as otherwise provided, the codes and modifiers for the services described in 101 CMR 446.03(2) are as defined in 101 CMR 317.04(3): *Modifiers* and 101 CMR 317.04(4): *Fee Schedule*.
 2. The modifier "SL": State supplied vaccine or antibodies. This modifier is to be applied to codes to identify vaccine or antibodies provided at no cost, whether by the Massachusetts Department of Public Health or other federal or state agency. No payment shall be made for codes with this modifier.
- (e) Allowable Fee for Remote Patient Monitoring (RPM) Bundled Services. The following code, modifier, and fee apply for the provision of RPM bundled services.

Code	Allowable Fee	Description of Code
99423 - U9	\$870.72	Online digital evaluation and management service, for an established patient, for up to seven days, cumulative time during the seven days; 21 or more minutes. (Used for COVID-19 remote patient monitoring bundled services provided through any appropriate technology or modality, including up to seven days of daily check-ins for evaluation and monitoring; multidisciplinary clinical team reviews of a member's status and needs; appropriate physician oversight; necessary care coordination; and provision of a thermometer and pulse oximeter for remote monitoring.)

- (f) Allowable Fee for COVID-19 Vaccine and Vaccine Administration Applicable for Dates of Service from February 27, 2021 through March 31, 2021. The following codes and fees apply for the listed COVID-19 vaccines and their administration.

Code	Allowable Fee	Description of Code
91303 SL	\$0.00	Janssen Covid-19 Vaccine (SARSCOV2 VAC AD26 0.5 ml IM)
0031A	\$56.78	Janssen Covid-19 Vaccine Administration (ADM SARSCOV2 VAC AD26 0.5 ml)
91300 SL	\$0.00	Pfizer-Biontech COVID-19 Vaccine (SARSCOV2 VAC 30MCG/0.3ML IM)
0001A	\$33.88	Pfizer-Biontech COVID-19 Vaccine Administration – First Dose (ADM SARSCOV2 30MCG/0.3ML 1st)
0002A	\$56.78	Pfizer-Biontech COVID-19 Vaccine Administration – Second Dose (ADM SARSCOV2 30MCG/0.3ML 2ND)

446.03: continued

(g) Allowable Fee for COVID-19 Vaccine and Vaccine Administration Applicable for Dates of Service on or after April 1, 2021. The following codes and fees apply for the listed COVID-19 vaccines and their administration.

Code	Allowable Fee	Description of Code
91303 SL	\$0.00	Janssen Covid-19 Vaccine (SARSCOV2 VAC AD26 0.5 ml IM)
0031A	\$45.87	Janssen Covid-19 Vaccine Administration (ADM SARSCOV2 VAC AD26 0.5 ml)
91300 SL	\$0.00	Pfizer-Biontech COVID-19 Vaccine (SARSCOV2 VAC 30MCG/0.3ML IM)
0001A	\$45.87	Pfizer-Biontech COVID-19 Vaccine Administration – First Dose (ADM SARSCOV2 30MCG/0.3ML 1st)
0002A	\$45.87	Pfizer-Biontech COVID-19 Vaccine Administration – Second Dose (ADM SARSCOV2 30MCG/0.3ML 2ND)
91301 SL	\$0.00	Moderna COVID-19 Vaccine (SARSCOV2 VAC 100MCG/0.5ML IM)
0011A	\$45.87	Moderna COVID-19 Vaccine Administration - First Dose (ADM SARSCOV2 100MCG/0.5ML1ST)
0012A	\$45.87	Moderna COVID-19 Vaccine Administration - Second Dose (ADM SARSCOV2 100MCG/0.5ML2ND)

(h) Allowable Fee for COVID-19 Treatment Applicable for Dates of Service from February 9, 2021 through April 15, 2021. The following codes and fees apply for the listed COVID-19 treatment services.

Code	Allowable Fee	Description of Code
Q0239 SL	\$0.00	Injection, bamlanivimab, 700 mg
M0239	\$309.60	Intravenous infusion, bamlanivimab-xxxx, includes infusion and post administration monitoring
Q0243 SL	\$0.00	Injection, casirivimab and imdevimab, 2400 mg
M0243	\$309.60	Intravenous infusion, casirivimab and imdevimab includes infusion and post administration monitoring
Q0245 SL	\$0.00	Injection, bamlanivimab and etesevimab, 2100 mg
M0245	\$309.60	Intravenous infusion, bamlanivimab and etesevimab, includes infusion and post administration monitoring

(i) Allowable Fee for COVID-19 Treatment Applicable for Dates of Service from April 16, 2021 through May 5, 2021. The following codes and fees apply for the listed COVID-19 treatment services.

Code	Allowable Fee	Description of Code
Q0243 SL	\$0.00	Injection, casirivimab and imdevimab, 2400 mg
M0243	\$309.60	Intravenous infusion, casirivimab and imdevimab includes infusion and post administration monitoring

446.03: continued

(j) Allowable Fee for COVID-19 Treatment Applicable for Dates of Service on or after May 6, 2021. The following codes and fees apply for the listed COVID-19 treatment services.

Code	Allowable Fee	Description of Code
Q0243 SL	\$0.00	Injection, casirivimab and imdevimab, 2400 mg
M0243	\$450.00	Intravenous infusion, casirivimab and imdevimab includes infusion and post administration monitoring
M0244	\$750.00	Intravenous infusion, casirivimab and imdevimab includes infusion and post administration monitoring in the home or residence
Q0245 SL	\$0.00	Injection, bamlanivimab and etesevimab, 2100 mg
M0245	\$450.00	Intravenous infusion, bamlanivimab and etesevimab, includes infusion and post administration monitoring
M0246	\$750.00	Intravenous infusion, bamlanivimab and etesevimab, includes infusion and post administration monitoring in the home or residence

- (3) Durable Medical Equipment, Oxygen and Respiratory Therapy Equipment, and Supplies.
- (a) General Rate Determination. Rates of payment for services for which 101 CMR 446.03(3) applies are the lowest of
1. the eligible provider's usual fee to patients other than publicly aided individuals;
 2. the eligible provider's actual charge submitted; or
 3. the schedule of allowable fees set forth in 101 CMR 446.03(3)(d) and (e), taking into account appropriate modifiers and any other applicable rate provisions in accordance with 101 CMR 446.03(3).
- (b) Defined Terms. Terms used in 101 CMR 446.03(3) have the meaning defined in 101 CMR 322.02: *General Definitions*.
- (c) Codes and Modifiers. Except as otherwise provided, the codes and modifiers for the DME services described in 101 CMR 446.03(3) are as defined in 101 CMR 322.03(13): *Modifiers* and 101 CMR 322.06: *Allowable Fees and Rate Schedule*.
- (d) Allowable Fee for Distribution of Personal Protective Equipment (PPE).
1. Authorization for the provision of, and billing and payment for, distribution of PPE to certain MassHealth members is governed by an executed special conditions amendment to a MassHealth DME provider's provider contract
 2. The fee and modifier in 101 CMR 446.03(3)(d)2. apply for distribution of PPE.

Code	Allowable Fee	Description of Code
E1399 U9	\$40.00	Durable medical equipment, miscellaneous. (Used for PPE distribution services, specifically the packaging, preparing, and delivering or shipping of a two-week supply PPE kit to an authorized individual during the COVID-19 public health emergency)

(e) Allowable Fee for Non-sterile Gloves. The following fee in 101 CMR 446.03(3)(e) is in effect for non-sterile gloves:

Code	Allowable Fee	Description of Code
A4927	\$11.00	Gloves, non-sterile, per 100

(f) Reporting Requirements. Reporting requirements for 101 CMR 446.03(3) are those in 101 CMR 322.04: *Reporting Requirements*.

446.03: continued

(4) Ambulance and Wheelchair Van Services.

- (a) General Rate Determination. Rates of payment for services for which 101 CMR 446.03(4) applies are the lowest of
1. the eligible provider's usual fee to patients other than publicly aided individuals;
 2. the eligible provider's actual charge submitted; or
 3. the schedule of allowable fees set forth in 101 CMR 446.03(4)(c), taking into account appropriate modifiers and any other applicable rate provisions in accordance with 101 CMR 446.03(4).
- (b) Defined Terms. Terms used in 101 CMR 446.03(4), that have not been defined elsewhere in 101 CMR 446.00, have the meanings in 101 CMR 327.02: *General Definitions*.
- (c) Allowable Fees for Ambulance and Wheelchair Van Services. The following code and allowable fee applies, notwithstanding the definition of "trip" in 101 CMR 327.02: *General Definitions*.

Code	Allowable Fee	Description of Code
A0998	\$157.88	Ambulance response and treatment, no transport (Used for medically necessary visits to patients to obtain and transport specimens for COVID-19 diagnostic testing)
A0120	\$100.00	Nonemergency transportation: mini-bus, mountain area transports, or other transportation systems. (Each way. Used only for nonemergency wheelchair van transport for a person under investigation or known to have COVID-19.)

- (d) Billing Certification. Each eligible provider who submits an invoice to a governmental unit for authorized ambulance services must certify the accuracy of the level of services provided, as listed on its invoice.
- (e) Reporting Requirements. Reporting requirements under 101 CMR 446.03(4) are those in 101 CMR 327.05: *Reporting Requirements*.

(5) Prescribed Drugs.

- (a) Defined Terms. Terms used in 101 CMR 446.03(5), that have not been defined elsewhere in 101 CMR 446.00, have the meanings in 101 CMR 331.02: *General Definitions*.
- (b) Delivery Fee. Eligible providers will receive a payment adjustment to the professional dispensing fee when medications are delivered to a personal residence (including homeless shelters). The payment adjustment will be the lower of the provider's usual and customary charge for prescription delivery or \$8.00, and will be made only when the MassHealth agency is the primary payer. The fee is payable only for deliveries to members living in personal residences and is not payable for claims for members living in any type of institution or residential facility (except for homeless shelters).
- (c) Reporting Requirements. Reporting requirements for 101 CMR 446.03(5) are those in 101 CMR 331.03: *Reporting Requirements*.

(6) Testing Services.

- (a) General Rate Determination. Rates of payment for services under 101 CMR 446.03(6) applies are the lowest of
1. the eligible provider's usual and customary charge to patients, other than publicly aided individuals;
 2. the eligible provider's actual charge submitted; or
 3. the schedule of allowable fees set forth in 101 CMR 446.03(6)(d) through (f), taking into account appropriate modifiers and any other applicable rate provisions in accordance with 101 CMR 446.03(6).
- (b) Defined Terms. Terms used in 101 CMR 446.03(6), that have not been defined elsewhere in 101 CMR 446.00, have the meanings in 101 CMR 320.02: *Definitions*.

446.03: continued

- (c) Individual Consideration (I.C.). Unlisted procedures and laboratory tests designated I.C. are individually considered items. The eligible provider's bill for such a test must be accompanied by a brief report of the procedure or test performed and the eligible provider's usual and customary charge for that procedure or test. Determination of appropriate payments for procedures and tests designated I.C. are in accordance with the following standards and criteria:
- 1. time required to perform the procedure;
 - 2. degree of skill required in the procedure performed;
 - 3. severity or complexity of the patient's disease, disorder, or disability;
 - 4. policies, procedures, and practices of other third-party purchasers of care;
 - 5. prevailing medical-laboratory ethics and accepted custom of the medical-laboratory community; and
 - 6. such other standards and criteria as may be adopted by EOHHS. In no event may an eligible provider bill or be paid in excess of the usual and customary charge for the service.
- (d) Allowable Fees for Certain Individual COVID-19 Testing Services – Not Including Laboratory Analysis. The allowable fees in 101 CMR 446.03(6)(d) apply for the listed COVID-19 testing services performed by an eligible provider at a mobile testing site where the eligible provider is not required to perform, pay for, or contract for the laboratory analysis.

Allowable Fee	Description of Service
\$20.81	Ordering, resulting, and follow-up counseling services, per COVID-19 test completed by an eligible mobile testing vendor where the provider is not required to perform, pay for, or contract for the laboratory analysis
\$60.00	COVID-19 specimen collection completed by an mobile testing vendor, including test administration or observation, and specimen transport services, per hour, per staff member

- (e) Allowable Fees for Certain Individual COVID-19 Testing Services – Including Laboratory Analysis. The allowable fees in 101 CMR 446.03(6)(e) apply for the listed COVID-19 testing services where the eligible provider is required to perform, pay for, or contract for the laboratory analysis:

Allowable Fee	Description of Service
\$144.27	Site-based or mobile COVID-19 testing service administered or observed by an eligible provider, including specimen collection, laboratory processing, ordering, resulting, and follow-up counseling services, per test
Individual Consideration	Self-administered COVID-19 testing service completed by an eligible provider, including transport of testing materials, laboratory processing, ordering, resulting, and follow-up counseling services, per test

- (f) Allowable Fees for Certain Pooled COVID-19 Testing Services – Including Laboratory Analysis.
- 1. Effective for dates of service on or after February 4, 2021, governmental units may pay eligible providers for pooled COVID-19 testing services, including laboratory analysis, through a per-pool rate and a rate for individual testing, if any, provided by the pooled testing provider as part of a pooled testing program. The rates must be set forth and agreed to by each eligible provider and the governmental unit through a contract or special conditions amendment to the provider contract. Specimen collection costs, specimen transport costs, and administrative fees may be billed separately from testing services.

446.03: continued

2. Eligible providers must bill the governmental unit for the pooled COVID-19 testing services provided pursuant to 101 CMR 446.03(6)(f) and a contract or special conditions amendment to the provider contract, consistent with the terms of the contract or special conditions amendment to the provider contract. The government unit will pay the eligible provider for such services, upon receipt of such invoice, consistent with the terms of the contract or special conditions amendment to the provider contract.

(g) Billing Certification. Each eligible provider who submits an invoice to a governmental unit for authorized services under 101 CMR 446.03(6) must certify to the accuracy of the level of services provided, as listed on its invoice.

(7) Allowable Fee for In-Home Vaccination Services and Waste Prevention Vaccinations Provided Pursuant to a Contract between an In-home Vaccination Provider and a Governmental Unit.

(a) General Rate Determination. Rates of payment for services for which 101 CMR 446.03(7) applies are the lowest of

1. the in-home vaccination provider's usual fee to patients other than publicly aided individuals;
2. the in-home vaccination provider's actual charge submitted; or
3. the schedule of allowable fees set forth in 101 CMR 446.03(7)(c), taking into account appropriate modifiers and any other applicable rate provisions in accordance with 101 CMR 446.03(7).

(b) Defined Terms. Terms used in 101 CMR 446.03(7) that have not been defined elsewhere in 101 CMR 446.00 have the meanings ascribed to those terms in the contract between the in-home vaccination provider and the governmental unit.

(c) Allowable Fee for In-home Vaccination Services and Waste Prevention Vaccinations Provided by In-home Vaccination Providers. The following fees apply for the listed in-home vaccination services and waste prevention vaccinations rendered by in-home vaccination providers.

Service	Allowable Fee
In-Home vaccination services rendered to eligible residents, in-home vaccination services rendered to eligible additional individuals, or waste prevention vaccinations administered to other vaccinable individuals	\$150.00 per COVID-19 vaccine dose administered

446.04: Special Contracts

Notwithstanding 101 CMR 446.03, a governmental unit may enter into a special contract with an eligible provider under which the governmental unit will pay for services authorized, but not listed herein, or authorized services performed in exceptional circumstances.

446.05: Reporting Requirements

(1) Required Reports. Except as otherwise provided, reporting requirements are governed by 957 CMR 6.00: *Cost Reporting Requirements*.

(2) Penalty for Noncompliance. Except as otherwise provided, the purchasing governmental unit may impose a penalty in the amount of up to 15% of its payments to any provider that fails to submit required information. The purchasing governmental unit will notify the provider in advance of its intention to impose a penalty under 101 CMR 446.05(2).

446.06: Severability

The provisions of 101 CMR 446.00 are severable and if any provisions of 101 CMR 446.00 or the application of such provisions to any person or circumstances is held to be invalid or unconstitutional, such invalidity will not be construed to affect the validity or constitutionality of any remaining provisions of 101 CMR 446.00 or application of such provisions to eligible providers or circumstances other than those held invalid.

REGULATORY AUTHORITY

101 CMR 446.00: M.G.L. c. 118E.

NON-TEXT PAGE



THE COMMONWEALTH OF MASSACHUSETTS

William Francis Galvin

Secretary of the Commonwealth

Regulation Filing *To be completed by filing agency*CHAPTER NUMBER: **209 CMR 18.00**CHAPTER TITLE: **Conduct of the Business of Debt Collectors and Loan Servicers**AGENCY: **Division of Banks and Loan Agencies**SUMMARY OF REGULATION: *State the general requirements and purposes of this regulation.*

St. 2020, c. 358 includes several provisions relative to student loan servicing, including the creation of G.L. c. 93L. G.L. c. 93L requires the licensure of certain student loan servicers not otherwise exempt from licensure, establishes standards for licensure by the Division, sets forth prohibited conduct, and sets forth other provisions. Ch. 358 also includes an "automatic federal student loan servicer" license. To implement Ch. 358, the amendments would expressly incorporate the new student loan servicer licenses into the current regulation setting forth the requirements for licensure, as well as providing standards for conduct and prohibited practices, among other provisions.

REGULATORY AUTHORITY: **G.L. c. 93L, as added by Chapter 358 of the Acts of 2020, SECTION 65 and SECTION 110**AGENCY CONTACT: **Barbara Keefe, General Counsel** PHONE: **857-207-0268**ADDRESS: **1000 Washington Street, Boston, MA 02118-6400****Compliance with M.G.L. c. 30A**EMERGENCY ADOPTION - *if this regulation is adopted as an emergency, state the nature of the emergency.*

The amendments implement new G.L. c. 93L, as added by St.2020, c. 358, ss. 65 and 110. The amendments would expressly incorporate the new student loan servicer licenses into the current regulation setting forth the requirements for licensure, as well as providing standards for conduct and prohibited practices, among other provisions. G.L. c. 93L becomes effective on 7/1/21, pursuant to

PRIOR NOTIFICATION AND/OR APPROVAL - *If prior notification to and/or approval of the Governor, Legislature or others was required, list each notification, and/or approval and date, including notice to the Local Government Advisory Commission.*

N/A

PUBLIC REVIEW - *M.G.L. c. 30A sections 2 and/or 3 requires notice of the hearing or comment period, including a small business impact statement, be filed with the Secretary of the Commonwealth, published in appropriate newspapers, and sent to persons to whom specific notice must be given at least 21 days prior to such hearing or comment period.*

Date of public hearing or comment period: _____

FISCAL EFFECT - *Estimate the fiscal effect of the public and private sectors.*

For the first and second year: _____

For the first five years: _____

No fiscal effect: No Fees for licensees are established separately under 801 CMR 4.02: 209

SMALL BUSINESS IMPACT - *M.G.L. c. 30A section 5 requires each agency to file an amended small business impact statement with the Secretary of the Commonwealth prior to the adoption of a proposed regulation. If the purpose of this regulation is to set rates for the state, this section does not apply.*

Date amended small business impact statement was filed: N/A

CODE OF MASSACHUSETTS REGULATIONS INDEX - *List key subjects that are relevant to this regulation:*

Student loans

Student loan servicers

Student loan servicer licensure

Automatic federal student loan servicer licensure

PROMULGATION - *State the action taken by this regulation and its effect on existing provisions of the Code of Massachusetts Regulations (CMR) or repeal, replace or amend. List by CMR number:*

Amends 209 CMR 18.00

ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.* ATTEST:

SIGNATURE: SIGNATURE ON FILE DATE: Jun 28 2021

Publication - *To be completed by the Regulations Division*

MASSACHUSETTS REGISTER NUMBER: 1448 DATE: 07/23/2021

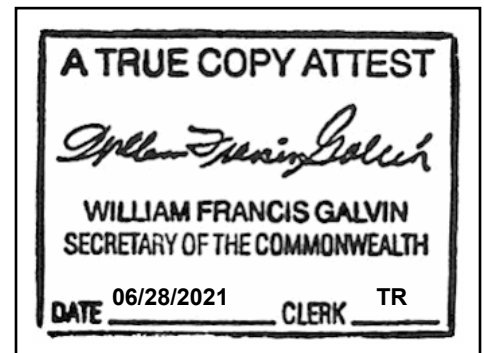
EFFECTIVE DATE: 07/01/2021

CODE OF MASSACHUSETTS REGULATIONS

Remove these pages: Insert these pages:

This is an Emergency Regulation.

There are no Replacement Pages.



209 CMR 18.00: CONDUCT OF THE BUSINESS OF DEBT COLLECTORS, STUDENT LOAN SERVICERS, AND THIRD PARTY LOAN SERVICERS

Section

- 18.01: Purpose and Applicability
- 18.02: Definitions
- 18.03: Application Requirements – Debt Collector Applicants and Student Loan Servicer Applicants
- 18.04: Application Requirements – Automatic Federal Student Loan Servicer Applicant
- 18.05: Licensing Standards – Debt Collector Applicant
- 18.06: Licensing Standards – Student Loan Servicer Applicant
- 18.07: Registration Procedures
- 18.08: Registration Standards
- 18.09: Office Locations
- 18.10: Notice of Significant Events and Proposed Change in Ownership or Personnel
- 18.11: Annual Reports
- 18.12: Books and Records
- 18.13: Commingling – Debt Collection
- 18.14: Preserving Identity of Funds of Clients – Debt Collection
- 18.15: Acquisition of Location Information – Debt Collection
- 18.16: Communication in Connection with Debt Collection
- 18.17: Harassment or Abuse – Debt Collection
- 18.18: False or Misleading Representations – Debt Collection
- 18.19: Unfair Practices – Debt Collection
- 18.20: Validation of Debts – Debt Collection
- 18.21: Multiple Debts – Debt Collection
- 18.22: Furnishing Certain Deceptive Forms – Debt Collection
- 18.23: Unfair Servicing Practices – General
- 18.24: Mortgage Loan Servicing Practices
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18.01: Purpose and Applicability

(1) Purpose. The purpose of 209 CMR 18.00 is to establish standards, by defining unfair or deceptive acts or practices, for the servicing of loans and collection of debts from persons within the Commonwealth of Massachusetts by debt collectors, third party loan servicers, and student loan servicers; to establish procedures and requirements for the licensing and supervision of debt collectors and student loan servicers; and for the registration and supervision of third party loan servicers.

(2) Applicability.

(a) Persons exempt from the licensing and registration provisions pursuant to M.G.L. c. 93, § 24A(c) who conduct the business of a debt collector or third party loan servicer as defined in 209 CMR 18.02, shall be subject to the provisions governing fair debt collection and third party loan servicing practices at 209 CMR 18.15 through 18.24, and shall not be subject to the provisions of 209 CMR 18.03 through 18.14.

(b) Any person licensed as a debt collector shall not be required to register as a third party loan servicer. However, any debt collector who engages in third-party loan servicing activities must comply with all pertinent state and federal laws and regulations governing third party loan servicers when acting in that capacity including, but not limited to, the provisions of 209 CMR 18.23 and 18.24.

(c) A student loan servicer who engages in third-party loan servicing activities or debt collection activities within the scope of student loan servicing activities described in M.G.L. c. 93L shall comply with all applicable state and federal laws and regulations governing third party loan servicers and debt collectors when acting in such capacity.

(d) Nothing contained in 209 CMR 18.00 shall limit the ability of the Commissioner to consider other information in determining whether or not to approve an application, or to require information in addition to that required by the application form provided to the applicant.

18.02: Definitions

Automatic Federal Student Loan Servicer. A person that acts or intends to act as a student loan servicer solely pursuant to a contract with the United States Secretary of Education under 20 U.S.C. 1087f and shall also include subservicers who solely engage in student loan servicing pursuant to a subservicing agreement with an automatic federal student loan servicer.

Automatic Federal Student Loan Servicer Applicant. Any automatic federal student loan servicer who is required to be licensed under the provisions of M.G.L. c. 93L, § 2(f). The term shall include partners or members, if the applicant is a partnership, association, or limited liability company, and officers, directors and principal employees, if the applicant is a corporation.

Commissioner. The Commissioner of Banks.

Communication or Communicating. Conveying information regarding a debt directly or indirectly to any person through any medium.

Consumer. Any natural person obligated or allegedly obligated to pay any debt.

Consumer Reporting Agency. Any person which, for monetary fees, dues, or on a cooperative nonprofit basis, regularly engages in whole or in part in the practice of assembling or evaluating consumer credit information or other information on consumers for the purpose of furnishing consumer reports to third parties under M.G.L. c. 93, §§ 50 through 68.

Creditor. Any person who offers or extends credit creating a debt or to whom a debt is owed, but such term does not include any person to the extent that he receives an assignment or transfer of a debt in default solely for the purpose of facilitating collection of such debt for another.

Debt. Any obligation or alleged obligation of a consumer to pay money arising out of a transaction in which the money, property, insurance, or services which are the subject of the transaction are primarily for personal, family, or household purposes, whether or not the obligation has been reduced to judgment.

Debt Collector. Any person who uses an instrumentality of interstate commerce or the mails in any business the principal purpose of which is the collection of a debt, or who regularly collects or attempts to collect, directly or indirectly, a debt owed or due or asserted to be owed or due another. Debt collector shall also include any person who buys or acquires debt that is in default at the time of purchase or acquisition and who seeks to collect such debt directly. Notwithstanding the exclusion provided by 209 CMR 18.02: Debt Collector(f), debt collector shall include a creditor who, in the process of collecting his or her own debt, uses any name other than his or her own which would indicate that a third person is collecting or attempting to collect the debt. Debt collector shall also include a person who uses an instrumentality of interstate commerce or the mails in a business the principal purpose of which is the enforcement of security interests. Debt collector shall not include:

- (a) an officer or employee of a creditor while, in the name of the creditor, collecting debts for the creditor;
- (b) a person while acting as a debt collector for another person, both of whom are related by common ownership or affiliated by corporate control, if the person acting as a debt collector does so only for a person to whom it is so related or affiliated and if the principal business of the person is not the collection of a debt;
- (c) an officer or employee of the United States or a state of the United States to the extent that collecting or attempting to collect a debt is in the performance of his or her official duty;
- (d) a person while serving or attempting to serve legal process on another person in connection with the judicial enforcement of a debt;
- (e) a nonprofit organization which, at the request of a consumer, performs *bona fide* consumer credit counseling and assists the consumer in the liquidation of debts by receiving payments from the consumer and distributing the amounts to creditors;
- (f) a person collecting or attempting to collect a debt owed or due or asserted to be owed or due another to the extent the activity:

18.02: continued

1. is incidental to a *bona fide* fiduciary obligation or a *bona fide* escrow arrangement;
 2. concerns a debt which was originated by the person;
 3. concerns a debt which was not in default at the time it was obtained by the person;
- or
4. concerns a debt obtained by the person as a secured party in a commercial credit transaction involving the creditor;
- (g) attorneys-at-law licensed to practice law in the Commonwealth who are collecting a debt on behalf of a client; and
- (h) an agent or independent contractor employed for the purpose of collecting a charge or bill owed by a tenant to a landlord or owed by a customer to a corporation subject to the supervision of the Department of Telecommunications and Energy or the Division of Insurance insofar as the person collects charges or bills only for the landlord or supervised corporations.
- (i) a student loan servicer licensed under M.G.L. c. 93L who is engaged solely in the activities of a student loan servicer; provided, however, that if a student loan servicer acts, represents, operates or holds itself out as a debt collector outside of the scope of said chapter 93L, the student loan servicer shall obtain a debt collector license.

Debt Collector Applicant. Any debt collector who is required to be licensed under the provisions of M.G.L. c. 93, § 24A and has applied for such license. The term shall include partners or members, if the applicant is a partnership, association or limited liability company, and officers, directors and principal employees, if the applicant is a corporation.

Licensee. Any person who is licensed by the Commissioner as a debt collector under M.G.L. c. 93, §§ 24 through 28, and 209 CMR 18.00; or any person who is licensed as a student loan servicer or automatic federal student loan servicer under M.G.L. c. 93L.

Location Information. A consumer's place of abode and his or her telephone number at such place, or his or her place of employment.

Net Worth. The applicant's or licensee's total assets less total liabilities, omitting the following assets:

- (a) that portion of an applicant's assets pledged to secure obligations of any person or entity other than that of the applicant;
- (b) any asset due from officers or stockholders of the applicant or persons in which the applicant's officers or stockholders have an interest;
- (c) an amount in excess of the lower of the cost or fair market value of mortgage loans in foreclosure, or real property acquired through foreclosure;
- (d) an investment shown on the balance sheet in joint ventures, subsidiaries, or affiliates, which is greater than the fair market value of the assets;
- (e) goodwill or value placed on insurance renewals or other similar intangible value;
- (f) organization costs;
- (g) the value of servicing contracts not determined in accordance with the Financial Accounting Standards Codification Topic 860 "Transfers and Servicing"; and
- (h) any other intangible asset, as may be determined by the Commissioner.

NMLS. The Nationwide Multi-State Licensing System & Registry, a multistate licensing system owned and operated by the State Regulatory Registry LLC (SRR), a wholly owned subsidiary of the Conference of State Bank Supervisors (CSBS), an association of state financial services regulators.

Person. A natural person or an organization, including a corporation, limited or general partnership, limited liability partnership, limited liability company, joint stock company, trust, business trust, profit and not-for-profit incorporated or unincorporated associations, and any other entity authorized under the laws of any state of the United States or any country.

Principal Employee. Any person with the power to exercise, directly or indirectly, managerial, supervisory, or policy-making authority or such other controlling influence over the management, policies, or operation of the Licensee.

18.02: continued

Register. Filing a notice with the Commissioner on a form prescribed by the Commissioner that notifies the Commissioner of the intent to engage in the activities of a third party loan servicer in this state and the payment of a fee required under M.G.L. c. 93, § 24C, along with the other documents, proofs, and fees required by the Commissioner.

Student Loan. A loan primarily used to finance postsecondary education or other school-related expenses.

Student Loan Borrower. A resident of the Commonwealth who has received or agreed to repay a student loan or a person who shares responsibility with that resident for repaying the student loan, including cosigners.

Student Loan Servicer. A person responsible for servicing a student loan to a student loan borrower.

Student Loan Servicer Applicant. Any student loan servicer who is required to be licensed under the provisions of M.G.L. c. 93L, § 2(c). The term shall include partners or members, if the applicant is a partnership, association or limited liability company, and officers, directors and principal employees, if the applicant is a corporation.

Student Loan Servicing.

- (a) Receiving or soliciting a scheduled periodic payment from a student loan borrower pursuant to the terms of a student loan and making the principal, interest and other payments to the owner of the loan or other third-party with respect to the amounts received from the student loan borrower as may be required pursuant to the terms of the servicing loan document or servicing contract;
- (b) Maintaining account records for a loan and communicating with the student loan borrower regarding the loan on behalf of the owner of the loan during a period in which no payment is required on the loan; or
- (c) Interacting with a student loan borrower, including activities to help prevent default on obligations arising from a loan, to facilitate the activities described in clause (a) or clause (b); provided, however, that the actions of the student loan ombudsman under section 35 of chapter 12 and the actions of the Division of Banks consumer assistance unit under section 3A of chapter 26 shall not constitute servicing.

Third Party Loan Servicing. Receiving a scheduled periodic payment from a consumer pursuant to the terms of a loan, including amounts for escrow accounts, and making the payments to the owner of the loan or other third-party of principal and interest and other payments with respect to the amounts received from the borrower as may be required pursuant to the terms of the servicing loan document or servicing contract. In the case of a home equity conversion mortgage or reverse mortgage, servicing includes making payments to the borrower.

Third Party Loan Servicer. A person who uses an instrumentality of interstate commerce or the mails in any business the principal purpose of which is servicing a loan directly or indirectly, owed or due or asserted to be owed or due another. Third party loan servicer shall not include a student loan servicer licensed under M.G.L. c. 93L who is engaged solely in the activities of a student loan servicer; provided, however, that if a student loan servicer acts, represents, operates or holds itself out as a third party loan servicer outside of the scope of said chapter 93L, the student loan servicer shall register as a third party loan servicer.

18.03: Application Requirements – Debt Collector Applicants and Student Loan Servicer Applicants

(1) Application. Each debt collector applicant or student loan servicer applicant shall submit a written application on a form prescribed by the Commissioner, signed under the pains and penalties of perjury, containing such information as the Commissioner may from time to time require.

(2) License Requirements. A debt collector applicant or student loan servicer applicant shall be required to submit detailed information supporting the following general requirements:

18.03: continued

(a) Financial Responsibility. A debt collector applicant or student loan servicer applicant shall demonstrate financial responsibility and shall demonstrate and maintain a positive net worth. Failure to demonstrate a positive net worth at any time in which the debt collector or student loan servicer license is in effect may constitute evidence that the aforementioned licensee has failed to satisfy the financial responsibility requirements of 209 CMR 18.03(1)(a).

1. The Commissioner, in his or her discretion, may require a debt collector to furnish a bond, in addition to the \$25,000 bond that is required pursuant to M.G.L. c. 93, §§ 24A, 25 and 26, in a sum as determined by the Commissioner. The bond shall run to the state treasurer and be executed by the licensee and by a surety company licensed by the Massachusetts Division of Insurance.

2. A student loan servicer applicant shall furnish a surety bond of \$25,000 in such form and with such sureties as may be approved by the Commissioner, as required pursuant to M.G.L. c. 93L, § 2(d). The Commissioner, in his or her discretion, may require a student loan servicer to furnish a bond, in addition to the requirements pursuant to M.G.L. 93L, § 2(d), in a sum as determined by the Commissioner and in a form prescribed by the Commissioner.

(b) Financial Statements. A debt collector applicant or student loan servicer applicant shall submit financial statements prepared in accordance with U.S. generally accepted accounting principles, in U.S. dollars, meeting the following minimum requirements:

1. Contents. The financial statements required by 209 CMR 18.00 shall include, but are not limited to, a Balance Sheet, Income Statement, Statement of Cash Flows, Statement of Stockholder's Equity, and all relevant notes thereto.

2. Initial Application. A student loan servicer applicant shall submit financial statements audited by an independent certified public accountant. A debt collector applicant shall submit financial statements audited by an independent certified public accountant, or, if audited financial statements, were not prepared, the debt collector applicant shall submit financial statements reviewed by an independent certified public accountant. If a debt collector applicant or student loan servicer applicant has not conducted any business, it shall submit an initial Balance Sheet which has been audited or reviewed by an independent certified public accountant. At the discretion of the Commissioner and under such conditions as he or she may impose, an Applicant's unaudited financial statements may be submitted with audited consolidated financial statements of its parent.

3. Renewal Applications. Each debt collector license and student loan servicer license shall expire annually on a date determined by the Commissioner. A student loan servicer applicant for license renewal shall submit financial statements which have been audited by an independent Certified Public Accountant within 90 days of the close of its fiscal year. A debt collector applicant for license renewal shall submit financial statements which have been either audited or reviewed by an independent Certified Public Accountant within 90 days of the close of its fiscal year. At the discretion of the Commissioner and under such conditions as he may impose, a debt collector applicant or student loan servicer applicant may submit unaudited entity-only financial statements with its parent's audited consolidated financial statements.

4. Audit Scope. The audited financial statements shall be performed in accordance with generally accepted auditing standards and reviewed financial statements shall be performed in accordance with Statements of Standards for Accounting and Review Services issued by the American Institute of Certified Public Accountants.

(c) Character and Fitness. A debt collector applicant or student loan servicer applicant shall submit information demonstrating that it possesses the character, reputation, integrity and fitness to engage in the business of a debt collector or student loan servicer in an honest, fair, sound, and efficient manner.

(d) Other Information. A debt collector applicant or student loan servicer applicant shall submit such other information as the Commissioner may deem necessary to properly evaluate an application.

(e) Incomplete Applications. Debt collector applications which are missing material information shall be held in an incomplete status for a period of 14 calendar days after written notice to the debt collector applicant specifying the nature of the deficiency. Student loan servicer applications which are missing material information shall be held in an incomplete status for a period of 60 calendar days after written notice to the student loan

18.03: continued

servicer applicant specifying the nature of the deficiency. If such deficiency remains outstanding for more than the aforementioned time periods, the license application may be considered abandoned and terminated by the Commissioner, and the applicant shall be required to submit a new application and pay all fees associated therewith.

18.04: Application Requirements – Automatic Federal Student Loan Servicer Applicant

(1) Application. Each automatic federal student loan servicer applicant shall submit an application on a form prescribed by the Commissioner, containing such information as the Commissioner may from time to time require.

(2) Bond. Upon receipt of the automatic federal student loan servicer license, the automatic federal student loan servicer shall submit a surety bond of \$25,000 in such form, and with such sureties, as may be approved by the Commissioner under M.G.L. c. 93L, § 2(f).

(3) Perpetual License. An automatic federal student loan servicer license shall be irrevocable and shall not expire, unless the automatic federal student loan servicer ceases acting as a student loan servicer pursuant to a contract with the United States Secretary of Education under 20 U.S.C. 1087f. On an annual basis, an automatic federal student loan servicer licensee shall verify and attest to its NMLS record, and submit the appropriate NMLS processing fees.

(4) Ceasing of Business. A licensed automatic federal student loan servicer shall notify the Commissioner when it ceases to engage in the business of student loan servicing no later than 15 days after the cessation of business. The automatic federal student loan servicer shall provide to the Commissioner the location where records are stored and contact information for an individual who will be authorized to provide access to the records. An automatic federal student loan servicer license shall immediately expire if the automatic federal student loan servicer is no longer acting as a student loan servicer pursuant to a contract with the United States Secretary of Education under 20 U.S.C. 1087f.

(5) Expiration of License. A licensed automatic federal student loan servicer shall provide written notice to the Commissioner not more than seven business days after receiving notification of the expiration, revocation or termination of a contract awarded by the United States Secretary of Education under 20 U.S.C. 1087f. An automatic federal student loan servicer license shall immediately expire if such licensee is no longer acting as a student loan servicer pursuant to a contract with the United States Secretary of Education under said 20 U.S.C. 1087f.

18.05: Licensing Standards – Debt Collector Applicant

(1) A license to engage in the business of a debt collector will be issued to an applicant if the Commissioner, upon review of the application and all other relevant information, determines that all of the requirements of M.G.L. c. 93, §§ 24 through 28, and 209 CMR 18.03 have been met.

(2) The Commissioner may deny an application for a license to engage in the business of a debt collector, or the renewal thereof, if the applicant has not satisfied the requirements of M.G.L. c. 93, §§ 24 through 28 or 209 CMR 18.03, or for any of the following reasons, if the applicant, or any partner, member, officer, director, or equivalent, or principal employee has:

- (a) violated, or engaged in a pattern of violations, of any state or federal law applicable to the conduct of the business of a debt collector including, but not limited to, M.G.L. c. 93A, M.G.L. c. 93, §§ 24 through 28, or any rule, regulation, or administrative order or directive promulgated thereunder;
- (b) defaulted on a payment of money collected or received for another;

18.05: continued

- (c) within ten years prior to the filing of the application,
 - 1. been convicted of or pleaded *nolo contendere* to a felony,
 - 2. had any adverse judgments entered against it in any court action or in any administrative enforcement action, in any jurisdiction, based upon allegations of fraud, misrepresentation, or dishonesty, or
 - 3. committed any act involving dishonesty, fraud, or deceit, which act is substantially related to the qualifications, functions, or duties of a person engaged in the business of a debt collector;
- (d) made, or caused to be made, a false or misleading statement of a material fact in the application; or has withheld from the Commissioner any information which, if submitted by the Applicant, would have warranted the Commissioner in refusing to issue such license;
- (e) conducted, or will conduct, its business in an unsafe and unsound manner;
- (f) in its audited or reviewed financial statements, a notation made by an independent certified public accountant referencing existing conditions that raise doubt about the Applicant's ability to continue as a going concern;
- (g) an adverse credit history, as determined by the Commissioner, upon review of a current credit report submitted with the application pursuant to 209 CMR 18.03(1). For the purposes of 209 CMR 18.04(2)(g), an adverse credit history, reviewed as of the date of application, shall include, but is not limited to, any outstanding lien or unsatisfied judgment, an uncured default upon a government sponsored loan or student loan, or any other delinquent account in excess of 60 days past due;
- (h)
 - 1. had a license or registration denied, suspended, or revoked by the Commissioner or the licensing authority of any other state;
 - 2. been a partner, member, officer, director, manager, or equivalent of an entity which has had a license or registration revoked by the Commissioner, or the licensing authority of any other state; or
 - 3. if a natural person, either individually or as an employee, while acting in the course of the debt collection business, acted in a manner which would have warranted the Commissioner in suspending or revoking the license of the individual or entity;
- (i) within 24 months of the date of application, been the subject of an order of the Commissioner denying an application for a license or an order denying, suspending, or revoking that person's license as a debt collector; or
- (j) failed to respond to a written notification of a deficiency in the application, or in any other relevant information required by the Commissioner to be submitted with the application, within 30 days of the date of such written notice from the Division.

(3) An applicant whose application has been denied under 209 CMR 18.05(2) may appeal the Commissioner's action under M.G.L. c. 93, § 24G.

(4) Waiver of Prohibition on Reapplication for a License. Notwithstanding the provisions of 18.05(2)(i), the Commissioner may consider an application for a debt collector license within 24 months of the date of an order from the Commissioner denying, suspending, or revoking that person's license as a debt collector, if the Commissioner finds sufficient evidence to support a belief that the condition(s) which resulted in an order denying, suspending, or revoking the license of the debt collector applicant or licensee are not likely to recur and that all of the requirements of M.G.L. c. 93 §§ 24 through 28 inclusive, and 209 CMR 18.00 have been satisfied.

18.06: Licensing Standards – Student Loan Servicer Applicant

- (1) A license to engage in the business of student loan servicer will be issued if the Commissioner, upon review of the application and all other relevant information, determines that all of the requirements of M.G.L. c. 93L, § 2(e) have been met.
- (2) The Commissioner may deny an application to engage in the business of a student loan servicer, if the Commissioner upon review of the application and other relevant information, determines that the student loan servicer applicant has:
 - (a) failed to satisfy the requirements of M.G.L. c. 93L;

18.06: continued

- (b) violated any applicable provisions of M.G.L. c. 93L or 209 CMR 18.00;
- (c) violated or engaged in a pattern of violations of any state or federal law applicable to the conduct of the business of a student loan servicer including, but not limited to, M.G.L. c. 93A and any rule, regulation or administrative order or directive promulgated thereunder;
- (d) conducted, or will conduct, its business in an unsafe and unsound manner; or
- (e) engaged in conduct which has resulted in the suspension or revocation of its license to engage in the business of a student loan servicer, or other licensed business, by the licensing authority of this or any other state.

(3) A student loan servicer applicant whose application has been denied may appeal the Commissioner's action in accordance with M.G.L. c. 30A, and 801 CMR 1.00.

(4) A licensed student loan servicer shall notify the Commissioner when it ceases to engage in the business of student loan servicing no later than 15 days after the cessation of business. The student loan servicer shall provide to the Commissioner the location where records are stored and contact information for an individual who will be authorized to provide access to the records.

18.07: Registration Procedures

(1) Registration. Each applicant for registration as a third party loan servicer shall submit a written registration on a form prescribed by the Commissioner, signed under the pains and penalties of perjury, containing such information as the Commissioner may from time to time require including, but not limited to, a description of the activities of the Applicant.

(2) Renewal of Registration. Each registration shall expire annually on a date determined by the Commissioner. An applicant for a renewal of its registration shall submit such information as the Commissioner may deem necessary.

18.08: Registration Standards

(1) A registration as a third party loan servicer will be issued to an applicant if the Commissioner, upon review of the registration and all other relevant information, determines that all of the requirements of M.G.L. c. 93, §§ 24 through 24G, and 209 CMR 18.05 have been met.

(2) The Commissioner may deny an application for registration as a third party loan servicer, or the renewal thereof, if the Commissioner upon review of the application and other relevant information, determines that the Applicant has not satisfied the requirements of M.G.L. c. 93, §§ 24 through 24G or 209 CMR 18.05 or has violated any provision of M.G.L. c. 93, §§ 24 through 28, and 209 CMR 18.00.

18.09: Office Locations

(1) Debt Collector Branch Offices. A debt collector licensee who intends to carry on its business at any location in addition to the address on its original license shall submit an application to the Commissioner, in writing, at least 30 days prior to the opening of the branch location. Such application shall contain the address of any such place and such other information as the Commissioner may require.

(2) Student Loan Servicer Branch Offices. A student loan servicer licensee, other than an automatic federal student loan servicer licensee, who intends to operate at any place in addition to its main address on the license shall notify the Commissioner, in writing, not less than 30 days before commencing operation in the additional location. The notification shall include information as required by the Commissioner.

(3) Relocations and Closings. A debt collector licensee, student loan servicer licensee, or registered third party loan servicer shall provide thirty days prior written notice of any change or closing of a location to the Commissioner and shall contain such other information as the Commissioner may require.

18.10: Notice of Significant Events and Proposed Change in Ownership or Personnel

(1) A debt collector, licensed student loan servicer or registered third party loan servicer if applicable, shall notify the Commissioner immediately, and in writing within one business day, of the occurrence of any of the following significant developments. The provisions of 209 CMR 18.10 shall not apply to automatic federal student loan servicers.

- (a) Filing for bankruptcy or reorganization of the Licensee or registered third party loan servicer, any partner, member, officer, director, or equivalent, or principal employee.
- (b) The filing of a criminal indictment any way related to the activities of the debt collector, licensed student loan servicer, or registered third party loan servicer, any partner, member, officer, director, or equivalent, or principal employee including, but not limited to, the handling and/or reporting of moneys received and/or instruments sold.
- (c) Notification of the institution of license denial, cease and desist, suspension, or revocation procedures, or other formal or informal regulatory action, in any state against the debt collector, licensed student loan servicer, or registered third party loan servicer, and the reasons thereof.
- (d) Receiving notification of the initiation of any action by the Attorney General of the Commonwealth or of any other state, pursuant to M.G.L. c. 93A, or any other comparable consumer protection statute, and the reasons thereof.
- (e) Receiving notification of the initiation of a class action lawsuit on behalf of consumers against the debt collector, student loan servicer licensee, or registered third party loan servicer that is substantially related to the operation of the licensed business.
- (f) Any partner, member, officer, director, or equivalent, or principal employee being convicted of a misdemeanor that is in any way related to debt collector, student loan servicing, or loan servicing activities; or of any felony whatsoever.
- (g) Any change to net worth resulting from market valuation or future loss liability or any other change which causes the net worth of the debt collector or student loan servicer licensee to fall below the requirements of 209 CMR 18.03(2)(a).
- (h) Closing or shortage of any trust account where funds of clients paid to a debt collector are deposited.

(2) (a) 30 days prior to any proposed change in control in the ownership of a Licensee, or among the officers, partners or directors of a Licensee, a notice shall forthwith be filed with the Commissioner who may thereupon cause such investigation to be made as he or she deems necessary, as if it were a new license. In the case of a corporation, control is defined as a change of ownership by a person or group acting in concert to acquire 10% of the stock, or the ability of a person or group acting in concert to elect a majority of the directors or otherwise effect a change in policy of the corporation.

- (b) A notice of change in personnel or ownership shall contain the following information:
 - 1. the name, address and occupation of each proposed officer, partner, director or shareholders; and
 - 2. provide such other information as the Commissioner may require.

18.11: Annual Reports

Annually, on a date determined by the Commissioner, each licensee or registered third party loan servicer shall file an annual report with the Commissioner in such form as the Commissioner shall prescribe for the preceding year. The annual report shall be in writing, subscribed by the licensee or registered third party loan servicer under the pains and penalties of perjury.

18.12: Books and Records

(1) Each Licensee or registered third party loan servicer shall keep and use its books, records and accounts in a manner which will allow the Commissioner to determine whether the Licensee or registered third party loan servicer is complying with the provisions of M.G.L. c. 93 or c. 93 L, and applicable state and federal laws and regulations. Each licensee shall comply with the provisions of 209 CMR 48.00: *Licensee Record Keeping*. The following records shall be maintained:

8.12: continued

(a) Debt Collector. Each debt collector shall retain for a minimum of two years after final remittance is made on any account placed with the debt collector for collection or after any account has been returned to the creditor whether or not payments have been made. Books and records shall conform to generally accepted accounting principles. A debt collector shall comply with the provisions of M.G.L. c. 200A: *Abandoned Property*.

(b) Student Loan Servicer and Automatic Federal Student Loan Servicer. Each student loan servicer or automatic federal student loan servicer shall maintain adequate records of each student loan transaction for not less than two years following the final payment on the student loan or the assignment of the student loan, whichever occurs first, or except as otherwise required by federal law or a contract with the United States Secretary of Education under 20 U.S.C. 1087f.

(c) Third Party Loan Servicer. Each registered third party loan servicer shall retain for a minimum of two years after the conclusion of its fiscal year the records, books, accounts, and documents pertaining to the registered third party loan servicer's business.

(2) A Licensee who does not maintain an office in the Commonwealth and whose principal place of business is located outside of the Commonwealth may designate a resident agent within the Commonwealth for the purpose of complying with 209 CMR 18.12(1). The appointment of a resident agent shall require the prior approval of the Commissioner and shall be subject to such terms and conditions as the Commissioner may require from time to time.

(3) The Commissioner may also prescribe the extent to which such books, records and accounts shall be audited. Additional audits by independent certified public accountants shall be conducted whenever the Commissioner deems it expedient. Said audits shall be submitted to the Commissioner immediately upon completion. The cost of all such audits shall be borne by the Licensee or registered third party loan servicer.

(4) In addition to the reports required by law, a Licensee or registered third party loan servicer shall make such other statements and reports to the Commissioner as he or she may require. The Commissioner may require regular quarterly reports and may furnish blank forms for all such statements or reports, required by 209 CMR 18.12.

18.13: Commingling – Debt Collection

No debt collector shall commingle money collected for a creditor with the debt collector's own funds or use any part of a creditor's money in the conduct of the debt collector's business.

18.14: Preserving Identity of Funds of Clients – Debt Collection

(1) All funds of clients paid to a debt collector shall be deposited in one or more trust accounts maintained at a federally insured bank.

(2) The gross amount of monies collected from consumers by the debt collector shall be deposited into the trust account(s).

(3) In remitting to clients, a debt collector may offset funds in the trust account(s) against commissions to which it is entitled for payments made by consumers directly to clients. All offsets shall be accounted for through written documentation evidencing the amount of offset.

(4) A debt collector shall maintain complete and accurate trust account records. A debt collector shall produce, upon request, all documents pertaining to trust account activity, including, but not limited to: bank settlements, check stubs, canceled, voided or unused checks, deposit tickets, and reconciliations or other comparable account records.

18.15: Acquisition of Location Information – Debt Collection

Any debt collector communicating with any person other than the consumer for the purpose of acquiring location information about the consumer shall:

18.15: continued

- (1) identify himself or herself, state that he is confirming or correcting location information concerning the consumer, and, only if expressly requested, identify his employer;
- (2) not state that such consumer owes any debt;
- (3) not communicate with any such person more than once unless requested to do so by such person or unless the debt collector reasonably believes that the earlier response of such person is erroneous or incomplete and that such person now has correct or complete location information;
- (4) not communicate by postcard;
- (5) not use any language or symbol on any envelope or in the contents of any communication effected by the mails or telegram that indicates that the debt collector is in the debt collection business or that the communication relates to the collection of a debt;
- (6) not cause expense to any such person in the form of long distance telephone calls, text messaging, download fees, data usage fees, or other similar charges; and
- (7) after the debt collector knows the consumer is represented by an attorney with regard to the subject debt and has knowledge of, or can readily ascertain, such attorney's name and address, not communicate with any person other than that attorney, unless the attorney fails to respond within a reasonable period of time to communication from the debt collector.

18.16: Communication in Connection with Debt Collection

- (1) Communication with the Consumer Generally. Without the prior consent of the consumer given directly to the debt collector or the express permission of a court of competent jurisdiction, a debt collector may not communicate with a consumer in connection with the collection of any debt:
 - (a) at any unusual time or place or a time or place known or which should be known to be inconvenient to the consumer. In the absence of knowledge of circumstances to the contrary, a debt collector shall assume that the convenient time for communicating with a consumer is after 8:00 A.M. and before 9:00 P.M. at the consumer's location;
 - (b) if the debt collector knows the consumer is represented by an attorney with respect to such debt and has knowledge of, or can readily ascertain, such attorney's name and address, unless the attorney fails to respond within a reasonable period of time to a communication from the debt collector or unless the attorney consents to direct communication with the consumer;
 - (c) at the consumer's place of employment if the debt collector knows or has reason to know that the consumer's employer prohibits the consumer from receiving such communication; or if the consumer has made a written or oral request that such telephone calls not be made at the place of employment, provided, that any oral request shall be valid for only ten days unless the consumer provides written confirmation postmarked or delivered within seven days of such request. A consumer may at any time terminate such a request by written communication to the debt collector;
 - (d) if the debt collector engages any consumer in communication via telephone or via text messaging, initiated by the debt collector, in excess of two such communications in each seven-day period to a consumer's residence or cellular telephone and two such communications in each 30-day period other than at a consumer's residence, or cellular telephone for each debt, provided that for purposes of 209 CMR 18.16(1)(d), a creditor may treat any billing address of the consumer as his or her place of residence; or
 - (e) if the debt collector fails to send the consumer the following notice in writing within 30 days after the first communication to a consumer at his or her place of employment regarding any debt, provided that a copy of the notice shall be sent every six months thereafter so long as collection activity by the collection agency on the debt continues and the consumer has not made a written request as described in 209 CMR 18.16(1)(c):

18.16: continued

NOTICE OF IMPORTANT RIGHTS

You have the right to make a written or oral request that telephone calls regarding your debt not be made to you at your place of employment. Any such oral request will be valid for only ten days, unless you provide written confirmation of the request postmarked or delivered within seven days of such request. You may terminate this request by writing to the debt collector.

(2) Communication with Third Parties. Except as provided in 209 CMR 18.16, without the prior consent of the consumer given directly to the debt collector, or the express permission of a court of competent jurisdiction, or as reasonably necessary to effectuate a postjudgment judicial remedy, a debt collector may not communicate, in connection with the collection of any debt, with any person other than the consumer, his or her attorney, a consumer reporting agency if otherwise permitted by law, the creditor, the attorney of the creditor, or the attorney of the debt collector.

(3) Ceasing Communication. If a consumer notifies a debt collector in writing that the consumer refuses to pay a debt or that the consumer wishes the debt collector to cease further communication with the consumer, the debt collector shall not communicate further with the consumer with respect to such debt, except:

- (a) to advise the consumer that the debt collector's further efforts are being terminated;
- (b) to notify the consumer that the debt collector or creditor may invoke specified remedies which are ordinarily invoked by such debt collector or creditor; or
- (c) where applicable, to notify the consumer that the debt collector or creditor intends to invoke a specified remedy.

If such notice from the consumer is made by mail, notification shall be complete upon receipt.

(4) For the purpose of 209 CMR 18.14, the term "consumer" includes the consumer's spouse, parent (if the consumer is a minor), guardian, executor, or administrator.

18.17: Harassment or Abuse – Debt Collection

A debt collector may not engage in any conduct the natural consequence of which is to harass, oppress, or abuse any person in connection with the collection of a debt. Without limiting the general application of the foregoing, the following conduct is a violation of 209 CMR 18.17:

(1) The use or threat of use of violence or other criminal means to harm the physical person, reputation, or property of any person.

(2) The use of obscene or profane language or language the natural consequence of which is to abuse the hearer or reader.

(3) The advertisement for sale of any debt to coerce payment of the debt.

(4) Causing a telephone to ring or engaging any person in telephone conversation repeatedly or continuously with intent to annoy, abuse, or harass any person at the called number.

(5) Except as provided in 209 CMR 18.15, the placement of telephone calls without meaningful disclosure of the caller's identity.

(6) Visiting the household of a consumer at times other than the normal waking hours of such consumer, or if normal waking hours are not known, at any time other than between 8:00 A.M. and 9:00 P.M.; provided however, that in no event shall such visits, initiated by the debt collector, exceed one in any 30-day period for each debt, excluding visits where no person is contacted in the household, unless a consumer consents in writing to more frequent visits; provided further, that at all times the creditor must remain outside the household, unless expressly invited inside by such consumer; and provided further, that visits to the household of a consumer which are solely for the purpose of repossessing any collateral or property of the creditor (including, but not limited to, credit cards, drafts, notes or the like), are not limited under 209 CMR 18.17(7).

18.17: continued

(7) Visiting the place of employment of a consumer, unless requested by the consumer excluding visits which are solely for the purpose of repossessing any collateral or property of the creditor, or confrontations with a consumer regarding the collection of a debt initiated by a debt collector in a public place excluding courthouses, the debt collector's place of business, other places agreed to by a consumer, offices of any attorney for the consumer, or places where the conversation between persons representing the debt collector and a consumer cannot be reasonably overheard by any other person not authorized by the consumer;

18.18: False or Misleading Representations – Debt Collection

A debt collector may not use any false, deceptive, or misleading representation or means in connection with the collection of any debt. Without limiting the general application of the foregoing, the following conduct is a violation of 209 CMR 18.18:

(1) The false representation or implication that the debt collector is vouched for, bonded by, or affiliated with the United States or any State, including the use of any badge, uniform, or facsimile thereof.

(2) The false representation of:

- (a) the character, amount, or legal status of any debt; or
- (b) any services rendered or compensation which may be lawfully received by any debt collector for the collection of a debt.

(3) The false representation or implication that any individual is an attorney or that any communication is from an attorney.

(4) The representation or implication that nonpayment of any debt will result in the arrest or imprisonment of any person or the seizure, garnishment, attachment, or sale of any property or wages of any person, unless such action is lawful and the debt collector or creditor intends to take such action.

(5) The threat to take any action that cannot legally be taken or that is not intended to be taken.

(6) The false representation or implication that a sale, referral, or other transfer of any interest in a debt shall cause the consumer to

- (a) lose any claim or defense to payment of the debt; or
- (b) become subject to any practice prohibited by this title.

(7) The false representation or implication that the consumer committed any crime or other conduct in order to disgrace the consumer.

(8) Communicating or threatening to communicate to any person credit information which is known or which should be known to be false, including the failure to communicate that a disputed debt is disputed.

(9) The use of distribution of any written communication which simulates or is falsely represented to be a document authorized, issued, or approved by any court, official, or agency of the United States or any State, or which creates a false impression as to its source, authorization, or approval.

(10) The use of any false representation or deceptive means to collect or attempt to collect any debt or to obtain information concerning a consumer.

(11) The failure to disclose in the initial written communication with the consumer and, in addition, if the initial communication with the consumer is oral, in that initial oral communication, that the debt collector is attempting to collect a debt and that any information obtained will be used for that purpose, and the failure to disclose in subsequent communications that the communication is from a debt collector, except that 209 CMR 18.18(11) shall not apply to a formal pleading made in connection with a legal action.

18.18: continued

- (12) The false representation or implication that accounts have been turned over to innocent purchasers for value.
- (13) The false representation or implication that documents are legal process.
- (14) The use of any business, company, or organization name other than the true name of the debt collector's business, company, or organization.
- (15) The false representation or implication that documents are not legal process forms or do not require action by the consumer.
- (16) Communicating by telephone without disclosure of the name of the debt collector and without disclosure of the personal name of the individual making such communication; provided however, that any such individual utilizing a personal name other than his or her own shall use only one such personal name at all times and provided that a mechanism is established by the debt collector to identify the person using such personal name; the debt collector shall submit a list of all such personal names and the person using same to the Commissioner.
- (17) The false representation or implication that a debt collector operates or is employed by a consumer reporting agency.

18.19: Unfair Practices – Debt Collection

A debt collector may not use unfair or unconscionable means to collect or attempt to collect any debt. Without limiting the general application of the foregoing, the following conduct is a violation of 209 CMR 18.19:

- (1) The collection of any amount (including any interest, fee, charge, or expense incidental to the principal obligation) unless such amount is expressly authorized by the agreement creating the debt or permitted by law.
- (2) A debt collector shall not publish or cause to be published for general circulation the name of a consumer or any lists of consumers or threaten to do so.
- (3) The request or demand from a consumer of a postdated check, draft, order for withdrawal or other similar instrument in payment for the debt or any portion thereof, or a debt collector to negotiate such instrument before the due date, of the instrument.
- (4) Depositing or threatening to deposit any postdated check or other postdated payment instrument prior to the date on such check or instrument.
- (5) Causing charges to be made to any person for communications by concealment of the true purpose of the communication. Such charges include, but are not limited to, collect telephone calls, text messaging, and telegram fees. However, 209 CMR 18.19(5) shall not prohibit a debt collector from communicating with a consumer by way of a consumer's cellular telephone.
- (6) Taking or threatening to take any nonjudicial action to effect dispossession or disablement of property if:
 - (a) there is no present right to possession of the property claimed as collateral through an enforceable security interest;
 - (b) there is no present intention to take possession of the property;
 - (c) the property is exempt by law from such dispossession or disablement; or
 - (d) the debt collector knows or has reason to know that demands for payment and/or legal notices were not directed to the consumer's last known address.
- (7) Communicating with a consumer regarding a debt by postcard.

18.19: continued

(8) Using any language or symbol, other than the debt collector's address, on any envelope when communicating with a consumer by use of the mails or by telegram, except that a debt collector may use his or her business name if such name does not indicate that he or she is in the debt collection business.

(9) Any representation that an existing obligation of a consumer may be increased by the addition of attorney's fees, investigation fees, service fees, or any other fees or charges, if in fact such fees or charges may not legally be added to the existing obligation.

(10) Any solicitation or obtaining of any written statement or acknowledgment in any form containing an affirmation of any obligation by a consumer who has been adjudicated bankrupt, without clearly and conspicuously disclosing the nature and consequences of such affirmation.

(11) For a debt collector to report to a consumer reporting agency on its transactions or experiences with a consumer in the debt collector's name. However, a debt collector may, with the express written authorization of the creditor, report to a consumer reporting agency in the creditor's name.

(12) No debt collector shall:

- (a) Furnish legal advice or otherwise engage in the practice of law or represent that it is competent to do so, or institute judicial proceedings on behalf of others;
- (b) Communicate with consumers in the name of a lawyer or upon stationery of a lawyer, or prepare any forms or instruments which only lawyers are authorized to prepare;
- (c) Exercise authority on behalf of a creditor to employ the services of lawyers, unless the creditor has specifically authorized the agency in writing to do so and the agency's course of conduct is at all times consistent with a true relationship of attorney and client between the lawyer and the creditor; or
- (d) Demand or obtain in any manner a share of the compensation for services performed by a lawyer in collection of a claim.

(13) Failing to disclose the telephone number and office hours of the debt collector on all written communication to the consumer.

(14) Causing expense to any consumer in the form of collect telephone calls, text messaging, download fees, data usage fees, or similar charges, without the express permission of the consumer to communicate in that manner. However, a debt collector may place non-collect telephone calls to the consumer's cellular telephone, or other telephone number provided by the consumer as his or her personal telephone number.

18.20: Validation of Debts – Debt Collection

(1) Within five days after the initial communication with a consumer in connection with the collection of any debt, a debt collector shall, unless the following information is contained in the initial communication or the consumer has paid the debt, send the consumer a written notice containing:

- (a) the amount of the debt;
- (b) the name of the creditor to whom the debt is owed;
- (c) a statement that unless the consumer, within 30 days after receipt of the notice, disputes that validity of the debt, or any portion thereof, the debt will be assumed to be valid by the debt collector;
- (d) a statement that if the consumer notifies the debt collector in writing within the 30-day period that the debt, or any portion thereof, is disputed, the debt collector will obtain verification of the debt or a copy of a judgment against the consumer and a copy of such verification or judgment will be mailed to the consumer by the debt collector; and
- (e) a statement that, upon the consumer's written request within the 30-day period, the debt collector will provide the consumer with the name and address of the original creditor, if different from the current creditor.

18.20: continued

- (2) If the consumer notifies the debt collector in writing within the 30-day period described in 209 CMR 18.20(1) that the debt, or any portion thereof, is disputed, or that the consumer requests the name and address of the original creditor, the debt collector shall cease collection of the debt, or any disputed portion thereof, until the debt collector obtains verification of the debt or a copy of a judgment, or the name and address of the original creditor, and a copy of such verification or judgment, or name and address of the original creditor, is mailed to the consumer by the debt collector.
- (3) A debt collector shall provide to a consumer or any attorney for a consumer within five business days the following:
- (a) All papers or copies of papers and electronic records, in the possession of the debt collector which bear the signature of the consumer and which concern the debt being collected; and
 - (b) A ledger, account card, or similar record in the possession of a debt collector, whether paper or electronic, which reflects the date and amount of payments, credits, and charges concerning the debt.
- (4) The failure of a consumer to dispute the validity of a debt under 209 CMR 18.20 may not be construed by any court as an admission of liability by the consumer.

18.21: Multiple Debts – Debt Collection

If any consumer owes multiple debts and makes any single payment to any debt collector with respect to such debts, such debt collector may not apply such payment to any debt which is disputed by the consumer and, where applicable, shall apply such payment in accordance with the consumer's directions.

18.22: Furnishing Certain Deceptive Forms – Debt Collection

It is unlawful to design, compile, and furnish any form knowing that such form would be used to create the false belief in a consumer that a person other than the creditor of such consumer is participating in the collection of or in an attempt to collect a debt such consumer allegedly owes such creditor, when in fact such person is not so participating.

18.23: Unfair Servicing Practices – General

A third party loan servicer or student loan servicer may not use unfair or unconscionable means in servicing any loan. Without limiting the general application of the foregoing, the following conduct is a violation of 209 CMR 18.23:

- (1) Knowingly misapplying or recklessly applying loan payments to the outstanding balance of a loan.
- (2) Knowingly misapplying or recklessly applying payments to escrow accounts.
- (3) Requiring the unnecessary forced placement of insurance, when adequate insurance is currently in place.
- (4) Failing to provide loan payoff information within five business days of a receipt of a written request.
- (5) Charging excessive or unreasonable fees to provide loan payoff information.
- (6) Knowingly or recklessly providing inaccurate information to a credit bureau, thereby harming a consumer's creditworthiness.
- (7) Failing to report both the favorable and unfavorable payment history of the consumer to a nationally recognized consumer credit bureau at least annually if the servicer regularly reports information to a credit bureau.

18.23: continued

- (8) Knowingly or recklessly facilitating the illegal repossession of chattel collateral.
- (9) Misrepresenting any material information in connection with the servicing of the loan, including, but not limited to, misrepresenting the amount, nature or terms of any fee or payment due or claimed to be due on a loan, the terms and conditions of the servicing contract or the borrower's obligations under the loan.
- (10) Failing to maintain procedures to ensure accuracy and timely updating of borrower's account information, including posting of payments and imposition of fees.
- (11) Requiring funds to be remitted by means more costly to the consumer than a bank or certified check or attorney's check from an attorney's account.
- (12) Refusing to communicate with an authorized representative of the borrower who provides a written authorization signed by the borrower, provided that the third party loan servicer may adopt procedures reasonably related to verifying that the representative is in fact authorized to act on behalf of the borrower.
- (13) Failing to establish and implement policies and procedures to ensure effective monitoring and oversight of law firms, subservicers, foreclosure firms, foreclosure trustees and other third party providers, agents or affiliates retained by or on behalf of the third party loan servicer to ensure that such third parties are complying with the pertinent state and federal laws and regulations governing third party loan servicers including, but not limited to, the provisions of 209 CMR 18.00.

18.24: Mortgage Loan Servicing Practices

- (1) A third party loan servicer may not use unfair or unconscionable means in servicing any mortgage loan. Without limiting the general application of the foregoing, the following conduct is a violation of 209 CMR 18.24:
 - (a) Failing to comply with the provisions of M.G.L. c. 183, § 54D regarding providing loan payoff information to a consumer.
 - (b) Collecting private mortgage insurance beyond the date for which private mortgage insurance is no longer required.
 - (c) Failing to comply with the provisions of M.G.L. c. 244, §§ 35A, 35B or 35C regarding the right to cure a mortgage loan default and other requirements.
 - (d) Knowingly or recklessly facilitating the illegal foreclosure of real property collateral.
 - (e) Failing to comply with the provisions of 12 CFR 1024.38(b)(2) or other applicable provision of 12 CFR part 1024, regarding the evaluation of borrowers for loss mitigation options.
 - (f) Failing to comply with the provisions of 12 CFR 1024.41(b)(2) or other applicable provision of 12 CFR part 1024, regarding providing borrowers with written acknowledgment of receipt of loan modification and required follow up.
 - (g) Failing to comply with the provisions of 12 CFR 1024.41(g) or other applicable provision of 12 CFR part 1024, regarding the process of concluding the modification process prior to initiating a foreclosure.
 - (h) Failing to comply with the provisions of 12 CFR 1024.40 or other applicable provision of 12 CFR part 1024, regarding providing borrowers with contact information for a designated individual.
 - (i) Nothing in 209 CMR 18.21A shall be construed to prevent a third party loan servicer from offering or accepting alternative loss mitigation options, including other modification programs offered by the third party loan servicer, a short sale, a deed-in-lieu of foreclosure or forbearance, if the borrower requests such an alternative, is not eligible for or does not qualify for a loan modification under a government sponsored mortgage loan modification program or proprietary modification program, or rejects the third party loan servicer's loss mitigation proposal.
 - (j) 209 CMR 18.24(2) contains requirements that are in addition to those contained in M.G.L. c. 244, § 35B, and 209 CMR 56.00: *Foreclosure Prevention Options* regarding "Certain Mortgage Loans" as that term is defined in 209 CMR 56.02: *Definitions*.

18.24: continued

- (2) Information and documentation provided by third party loan servicers in the context of foreclosure proceedings. To the extent a servicer is authorized to act on behalf of a mortgagee,
- (a) A third party loan servicer shall ensure that all foreclosure affidavits or sworn statements are based on personal knowledge.
 - (b) A third party loan servicer shall ensure that foreclosure affidavits or sworn statements shall set forth a detailed description of the basis of affiant's claimed personal knowledge of information contained in the affidavit or sworn statement, including sources of all information recited and a statement as to why the sources are accurate and reliable.
 - (c) A third party loan servicer shall certify in writing the basis for asserting that the foreclosing party has the right to foreclose including, but not limited to, certification of the chain of title and ownership of the note and mortgage from the date of the recording of the mortgage being foreclosed upon. The third party loan servicer shall provide such certification to the borrower with the notice of foreclosure provided pursuant to M.G.L. c. 244, § 14, and shall also include a copy of the note with all required endorsements.
 - (d) A third party loan servicer shall comply with all applicable state and federal laws governing the rights of tenants living in foreclosed residential properties.

18.25: Student Loan Servicing Practices

- (1) A student loan servicer may not use unfair, deceptive, or unconscionable means in servicing any student loan. Without limiting the general application of the foregoing, the following conduct is a violation of 209 CMR 18.25:
- (a) directly or indirectly employing any scheme, device, or artifice to defraud or mislead student loan borrowers;
 - (b) engaging in any unfair, deceptive, or unconscionable practice toward any person or misrepresenting or omitting any material information in connection with the servicing of a student loan including, but not limited to, misrepresenting the amount, nature or terms of any fee or payment due or claimed to be due on a student loan, the terms and conditions of the loan agreement or the student loan borrower's obligations under the student loan;
 - (c) obtaining property by fraud or misrepresentation;
 - (d) knowingly or recklessly misapplying loan payments to the outstanding balance of a loan;
 - (e) making any false statement or knowingly and willfully make any omission of a material fact in connection with any information or reports filed with a governmental agency or in connection with any investigation conducted by the Commissioner or another governmental agency;
 - (f) allocating partial payments in a way that maximizes late fees;
 - (g) assessing or collecting any late fees on a payment, which payment is otherwise a full payment for the applicable period and is paid on its due date or within an applicable grace period, when the only delinquency is attributable to late fee(s) assessed on earlier installment(s);
 - (h) misrepresenting required minimum payments on any billing or account statements provided to the student loan borrower;
 - (i) charging late fees for payments made during a grace period;
 - (j) misrepresenting the availability of repayment options to a student loan borrower, or failing to disclose all available repayment options to a student loan borrower who has inquired about alternative repayment options;
 - (k) steering student loan borrowers into forbearance without disclosing all other available repayment options;
 - (l) collecting any amount (including any interest, fee, charge, or expense incidental to the principal obligation), unless such amount is expressly authorized by the agreement creating the student loan or permitted by law;
 - (m) failing to provide information to student loan borrowers to notify or confirm changes in account status, in accordance with the promissory note for the student loan or other applicable student loan documents;
 - (n) knowingly or willfully failing to respond to student loan borrower complaints in a timely manner.

18.25: continued

- (2) A student loan servicer that intends to sell or otherwise transfer the servicing of a student loan shall provide sufficient notice to the student loan borrower prior to the transfer of servicing including, but not limited to: the effective date of the transfer of servicing; identification of the transferee; and transferor and transferee contact information for servicing inquiries.
- (3) During the 60-day period beginning on the effective date of transfer of the servicing of any student loan, if the transferor student loan servicer receives payment on or before the applicable due date, such payment may not be treated as late for any purpose.
- (4) A student loan servicer shall maintain appropriate policies and procedures with respect to the transfer of student loan servicing obligations, whether as transferor or transferee. Such policies and procedures shall include provisions to ensure that a student loan servicer transfers or receives all information regarding a student loan borrower, a student loan borrower's account, and a student loan borrower's student loan, and that such information is accurate.
- (5) A student loan servicer shall ensure that student loan borrowers are not subject to any negative consequences resulting from a sale, assignment, transfer, system conversion including, but are not limited to: negative credit reporting; the imposition of late fees not required by the promissory note; loss of or denial of eligibility for any benefit or protection established under federal law or included in a loan contract.
- (6) A student loan servicer shall include the contact information for the Student Loan Ombudsman, established pursuant to M.G. L. c. 12, § 35, within any account statements and any other written communications with student loan borrowers.
- (7) A student loan servicer shall maintain and make student loan borrower account records available through its website to such borrowers at no additional cost.

18.26: Confidentiality

- (1) All records of investigations and reports of examinations, including workpapers, information derived from the reports and responses to the reports, and any copies thereof in the possession of a licensee, or registered third party loan servicer under the supervision of the Commissioner, shall be confidential and privileged communications;
- (2) Records of investigation and reports of examinations include records of investigation and reports of examinations conducted by the Commissioner as well as those conducted by a financial regulatory agency of the federal government, another state, or a foreign government that are considered confidential by the agency or foreign government and are in the possession of the Commissioner;
- (3) Copies of the reports of examination furnished to a licensee or registrant are for the licensee or registrant's use only and shall not be exhibited to any other person, organization, or agency without prior written approval by the Commissioner;
- (4) The Commissioner may furnish information, reports and statements relating to the licensees or registrants under the Commissioner's supervision to regulatory agencies of the federal government, other states, and foreign countries and to law enforcement agencies as considered appropriate;
- (5) The confidentiality provisions of this section are not applicable to the records provided by the Division of Banks to the student loan ombudsman, for the purposes of the student loan ombudsman annual report filed pursuant M.G. L. c. 12, § 35(c).

18.27: Relation to Other Laws

- (1) A violation of the provisions of 209 CMR 18.00 shall be considered an unfair or deceptive act or practice under M.G.L. c. 93A, § 2 and subject to the penalties contained in M.G.L. c. 93A.

18.27: continued

(2) 209 CMR 18.00 does not exempt any person from complying with existing laws or canons of ethics with respect to debt collection practices. To the extent that any provision of 209 CMR 18.00 is specifically inconsistent with the *Canons of Ethics and Disciplinary Rules Regulating the Practice of Law in Massachusetts*, and then only to the extent of the inconsistency, 209 CMR 18.00 is not applicable.

18.28: Relationship to Federal Law

In the event any inconsistency exists between the provisions of 209 CMR 18.00 and the provisions of federal statutes or regulations relating to the collection of debts, the servicing of students loans, or third party loan servicing, such federal law shall control, but only to the extent that such federal law provides greater consumer protections than those provided in 209 CMR 18.00.

REGULATORY AUTHORITY

209 CMR 18.00: M.G.L. c. 93, § 24A.



THE COMMONWEALTH OF MASSACHUSETTS

William Francis Galvin

Secretary of the Commonwealth

Regulation Filing *To be completed by filing agency*CHAPTER NUMBER: **209 CMR 48.00**CHAPTER TITLE: **Licensee Record Keeping**AGENCY: **Division of Banks and Loan Agencies**SUMMARY OF REGULATION: *State the general requirements and purposes of this regulation.*

209 CMR 48.00 sets forth procedures and requirements for record keeping by the Division's licensees. St.2020, c. 358 includes several provisions relative to student loan servicing, including the creation of G.L. c. 93L. G.L. c. 93L requires the licensure of certain student loan servicers not otherwise exempt from licensure, establishes standards for licensure by the Division, sets forth prohibited conduct, and sets forth other provisions. Ch. 358 also includes an "automatic federal student loan servicer" license. In order to help implement Ch. 358, the amendments expressly incorporate the new student loan servicer license into the regulation setting forth the record keeping requirements for all the Division's licensees.

REGULATORY AUTHORITY: **G.L. c. 93L, as added by Chapter 358 of the Acts of 2020, SECTION 65 and SECTION 110**AGENCY CONTACT: **Barbara Keefe, General Counsel** PHONE: **857-207-0268**ADDRESS: **1000 Washington Street, Boston, MA 02118-6400****Compliance with M.G.L. c. 30A**EMERGENCY ADOPTION - *if this regulation is adopted as an emergency, state the nature of the emergency.*

The amendments to 209 CMR 48.00 are to help implement new G.L. c. 93L, as added by St.2020, c. 358, ss. 65 and 110. In order to help implement Ch. 358, the amendments to 209 CMR 48.00 would expressly incorporate the new student loan servicer license into the regulation setting forth the record keeping requirements for all of the Division's licensees. G.L. c. 93L becomes effective on 7/1/21.

PRIOR NOTIFICATION AND/OR APPROVAL - *If prior notification to and/or approval of the Governor, Legislature or others was required, list each notification, and/or approval and date, including notice to the Local Government Advisory Commission.***N/A**

PUBLIC REVIEW - M.G.L. c. 30A sections 2 and/or 3 requires notice of the hearing or comment period, including a small business impact statement, be filed with the Secretary of the Commonwealth, published in appropriate newspapers, and sent to persons to whom specific notice must be given at least 21 days prior to such hearing or comment period.

Date of public hearing or comment period: _____

FISCAL EFFECT - *Estimate the fiscal effect of the public and private sectors.*

For the first and second year: _____

For the first five years: _____

No fiscal effect: The amendments will either have no fiscal effect or a negligible fiscal effect on licensees.

SMALL BUSINESS IMPACT - *M.G.L. c. 30A section 5 requires each agency to file an amended small business impact statement with the Secretary of the Commonwealth prior to the adoption of a proposed regulation. If the purpose of this regulation is to set rates for the state, this section does not apply.*

Date amended small business impact statement was filed: N/A

CODE OF MASSACHUSETTS REGULATIONS INDEX - *List key subjects that are relevant to this regulation:*
Student loans

Student loan servicers

Student loan servicer licensure

Automatic federal student loan servicer licensure

PROMULGATION - *State the action taken by this regulation and its effect on existing provisions of the Code of Massachusetts Regulations (CMR) or repeal, replace or amend. List by CMR number:*

Amends 209 CMR 48.00

ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.* ATTEST:

SIGNATURE: SIGNATURE ON FILE DATE: Jun 28 2021

Publication - *To be completed by the Regulations Division*

MASSACHUSETTS REGISTER NUMBER: 1448 DATE: 07/23/2021

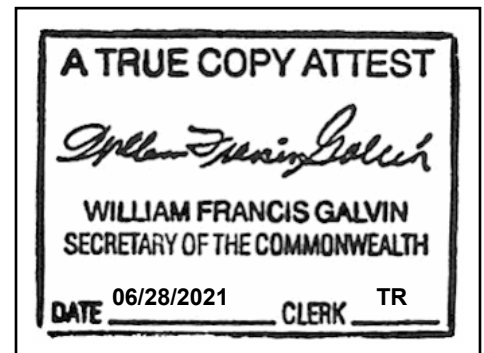
EFFECTIVE DATE: 07/01/2021

CODE OF MASSACHUSETTS REGULATIONS

Remove these pages: Insert these pages:

This is an Emergency Regulation.

There are no Replacement Pages.



209 CMR 48.00: LICENSEE RECORD KEEPING

Section

- 48.01: Applicability and Purpose
- 48.02: Definitions
- 48.03: How Long to Keep Books and Records
- 48.04: Where to Keep Books and Records
- 48.05: Format of Books and Records
- 48.06: Failure to Comply

48.01: Applicability and Purpose

The purpose of 209 CMR 48.00 is to establish procedures and requirements for record keeping by licensees. You must comply with 209 CMR 48.00 if you meet the definition of a licensee.

48.02: Definitions

The following words shall have the following meanings:

Commissioner. The Commissioner of Banks.

Commonwealth. The Commonwealth of Massachusetts.

Electronic. Relating to technology as having electrical, digital, magnetic, wireless, optical, electromagnetic or similar capabilities.

Electronic Record. A record created, generated, sent, communicated, received or stored by electronic means.

Examination. The examination or inspection of a licensee's books and records as required by applicable statute.

Licensee. Any person who is registered as a third party loan servicer under the provisions of M.G.L. c. 93, §§ 24 through 28 or any person who is licensed as: a debt collector under the provisions of M.G.L. c. 93, §§ 24 through 28; a student loan servicer or an automatic federal student loan servicer under the provisions of M.G.L. c. 93L; a small loan company under the provisions of M.G.L. c. 140, §§ 96 through 114A; a check seller under the provisions of M.G.L. c. 167F, § 4; a foreign transmittal agency under the provisions of M.G.L. c. 169; a check casher under the provisions of M.G.L. c. 169A; a motor vehicle sales finance company under the provisions of M.G.L. c. 255B; an insurance premium finance agency under the provisions of M.G.L. c. 255C; a retail installment sales finance company under the provisions of M.G.L. c. 255D; or a mortgage lender or a mortgage broker under the provisions of M.G.L. c. 255E.

NMLS. The Nationwide Multi-state Licensing System & Registry, a multistate licensing system owned and operated by the State Regulatory Registry LLC (SRR), a wholly owned subsidiary of the Conference of State Bank Supervisors (CSBS), an association of state financial services regulators.

Person. A natural person or an organization including a corporation, a limited liability company or partnership, partnership, association, cooperative or trust.

You. A licensee.

48.03: How Long to Keep Books and Records

You must keep all books, records, and accounts as required by State and federal law and regulation. If you are licensed as a debt collector or registered as a third party loan servicer, you must maintain all books, records, and accounts for a minimum of two years. If you are licensed as a student loan servicer or licensed as an automatic federal student loan servicer, you must maintain all books, records, and accounts for not less than two years following the final payment

48.03: continued

on a student loan or the assignment of a student loan, whichever occurs first, or except as otherwise required by federal law or a contract with the United States Secretary of Education under 20 U.S.C. 1087f. If you are licensed as a small loan company, check seller, foreign transmittal agency, check casher, motor vehicle sales finance company, insurance premium finance agency, retail installment sales finance company, mortgage lender, mortgage broker, mortgage company, you must maintain all books, records, and accounts for a minimum of three years. This includes, but is not limited to, a complete customer account history for each transaction including but not limited to terms and conditions of the agreement, payment dates, maturity or final payment due date, refunds, refinancing date, collection or legal action taken.

48.04: Where to Keep Books and Records

(1) You may keep books, records, and accounts at a location in the Commonwealth. You must designate the location in NMLS, as well as the name of the individual responsible for providing access, and provide immediate access to the Commissioner or the Commissioner's designees in order to conduct an examination. If you are an automatic federal student loan servicer, you shall provide access to records not later than five business days after the Commissioner, or his or her designee, makes a request for records.

(2) You may also keep books, records, and accounts at a location outside of the Commonwealth. You must designate the location in NMLS, as well as the name of the individual responsible for providing access. If you keep books, records, and accounts out of state, you must:

- (a) provide access, within 72 hours of an official request, or within five business days of an official request if you are a student loan servicer or an automatic federal student loan servicer, to any books, records, and accounts at a suitable location in the Commonwealth, as determined by the Commissioner or the Commissioner's designee, for the purpose of an examination; and
- (b) for on-site examinations, provide immediate access to books, records, and accounts to the Commissioner or the Commissioner's designees in order to conduct the examination. You must also separately reimburse the Commissioner for appropriate and necessary expenses for an examiner, or examiners, to conduct an examination at a location outside of the Commonwealth.

48.05: Format of Books and Records

(1) You must keep books, records, and accounts in a manner that will allow the Commissioner to determine if you are in compliance with applicable State and federal laws and regulations.

(2) You may store books, records, and accounts as electronic records. You must make all electronic records accessible for examination through equipment available to the Commissioner or the Commissioner's designees in compliance with applicable law. If there is no equipment available to conduct the examination, you must procure and make available such equipment, at your own expense. Prior to maintaining your books, records, and accounts electronically, you must indicate in NMLS how your books, records, and accounts will be stored, including the name of the system utilized, and how such electronic records will be made accessible to the Commissioner or the Commissioner's designees for the purpose of an examination.

(3) You must secure all books, records, and accounts against unauthorized access and damage.

48.06: Failure to Comply

(1) If you do not comply with 209 CMR 48.00, the Commissioner may modify, curtail, rescind, or otherwise limit a licensee's authority to keep its books, records, and accounts at a location outside of the Commonwealth or to store books, records, and accounts in electronic form.

48.06: continued

(2) If you do not comply with 209 CMR 48.00, the Commissioner may take enforcement action against you, including but not limited to, the suspension or revocation of your license under applicable authority.

REGULATORY AUTHORITY:

209 CMR 48.00: M.G.L. c. 93, § 24D; M.G.L. c. 140, § 97; c. 167F, § 4; c. 169, § 10; c. 169A, § 11; c. 255B, § 3; c. 255C, § 6; c. 255D, § 3; c. 255E, § 8; M.G.L. c. 93L, §§ 5 and 7, as added by St.2020, c. 358, § 65; and c. 30A, § 8.

NON-TEXT PAGE



THE COMMONWEALTH OF MASSACHUSETTS

William Francis Galvin

Secretary of the Commonwealth

Regulation Filing *To be completed by filing agency*CHAPTER NUMBER: **101 CMR 316.00**CHAPTER TITLE: **Rates for Surgery and Anesthesia Services**AGENCY: **Executive Office of Health and Human Services**SUMMARY OF REGULATION: *State the general requirements and purposes of this regulation.***101 CMR 316.00 governs the payment rates used by all governmental units for surgery and anesthesia services provided to publicly aided patients.**REGULATORY AUTHORITY: **M.G.L. c. 118E**AGENCY CONTACT: **Deborah Briggs, MassHealth Publications** PHONE: **617-847-3302**ADDRESS: **100 Hancock Street, 6th floor, Quincy, MA 02171****Compliance with M.G.L. c. 30A**EMERGENCY ADOPTION - *if this regulation is adopted as an emergency, state the nature of the emergency.*PRIOR NOTIFICATION AND/OR APPROVAL - *If prior notification to and/or approval of the Governor, Legislature or others was required, list each notification, and/or approval and date, including notice to the Local Government Advisory Commission.***Executive Order 145 notifications: 3/25/21****Executive Order 562 approval: 7/2/21**PUBLIC REVIEW - *M.G.L. c. 30A sections 2 and/or 3 requires notice of the hearing or comment period, including a small business impact statement, be filed with the Secretary of the Commonwealth, published in appropriate newspapers, and sent to persons to whom specific notice must be given at least 21 days prior to such hearing or comment period.*Date of public hearing or comment period: **5/7/21**

FISCAL EFFECT - *Estimate the fiscal effect of the public and private sectors.*

For the first and second year: \$402,000 estimated annual aggregate increase (along w/ 101 CMR 317 & 318)

For the first five years: _____

No fiscal effect: _____

SMALL BUSINESS IMPACT - *M.G.L. c. 30A section 5 requires each agency to file an amended small business impact statement with the Secretary of the Commonwealth prior to the adoption of a proposed regulation. If the purpose of this regulation is to set rates for the state, this section does not apply.*

Date amended small business impact statement was filed: _____

CODE OF MASSACHUSETTS REGULATIONS INDEX - *List key subjects that are relevant to this regulation:*

PROMULGATION - *State the action taken by this regulation and its effect on existing provisions of the Code of Massachusetts Regulations (CMR) or repeal, replace or amend. List by CMR number:*

101 CMR 316.00 is being amended.

ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.* ATTEST:

SIGNATURE: SIGNATURE ON FILE DATE: Jul 9 2021

Publication - *To be completed by the Regulations Division*

MASSACHUSETTS REGISTER NUMBER: 1448 DATE: 07/23/2021

EFFECTIVE DATE: 07/23/2021

CODE OF MASSACHUSETTS REGULATIONS

Remove these pages:

2.3 & 2.4

719 - 720.138

Insert these pages:

2.3 & 2.4

719 - 720.132

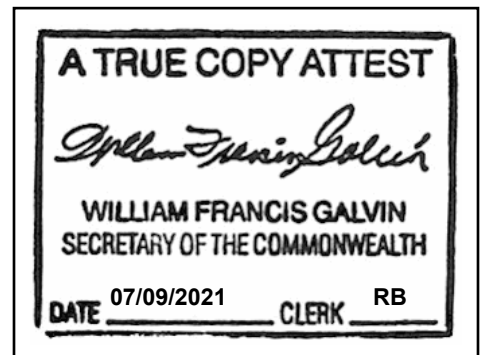


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101 CMR 316.00: RATES FOR SURGERY AND ANESTHESIA SERVICES

Section

- 316.01: General Provisions
- 316.02: General Definitions
- 316.03: General Rate Provisions
- 316.04: Maximum Allowable Fees – Anesthesia Services
- 316.05: Maximum Allowable Fees – Surgical Services
- 316.06: Severability

316.01: General Provisions

(1) Scope, Purpose, and Effective Date.

(a) 101 CMR 316.00 governs the payment rates used by all governmental units for surgery and anesthesia services provided to publicly aided patients. Rates for services provided to individuals covered by the Workers' Compensation Act, M.G.L. c. 152, are not set forth in 101 CMR 316.00, but are at 114.3 CMR 40.00: *Rates for Services under M.G.L. c. 152, Worker's Compensation Act.*

(b) The following laboratory services have a professional and technical component: 83020, 84165, 84166, 84181, 84182, 85390, 85576, 86153, 86255, 86256, 86320, 86325, 86327, 86334, 86335, 87164, 87207, 88371, 88372 and 89060. Payment rates for the professional component are contained herein. Payment rates for the technical component for these codes are contained in 101 CMR 320.00: *Clinical Laboratory Services.*

(2) Applicable Dates of Service. Rates contained in 101 CMR 316.00 apply for dates of service on or after August 1, 2021, except as otherwise noted.

(3) Coverage.

(a) Payment rates in 101 CMR 316.00 are used to pay for surgical and anesthesia services rendered to patients in a private medical office, freestanding ambulatory surgical center, licensed clinic, hospital or other inpatient or outpatient facility or department, or other appropriate setting by an individual eligible provider, when an eligible provider bills for the medical services rendered and no other payment method applies.

(b) The rates of payment under 101 CMR 316.00 are full compensation for patient care rendered to publicly aided patients as well as for any related administrative or supervisory duties in connection with patient care. The rates of payment also reimburse all overhead expenses associated with the service provided, without regard to where the care is rendered.

(4) Disclaimer of Authorization of Services. 101 CMR 316.00 is not authorization for or approval of the procedures for which rates are determined pursuant to 101 CMR 316.00. Governmental units that purchase care are responsible for the definition, authorization, coverage policies, and approval of care and services provided to publicly aided patients.

(5) Coding Updates and Corrections. EOHHS may publish procedure code updates and corrections in the form of an administrative bulletin. Updates may reference coding systems including, but not limited to, the American Medical Association's *Current Procedural Terminology* (CPT).

(a) The publication of such updates and corrections will list

1. codes for which the code numbers change, with the corresponding cross references between the new codes and the codes being replaced. Rates for such updated codes are set at the rate of the code that is being replaced;
2. deleted codes for which there are no corresponding new codes; and
3. codes for entirely new services that require pricing. EOHHS will list these codes and apply individual consideration (I.C.) reimbursement for these codes until appropriate rates can be developed.

(b) For entirely new codes that require new pricing and have Medicare assigned relative value units (RVUs), EOHHS may list these codes and price them according to the rate methodology used in setting physician rates. When RVUs are not available, EOHHS may apply Individual Consideration in reimbursing for these new codes until appropriate rates can be developed.

316.01: continued

(6) Administrative Bulletins. EOHHS may issue Administrative Bulletins to add, delete, or otherwise update codes or modifiers, and to clarify its policy on and understanding of substantive provisions of 101 CMR 316.00. EOHHS may also issue Administrative Bulletins to clarify to which duly licensed or certified health care professionals or students the rate methods in 101 CMR 316.00 apply.

316.02: General Definitions

Meaning of Terms. The five-digit procedure codes and two-digit modifiers included in 101 CMR 316.00, and their corresponding descriptions, utilize the Healthcare Common Procedure Code System (HCPCS) for Level I and Level II coding. Level I CPT-4 codes are obtained from the Physicians' 2020 *Current Procedural Terminology* (CPT), copyright 2019 by the American Medical Association (AMA), unless otherwise specified. Level II codes are obtained from the 2020 HCPCS, maintained jointly by the Centers for Medicare & Medicaid Services (CMS), the Blue Cross and Blue Shield Association, and the Health Insurance Association of America. HCPCS is a listing of descriptive terms and identifying codes and modifiers for reporting medical services and procedures performed by physicians and other health care professionals, as well as associated nonphysician services. No fee schedules, basic unit value, relative value guides, conversion factors, or scales are included in any part of the Physicians' *Current Procedural Terminology*. For code descriptions, *see* the anesthesia and surgery service code spreadsheets on the EOHHS rates website at: www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia-services.

In addition, terms used in 101 CMR 316.00 have the meanings set forth in 101 CMR 316.02.

Eligible Provider. The rates established in 101 CMR 316.00 apply in accordance with 101 CMR 316.01 to the following types of providers who meet conditions of participation of the governmental unit purchasing such services, and to the extent specified by such governmental unit. Eligible providers must provide such services in accordance with generally accepted professional standards and in accordance with state licensing requirements and certification by national credentialing bodies as required by law.

- (a) A licensed physician (other than an intern, resident, fellow, or house officer), licensed podiatrist, and licensed dentist.
- (b) A provider of radiation oncology services. Radiation oncology services may be rendered by eligible providers such as, but not limited to, independent radiation oncology centers. These eligible providers must be physically and financially independent of a hospital or a physician's office.
- (c) A clinic licensed by the Massachusetts Department of Public Health in accordance with 105 CMR 140.000: *Licensure of Clinics* to provide surgical diagnostic services.
- (d) A freestanding birth center facility that is not operating under a hospital's license, and is licensed as a birth center by the Massachusetts Department of Public Health pursuant to 105 CMR 142.000: *Operation and Maintenance of Birth Centers*.
- (e) An advanced practice registered nurse who is authorized by the Board of Registration in Nursing to practice as a certified nurse practitioner, certified nurse midwife, clinical nurse specialist, psychiatric clinical nurse specialist, or a certified registered nurse anesthetist (CRNA).
- (f) A licensed physician assistant who is authorized by the Board of Registration for Physician Assistants to practice as a physician assistant.

EOHHS. The Executive Office of Health and Human Services established under M.G.L. c. 6A.

Facility Setting Fee. Payments for services provided by an individual eligible provider in a hospital (including, without limitation, a hospital inpatient department, outpatient department, emergency department, and hospital licensed health center), or skilled nursing facility or freestanding ambulatory surgical center (ASC), will be made according to a facility setting fee when an applicable facility setting fee has been established for that procedure.

Global Delivery. Includes direct provision and supervision of case management, maternal education (including, but not limited to, nutrition, pregnancy and childbirth, and reproductive health), and obstetrical risk assessment and monitoring, in addition to pelvic or Cesarean-section delivery, all routine prenatal visits, and one postpartum visit.

316.02: continued

Governmental Unit. The Commonwealth, any department, agency, board, or commission of the Commonwealth and any political subdivision of the Commonwealth.

Individual Consideration (I.C.). Surgical procedures that are authorized but not listed in 101 CMR 316.00, surgical procedures performed in unusual circumstances, and services designated I.C. are individually considered items. The governmental unit or purchaser analyzes the eligible provider's report of services rendered and charges submitted under the appropriate unlisted services or procedures category. The governmental unit or purchaser determines appropriate payment for procedures designated I.C. in accordance with the following standards and criteria:

- (a) the amount of time required to perform the service;
- (b) the degree of skill required to perform the service;
- (c) the severity or complexity of the patient's disease, disorder, or disability;
- (d) any applicable relative-value studies;
- (e) any complications or other circumstances that may be deemed relevant;
- (f) the policies, procedures and practices of other third party insurers;
- (g) the payment rate for prescribed drugs as set forth in 101 CMR 331.00: *Prescribed Drugs*; and
- (h) a copy of the current invoice from the supplier.

Modifiers. Listed services may be modified under certain circumstances. When applicable, the modifying circumstances should be identified by the addition of the appropriate two-digit number or letters to the procedure code.

Primary Care Clinician (PCC) Plan. A managed care option administered by the MassHealth agency through which enrolled members receive primary care and certain other medical services.

Publicly Aided Individual (or Publicly Aided Patient). A person who receives health care and services for which a governmental unit is in whole or in part liable under a statutory program of public assistance.

Separate Procedure. Some of the listed procedures are commonly carried out as an integral part of a total service, and as such do not warrant a separate identification. When, however, such a procedure is performed independently of, and is not immediately related to, other services, it may be listed as a separate procedure in the procedure description. Thus, when a procedure that is ordinarily a component of a larger procedure is performed alone for a specific purpose, it may be considered to be a separate procedure.

Surgical Team Fee. Reimbursement for highly complex surgical procedures requiring the expertise of several physicians (usually of different specialties) and other highly skilled, specially-trained personnel. More than one surgeon may be performing parts of the procedure simultaneously. The unit fee is payable to the director of the surgical team and includes all assistant surgeon fees; there are no separate payments for assisting surgical services. The director of the surgical team is expected to distribute the unit fee to the members of the surgical team.

Unlisted Procedure or Service. A service or procedure that may be provided that is not listed in 101 CMR 316.05. When reporting such a service, the appropriate "Unlisted Procedure" code may be used to indicate the service.

316.03: General Rate Provisions

(1) Rate Determination. Rates of payment for services for which 101 CMR 316.00 applies are the lowest of

- (a) the eligible provider's usual fee to patients other than publicly aided patients;
- (b) the eligible provider's actual charge submitted; or
- (c) the allowable fees in accordance with 101 CMR 316.04 (for anesthesia services), or the schedule of allowable fees set forth in 101 CMR 316.05 (for surgical services), as applicable, and taking into account appropriate modifiers and any other applicable rate provision(s) in accordance with 101 CMR 316.03.

316.03: continued

(2) Supplemental Payment.

(a) Eligibility. An eligible provider who is a physician, certified nurse practitioner, physician assistant, or CRNA is eligible for a supplemental payment for services to publicly aided individuals eligible under Titles XIX and XXI of the Social Security Act if the following conditions are met:

1. the eligible provider is employed by a nonprofit group practice that was established in accordance with St. 1997, c. 163 and is affiliated with a Commonwealth-owned medical school;
2. such nonprofit group practice must have been established on or before January 1, 2000, in order to support the purposes of a teaching hospital affiliated with and appurtenant to a Commonwealth-owned medical school; and
3. the services are provided at a teaching hospital affiliated with and appurtenant to a Commonwealth-owned medical school.

(b) Payment Method. This supplemental payment may not exceed the difference between

1. payments to the eligible provider made pursuant to the rates applicable under 101 CMR 316.03(1), 317.03(1) and 318.03(1); and
2. the federal upper payment limit established by the Centers for Medicare & Medicaid Services.

(3) Rate Variations Based on Practice Site. Payments for certain services provided by individual eligible providers that can be routinely furnished in physicians' offices are reduced when such services are furnished in facility settings. 101 CMR 316.05 establishes facility setting fees applied to services rendered in a facility when a practice site differential is warranted.

(4) Allowable Fee for Certain Eligible Providers. Payment for services provided by eligible providers who are certified nurse practitioners, certified nurse midwives, clinical nurse specialists, psychiatric clinical nurse specialists, and physician assistants as specified in 101 CMR 316.02, is 85% of the fees contained in 101 CMR 316.05.

(5) Global Surgical Package. The payment for a surgical procedure includes a standard package of preoperative, intraoperative, and postoperative services. Reimbursement for these procedures includes payment for services related to the surgery when furnished by the eligible provider who performs the surgery. The services included in the global surgical package may be furnished in any setting, *e.g.*, in hospitals, ASCs, physicians' offices. Included in the global fee is preoperative period of one day for major surgery and the postoperative period of 90 days for major surgery, as determined by the Centers for Medicare & Medicaid Services (CMS). The postoperative period for minor surgery is either zero or ten days depending on the procedure, as determined by CMS. Visits to a patient in an intensive care or critical care unit are also included if made by the surgeon.

(6) Obstetrical Services. Obstetrical fees contained in 101 CMR 316.05 are intended to include only the procedure or procedures performed and care to the publicly aided patient while hospitalized with the exception of global delivery (59400, 59510, 59610, 59618). Outpatient antepartum and postpartum obstetrical care may be billed under the appropriate medical procedure code in accordance with 101 CMR 317.00: *Medicine*. Medical problems complicating labor and delivery management or medical complications of pregnancy may require additional resources or services and should be identified by utilizing the appropriate procedure codes in 101 CMR 317.00: *Medicine* in addition to the procedure codes for maternity care listed in 101 CMR 316.05.

(7) Casts and Appliances. All maximum allowable fees include the initial application of a cast, traction device, or similar appliance.

(8) CPT Category III Codes. All surgery related CPT category III codes are included as a part of 101 CMR 316.00 and have an assigned fee of I.C.

316.03: continued

(9) PCC Plan Enhanced Fee. Primary Care Clinicians (PCCs) receive an enhanced rate for certain types of primary and preventive care visits provided to their PCC Plan members enrolled with the PCC on the date of service. The enhanced fee specified in 114.3 CMR 53.03(1): *PCC Plan Enhanced Fee* is added to the rate for the procedure code billed. The MassHealth agency pays PCCs an enhanced fee for delivering primary care services in accordance with the terms of the PCC provider contract.

(10) Multiple Endoscopy Procedures. When multiple endoscopy procedures are performed through the same endoscope, payment is made for the endoscopy with the highest rate plus the difference between the next highest rate and the base endoscopy. When two related endoscopies and an unrelated endoscopy are performed, the special endoscopic payment rules apply to the related endoscopies. Unrelated endoscopic procedures are treated as a separate surgery and reimbursed using the payment rules for multiple surgery claims.

316.04: Maximum Allowable Fees – Anesthesia Services

(1) Anesthesia Services. Anesthesia services may include, but are not limited to, general, regional, supplementation of local anesthesia, or other supportive services in order to afford the patient the anesthesia care deemed optimal by the anesthesiologist or CRNA during any procedure. These services include the usual preoperative and postoperative visits, the anesthesia care during the procedure, the administration of fluids, and/or blood incident to the anesthesia or surgery, and the usual monitoring procedures. Unusual forms of monitoring (*e.g.*, intra arterial, central venous, and Swan Ganz) are not included.

(2) Rate Determination. The administration of anesthesia is reported by the use of the anesthesia five digit procedure code (00100-01999) listed in 101 CMR 316.05(4)(a) and modifiers applicable to anesthesia services listed in 101 CMR 316.04(7). Payment for anesthesia services is determined by a system of base anesthesia units and time anesthesia units. The total anesthesia reimbursement (the "Total Anesthesia Fee") is the sum of the number of base anesthesia units multiplied by the base anesthesia unit fee, plus the number of time anesthesia units multiplied by the time anesthesia unit fee. Anesthesia time units are measured in minutes and one time anesthesia unit equals one minute. Payable anesthesia time starts when the anesthesiologist or CRNA begins to prepare the patient for the induction of anesthesia in the operating room or in an equivalent area and ends when the anesthesiologist or CRNA is no longer in personal attendance, that is, when the patient may be safely placed under postoperative supervision.

(3) Maximum Unit Fee. The maximum allowable fee for anesthesia services under 101 CMR 316.00 is \$19.90 per base anesthesia unit and \$1.33 per one minute time anesthesia unit.

(4) Multiple Surgery Procedures. When anesthesia is administered for multiple surgery procedures, only the base anesthesia units for the procedure with the largest number of units is used for the base anesthesia unit portion of the Total Anesthesia Fee calculation.

(5) Personally Performed Anesthesia Services. Personally performed anesthesia services are anesthesia procedures that are personally performed alone by either an anesthesiologist or a CRNA. For a CRNA, personally performed anesthesia services are those that a CRNA performs alone without medical direction of an anesthesiologist. Payment for personally performed anesthesia services of an anesthesiologist, or for personally performed anesthesia services of a CRNA for which the governmental unit provides separate payment, may be claimed by appending the appropriate anesthesia modifier to the anesthesia procedure code. Payment for personally performed anesthesia services by an anesthesiologist, or by a CRNA, is 100% of the Total Anesthesia Fee; provided that, if a CRNA is employed by the facility in which the personally performed anesthesia service is provided, governmental units may specify other payment rules for the CRNA's services including, without limitation, specifying that there is no separate payment for the CRNA's services.

316.04: continued

(6) Medical Direction of CRNA Anesthesia Services. Payment for an anesthesiologist's medical direction of a CRNA, or for the services of a CRNA performed with medical direction of an anesthesiologist for which the governmental unit provides separate payment, may be claimed by appending the appropriate anesthesia modifier to the anesthesia procedure code. If an anesthesiologist provides medical direction of a CRNA, payment for the anesthesiologist's services is 50% of the Total Anesthesia Fee. Payment for the CRNA's services performed with medical direction of an anesthesiologist is 50% of the Total Anesthesia Fee; provided that, if a CRNA is employed by the facility in which the anesthesia service is performed, governmental units may specify other payment rules for the CRNA's services including, without limitation, specifying that there is no separate payment for the CRNA's services.

(7) Modifiers. For modifiers and related descriptions applicable to anesthesia services (AA, QK, QY, QX, and QZ), *see* 101 CMR 316.05(3).

316.05: Maximum Allowable Fees – Surgical Services

(1) Surgical and Obstetrical Services. Except as provided elsewhere in this 101 CMR 316.05(1), the allowable fees for surgical and obstetrical services are the fees listed in 101 CMR 316.05(4)(b), subject to 101 CMR 316.03 and appropriate modifiers, as applicable. (Anesthesia procedure codes (00100-01999) and corresponding base anesthesia units for purposes of 101 CMR 316.04 are listed in 101 CMR 316.05(4)(a)). Certain codes in 101 CMR 316.05(4)(b) are identified with an asterisk (*). The allowable fees for these codes are as set forth in 101 CMR 316.05(4)(b), except when any of those codes are billed as part of a facial feminization surgery to treat gender dysphoria, in which case the allowable fees are those set forth in 101 CMR 316.05(4)(c). (Anesthesia procedure codes (00100-01999) and corresponding base anesthesia units for purposes of 101 CMR 316.04 are listed in 101 CMR 316.05(4)(a)).

(2) Unless otherwise specified, guidelines, notes, and definitions provided in the 2020 CPT Coding Handbook are applicable to the use of the procedure codes and modifiers listed below, as well as their corresponding descriptions. For code descriptions, *see* the anesthesia and surgery service code spreadsheets on the EOHHS rates website at: www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia-services.

(3) Modifiers.

(a) 26: Professional Component. The component of a service or procedure representing the physician's or other qualified health care professional's work interpreting or performing the service or procedure. (When the physician or other qualified health care professional component is reported separately, the addition of modifier 26 to the procedure code will allow payment of the professional component allowable fee (PC Fee) contained in 101 CMR 316.05(4)(b), adjusted by 101 CMR 316.03 as applicable.)

(b) 50: Bilateral Procedure. Payment for bilateral procedures performed at the same operative session must be identified by the appropriate service code and modifier 50. Only one claim line is billed for both procedures. (The addition of modifier 50 to the bilateral code will allow payment of 150% of the allowable fee contained in 101 CMR 316.05(4)(b), adjusted by 101 CMR 316.03 as applicable, to the eligible provider for performance of both bilateral procedures.)

(c) 51: Multiple Procedures. This modifier must be used to report multiple procedures performed at the same session. The service code for the major procedure or service must be reported without a modifier. The secondary, additional, or lesser procedure(s) must be identified by adding modifier 51 to the end of the service code for the secondary procedure(s). (The addition of modifier 51 to the second and subsequent procedure codes allows payment of 50% of the allowable fee contained in 101 CMR 316.05(4)(b), adjusted by 101 CMR 316.03 as applicable, to the eligible provider.)

Note: This modifier should not be used with designated "add-on" codes or with codes in which the narrative begins with "each additional."

316.05: continued

- (d) 52: Reduced Services. Under certain circumstances, a service or procedure is partially reduced or eliminated at the physician's or other qualified health care professional's election. Under these circumstances, the service provided can be identified by its usual procedure number and addition of modifier 52, signifying that the service is reduced. This provides a means of reporting reduced services without disturbing the identification of the basic service.
- (e) 54: Surgical Care Only. When one eligible physician or other qualified health care professional performs a surgical procedure and another provides preoperative and/or postoperative management, surgical services may be identified by adding modifier 54 to the appropriate procedure code. (This allows payment of 85% of the allowable fee contained in 101 CMR 316.05(4)(b), adjusted by 101 CMR 316.03 as applicable, to the physician or other qualified health care professional performing the surgery.)
- (f) 55: Postoperative Management Only. When one eligible physician or other qualified health care professional performs the postoperative management and another performed the surgical procedure, the postoperative component may be identified by adding modifier 55 to the appropriate procedure code. (This allows payment of 15% of the allowable fee contained in 101 CMR 316.05(4)(b), adjusted by 101 CMR 316.03 as applicable, to the physician or other qualified health care professional.)
- (g) 58: Staged or Related Procedure or Service by the Same Physician or Other Qualified Health Care Professional during the Postoperative Period. It may be necessary to indicate the performance of a procedure or service during the postoperative period was:
1. planned or anticipated (staged);
 2. more extensive than original procedure; or
 3. for therapy following a surgical procedure. This circumstance may be reported by adding modifier 58 to the staged or related procedure. Note: for treatment of a problem that requires a return to the operating/procedure room (e.g., unanticipated clinical condition), *see* modifier 78.
- (h) 59: Distinct Procedural Service. To identify a procedure distinct or independent from other services performed on the same day add modifier 59 to the end of the appropriate service code. Modifier 59 is used to identify services/procedures that are not normally reported together, but are appropriate under certain circumstances, for example, different site or organ system. However, when another already established modifier is appropriate, it should be used rather than modifier 59.
- (i) 62: Two Surgeons. When two eligible surgeons work together as primary surgeons performing distinct part(s) of a procedure, each surgeon should report his or her distinct operative work by adding modifier 62 to the procedure code and any associated add-on code(s) for that procedure as long as both surgeons continue to work together as primary surgeons. Each surgeon should report the procedure once using the same procedure code. If additional procedure(s) (including add-on procedure(s) are performed during the same surgical session, separate codes(s) may also be reported with modifier 62 added.) (The addition of modifier 62 to the procedure code allows payment of 57.5% of the allowable fee contained in 101 CMR 316.05(4)(b), adjusted by 101 CMR 316.03 as applicable, to each surgeon. No separate payment will be made for assisting surgical services in these cases; it is included in the total surgical fee listed.)
- (j) 66: Surgical Team. This modifier must be used to identify highly complex procedures (requiring the concomitant services of several eligible physicians, often of different specialties, plus other highly skilled, specially trained personnel, and various types of complex equipment) carried out under the "surgical team" concept. The unit fee is payable to the director of the surgical team and includes all assistant surgeon fees; there are no separate payments for assisting surgical services. The director of the surgical team is expected to distribute the unit fee to the eligible members of the surgical team.
- (k) 76: Repeat Procedure by Same Physician or Other Qualified Health Care Professional. The physician or other qualified health care professional may need to indicate that a procedure or service was repeated subsequent to the original procedure or service. This circumstance may be reported by adding modifier 76 to the repeated procedure/service or the separate five-digit modifier code 09976 may be used.

316.05: continued

- (l) 77: Repeat Procedure by Another Physician or Other Qualified Health Care Professional. The physician or other qualified health care professional may need to indicate that a basic procedure or service performed by another physician or other qualified health care professional had to be repeated. This situation may be reported by adding modifier 77 to the repeated procedure/service or the separate five-digit modifier code 09977 may be used.
- (m) 78: Unplanned Return to the Operating/Procedure Room by the Same Physician or Other Qualified Health Care Professional following Initial Procedure for a Related Procedure during the Postoperative Period. The physician or other qualified health care professional may need to indicate that another procedure was performed during that postoperative period of the initial procedure. When this subsequent procedure is related to the first, and requires the use of the operating room, it may be reported by adding modifier 78 to the related procedure, or by using the separate five-digit modifier 09978. (For repeat procedures on the same day, *see* modifier 76.)
- (n) 79: Unrelated Procedure or Service by the Same Physician or Other Qualified Health Care Professional during the Postoperative Period. The physician or other qualified health care professional may need to indicate that the performance of a procedure or service during the postoperative period was unrelated to the original procedure. This circumstance may be reported by using modifier 79 or by using the separate five-digit modifier 09979. (For repeat procedures on the same day, *see* modifier 76.)
- (o) 80: Assistant Surgeon. Surgical assistant services may be identified by adding modifier 80 to the usual procedure code. (This allows payment of 15% of the allowable fee contained in 101 CMR 316.05(4)(b), adjusted by 101 CMR 316.03 as applicable, to the eligible assistant surgeon.)
- (p) 82: Assistant Surgeon (when qualified resident surgeon not available). Surgical assistant services may be identified by adding modifier 82 to the usual procedure code when a qualified resident surgeon is not available. (This allows payment of 15% of the allowable fee contained in 101 CMR 316.05(4)(b), adjusted by 101 CMR 316.03 as applicable, to the eligible assistant surgeon.)
- (q) AA: Anesthesia Services Performed Personally by an Anesthesiologist. This allows payment of 100% of the Total Anesthesia Fee for the anesthesiologist's services.
- (r) AS: Physician Assistant, Nurse Practitioner, or Clinical Nurse Specialist Services for Assistance at Surgery. This allows payment of 15% of the allowable fee contained in 101 CMR 316.05(4)(b), adjusted by 101 CMR 316.03 as applicable, for services of the eligible physician assistant, certified nurse practitioner, or clinical nurse specialist assisting in surgery.
- (s) E1: Upper left, eyelid.
- (t) E2: Lower left, eyelid.
- (u) E3: Upper right, eyelid.
- (v) E4: Lower right, eyelid.
- (w) F1: Left hand, second digit.
- (x) F2: Left hand, third digit.
- (y) F3: Left hand, fourth digit.
- (z) F4: Left hand, fifth digit.
- (aa) F5: Right hand, thumb.
- (bb) F6: Right hand, second digit.
- (cc) F7: Right hand, third digit.
- (dd) F8: Right hand, fourth digit.
- (ee) F9: Right hand, fifth digit.
- (ff) FA: Left hand, thumb.
- (gg) LC: Left circumflex coronary artery.
- (hh) LD: Left anterior descending coronary artery.
- (ii) LT: Left side: Used to identify procedures performed on the left side of the body.
- (jj) PA: Surgical or Other Invasive Procedure Performed on the Wrong Body Part. This modifier is applied to report Provider Preventable Conditions in accordance with 42 CFR 447.26 and results in nonpayment for services.
- (kk) PB: Surgical or Other Invasive Procedure Performed on the Wrong Patient. This modifier is applied to report Provider Preventable Conditions in accordance with 42 CFR 447.26 and results in nonpayment for services.

316.05: continued

- (ll) PC: Wrong Surgical or Other Invasive Procedure Performed on a Patient. This modifier is applied to report Provider Preventable Conditions in accordance with 42 CFR 447.26 and results in nonpayment for services.
- (mm) QK: Medical Direction by a Physician of Two, Three, or Four Concurrent Anesthesia Procedures. Used to indicate physician medical direction of multiple CRNAs. This allows payment of 50% of the Total Anesthesia Fee for the physician's services.
- (nn) QY: Medical Direction of One CRNA by a Physician. Used to indicate physician medical direction of one CRNA. This allows payment of 50% of the Total Anesthesia Fee for the physician's services.
- (oo) QX: CRNA Anesthesia Services with Medical Direction by a Physician. Used to indicate CRNA anesthesia services with medical direction by a physician. This allows payment of 50% of the Total Anesthesia Fee for the CRNA's services. Not for use if CRNA is employed by the facility in which the anesthesia services were performed.
- (pp) QZ: CRNA Anesthesia Services Without Medical Direction by a Physician. This allows payment of 100% of the Total Anesthesia Fee for the CRNA's services. Not for use if CRNA is employed by the facility in which the anesthesia services were performed.
- (qq) RC: Right coronary artery.
- (rr) RT: Right Side: Used to identify procedures performed on the right side of the body.
- (ss) SA: Nurse Practitioner Rendering Service in Collaboration with a Physician. This modifier is to be applied to service codes billed by a physician that were performed by a certified nurse practitioner employed by the physician (the physician employer must be practicing as an individual and not practicing as a professional corporation or as a member of a group practice. A certified nurse practitioner billing under his or her own individual provider number, or a group practice, should not use this modifier.
- (tt) T1: Left foot, second digit.
- (uu) T2: Left foot, third digit.
- (vv) T3: Left foot, fourth digit.
- (ww) T4: Left foot, fifth digit.
- (xx) T5: Right foot, great toe.
- (yy) T6: Right foot, second digit.
- (zz) T7: Right foot, third digit.
- (aaa) T8: Right foot, fourth digit.
- (bbb) T9: Right foot, fifth digit.
- (ccc) TA: Left foot, great toe.
- (ddd) TC: Technical Component. The component of a service or procedure representing the cost of rent, equipment, utilities, supplies, administrative and technical salaries and benefits, and other overhead expenses of the service or procedures, excluding the physician's professional component. (When the technical component is reported separately, the addition of modifier TC to the procedure code will allow payment of the technical component allowable fee (TC Fee) contained in 101 CMR 316.05(4)(b), adjusted by 101 CMR 316.03 as applicable.)
- (eee) E: Separate Encounter. A service that is distinct because it occurred during a separate encounter.
- (fff) XS: Separate Structure. A service that is distinct because it was performed on a separate organ/structure.
- (ggg) XP: Separate Practitioner. A service that is distinct because it was performed by a different practitioner.
- (hhh) XU: Unusual Non-overlapping Service. The use of a service that is distinct because it does not overlap usual components of the main service.

- (4) Procedure Codes; Fee Schedules.
- (a) Anesthesia Services - List of Procedure Codes and Base Anesthesia Units.

Anesthesia Table		
Code	Units	Description (<i>see</i> anesthesia service code spreadsheet at: www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia-services)
00100	5	
00102	6	
00103	5	

316.05: continued

Anesthesia Table		
Code	Units	Description (<i>see</i> anesthesia service code spreadsheet at: www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia-services)
00104	4	
00120	5	
00124	4	
00126	4	
00140	5	
00142	4	
00144	6	
00145	6	
00147	4	
00148	4	
00160	5	
00162	7	
00164	4	
00170	5	
00172	6	
00174	6	
00176	7	
00190	5	
00192	7	
00210	11	
00211	10	
00212	5	
00214	9	
00215	9	
00216	15	
00218	13	
00220	10	
00222	6	
00300	5	
00320	6	
00322	3	
00326	7	
00350	10	
00352	5	
00400	3	
00402	5	
00404	5	
00406	13	
00410	4	
00450	5	
00452	6	
00454	3	
00470	6	
00472	10	
00474	13	
00500	15	
00520	6	
00522	4	
00524	4	
00528	8	
00529	11	
00530	4	
00532	4	
00534	7	
00537	7	
00539	18	

316.05: continued

Anesthesia Table		
Code	Units	Description (<i>see</i> anesthesia service code spreadsheet at: www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia-services)
00540	12	
00541	15	
00542	15	
00546	15	
00548	17	
00550	10	
00560	15	
00561	25	
00562	20	
00563	25	
00566	25	
00567	18	
00580	20	
00600	10	
00604	13	
00620	10	
00622	13	
00625	13	
00626	15	
00630	8	
00632	7	
00634	10	
00635	4	
00640	3	
00670	13	
00700	4	
00702	4	
00730	5	
00731	5	
00732	5	
00750	4	
00752	6	
00754	7	
00756	7	
00770	15	
00790	7	
00792	13	
00794	8	
00796	30	
00797	11	
00800	4	
00802	5	
00811	5	
00812	5	
00813	5	
00820	5	
00830	4	
00832	6	
00834	5	
00836	6	
00840	6	
00842	4	
00844	7	
00846	8	
00848	8	
00851	6	

316.05: continued

Anesthesia Table		
Code	Units	Description (<i>see</i> anesthesia service code spreadsheet at: www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia-services)
00860	6	
00862	7	
00864	8	
00865	7	
00866	10	
00868	10	
00870	5	
00872	7	
00873	5	
00880	15	
00882	10	
00902	5	
00904	7	
00906	4	
00908	6	
00910	3	
00912	5	
00914	5	
00916	5	
00918	5	
00920	3	
00921	3	
00922	6	
00924	4	
00926	4	
00928	6	
00930	4	
00932	4	
00934	6	
00936	8	
00938	4	
00940	3	
00942	4	
00944	6	
00948	4	
00950	5	
00952	4	
01112	5	
01120	6	
01130	3	
01140	15	
01150	10	
01160	4	
01170	8	
01173	12	
01200	4	
01202	4	
01210	6	
01212	10	
01214	8	
01215	10	
01220	4	
01230	6	
01232	5	
01234	8	
01250	4	

316.05: continued

Anesthesia Table		
Code	Units	Description (<i>see</i> anesthesia service code spreadsheet at: www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia-services)
01260	3	
01270	8	
01272	4	
01274	6	
01320	4	
01340	4	
01360	5	
01380	3	
01382	3	
01390	3	
01392	4	
01400	4	
01402	7	
01404	5	
01420	3	
01430	3	
01432	6	
01440	8	
01442	8	
01444	8	
01462	3	
01464	3	
01470	3	
01472	5	
01474	5	
01480	3	
01482	4	
01484	4	
01486	7	
01490	3	
01500	8	
01502	6	
01520	3	
01522	5	
01610	5	
01620	4	
01622	4	
01630	5	
01634	9	
01636	15	
01638	10	
01650	6	
01652	10	
01654	8	
01656	10	
01670	4	
01680	3	
01710	3	
01712	5	
01714	5	
01716	5	
01730	3	
01732	3	
01740	4	
01742	5	
01744	5	

316.05: continued

Anesthesia Table		
Code	Units	Description (<i>see</i> anesthesia service code spreadsheet at: www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia-services)
01756	6	
01758	5	
01760	7	
01770	6	
01772	6	
01780	3	
01782	4	
01810	3	
01820	3	
01829	3	
01830	3	
01832	6	
01840	6	
01842	6	
01844	6	
01850	3	
01852	4	
01860	3	
01916	5	
01920	7	
01922	7	
01924	5	
01925	7	
01926	8	
01930	5	
01931	7	
01932	6	
01933	7	
01935	5	
01936	5	
01951	3	
01952	5	
01953	1	
01958	5	
01960	5	
01961	7	
01962	8	
01963	8	
01964	4	
01965	4	
01966	4	
01967	5	
01968	2	
01969	5	
01990	7	
01991	3	
01992	5	
01995	5	
01996	3	
01999	0	

316.05: continued

- (b) Surgical Services - Fee Schedule.
- 1. NFAC - "Nonfacility". These amounts apply when service is performed in a non-facility setting.
 - 2. FAC - "Facility". These amounts, also known as the Facility Setting Fee, apply when service is performed in a facility setting.
 - 3. Global Fee. These amounts apply when no site of service differential rate is specified.

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
10004	\$40.44	\$33.77	-	-	-	
10005	\$102.20	\$55.83	-	-	-	
10006	\$46.41	\$38.30	-	-	-	
10007	\$239.08	\$72.71	-	-	-	
10008	\$135.39	\$47.57	-	-	-	
10009	\$379.52	\$88.53	-	-	-	
10010	\$227.72	\$64.25	-	-	-	
10011	-	-	I.C.	-	-	
10012	-	-	I.C.	-	-	
10021	\$78.04	\$43.26	-	-	-	
10030	\$500.16	\$107.43	-	-	-	
10035	\$367.39	\$66.54	-	-	-	
10036	\$314.01	\$33.74	-	-	-	
10040	\$87.50	\$41.70	-	-	-	
10060	\$96.12	\$79.60	-	-	-	
10061	\$165.57	\$143.55	-	-	-	
10080	\$169.76	\$81.65	-	-	-	
10081	\$243.39	\$134.99	-	-	-	
10120	\$121.34	\$81.63	-	-	-	
10121	\$216.34	\$145.91	-	-	-	
10140	\$135.70	\$93.96	-	-	-	
10160	\$103.78	\$74.80	-	-	-	
10180	\$203.72	\$140.25	-	-	-	
11000	\$44.92	\$22.02	-	-	-	
11001	\$18.55	\$11.01	-	-	-	
11004	-	-	\$448.00	-	-	
11005	-	-	\$608.93	-	-	
11006	-	-	\$549.89	-	-	
11008	-	-	\$214.07	-	-	
11010	\$379.48	\$217.17	-	-	-	
11011	\$421.24	\$235.45	-	-	-	
11012	\$537.99	\$327.86	-	-	-	
11042	\$100.45	\$47.70	-	-	-	
11043	\$183.93	\$121.03	-	-	-	
11044	\$246.74	\$177.18	-	-	-	
11045	\$32.86	\$20.68	-	-	-	
11046	\$58.06	\$43.57	-	-	-	
11047	\$96.31	\$76.90	-	-	-	
11055	\$50.60	\$12.34	-	-	-	
11056	\$59.41	\$17.97	-	-	-	
11057	\$65.13	\$22.81	-	-	-	
11102	\$80.33	\$30.48	-	-	-	
11103	\$42.61	\$17.68	-	-	-	

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316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
11104	\$101.03	\$38.13	-	-	-	
11105	\$48.52	\$20.70	-	-	-	
11106	\$122.32	\$46.10	-	-	-	
11107	\$57.58	\$24.82	-	-	-	
11200	\$70.62	\$58.45	-	-	-	
11201	\$14.51	\$12.77	-	-	-	
11300	\$80.57	\$26.95	-	-	-	
11301	\$97.38	\$40.86	-	-	-	
11302	\$112.57	\$47.94	-	-	-	
11303	\$123.63	\$56.39	-	-	-	
11305	\$84.34	\$30.43	-	-	-	
11306	\$98.68	\$39.26	-	-	-	
11307	\$115.10	\$50.76	-	-	-	
11308	\$122.53	\$57.03	-	-	-	
11310	\$92.99	\$36.47	-	-	-	
11311	\$109.84	\$49.84	-	-	-	
11312	\$126.94	\$59.12	-	-	-	
11313	\$147.81	\$76.80	-	-	-	
11400	\$100.77	\$64.83	-	-	-	
11401	\$122.26	\$81.97	-	-	-	
11402	\$135.57	\$90.36	-	-	-	
11403	\$155.95	\$116.82	-	-	-	
11404	\$177.00	\$128.30	-	-	-	
11406	\$251.35	\$193.96	-	-	-	
11420	\$101.32	\$64.80	-	-	-	
11421	\$127.16	\$86.30	-	-	-	
11422	\$142.94	\$107.29	-	-	-	
11423	\$162.07	\$122.66	-	-	-	
11424	\$186.72	\$140.35	-	-	-	
11426	\$266.00	\$215.57	-	-	-	
11440	\$111.99	\$82.14	-	-	-	
11441	\$136.83	\$103.50	-	-	-	
11442	\$151.95	\$114.56	-	-	-	
11443	\$179.76	\$140.05	-	-	-	
11444	\$224.57	\$178.20	-	-	-	
11446	\$308.03	\$253.54	-	-	-	
11450	\$327.18	\$202.26	-	-	-	
11451	\$406.44	\$257.75	-	-	-	
11462	\$319.05	\$192.97	-	-	-	
11463	\$413.64	\$260.03	-	-	-	
11470	\$346.34	\$222.58	-	-	-	
11471	\$420.96	\$274.31	-	-	-	
11600	\$157.65	\$95.33	-	-	-	
11601	\$182.76	\$116.68	-	-	-	
11602	\$196.76	\$127.49	-	-	-	
11603	\$223.50	\$152.20	-	-	-	
11604	\$249.19	\$167.75	-	-	-	
11606	\$355.39	\$249.31	-	-	-	
11620	\$158.45	\$96.42	-	-	-	
11621	\$183.56	\$117.48	-	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
11622	\$203.00	\$133.44	-	-	-	
11623	\$237.55	\$165.38	-	-	-	
11624	\$268.59	\$187.44	-	-	-	
11626	\$323.29	\$229.97	-	-	-	
11640	\$162.19	\$99.00	-	-	-	
11641	\$189.96	\$122.43	-	-	-	
11642	\$215.01	\$143.42	-	-	-	
11643	\$252.21	\$179.46	-	-	-	
11644	\$310.67	\$222.56	-	-	-	
11646	\$402.82	\$307.46	-	-	-	
11719	\$11.13	\$5.91	-	-	-	
11720	\$26.03	\$11.25	-	-	-	
11721	\$35.84	\$19.32	-	-	-	
11730	\$88.02	\$42.52	-	-	-	
11732	\$26.47	\$13.42	-	-	-	
11740	\$43.01	\$25.04	-	-	-	
11750	\$124.56	\$79.92	-	-	-	
11755	\$97.10	\$48.12	-	-	-	
11760	\$155.91	\$90.41	-	-	-	
11762	\$235.96	\$150.17	-	-	-	
11765	\$135.72	\$73.12	-	-	-	
11770	\$249.48	\$145.72	-	-	-	
11771	\$480.04	\$348.16	-	-	-	
11772	\$581.90	\$458.14	-	-	-	
11900	\$43.71	\$23.71	-	-	-	
11901	\$54.73	\$37.05	-	-	-	
11920	\$149.27	\$88.40	-	-	-	
11921	\$169.95	\$104.16	-	-	-	
11922	\$47.95	\$23.32	-	-	-	
11950	\$62.85	\$41.12	-	-	-	
11951	\$85.07	\$58.40	-	-	-	
11952	\$114.20	\$82.32	-	-	-	
11954	\$125.60	\$89.37	-	-	-	
11960	-	-	\$777.41	-	-	
11970	-	-	\$484.62	-	-	
11971	\$388.03	\$258.76	-	-	-	
11976	\$114.65	\$73.49	-	-	-	
11980	\$74.68	\$43.38	-	-	-	
11981	\$82.00	\$50.12	-	-	-	
11982	\$92.97	\$59.06	-	-	-	
11983	\$114.19	\$81.15	-	-	-	
12001	\$72.04	\$34.94	-	-	-	
12002	\$87.80	\$46.35	-	-	-	
12004	\$102.20	\$57.56	-	-	-	
12005	\$134.89	\$74.60	-	-	-	
12006	\$159.00	\$91.47	-	-	-	
12007	\$181.16	\$113.04	-	-	-	
12011	\$87.72	\$43.67	-	-	-	
12013	\$91.28	\$45.77	-	-	-	
12014	\$110.73	\$58.56	-	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
12015	\$133.71	\$74.00	-	-	-	
12016	\$169.61	\$100.34	-	-	-	
12017	-	-	\$119.20	-	-	
12018	-	-	\$135.08	-	-	
12020	\$235.26	\$148.89	-	-	-	
12021	\$135.94	\$110.14	-	-	-	
12031	\$201.73	\$120.29	-	-	-	
12032	\$241.56	\$150.85	-	-	-	
12034	\$258.67	\$162.15	-	-	-	
12035	\$308.30	\$189.76	-	-	-	
12036	\$343.48	\$222.04	-	-	-	
12037	\$389.18	\$259.34	-	-	-	
12041	\$202.02	\$115.94	-	-	-	
12042	\$239.27	\$155.22	-	-	-	
12044	\$297.32	\$168.63	-	-	-	
12045	\$324.99	\$212.82	-	-	-	
12046	\$391.97	\$247.92	-	-	-	
12047	\$429.61	\$275.99	-	-	-	
12051	\$217.06	\$133.59	-	-	-	
12052	\$242.80	\$157.88	-	-	-	
12053	\$284.84	\$170.07	-	-	-	
12054	\$299.68	\$173.02	-	-	-	
12055	\$388.84	\$236.39	-	-	-	
12056	\$456.43	\$304.56	-	-	-	
12057	\$483.98	\$336.45	-	-	-	
13100	\$272.78	\$159.45	-	-	-	
13101	\$320.35	\$196.59	-	-	-	
13102	\$95.56	\$57.01	-	-	-	
13120	\$284.25	\$183.97	-	-	-	
13121	\$343.00	\$205.62	-	-	-	
13122	\$104.01	\$65.75	-	-	-	
13131	\$310.91	\$192.95	-	-	-	
13132	\$379.85	\$241.31	-	-	-	
13133	\$137.74	\$100.35	-	-	-	
13151	\$338.62	\$221.52	-	-	-	
13152	\$400.48	\$266.57	-	-	-	
13153	\$150.58	\$109.14	-	-	-	
13160	-	-	\$627.48	-	-	
14000	\$498.23	\$394.18	-	-	-	
14001	\$633.73	\$510.26	-	-	-	
14020	\$551.95	\$443.27	-	-	-	
14021	\$684.41	\$558.62	-	-	-	
14040	\$599.22	\$491.11	-	-	-	
14041	\$732.21	\$601.49	-	-	-	
14060	\$607.39	\$523.34	-	-	-	
14061	\$788.06	\$644.59	-	-	-	
14301*	\$854.99	\$685.43	-	-	-	
14302*	-	-	\$170.93	-	-	
14350	-	-	\$539.44	-	-	
15002	\$279.15	\$175.10	-	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
15003	\$57.60	\$35.57	-	-	-	
15004	\$317.53	\$207.68	-	-	-	
15005	\$96.07	\$71.72	-	-	-	
15040	\$209.79	\$97.63	-	-	-	
15050	\$468.09	\$361.43	-	-	-	
15100	\$687.17	\$563.99	-	-	-	
15101	\$150.71	\$88.11	-	-	-	
15110	\$634.66	\$542.49	-	-	-	
15111	\$90.03	\$81.05	-	-	-	
15115	\$627.48	\$536.18	-	-	-	
15116	\$131.29	\$119.12	-	-	-	
15120	\$673.86	\$546.04	-	-	-	
15121	\$168.68	\$106.37	-	-	-	
15130	\$573.49	\$472.34	-	-	-	
15131	\$77.99	\$71.91	-	-	-	
15135	\$690.63	\$595.85	-	-	-	
15136	\$77.12	\$71.91	-	-	-	
15150	\$555.03	\$501.12	-	-	-	
15151	\$93.45	\$85.92	-	-	-	
15152	\$121.07	\$113.83	-	-	-	
15155	\$635.35	\$580.86	-	-	-	
15156	\$124.80	\$117.55	-	-	-	
15157	\$139.77	\$129.04	-	-	-	
15200	\$664.44	\$529.95	-	-	-	
15201	\$117.36	\$61.13	-	-	-	
15220	\$612.19	\$481.76	-	-	-	
15221	\$108.10	\$55.06	-	-	-	
15240	\$737.33	\$627.48	-	-	-	
15241	\$144.31	\$85.47	-	-	-	
15260	\$791.82	\$666.61	-	-	-	
15261	\$166.78	\$107.95	-	-	-	
15271	\$119.62	\$66.29	-	-	-	
15272	\$20.66	\$13.70	-	-	-	
15273	\$247.39	\$157.25	-	-	-	
15274	\$62.82	\$35.57	-	-	-	
15275	\$124.50	\$74.36	-	-	-	
15276	\$26.82	\$20.15	-	-	-	
15277	\$270.77	\$178.31	-	-	-	
15278	\$73.98	\$45.00	-	-	-	
15570	\$726.49	\$580.13	-	-	-	
15572	\$700.82	\$584.01	-	-	-	
15574	\$712.89	\$593.18	-	-	-	
15576	\$631.19	\$520.47	-	-	-	
15600	\$267.96	\$166.23	-	-	-	
15610	\$290.07	\$191.53	-	-	-	
15620	\$353.46	\$256.66	-	-	-	
15630	\$366.12	\$270.76	-	-	-	
15650	\$405.55	\$301.50	-	-	-	
15730	\$1,203.76	\$723.50	-	-	-	
15731	\$885.40	\$786.27	-	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
15733	-	-	\$819.03	-	-	
15734	-	-	\$1,186.26	-	-	
15736	-	-	\$966.94	-	-	
15738	-	-	\$1,022.23	-	-	
15740	\$793.14	\$658.66	-	-	-	
15750	-	-	\$723.58	-	-	
15756	-	-	\$1,796.91	-	-	
15757	-	-	\$1,785.48	-	-	
15758	-	-	\$1,798.00	-	-	
15760	\$669.59	\$551.92	-	-	-	
15769	-	-	\$380.17	-	-	
15770	-	-	\$524.32	-	-	
15771	\$457.97	\$377.10	-	-	-	
15772	\$143.22	\$109.89	-	-	-	
15773	\$462.07	\$381.21	-	-	-	
15774	\$138.94	\$105.60	-	-	-	
15775	\$294.51	\$202.92	-	-	-	
15776	\$403.51	\$278.31	-	-	-	
15777	-	-	\$169.30	-	-	
15780	\$705.39	\$535.55	-	-	-	
15781	\$438.28	\$340.90	-	-	-	
15782	\$432.10	\$313.27	-	-	-	
15783	\$369.86	\$284.65	-	-	-	
15786	\$193.06	\$105.53	-	-	-	
15787	\$32.43	\$13.59	-	-	-	
15788	\$348.99	\$183.49	-	-	-	
15789	\$430.74	\$322.63	-	-	-	
15792	\$312.84	\$185.89	-	-	-	
15793	\$382.91	\$279.15	-	-	-	
15819	-	-	\$630.84	-	-	
15820	\$452.89	\$403.04	-	-	-	
15821	\$485.30	\$430.53	-	-	-	
15822	\$360.54	\$311.55	-	-	-	
15823	\$486.18	\$431.11	-	-	-	
15824	-	-	I.C.	-	-	
15825	-	-	I.C.	-	-	
15826	-	-	I.C.	-	-	
15828	-	-	I.C.	-	-	
15829	-	-	I.C.	-	-	
15830	-	-	\$928.20	-	-	
15832	-	-	\$727.86	-	-	
15833	-	-	\$692.66	-	-	
15834	-	-	\$706.17	-	-	
15835	-	-	\$739.76	-	-	
15836	-	-	\$592.73	-	-	
15837	\$690.67	\$569.81	-	-	-	
15838	-	-	\$510.32	-	-	
15839	\$702.99	\$581.26	-	-	-	
15840	-	-	\$791.91	-	-	
15841	-	-	\$1,410.31	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
15842	-	-	\$2,143.36	-	-	
15845	-	-	\$797.24	-	-	
15847	-	-	I.C.	-	-	
15850	\$72.30	\$30.86	-	-	-	
15851	\$82.40	\$35.45	-	-	-	
15852	-	-	\$36.14	-	-	
15860	-	-	\$84.35	-	-	
15876	-	-	I.C.	-	-	
15877	-	-	I.C.	-	-	
15878	-	-	I.C.	-	-	
15879	-	-	I.C.	-	-	
15920	-	-	\$494.68	-	-	
15922	-	-	\$627.13	-	-	
15931	-	-	\$549.93	-	-	
15933	-	-	\$683.08	-	-	
15934	-	-	\$745.46	-	-	
15935	-	-	\$911.55	-	-	
15936	-	-	\$709.91	-	-	
15937	-	-	\$822.89	-	-	
15940	-	-	\$553.29	-	-	
15941	-	-	\$724.70	-	-	
15944	-	-	\$720.26	-	-	
15945	-	-	\$804.55	-	-	
15946	-	-	\$1,284.96	-	-	
15950	-	-	\$483.06	-	-	
15951	-	-	\$707.34	-	-	
15952	-	-	\$722.55	-	-	
15953	-	-	\$795.36	-	-	
15956	-	-	\$921.91	-	-	
15958	-	-	\$932.65	-	-	
15999	-	-	I.C.	-	-	
16000	\$57.85	\$35.82	-	-	-	
16020	\$65.87	\$42.98	-	-	-	
16025	\$121.70	\$86.63	-	-	-	
16030	\$153.79	\$104.52	-	-	-	
16035	-	-	\$153.79	-	-	
16036	-	-	\$63.75	-	-	
17000	\$51.85	\$42.58	-	-	-	
17003	\$4.83	\$1.64	-	-	-	
17004	\$125.94	\$76.96	-	-	-	
17106	\$270.86	\$216.37	-	-	-	
17107	\$354.49	\$280.30	-	-	-	
17108	\$503.49	\$412.78	-	-	-	
17110	\$89.80	\$53.28	-	-	-	
17111	\$105.03	\$65.03	-	-	-	
17250	\$68.51	\$29.38	-	-	-	
17260	\$76.65	\$55.20	-	-	-	
17261	\$116.21	\$68.68	-	-	-	
17262	\$140.53	\$87.78	-	-	-	
17263	\$152.63	\$97.56	-	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
17264	\$163.52	\$104.11	-	-	-	
17266	\$186.08	\$122.61	-	-	-	
17270	\$118.36	\$75.47	-	-	-	
17271	\$130.41	\$83.16	-	-	-	
17272	\$148.91	\$96.74	-	-	-	
17273	\$165.48	\$109.54	-	-	-	
17274	\$194.36	\$133.79	-	-	-	
17276	\$224.52	\$160.47	-	-	-	
17280	\$110.70	\$68.39	-	-	-	
17281	\$141.59	\$93.77	-	-	-	
17282	\$162.61	\$108.99	-	-	-	
17283	\$193.32	\$136.23	-	-	-	
17284	\$219.72	\$158.85	-	-	-	
17286	\$281.93	\$214.69	-	-	-	
17311	\$528.26	\$283.93	-	-	-	
17312	\$318.01	\$151.36	-	-	-	
17313	\$495.85	\$254.71	-	-	-	
17314	\$304.25	\$140.20	-	-	-	
17315	\$61.80	\$40.06	-	-	-	
17340	\$41.18	\$38.57	-	-	-	
17360	\$97.85	\$73.22	-	-	-	
17380	-	-	I.C.	-	-	
17999	-	-	I.C.	-	-	
19000	\$87.58	\$33.96	-	-	-	
19001	\$21.35	\$17.00	-	-	-	
19020	\$379.16	\$245.54	-	-	-	
19030	\$134.53	\$60.05	-	-	-	
19081	\$493.05	\$130.18	-	-	-	
19082	\$400.42	\$65.37	-	-	-	
19083	\$488.30	\$123.11	-	-	-	
19084	\$389.78	\$60.82	-	-	-	
19085	\$748.50	\$142.74	-	-	-	
19086	\$598.09	\$71.17	-	-	-	
19100	\$123.06	\$54.66	-	-	-	
19101	\$267.55	\$175.68	-	-	-	
19105	\$2,237.21	\$164.89	-	-	-	
19110	\$390.42	\$274.49	-	-	-	
19112	\$369.12	\$250.87	-	-	-	
19120	\$400.04	\$327.00	-	-	-	
19125	\$441.50	\$362.66	-	-	-	
19126	-	-	\$125.38	-	-	
19281	\$196.38	\$78.42	-	-	-	
19282	\$139.74	\$39.46	-	-	-	
19283	\$218.57	\$79.15	-	-	-	
19284	\$168.01	\$40.19	-	-	-	
19285	\$371.31	\$67.27	-	-	-	
19286	\$318.65	\$34.03	-	-	-	
19287	\$633.28	\$100.57	-	-	-	
19288	\$505.89	\$50.56	-	-	-	
19294	-	-	\$128.80	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
19296	\$3,298.09	\$164.39	-	-	-	
19297	-	-	\$74.17	-	-	
19298	\$807.48	\$249.55	-	-	-	
19300	\$440.45	\$333.79	-	-	-	
19301	-	-	\$516.64	-	-	
19302	-	-	\$709.87	-	-	
19303	-	-	\$753.93	-	-	
19305	-	-	\$896.19	-	-	
19306	-	-	\$952.67	-	-	
19307	-	-	\$949.38	-	-	
19316	-	-	\$611.80	-	-	
19318	-	-	\$867.06	-	-	
19325	-	-	\$513.63	-	-	
19328	-	-	\$397.00	-	-	
19330	-	-	\$502.73	-	-	
19340	-	-	\$782.32	-	-	
19342	-	-	\$735.16	-	-	
19350	\$660.76	\$533.52	-	-	-	
19355	\$603.00	\$490.83	-	-	-	
19357	-	-	\$1,196.89	-	-	
19361	-	-	\$1,241.48	-	-	
19364	-	-	\$2,171.93	-	-	
19367	-	-	\$1,405.25	-	-	
19368	-	-	\$1,731.55	-	-	
19369	-	-	\$1,608.55	-	-	
19370	-	-	\$547.20	-	-	
19371	-	-	\$625.07	-	-	
19380	-	-	\$617.36	-	-	
19396	\$230.58	\$114.06	-	-	-	
19499	-	-	I.C.	-	-	
20100	-	-	\$471.57	-	-	
20101	\$385.87	\$165.31	-	-	-	
20102	\$413.39	\$201.52	-	-	-	
20103	\$462.82	\$272.69	-	-	-	
20150	-	-	\$792.83	-	-	
20200	\$170.77	\$73.96	-	-	-	
20205	\$237.01	\$120.21	-	-	-	
20206	\$193.09	\$45.57	-	-	-	
20220	\$199.41	\$69.27	-	-	-	
20225	\$338.43	\$103.09	-	-	-	
20240	-	-	\$114.17	-	-	
20245	-	-	\$272.76	-	-	
20250	-	-	\$310.69	-	-	
20251	-	-	\$337.07	-	-	
20500	\$90.47	\$68.44	-	-	-	
20501	\$111.10	\$29.66	-	-	-	
20520	\$168.84	\$116.38	-	-	-	
20525	\$382.69	\$194.59	-	-	-	
20526	\$62.18	\$44.79	-	-	-	
20527	\$67.16	\$51.80	-	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
20550	\$42.97	\$30.50	-	-	-	
20551	\$44.13	\$31.08	-	-	-	
20552	\$44.06	\$30.15	-	-	-	
20553	\$50.50	\$33.98	-	-	-	
20555	-	-	\$257.01	-	-	
20560	\$20.53	\$12.70	-	-	-	
20561	\$30.48	\$19.17	-	-	-	
20600	\$39.71	\$28.12	-	-	-	
20604	\$60.30	\$35.67	-	-	-	
20605	\$41.11	\$29.23	-	-	-	
20606	\$66.61	\$41.10	-	-	-	
20610	\$48.82	\$35.78	-	-	-	
20611	\$74.39	\$46.85	-	-	-	
20612	\$48.89	\$32.37	-	-	-	
20615	\$198.80	\$126.34	-	-	-	
20650	\$169.18	\$124.54	-	-	-	
20660	-	-	\$187.88	-	-	
20661	-	-	\$397.88	-	-	
20662	-	-	\$407.61	-	-	
20663	-	-	\$375.23	-	-	
20664	-	-	\$683.98	-	-	
20665	\$88.71	\$73.93	-	-	-	
20670	\$299.54	\$115.49	-	-	-	
20680	\$490.68	\$332.43	-	-	-	
20690	-	-	\$470.10	-	-	
20692	-	-	\$883.02	-	-	
20693	-	-	\$350.58	-	-	
20694	\$341.07	\$267.74	-	-	-	
20696	-	-	\$937.69	-	-	
20697	-	-	\$1,675.40	-	-	
20700	-	-	\$65.82	-	-	
20701	-	-	\$49.12	-	-	
20702	-	-	\$109.46	-	-	
20703	-	-	\$78.52	-	-	
20704	-	-	\$114.05	-	-	
20705	-	-	\$93.87	-	-	
20802	-	-	\$2,162.60	-	-	
20805	-	-	\$2,572.51	-	-	
20808	-	-	\$3,107.52	-	-	
20816	-	-	\$1,619.80	-	-	
20822	-	-	\$1,395.80	-	-	
20824	-	-	\$1,622.70	-	-	
20827	-	-	\$1,433.65	-	-	
20838	-	-	\$2,193.57	-	-	
20900	\$327.70	\$144.82	-	-	-	
20902	-	-	\$221.38	-	-	
20910	-	-	\$372.78	-	-	
20912*	-	-	\$374.66	-	-	
20920	-	-	\$308.24	-	-	
20922	\$471.22	\$381.95	-	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
20924	-	-	\$401.26	-	-	
20930	-	-	I.C.	-	-	
20931	-	-	\$86.45	-	-	
20932	-	-	\$556.83	-	-	
20933	-	-	\$511.73	-	-	
20934	-	-	\$556.57	-	-	
20936	-	-	I.C.	-	-	
20937	-	-	\$130.56	-	-	
20938	-	-	\$143.39	-	-	
20939	-	-	\$54.59	-	-	
20950	\$211.22	\$70.07	-	-	-	
20955	-	-	\$1,931.64	-	-	
20956	-	-	\$2,079.91	-	-	
20957	-	-	\$2,164.94	-	-	
20962	-	-	\$2,097.43	-	-	
20969	-	-	\$2,137.59	-	-	
20970	-	-	\$2,246.61	-	-	
20972	-	-	\$2,240.54	-	-	
20973	-	-	\$2,365.86	-	-	
20974	\$63.30	\$39.83	-	-	-	
20975	-	-	\$139.13	-	-	
20979	\$42.42	\$25.03	-	-	-	
20982	\$3,141.75	\$285.13	-	-	-	
20983	\$4,692.99	\$270.39	-	-	-	
20985	-	-	\$114.54	-	-	
20999	-	-	I.C.	-	-	
21010	-	-	\$591.15	-	-	
21011	\$290.34	\$204.26	-	-	-	
21012	-	-	\$266.87	-	-	
21013	\$422.60	\$317.10	-	-	-	
21014	-	-	\$411.43	-	-	
21015	-	-	\$555.93	-	-	
21016	-	-	\$793.40	-	-	
21025	\$656.55	\$548.44	-	-	-	
21026	\$449.63	\$359.78	-	-	-	
21029	\$608.00	\$493.52	-	-	-	
21030	\$393.67	\$308.17	-	-	-	
21031	\$312.84	\$223.28	-	-	-	
21032	\$313.23	\$218.75	-	-	-	
21034	\$1,025.79	\$892.18	-	-	-	
21040	\$396.86	\$309.04	-	-	-	
21044	-	-	\$679.45	-	-	
21045	-	-	\$949.33	-	-	
21046	-	-	\$830.79	-	-	
21047	-	-	\$1,005.86	-	-	
21048	-	-	\$841.71	-	-	
21049	-	-	\$946.10	-	-	
21050	-	-	\$696.93	-	-	
21060	-	-	\$632.48	-	-	
21070	-	-	\$496.57	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
21073	\$306.50	\$198.39	-	-	-	
21076	\$712.16	\$586.09	-	-	-	
21077	\$1,760.09	\$1,453.16	-	-	-	
21079	\$1,200.01	\$976.83	-	-	-	
21080	\$1,373.23	\$1,101.94	-	-	-	
21081	\$1,262.13	\$1,007.65	-	-	-	
21082	\$1,170.00	\$927.41	-	-	-	
21083	\$1,116.81	\$861.18	-	-	-	
21084	\$1,277.27	\$996.13	-	-	-	
21085	\$555.80	\$400.73	-	-	-	
21086	\$1,310.38	\$1,071.84	-	-	-	
21087	\$1,310.38	\$1,071.84	-	-	-	
21088	-	-	I.C.	-	-	
21089	-	-	I.C.	-	-	
21100	\$535.49	\$294.92	-	-	-	
21110	\$666.63	\$553.01	-	-	-	
21116	\$160.49	\$36.44	-	-	-	
21120*	\$540.53	\$418.51	-	-	-	
21121	\$541.38	\$453.85	-	-	-	
21122	-	-	\$613.46	-	-	
21123*	-	-	\$696.70	-	-	
21125	\$2,313.86	\$545.57	-	-	-	
21127	\$3,302.18	\$627.87	-	-	-	
21137*	-	-	\$597.13	-	-	
21138	-	-	\$728.26	-	-	
21139*	-	-	\$881.01	-	-	
21141	-	-	\$1,058.54	-	-	
21142	-	-	\$1,087.45	-	-	
21143	-	-	\$1,129.59	-	-	
21145	-	-	\$1,233.54	-	-	
21146	-	-	\$1,287.61	-	-	
21147	-	-	\$1,356.33	-	-	
21150	-	-	\$1,291.22	-	-	
21151	-	-	\$1,420.36	-	-	
21154	-	-	\$1,528.11	-	-	
21155	-	-	\$1,694.57	-	-	
21159	-	-	\$2,029.36	-	-	
21160	-	-	\$2,200.45	-	-	
21172	-	-	\$1,630.31	-	-	
21175	-	-	\$1,757.20	-	-	
21179	-	-	\$1,207.51	-	-	
21180	-	-	\$1,349.85	-	-	
21181	-	-	\$588.34	-	-	
21182	-	-	\$1,682.16	-	-	
21183	-	-	\$1,831.34	-	-	
21184	-	-	\$1,970.60	-	-	
21188	-	-	\$1,283.23	-	-	
21193	-	-	\$982.78	-	-	
21194	-	-	\$1,132.69	-	-	
21195	-	-	\$1,090.99	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
21196	-	-	\$1,124.58	-	-	
21198	-	-	\$876.01	-	-	
21199	-	-	\$817.96	-	-	
21206	-	-	\$909.41	-	-	
21208*	\$1,379.58	\$597.31	-	-	-	
21209*	\$643.08	\$482.80	-	-	-	
21210*	\$1,604.90	\$614.82	-	-	-	
21215	\$3,365.01	\$638.53	-	-	-	
21230	-	-	\$584.67	-	-	
21235	\$577.22	\$444.47	-	-	-	
21240	-	-	\$847.92	-	-	
21242	-	-	\$804.50	-	-	
21243	-	-	\$1,293.14	-	-	
21244	-	-	\$808.78	-	-	
21245	\$964.54	\$739.34	-	-	-	
21246	-	-	\$678.23	-	-	
21247	-	-	\$1,261.24	-	-	
21248	\$814.29	\$649.38	-	-	-	
21249	\$1,110.57	\$915.51	-	-	-	
21255	-	-	\$1,085.82	-	-	
21256	-	-	\$985.49	-	-	
21260	-	-	\$1,104.18	-	-	
21261	-	-	\$1,950.74	-	-	
21263	-	-	\$1,805.49	-	-	
21267	-	-	\$1,291.82	-	-	
21268	-	-	\$1,617.17	-	-	
21270	\$810.87	\$596.10	-	-	-	
21275	-	-	\$669.04	-	-	
21280	-	-	\$455.96	-	-	
21282	-	-	\$308.64	-	-	
21295	-	-	\$150.34	-	-	
21296*	-	-	\$321.88	-	-	
21299	-	-	I.C.	-	-	
21310	\$102.13	\$21.27	-	-	-	
21315	\$220.32	\$119.16	-	-	-	
21320	\$203.72	\$104.88	-	-	-	
21325	-	-	\$348.06	-	-	
21330	-	-	\$445.89	-	-	
21335	-	-	\$562.03	-	-	
21336	-	-	\$506.55	-	-	
21337	\$328.57	\$233.22	-	-	-	
21338	-	-	\$522.09	-	-	
21339	-	-	\$591.25	-	-	
21340	-	-	\$582.93	-	-	
21343	-	-	\$845.80	-	-	
21344	-	-	\$1,083.52	-	-	
21345	\$620.48	\$492.66	-	-	-	
21346	-	-	\$758.96	-	-	
21347	-	-	\$800.99	-	-	
21348	-	-	\$846.77	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
21355	\$341.71	\$252.44	-	-	-	
21356	\$397.89	\$297.03	-	-	-	
21360	-	-	\$402.29	-	-	
21365	-	-	\$865.27	-	-	
21366	-	-	\$1,012.89	-	-	
21385	-	-	\$594.39	-	-	
21386	-	-	\$513.50	-	-	
21387	-	-	\$620.15	-	-	
21390	-	-	\$631.82	-	-	
21395	-	-	\$802.32	-	-	
21400	\$162.33	\$128.13	-	-	-	
21401	\$416.50	\$257.67	-	-	-	
21406	-	-	\$461.10	-	-	
21407	-	-	\$508.24	-	-	
21408	-	-	\$716.97	-	-	
21421	\$538.54	\$451.58	-	-	-	
21422	-	-	\$508.22	-	-	
21423	-	-	\$605.26	-	-	
21431	-	-	\$555.03	-	-	
21432	-	-	\$573.01	-	-	
21433	-	-	\$1,378.53	-	-	
21435	-	-	\$1,115.86	-	-	
21436	-	-	\$1,617.98	-	-	
21440	\$509.65	\$408.79	-	-	-	
21445	\$625.36	\$501.89	-	-	-	
21450	\$465.94	\$377.83	-	-	-	
21451	\$608.56	\$506.83	-	-	-	
21452	\$576.22	\$342.61	-	-	-	
21453	\$812.16	\$690.72	-	-	-	
21454	-	-	\$403.74	-	-	
21461	\$1,637.33	\$807.82	-	-	-	
21462	\$1,748.35	\$891.59	-	-	-	
21465	-	-	\$661.24	-	-	
21470	-	-	\$928.24	-	-	
21480	\$94.81	\$24.67	-	-	-	
21485	\$716.98	\$583.66	-	-	-	
21490	-	-	\$652.14	-	-	
21497	\$554.88	\$462.13	-	-	-	
21499	-	-	I.C.	-	-	
21501	\$375.96	\$258.29	-	-	-	
21502	-	-	\$397.25	-	-	
21510	-	-	\$352.84	-	-	
21550	\$210.93	\$123.11	-	-	-	
21552	-	-	\$351.21	-	-	
21554	-	-	\$574.63	-	-	
21555	\$342.34	\$241.48	-	-	-	
21556	-	-	\$415.92	-	-	
21557	-	-	\$749.83	-	-	
21558	-	-	\$1,053.56	-	-	
21600	-	-	\$437.09	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
21601	-	-	\$928.00	-	-	
21602	-	-	\$1,251.10	-	-	
21603	-	-	\$1,381.91	-	-	
21610	-	-	\$934.48	-	-	
21615	-	-	\$481.18	-	-	
21616	-	-	\$555.29	-	-	
21620	-	-	\$398.31	-	-	
21627	-	-	\$425.89	-	-	
21630	-	-	\$953.20	-	-	
21632	-	-	\$944.41	-	-	
21685	-	-	\$769.89	-	-	
21700	-	-	\$277.97	-	-	
21705	-	-	\$415.36	-	-	
21720	-	-	\$410.91	-	-	
21725	-	-	\$428.09	-	-	
21740	-	-	\$801.66	-	-	
21742	-	-	I.C.	-	-	
21743	-	-	I.C.	-	-	
21750	-	-	\$530.28	-	-	
21811	-	-	\$462.50	-	-	
21812	-	-	\$564.62	-	-	
21813	-	-	\$770.74	-	-	
21820	\$116.59	\$115.72	-	-	-	
21825	-	-	\$426.45	-	-	
21899	-	-	I.C.	-	-	
21920	\$205.72	\$123.98	-	-	-	
21925	\$373.26	\$286.31	-	-	-	
21930	\$392.27	\$287.06	-	-	-	
21931	-	-	\$370.78	-	-	
21932	-	-	\$522.01	-	-	
21933	-	-	\$581.11	-	-	
21935	-	-	\$807.80	-	-	
21936	-	-	\$1,110.32	-	-	
22010	-	-	\$755.97	-	-	
22015	-	-	\$744.71	-	-	
22100	-	-	\$674.73	-	-	
22101	-	-	\$686.83	-	-	
22102	-	-	\$646.71	-	-	
22103	-	-	\$109.91	-	-	
22110	-	-	\$819.49	-	-	
22112	-	-	\$878.12	-	-	
22114	-	-	\$878.12	-	-	
22116	-	-	\$109.58	-	-	
22206	-	-	\$1,919.19	-	-	
22207	-	-	\$1,879.39	-	-	
22208	-	-	\$459.92	-	-	
22210	-	-	\$1,404.16	-	-	
22212	-	-	\$1,177.02	-	-	
22214	-	-	\$1,181.37	-	-	
22216	-	-	\$284.00	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
22220	-	-	\$1,285.06	-	-	
22222	-	-	\$1,361.59	-	-	
22224	-	-	\$1,254.06	-	-	
22226	-	-	\$283.91	-	-	
22310	\$240.39	\$231.12	-	-	-	
22315	\$698.44	\$608.30	-	-	-	
22318	-	-	\$1,279.79	-	-	
22319	-	-	\$1,421.62	-	-	
22325	-	-	\$1,141.58	-	-	
22326	-	-	\$1,173.96	-	-	
22327	-	-	\$1,188.04	-	-	
22328	-	-	\$219.32	-	-	
22505	-	-	\$102.72	-	-	
22510	\$1,480.79	\$338.84	-	-	-	
22511	\$1,467.93	\$317.86	-	-	-	
22512	\$696.39	\$160.49	-	-	-	
22513	\$5,454.33	\$401.91	-	-	-	
22514	\$5,432.92	\$375.00	-	-	-	
22515	\$3,046.68	\$172.09	-	-	-	
22526	\$1,822.23	\$257.12	-	-	-	
22527	\$1,531.62	\$120.12	-	-	-	
22532	-	-	\$1,411.02	-	-	
22533	-	-	\$1,304.85	-	-	
22534	-	-	\$281.78	-	-	
22548	-	-	\$1,525.74	-	-	
22551	-	-	\$1,335.28	-	-	
22552	-	-	\$309.96	-	-	
22554	-	-	\$985.86	-	-	
22556	-	-	\$1,304.98	-	-	
22558	-	-	\$1,201.97	-	-	
22585	-	-	\$255.45	-	-	
22586	-	-	\$1,579.34	-	-	
22590	-	-	\$1,236.44	-	-	
22595	-	-	\$1,179.53	-	-	
22600	-	-	\$1,013.45	-	-	
22610	-	-	\$996.97	-	-	
22612	-	-	\$1,247.19	-	-	
22614	-	-	\$305.66	-	-	
22630	-	-	\$1,235.01	-	-	
22632	-	-	\$250.94	-	-	
22633	-	-	\$1,451.78	-	-	
22634	-	-	\$387.02	-	-	
22800	-	-	\$1,070.43	-	-	
22802	-	-	\$1,654.53	-	-	
22804	-	-	\$1,904.49	-	-	
22808	-	-	\$1,439.51	-	-	
22810	-	-	\$1,608.48	-	-	
22812	-	-	\$1,737.58	-	-	
22818	-	-	\$1,701.11	-	-	
22819	-	-	\$1,957.23	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
22830	-	-	\$644.07	-	-	
22840	-	-	\$593.21	-	-	
22841	-	-	I.C.	-	-	
22842	-	-	\$595.78	-	-	
22843	-	-	\$636.77	-	-	
22844	-	-	\$770.70	-	-	
22845	-	-	\$568.21	-	-	
22846	-	-	\$590.75	-	-	
22847	-	-	\$632.89	-	-	
22848	-	-	\$281.71	-	-	
22849	-	-	\$1,023.38	-	-	
22850	-	-	\$574.88	-	-	
22852	-	-	\$552.37	-	-	
22853	-	-	\$201.93	-	-	
22854	-	-	\$261.53	-	-	
22855	-	-	\$871.17	-	-	
22856	-	-	\$1,281.99	-	-	
22857	-	-	\$1,395.94	-	-	
22858	-	-	\$399.11	-	-	
22859	-	-	\$261.53	-	-	
22861	-	-	\$1,803.91	-	-	
22862	-	-	\$1,801.36	-	-	
22864	-	-	\$1,610.13	-	-	
22865	-	-	\$1,758.06	-	-	
22867	-	-	\$769.01	-	-	
22868	-	-	\$190.06	-	-	
22869	-	-	\$351.62	-	-	
22870	-	-	\$97.09	-	-	
22899	-	-	I.C.	-	-	
22900	-	-	\$443.62	-	-	
22901	-	-	\$525.50	-	-	
22902	\$366.60	\$261.97	-	-	-	
22903	-	-	\$346.35	-	-	
22904	-	-	\$827.38	-	-	
22905	-	-	\$1,043.82	-	-	
22999	-	-	I.C.	-	-	
23000	\$463.11	\$290.36	-	-	-	
23020	-	-	\$546.16	-	-	
23030	\$349.19	\$196.74	-	-	-	
23031	\$325.79	\$165.22	-	-	-	
23035	-	-	\$538.63	-	-	
23040	-	-	\$567.79	-	-	
23044	-	-	\$447.81	-	-	
23065	\$177.87	\$129.47	-	-	-	
23066	\$456.55	\$286.99	-	-	-	
23071	-	-	\$331.69	-	-	
23073	-	-	\$548.49	-	-	
23075	\$402.77	\$259.30	-	-	-	
23076	-	-	\$427.78	-	-	
23077	-	-	\$887.95	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
23078	-	-	\$1,128.99	-	-	
23100	-	-	\$399.45	-	-	
23101	-	-	\$362.24	-	-	
23105	-	-	\$503.63	-	-	
23106	-	-	\$396.23	-	-	
23107	-	-	\$522.11	-	-	
23120	-	-	\$464.07	-	-	
23125	-	-	\$561.30	-	-	
23130	-	-	\$486.50	-	-	
23140	-	-	\$438.69	-	-	
23145	-	-	\$550.23	-	-	
23146	-	-	\$492.87	-	-	
23150	-	-	\$527.78	-	-	
23155	-	-	\$629.35	-	-	
23156	-	-	\$536.72	-	-	
23170	-	-	\$445.43	-	-	
23172	-	-	\$450.02	-	-	
23174	-	-	\$602.00	-	-	
23180	-	-	\$525.78	-	-	
23182	-	-	\$522.26	-	-	
23184	-	-	\$584.00	-	-	
23190	-	-	\$454.42	-	-	
23195	-	-	\$591.10	-	-	
23200	-	-	\$1,189.08	-	-	
23210	-	-	\$1,395.45	-	-	
23220	-	-	\$1,533.29	-	-	
23330	\$233.89	\$132.16	-	-	-	
23333	-	-	\$367.32	-	-	
23334	-	-	\$841.96	-	-	
23335	-	-	\$1,002.13	-	-	
23350	\$123.22	\$39.74	-	-	-	
23395	-	-	\$1,013.00	-	-	
23397	-	-	\$900.23	-	-	
23400	-	-	\$767.45	-	-	
23405	-	-	\$490.27	-	-	
23406	-	-	\$607.52	-	-	
23410	-	-	\$648.40	-	-	
23412	-	-	\$673.73	-	-	
23415	-	-	\$552.03	-	-	
23420	-	-	\$768.28	-	-	
23430	-	-	\$589.14	-	-	
23440	-	-	\$597.30	-	-	
23450	-	-	\$747.91	-	-	
23455	-	-	\$783.90	-	-	
23460	-	-	\$859.53	-	-	
23462	-	-	\$843.01	-	-	
23465	-	-	\$882.41	-	-	
23466	-	-	\$876.31	-	-	
23470	-	-	\$946.92	-	-	
23472	-	-	\$1,143.32	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
23473	-	-	\$1,274.32	-	-	
23474	-	-	\$1,376.26	-	-	
23480	-	-	\$648.25	-	-	
23485	-	-	\$754.78	-	-	
23490	-	-	\$680.39	-	-	
23491	-	-	\$801.64	-	-	
23500	\$175.81	\$179.58	-	-	-	
23505	\$284.54	\$265.70	-	-	-	
23515	-	-	\$569.72	-	-	
23520	\$189.39	\$188.52	-	-	-	
23525	\$312.17	\$286.38	-	-	-	
23530	-	-	\$454.68	-	-	
23532	-	-	\$495.09	-	-	
23540	\$185.45	\$184.58	-	-	-	
23545	\$274.29	\$247.05	-	-	-	
23550	-	-	\$453.77	-	-	
23552	-	-	\$516.86	-	-	
23570	\$186.03	\$191.83	-	-	-	
23575	\$323.77	\$300.01	-	-	-	
23585	-	-	\$772.69	-	-	
23600	\$263.96	\$248.60	-	-	-	
23605	\$372.90	\$338.41	-	-	-	
23615	-	-	\$698.15	-	-	
23616	-	-	\$975.29	-	-	
23620	\$214.99	\$206.01	-	-	-	
23625	\$303.45	\$279.39	-	-	-	
23630	-	-	\$616.78	-	-	
23650	\$254.38	\$230.61	-	-	-	
23655	-	-	\$321.58	-	-	
23660	-	-	\$462.89	-	-	
23665	\$341.87	\$315.20	-	-	-	
23670	-	-	\$690.22	-	-	
23675	\$439.85	\$398.12	-	-	-	
23680	-	-	\$734.38	-	-	
23700	-	-	\$154.66	-	-	
23800	-	-	\$810.27	-	-	
23802	-	-	\$1,011.57	-	-	
23900	-	-	\$1,092.54	-	-	
23920	-	-	\$886.73	-	-	
23921	-	-	\$372.38	-	-	
23929	-	-	I.C.	-	-	
23930	\$286.59	\$167.47	-	-	-	
23931	\$234.31	\$123.60	-	-	-	
23935	-	-	\$405.96	-	-	
24000	-	-	\$379.23	-	-	
24006	-	-	\$563.00	-	-	
24065	\$208.28	\$130.02	-	-	-	
24066	\$499.46	\$328.75	-	-	-	
24071	-	-	\$320.34	-	-	
24073	-	-	\$548.54	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
24075	\$416.94	\$260.14	-	-	-	
24076	-	-	\$429.79	-	-	
24077	-	-	\$818.66	-	-	
24079	-	-	\$1,041.65	-	-	
24100	-	-	\$332.25	-	-	
24101	-	-	\$397.98	-	-	
24102	-	-	\$488.15	-	-	
24105	-	-	\$282.48	-	-	
24110	-	-	\$465.45	-	-	
24115	-	-	\$582.95	-	-	
24116	-	-	\$679.88	-	-	
24120	-	-	\$422.00	-	-	
24125	-	-	\$492.14	-	-	
24126	-	-	\$513.79	-	-	
24130	-	-	\$404.55	-	-	
24134	-	-	\$590.97	-	-	
24136	-	-	\$500.21	-	-	
24138	-	-	\$540.21	-	-	
24140	-	-	\$556.13	-	-	
24145	-	-	\$470.03	-	-	
24147	-	-	\$495.49	-	-	
24149	-	-	\$928.61	-	-	
24150	-	-	\$1,220.23	-	-	
24152	-	-	\$1,061.10	-	-	
24155	-	-	\$672.87	-	-	
24160	-	-	\$991.78	-	-	
24164	-	-	\$570.54	-	-	
24200	\$173.86	\$111.54	-	-	-	
24201	\$440.44	\$286.83	-	-	-	
24220	\$144.35	\$52.76	-	-	-	
24300	-	-	\$341.84	-	-	
24301	-	-	\$592.45	-	-	
24305	-	-	\$459.09	-	-	
24310	-	-	\$373.81	-	-	
24320	-	-	\$617.17	-	-	
24330	-	-	\$567.75	-	-	
24331	-	-	\$621.26	-	-	
24332	-	-	\$486.22	-	-	
24340	-	-	\$486.71	-	-	
24341	-	-	\$590.86	-	-	
24342	-	-	\$613.12	-	-	
24343	-	-	\$561.73	-	-	
24344	-	-	\$864.90	-	-	
24345	-	-	\$556.52	-	-	
24346	-	-	\$869.84	-	-	
24357	-	-	\$330.62	-	-	
24358	-	-	\$417.69	-	-	
24359	-	-	\$523.67	-	-	
24360	-	-	\$711.97	-	-	
24361	-	-	\$795.14	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
24362	-	-	\$836.73	-	-	
24363	-	-	\$1,144.38	-	-	
24365	-	-	\$506.25	-	-	
24366	-	-	\$540.17	-	-	
24370	-	-	\$1,216.07	-	-	
24371	-	-	\$1,401.77	-	-	
24400	-	-	\$650.91	-	-	
24410	-	-	\$834.53	-	-	
24420	-	-	\$812.14	-	-	
24430	-	-	\$833.21	-	-	
24435	-	-	\$849.72	-	-	
24470	-	-	\$531.50	-	-	
24495	-	-	\$650.61	-	-	
24498	-	-	\$684.15	-	-	
24500	\$286.69	\$262.93	-	-	-	
24505	\$397.66	\$357.08	-	-	-	
24515	-	-	\$694.96	-	-	
24516	-	-	\$678.17	-	-	
24530	\$303.70	\$276.46	-	-	-	
24535	\$490.49	\$449.91	-	-	-	
24538	-	-	\$605.19	-	-	
24545	-	-	\$734.09	-	-	
24546	-	-	\$819.33	-	-	
24560	\$263.43	\$233.86	-	-	-	
24565	\$428.42	\$390.74	-	-	-	
24566	-	-	\$569.89	-	-	
24575	-	-	\$580.19	-	-	
24576	\$277.39	\$247.25	-	-	-	
24577	\$440.43	\$401.30	-	-	-	
24579	-	-	\$657.73	-	-	
24582	-	-	\$643.19	-	-	
24586	-	-	\$857.92	-	-	
24587	-	-	\$858.16	-	-	
24600	\$294.40	\$266.87	-	-	-	
24605	-	-	\$376.57	-	-	
24615	-	-	\$564.45	-	-	
24620	-	-	\$439.45	-	-	
24635	-	-	\$533.92	-	-	
24640	\$80.29	\$62.03	-	-	-	
24650	\$210.01	\$194.07	-	-	-	
24655	\$352.15	\$317.37	-	-	-	
24665	-	-	\$519.27	-	-	
24666	-	-	\$580.32	-	-	
24670	\$233.35	\$211.90	-	-	-	
24675	\$365.91	\$331.13	-	-	-	
24685	-	-	\$518.24	-	-	
24800	-	-	\$657.15	-	-	
24802	-	-	\$791.11	-	-	
24900	-	-	\$583.43	-	-	
24920	-	-	\$579.16	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
24925	-	-	\$449.46	-	-	
24930	-	-	\$611.79	-	-	
24931	-	-	\$735.49	-	-	
24935	-	-	\$938.76	-	-	
24940	-	-	I.C.	-	-	
24999	-	-	I.C.	-	-	
25000	-	-	\$270.74	-	-	
25001	-	-	\$274.08	-	-	
25020	-	-	\$512.34	-	-	
25023	-	-	\$953.78	-	-	
25024	-	-	\$618.42	-	-	
25025	-	-	\$948.24	-	-	
25028	-	-	\$476.83	-	-	
25031	-	-	\$278.56	-	-	
25035	-	-	\$462.23	-	-	
25040	-	-	\$444.36	-	-	
25065	\$207.38	\$126.81	-	-	-	
25066	-	-	\$284.48	-	-	
25071	-	-	\$334.90	-	-	
25073	-	-	\$423.35	-	-	
25075	\$407.56	\$250.17	-	-	-	
25076	-	-	\$409.96	-	-	
25077	-	-	\$699.91	-	-	
25078	-	-	\$914.84	-	-	
25085	-	-	\$356.26	-	-	
25100	-	-	\$276.40	-	-	
25101	-	-	\$321.16	-	-	
25105	-	-	\$385.25	-	-	
25107	-	-	\$488.41	-	-	
25109	-	-	\$426.03	-	-	
25110	-	-	\$271.85	-	-	
25111	-	-	\$256.25	-	-	
25112	-	-	\$307.78	-	-	
25115	-	-	\$599.24	-	-	
25116	-	-	\$476.81	-	-	
25118	-	-	\$303.02	-	-	
25119	-	-	\$394.01	-	-	
25120	-	-	\$397.36	-	-	
25125	-	-	\$470.27	-	-	
25126	-	-	\$473.77	-	-	
25130	-	-	\$356.56	-	-	
25135	-	-	\$443.47	-	-	
25136	-	-	\$393.80	-	-	
25145	-	-	\$411.72	-	-	
25150	-	-	\$447.69	-	-	
25151	-	-	\$462.09	-	-	
25170	-	-	\$1,160.04	-	-	
25210	-	-	\$389.35	-	-	
25215	-	-	\$489.67	-	-	
25230	-	-	\$343.04	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
25240	-	-	\$340.63	-	-	
25246	\$148.06	\$57.92	-	-	-	
25248	-	-	\$329.16	-	-	
25250	-	-	\$421.70	-	-	
25251	-	-	\$569.08	-	-	
25259	-	-	\$339.54	-	-	
25260	-	-	\$500.69	-	-	
25263	-	-	\$500.21	-	-	
25265	-	-	\$592.79	-	-	
25270	-	-	\$391.03	-	-	
25272	-	-	\$442.24	-	-	
25274	-	-	\$526.98	-	-	
25275	-	-	\$532.15	-	-	
25280	-	-	\$448.38	-	-	
25290	-	-	\$345.84	-	-	
25295	-	-	\$417.14	-	-	
25300	-	-	\$541.86	-	-	
25301	-	-	\$509.23	-	-	
25310	-	-	\$491.07	-	-	
25312	-	-	\$568.20	-	-	
25315	-	-	\$608.81	-	-	
25316	-	-	\$722.82	-	-	
25320	-	-	\$779.72	-	-	
25332	-	-	\$666.07	-	-	
25335	-	-	\$745.26	-	-	
25337	-	-	\$701.48	-	-	
25350	-	-	\$534.55	-	-	
25355	-	-	\$604.77	-	-	
25360	-	-	\$517.91	-	-	
25365	-	-	\$723.37	-	-	
25370	-	-	\$797.58	-	-	
25375	-	-	\$753.59	-	-	
25390	-	-	\$608.02	-	-	
25391	-	-	\$786.57	-	-	
25392	-	-	\$800.59	-	-	
25393	-	-	\$890.86	-	-	
25394	-	-	\$620.10	-	-	
25400	-	-	\$634.47	-	-	
25405	-	-	\$818.67	-	-	
25415	-	-	\$764.43	-	-	
25420	-	-	\$920.00	-	-	
25425	-	-	\$760.90	-	-	
25426	-	-	\$886.01	-	-	
25430	-	-	\$578.18	-	-	
25431	-	-	\$623.43	-	-	
25440	-	-	\$606.66	-	-	
25441	-	-	\$740.14	-	-	
25442	-	-	\$638.55	-	-	
25443	-	-	\$619.58	-	-	
25444	-	-	\$654.43	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
25445	-	-	\$570.97	-	-	
25446	-	-	\$924.79	-	-	
25447	-	-	\$655.85	-	-	
25449	-	-	\$816.75	-	-	
25450	-	-	\$488.57	-	-	
25455	-	-	\$576.16	-	-	
25490	-	-	\$568.53	-	-	
25491	-	-	\$584.03	-	-	
25492	-	-	\$715.47	-	-	
25500	\$222.74	\$201.58	-	-	-	
25505	\$401.86	\$364.76	-	-	-	
25515	-	-	\$530.20	-	-	
25520	\$455.92	\$429.54	-	-	-	
25525	-	-	\$624.07	-	-	
25526	-	-	\$754.77	-	-	
25530	\$210.52	\$191.97	-	-	-	
25535	\$390.66	\$360.23	-	-	-	
25545	-	-	\$493.71	-	-	
25560	\$227.69	\$203.35	-	-	-	
25565	\$410.95	\$368.34	-	-	-	
25574	-	-	\$533.63	-	-	
25575	-	-	\$712.80	-	-	
25600	\$266.46	\$253.42	-	-	-	
25605	\$430.63	\$405.99	-	-	-	
25606	-	-	\$526.21	-	-	
25607	-	-	\$582.86	-	-	
25608	-	-	\$652.67	-	-	
25609	-	-	\$829.60	-	-	
25622	\$244.70	\$224.70	-	-	-	
25624	\$386.68	\$350.16	-	-	-	
25628	-	-	\$569.29	-	-	
25630	\$244.22	\$225.67	-	-	-	
25635	\$367.79	\$333.29	-	-	-	
25645	-	-	\$451.69	-	-	
25650	\$260.36	\$241.52	-	-	-	
25651	-	-	\$388.01	-	-	
25652	-	-	\$493.08	-	-	
25660	-	-	\$329.55	-	-	
25670	-	-	\$481.18	-	-	
25671	-	-	\$422.00	-	-	
25675	\$352.67	\$318.18	-	-	-	
25676	-	-	\$500.31	-	-	
25680	-	-	\$417.01	-	-	
25685	-	-	\$581.33	-	-	
25690	-	-	\$386.58	-	-	
25695	-	-	\$501.88	-	-	
25800	-	-	\$578.67	-	-	
25805	-	-	\$669.29	-	-	
25810	-	-	\$685.26	-	-	
25820	-	-	\$502.27	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
25825	-	-	\$615.46	-	-	
25830	-	-	\$779.96	-	-	
25900	-	-	\$562.76	-	-	
25905	-	-	\$554.80	-	-	
25907	-	-	\$486.18	-	-	
25909	-	-	\$542.09	-	-	
25915	-	-	\$920.73	-	-	
25920	-	-	\$566.48	-	-	
25922	-	-	\$499.59	-	-	
25924	-	-	\$552.80	-	-	
25927	-	-	\$665.17	-	-	
25929	-	-	\$473.20	-	-	
25931	-	-	\$614.12	-	-	
25999	-	-	I.C.	-	-	
26010	\$244.72	\$109.94	-	-	-	
26011	\$354.08	\$146.84	-	-	-	
26020	-	-	\$440.15	-	-	
26025	-	-	\$334.52	-	-	
26030	-	-	\$389.50	-	-	
26034	-	-	\$433.84	-	-	
26035	-	-	\$679.28	-	-	
26037	-	-	\$448.16	-	-	
26040	-	-	\$249.65	-	-	
26045	-	-	\$373.05	-	-	
26055	\$442.56	\$230.69	-	-	-	
26060	-	-	\$205.55	-	-	
26070	-	-	\$255.28	-	-	
26075	-	-	\$266.73	-	-	
26080	-	-	\$313.27	-	-	
26100	-	-	\$268.70	-	-	
26105	-	-	\$270.58	-	-	
26110	-	-	\$257.12	-	-	
26111	-	-	\$329.70	-	-	
26113	-	-	\$433.55	-	-	
26115	\$428.83	\$262.75	-	-	-	
26116	-	-	\$416.52	-	-	
26117	-	-	\$588.21	-	-	
26118	-	-	\$831.82	-	-	
26121	-	-	\$474.14	-	-	
26123	-	-	\$661.26	-	-	
26125	-	-	\$213.11	-	-	
26130	-	-	\$369.94	-	-	
26135	-	-	\$438.19	-	-	
26140	-	-	\$401.63	-	-	
26145	-	-	\$408.04	-	-	
26160	\$461.98	\$250.41	-	-	-	
26170	-	-	\$323.46	-	-	
26180	-	-	\$355.15	-	-	
26185	-	-	\$438.48	-	-	
26200	-	-	\$358.51	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
26205	-	-	\$478.59	-	-	
26210	-	-	\$353.15	-	-	
26215	-	-	\$447.84	-	-	
26230	-	-	\$396.29	-	-	
26235	-	-	\$390.88	-	-	
26236	-	-	\$350.22	-	-	
26250	-	-	\$841.73	-	-	
26260	-	-	\$631.33	-	-	
26262	-	-	\$499.46	-	-	
26320	-	-	\$276.77	-	-	
26340	-	-	\$274.71	-	-	
26341	\$85.44	\$60.52	-	-	-	
26350	-	-	\$582.76	-	-	
26352	-	-	\$650.22	-	-	
26356	-	-	\$631.43	-	-	
26357	-	-	\$705.76	-	-	
26358	-	-	\$779.76	-	-	
26370	-	-	\$613.28	-	-	
26372	-	-	\$715.80	-	-	
26373	-	-	\$688.00	-	-	
26390	-	-	\$677.89	-	-	
26392	-	-	\$783.67	-	-	
26410	-	-	\$464.38	-	-	
26412	-	-	\$551.28	-	-	
26415	-	-	\$660.71	-	-	
26416	-	-	\$715.49	-	-	
26418	-	-	\$478.96	-	-	
26420	-	-	\$576.41	-	-	
26426	-	-	\$398.40	-	-	
26428	-	-	\$616.65	-	-	
26432	-	-	\$412.51	-	-	
26433	-	-	\$437.35	-	-	
26434	-	-	\$532.58	-	-	
26437	-	-	\$510.87	-	-	
26440	-	-	\$506.14	-	-	
26442	-	-	\$773.27	-	-	
26445	-	-	\$472.73	-	-	
26449	-	-	\$550.72	-	-	
26450	-	-	\$341.99	-	-	
26455	-	-	\$339.45	-	-	
26460	-	-	\$331.87	-	-	
26471	-	-	\$505.14	-	-	
26474	-	-	\$496.69	-	-	
26476	-	-	\$490.21	-	-	
26477	-	-	\$477.83	-	-	
26478	-	-	\$509.56	-	-	
26479	-	-	\$516.12	-	-	
26480	-	-	\$612.50	-	-	
26483	-	-	\$681.06	-	-	
26485	-	-	\$653.64	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
26489	-	-	\$754.48	-	-	
26490	-	-	\$646.29	-	-	
26492	-	-	\$715.98	-	-	
26494	-	-	\$649.00	-	-	
26496	-	-	\$691.17	-	-	
26497	-	-	\$700.04	-	-	
26498	-	-	\$916.68	-	-	
26499	-	-	\$672.75	-	-	
26500	-	-	\$509.32	-	-	
26502	-	-	\$580.15	-	-	
26508	-	-	\$519.11	-	-	
26510	-	-	\$493.26	-	-	
26516	-	-	\$572.94	-	-	
26517	-	-	\$668.96	-	-	
26518	-	-	\$677.59	-	-	
26520	-	-	\$531.19	-	-	
26525	-	-	\$532.52	-	-	
26530	-	-	\$427.30	-	-	
26531	-	-	\$497.28	-	-	
26535	-	-	\$344.33	-	-	
26536	-	-	\$582.34	-	-	
26540	-	-	\$538.39	-	-	
26541	-	-	\$648.16	-	-	
26542	-	-	\$554.94	-	-	
26545	-	-	\$578.42	-	-	
26546	-	-	\$803.40	-	-	
26548	-	-	\$617.25	-	-	
26550	-	-	\$1,302.11	-	-	
26551	-	-	\$2,596.19	-	-	
26553	-	-	\$2,579.21	-	-	
26554	-	-	\$3,005.10	-	-	
26555	-	-	\$1,090.86	-	-	
26556	-	-	\$2,680.35	-	-	
26560	-	-	\$486.14	-	-	
26561	-	-	\$761.32	-	-	
26562	-	-	\$1,070.80	-	-	
26565	-	-	\$552.72	-	-	
26567	-	-	\$556.00	-	-	
26568	-	-	\$727.73	-	-	
26580	-	-	\$1,202.78	-	-	
26587	-	-	\$822.37	-	-	
26590	-	-	\$1,119.38	-	-	
26591	-	-	\$366.94	-	-	
26593	-	-	\$493.73	-	-	
26596	-	-	\$621.53	-	-	
26600	\$237.81	\$225.06	-	-	-	
26605	\$260.45	\$234.95	-	-	-	
26607	-	-	\$386.57	-	-	
26608	-	-	\$381.75	-	-	
26615	-	-	\$456.50	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
26641	\$305.12	\$275.26	-	-	-	
26645	\$343.51	\$312.79	-	-	-	
26650	-	-	\$381.50	-	-	
26665	-	-	\$496.01	-	-	
26670	\$273.22	\$244.52	-	-	-	
26675	\$366.10	\$333.93	-	-	-	
26676	-	-	\$402.64	-	-	
26685	-	-	\$456.55	-	-	
26686	-	-	\$494.29	-	-	
26700	\$264.10	\$244.10	-	-	-	
26705	\$336.38	\$305.08	-	-	-	
26706	-	-	\$351.01	-	-	
26715	-	-	\$454.42	-	-	
26720	\$158.28	\$148.43	-	-	-	
26725	\$271.16	\$241.60	-	-	-	
26727	-	-	\$375.34	-	-	
26735	-	-	\$471.65	-	-	
26740	\$184.50	\$174.35	-	-	-	
26742	\$296.75	\$266.31	-	-	-	
26746	-	-	\$587.67	-	-	
26750	\$148.24	\$149.11	-	-	-	
26755	\$253.69	\$217.46	-	-	-	
26756	-	-	\$336.34	-	-	
26765	-	-	\$398.82	-	-	
26770	\$223.75	\$204.33	-	-	-	
26775	\$307.38	\$276.08	-	-	-	
26776	-	-	\$355.84	-	-	
26785	-	-	\$433.67	-	-	
26820	-	-	\$640.04	-	-	
26841	-	-	\$592.15	-	-	
26842	-	-	\$634.82	-	-	
26843	-	-	\$601.49	-	-	
26844	-	-	\$664.37	-	-	
26850	-	-	\$564.53	-	-	
26852	-	-	\$644.33	-	-	
26860	-	-	\$466.38	-	-	
26861	-	-	\$80.70	-	-	
26862	-	-	\$589.65	-	-	
26863	-	-	\$178.80	-	-	
26910	-	-	\$587.05	-	-	
26951	-	-	\$535.06	-	-	
26952	-	-	\$526.89	-	-	
26989	-	-	I.C.	-	-	
26990	-	-	\$520.14	-	-	
26991	\$569.02	\$415.70	-	-	-	
26992	-	-	\$782.21	-	-	
27000	-	-	\$320.54	-	-	
27001	-	-	\$428.79	-	-	
27003	-	-	\$473.22	-	-	
27005	-	-	\$571.59	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
27006	-	-	\$567.79	-	-	
27025	-	-	\$725.32	-	-	
27027	-	-	\$705.43	-	-	
27030	-	-	\$740.30	-	-	
27033	-	-	\$767.84	-	-	
27035	-	-	\$910.56	-	-	
27036	-	-	\$798.88	-	-	
27040	\$277.49	\$156.63	-	-	-	
27041	-	-	\$550.84	-	-	
27043	-	-	\$369.33	-	-	
27045	-	-	\$581.68	-	-	
27047	\$386.05	\$284.61	-	-	-	
27048	-	-	\$480.44	-	-	
27049	-	-	\$1,047.16	-	-	
27050	-	-	\$319.80	-	-	
27052	-	-	\$457.77	-	-	
27054	-	-	\$543.39	-	-	
27057	-	-	\$798.68	-	-	
27059	-	-	\$1,422.42	-	-	
27060	-	-	\$368.74	-	-	
27062	-	-	\$360.23	-	-	
27065	-	-	\$412.90	-	-	
27066	-	-	\$640.64	-	-	
27067	-	-	\$816.96	-	-	
27070	-	-	\$695.24	-	-	
27071	-	-	\$749.20	-	-	
27075	-	-	\$1,645.37	-	-	
27076	-	-	\$1,989.74	-	-	
27077	-	-	\$2,219.36	-	-	
27078	-	-	\$1,621.88	-	-	
27080	-	-	\$404.67	-	-	
27086	\$248.00	\$133.23	-	-	-	
27087	-	-	\$485.77	-	-	
27090	-	-	\$656.73	-	-	
27091	-	-	\$1,256.65	-	-	
27093	\$176.50	\$54.19	-	-	-	
27095	\$237.58	\$65.71	-	-	-	
27096	\$129.39	\$65.05	-	-	-	
27097	-	-	\$539.92	-	-	
27098	-	-	\$549.60	-	-	
27100	-	-	\$654.69	-	-	
27105	-	-	\$686.08	-	-	
27110	-	-	\$766.24	-	-	
27111	-	-	\$712.23	-	-	
27120	-	-	\$1,024.13	-	-	
27122	-	-	\$868.50	-	-	
27125	-	-	\$892.78	-	-	
27130	-	-	\$1,067.04	-	-	
27132	-	-	\$1,318.31	-	-	
27134	-	-	\$1,504.18	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
27137	-	-	\$1,157.85	-	-	
27138	-	-	\$1,203.27	-	-	
27140	-	-	\$706.48	-	-	
27146	-	-	\$1,007.20	-	-	
27147	-	-	\$1,154.96	-	-	
27151	-	-	\$1,248.94	-	-	
27156	-	-	\$1,345.92	-	-	
27158	-	-	\$1,103.66	-	-	
27161	-	-	\$962.07	-	-	
27165	-	-	\$1,082.39	-	-	
27170	-	-	\$925.60	-	-	
27175	-	-	\$526.23	-	-	
27176	-	-	\$726.83	-	-	
27177	-	-	\$879.13	-	-	
27178	-	-	\$726.83	-	-	
27179	-	-	\$771.99	-	-	
27181	-	-	\$884.04	-	-	
27185	-	-	\$567.75	-	-	
27187	-	-	\$785.91	-	-	
27197	-	-	\$101.55	-	-	
27198	-	-	\$240.99	-	-	
27200	\$147.81	\$150.13	-	-	-	
27202	-	-	\$418.72	-	-	
27215	-	-	\$476.12	-	-	
27216	-	-	\$705.26	-	-	
27217	-	-	\$662.23	-	-	
27218	-	-	\$911.16	-	-	
27220	\$341.07	\$336.14	-	-	-	
27222	-	-	\$768.31	-	-	
27226	-	-	\$832.75	-	-	
27227	-	-	\$1,301.93	-	-	
27228	-	-	\$1,477.65	-	-	
27230	\$383.22	\$377.13	-	-	-	
27232	-	-	\$587.34	-	-	
27235	-	-	\$716.78	-	-	
27236	-	-	\$942.01	-	-	
27238	-	-	\$368.59	-	-	
27240	-	-	\$752.08	-	-	
27244	-	-	\$969.29	-	-	
27245	-	-	\$968.27	-	-	
27246	\$308.27	\$306.24	-	-	-	
27248	-	-	\$589.10	-	-	
27250	-	-	\$141.63	-	-	
27252	-	-	\$595.55	-	-	
27253	-	-	\$743.37	-	-	
27254	-	-	\$1,003.43	-	-	
27256	\$239.75	\$185.55	-	-	-	
27257	-	-	\$284.64	-	-	
27258	-	-	\$876.21	-	-	
27259	-	-	\$1,218.78	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
27265	-	-	\$320.39	-	-	
27266	-	-	\$461.01	-	-	
27267	-	-	\$346.71	-	-	
27268	-	-	\$428.84	-	-	
27269	-	-	\$979.92	-	-	
27275	-	-	\$144.86	-	-	
27279	-	-	\$690.00	-	-	
27280	-	-	\$1,063.86	-	-	
27282	-	-	\$677.65	-	-	
27284	-	-	\$1,267.32	-	-	
27286	-	-	\$1,297.30	-	-	
27290	-	-	\$1,279.79	-	-	
27295	-	-	\$989.56	-	-	
27299	-	-	I.C.	-	-	
27301	\$540.28	\$398.84	-	-	-	
27303	-	-	\$507.63	-	-	
27305	-	-	\$381.37	-	-	
27306	-	-	\$272.13	-	-	
27307	-	-	\$380.80	-	-	
27310	-	-	\$578.45	-	-	
27323	\$221.96	\$139.94	-	-	-	
27324	-	-	\$320.28	-	-	
27325	-	-	\$444.87	-	-	
27326	-	-	\$411.11	-	-	
27327	\$390.52	\$247.63	-	-	-	
27328	-	-	\$492.21	-	-	
27329	-	-	\$819.52	-	-	
27330	-	-	\$326.87	-	-	
27331	-	-	\$376.44	-	-	
27332	-	-	\$510.17	-	-	
27333	-	-	\$465.10	-	-	
27334	-	-	\$542.03	-	-	
27335	-	-	\$605.01	-	-	
27337	-	-	\$330.53	-	-	
27339	-	-	\$594.85	-	-	
27340	-	-	\$295.68	-	-	
27345	-	-	\$383.71	-	-	
27347	-	-	\$417.87	-	-	
27350	-	-	\$516.88	-	-	
27355	-	-	\$479.04	-	-	
27356	-	-	\$584.52	-	-	
27357	-	-	\$645.24	-	-	
27358	-	-	\$216.93	-	-	
27360	-	-	\$695.87	-	-	
27364	-	-	\$1,227.51	-	-	
27365	-	-	\$1,621.26	-	-	
27369	\$127.55	\$31.90	-	-	-	
27372	\$482.53	\$318.48	-	-	-	
27380	-	-	\$483.30	-	-	
27381	-	-	\$641.01	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
27385	-	-	\$469.17	-	-	
27386	-	-	\$669.84	-	-	
27390	-	-	\$355.97	-	-	
27391	-	-	\$447.19	-	-	
27392	-	-	\$563.64	-	-	
27393	-	-	\$403.73	-	-	
27394	-	-	\$517.83	-	-	
27395	-	-	\$695.51	-	-	
27396	-	-	\$488.35	-	-	
27397	-	-	\$723.01	-	-	
27400	-	-	\$549.87	-	-	
27403	-	-	\$509.15	-	-	
27405	-	-	\$534.95	-	-	
27407	-	-	\$628.79	-	-	
27409	-	-	\$763.54	-	-	
27412	-	-	\$1,299.76	-	-	
27415	-	-	\$1,082.77	-	-	
27416	-	-	\$773.62	-	-	
27418	-	-	\$654.93	-	-	
27420	-	-	\$588.16	-	-	
27422	-	-	\$588.52	-	-	
27424	-	-	\$591.50	-	-	
27425	-	-	\$357.66	-	-	
27427	-	-	\$562.61	-	-	
27428	-	-	\$881.08	-	-	
27429	-	-	\$991.03	-	-	
27430	-	-	\$586.66	-	-	
27435	-	-	\$640.56	-	-	
27437	-	-	\$521.49	-	-	
27438	-	-	\$664.84	-	-	
27440	-	-	\$630.63	-	-	
27441	-	-	\$651.15	-	-	
27442	-	-	\$689.01	-	-	
27443	-	-	\$642.17	-	-	
27445	-	-	\$989.31	-	-	
27446	-	-	\$912.23	-	-	
27447	-	-	\$1,065.68	-	-	
27448	-	-	\$648.73	-	-	
27450	-	-	\$801.36	-	-	
27454	-	-	\$1,021.52	-	-	
27455	-	-	\$752.29	-	-	
27457	-	-	\$758.76	-	-	
27465	-	-	\$985.98	-	-	
27466	-	-	\$934.21	-	-	
27468	-	-	\$1,057.67	-	-	
27470	-	-	\$929.27	-	-	
27472	-	-	\$996.01	-	-	
27475	-	-	\$524.26	-	-	
27477	-	-	\$579.42	-	-	
27479	-	-	\$725.48	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
27485	-	-	\$530.88	-	-	
27486	-	-	\$1,108.44	-	-	
27487	-	-	\$1,383.99	-	-	
27488	-	-	\$946.91	-	-	
27495	-	-	\$889.55	-	-	
27496	-	-	\$432.69	-	-	
27497	-	-	\$460.23	-	-	
27498	-	-	\$518.57	-	-	
27499	-	-	\$554.71	-	-	
27500	\$413.69	\$380.36	-	-	-	
27501	\$400.82	\$394.15	-	-	-	
27502	-	-	\$597.95	-	-	
27503	-	-	\$632.46	-	-	
27506	-	-	\$1,054.32	-	-	
27507	-	-	\$765.16	-	-	
27508	\$416.77	\$393.88	-	-	-	
27509	-	-	\$525.47	-	-	
27510	-	-	\$536.56	-	-	
27511	-	-	\$786.80	-	-	
27513	-	-	\$976.40	-	-	
27514	-	-	\$762.51	-	-	
27516	\$408.49	\$382.11	-	-	-	
27517	-	-	\$543.94	-	-	
27519	-	-	\$703.14	-	-	
27520	\$258.06	\$237.49	-	-	-	
27524	-	-	\$595.24	-	-	
27530	\$243.35	\$227.41	-	-	-	
27532	\$489.58	\$456.83	-	-	-	
27535	-	-	\$707.67	-	-	
27536	-	-	\$937.13	-	-	
27538	\$380.78	\$353.83	-	-	-	
27540	-	-	\$640.26	-	-	
27550	\$416.20	\$384.61	-	-	-	
27552	-	-	\$498.42	-	-	
27556	-	-	\$692.05	-	-	
27557	-	-	\$824.76	-	-	
27558	-	-	\$939.23	-	-	
27560	\$297.92	\$273.00	-	-	-	
27562	-	-	\$386.06	-	-	
27566	-	-	\$705.69	-	-	
27570	-	-	\$119.82	-	-	
27580	-	-	\$1,152.10	-	-	
27590	-	-	\$620.15	-	-	
27591	-	-	\$761.92	-	-	
27592	-	-	\$529.31	-	-	
27594	-	-	\$403.51	-	-	
27596	-	-	\$560.45	-	-	
27598	-	-	\$558.15	-	-	
27599	-	-	I.C.	-	-	
27600	-	-	\$319.00	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
27601	-	-	\$353.18	-	-	
27602	-	-	\$379.41	-	-	
27603	\$427.10	\$308.27	-	-	-	
27604	\$381.58	\$264.20	-	-	-	
27605	\$276.39	\$146.25	-	-	-	
27606	-	-	\$218.43	-	-	
27607	-	-	\$478.30	-	-	
27610	-	-	\$512.74	-	-	
27612	-	-	\$440.90	-	-	
27613	\$202.55	\$126.61	-	-	-	
27614	\$463.94	\$320.76	-	-	-	
27615	-	-	\$806.51	-	-	
27616	-	-	\$1,000.73	-	-	
27618	\$379.58	\$241.33	-	-	-	
27619	-	-	\$364.07	-	-	
27620	-	-	\$354.64	-	-	
27625	-	-	\$455.76	-	-	
27626	-	-	\$477.22	-	-	
27630	\$442.94	\$284.98	-	-	-	
27632	-	-	\$326.05	-	-	
27634	-	-	\$538.00	-	-	
27635	-	-	\$460.12	-	-	
27637	-	-	\$591.87	-	-	
27638	-	-	\$604.62	-	-	
27640	-	-	\$655.52	-	-	
27641	-	-	\$521.97	-	-	
27645	-	-	\$1,395.45	-	-	
27646	-	-	\$1,212.28	-	-	
27647	-	-	\$793.31	-	-	
27648	\$163.13	\$41.11	-	-	-	
27650	-	-	\$520.27	-	-	
27652	-	-	\$523.04	-	-	
27654	-	-	\$562.70	-	-	
27656	\$513.24	\$315.28	-	-	-	
27658	-	-	\$292.37	-	-	
27659	-	-	\$370.95	-	-	
27664	-	-	\$285.99	-	-	
27665	-	-	\$328.60	-	-	
27675	-	-	\$387.41	-	-	
27676	-	-	\$472.49	-	-	
27680	-	-	\$335.68	-	-	
27681	-	-	\$409.51	-	-	
27685	\$530.83	\$366.78	-	-	-	
27686	-	-	\$427.81	-	-	
27687	-	-	\$359.51	-	-	
27690	-	-	\$505.26	-	-	
27691	-	-	\$588.57	-	-	
27692	-	-	\$81.21	-	-	
27695	-	-	\$375.18	-	-	
27696	-	-	\$440.23	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
27698	-	-	\$503.01	-	-	
27700	-	-	\$483.27	-	-	
27702	-	-	\$760.24	-	-	
27703	-	-	\$879.26	-	-	
27704	-	-	\$453.79	-	-	
27705	-	-	\$598.32	-	-	
27707	-	-	\$317.45	-	-	
27709	-	-	\$919.15	-	-	
27712	-	-	\$869.51	-	-	
27715	-	-	\$845.67	-	-	
27720	-	-	\$691.71	-	-	
27722	-	-	\$705.49	-	-	
27724	-	-	\$991.50	-	-	
27725	-	-	\$959.60	-	-	
27726	-	-	\$754.53	-	-	
27727	-	-	\$818.94	-	-	
27730	-	-	\$464.93	-	-	
27732	-	-	\$357.64	-	-	
27734	-	-	\$519.71	-	-	
27740	-	-	\$559.97	-	-	
27742	-	-	\$614.82	-	-	
27745	-	-	\$601.48	-	-	
27750	\$276.11	\$254.95	-	-	-	
27752	\$425.94	\$390.29	-	-	-	
27756	-	-	\$455.56	-	-	
27758	-	-	\$706.76	-	-	
27759	-	-	\$787.89	-	-	
27760	\$266.68	\$244.94	-	-	-	
27762	\$380.69	\$343.88	-	-	-	
27766	-	-	\$478.74	-	-	
27767	\$230.18	\$229.02	-	-	-	
27768	-	-	\$352.61	-	-	
27769	-	-	\$576.46	-	-	
27780	\$245.72	\$224.85	-	-	-	
27781	\$344.98	\$317.16	-	-	-	
27784	-	-	\$562.59	-	-	
27786	\$251.29	\$229.26	-	-	-	
27788	\$338.57	\$306.40	-	-	-	
27792	-	-	\$512.18	-	-	
27808	\$267.41	\$242.19	-	-	-	
27810	\$372.99	\$335.89	-	-	-	
27814	-	-	\$606.40	-	-	
27816	\$261.22	\$232.24	-	-	-	
27818	\$386.59	\$344.57	-	-	-	
27822	-	-	\$687.11	-	-	
27823	-	-	\$775.63	-	-	
27824	\$253.21	\$242.77	-	-	-	
27825	\$433.47	\$390.86	-	-	-	
27826	-	-	\$675.27	-	-	
27827	-	-	\$879.80	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
27828	-	-	\$1,043.19	-	-	
27829	-	-	\$556.60	-	-	
27830	\$308.72	\$284.67	-	-	-	
27831	-	-	\$321.27	-	-	
27832	-	-	\$598.43	-	-	
27840	-	-	\$298.37	-	-	
27842	-	-	\$390.25	-	-	
27846	-	-	\$563.99	-	-	
27848	-	-	\$630.68	-	-	
27860	-	-	\$134.73	-	-	
27870	-	-	\$805.43	-	-	
27871	-	-	\$544.79	-	-	
27880	-	-	\$710.24	-	-	
27881	-	-	\$673.67	-	-	
27882	-	-	\$467.39	-	-	
27884	-	-	\$449.96	-	-	
27886	-	-	\$514.91	-	-	
27888	-	-	\$514.85	-	-	
27889	-	-	\$501.85	-	-	
27892	-	-	\$433.97	-	-	
27893	-	-	\$484.21	-	-	
27894	-	-	\$662.14	-	-	
27899	-	-	I.C.	-	-	
28001	\$225.56	\$135.14	-	-	-	
28002	\$354.19	\$251.30	-	-	-	
28003	\$558.45	\$441.36	-	-	-	
28005	-	-	\$455.05	-	-	
28008	\$349.13	\$232.91	-	-	-	
28010	\$185.39	\$165.10	-	-	-	
28011	\$251.15	\$222.46	-	-	-	
28020	\$433.71	\$284.74	-	-	-	
28022	\$393.35	\$257.13	-	-	-	
28024	\$368.92	\$239.37	-	-	-	
28035	\$424.42	\$280.38	-	-	-	
28039	\$398.27	\$271.90	-	-	-	
28041	-	-	\$357.66	-	-	
28043	\$316.95	\$206.52	-	-	-	
28045	\$391.54	\$273.29	-	-	-	
28046	-	-	\$562.74	-	-	
28047	-	-	\$817.33	-	-	
28050	\$340.71	\$220.43	-	-	-	
28052	\$360.35	\$225.00	-	-	-	
28054	\$301.84	\$185.61	-	-	-	
28055	-	-	\$304.73	-	-	
28060	\$420.95	\$284.44	-	-	-	
28062	\$467.50	\$319.98	-	-	-	
28070	\$426.72	\$279.77	-	-	-	
28072	\$393.62	\$253.63	-	-	-	
28080	\$425.83	\$293.66	-	-	-	
28086	\$433.65	\$280.91	-	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
28088	\$350.54	\$217.79	-	-	-	
28090	\$377.41	\$242.63	-	-	-	
28092	\$342.90	\$213.63	-	-	-	
28100	\$492.81	\$329.35	-	-	-	
28102	-	-	\$481.85	-	-	
28103	-	-	\$307.10	-	-	
28104	\$426.67	\$280.01	-	-	-	
28106	-	-	\$337.09	-	-	
28107	\$411.75	\$274.07	-	-	-	
28108	\$354.57	\$227.91	-	-	-	
28110	\$374.92	\$229.71	-	-	-	
28111	\$393.21	\$255.25	-	-	-	
28112	\$394.13	\$247.18	-	-	-	
28113	\$473.27	\$335.31	-	-	-	
28114	\$847.21	\$654.18	-	-	-	
28116	\$610.80	\$454.58	-	-	-	
28118	\$483.38	\$330.35	-	-	-	
28119	\$421.86	\$285.05	-	-	-	
28120	\$543.82	\$393.10	-	-	-	
28122	\$477.89	\$346.02	-	-	-	
28124	\$385.71	\$262.53	-	-	-	
28126	\$317.62	\$195.60	-	-	-	
28130	-	-	\$498.78	-	-	
28140	\$470.51	\$342.40	-	-	-	
28150	\$339.83	\$219.83	-	-	-	
28153	\$334.49	\$210.44	-	-	-	
28160	\$336.03	\$211.69	-	-	-	
28171	-	-	\$875.67	-	-	
28173	-	-	\$576.27	-	-	
28175	-	-	\$372.19	-	-	
28190	\$204.83	\$105.70	-	-	-	
28192	\$377.38	\$247.24	-	-	-	
28193	\$425.95	\$291.17	-	-	-	
28200	\$398.74	\$256.43	-	-	-	
28202	\$485.09	\$340.18	-	-	-	
28208	\$389.45	\$250.62	-	-	-	
28210	\$473.27	\$330.67	-	-	-	
28220	\$363.63	\$239.29	-	-	-	
28222	\$417.31	\$281.66	-	-	-	
28225	\$338.17	\$208.90	-	-	-	
28226	\$497.15	\$313.39	-	-	-	
28230	\$351.48	\$223.95	-	-	-	
28232	\$311.66	\$191.38	-	-	-	
28234	\$332.03	\$210.59	-	-	-	
28238	\$533.15	\$381.57	-	-	-	
28240	\$361.77	\$232.22	-	-	-	
28250	\$467.12	\$319.60	-	-	-	
28260	\$560.76	\$409.18	-	-	-	
28261	\$960.12	\$740.72	-	-	-	
28262	\$1,115.26	\$890.06	-	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
28264	\$809.74	\$608.31	-	-	-	
28270	\$397.45	\$265.00	-	-	-	
28272	\$315.04	\$199.11	-	-	-	
28280	\$414.21	\$275.09	-	-	-	
28285	\$432.34	\$300.76	-	-	-	
28286	\$360.30	\$234.80	-	-	-	
28288	\$491.58	\$343.47	-	-	-	
28289	\$576.31	\$362.70	-	-	-	
28291	\$587.30	\$385.87	-	-	-	
28292	\$583.95	\$382.23	-	-	-	
28295	\$801.53	\$443.00	-	-	-	
28296	\$735.11	\$405.56	-	-	-	
28297	\$849.90	\$476.59	-	-	-	
28298	\$681.73	\$392.76	-	-	-	
28299	\$816.28	\$459.79	-	-	-	
28300	-	-	\$513.66	-	-	
28302	-	-	\$566.18	-	-	
28304	\$655.56	\$475.57	-	-	-	
28305	-	-	\$526.99	-	-	
28306	\$488.76	\$316.60	-	-	-	
28307	\$499.83	\$327.95	-	-	-	
28308	\$459.95	\$301.70	-	-	-	
28309	-	-	\$694.81	-	-	
28310	\$441.07	\$283.69	-	-	-	
28312	\$406.25	\$250.61	-	-	-	
28313	\$423.08	\$281.06	-	-	-	
28315	\$388.30	\$257.29	-	-	-	
28320	-	-	\$482.94	-	-	
28322	\$627.62	\$453.43	-	-	-	
28340	\$460.27	\$323.76	-	-	-	
28341	\$532.14	\$385.20	-	-	-	
28344	\$343.00	\$220.69	-	-	-	
28345	\$417.35	\$287.21	-	-	-	
28360	-	-	\$863.87	-	-	
28400	\$198.15	\$182.50	-	-	-	
28405	\$307.77	\$277.63	-	-	-	
28406	-	-	\$430.23	-	-	
28415	-	-	\$884.02	-	-	
28420	-	-	\$1,016.67	-	-	
28430	\$191.51	\$167.74	-	-	-	
28435	\$291.41	\$258.08	-	-	-	
28436	-	-	\$373.47	-	-	
28445	-	-	\$816.70	-	-	
28446	-	-	\$965.06	-	-	
28450	\$169.68	\$152.29	-	-	-	
28455	\$230.03	\$204.81	-	-	-	
28456	-	-	\$272.75	-	-	
28465	-	-	\$499.72	-	-	
28470	\$175.10	\$163.22	-	-	-	
28475	\$204.55	\$179.91	-	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
28476	-	-	\$294.66	-	-	
28485	-	-	\$438.13	-	-	
28490	\$114.37	\$99.30	-	-	-	
28495	\$142.83	\$118.20	-	-	-	
28496	\$368.36	\$193.01	-	-	-	
28505	\$531.84	\$392.72	-	-	-	
28510	\$97.11	\$95.38	-	-	-	
28515	\$130.71	\$113.61	-	-	-	
28525	\$461.45	\$319.72	-	-	-	
28530	\$92.42	\$80.25	-	-	-	
28531	\$274.75	\$144.04	-	-	-	
28540	\$155.25	\$139.02	-	-	-	
28545	\$242.56	\$212.13	-	-	-	
28546	\$473.91	\$274.21	-	-	-	
28555	\$682.90	\$513.35	-	-	-	
28570	\$184.52	\$154.09	-	-	-	
28575	\$296.79	\$265.78	-	-	-	
28576	-	-	\$307.52	-	-	
28585	\$690.07	\$535.88	-	-	-	
28600	\$173.23	\$147.44	-	-	-	
28605	\$268.00	\$238.72	-	-	-	
28606	-	-	\$308.04	-	-	
28615	-	-	\$645.06	-	-	
28630	\$124.62	\$87.23	-	-	-	
28635	\$140.23	\$104.58	-	-	-	
28636	\$251.62	\$157.72	-	-	-	
28645	\$526.60	\$383.72	-	-	-	
28660	\$94.94	\$71.76	-	-	-	
28665	\$122.03	\$102.04	-	-	-	
28666	-	-	\$131.35	-	-	
28675	\$459.18	\$320.06	-	-	-	
28705	-	-	\$964.83	-	-	
28715	-	-	\$742.94	-	-	
28725	-	-	\$615.60	-	-	
28730	-	-	\$581.12	-	-	
28735	-	-	\$611.05	-	-	
28737	-	-	\$543.36	-	-	
28740	\$672.96	\$490.36	-	-	-	
28750	\$640.11	\$460.99	-	-	-	
28755	\$411.64	\$263.25	-	-	-	
28760	\$626.58	\$454.13	-	-	-	
28800	-	-	\$420.29	-	-	
28805	-	-	\$565.59	-	-	
28810	-	-	\$337.35	-	-	
28820	\$449.30	\$310.18	-	-	-	
28825	\$430.28	\$291.16	-	-	-	
28890	\$256.25	\$175.09	-	-	-	
28899	-	-	I.C.	-	-	
29000	\$271.63	\$152.22	-	-	-	
29010	\$214.24	\$125.84	-	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
29015	\$230.16	\$142.05	-	-	-	
29035	\$200.73	\$112.33	-	-	-	
29040	\$229.36	\$136.03	-	-	-	
29044	\$225.01	\$131.40	-	-	-	
29046	\$246.39	\$147.56	-	-	-	
29049	\$77.87	\$54.97	-	-	-	
29055	\$174.33	\$107.96	-	-	-	
29058	\$97.30	\$74.11	-	-	-	
29065	\$75.40	\$53.66	-	-	-	
29075	\$67.95	\$48.53	-	-	-	
29085	\$74.86	\$52.84	-	-	-	
29086	\$62.42	\$40.68	-	-	-	
29105	\$64.40	\$32.52	-	-	-	
29125	\$51.12	\$31.12	-	-	-	
29126	\$61.11	\$38.50	-	-	-	
29130	\$32.57	\$23.00	-	-	-	
29131	\$41.14	\$26.65	-	-	-	
29200	\$25.91	\$14.60	-	-	-	
29240	\$24.46	\$14.60	-	-	-	
29260	\$23.83	\$15.14	-	-	-	
29280	\$24.32	\$16.21	-	-	-	
29305	\$194.02	\$124.46	-	-	-	
29325	\$214.78	\$139.71	-	-	-	
29345	\$106.93	\$78.53	-	-	-	
29355	\$111.78	\$83.96	-	-	-	
29358	\$125.94	\$81.02	-	-	-	
29365	\$96.64	\$68.52	-	-	-	
29405	\$63.00	\$46.48	-	-	-	
29425	\$60.43	\$43.62	-	-	-	
29435	\$90.35	\$64.27	-	-	-	
29440	\$34.02	\$22.43	-	-	-	
29445	\$102.46	\$79.85	-	-	-	
29450	\$113.02	\$88.39	-	-	-	
29505	\$67.66	\$39.84	-	-	-	
29515	\$55.97	\$38.87	-	-	-	
29520	\$27.94	\$14.89	-	-	-	
29530	\$24.17	\$14.60	-	-	-	
29540	\$22.38	\$13.69	-	-	-	
29550	\$14.95	\$8.86	-	-	-	
29580	\$50.46	\$21.19	-	-	-	
29581	\$72.06	\$21.62	-	-	-	
29584	\$67.79	\$12.72	-	-	-	
29700	\$49.79	\$26.02	-	-	-	
29705	\$50.39	\$35.61	-	-	-	
29710	\$96.36	\$65.34	-	-	-	
29720	\$66.73	\$34.26	-	-	-	
29730	\$48.67	\$33.89	-	-	-	
29740	\$77.95	\$54.76	-	-	-	
29750	\$84.42	\$61.24	-	-	-	
29799	-	-	I.C.	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
29800	-	-	\$418.58	-	-	
29804	-	-	\$489.32	-	-	
29805	-	-	\$372.69	-	-	
29806	-	-	\$834.86	-	-	
29807	-	-	\$816.91	-	-	
29819	-	-	\$464.22	-	-	
29820	-	-	\$424.78	-	-	
29821	-	-	\$469.44	-	-	
29822	-	-	\$456.75	-	-	
29823	-	-	\$496.82	-	-	
29824	-	-	\$534.31	-	-	
29825	-	-	\$464.22	-	-	
29826	-	-	\$136.43	-	-	
29827	-	-	\$844.17	-	-	
29828	-	-	\$724.97	-	-	
29830	-	-	\$361.76	-	-	
29834	-	-	\$390.01	-	-	
29835	-	-	\$403.03	-	-	
29836	-	-	\$462.54	-	-	
29837	-	-	\$417.43	-	-	
29838	-	-	\$468.82	-	-	
29840	-	-	\$357.95	-	-	
29843	-	-	\$385.08	-	-	
29844	-	-	\$396.15	-	-	
29845	-	-	\$462.06	-	-	
29846	-	-	\$413.98	-	-	
29847	-	-	\$430.33	-	-	
29848	-	-	\$404.85	-	-	
29850	-	-	\$493.42	-	-	
29851	-	-	\$734.42	-	-	
29855	-	-	\$618.41	-	-	
29856	-	-	\$781.24	-	-	
29860	-	-	\$527.43	-	-	
29861	-	-	\$569.94	-	-	
29862	-	-	\$642.63	-	-	
29863	-	-	\$644.53	-	-	
29866	-	-	\$829.88	-	-	
29867	-	-	\$1,008.51	-	-	
29868	-	-	\$1,316.98	-	-	
29870	\$458.79	\$325.18	-	-	-	
29871	-	-	\$406.96	-	-	
29873	-	-	\$420.89	-	-	
29874	-	-	\$425.61	-	-	
29875	-	-	\$393.28	-	-	
29876	-	-	\$516.90	-	-	
29877	-	-	\$491.46	-	-	
29879	-	-	\$523.38	-	-	
29880	-	-	\$444.70	-	-	
29881	-	-	\$428.75	-	-	
29882	-	-	\$547.22	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
29883	-	-	\$664.50	-	-	
29884	-	-	\$489.77	-	-	
29885	-	-	\$596.79	-	-	
29886	-	-	\$503.43	-	-	
29887	-	-	\$594.11	-	-	
29888	-	-	\$773.44	-	-	
29889	-	-	\$965.39	-	-	
29891	-	-	\$529.46	-	-	
29892	-	-	\$513.46	-	-	
29893	\$512.83	\$340.96	-	-	-	
29894	-	-	\$393.98	-	-	
29895	-	-	\$366.68	-	-	
29897	-	-	\$394.59	-	-	
29898	-	-	\$444.26	-	-	
29899	-	-	\$812.60	-	-	
29900	-	-	\$396.25	-	-	
29901	-	-	\$425.75	-	-	
29902	-	-	\$451.64	-	-	
29904	-	-	\$503.86	-	-	
29905	-	-	\$406.74	-	-	
29906	-	-	\$524.29	-	-	
29907	-	-	\$692.51	-	-	
29914	-	-	\$784.03	-	-	
29915	-	-	\$807.23	-	-	
29916	-	-	\$807.61	-	-	
29999	-	-	I.C.	-	-	
30000	\$203.48	\$93.34	-	-	-	
30020	\$205.50	\$93.92	-	-	-	
30100	\$113.95	\$52.51	-	-	-	
30110	\$192.46	\$102.03	-	-	-	
30115	-	-	\$354.48	-	-	
30117	\$757.21	\$264.49	-	-	-	
30118	-	-	\$609.85	-	-	
30120	\$406.79	\$336.94	-	-	-	
30124	-	-	\$231.59	-	-	
30125	-	-	\$498.11	-	-	
30130	-	-	\$316.30	-	-	
30140	\$224.93	\$138.85	-	-	-	
30150	-	-	\$621.45	-	-	
30160	-	-	\$624.66	-	-	
30200	\$89.76	\$45.70	-	-	-	
30210	\$119.44	\$78.28	-	-	-	
30220	\$247.22	\$98.53	-	-	-	
30300	\$153.25	\$90.35	-	-	-	
30310	-	-	\$161.91	-	-	
30320	-	-	\$370.42	-	-	
30400	-	-	\$960.02	-	-	
30410*	-	-	\$1,109.82	-	-	
30420*	-	-	\$1,116.68	-	-	
30430	-	-	\$834.96	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
30435	-	-	\$1,049.34	-	-	
30450	-	-	\$1,379.84	-	-	
30460	-	-	\$658.63	-	-	
30462	-	-	\$1,265.37	-	-	
30468	\$2431.79	\$132.08	-	-	-	
30520	-	-	\$512.92	-	-	
30540	-	-	\$562.31	-	-	
30545	-	-	\$765.70	-	-	
30560	\$237.69	\$112.49	-	-	-	
30580	\$496.42	\$375.27	-	-	-	
30600	\$470.54	\$339.24	-	-	-	
30620	-	-	\$509.99	-	-	
30630	-	-	\$512.29	-	-	
30801	\$175.64	\$115.36	-	-	-	
30802	\$221.44	\$155.36	-	-	-	
30901	\$115.03	\$44.02	-	-	-	
30903	\$183.10	\$61.08	-	-	-	
30905	\$273.03	\$82.61	-	-	-	
30906	\$283.31	\$105.93	-	-	-	
30915	-	-	\$463.19	-	-	
30920	-	-	\$670.67	-	-	
30930	-	-	\$93.65	-	-	
30999	-	-	I.C.	-	-	
31000	\$146.18	\$83.86	-	-	-	
31002	-	-	\$150.55	-	-	
31020	\$382.47	\$297.84	-	-	-	
31030	\$517.39	\$408.42	-	-	-	
31032	-	-	\$458.89	-	-	
31040	-	-	\$620.76	-	-	
31050	-	-	\$394.51	-	-	
31051	-	-	\$528.42	-	-	
31070	-	-	\$360.96	-	-	
31075	-	-	\$632.82	-	-	
31080	-	-	\$833.03	-	-	
31081	-	-	\$894.61	-	-	
31084	-	-	\$926.00	-	-	
31085	-	-	\$955.70	-	-	
31086	-	-	\$901.93	-	-	
31087	-	-	\$861.33	-	-	
31090	-	-	\$845.26	-	-	
31200	-	-	\$479.43	-	-	
31201	-	-	\$610.64	-	-	
31205	-	-	\$733.30	-	-	
31225	-	-	\$1,429.90	-	-	
31230	-	-	\$1,583.25	-	-	
31231	\$155.54	\$49.46	-	-	-	
31233	\$209.22	\$104.59	-	-	-	
31235	\$238.15	\$123.66	-	-	-	
31237	\$201.01	\$123.62	-	-	-	
31238	\$197.63	\$129.81	-	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
31239	-	-	\$478.31	-	-	
31240	-	-	\$123.02	-	-	
31241	-	-	\$345.56	-	-	
31253	-	-	\$389.67	-	-	
31254	\$334.41	\$189.21	-	-	-	
31255	-	-	\$252.16	-	-	
31256	-	-	\$140.27	-	-	
31257	-	-	\$347.01	-	-	
31259	-	-	\$367.26	-	-	
31267	-	-	\$206.23	-	-	
31276	-	-	\$294.09	-	-	
31287	-	-	\$156.77	-	-	
31288	-	-	\$181.89	-	-	
31290	-	-	\$890.46	-	-	
31291	-	-	\$950.43	-	-	
31292	-	-	\$774.93	-	-	
31293	-	-	\$836.51	-	-	
31294	-	-	\$956.95	-	-	
31295	\$1,543.48	\$122.71	-	-	-	
31296	\$1,563.39	\$139.72	-	-	-	
31297	\$1,532.08	\$111.89	-	-	-	
31298	\$2,945.67	\$198.90	-	-	-	
31299	-	-	I.C.	-	-	
31300	-	-	\$998.33	-	-	
31360	-	-	\$1,624.50	-	-	
31365	-	-	\$2,004.61	-	-	
31367	-	-	\$1,721.09	-	-	
31368	-	-	\$1,908.24	-	-	
31370	-	-	\$1,620.41	-	-	
31375	-	-	\$1,538.38	-	-	
31380	-	-	\$1,517.32	-	-	
31382	-	-	\$1,662.59	-	-	
31390	-	-	\$2,219.51	-	-	
31395	-	-	\$2,342.19	-	-	
31400	-	-	\$776.47	-	-	
31420	-	-	\$645.73	-	-	
31500	-	-	\$110.69	-	-	
31502	-	-	\$27.27	-	-	
31505	\$69.98	\$38.38	-	-	-	
31510	\$169.71	\$94.06	-	-	-	
31511	\$168.31	\$103.10	-	-	-	
31512	\$167.27	\$100.02	-	-	-	
31513	-	-	\$101.40	-	-	
31515	\$165.50	\$85.51	-	-	-	
31520	-	-	\$120.82	-	-	
31525	\$199.11	\$124.04	-	-	-	
31526	-	-	\$121.38	-	-	
31527	-	-	\$150.85	-	-	
31528	-	-	\$111.28	-	-	
31529	-	-	\$124.79	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
31530	-	-	\$154.74	-	-	
31531	-	-	\$164.06	-	-	
31535	-	-	\$146.48	-	-	
31536	-	-	\$162.98	-	-	
31540	-	-	\$187.06	-	-	
31541	-	-	\$204.06	-	-	
31545	-	-	\$280.10	-	-	
31546	-	-	\$425.20	-	-	
31551	-	-	\$1,197.35	-	-	
31552	-	-	\$1,155.76	-	-	
31553	-	-	\$1,319.57	-	-	
31554	-	-	\$1,319.85	-	-	
31560	-	-	\$242.11	-	-	
31561	-	-	\$264.03	-	-	
31570	\$268.56	\$177.26	-	-	-	
31571	-	-	\$192.71	-	-	
31572	\$418.51	\$139.98	-	-	-	
31573	\$219.24	\$114.90	-	-	-	
31574	\$819.49	\$114.90	-	-	-	
31575	\$98.30	\$52.22	-	-	-	
31576	\$215.33	\$92.15	-	-	-	
31577	\$223.02	\$103.90	-	-	-	
31578	\$241.85	\$114.61	-	-	-	
31579	\$152.46	\$93.05	-	-	-	
31580	-	-	\$1,006.46	-	-	
31584	-	-	\$1,109.99	-	-	
31587	-	-	\$933.98	-	-	
31590	-	-	\$699.04	-	-	
31591	-	-	\$849.85	-	-	
31592	-	-	\$1,345.76	-	-	
31599	-	-	I.C.	-	-	
31600	-	-	\$239.46	-	-	
31601	-	-	\$349.91	-	-	
31603	-	-	\$250.26	-	-	
31605	-	-	\$259.71	-	-	
31610	-	-	\$753.27	-	-	
31611	-	-	\$419.71	-	-	
31612	\$68.52	\$36.93	-	-	-	
31613	-	-	\$345.99	-	-	
31614	-	-	\$574.29	-	-	
31615	\$135.79	\$89.42	-	-	-	
31622	\$192.27	\$102.42	-	-	-	
31623	\$214.57	\$103.27	-	-	-	
31624	\$200.03	\$104.67	-	-	-	
31625	\$275.19	\$121.57	-	-	-	
31626	\$678.89	\$153.71	-	-	-	
31627	\$1,046.67	\$74.85	-	-	-	
31628	\$291.50	\$136.72	-	-	-	
31629	\$362.12	\$145.04	-	-	-	
31630	-	-	\$154.49	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
31631	-	-	\$177.04	-	-	
31632	\$49.82	\$38.51	-	-	-	
31633	\$61.86	\$49.10	-	-	-	
31634	\$1,407.82	\$149.07	-	-	-	
31635	\$224.55	\$136.73	-	-	-	
31636	-	-	\$170.79	-	-	
31637	-	-	\$59.88	-	-	
31638	-	-	\$193.49	-	-	
31640	-	-	\$194.66	-	-	
31641	-	-	\$198.98	-	-	
31643	-	-	\$136.25	-	-	
31645	\$209.71	\$114.36	-	-	-	
31646	-	-	\$110.35	-	-	
31647	-	-	\$163.76	-	-	
31648	-	-	\$155.55	-	-	
31649	-	-	\$52.49	-	-	
31651	-	-	\$57.36	-	-	
31652	\$893.32	\$172.21	-	-	-	
31653	\$930.99	\$191.04	-	-	-	
31654	\$96.93	\$52.29	-	-	-	
31660	-	-	\$151.42	-	-	
31661	-	-	\$160.58	-	-	
31717	\$219.03	\$82.52	-	-	-	
31720	-	-	\$42.99	-	-	
31725	-	-	\$60.87	-	-	
31730	\$971.42	\$116.11	-	-	-	
31750*	-	-	\$1,085.74	-	-	
31755	-	-	\$1,371.90	-	-	
31760	-	-	\$1,067.13	-	-	
31766	-	-	\$1,378.52	-	-	
31770	-	-	\$1,032.11	-	-	
31775	-	-	\$1,084.82	-	-	
31780	-	-	\$931.09	-	-	
31781	-	-	\$1,074.30	-	-	
31785	-	-	\$837.15	-	-	
31786	-	-	\$1,118.68	-	-	
31800	-	-	\$564.97	-	-	
31805	-	-	\$636.06	-	-	
31820	\$345.61	\$256.34	-	-	-	
31825	\$475.25	\$374.67	-	-	-	
31830	\$369.55	\$277.67	-	-	-	
31899	-	-	I.C.	-	-	
32035	-	-	\$569.30	-	-	
32036	-	-	\$609.30	-	-	
32096	-	-	\$623.23	-	-	
32097	-	-	\$623.81	-	-	
32098	-	-	\$591.52	-	-	
32100	-	-	\$630.18	-	-	
32110	-	-	\$1,141.35	-	-	
32120	-	-	\$680.35	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
32124	-	-	\$721.55	-	-	
32140	-	-	\$770.60	-	-	
32141	-	-	\$1,181.88	-	-	
32150	-	-	\$781.82	-	-	
32151	-	-	\$781.81	-	-	
32160	-	-	\$620.37	-	-	
32200	-	-	\$885.34	-	-	
32215	-	-	\$621.95	-	-	
32220	-	-	\$1,237.54	-	-	
32225	-	-	\$774.14	-	-	
32310	-	-	\$710.35	-	-	
32320	-	-	\$1,242.68	-	-	
32400	\$127.17	\$66.88	-	-	-	
32408	\$796.68	\$119.54	-	-	-	
32440	-	-	\$1,216.61	-	-	
32442	-	-	\$2,371.38	-	-	
32445	-	-	\$2,741.26	-	-	
32480	-	-	\$1,148.89	-	-	
32482	-	-	\$1,232.13	-	-	
32484	-	-	\$1,112.36	-	-	
32486	-	-	\$1,824.24	-	-	
32488	-	-	\$1,855.49	-	-	
32491	-	-	\$1,143.36	-	-	
32501	-	-	\$187.82	-	-	
32503	-	-	\$1,393.95	-	-	
32504	-	-	\$1,587.34	-	-	
32505	-	-	\$724.84	-	-	
32506	-	-	\$120.66	-	-	
32507	-	-	\$120.66	-	-	
32540	-	-	\$1,346.49	-	-	
32550	\$638.67	\$161.02	-	-	-	
32551	-	-	\$122.31	-	-	
32552	\$145.24	\$124.09	-	-	-	
32553	\$427.49	\$139.69	-	-	-	
32554	\$178.14	\$69.74	-	-	-	
32555	\$250.07	\$86.90	-	-	-	
32556	\$544.74	\$95.78	-	-	-	
32557	\$499.78	\$118.65	-	-	-	
32560	\$209.04	\$60.35	-	-	-	
32561	\$73.10	\$52.52	-	-	-	
32562	\$65.93	\$47.09	-	-	-	
32601	-	-	\$239.68	-	-	
32604	-	-	\$371.54	-	-	
32606	-	-	\$358.59	-	-	
32607	-	-	\$239.39	-	-	
32608	-	-	\$293.83	-	-	
32609	-	-	\$199.82	-	-	
32650	-	-	\$519.27	-	-	
32651	-	-	\$851.34	-	-	
32652	-	-	\$1,289.74	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
32653	-	-	\$825.78	-	-	
32654	-	-	\$903.73	-	-	
32655	-	-	\$743.27	-	-	
32656	-	-	\$624.84	-	-	
32658	-	-	\$556.18	-	-	
32659	-	-	\$570.21	-	-	
32661	-	-	\$621.05	-	-	
32662	-	-	\$694.14	-	-	
32663	-	-	\$1,086.14	-	-	
32664	-	-	\$659.17	-	-	
32665	-	-	\$956.52	-	-	
32666	-	-	\$676.47	-	-	
32667	-	-	\$120.95	-	-	
32668	-	-	\$120.95	-	-	
32669	-	-	\$1,043.35	-	-	
32670	-	-	\$1,244.90	-	-	
32671	-	-	\$1,376.81	-	-	
32672	-	-	\$1,181.96	-	-	
32673	-	-	\$945.78	-	-	
32674	-	-	\$166.26	-	-	
32701	-	-	\$165.67	-	-	
32800	-	-	\$736.18	-	-	
32810	-	-	\$700.91	-	-	
32815	-	-	\$2,170.76	-	-	
32820	-	-	\$1,034.27	-	-	
32850	-	-	I.C.	-	-	
32851	-	-	\$2,540.92	-	-	
32852	-	-	\$2,758.27	-	-	
32853	-	-	\$3,556.51	-	-	
32854	-	-	\$3,776.25	-	-	
32855	-	-	I.C.	-	-	
32856	-	-	I.C.	-	-	
32900	-	-	\$1,106.45	-	-	
32905	-	-	\$1,036.52	-	-	
32906	-	-	\$1,279.25	-	-	
32940	-	-	\$957.84	-	-	
32960	\$99.53	\$70.83	-	-	-	
32994	\$4,489.04	\$345.26	-	-	-	
32997	-	-	\$264.86	-	-	
32998	\$2,860.16	\$344.39	-	-	-	
32999	-	-	I.C.	-	-	
33016	-	-	\$183.59	-	-	
33017	-	-	\$190.38	-	-	
33018	-	-	\$217.07	-	-	
33019	-	-	\$176.24	-	-	
33020	-	-	\$642.58	-	-	
33025	-	-	\$599.23	-	-	
33030	-	-	\$1,552.04	-	-	
33031	-	-	\$1,921.41	-	-	
33050	-	-	\$781.74	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
33120	-	-	\$1,625.08	-	-	
33130	-	-	\$1,062.13	-	-	
33140	-	-	\$1,210.01	-	-	
33141	-	-	\$101.91	-	-	
33202	-	-	\$599.81	-	-	
33203	-	-	\$627.35	-	-	
33206	-	-	\$357.35	-	-	
33207	-	-	\$376.54	-	-	
33208	-	-	\$409.08	-	-	
33210	-	-	\$127.10	-	-	
33211	-	-	\$131.42	-	-	
33212	-	-	\$252.82	-	-	
33213	-	-	\$263.77	-	-	
33214	-	-	\$376.37	-	-	
33215	-	-	\$244.15	-	-	
33216	-	-	\$293.30	-	-	
33217	-	-	\$288.78	-	-	
33218	-	-	\$304.60	-	-	
33220	-	-	\$295.77	-	-	
33221	-	-	\$284.82	-	-	
33222	-	-	\$268.46	-	-	
33223	-	-	\$322.59	-	-	
33224	-	-	\$403.05	-	-	
33225	-	-	\$366.83	-	-	
33226	-	-	\$387.35	-	-	
33227	-	-	\$266.45	-	-	
33228	-	-	\$278.81	-	-	
33229	-	-	\$295.06	-	-	
33230	-	-	\$300.57	-	-	
33231	-	-	\$316.02	-	-	
33233	-	-	\$182.83	-	-	
33234	-	-	\$381.95	-	-	
33235	-	-	\$502.01	-	-	
33236	-	-	\$609.38	-	-	
33237	-	-	\$653.15	-	-	
33238	-	-	\$733.82	-	-	
33240	-	-	\$286.88	-	-	
33241	-	-	\$169.30	-	-	
33243	-	-	\$1,066.85	-	-	
33244	-	-	\$680.15	-	-	
33249	-	-	\$720.07	-	-	
33250	-	-	\$1,130.95	-	-	
33251	-	-	\$1,263.53	-	-	
33254	-	-	\$1,050.71	-	-	
33255	-	-	\$1,263.84	-	-	
33256	-	-	\$1,504.53	-	-	
33257	-	-	\$453.49	-	-	
33258	-	-	\$506.16	-	-	
33259	-	-	\$657.65	-	-	
33261	-	-	\$1,251.76	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
33262	-	-	\$293.85	-	-	
33263	-	-	\$305.43	-	-	
33264	-	-	\$319.14	-	-	
33265	-	-	\$1,056.53	-	-	
33266	-	-	\$1,433.69	-	-	
33270	-	-	\$444.88	-	-	
33271	-	-	\$355.68	-	-	
33272	-	-	\$273.19	-	-	
33273	-	-	\$313.42	-	-	
33274	-	-	\$382.34	-	-	
33275	-	-	\$418.00	-	-	
33285	\$4,138.20	\$69.20	-	-	-	
33286	\$105.21	\$68.11	-	-	-	
33289	-	-	\$256.42	-	-	
33300	-	-	\$1,902.84	-	-	
33305	-	-	\$3,178.90	-	-	
33310	-	-	\$908.85	-	-	
33315	-	-	\$1,484.42	-	-	
33320	-	-	\$818.27	-	-	
33321	-	-	\$923.14	-	-	
33322	-	-	\$1,080.71	-	-	
33330	-	-	\$1,106.70	-	-	
33335	-	-	\$1,451.46	-	-	
33340	-	-	\$616.33	-	-	
33361	-	-	\$941.30	-	-	
33362	-	-	\$1,025.21	-	-	
33363	-	-	\$1,062.98	-	-	
33364	-	-	\$1,061.42	-	-	
33365	-	-	\$1,124.66	-	-	
33366	-	-	\$1,223.21	-	-	
33367	-	-	\$488.67	-	-	
33368	-	-	\$575.19	-	-	
33369	-	-	\$759.21	-	-	
33390	-	-	\$1,498.73	-	-	
33391	-	-	\$1,781.06	-	-	
33404	-	-	\$1,358.29	-	-	
33405	-	-	\$1,762.29	-	-	
33406	-	-	\$2,235.19	-	-	
33410	-	-	\$1,974.27	-	-	
33411	-	-	\$2,606.60	-	-	
33412	-	-	\$2,445.97	-	-	
33413	-	-	\$2,505.15	-	-	
33414	-	-	\$1,666.77	-	-	
33415	-	-	\$1,576.75	-	-	
33416	-	-	\$1,569.77	-	-	
33417	-	-	\$1,295.69	-	-	
33418	-	-	\$1,400.90	-	-	
33419	-	-	\$329.99	-	-	
33420	-	-	\$1,127.01	-	-	
33422	-	-	\$1,292.97	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
33425	-	-	\$2,120.35	-	-	
33426	-	-	\$1,849.49	-	-	
33427	-	-	\$1,895.82	-	-	
33430	-	-	\$2,174.74	-	-	
33440	-	-	\$2,658.83	-	-	
33460	-	-	\$1,864.61	-	-	
33463	-	-	\$2,396.46	-	-	
33464	-	-	\$1,895.15	-	-	
33465	-	-	\$2,139.69	-	-	
33468	-	-	\$1,901.64	-	-	
33470	-	-	\$962.87	-	-	
33471	-	-	\$1,029.73	-	-	
33474	-	-	\$1,690.71	-	-	
33475	-	-	\$1,811.18	-	-	
33476	-	-	\$1,183.33	-	-	
33477	-	-	\$1,055.94	-	-	
33478	-	-	\$1,222.57	-	-	
33496	-	-	\$1,293.24	-	-	
33500	-	-	\$1,213.04	-	-	
33501	-	-	\$867.89	-	-	
33502	-	-	\$993.39	-	-	
33503	-	-	\$1,032.54	-	-	
33504	-	-	\$1,139.70	-	-	
33505	-	-	\$1,599.34	-	-	
33506	-	-	\$1,592.87	-	-	
33507	-	-	\$1,336.60	-	-	
33508	-	-	\$12.79	-	-	
33510	-	-	\$1,502.59	-	-	
33511	-	-	\$1,649.05	-	-	
33512	-	-	\$1,877.69	-	-	
33513	-	-	\$1,926.63	-	-	
33514	-	-	\$2,025.66	-	-	
33516	-	-	\$2,099.69	-	-	
33517	-	-	\$145.15	-	-	
33518	-	-	\$318.77	-	-	
33519	-	-	\$421.54	-	-	
33521	-	-	\$506.01	-	-	
33522	-	-	\$567.09	-	-	
33523	-	-	\$644.35	-	-	
33530	-	-	\$407.09	-	-	
33533	-	-	\$1,453.21	-	-	
33534	-	-	\$1,706.94	-	-	
33535	-	-	\$1,902.72	-	-	
33536	-	-	\$2,049.77	-	-	
33542	-	-	\$2,039.21	-	-	
33545	-	-	\$2,383.69	-	-	
33548	-	-	\$2,298.07	-	-	
33572	-	-	\$178.15	-	-	
33600	-	-	\$1,334.95	-	-	
33602	-	-	\$1,296.25	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
33606	-	-	\$1,381.32	-	-	
33608	-	-	\$1,398.94	-	-	
33610	-	-	\$1,379.21	-	-	
33611	-	-	\$1,513.91	-	-	
33612	-	-	\$1,553.93	-	-	
33615	-	-	\$1,550.53	-	-	
33617	-	-	\$1,679.57	-	-	
33619	-	-	\$2,127.72	-	-	
33620	-	-	\$1,280.04	-	-	
33621	-	-	\$723.53	-	-	
33622	-	-	\$2,663.88	-	-	
33641	-	-	\$1,272.49	-	-	
33645	-	-	\$1,343.89	-	-	
33647	-	-	\$1,410.13	-	-	
33660	-	-	\$1,363.46	-	-	
33665	-	-	\$1,484.80	-	-	
33670	-	-	\$1,529.69	-	-	
33675	-	-	\$1,529.71	-	-	
33676	-	-	\$1,569.74	-	-	
33677	-	-	\$1,631.05	-	-	
33681	-	-	\$1,431.31	-	-	
33684	-	-	\$1,465.61	-	-	
33688	-	-	\$1,461.42	-	-	
33690	-	-	\$934.52	-	-	
33692	-	-	\$1,517.20	-	-	
33694	-	-	\$1,513.91	-	-	
33697	-	-	\$1,594.45	-	-	
33702	-	-	\$1,201.88	-	-	
33710	-	-	\$1,591.04	-	-	
33720	-	-	\$1,202.66	-	-	
33722	-	-	\$1,263.66	-	-	
33724	-	-	\$1,194.63	-	-	
33726	-	-	\$1,576.68	-	-	
33730	-	-	\$1,556.94	-	-	
33732	-	-	\$1,281.27	-	-	
33735	-	-	\$1,008.40	-	-	
33736	-	-	\$1,094.02	-	-	
33737	-	-	\$1,009.49	-	-	
33750	-	-	\$981.97	-	-	
33755	-	-	\$1,024.69	-	-	
33762	-	-	\$997.15	-	-	
33764	-	-	\$1,024.69	-	-	
33766	-	-	\$1,036.88	-	-	
33767	-	-	\$1,105.25	-	-	
33768	-	-	\$322.27	-	-	
33770	-	-	\$1,642.23	-	-	
33771	-	-	\$1,688.99	-	-	
33774	-	-	\$1,398.33	-	-	
33741		-	\$585.82	-	-	
33745	-	-	\$829.79	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
33746	-	-	\$328.55	-	-	
33775	-	-	\$1,439.76	-	-	
33776	-	-	\$1,522.57	-	-	
33777	-	-	\$1,469.27	-	-	
33778	-	-	\$1,823.64	-	-	
33779	-	-	\$1,803.13	-	-	
33780	-	-	\$1,836.17	-	-	
33781	-	-	\$1,793.03	-	-	
33782	-	-	\$2,504.76	-	-	
33783	-	-	\$2,707.88	-	-	
33786	-	-	\$1,766.95	-	-	
33788	-	-	\$1,191.11	-	-	
33800	-	-	\$767.28	-	-	
33802	-	-	\$844.39	-	-	
33803	-	-	\$895.27	-	-	
33813	-	-	\$964.99	-	-	
33814	-	-	\$1,184.49	-	-	
33820	-	-	\$753.13	-	-	
33822	-	-	\$793.65	-	-	
33824	-	-	\$918.99	-	-	
33840	-	-	\$963.92	-	-	
33845	-	-	\$1,037.76	-	-	
33851	-	-	\$990.03	-	-	
33852	-	-	\$1,087.91	-	-	
33853	-	-	\$1,424.05	-	-	
33858	-	-	\$2,635.07	-	-	
33859	-	-	\$1,893.22	-	-	
33863	-	-	\$2,444.52	-	-	
33864	-	-	\$2,497.39	-	-	
33866	-	-	\$715.12	-	-	
33871	-	-	\$2,533.06	-	-	
33875	-	-	\$2,127.23	-	-	
33877	-	-	\$2,804.26	-	-	
33880	-	-	\$1,388.49	-	-	
33881	-	-	\$1,192.12	-	-	
33883	-	-	\$864.46	-	-	
33884	-	-	\$304.29	-	-	
33886	-	-	\$741.30	-	-	
33889	-	-	\$609.31	-	-	
33891	-	-	\$742.77	-	-	
33910	-	-	\$2,067.89	-	-	
33915	-	-	\$1,069.44	-	-	
33916	-	-	\$3,274.79	-	-	
33917	-	-	\$1,132.78	-	-	
33920	-	-	\$1,406.07	-	-	
33922	-	-	\$1,080.44	-	-	
33924	-	-	\$221.16	-	-	
33925	-	-	\$1,332.59	-	-	
33926	-	-	\$1,874.05	-	-	
33927	-	-	\$1,975.57	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
33928	-	-	I.C.	-	-	
33929	-	-	I.C.	-	-	
33930	-	-	I.C.	-	-	
33933	-	-	I.C.	-	-	
33935	-	-	\$3,842.66	-	-	
33940	-	-	I.C.	-	-	
33944	-	-	I.C.	-	-	
33945	-	-	\$3,776.38	-	-	
33946	-	-	\$239.30	-	-	
33947	-	-	\$265.88	-	-	
33948	-	-	\$185.91	-	-	
33949	-	-	\$180.34	-	-	
33951	-	-	\$328.48	-	-	
33952	-	-	\$331.98	-	-	
33953	-	-	\$366.13	-	-	
33954	-	-	\$369.03	-	-	
33955	-	-	\$642.07	-	-	
33956	-	-	\$646.62	-	-	
33957	-	-	\$143.17	-	-	
33958	-	-	\$143.17	-	-	
33959	-	-	\$181.27	-	-	
33962	-	-	\$181.27	-	-	
33963	-	-	\$362.10	-	-	
33964	-	-	\$382.11	-	-	
33965	-	-	\$143.17	-	-	
33966	-	-	\$183.74	-	-	
33967	-	-	\$201.05	-	-	
33968	-	-	\$26.25	-	-	
33969	-	-	\$211.17	-	-	
33970	-	-	\$274.35	-	-	
33971	-	-	\$548.82	-	-	
33973	-	-	\$397.49	-	-	
33974	-	-	\$692.73	-	-	
33975	-	-	\$1,011.40	-	-	
33976	-	-	\$1,228.32	-	-	
33977	-	-	\$872.89	-	-	
33978	-	-	\$1,031.01	-	-	
33979	-	-	\$1,507.16	-	-	
33980	-	-	\$1,378.05	-	-	
33981	-	-	\$643.74	-	-	
33982	-	-	\$1,512.57	-	-	
33983	-	-	\$1,788.39	-	-	
33984	-	-	\$220.07	-	-	
33985	-	-	\$397.61	-	-	
33986	-	-	\$405.47	-	-	
33987	-	-	\$161.08	-	-	
33988	-	-	\$601.84	-	-	
33989	-	-	\$382.11	-	-	
33990	-	-	\$329.88	-	-	
33991	-	-	\$483.97	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
33992	-	-	\$154.62	-	-	
33993	-	-	\$135.10	-	-	
33995	-	-	\$281.76	-	-	
33997	-	-	\$125.36	-	-	
33999	-	-	I.C.	-	-	
34001	-	-	\$706.56	-	-	
34051	-	-	\$771.73	-	-	
34101	-	-	\$465.17	-	-	
34111	-	-	\$467.96	-	-	
34151	-	-	\$1,078.44	-	-	
34201	-	-	\$795.58	-	-	
34203	-	-	\$737.51	-	-	
34401	-	-	\$1,132.33	-	-	
34421	-	-	\$578.08	-	-	
34451	-	-	\$1,107.99	-	-	
34471	-	-	\$832.82	-	-	
34490	-	-	\$498.15	-	-	
34501	-	-	\$689.92	-	-	
34502	-	-	\$1,201.05	-	-	
34510	-	-	\$788.63	-	-	
34520	-	-	\$764.23	-	-	
34530	-	-	\$726.39	-	-	
34701	-	-	\$965.25	-	-	
34702	-	-	\$1,438.28	-	-	
34703	-	-	\$1,063.24	-	-	
34704	-	-	\$1,768.19	-	-	
34705	-	-	\$1,187.43	-	-	
34706	-	-	\$1,788.75	-	-	
34707	-	-	\$900.67	-	-	
34708	-	-	\$1,434.93	-	-	
34709	-	-	\$250.30	-	-	
34710	-	-	\$623.44	-	-	
34711	-	-	\$230.62	-	-	
34712	-	-	\$514.80	-	-	
34713	-	-	\$96.55	-	-	
34714	-	-	\$209.75	-	-	
34715	-	-	\$231.65	-	-	
34716	-	-	\$288.02	-	-	
34717	-	-	\$343.57	-	-	
34718	-	-	\$961.68	-	-	
34808	-	-	\$153.81	-	-	
34812	-	-	\$159.72	-	-	
34813	-	-	\$183.08	-	-	
34820	-	-	\$270.42	-	-	
34830	-	-	\$1,359.59	-	-	
34831	-	-	\$1,490.08	-	-	
34832	-	-	\$1,461.94	-	-	
34833	-	-	\$311.57	-	-	
34834	-	-	\$99.97	-	-	
34839	-	-	I.C.	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
34841	-	-	I.C.	-	-	
34842	-	-	I.C.	-	-	
34843	-	-	I.C.	-	-	
34844	-	-	I.C.	-	-	
34845	-	-	I.C.	-	-	
34846	-	-	I.C.	-	-	
34847	-	-	I.C.	-	-	
34848	-	-	I.C.	-	-	
35001	-	-	\$871.45	-	-	
35002	-	-	\$877.84	-	-	
35005	-	-	\$768.80	-	-	
35011	-	-	\$779.03	-	-	
35013	-	-	\$980.52	-	-	
35021	-	-	\$979.18	-	-	
35022	-	-	\$1,119.49	-	-	
35045	-	-	\$761.27	-	-	
35081	-	-	\$1,340.56	-	-	
35082	-	-	\$1,691.90	-	-	
35091	-	-	\$1,382.96	-	-	
35092	-	-	\$2,015.76	-	-	
35102	-	-	\$1,454.73	-	-	
35103	-	-	\$1,730.86	-	-	
35111	-	-	\$1,025.40	-	-	
35112	-	-	\$1,261.15	-	-	
35121	-	-	\$1,219.93	-	-	
35122	-	-	\$1,458.53	-	-	
35131	-	-	\$1,066.98	-	-	
35132	-	-	\$1,261.15	-	-	
35141	-	-	\$855.01	-	-	
35142	-	-	\$1,031.56	-	-	
35151	-	-	\$958.86	-	-	
35152	-	-	\$1,078.54	-	-	
35180	-	-	\$684.46	-	-	
35182	-	-	\$1,390.55	-	-	
35184	-	-	\$744.70	-	-	
35188	-	-	\$997.67	-	-	
35189	-	-	\$1,164.80	-	-	
35190	-	-	\$594.49	-	-	
35201	-	-	\$733.48	-	-	
35206	-	-	\$609.30	-	-	
35207	-	-	\$594.98	-	-	
35211	-	-	\$1,080.92	-	-	
35216	-	-	\$1,614.62	-	-	
35221	-	-	\$1,142.45	-	-	
35226	-	-	\$646.91	-	-	
35231	-	-	\$984.81	-	-	
35236	-	-	\$783.23	-	-	
35241	-	-	\$1,114.70	-	-	
35246	-	-	\$1,214.72	-	-	
35251	-	-	\$1,358.08	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
35256	-	-	\$796.22	-	-	
35261	-	-	\$756.93	-	-	
35266	-	-	\$672.74	-	-	
35271	-	-	\$1,072.94	-	-	
35276	-	-	\$1,132.08	-	-	
35281	-	-	\$1,265.48	-	-	
35286	-	-	\$726.77	-	-	
35301	-	-	\$878.74	-	-	
35302	-	-	\$869.58	-	-	
35303	-	-	\$960.30	-	-	
35304	-	-	\$987.64	-	-	
35305	-	-	\$948.99	-	-	
35306	-	-	\$342.95	-	-	
35311	-	-	\$1,208.81	-	-	
35321	-	-	\$693.33	-	-	
35331	-	-	\$1,126.19	-	-	
35341	-	-	\$1,066.18	-	-	
35351	-	-	\$994.66	-	-	
35355	-	-	\$799.08	-	-	
35361	-	-	\$1,174.86	-	-	
35363	-	-	\$1,253.17	-	-	
35371	-	-	\$634.35	-	-	
35372	-	-	\$759.03	-	-	
35390	-	-	\$123.51	-	-	
35400	-	-	\$114.69	-	-	
35500	-	-	\$246.59	-	-	
35501	-	-	\$1,126.82	-	-	
35506	-	-	\$983.07	-	-	
35508	-	-	\$1,024.45	-	-	
35509	-	-	\$1,090.65	-	-	
35510	-	-	\$948.49	-	-	
35511	-	-	\$864.87	-	-	
35512	-	-	\$930.51	-	-	
35515	-	-	\$1,024.45	-	-	
35516	-	-	\$941.29	-	-	
35518	-	-	\$881.53	-	-	
35521	-	-	\$947.08	-	-	
35522	-	-	\$943.61	-	-	
35523	-	-	\$994.64	-	-	
35525	-	-	\$880.31	-	-	
35526	-	-	\$1,344.04	-	-	
35531	-	-	\$1,503.30	-	-	
35533	-	-	\$1,162.68	-	-	
35535	-	-	\$1,468.59	-	-	
35536	-	-	\$1,304.28	-	-	
35537	-	-	\$1,608.65	-	-	
35538	-	-	\$1,802.48	-	-	
35539	-	-	\$1,691.70	-	-	
35540	-	-	\$1,885.65	-	-	
35556	-	-	\$1,086.18	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
35558	-	-	\$954.79	-	-	
35560	-	-	\$1,315.16	-	-	
35563	-	-	\$1,021.14	-	-	
35565	-	-	\$1,014.33	-	-	
35566	-	-	\$1,294.40	-	-	
35570	-	-	\$1,137.31	-	-	
35571	-	-	\$1,027.24	-	-	
35572	-	-	\$267.15	-	-	
35583	-	-	\$1,119.23	-	-	
35585	-	-	\$1,296.74	-	-	
35587	-	-	\$1,056.43	-	-	
35600	-	-	\$198.46	-	-	
35601	-	-	\$1,082.73	-	-	
35606	-	-	\$909.00	-	-	
35612	-	-	\$806.32	-	-	
35616	-	-	\$850.80	-	-	
35621	-	-	\$850.10	-	-	
35623	-	-	\$1,013.74	-	-	
35626	-	-	\$1,234.96	-	-	
35631	-	-	\$1,433.18	-	-	
35632	-	-	\$1,394.27	-	-	
35633	-	-	\$1,532.91	-	-	
35634	-	-	\$1,364.68	-	-	
35636	-	-	\$1,230.44	-	-	
35637	-	-	\$1,280.59	-	-	
35638	-	-	\$1,351.21	-	-	
35642	-	-	\$762.24	-	-	
35645	-	-	\$731.28	-	-	
35646	-	-	\$1,330.08	-	-	
35647	-	-	\$1,199.18	-	-	
35650	-	-	\$788.66	-	-	
35654	-	-	\$1,061.75	-	-	
35656	-	-	\$838.29	-	-	
35661	-	-	\$841.57	-	-	
35663	-	-	\$939.68	-	-	
35665	-	-	\$910.43	-	-	
35666	-	-	\$989.58	-	-	
35671	-	-	\$873.04	-	-	
35681	-	-	\$62.76	-	-	
35682	-	-	\$272.92	-	-	
35683	-	-	\$314.66	-	-	
35685	-	-	\$153.28	-	-	
35686	-	-	\$123.88	-	-	
35691	-	-	\$730.46	-	-	
35693	-	-	\$645.44	-	-	
35694	-	-	\$763.03	-	-	
35695	-	-	\$791.85	-	-	
35697	-	-	\$113.82	-	-	
35700	-	-	\$117.83	-	-	
35701	-	-	\$342.88	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
35702	-	-	\$320.43	-	-	
35703	-	-	\$324.04	-	-	
35800	-	-	\$563.29	-	-	
35820	-	-	\$1,561.02	-	-	
35840	-	-	\$938.09	-	-	
35860	-	-	\$650.96	-	-	
35870	-	-	\$961.71	-	-	
35875	-	-	\$463.55	-	-	
35876	-	-	\$734.98	-	-	
35879	-	-	\$718.15	-	-	
35881	-	-	\$791.84	-	-	
35883	-	-	\$931.09	-	-	
35884	-	-	\$956.77	-	-	
35901	-	-	\$366.37	-	-	
35903	-	-	\$441.98	-	-	
35905	-	-	\$1,373.93	-	-	
35907	-	-	\$1,472.17	-	-	
36000	\$22.41	\$7.05	-	-	-	
36002	\$122.32	\$82.04	-	-	-	
36005	\$241.70	\$37.08	-	-	-	
36010	\$428.85	\$85.39	-	-	-	
36011	\$705.15	\$122.58	-	-	-	
36012	\$715.27	\$135.02	-	-	-	
36013	\$652.80	\$94.86	-	-	-	
36014	\$678.67	\$118.42	-	-	-	
36015	\$735.04	\$134.50	-	-	-	
36100	\$420.26	\$117.96	-	-	-	
36140	\$390.02	\$69.46	-	-	-	
36160	\$443.93	\$97.00	-	-	-	
36200	\$478.87	\$108.17	-	-	-	
36215	\$877.70	\$165.00	-	-	-	
36216	\$926.77	\$211.75	-	-	-	
36217	\$1,542.47	\$255.02	-	-	-	
36218	\$186.26	\$40.18	-	-	-	
36221	\$857.34	\$155.65	-	-	-	
36222	\$1,012.17	\$219.18	-	-	-	
36223	\$1,302.54	\$246.09	-	-	-	
36224	\$1,685.57	\$279.87	-	-	-	
36225	\$1,247.91	\$245.08	-	-	-	
36226	\$1,592.56	\$275.84	-	-	-	
36227	\$198.64	\$91.40	-	-	-	
36228	\$1,076.55	\$187.04	-	-	-	
36245	\$1,091.95	\$184.76	-	-	-	
36246	\$694.89	\$196.37	-	-	-	
36247	\$1,233.53	\$234.18	-	-	-	
36248	\$110.64	\$37.89	-	-	-	
36251	\$1,135.94	\$201.22	-	-	-	
36252	\$1,217.83	\$279.35	-	-	-	
36253	\$1,803.32	\$278.49	-	-	-	
36254	\$1,759.73	\$321.86	-	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
36260	-	-	\$513.50	-	-	
36261	-	-	\$320.60	-	-	
36262	-	-	\$245.09	-	-	
36299	-	-	I.C.	-	-	
36400	\$20.96	\$14.58	-	-	-	
36405	\$18.28	\$11.90	-	-	-	
36406	\$13.14	\$6.76	-	-	-	
36410	\$13.67	\$7.29	-	-	-	
36415	-	-	I.C.	-	-	
36416	-	-	I.C.	-	-	
36420	-	-	\$36.86	-	-	
36425	-	-	\$31.06	-	-	
36430	-	-	\$28.60	-	-	
36440	-	-	\$39.72	-	-	
36450	-	-	\$133.26	-	-	
36455	-	-	\$98.17	-	-	
36456	-	-	\$79.29	-	-	
36460	-	-	\$271.89	-	-	
36465	\$1,237.00	\$93.02	-	-	-	
36466	\$1,371.31	\$119.51	-	-	-	
36468	-	-	I.C.	-	-	
36470	\$87.42	\$29.45	-	-	-	
36471	\$157.07	\$59.40	-	-	-	
36473	\$1,159.66	\$138.57	-	-	-	
36474	\$232.66	\$69.48	-	-	-	
36475	\$1,110.49	\$216.64	-	-	-	
36476	\$246.40	\$104.67	-	-	-	
36478	\$859.47	\$216.04	-	-	-	
36479	\$260.12	\$105.92	-	-	-	
36481	\$1,564.41	\$257.54	-	-	-	
36482	\$1,554.37	\$139.10	-	-	-	
36483	\$123.01	\$69.68	-	-	-	
36500	-	-	\$142.00	-	-	
36510	\$65.36	\$41.89	-	-	-	
36511	-	-	\$85.80	-	-	
36512	-	-	\$84.93	-	-	
36513	-	-	\$85.31	-	-	
36514	\$550.49	\$74.58	-	-	-	
36516	\$1,601.89	\$65.76	-	-	-	
36522	\$1,577.71	\$76.94	-	-	-	
36555	\$149.65	\$65.31	-	-	-	
36556	\$170.93	\$66.01	-	-	-	
36557	\$891.55	\$250.72	-	-	-	
36558	\$657.57	\$204.85	-	-	-	
36560	\$1,063.44	\$299.72	-	-	-	
36561	\$868.78	\$263.89	-	-	-	
36563	\$962.24	\$286.34	-	-	-	
36565	\$705.36	\$261.62	-	-	-	
36566	\$3,811.59	\$281.98	-	-	-	
36568	-	-	\$71.55	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
36569	-	-	\$73.65	-	-	
36570	\$1,208.40	\$260.35	-	-	-	
36571	\$1,056.97	\$244.85	-	-	-	
36572	\$352.51	\$70.79	-	-	-	
36573	\$324.80	\$65.98	-	-	-	
36575	\$130.40	\$27.22	-	-	-	
36576	\$271.85	\$145.20	-	-	-	
36578	\$378.36	\$160.11	-	-	-	
36580	\$176.39	\$51.47	-	-	-	
36581	\$654.32	\$143.92	-	-	-	
36582	\$802.84	\$227.51	-	-	-	
36583	\$1,027.18	\$257.67	-	-	-	
36584	\$284.07	\$46.70	-	-	-	
36585	\$895.83	\$212.98	-	-	-	
36589	\$130.92	\$108.02	-	-	-	
36590	\$175.45	\$149.65	-	-	-	
36591	-	-	\$20.24	-	-	
36592	-	-	\$22.85	-	-	
36593	-	-	\$25.71	-	-	
36595	\$508.03	\$142.26	-	-	-	
36596	\$98.33	\$34.27	-	-	-	
36597	\$106.34	\$47.21	-	-	-	
36598	\$97.53	\$28.83	-	-	-	
36600	\$24.00	\$12.12	-	-	-	
36620	-	-	\$34.24	-	-	
36625	-	-	\$82.07	-	-	
36640	-	-	\$90.10	-	-	
36660	-	-	\$53.25	-	-	
36680	-	-	\$46.45	-	-	
36800	-	-	\$95.53	-	-	
36810	-	-	\$165.07	-	-	
36815	-	-	\$104.39	-	-	
36818	-	-	\$539.18	-	-	
36819	-	-	\$569.64	-	-	
36820	-	-	\$568.43	-	-	
36821	-	-	\$517.69	-	-	
36823	-	-	\$1,098.38	-	-	
36825	-	-	\$619.82	-	-	
36830	-	-	\$520.09	-	-	
36831	-	-	\$479.98	-	-	
36832	-	-	\$589.24	-	-	
36833	-	-	\$631.69	-	-	
36835	-	-	\$375.65	-	-	
36838	-	-	\$888.63	-	-	
36860	\$197.19	\$86.47	-	-	-	
36861	-	-	\$108.40	-	-	
36901	\$561.43	\$131.61	-	-	-	
36902	\$1,057.07	\$186.40	-	-	-	
36903	\$4,221.28	\$246.77	-	-	-	
36904	\$1,563.88	\$288.31	-	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
36905	\$1,965.34	\$346.03	-	-	-	
36906	\$5,233.35	\$399.18	-	-	-	
36907	\$560.60	\$113.97	-	-	-	
36908	\$1,715.01	\$161.21	-	-	-	
36909	\$1,634.02	\$156.15	-	-	-	
37140	-	-	\$1,820.05	-	-	
37145	-	-	\$1,687.91	-	-	
37160	-	-	\$1,733.89	-	-	
37180	-	-	\$1,666.98	-	-	
37181	-	-	\$1,820.05	-	-	
37182	-	-	\$639.82	-	-	
37183	\$5,081.78	\$291.38	-	-	-	
37184	\$1,595.32	\$338.31	-	-	-	
37185	\$479.46	\$127.31	-	-	-	
37186	\$1,073.51	\$189.22	-	-	-	
37187	\$1,571.30	\$306.46	-	-	-	
37188	\$1,325.23	\$217.48	-	-	-	
37191	\$1,958.67	\$174.16	-	-	-	
37192	\$1,084.73	\$265.36	-	-	-	
37193	\$1,285.15	\$271.89	-	-	-	
37195	-	-	I.C.	-	-	
37197	\$1,304.50	\$234.43	-	-	-	
37200	-	-	\$169.58	-	-	
37211	-	-	\$300.17	-	-	
37212	-	-	\$262.78	-	-	
37213	-	-	\$181.02	-	-	
37214	-	-	\$95.55	-	-	
37215	-	-	\$779.34	-	-	
37216	-	-	\$768.82	-	-	
37217	-	-	\$838.02	-	-	
37218	-	-	\$637.91	-	-	
37220	\$2,352.49	\$310.88	-	-	-	
37221	\$3,188.78	\$383.75	-	-	-	
37222	\$603.09	\$144.28	-	-	-	
37223	\$1,563.91	\$164.87	-	-	-	
37224	\$2,800.37	\$345.47	-	-	-	
37225	\$9,261.28	\$468.25	-	-	-	
37226	\$8,225.25	\$403.75	-	-	-	
37227	\$11,910.50	\$562.86	-	-	-	
37228	\$4,037.01	\$421.02	-	-	-	
37229	\$9,290.36	\$546.02	-	-	-	
37230	\$8,351.68	\$542.93	-	-	-	
37231	\$11,575.67	\$588.87	-	-	-	
37232	\$829.17	\$155.59	-	-	-	
37233	\$1,012.85	\$252.90	-	-	-	
37234	\$3,181.83	\$221.74	-	-	-	
37235	\$3,345.82	\$312.70	-	-	-	
37236	\$2,749.34	\$345.16	-	-	-	
37237	\$1,527.43	\$164.62	-	-	-	
37238	\$2,598.38	\$237.67	-	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
37239	\$1,202.96	\$118.40	-	-	-	
37241	\$4,035.68	\$340.57	-	-	-	
37242	\$6,252.86	\$371.23	-	-	-	
37243	\$7,895.81	\$438.92	-	-	-	
37244	\$5,779.63	\$519.99	-	-	-	
37246	\$1,668.82	\$270.94	-	-	-	
37247	\$583.87	\$132.88	-	-	-	
37248	\$1,225.84	\$231.99	-	-	-	
37249	\$444.90	\$113.61	-	-	-	
37252	\$958.77	\$70.14	-	-	-	
37253	\$151.04	\$56.27	-	-	-	
37500	-	-	\$491.06	-	-	
37501	-	-	I.C.	-	-	
37565	-	-	\$566.35	-	-	
37600	-	-	\$575.25	-	-	
37605	-	-	\$570.59	-	-	
37606	-	-	\$563.62	-	-	
37607	-	-	\$292.88	-	-	
37609	\$248.83	\$161.88	-	-	-	
37615	-	-	\$416.35	-	-	
37616	-	-	\$862.17	-	-	
37617	-	-	\$1,037.66	-	-	
37618	-	-	\$304.55	-	-	
37619	-	-	\$1,353.66	-	-	
37650	-	-	\$355.24	-	-	
37660	-	-	\$1,031.88	-	-	
37700	-	-	\$191.77	-	-	
37718	-	-	\$328.52	-	-	
37722	-	-	\$368.00	-	-	
37735	-	-	\$449.84	-	-	
37760	-	-	\$486.63	-	-	
37761	-	-	\$423.35	-	-	
37765	\$351.17	\$212.05	-	-	-	
37766	\$409.17	\$259.32	-	-	-	
37780	-	-	\$182.38	-	-	
37785	\$281.97	\$202.55	-	-	-	
37788	-	-	\$989.07	-	-	
37790	-	-	\$381.61	-	-	
37799	-	-	I.C.	-	-	
38100	-	-	\$905.08	-	-	
38101	-	-	\$914.90	-	-	
38102	-	-	\$204.69	-	-	
38115	-	-	\$1,001.74	-	-	
38120	-	-	\$828.79	-	-	
38129	-	-	I.C.	-	-	
38200	-	-	\$104.11	-	-	
38204	-	-	\$79.29	-	-	
38205	-	-	\$66.63	-	-	
38206	-	-	\$66.34	-	-	
38207	-	-	\$35.42	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
38208	-	-	\$22.46	-	-	
38209	-	-	\$9.46	-	-	
38210	-	-	\$61.98	-	-	
38211	-	-	\$56.30	-	-	
38212	-	-	\$37.57	-	-	
38213	-	-	\$9.46	-	-	
38214	-	-	\$32.43	-	-	
38215	-	-	\$37.57	-	-	
38220	\$134.49	\$54.50	-	-	-	
38221	\$126.01	\$54.42	-	-	-	
38222	\$139.15	\$60.89	-	-	-	
38230	-	-	\$159.97	-	-	
38232	-	-	\$155.83	-	-	
38240	-	-	\$185.47	-	-	
38241	-	-	\$137.19	-	-	
38242	-	-	\$99.44	-	-	
38243	-	-	\$95.34	-	-	
38300	\$264.08	\$162.93	-	-	-	
38305	-	-	\$385.79	-	-	
38308	-	-	\$358.23	-	-	
38380	-	-	\$447.22	-	-	
38381	-	-	\$626.64	-	-	
38382	-	-	\$531.84	-	-	
38500	\$267.38	\$200.71	-	-	-	
38505	\$99.60	\$55.25	-	-	-	
38510	\$415.47	\$328.23	-	-	-	
38520	-	-	\$365.83	-	-	
38525	-	-	\$345.45	-	-	
38530	-	-	\$445.27	-	-	
38531	-	-	\$341.32	-	-	
38542	-	-	\$405.69	-	-	
38550	-	-	\$406.93	-	-	
38555	-	-	\$801.05	-	-	
38562	-	-	\$555.56	-	-	
38564	-	-	\$553.60	-	-	
38570	-	-	\$401.42	-	-	
38571	-	-	\$519.57	-	-	
38572	-	-	\$713.90	-	-	
38573	-	-	\$908.58	-	-	
38589	-	-	I.C.	-	-	
38700	-	-	\$629.10	-	-	
38720	-	-	\$1,046.97	-	-	
38724	-	-	\$1,129.91	-	-	
38740	-	-	\$550.26	-	-	
38745	-	-	\$691.68	-	-	
38746	-	-	\$165.97	-	-	
38747	-	-	\$208.46	-	-	
38760	-	-	\$657.85	-	-	
38765	-	-	\$1,019.49	-	-	
38770	-	-	\$629.68	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
38780	-	-	\$810.70	-	-	
38790	-	-	\$64.38	-	-	
38792	\$66.69	\$26.11	-	-	-	
38794	-	-	\$233.93	-	-	
38900	-	-	\$107.96	-	-	
38999	-	-	I.C.	-	-	
39000	-	-	\$389.69	-	-	
39010	-	-	\$613.55	-	-	
39200	-	-	\$678.11	-	-	
39220	-	-	\$883.40	-	-	
39401	-	-	\$239.83	-	-	
39402	-	-	\$313.29	-	-	
39499	-	-	I.C.	-	-	
39501	-	-	\$669.68	-	-	
39503	-	-	\$4,620.99	-	-	
39540	-	-	\$682.74	-	-	
39541	-	-	\$736.94	-	-	
39545	-	-	\$698.23	-	-	
39560	-	-	\$626.10	-	-	
39561	-	-	\$970.26	-	-	
39599	-	-	I.C.	-	-	
40490	\$99.40	\$55.35	-	-	-	
40500	\$412.80	\$287.88	-	-	-	
40510	\$390.23	\$276.61	-	-	-	
40520	\$397.36	\$280.85	-	-	-	
40525	-	-	\$436.03	-	-	
40527	-	-	\$485.31	-	-	
40530	\$435.27	\$315.86	-	-	-	
40650	\$372.26	\$242.42	-	-	-	
40652	\$407.25	\$282.04	-	-	-	
40654	\$462.08	\$335.42	-	-	-	
40700	-	-	\$801.17	-	-	
40701	-	-	\$947.40	-	-	
40702	-	-	\$795.57	-	-	
40720	-	-	\$816.76	-	-	
40761	-	-	\$860.30	-	-	
40799	-	-	I.C.	-	-	
40800	\$169.18	\$99.62	-	-	-	
40801	\$241.34	\$165.11	-	-	-	
40804	\$159.17	\$94.25	-	-	-	
40805	\$238.09	\$165.92	-	-	-	
40806	\$81.33	\$24.23	-	-	-	
40808	\$128.51	\$68.52	-	-	-	
40810	\$170.13	\$98.54	-	-	-	
40812	\$230.38	\$150.97	-	-	-	
40814	\$304.99	\$233.40	-	-	-	
40816	\$320.62	\$244.11	-	-	-	
40818	\$295.45	\$217.19	-	-	-	
40819	\$226.45	\$168.78	-	-	-	
40820	\$211.18	\$134.67	-	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
40830	\$225.38	\$134.37	-	-	-	
40831	\$286.80	\$184.20	-	-	-	
40840	\$665.47	\$494.18	-	-	-	
40842	\$729.64	\$537.77	-	-	-	
40843	\$948.82	\$694.63	-	-	-	
40844	\$1,189.96	\$936.64	-	-	-	
40845	\$1,160.91	\$950.48	-	-	-	
40899	-	-	I.C.	-	-	
41000	\$127.59	\$86.73	-	-	-	
41005	\$175.99	\$91.93	-	-	-	
41006	\$274.87	\$189.07	-	-	-	
41007	\$270.04	\$183.38	-	-	-	
41008	\$308.46	\$205.85	-	-	-	
41009	\$331.47	\$226.55	-	-	-	
41010	\$169.63	\$86.16	-	-	-	
41015	\$324.61	\$246.94	-	-	-	
41016	\$364.71	\$275.16	-	-	-	
41017	\$363.45	\$273.60	-	-	-	
41018	\$407.42	\$316.99	-	-	-	
41019	-	-	\$378.37	-	-	
41100	\$140.62	\$83.23	-	-	-	
41105	\$141.95	\$85.72	-	-	-	
41108	\$125.11	\$69.75	-	-	-	
41110	\$177.53	\$103.33	-	-	-	
41112	\$268.98	\$195.36	-	-	-	
41113	\$291.68	\$215.17	-	-	-	
41114	-	-	\$487.51	-	-	
41115	\$204.61	\$115.05	-	-	-	
41116	\$267.76	\$171.53	-	-	-	
41120	-	-	\$846.60	-	-	
41130	-	-	\$1,040.77	-	-	
41135	-	-	\$1,706.30	-	-	
41140	-	-	\$1,718.52	-	-	
41145	-	-	\$2,171.39	-	-	
41150	-	-	\$1,728.72	-	-	
41153	-	-	\$1,879.66	-	-	
41155	-	-	\$2,362.34	-	-	
41250	\$224.90	\$122.01	-	-	-	
41251	\$248.06	\$144.88	-	-	-	
41252	\$256.49	\$164.61	-	-	-	
41510	-	-	\$359.34	-	-	
41512	-	-	\$524.43	-	-	
41520	\$285.77	\$196.50	-	-	-	
41530	\$775.28	\$298.50	-	-	-	
41599	-	-	I.C.	-	-	
41800	\$238.77	\$122.55	-	-	-	
41805	\$241.08	\$153.26	-	-	-	
41806	\$323.79	\$219.74	-	-	-	
41820	-	-	I.C.	-	-	
41821	-	-	I.C.	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
41822	\$278.50	\$157.64	-	-	-	
41823	\$409.28	\$285.52	-	-	-	
41825	\$175.36	\$95.37	-	-	-	
41826	\$252.65	\$163.38	-	-	-	
41827	\$358.58	\$237.72	-	-	-	
41828	\$278.24	\$176.22	-	-	-	
41830	\$367.64	\$247.07	-	-	-	
41850	-	-	I.C.	-	-	
41870	-	-	I.C.	-	-	
41872	\$361.79	\$237.74	-	-	-	
41874	\$315.34	\$199.70	-	-	-	
41899	-	-	I.C.	-	-	
42000	\$126.18	\$82.42	-	-	-	
42100	\$118.25	\$85.21	-	-	-	
42104	\$174.56	\$107.89	-	-	-	
42106	\$214.54	\$134.54	-	-	-	
42107	\$370.98	\$268.38	-	-	-	
42120	-	-	\$796.61	-	-	
42140	\$227.77	\$124.01	-	-	-	
42145	-	-	\$543.91	-	-	
42160	\$188.86	\$114.66	-	-	-	
42180	\$199.97	\$145.19	-	-	-	
42182	\$258.81	\$200.85	-	-	-	
42200	-	-	\$749.41	-	-	
42205	-	-	\$779.35	-	-	
42210	-	-	\$869.97	-	-	
42215	-	-	\$569.56	-	-	
42220	-	-	\$469.21	-	-	
42225	-	-	\$786.84	-	-	
42226	-	-	\$701.18	-	-	
42227	-	-	\$655.11	-	-	
42235	-	-	\$575.38	-	-	
42260	\$658.45	\$518.75	-	-	-	
42280	\$142.75	\$85.94	-	-	-	
42281	\$183.01	\$128.81	-	-	-	
42299	-	-	I.C.	-	-	
42300	\$170.68	\$121.11	-	-	-	
42305	-	-	\$335.72	-	-	
42310	\$140.09	\$105.89	-	-	-	
42320	\$204.53	\$138.45	-	-	-	
42330	\$185.26	\$129.03	-	-	-	
42335	\$324.31	\$203.16	-	-	-	
42340	\$396.85	\$265.26	-	-	-	
42400	\$83.18	\$42.31	-	-	-	
42405	\$239.27	\$177.54	-	-	-	
42408	\$422.20	\$276.99	-	-	-	
42409	\$292.48	\$177.13	-	-	-	
42410	-	-	\$489.15	-	-	
42415	-	-	\$823.80	-	-	
42420	-	-	\$924.85	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
42425	-	-	\$653.26	-	-	
42426	-	-	\$1,053.36	-	-	
42440	-	-	\$323.10	-	-	
42450	\$367.81	\$284.05	-	-	-	
42500	\$348.29	\$268.01	-	-	-	
42505	\$444.68	\$355.12	-	-	-	
42507	-	-	\$394.13	-	-	
42509	-	-	\$650.20	-	-	
42510	-	-	\$482.97	-	-	
42550	\$123.67	\$49.47	-	-	-	
42600	\$407.23	\$274.49	-	-	-	
42650	\$62.83	\$45.44	-	-	-	
42660	\$97.89	\$68.91	-	-	-	
42665	\$276.58	\$165.00	-	-	-	
42699	-	-	I.C.	-	-	
42700	\$153.02	\$106.65	-	-	-	
42720	\$356.01	\$303.84	-	-	-	
42725	-	-	\$630.32	-	-	
42800	\$125.74	\$88.93	-	-	-	
42804	\$159.78	\$90.80	-	-	-	
42806	\$178.43	\$105.39	-	-	-	
42808	\$182.05	\$127.85	-	-	-	
42809	\$161.12	\$97.35	-	-	-	
42810	\$308.40	\$224.35	-	-	-	
42815	-	-	\$430.09	-	-	
42820	-	-	\$226.47	-	-	
42821	-	-	\$236.43	-	-	
42825	-	-	\$207.17	-	-	
42826	-	-	\$198.05	-	-	
42830	-	-	\$164.28	-	-	
42831	-	-	\$178.00	-	-	
42835	-	-	\$152.41	-	-	
42836	-	-	\$189.71	-	-	
42842	-	-	\$796.50	-	-	
42844	-	-	\$1,095.03	-	-	
42845	-	-	\$1,752.27	-	-	
42860	-	-	\$149.42	-	-	
42870	-	-	\$469.32	-	-	
42890	-	-	\$1,122.94	-	-	
42892	-	-	\$1,473.65	-	-	
42894	-	-	\$1,859.14	-	-	
42900	-	-	\$260.85	-	-	
42950	-	-	\$637.07	-	-	
42953	-	-	\$763.84	-	-	
42955	-	-	\$604.36	-	-	
42960	-	-	\$129.81	-	-	
42961	-	-	\$327.76	-	-	
42962	-	-	\$403.43	-	-	
42970	-	-	\$322.13	-	-	
42971	-	-	\$355.07	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
42972	-	-	\$397.23	-	-	
42999	-	-	I.C.	-	-	
43020	-	-	\$442.43	-	-	
43030	-	-	\$406.67	-	-	
43045	-	-	\$1,014.67	-	-	
43100	-	-	\$492.37	-	-	
43101	-	-	\$783.97	-	-	
43107	-	-	\$2,326.65	-	-	
43108	-	-	\$3,464.39	-	-	
43112	-	-	\$2,717.63	-	-	
43113	-	-	\$3,384.56	-	-	
43116	-	-	\$3,877.18	-	-	
43117	-	-	\$2,533.19	-	-	
43118	-	-	\$2,820.82	-	-	
43121	-	-	\$2,220.64	-	-	
43122	-	-	\$2,000.58	-	-	
43123	-	-	\$3,509.79	-	-	
43124	-	-	\$2,961.96	-	-	
43130	-	-	\$616.22	-	-	
43135	-	-	\$1,143.90	-	-	
43180	-	-	\$426.61	-	-	
43191	-	-	\$120.71	-	-	
43192	-	-	\$132.25	-	-	
43193	-	-	\$131.96	-	-	
43194	-	-	\$149.81	-	-	
43195	-	-	\$143.56	-	-	
43196	-	-	\$153.07	-	-	
43197	\$155.13	\$64.70	-	-	-	
43198	\$170.58	\$77.25	-	-	-	
43200	\$195.26	\$68.61	-	-	-	
43201	\$194.39	\$81.07	-	-	-	
43202	\$274.14	\$80.82	-	-	-	
43204	-	-	\$106.14	-	-	
43205	-	-	\$110.75	-	-	
43206	\$229.18	\$104.26	-	-	-	
43210	-	-	\$337.87	-	-	
43211	-	-	\$183.92	-	-	
43212	-	-	\$147.96	-	-	
43213	\$999.88	\$202.54	-	-	-	
43214	-	-	\$150.95	-	-	
43215	\$309.80	\$110.68	-	-	-	
43216	\$317.46	\$105.01	-	-	-	
43217	\$323.05	\$125.68	-	-	-	
43220	\$828.35	\$92.46	-	-	-	
43226	\$288.40	\$101.75	-	-	-	
43227	\$504.18	\$129.13	-	-	-	
43229	\$563.99	\$154.74	-	-	-	
43231	-	-	\$124.90	-	-	
43232	-	-	\$156.26	-	-	
43233	-	-	\$179.31	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
43235	\$224.98	\$96.30	-	-	-	
43236	\$301.59	\$108.56	-	-	-	
43237	-	-	\$153.28	-	-	
43238	-	-	\$181.99	-	-	
43239	\$300.96	\$108.51	-	-	-	
43240	-	-	\$307.31	-	-	
43241	-	-	\$111.17	-	-	
43242	-	-	\$205.87	-	-	
43243	-	-	\$185.89	-	-	
43244	-	-	\$192.28	-	-	
43245	\$477.22	\$137.83	-	-	-	
43246	-	-	\$157.06	-	-	
43247	\$297.01	\$138.76	-	-	-	
43248	\$312.26	\$129.95	-	-	-	
43249	\$891.99	\$120.15	-	-	-	
43250	\$348.67	\$133.90	-	-	-	
43251	\$383.27	\$153.72	-	-	-	
43252	\$259.16	\$132.50	-	-	-	
43253	-	-	\$206.36	-	-	
43254	-	-	\$211.77	-	-	
43255	\$531.20	\$157.32	-	-	-	
43257	-	-	\$182.77	-	-	
43259	-	-	\$177.40	-	-	
43260	-	-	\$252.68	-	-	
43261	-	-	\$264.89	-	-	
43262	-	-	\$279.55	-	-	
43263	-	-	\$279.55	-	-	
43264	-	-	\$284.69	-	-	
43265	-	-	\$339.33	-	-	
43266	-	-	\$170.52	-	-	
43270	\$577.99	\$175.98	-	-	-	
43273	-	-	\$93.95	-	-	
43274	-	-	\$362.34	-	-	
43275	-	-	\$294.63	-	-	
43276	-	-	\$377.02	-	-	
43277	-	-	\$296.27	-	-	
43278	-	-	\$339.31	-	-	
43279	-	-	\$1,010.62	-	-	
43280	-	-	\$848.61	-	-	
43281	-	-	\$1,210.94	-	-	
43282	-	-	\$1,360.86	-	-	
43283	-	-	\$123.06	-	-	
43284	-	-	\$512.98	-	-	
43285	-	-	\$528.22	-	-	
43286	-	-	\$2,484.97	-	-	
43287	-	-	\$2,805.38	-	-	
43288	-	-	\$2,952.05	-	-	
43289	-	-	I.C.	-	-	
43300	-	-	\$484.09	-	-	
43305	-	-	\$851.03	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
43310	-	-	\$1,152.57	-	-	
43312	-	-	\$1,236.18	-	-	
43313	-	-	\$2,124.83	-	-	
43314	-	-	\$2,285.58	-	-	
43320	-	-	\$1,098.37	-	-	
43325	-	-	\$1,068.08	-	-	
43327	-	-	\$645.59	-	-	
43328	-	-	\$875.55	-	-	
43330	-	-	\$1,050.41	-	-	
43331	-	-	\$1,043.06	-	-	
43332	-	-	\$907.94	-	-	
43333	-	-	\$991.62	-	-	
43334	-	-	\$972.70	-	-	
43335	-	-	\$1,039.59	-	-	
43336	-	-	\$1,128.34	-	-	
43337	-	-	\$1,203.48	-	-	
43338	-	-	\$89.95	-	-	
43340	-	-	\$1,084.44	-	-	
43341	-	-	\$1,090.27	-	-	
43351	-	-	\$1,026.58	-	-	
43352	-	-	\$831.28	-	-	
43360	-	-	\$1,750.18	-	-	
43361	-	-	\$2,116.24	-	-	
43400	-	-	\$1,196.30	-	-	
43405	-	-	\$1,134.39	-	-	
43410	-	-	\$800.90	-	-	
43415	-	-	\$2,003.79	-	-	
43420	-	-	\$791.90	-	-	
43425	-	-	\$1,122.59	-	-	
43450	\$137.42	\$62.06	-	-	-	
43453	\$722.43	\$67.41	-	-	-	
43460	-	-	\$166.52	-	-	
43496	-	-	I.C.	-	-	
43499	-	-	I.C.	-	-	
43500	-	-	\$617.08	-	-	
43501	-	-	\$1,058.99	-	-	
43502	-	-	\$1,198.88	-	-	
43510	-	-	\$747.25	-	-	
43520	-	-	\$538.78	-	-	
43605	-	-	\$660.35	-	-	
43610	-	-	\$771.09	-	-	
43611	-	-	\$961.27	-	-	
43620	-	-	\$1,557.07	-	-	
43621	-	-	\$1,779.98	-	-	
43622	-	-	\$1,815.05	-	-	
43631	-	-	\$1,139.85	-	-	
43632	-	-	\$1,596.33	-	-	
43633	-	-	\$1,509.99	-	-	
43634	-	-	\$1,669.40	-	-	
43635	-	-	\$88.09	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
43640	-	-	\$926.90	-	-	
43641	-	-	\$947.24	-	-	
43644	-	-	\$1,364.44	-	-	
43645	-	-	\$1,452.20	-	-	
43647	-	-	I.C.	-	-	
43648	-	-	I.C.	-	-	
43651	-	-	\$517.04	-	-	
43652	-	-	\$602.96	-	-	
43653	-	-	\$454.76	-	-	
43659	-	-	I.C.	-	-	
43752	-	-	\$31.81	-	-	
43753	-	-	\$17.33	-	-	
43754	\$148.62	\$28.34	-	-	-	
43755	\$139.02	\$46.56	-	-	-	
43756	\$203.78	\$40.02	-	-	-	
43757	\$279.20	\$60.08	-	-	-	
43761	\$95.29	\$81.09	-	-	-	
43762	\$184.56	\$29.50	-	-	-	
43763	\$274.81	\$66.13	-	-	-	
43770	-	-	\$887.00	-	-	
43771	-	-	\$1,006.73	-	-	
43772	-	-	\$748.61	-	-	
43773	-	-	\$1,006.73	-	-	
43774	-	-	\$756.09	-	-	
43775	-	-	\$871.99	-	-	
43800	-	-	\$733.78	-	-	
43810	-	-	\$800.83	-	-	
43820	-	-	\$1,056.22	-	-	
43825	-	-	\$1,030.76	-	-	
43830	-	-	\$554.33	-	-	
43831	-	-	\$477.66	-	-	
43832	-	-	\$818.23	-	-	
43840	-	-	\$1,069.42	-	-	
43842	-	-	\$909.13	-	-	
43843	-	-	\$1,009.26	-	-	
43845	-	-	\$1,529.46	-	-	
43846	-	-	\$1,277.14	-	-	
43847	-	-	\$1,419.94	-	-	
43848	-	-	\$1,521.74	-	-	
43850	-	-	\$1,280.52	-	-	
43855	-	-	\$1,328.17	-	-	
43860	-	-	\$1,285.57	-	-	
43865	-	-	\$1,343.69	-	-	
43870	-	-	\$559.66	-	-	
43880	-	-	\$1,250.30	-	-	
43881	-	-	I.C.	-	-	
43882	-	-	I.C.	-	-	
43886	-	-	\$290.16	-	-	
43887	-	-	\$260.63	-	-	
43888	-	-	\$367.23	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
43999	-	-	I.C.	-	-	
44005	-	-	\$858.63	-	-	
44010	-	-	\$674.03	-	-	
44015	-	-	\$111.05	-	-	
44020	-	-	\$765.59	-	-	
44021	-	-	\$765.82	-	-	
44025	-	-	\$772.18	-	-	
44050	-	-	\$735.42	-	-	
44055	-	-	\$1,169.08	-	-	
44100	-	-	\$84.21	-	-	
44110	-	-	\$663.98	-	-	
44111	-	-	\$769.18	-	-	
44120	-	-	\$960.01	-	-	
44121	-	-	\$188.63	-	-	
44125	-	-	\$925.94	-	-	
44126	-	-	\$1,939.00	-	-	
44127	-	-	\$2,240.39	-	-	
44128	-	-	\$190.35	-	-	
44130	-	-	\$1,032.65	-	-	
44132	-	-	I.C.	-	-	
44133	-	-	I.C.	-	-	
44135	-	-	I.C.	-	-	
44136	-	-	I.C.	-	-	
44137	-	-	I.C.	-	-	
44139	-	-	\$94.38	-	-	
44140	-	-	\$1,053.92	-	-	
44141	-	-	\$1,433.41	-	-	
44143	-	-	\$1,306.63	-	-	
44144	-	-	\$1,387.20	-	-	
44145	-	-	\$1,296.08	-	-	
44146	-	-	\$1,656.50	-	-	
44147	-	-	\$1,518.99	-	-	
44150	-	-	\$1,466.38	-	-	
44151	-	-	\$1,700.44	-	-	
44155	-	-	\$1,626.36	-	-	
44156	-	-	\$1,820.53	-	-	
44157	-	-	\$1,725.78	-	-	
44158	-	-	\$1,768.62	-	-	
44160	-	-	\$975.29	-	-	
44180	-	-	\$723.10	-	-	
44186	-	-	\$513.53	-	-	
44187	-	-	\$864.59	-	-	
44188	-	-	\$961.49	-	-	
44202	-	-	\$1,087.96	-	-	
44203	-	-	\$187.65	-	-	
44204	-	-	\$1,205.76	-	-	
44205	-	-	\$1,047.73	-	-	
44206	-	-	\$1,370.84	-	-	
44207	-	-	\$1,420.99	-	-	
44208	-	-	\$1,550.62	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
44210	-	-	\$1,390.28	-	-	
44211	-	-	\$1,662.23	-	-	
44212	-	-	\$1,599.60	-	-	
44213	-	-	\$145.77	-	-	
44227	-	-	\$1,304.84	-	-	
44238	-	-	I.C.	-	-	
44300	-	-	\$662.88	-	-	
44310	-	-	\$817.44	-	-	
44312	-	-	\$467.65	-	-	
44314	-	-	\$789.94	-	-	
44316	-	-	\$1,112.14	-	-	
44320	-	-	\$943.40	-	-	
44322	-	-	\$800.12	-	-	
44340	-	-	\$491.82	-	-	
44345	-	-	\$825.13	-	-	
44346	-	-	\$928.96	-	-	
44360	-	-	\$112.66	-	-	
44361	-	-	\$124.30	-	-	
44363	-	-	\$150.49	-	-	
44364	-	-	\$160.33	-	-	
44365	-	-	\$142.46	-	-	
44366	-	-	\$188.22	-	-	
44369	-	-	\$192.84	-	-	
44370	-	-	\$209.07	-	-	
44372	-	-	\$187.91	-	-	
44373	-	-	\$150.60	-	-	
44376	-	-	\$222.59	-	-	
44377	-	-	\$234.21	-	-	
44378	-	-	\$301.19	-	-	
44379	-	-	\$320.37	-	-	
44380	\$148.17	\$44.12	-	-	-	
44381	\$803.95	\$65.45	-	-	-	
44382	\$232.47	\$57.41	-	-	-	
44384	-	-	\$120.16	-	-	
44385	\$161.87	\$56.66	-	-	-	
44386	\$243.03	\$69.99	-	-	-	
44388	\$243.39	\$122.52	-	-	-	
44389	\$322.40	\$134.87	-	-	-	
44390	\$314.21	\$164.94	-	-	-	
44391	\$546.32	\$180.55	-	-	-	
44392	\$295.59	\$156.47	-	-	-	
44394	\$338.80	\$176.78	-	-	-	
44401	\$2,312.58	\$190.11	-	-	-	
44402	-	-	\$205.28	-	-	
44403	-	-	\$238.07	-	-	
44404	\$320.70	\$134.92	-	-	-	
44405	\$451.62	\$143.52	-	-	-	
44406	-	-	\$179.82	-	-	
44407	-	-	\$215.85	-	-	
44408	-	-	\$181.46	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
44500	-	-	\$15.14	-	-	
44602	-	-	\$1,105.03	-	-	
44603	-	-	\$1,269.47	-	-	
44604	-	-	\$829.40	-	-	
44605	-	-	\$1,023.22	-	-	
44615	-	-	\$845.80	-	-	
44620	-	-	\$680.22	-	-	
44625	-	-	\$794.09	-	-	
44626	-	-	\$1,252.86	-	-	
44640	-	-	\$1,096.38	-	-	
44650	-	-	\$1,133.47	-	-	
44660	-	-	\$1,044.96	-	-	
44661	-	-	\$1,214.15	-	-	
44680	-	-	\$832.59	-	-	
44700	-	-	\$786.22	-	-	
44701	-	-	\$133.01	-	-	
44705	\$87.61	\$56.30	-	-	-	
44715	-	-	I.C.	-	-	
44720	-	-	\$214.67	-	-	
44721	-	-	\$300.10	-	-	
44799	-	-	I.C.	-	-	
44800	-	-	\$606.46	-	-	
44820	-	-	\$656.88	-	-	
44850	-	-	\$586.27	-	-	
44899	-	-	I.C.	-	-	
44900	-	-	\$616.99	-	-	
44950	-	-	\$505.65	-	-	
44955	-	-	\$65.23	-	-	
44960	-	-	\$689.70	-	-	
44970	-	-	\$473.71	-	-	
44979	-	-	I.C.	-	-	
45000	-	-	\$337.38	-	-	
45005	\$235.94	\$128.99	-	-	-	
45020	-	-	\$451.68	-	-	
45100	-	-	\$237.50	-	-	
45108	-	-	\$293.94	-	-	
45110	-	-	\$1,439.21	-	-	
45111	-	-	\$852.93	-	-	
45112	-	-	\$1,457.12	-	-	
45113	-	-	\$1,470.70	-	-	
45114	-	-	\$1,427.62	-	-	
45116	-	-	\$1,211.48	-	-	
45119	-	-	\$1,509.42	-	-	
45120	-	-	\$1,255.46	-	-	
45121	-	-	\$1,370.77	-	-	
45123	-	-	\$874.14	-	-	
45126	-	-	\$2,167.14	-	-	
45130	-	-	\$850.60	-	-	
45135	-	-	\$1,015.99	-	-	
45136	-	-	\$1,408.67	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
45150	-	-	\$331.38	-	-	
45160	-	-	\$806.87	-	-	
45171	-	-	\$480.44	-	-	
45172	-	-	\$642.51	-	-	
45190	-	-	\$553.34	-	-	
45300	\$99.56	\$37.54	-	-	-	
45303	\$785.42	\$66.63	-	-	-	
45305	\$130.51	\$57.19	-	-	-	
45307	\$149.38	\$76.34	-	-	-	
45308	\$147.53	\$66.08	-	-	-	
45309	\$152.41	\$70.39	-	-	-	
45315	\$165.80	\$83.20	-	-	-	
45317	\$161.60	\$87.11	-	-	-	
45320	\$161.55	\$82.43	-	-	-	
45321	-	-	\$81.34	-	-	
45327	-	-	\$92.05	-	-	
45330	\$141.78	\$44.11	-	-	-	
45331	\$223.56	\$56.32	-	-	-	
45332	\$213.13	\$82.71	-	-	-	
45333	\$253.74	\$73.75	-	-	-	
45334	\$429.68	\$92.02	-	-	-	
45335	\$216.56	\$52.22	-	-	-	
45337	-	-	\$90.43	-	-	
45338	\$227.69	\$94.37	-	-	-	
45340	\$370.68	\$61.13	-	-	-	
45341	-	-	\$97.18	-	-	
45342	-	-	\$132.97	-	-	
45346	\$2,259.91	\$125.56	-	-	-	
45347	-	-	\$120.66	-	-	
45349	-	-	\$155.67	-	-	
45350	\$511.08	\$79.52	-	-	-	
45378	\$263.17	\$145.21	-	-	-	
45379	\$339.34	\$187.47	-	-	-	
45380	\$340.98	\$157.23	-	-	-	
45381	\$338.37	\$157.23	-	-	-	
45382	\$566.51	\$203.06	-	-	-	
45384	\$379.63	\$178.77	-	-	-	
45385	\$353.66	\$199.46	-	-	-	
45386	\$493.36	\$165.85	-	-	-	
45388	\$2,388.05	\$212.25	-	-	-	
45389	-	-	\$227.02	-	-	
45390	-	-	\$260.28	-	-	
45391	-	-	\$201.75	-	-	
45392	-	-	\$238.27	-	-	
45393	-	-	\$197.76	-	-	
45395	-	-	\$1,542.08	-	-	
45397	-	-	\$1,677.02	-	-	
45398	\$635.25	\$184.85	-	-	-	
45399	-	-	I.C.	-	-	
45400	-	-	\$890.57	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
45402	-	-	\$1,186.28	-	-	
45499	-	-	I.C.	-	-	
45500	-	-	\$447.00	-	-	
45505	-	-	\$472.70	-	-	
45520	\$127.27	\$31.62	-	-	-	
45540	-	-	\$830.35	-	-	
45541	-	-	\$743.52	-	-	
45550	-	-	\$1,147.68	-	-	
45560	-	-	\$544.35	-	-	
45562	-	-	\$887.60	-	-	
45563	-	-	\$1,306.23	-	-	
45800	-	-	\$998.89	-	-	
45805	-	-	\$1,158.05	-	-	
45820	-	-	\$1,001.55	-	-	
45825	-	-	\$1,210.95	-	-	
45900	-	-	\$167.33	-	-	
45905	-	-	\$133.24	-	-	
45910	-	-	\$151.50	-	-	
45915	\$276.67	\$182.47	-	-	-	
45990	-	-	\$83.16	-	-	
45999	-	-	I.C.	-	-	
46020	\$225.01	\$187.91	-	-	-	
46030	\$115.62	\$70.98	-	-	-	
46040	\$437.63	\$334.16	-	-	-	
46045	-	-	\$347.24	-	-	
46050	\$177.55	\$78.43	-	-	-	
46060	-	-	\$382.34	-	-	
46070	-	-	\$211.90	-	-	
46080	\$215.85	\$124.84	-	-	-	
46083	\$155.21	\$85.94	-	-	-	
46200	\$372.42	\$264.89	-	-	-	
46220	\$184.34	\$94.20	-	-	-	
46221	\$219.99	\$152.75	-	-	-	
46230	\$235.82	\$136.41	-	-	-	
46250	\$380.76	\$252.36	-	-	-	
46255	\$414.90	\$282.16	-	-	-	
46257	-	-	\$338.98	-	-	
46258	-	-	\$374.88	-	-	
46260	-	-	\$379.71	-	-	
46261	-	-	\$414.39	-	-	
46262	-	-	\$440.86	-	-	
46270	\$420.13	\$314.92	-	-	-	
46275	\$442.51	\$331.22	-	-	-	
46280	-	-	\$376.85	-	-	
46285	\$440.04	\$331.06	-	-	-	
46288	-	-	\$437.14	-	-	
46320	\$158.47	\$88.04	-	-	-	
46500	\$242.03	\$145.22	-	-	-	
46505	\$237.61	\$192.69	-	-	-	
46600	\$83.46	\$32.15	-	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
46601	\$114.05	\$73.76	-	-	-	
46604	\$547.19	\$51.57	-	-	-	
46606	\$208.07	\$59.09	-	-	-	
46607	\$159.99	\$99.13	-	-	-	
46608	\$217.96	\$66.08	-	-	-	
46610	\$207.31	\$63.55	-	-	-	
46611	\$163.48	\$62.90	-	-	-	
46612	\$252.60	\$74.64	-	-	-	
46614	\$118.89	\$50.49	-	-	-	
46615	\$128.69	\$71.89	-	-	-	
46700	-	-	\$518.70	-	-	
46705	-	-	\$447.23	-	-	
46706	-	-	\$140.28	-	-	
46707	-	-	\$394.93	-	-	
46710	-	-	\$876.19	-	-	
46712	-	-	\$1,754.68	-	-	
46715	-	-	\$436.35	-	-	
46716	-	-	\$964.94	-	-	
46730	-	-	\$1,557.03	-	-	
46735	-	-	\$1,792.61	-	-	
46740	-	-	\$1,698.66	-	-	
46742	-	-	\$1,964.49	-	-	
46744	-	-	\$2,777.03	-	-	
46746	-	-	\$3,062.07	-	-	
46748	-	-	\$3,321.74	-	-	
46750	-	-	\$592.22	-	-	
46751	-	-	\$524.37	-	-	
46753	-	-	\$488.35	-	-	
46754	\$260.40	\$186.78	-	-	-	
46760	-	-	\$863.12	-	-	
46761	-	-	\$724.43	-	-	
46900	\$190.31	\$107.71	-	-	-	
46910	\$208.15	\$105.25	-	-	-	
46916	\$197.38	\$112.17	-	-	-	
46917	\$341.18	\$100.62	-	-	-	
46922	\$236.90	\$107.64	-	-	-	
46924	\$436.97	\$141.92	-	-	-	
46930	\$172.43	\$120.55	-	-	-	
46940	\$197.12	\$113.36	-	-	-	
46942	\$188.42	\$102.05	-	-	-	
46945	-	-	\$267.21	-	-	
46946	-	-	\$300.38	-	-	
46947	-	-	\$304.26	-	-	
46948	-	-	\$349.79	-	-	
46999	-	-	I.C.	-	-	
47000	\$251.87	\$69.56	-	-	-	
47001	-	-	\$81.37	-	-	
47010	-	-	\$953.50	-	-	
47015	-	-	\$918.85	-	-	
47100	-	-	\$668.84	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
47120	-	-	\$1,833.99	-	-	
47122	-	-	\$2,691.71	-	-	
47125	-	-	\$2,415.49	-	-	
47130	-	-	\$2,593.58	-	-	
47133	-	-	I.C.	-	-	
47135	-	-	\$4,231.45	-	-	
47140	-	-	\$2,802.11	-	-	
47141	-	-	\$3,354.25	-	-	
47142	-	-	\$3,698.39	-	-	
47143	-	-	I.C.	-	-	
47144	-	-	I.C.	-	-	
47145	-	-	I.C.	-	-	
47146	-	-	\$256.28	-	-	
47147	-	-	\$298.87	-	-	
47300	-	-	\$890.34	-	-	
47350	-	-	\$1,077.28	-	-	
47360	-	-	\$1,477.10	-	-	
47361	-	-	\$2,376.35	-	-	
47362	-	-	\$1,143.32	-	-	
47370	-	-	\$982.03	-	-	
47371	-	-	\$988.98	-	-	
47379	-	-	I.C.	-	-	
47380	-	-	\$1,135.17	-	-	
47381	-	-	\$1,164.05	-	-	
47382	\$3,589.02	\$579.95	-	-	-	
47383	\$5,629.06	\$356.37	-	-	-	
47399	-	-	I.C.	-	-	
47400	-	-	\$1,694.17	-	-	
47420	-	-	\$1,055.81	-	-	
47425	-	-	\$1,077.56	-	-	
47460	-	-	\$1,001.49	-	-	
47480	-	-	\$696.05	-	-	
47490	-	-	\$264.42	-	-	
47531	\$314.84	\$55.44	-	-	-	
47532	\$687.42	\$166.30	-	-	-	
47533	\$1,022.24	\$208.38	-	-	-	
47534	\$1,157.80	\$290.61	-	-	-	
47535	\$805.82	\$153.40	-	-	-	
47536	\$567.83	\$103.81	-	-	-	
47537	\$366.04	\$75.63	-	-	-	
47538	\$3,518.67	\$185.56	-	-	-	
47539	\$3,869.48	\$332.03	-	-	-	
47540	\$3,947.62	\$345.26	-	-	-	
47541	\$984.13	\$260.12	-	-	-	
47542	\$420.21	\$106.61	-	-	-	
47543	\$373.71	\$113.44	-	-	-	
47544	\$810.92	\$122.56	-	-	-	
47550	-	-	\$128.84	-	-	
47552	-	-	\$213.29	-	-	
47553	-	-	\$214.67	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
47554	-	-	\$403.48	-	-	
47555	-	-	\$255.21	-	-	
47556	-	-	\$289.11	-	-	
47562	-	-	\$519.21	-	-	
47563	-	-	\$564.95	-	-	
47564	-	-	\$877.84	-	-	
47570	-	-	\$610.97	-	-	
47579	-	-	I.C.	-	-	
47600	-	-	\$841.87	-	-	
47605	-	-	\$885.49	-	-	
47610	-	-	\$987.46	-	-	
47612	-	-	\$1,004.04	-	-	
47620	-	-	\$1,083.33	-	-	
47700	-	-	\$834.43	-	-	
47701	-	-	\$1,368.07	-	-	
47711	-	-	\$1,226.14	-	-	
47712	-	-	\$1,571.46	-	-	
47715	-	-	\$1,049.71	-	-	
47720	-	-	\$911.89	-	-	
47721	-	-	\$1,068.22	-	-	
47740	-	-	\$1,036.12	-	-	
47741	-	-	\$1,163.28	-	-	
47760	-	-	\$1,769.12	-	-	
47765	-	-	\$2,387.43	-	-	
47780	-	-	\$1,942.25	-	-	
47785	-	-	\$2,550.31	-	-	
47800	-	-	\$1,241.10	-	-	
47801	-	-	\$880.03	-	-	
47802	-	-	\$1,203.30	-	-	
47900	-	-	\$1,073.92	-	-	
47999	-	-	I.C.	-	-	
48000	-	-	\$1,481.39	-	-	
48001	-	-	\$1,813.10	-	-	
48020	-	-	\$928.70	-	-	
48100	-	-	\$696.57	-	-	
48102	\$432.96	\$187.18	-	-	-	
48105	-	-	\$2,229.15	-	-	
48120	-	-	\$869.60	-	-	
48140	-	-	\$1,228.62	-	-	
48145	-	-	\$1,284.98	-	-	
48146	-	-	\$1,484.63	-	-	
48148	-	-	\$984.40	-	-	
48150	-	-	\$2,447.71	-	-	
48152	-	-	\$2,274.63	-	-	
48153	-	-	\$2,437.67	-	-	
48154	-	-	\$2,284.28	-	-	
48155	-	-	\$1,427.20	-	-	
48160	-	-	I.C.	-	-	
48400	-	-	\$84.06	-	-	
48500	-	-	\$908.79	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
48510	-	-	\$866.75	-	-	
48520	-	-	\$859.98	-	-	
48540	-	-	\$1,030.42	-	-	
48545	-	-	\$1,059.58	-	-	
48547	-	-	\$1,409.66	-	-	
48548	-	-	\$1,308.77	-	-	
48550	-	-	I.C.	-	-	
48551	-	-	I.C.	-	-	
48552	-	-	\$184.45	-	-	
48554	-	-	\$2,024.74	-	-	
48556	-	-	\$1,007.02	-	-	
48999	-	-	I.C.	-	-	
49000	-	-	\$605.10	-	-	
49002	-	-	\$820.93	-	-	
49010	-	-	\$724.33	-	-	
49013	-	-	\$341.43	-	-	
49014	-	-	\$282.86	-	-	
49020	-	-	\$1,251.36	-	-	
49040	-	-	\$787.78	-	-	
49060	-	-	\$864.38	-	-	
49062	-	-	\$605.21	-	-	
49082	\$164.83	\$58.17	-	-	-	
49083	\$242.38	\$84.42	-	-	-	
49084	-	-	\$84.74	-	-	
49180	\$136.03	\$65.60	-	-	-	
49185	\$961.87	\$93.81	-	-	-	
49203	-	-	\$936.92	-	-	
49204	-	-	\$1,193.17	-	-	
49205	-	-	\$1,366.15	-	-	
49215	-	-	\$1,739.99	-	-	
49250	-	-	\$464.23	-	-	
49255	-	-	\$620.09	-	-	
49320	-	-	\$258.74	-	-	
49321	-	-	\$271.74	-	-	
49322	-	-	\$293.90	-	-	
49323	-	-	\$504.85	-	-	
49324	-	-	\$306.39	-	-	
49325	-	-	\$326.60	-	-	
49326	-	-	\$147.61	-	-	
49327	-	-	\$102.01	-	-	
49329	-	-	I.C.	-	-	
49400	\$114.72	\$72.11	-	-	-	
49402	-	-	\$673.44	-	-	
49405	\$717.25	\$154.10	-	-	-	
49406	\$717.00	\$153.85	-	-	-	
49407	\$586.23	\$163.07	-	-	-	
49411	\$393.33	\$144.36	-	-	-	
49412	-	-	\$64.50	-	-	
49418	\$977.15	\$158.94	-	-	-	
49419	-	-	\$339.85	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
49421	-	-	\$178.12	-	-	
49422	-	-	\$173.40	-	-	
49423	\$488.02	\$55.29	-	-	-	
49424	\$136.60	\$29.95	-	-	-	
49425	-	-	\$561.42	-	-	
49426	-	-	\$526.67	-	-	
49427	-	-	\$30.16	-	-	
49428	-	-	\$340.17	-	-	
49429	-	-	\$360.84	-	-	
49435	-	-	\$93.48	-	-	
49436	-	-	\$147.53	-	-	
49440	\$761.09	\$160.56	-	-	-	
49441	\$861.39	\$188.97	-	-	-	
49442	\$720.70	\$163.34	-	-	-	
49446	\$733.54	\$115.90	-	-	-	
49450	\$539.85	\$51.48	-	-	-	
49451	\$583.91	\$70.32	-	-	-	
49452	\$713.21	\$108.32	-	-	-	
49460	\$600.00	\$38.01	-	-	-	
49465	\$124.04	\$24.05	-	-	-	
49491	-	-	\$627.85	-	-	
49492	-	-	\$754.71	-	-	
49495	-	-	\$322.63	-	-	
49496	-	-	\$484.77	-	-	
49500	-	-	\$326.77	-	-	
49501	-	-	\$477.72	-	-	
49505	-	-	\$411.61	-	-	
49507	-	-	\$462.64	-	-	
49520	-	-	\$498.08	-	-	
49521	-	-	\$564.92	-	-	
49525	-	-	\$452.78	-	-	
49540	-	-	\$531.50	-	-	
49550	-	-	\$454.66	-	-	
49553	-	-	\$497.76	-	-	
49555	-	-	\$475.17	-	-	
49557	-	-	\$570.04	-	-	
49560	-	-	\$581.25	-	-	
49561	-	-	\$730.99	-	-	
49565	-	-	\$605.25	-	-	
49566	-	-	\$737.77	-	-	
49568	-	-	\$208.90	-	-	
49570	-	-	\$329.98	-	-	
49572	-	-	\$408.65	-	-	
49580	-	-	\$265.00	-	-	
49582	-	-	\$381.96	-	-	
49585	-	-	\$352.46	-	-	
49587	-	-	\$376.75	-	-	
49590	-	-	\$451.99	-	-	
49600	-	-	\$578.30	-	-	
49605	-	-	\$3,879.03	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
49606	-	-	\$891.87	-	-	
49610	-	-	\$544.70	-	-	
49611	-	-	\$480.42	-	-	
49650	-	-	\$339.87	-	-	
49651	-	-	\$442.35	-	-	
49652	-	-	\$586.58	-	-	
49653	-	-	\$732.14	-	-	
49654	-	-	\$665.38	-	-	
49655	-	-	\$813.55	-	-	
49656	-	-	\$721.22	-	-	
49657	-	-	\$1,038.35	-	-	
49659	-	-	I.C.	-	-	
49900	-	-	\$645.17	-	-	
49904	-	-	\$1,100.58	-	-	
49905	-	-	\$276.11	-	-	
49906	-	-	I.C.	-	-	
49999	-	-	I.C.	-	-	
50010	-	-	\$576.53	-	-	
50020	-	-	\$793.80	-	-	
50040	-	-	\$722.22	-	-	
50045	-	-	\$729.99	-	-	
50060	-	-	\$891.88	-	-	
50065	-	-	\$945.47	-	-	
50070	-	-	\$926.90	-	-	
50075	-	-	\$1,139.72	-	-	
50080	-	-	\$680.44	-	-	
50081	-	-	\$999.58	-	-	
50100	-	-	\$850.15	-	-	
50120	-	-	\$743.30	-	-	
50125	-	-	\$768.82	-	-	
50130	-	-	\$808.63	-	-	
50135	-	-	\$877.63	-	-	
50200	\$441.54	\$100.40	-	-	-	
50205	-	-	\$593.32	-	-	
50220	-	-	\$820.72	-	-	
50225	-	-	\$939.94	-	-	
50230	-	-	\$1,001.79	-	-	
50234	-	-	\$1,018.10	-	-	
50236	-	-	\$1,145.88	-	-	
50240	-	-	\$1,037.15	-	-	
50250	-	-	\$952.38	-	-	
50280	-	-	\$750.54	-	-	
50290	-	-	\$703.84	-	-	
50300	-	-	I.C.	-	-	
50320	-	-	\$1,187.51	-	-	
50323	-	-	I.C.	-	-	
50325	-	-	I.C.	-	-	
50327	-	-	\$169.01	-	-	
50328	-	-	\$148.12	-	-	
50329	-	-	\$140.96	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
50340	-	-	\$749.52	-	-	
50360	-	-	\$1,899.34	-	-	
50365	-	-	\$2,260.53	-	-	
50370	-	-	\$950.51	-	-	
50380	-	-	\$1,587.73	-	-	
50382	\$893.00	\$200.29	-	-	-	
50384	\$728.04	\$179.09	-	-	-	
50385	\$880.47	\$170.95	-	-	-	
50386	\$602.82	\$126.62	-	-	-	
50387	\$447.75	\$65.46	-	-	-	
50389	\$306.73	\$41.82	-	-	-	
50390	-	-	\$74.75	-	-	
50391	\$97.04	\$76.75	-	-	-	
50396	-	-	\$91.53	-	-	
50400	-	-	\$910.15	-	-	
50405	-	-	\$1,091.49	-	-	
50430	\$460.33	\$120.93	-	-	-	
50431	\$210.21	\$51.38	-	-	-	
50432	\$721.89	\$161.34	-	-	-	
50433	\$934.25	\$200.10	-	-	-	
50434	\$744.66	\$150.50	-	-	-	
50435	\$459.46	\$78.33	-	-	-	
50436	-	-	\$118.04	-	-	
50437	-	-	\$197.26	-	-	
50500	-	-	\$969.98	-	-	
50520	-	-	\$911.18	-	-	
50525	-	-	\$1,155.07	-	-	
50526	-	-	\$1,237.80	-	-	
50540	-	-	\$897.55	-	-	
50541	-	-	\$717.83	-	-	
50542	-	-	\$912.10	-	-	
50543	-	-	\$1,164.75	-	-	
50544	-	-	\$972.65	-	-	
50545	-	-	\$1,045.77	-	-	
50546	-	-	\$942.00	-	-	
50547	-	-	\$1,261.71	-	-	
50548	-	-	\$1,051.31	-	-	
50549	-	-	I.C.	-	-	
50551	\$283.70	\$229.22	-	-	-	
50553	\$303.19	\$244.35	-	-	-	
50555	\$324.89	\$266.34	-	-	-	
50557	\$330.42	\$269.84	-	-	-	
50561	\$373.43	\$306.77	-	-	-	
50562	-	-	\$452.50	-	-	
50570	-	-	\$382.67	-	-	
50572	-	-	\$413.92	-	-	
50574	-	-	\$440.08	-	-	
50575	-	-	\$556.69	-	-	
50576	-	-	\$438.99	-	-	
50580	-	-	\$472.97	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
50590	\$584.50	\$446.83	-	-	-	
50592	\$2,624.40	\$268.91	-	-	-	
50593	\$3,548.60	\$360.41	-	-	-	
50600	-	-	\$734.42	-	-	
50605	-	-	\$780.15	-	-	
50606	\$506.89	\$118.80	-	-	-	
50610	-	-	\$739.68	-	-	
50620	-	-	\$707.61	-	-	
50630	-	-	\$698.72	-	-	
50650	-	-	\$813.02	-	-	
50660	-	-	\$894.61	-	-	
50684	\$94.53	\$39.75	-	-	-	
50686	\$112.28	\$69.10	-	-	-	
50688	-	-	\$61.48	-	-	
50690	\$86.22	\$55.20	-	-	-	
50693	\$848.69	\$160.33	-	-	-	
50694	\$940.04	\$210.53	-	-	-	
50695	\$1,137.71	\$269.66	-	-	-	
50700	-	-	\$724.85	-	-	
50705	\$1,554.86	\$136.41	-	-	-	
50706	\$770.53	\$142.75	-	-	-	
50715	-	-	\$941.73	-	-	
50722	-	-	\$807.46	-	-	
50725	-	-	\$863.03	-	-	
50727	-	-	\$400.75	-	-	
50728	-	-	\$577.78	-	-	
50740	-	-	\$962.07	-	-	
50750	-	-	\$902.39	-	-	
50760	-	-	\$884.33	-	-	
50770	-	-	\$902.39	-	-	
50780	-	-	\$866.59	-	-	
50782	-	-	\$841.23	-	-	
50783	-	-	\$881.95	-	-	
50785	-	-	\$949.07	-	-	
50800	-	-	\$726.00	-	-	
50810	-	-	\$1,102.26	-	-	
50815	-	-	\$958.08	-	-	
50820	-	-	\$1,027.66	-	-	
50825	-	-	\$1,295.10	-	-	
50830	-	-	\$1,408.28	-	-	
50840	-	-	\$962.69	-	-	
50845	-	-	\$980.40	-	-	
50860	-	-	\$740.48	-	-	
50900	-	-	\$660.00	-	-	
50920	-	-	\$690.12	-	-	
50930	-	-	\$862.47	-	-	
50940	-	-	\$694.95	-	-	
50945	-	-	\$760.20	-	-	
50947	-	-	\$1,083.97	-	-	
50948	-	-	\$995.47	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
50949	-	-	I.C.	-	-	
50951	\$296.94	\$238.68	-	-	-	
50953	\$314.57	\$254.28	-	-	-	
50955	\$335.85	\$274.99	-	-	-	
50957	\$339.19	\$276.58	-	-	-	
50961	\$305.56	\$247.01	-	-	-	
50970	-	-	\$288.68	-	-	
50972	-	-	\$279.24	-	-	
50974	-	-	\$368.16	-	-	
50976	-	-	\$363.26	-	-	
50980	-	-	\$277.89	-	-	
51020	-	-	\$368.72	-	-	
51030	-	-	\$371.28	-	-	
51040	-	-	\$228.35	-	-	
51045	-	-	\$393.24	-	-	
51050	-	-	\$370.51	-	-	
51060	-	-	\$457.31	-	-	
51065	-	-	\$455.04	-	-	
51080	-	-	\$321.72	-	-	
51100	\$54.20	\$30.14	-	-	-	
51101	\$114.63	\$40.14	-	-	-	
51102	\$188.53	\$113.75	-	-	-	
51500	-	-	\$499.62	-	-	
51520	-	-	\$467.30	-	-	
51525	-	-	\$673.06	-	-	
51530	-	-	\$603.85	-	-	
51535	-	-	\$611.90	-	-	
51550	-	-	\$753.96	-	-	
51555	-	-	\$990.32	-	-	
51565	-	-	\$1,018.01	-	-	
51570	-	-	\$1,152.87	-	-	
51575	-	-	\$1,424.45	-	-	
51580	-	-	\$1,482.08	-	-	
51585	-	-	\$1,649.09	-	-	
51590	-	-	\$1,511.17	-	-	
51595	-	-	\$1,708.96	-	-	
51596	-	-	\$1,838.46	-	-	
51597	-	-	\$1,792.53	-	-	
51600	\$167.86	\$34.53	-	-	-	
51605	-	-	\$30.48	-	-	
51610	\$96.34	\$50.55	-	-	-	
51700	\$60.15	\$24.21	-	-	-	
51701	\$35.51	\$20.44	-	-	-	
51702	\$48.93	\$19.95	-	-	-	
51703	\$110.93	\$60.21	-	-	-	
51705	\$75.84	\$40.77	-	-	-	
51710	\$105.28	\$62.09	-	-	-	
51715	\$272.14	\$156.49	-	-	-	
51720	\$66.44	\$33.98	-	-	-	
51725	-	-	\$170.68	\$58.89	\$111.79	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
51726	-	-	\$233.66	\$65.65	\$168.01	
51727	-	-	\$280.14	\$83.14	\$197.00	
51728	-	-	\$283.75	\$81.54	\$202.21	
51729	-	-	\$301.87	\$98.79	\$203.08	
51736	-	-	\$10.80	\$6.49	\$4.30	
51741	-	-	\$11.33	\$6.74	\$4.59	
51784	-	-	\$53.40	\$29.68	\$23.72	
51785	-	-	\$302.55	\$71.36	\$231.20	
51792	-	-	\$200.85	\$42.69	\$158.16	
51797	-	-	\$131.29	\$31.30	\$99.99	
51798	-	-	\$8.36	-	-	
51800	-	-	\$816.46	-	-	
51820	-	-	\$849.03	-	-	
51840	-	-	\$536.46	-	-	
51841	-	-	\$620.45	-	-	
51845	-	-	\$456.77	-	-	
51860	-	-	\$585.27	-	-	
51865	-	-	\$704.35	-	-	
51880	-	-	\$366.00	-	-	
51900	-	-	\$646.31	-	-	
51920	-	-	\$598.68	-	-	
51925	-	-	\$835.22	-	-	
51940	-	-	\$1,282.81	-	-	
51960	-	-	\$1,083.81	-	-	
51980	-	-	\$559.46	-	-	
51990	-	-	\$585.69	-	-	
51992	-	-	\$658.23	-	-	
51999	-	-	I.C.	-	-	
52000	\$169.04	\$62.96	-	-	-	
52001	\$328.46	\$223.54	-	-	-	
52005	\$235.56	\$103.39	-	-	-	
52007	\$382.57	\$128.97	-	-	-	
52010	\$319.39	\$128.97	-	-	-	
52204	\$310.24	\$110.25	-	-	-	
52214	\$592.71	\$137.08	-	-	-	
52224	\$618.04	\$158.65	-	-	-	
52234	-	-	\$191.47	-	-	
52235	-	-	\$224.70	-	-	
52240	-	-	\$305.51	-	-	
52250	-	-	\$186.62	-	-	
52260	-	-	\$164.46	-	-	
52265	\$305.78	\$127.25	-	-	-	
52270	\$322.43	\$141.58	-	-	-	
52275	\$422.25	\$193.57	-	-	-	
52276	-	-	\$206.03	-	-	
52277	-	-	\$251.36	-	-	
52281	\$257.29	\$118.46	-	-	-	
52282	-	-	\$263.05	-	-	
52283	\$258.69	\$157.25	-	-	-	
52285	\$257.85	\$152.64	-	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
52287	\$288.05	\$132.11	-	-	-	
52290	-	-	\$190.12	-	-	
52300	-	-	\$217.89	-	-	
52301	-	-	\$225.71	-	-	
52305	-	-	\$217.22	-	-	
52310	\$231.06	\$117.74	-	-	-	
52315	\$369.43	\$213.79	-	-	-	
52317	\$703.73	\$271.00	-	-	-	
52318	-	-	\$368.64	-	-	
52320	-	-	\$192.12	-	-	
52325	-	-	\$249.06	-	-	
52327	-	-	\$204.47	-	-	
52330	\$465.63	\$205.36	-	-	-	
52332	\$366.97	\$120.90	-	-	-	
52334	-	-	\$142.71	-	-	
52341	-	-	\$221.44	-	-	
52342	-	-	\$240.37	-	-	
52343	-	-	\$268.30	-	-	
52344	-	-	\$287.22	-	-	
52345	-	-	\$307.13	-	-	
52346	-	-	\$347.33	-	-	
52351	-	-	\$235.44	-	-	
52352	-	-	\$276.37	-	-	
52353	-	-	\$305.51	-	-	
52354	-	-	\$324.93	-	-	
52355	-	-	\$363.96	-	-	
52356	-	-	\$323.52	-	-	
52400	-	-	\$373.55	-	-	
52402	-	-	\$207.53	-	-	
52441	\$1,109.72	\$163.99	-	-	-	
52442	\$813.78	\$39.34	-	-	-	
52450	-	-	\$370.77	-	-	
52500	-	-	\$384.53	-	-	
52601	-	-	\$571.03	-	-	
52630	-	-	\$316.70	-	-	
52640	-	-	\$250.13	-	-	
52647	\$1,309.87	\$508.19	-	-	-	
52648	\$1,349.90	\$541.83	-	-	-	
52649	-	-	\$647.36	-	-	
52700	-	-	\$346.74	-	-	
53000	-	-	\$116.82	-	-	
53010	-	-	\$232.85	-	-	
53020	-	-	\$75.86	-	-	
53025	-	-	\$53.20	-	-	
53040	-	-	\$308.59	-	-	
53060	\$147.41	\$130.60	-	-	-	
53080	-	-	\$330.44	-	-	
53085	-	-	\$509.69	-	-	
53200	\$123.78	\$110.74	-	-	-	
53210	-	-	\$612.27	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
53215	-	-	\$727.13	-	-	
53220	-	-	\$355.00	-	-	
53230	-	-	\$478.13	-	-	
53235	-	-	\$496.91	-	-	
53240	-	-	\$333.23	-	-	
53250	-	-	\$311.56	-	-	
53260	\$160.94	\$142.10	-	-	-	
53265	\$177.31	\$147.46	-	-	-	
53270	\$164.03	\$144.33	-	-	-	
53275	-	-	\$206.04	-	-	
53400	-	-	\$629.17	-	-	
53405	-	-	\$684.40	-	-	
53410	-	-	\$766.56	-	-	
53415	-	-	\$884.51	-	-	
53420	-	-	\$659.25	-	-	
53425	-	-	\$733.30	-	-	
53430	-	-	\$760.72	-	-	
53431	-	-	\$902.82	-	-	
53440	-	-	\$590.40	-	-	
53442	-	-	\$615.50	-	-	
53444	-	-	\$622.11	-	-	
53445	-	-	\$592.38	-	-	
53446	-	-	\$504.33	-	-	
53447	-	-	\$633.73	-	-	
53448	-	-	\$1,000.93	-	-	
53449	-	-	\$480.71	-	-	
53450	-	-	\$321.82	-	-	
53460	-	-	\$359.59	-	-	
53500	-	-	\$587.96	-	-	
53502	-	-	\$381.59	-	-	
53505	-	-	\$381.30	-	-	
53510	-	-	\$495.82	-	-	
53515	-	-	\$623.78	-	-	
53520	-	-	\$437.91	-	-	
53600	\$66.87	\$49.48	-	-	-	
53601	\$64.05	\$41.73	-	-	-	
53605	-	-	\$50.38	-	-	
53620	\$117.52	\$67.96	-	-	-	
53621	\$111.36	\$56.01	-	-	-	
53660	\$56.40	\$32.63	-	-	-	
53661	\$55.50	\$31.74	-	-	-	
53665	-	-	\$29.90	-	-	
53850	\$1,269.03	\$276.63	-	-	-	
53852	\$1,228.76	\$296.07	-	-	-	
53854	\$1,465.89	\$295.82	-	-	-	
53855	\$606.38	\$64.39	-	-	-	
53860	\$1,720.53	\$175.12	-	-	-	
53899	-	-	I.C.	-	-	
54000	\$125.42	\$85.71	-	-	-	
54001	\$154.14	\$109.80	-	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
54015	-	-	\$239.97	-	-	
54050	\$107.25	\$82.91	-	-	-	
54055	\$100.40	\$73.73	-	-	-	
54056	\$111.94	\$86.72	-	-	-	
54057	\$110.44	\$75.08	-	-	-	
54060	\$149.70	\$102.45	-	-	-	
54065	\$174.49	\$134.78	-	-	-	
54100	\$158.82	\$95.92	-	-	-	
54105	\$213.79	\$167.13	-	-	-	
54110	-	-	\$489.84	-	-	
54111	-	-	\$626.97	-	-	
54112	-	-	\$734.15	-	-	
54115	\$358.48	\$334.13	-	-	-	
54120	-	-	\$495.61	-	-	
54125	-	-	\$638.43	-	-	
54130	-	-	\$933.88	-	-	
54135	-	-	\$1,182.23	-	-	
54150	\$121.74	\$76.52	-	-	-	
54160	\$174.83	\$113.39	-	-	-	
54161	-	-	\$154.72	-	-	
54162	\$204.28	\$156.75	-	-	-	
54163	-	-	\$171.82	-	-	
54164	-	-	\$152.20	-	-	
54200	\$88.61	\$66.58	-	-	-	
54205	-	-	\$418.52	-	-	
54220	\$168.41	\$104.36	-	-	-	
54230	\$79.22	\$62.12	-	-	-	
54231	\$111.87	\$90.71	-	-	-	
54235	\$69.82	\$57.36	-	-	-	
54240	-	-	\$81.36	\$50.69	\$30.68	
54250	-	-	\$95.43	\$85.33	\$10.10	
54300	-	-	\$506.36	-	-	
54304	-	-	\$587.50	-	-	
54308	-	-	\$561.37	-	-	
54312	-	-	\$642.02	-	-	
54316	-	-	\$780.25	-	-	
54318	-	-	\$558.40	-	-	
54322	-	-	\$612.87	-	-	
54324	-	-	\$758.32	-	-	
54326	-	-	\$739.80	-	-	
54328	-	-	\$734.99	-	-	
54332	-	-	\$792.91	-	-	
54336	-	-	\$931.32	-	-	
54340	-	-	\$447.60	-	-	
54344	-	-	\$741.44	-	-	
54348	-	-	\$792.54	-	-	
54352	-	-	\$1,108.04	-	-	
54360	-	-	\$565.48	-	-	
54380	-	-	\$627.07	-	-	
54385	-	-	\$728.74	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
54390	-	-	\$971.72	-	-	
54400	-	-	\$417.40	-	-	
54401	-	-	\$519.11	-	-	
54405	-	-	\$634.17	-	-	
54406	-	-	\$573.52	-	-	
54408	-	-	\$620.28	-	-	
54410	-	-	\$675.17	-	-	
54411	-	-	\$806.78	-	-	
54415	-	-	\$416.18	-	-	
54416	-	-	\$559.44	-	-	
54417	-	-	\$704.54	-	-	
54420	-	-	\$552.41	-	-	
54430	-	-	\$501.91	-	-	
54435	-	-	\$326.94	-	-	
54437	-	-	\$530.17	-	-	
54438	-	-	\$1,047.06	-	-	
54440	-	-	I.C.	-	-	
54450	\$54.05	\$44.78	-	-	-	
54500	-	-	\$58.13	-	-	
54505	-	-	\$165.20	-	-	
54512	-	-	\$423.07	-	-	
54520	-	-	\$256.50	-	-	
54522	-	-	\$462.57	-	-	
54530	-	-	\$398.75	-	-	
54535	-	-	\$583.71	-	-	
54550	-	-	\$386.59	-	-	
54560	-	-	\$539.10	-	-	
54600	-	-	\$356.13	-	-	
54620	-	-	\$234.92	-	-	
54640	-	-	\$340.44	-	-	
54650	-	-	\$558.79	-	-	
54660	-	-	\$281.26	-	-	
54670	-	-	\$320.76	-	-	
54680	-	-	\$617.65	-	-	
54690	-	-	\$514.27	-	-	
54692	-	-	\$593.88	-	-	
54699	-	-	I.C.	-	-	
54700	-	-	\$168.48	-	-	
54800	-	-	\$98.27	-	-	
54830	-	-	\$292.88	-	-	
54840	-	-	\$253.03	-	-	
54860	-	-	\$329.21	-	-	
54861	-	-	\$445.89	-	-	
54865	-	-	\$282.35	-	-	
54900	-	-	\$628.18	-	-	
54901	-	-	\$828.68	-	-	
55000	\$93.93	\$66.40	-	-	-	
55040	-	-	\$265.45	-	-	
55041	-	-	\$401.94	-	-	
55060	-	-	\$299.51	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
55100	\$178.77	\$131.53	-	-	-	
55110	-	-	\$305.27	-	-	
55120	-	-	\$278.41	-	-	
55150	-	-	\$387.12	-	-	
55175	-	-	\$285.73	-	-	
55180	-	-	\$544.26	-	-	
55200	\$328.20	\$218.35	-	-	-	
55250	\$422.22	\$244.77	-	-	-	
55300	-	-	\$145.78	-	-	
55400	-	-	\$392.34	-	-	
55500	-	-	\$309.63	-	-	
55520	-	-	\$359.42	-	-	
55530	-	-	\$276.56	-	-	
55535	-	-	\$338.34	-	-	
55540	-	-	\$436.08	-	-	
55550	-	-	\$337.15	-	-	
55559	-	-	I.C.	-	-	
55600	-	-	\$331.38	-	-	
55605	-	-	\$410.77	-	-	
55650	-	-	\$562.99	-	-	
55680	-	-	\$272.74	-	-	
55700	\$198.09	\$101.87	-	-	-	
55705	-	-	\$208.60	-	-	
55706	-	-	\$293.13	-	-	
55720	-	-	\$355.29	-	-	
55725	-	-	\$466.92	-	-	
55801	-	-	\$857.61	-	-	
55810	-	-	\$1,024.97	-	-	
55812	-	-	\$1,258.30	-	-	
55815	-	-	\$1,377.90	-	-	
55821	-	-	\$684.64	-	-	
55831	-	-	\$740.70	-	-	
55840	-	-	\$916.35	-	-	
55842	-	-	\$916.84	-	-	
55845	-	-	\$1,066.38	-	-	
55860	-	-	\$685.65	-	-	
55862	-	-	\$858.34	-	-	
55865	-	-	\$1,044.86	-	-	
55866	-	-	\$1,128.59	-	-	
55870	\$138.10	\$110.86	-	-	-	
55873	\$5,047.06	\$598.95	-	-	-	
55874	\$2,515.52	\$129.60	-	-	-	
55875	-	-	\$604.12	-	-	
55876	\$115.51	\$79.28	-	-	-	
55880	-	-	\$772.71	-	-	
55899	-	-	I.C.	-	-	
55920	-	-	\$356.11	-	-	
55970	-	-	I.C.	-	-	
55980	-	-	I.C.	-	-	
56405	\$102.12	\$94.58	-	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
56420	\$124.89	\$81.42	-	-	-	
56440	-	-	\$142.95	-	-	
56441	\$130.58	\$116.67	-	-	-	
56442	-	-	\$37.25	-	-	
56501	\$130.97	\$99.38	-	-	-	
56515	\$200.40	\$163.31	-	-	-	
56605	\$71.84	\$47.21	-	-	-	
56606	\$30.42	\$23.17	-	-	-	
56620	-	-	\$437.61	-	-	
56625	-	-	\$508.76	-	-	
56630	-	-	\$737.94	-	-	
56631	-	-	\$920.36	-	-	
56632	-	-	\$1,098.23	-	-	
56633	-	-	\$951.11	-	-	
56634	-	-	\$1,003.49	-	-	
56637	-	-	\$1,163.35	-	-	
56640	-	-	\$1,178.59	-	-	
56700	-	-	\$155.58	-	-	
56740	-	-	\$242.99	-	-	
56800	-	-	\$195.46	-	-	
56805	-	-	\$911.88	-	-	
56810	-	-	\$210.33	-	-	
56820	\$94.65	\$66.82	-	-	-	
56821	\$125.98	\$89.17	-	-	-	
57000	-	-	\$155.34	-	-	
57010	-	-	\$353.72	-	-	
57020	\$87.07	\$63.30	-	-	-	
57022	-	-	\$139.13	-	-	
57023	-	-	\$249.12	-	-	
57061	\$113.24	\$85.42	-	-	-	
57065	\$176.20	\$142.29	-	-	-	
57100	\$76.24	\$51.31	-	-	-	
57105	\$126.68	\$108.42	-	-	-	
57106	-	-	\$407.97	-	-	
57107	-	-	\$1,126.97	-	-	
57109	-	-	\$1,340.21	-	-	
57110	-	-	\$708.94	-	-	
57111	-	-	\$1,340.21	-	-	
57120	-	-	\$411.98	-	-	
57130	\$164.07	\$132.19	-	-	-	
57135	\$176.39	\$143.35	-	-	-	
57150	\$43.00	\$20.97	-	-	-	
57155	\$301.38	\$221.10	-	-	-	
57156	\$170.21	\$117.17	-	-	-	
57160	\$54.04	\$36.36	-	-	-	
57170	\$73.73	\$49.19	-	-	-	
57180	\$138.87	\$91.05	-	-	-	
57200	-	-	\$251.86	-	-	
57210	-	-	\$302.82	-	-	
57220	-	-	\$265.03	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
57230	-	-	\$323.52	-	-	
57240	-	-	\$475.64	-	-	
57250	-	-	\$478.51	-	-	
57260	-	-	\$608.55	-	-	
57265	-	-	\$682.52	-	-	
57267	-	-	\$197.69	-	-	
57268	-	-	\$392.43	-	-	
57270	-	-	\$636.34	-	-	
57280	-	-	\$755.72	-	-	
57282	-	-	\$415.08	-	-	
57283	-	-	\$550.26	-	-	
57284	-	-	\$647.97	-	-	
57285	-	-	\$540.09	-	-	
57287	-	-	\$565.20	-	-	
57288	-	-	\$576.76	-	-	
57289	-	-	\$616.03	-	-	
57291	-	-	\$427.21	-	-	
57292	-	-	\$649.26	-	-	
57295	-	-	\$388.14	-	-	
57296	-	-	\$742.76	-	-	
57300	-	-	\$466.20	-	-	
57305	-	-	\$759.79	-	-	
57307	-	-	\$828.87	-	-	
57308	-	-	\$518.69	-	-	
57310	-	-	\$378.72	-	-	
57311	-	-	\$427.99	-	-	
57320	-	-	\$432.36	-	-	
57330	-	-	\$594.67	-	-	
57335	-	-	\$921.01	-	-	
57400	-	-	\$103.28	-	-	
57410	-	-	\$83.47	-	-	
57415	-	-	\$133.95	-	-	
57420	\$99.53	\$70.84	-	-	-	
57421	\$133.88	\$95.91	-	-	-	
57423	-	-	\$727.24	-	-	
57425	-	-	\$767.53	-	-	
57426	-	-	\$676.24	-	-	
57452	\$95.23	\$71.75	-	-	-	
57454	\$129.12	\$105.36	-	-	-	
57455	\$122.40	\$86.17	-	-	-	
57456	\$115.06	\$79.70	-	-	-	
57460	\$245.54	\$126.13	-	-	-	
57461	\$274.63	\$145.36	-	-	-	
57465	\$60.03	\$45.01	-	-	-	
57500	\$115.32	\$59.09	-	-	-	
57505	\$103.22	\$80.32	-	-	-	
57510	\$119.48	\$89.34	-	-	-	
57511	\$138.73	\$111.49	-	-	-	
57513	\$141.05	\$111.20	-	-	-	
57520	\$265.02	\$225.60	-	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
57522	\$227.53	\$197.39	-	-	-	
57530	-	-	\$285.37	-	-	
57531	-	-	\$1,423.31	-	-	
57540	-	-	\$619.97	-	-	
57545	-	-	\$653.34	-	-	
57550	-	-	\$333.23	-	-	
57555	-	-	\$482.97	-	-	
57556	-	-	\$457.65	-	-	
57558	\$114.55	\$96.87	-	-	-	
57700	-	-	\$266.90	-	-	
57720	-	-	\$255.85	-	-	
57800	\$55.83	\$37.86	-	-	-	
58100	\$77.33	\$50.08	-	-	-	
58110	\$39.88	\$32.06	-	-	-	
58120	\$222.85	\$178.79	-	-	-	
58140	-	-	\$729.74	-	-	
58145	-	-	\$442.55	-	-	
58146	-	-	\$908.94	-	-	
58150	-	-	\$792.91	-	-	
58152	-	-	\$983.76	-	-	
58180	-	-	\$754.38	-	-	
58200	-	-	\$1,058.19	-	-	
58210	-	-	\$1,419.79	-	-	
58240	-	-	\$2,273.05	-	-	
58260	-	-	\$656.74	-	-	
58262	-	-	\$728.47	-	-	
58263	-	-	\$782.23	-	-	
58267	-	-	\$837.91	-	-	
58270	-	-	\$700.26	-	-	
58275	-	-	\$777.04	-	-	
58280	-	-	\$832.34	-	-	
58285	-	-	\$1,098.88	-	-	
58290	-	-	\$905.68	-	-	
58291	-	-	\$981.20	-	-	
58292	-	-	\$1,033.54	-	-	
58294	-	-	\$958.98	-	-	
58300	\$95.89	\$56.15	-	-	-	
58301	\$106.33	\$70.41	-	-	-	
58321	\$62.66	\$37.73	-	-	-	
58322	\$70.69	\$45.76	-	-	-	
58323	\$12.25	\$9.93	-	-	-	
58340	\$157.58	\$45.12	-	-	-	
58345	-	-	\$224.82	-	-	
58346	-	-	\$374.63	-	-	
58350	\$101.60	\$69.42	-	-	-	
58353	\$814.96	\$178.19	-	-	-	
58356	\$1,488.01	\$276.79	-	-	-	
58400	-	-	\$358.62	-	-	
58410	-	-	\$639.76	-	-	
58520	-	-	\$626.53	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
58540	-	-	\$720.09	-	-	
58541	-	-	\$571.83	-	-	
58542	-	-	\$650.18	-	-	
58543	-	-	\$660.47	-	-	
58544	-	-	\$710.98	-	-	
58545	-	-	\$706.24	-	-	
58546	-	-	\$879.27	-	-	
58548	-	-	\$1,464.80	-	-	
58550	-	-	\$693.93	-	-	
58552	-	-	\$773.05	-	-	
58553	-	-	\$884.40	-	-	
58554	-	-	\$1,031.99	-	-	
58555	\$259.99	\$119.71	-	-	-	
58558	\$1,134.91	\$182.22	-	-	-	
58559	-	-	\$225.01	-	-	
58560	-	-	\$247.31	-	-	
58561	-	-	\$282.85	-	-	
58562	\$315.19	\$174.91	-	-	-	
58563	\$1,597.73	\$194.06	-	-	-	
58565	\$2,085.42	\$467.49	-	-	-	
58570	-	-	\$624.15	-	-	
58571	-	-	\$704.12	-	-	
58572	-	-	\$809.72	-	-	
58573	-	-	\$949.55	-	-	
58575	-	-	\$1,488.45	-	-	
58578	-	-	I.C.	-	-	
58579	-	-	I.C.	-	-	
58600	-	-	\$384.10	-	-	
58605	-	-	\$348.01	-	-	
58611	-	-	\$80.33	-	-	
58615	-	-	\$261.14	-	-	
58660	-	-	\$532.14	-	-	
58661	-	-	\$510.65	-	-	
58662	-	-	\$559.26	-	-	
58670	-	-	\$291.13	-	-	
58671	-	-	\$290.60	-	-	
58672	-	-	\$576.83	-	-	
58673	-	-	\$626.58	-	-	
58674	-	-	\$641.79	-	-	
58679	-	-	I.C.	-	-	
58700	-	-	\$621.78	-	-	
58720	-	-	\$586.30	-	-	
58740	-	-	\$704.20	-	-	
58750	-	-	\$714.51	-	-	
58752	-	-	\$712.48	-	-	
58760	-	-	\$643.99	-	-	
58770	-	-	\$676.90	-	-	
58800	\$274.04	\$243.90	-	-	-	
58805	-	-	\$330.67	-	-	
58820	-	-	\$259.60	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
58822	-	-	\$559.10	-	-	
58825	-	-	\$555.11	-	-	
58900	-	-	\$337.95	-	-	
58920	-	-	\$559.49	-	-	
58925	-	-	\$596.75	-	-	
58940	-	-	\$426.78	-	-	
58943	-	-	\$914.26	-	-	
58950	-	-	\$888.87	-	-	
58951	-	-	\$1,121.92	-	-	
58952	-	-	\$1,274.83	-	-	
58953	-	-	\$1,561.64	-	-	
58954	-	-	\$1,691.81	-	-	
58956	-	-	\$1,062.36	-	-	
58957	-	-	\$1,234.05	-	-	
58958	-	-	\$1,365.26	-	-	
58960	-	-	\$760.67	-	-	
58970	\$184.47	\$155.20	-	-	-	
58974	-	-	I.C.	-	-	
58976	\$200.36	\$167.61	-	-	-	
58999	-	-	I.C.	-	-	
59000	\$134.97	\$84.03	-	-	-	
59001	-	-	\$185.91	-	-	
59012	-	-	\$209.45	-	-	
59015	\$163.20	\$136.53	-	-	-	
59020	-	-	\$76.83	\$38.21	\$38.62	
59025	-	-	\$51.56	\$30.72	\$20.84	
59030	-	-	\$116.09	-	-	
59050	-	-	\$52.69	-	-	
59051	-	-	\$43.51	-	-	
59070	\$317.43	\$241.20	-	-	-	
59072	-	-	\$407.29	-	-	
59074	\$304.39	\$241.20	-	-	-	
59076	-	-	\$407.29	-	-	
59100	-	-	\$665.22	-	-	
59120	-	-	\$838.80	-	-	
59121	-	-	\$839.60	-	-	
59130	-	-	\$737.78	-	-	
59135	-	-	\$729.33	-	-	
59136	-	-	\$925.70	-	-	
59140	-	-	\$323.79	-	-	
59150	-	-	\$813.78	-	-	
59151	-	-	\$793.96	-	-	
59160	\$251.98	\$189.48	-	-	-	
59200	\$94.35	\$46.03	-	-	-	
59300	\$224.19	\$154.10	-	-	-	
59320	-	-	\$158.12	-	-	
59325	-	-	\$250.86	-	-	
59350	-	-	\$218.24	-	-	
59400	-	-	\$2,173.45	-	-	
59409	-	-	\$839.04	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
59410	-	-	\$1,076.12	-	-	
59412	-	-	\$80.59	-	-	
59414	-	-	\$94.25	-	-	
59425	\$488.47	\$366.51	-	-	-	
59426	\$870.03	\$647.36	-	-	-	
59430	\$216.83	\$143.58	-	-	-	
59510	-	-	\$2,405.36	-	-	
59514	-	-	\$943.39	-	-	
59515	-	-	\$1,310.04	-	-	
59525	-	-	\$377.13	-	-	
59610	-	-	\$2,281.10	-	-	
59612	-	-	\$942.04	-	-	
59614	-	-	\$1,173.73	-	-	
59618	-	-	\$2,435.34	-	-	
59620	-	-	\$974.84	-	-	
59622	-	-	\$1,354.11	-	-	
59812	\$357.55	\$315.37	-	-	-	
59820	\$431.20	\$389.02	-	-	-	
59821	\$428.32	\$383.83	-	-	-	
59830	-	-	\$355.92	-	-	
59840	\$187.07	\$170.55	-	-	-	
59841	\$320.23	\$288.64	-	-	-	
59850	-	-	\$303.65	-	-	
59851	-	-	\$327.08	-	-	
59852	-	-	\$450.06	-	-	
59855	-	-	\$330.65	-	-	
59856	-	-	\$387.34	-	-	
59857	-	-	\$452.67	-	-	
59866	-	-	\$186.34	-	-	
59870	-	-	\$402.05	-	-	
59871	-	-	\$103.74	-	-	
59897	-	-	I.C.	-	-	
59898	-	-	I.C.	-	-	
59899	-	-	I.C.	-	-	
60000	\$139.01	\$121.04	-	-	-	
60100	\$87.75	\$60.80	-	-	-	
60200	-	-	\$521.58	-	-	
60210	-	-	\$553.91	-	-	
60212	-	-	\$806.87	-	-	
60220	-	-	\$552.94	-	-	
60225	-	-	\$730.34	-	-	
60240	-	-	\$718.88	-	-	
60252	-	-	\$1,032.34	-	-	
60254	-	-	\$1,304.23	-	-	
60260	-	-	\$851.86	-	-	
60270	-	-	\$1,067.20	-	-	
60271	-	-	\$825.46	-	-	
60280	-	-	\$350.36	-	-	
60281	-	-	\$461.55	-	-	
60300	\$91.12	\$38.37	-	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
60500	-	-	\$757.98	-	-	
60502	-	-	\$1,014.75	-	-	
60505	-	-	\$1,086.63	-	-	
60512	-	-	\$188.84	-	-	
60520	-	-	\$821.29	-	-	
60521	-	-	\$873.32	-	-	
60522	-	-	\$1,062.14	-	-	
60540	-	-	\$839.00	-	-	
60545	-	-	\$966.12	-	-	
60600	-	-	\$1,064.51	-	-	
60605	-	-	\$1,284.43	-	-	
60650	-	-	\$933.80	-	-	
60659	-	-	I.C.	-	-	
60699	-	-	I.C.	-	-	
61000	-	-	\$87.70	-	-	
61001	-	-	\$83.47	-	-	
61020	-	-	\$81.90	-	-	
61026	-	-	\$83.54	-	-	
61050	-	-	\$66.34	-	-	
61055	-	-	\$96.22	-	-	
61070	-	-	\$44.38	-	-	
61105	-	-	\$361.68	-	-	
61107	-	-	\$242.80	-	-	
61108	-	-	\$701.80	-	-	
61120	-	-	\$584.23	-	-	
61140	-	-	\$988.20	-	-	
61150	-	-	\$1,052.81	-	-	
61151	-	-	\$774.31	-	-	
61154	-	-	\$993.06	-	-	
61156	-	-	\$967.01	-	-	
61210	-	-	\$284.75	-	-	
61215	-	-	\$398.61	-	-	
61250	-	-	\$676.96	-	-	
61253	-	-	\$774.31	-	-	
61304	-	-	\$1,278.72	-	-	
61305	-	-	\$1,561.56	-	-	
61312	-	-	\$1,614.05	-	-	
61313	-	-	\$1,543.84	-	-	
61314	-	-	\$1,422.87	-	-	
61315	-	-	\$1,607.78	-	-	
61316	-	-	\$67.91	-	-	
61320	-	-	\$1,477.32	-	-	
61321	-	-	\$1,654.78	-	-	
61322	-	-	\$1,850.66	-	-	
61323	-	-	\$1,862.21	-	-	
61330	-	-	\$1,395.99	-	-	
61333	-	-	\$1,571.93	-	-	
61340	-	-	\$1,122.63	-	-	
61343	-	-	\$1,707.97	-	-	
61345	-	-	\$1,588.05	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
61450	-	-	\$1,493.83	-	-	
61458	-	-	\$1,564.83	-	-	
61460	-	-	\$1,638.26	-	-	
61500	-	-	\$1,026.33	-	-	
61501	-	-	\$893.01	-	-	
61510	-	-	\$1,709.37	-	-	
61512	-	-	\$1,986.45	-	-	
61514	-	-	\$1,486.37	-	-	
61516	-	-	\$1,456.90	-	-	
61517	-	-	\$67.64	-	-	
61518	-	-	\$2,152.67	-	-	
61519	-	-	\$2,297.08	-	-	
61520	-	-	\$2,916.87	-	-	
61521	-	-	\$2,478.43	-	-	
61522	-	-	\$1,701.88	-	-	
61524	-	-	\$1,620.67	-	-	
61526	-	-	\$2,612.57	-	-	
61530	-	-	\$2,394.91	-	-	
61531	-	-	\$953.27	-	-	
61533	-	-	\$1,188.60	-	-	
61534	-	-	\$1,282.89	-	-	
61535	-	-	\$781.52	-	-	
61536	-	-	\$2,006.19	-	-	
61537	-	-	\$1,916.74	-	-	
61538	-	-	\$2,072.25	-	-	
61539	-	-	\$1,836.54	-	-	
61540	-	-	\$1,695.47	-	-	
61541	-	-	\$1,672.22	-	-	
61543	-	-	\$1,690.64	-	-	
61544	-	-	\$1,477.80	-	-	
61545	-	-	\$2,482.59	-	-	
61546	-	-	\$1,794.88	-	-	
61548	-	-	\$1,219.71	-	-	
61550	-	-	\$928.56	-	-	
61552	-	-	\$1,155.33	-	-	
61556	-	-	\$1,328.68	-	-	
61557	-	-	\$1,311.08	-	-	
61558	-	-	\$1,462.89	-	-	
61559	-	-	\$1,864.59	-	-	
61563	-	-	\$1,541.99	-	-	
61564	-	-	\$1,872.03	-	-	
61566	-	-	\$1,745.94	-	-	
61567	-	-	\$1,990.04	-	-	
61570	-	-	\$1,454.71	-	-	
61571	-	-	\$1,548.70	-	-	
61575	-	-	\$1,948.75	-	-	
61576	-	-	\$3,287.12	-	-	
61580	-	-	\$1,930.05	-	-	
61581	-	-	\$2,100.28	-	-	
61582	-	-	\$2,426.57	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
61583	-	-	\$2,261.24	-	-	
61584	-	-	\$2,250.06	-	-	
61585	-	-	\$2,549.68	-	-	
61586	-	-	\$1,951.20	-	-	
61590	-	-	\$2,386.46	-	-	
61591	-	-	\$2,410.43	-	-	
61592	-	-	\$2,486.78	-	-	
61595	-	-	\$1,861.21	-	-	
61596	-	-	\$1,910.34	-	-	
61597	-	-	\$2,298.99	-	-	
61598	-	-	\$2,238.42	-	-	
61600	-	-	\$1,677.15	-	-	
61601	-	-	\$1,893.37	-	-	
61605	-	-	\$1,701.60	-	-	
61606	-	-	\$2,295.30	-	-	
61607	-	-	\$2,096.52	-	-	
61608	-	-	\$2,546.05	-	-	
61611	-	-	\$362.46	-	-	
61613	-	-	\$2,577.28	-	-	
61615	-	-	\$2,208.55	-	-	
61616	-	-	\$2,601.37	-	-	
61618	-	-	\$997.68	-	-	
61619	-	-	\$1,100.48	-	-	
61623	-	-	\$443.86	-	-	
61624	-	-	\$893.64	-	-	
61626	-	-	\$688.07	-	-	
61630	-	-	\$1,064.50	-	-	
61635	-	-	\$1,131.96	-	-	
61640	-	-	\$368.19	-	-	
61641	-	-	\$129.31	-	-	
61642	-	-	\$258.62	-	-	
61645	-	-	\$649.08	-	-	
61650	-	-	\$442.28	-	-	
61651	-	-	\$189.47	-	-	
61680	-	-	\$1,754.20	-	-	
61682	-	-	\$3,311.73	-	-	
61684	-	-	\$2,213.33	-	-	
61686	-	-	\$3,591.10	-	-	
61690	-	-	\$1,697.76	-	-	
61692	-	-	\$2,847.95	-	-	
61697	-	-	\$3,290.77	-	-	
61698	-	-	\$3,694.57	-	-	
61700	-	-	\$2,653.58	-	-	
61702	-	-	\$3,142.46	-	-	
61703	-	-	\$1,058.40	-	-	
61705	-	-	\$2,024.62	-	-	
61708	-	-	\$1,980.30	-	-	
61710	-	-	\$1,670.49	-	-	
61711	-	-	\$2,015.96	-	-	
61720	-	-	\$989.71	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
61735	-	-	\$1,239.80	-	-	
61750	-	-	\$1,096.37	-	-	
61751	-	-	\$1,075.55	-	-	
61760	-	-	\$1,229.94	-	-	
61770	-	-	\$1,262.13	-	-	
61781	-	-	\$182.13	-	-	
61782	-	-	\$135.33	-	-	
61783	-	-	\$181.08	-	-	
61790	-	-	\$686.19	-	-	
61791	-	-	\$877.15	-	-	
61796	-	-	\$790.36	-	-	
61797	-	-	\$169.77	-	-	
61798	-	-	\$1,072.74	-	-	
61799	-	-	\$234.73	-	-	
61800	-	-	\$118.35	-	-	
61850	-	-	\$767.32	-	-	
61860	-	-	\$1,216.92	-	-	
61863	-	-	\$1,171.17	-	-	
61864	-	-	\$219.20	-	-	
61867	-	-	\$1,774.14	-	-	
61868	-	-	\$386.27	-	-	
61880	-	-	\$453.14	-	-	
61885	-	-	\$408.31	-	-	
61886	-	-	\$674.80	-	-	
61888	-	-	\$309.07	-	-	
62000	-	-	\$804.92	-	-	
62005	-	-	\$989.98	-	-	
62010	-	-	\$1,195.14	-	-	
62100	-	-	\$1,231.82	-	-	
62115	-	-	\$1,308.44	-	-	
62117	-	-	\$1,528.43	-	-	
62120	-	-	\$1,655.94	-	-	
62121	-	-	\$1,225.42	-	-	
62140	-	-	\$800.73	-	-	
62141	-	-	\$890.93	-	-	
62142	-	-	\$692.41	-	-	
62143	-	-	\$812.81	-	-	
62145	-	-	\$1,108.35	-	-	
62146	-	-	\$883.67	-	-	
62147	-	-	\$1,108.27	-	-	
62148	-	-	\$98.12	-	-	
62160	-	-	\$146.26	-	-	
62161	-	-	\$1,178.32	-	-	
62162	-	-	\$1,470.02	-	-	
62164	-	-	\$1,628.60	-	-	
62165	-	-	\$1,187.24	-	-	
62180	-	-	\$1,244.87	-	-	
62190	-	-	\$723.15	-	-	
62192	-	-	\$766.66	-	-	
62194	-	-	\$383.71	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
62200	-	-	\$1,071.75	-	-	
62201	-	-	\$942.77	-	-	
62220	-	-	\$769.68	-	-	
62223	-	-	\$813.94	-	-	
62225	-	-	\$414.33	-	-	
62230	-	-	\$657.33	-	-	
62252	-	-	\$63.96	\$35.60	\$28.36	
62256	-	-	\$473.15	-	-	
62258	-	-	\$865.92	-	-	
62263	\$492.82	\$243.56	-	-	-	
62264	\$350.33	\$190.34	-	-	-	
62267	\$211.69	\$123.00	-	-	-	
62268	-	-	\$201.73	-	-	
62269	-	-	\$207.58	-	-	
62270	\$111.35	\$48.16	-	-	-	
62272	\$145.97	\$68.30	-	-	-	
62273	\$135.88	\$88.35	-	-	-	
62280	\$284.51	\$133.22	-	-	-	
62281	\$190.25	\$125.04	-	-	-	
62282	\$247.18	\$112.99	-	-	-	
62284	\$159.45	\$67.87	-	-	-	
62287	-	-	\$458.41	-	-	
62290	\$283.53	\$130.20	-	-	-	
62291	\$268.43	\$124.09	-	-	-	
62292	-	-	\$456.68	-	-	
62294	-	-	\$740.30	-	-	
62302	\$207.13	\$94.96	-	-	-	
62303	\$211.19	\$94.96	-	-	-	
62304	\$204.33	\$93.61	-	-	-	
62305	\$222.63	\$97.42	-	-	-	
62320	\$130.12	\$77.66	-	-	-	
62321	\$208.01	\$83.96	-	-	-	
62322	\$119.28	\$65.95	-	-	-	
62323	\$206.06	\$77.66	-	-	-	
62324	\$112.36	\$69.46	-	-	-	
62325	\$194.89	\$84.46	-	-	-	
62326	\$116.10	\$67.99	-	-	-	
62327	\$199.44	\$78.29	-	-	-	
62328	\$209.15	\$69.74	-	-	-	
62329	\$259.44	\$87.56	-	-	-	
62350	-	-	\$311.96	-	-	
62351	-	-	\$684.15	-	-	
62355	-	-	\$213.55	-	-	
62360	-	-	\$247.28	-	-	
62361	-	-	\$336.46	-	-	
62362	-	-	\$300.66	-	-	
62365	-	-	\$232.07	-	-	
62367	\$25.22	\$19.71	-	-	-	
62368	\$35.34	\$27.80	-	-	-	
62369	\$77.07	\$27.80	-	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
62370	\$79.41	\$36.22	-	-	-	
62380	-	-	I.C.	-	-	
63001	-	-	\$965.71	-	-	
63003	-	-	\$966.90	-	-	
63005	-	-	\$933.90	-	-	
63011	-	-	\$853.92	-	-	
63012	-	-	\$936.00	-	-	
63015	-	-	\$1,156.64	-	-	
63016	-	-	\$1,189.36	-	-	
63017	-	-	\$985.82	-	-	
63020	-	-	\$908.63	-	-	
63030	-	-	\$764.69	-	-	
63035	-	-	\$149.07	-	-	
63040	-	-	\$1,090.95	-	-	
63042	-	-	\$1,018.48	-	-	
63043	-	-	I.C.	-	-	
63044	-	-	I.C.	-	-	
63045	-	-	\$1,007.53	-	-	
63046	-	-	\$962.55	-	-	
63047	-	-	\$866.50	-	-	
63048	-	-	\$164.64	-	-	
63050	-	-	\$1,178.28	-	-	
63051	-	-	\$1,336.08	-	-	
63055	-	-	\$1,270.09	-	-	
63056	-	-	\$1,165.58	-	-	
63057	-	-	\$249.22	-	-	
63064	-	-	\$1,391.08	-	-	
63066	-	-	\$159.57	-	-	
63075	-	-	\$1,059.29	-	-	
63076	-	-	\$191.75	-	-	
63077	-	-	\$1,179.99	-	-	
63078	-	-	\$160.64	-	-	
63081	-	-	\$1,377.49	-	-	
63082	-	-	\$207.27	-	-	
63085	-	-	\$1,504.74	-	-	
63086	-	-	\$148.48	-	-	
63087	-	-	\$1,882.38	-	-	
63088	-	-	\$199.51	-	-	
63090	-	-	\$1,538.28	-	-	
63091	-	-	\$139.36	-	-	
63101	-	-	\$1,816.48	-	-	
63102	-	-	\$1,772.22	-	-	
63103	-	-	\$228.99	-	-	
63170	-	-	\$1,240.32	-	-	
63172	-	-	\$1,081.17	-	-	
63173	-	-	\$1,342.94	-	-	
63185	-	-	\$900.11	-	-	
63190	-	-	\$980.99	-	-	
63191	-	-	\$1,074.78	-	-	
63194	-	-	\$1,243.96	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
63195	-	-	\$1,193.60	-	-	
63196	-	-	\$1,385.38	-	-	
63197	-	-	\$1,331.70	-	-	
63198	-	-	\$1,626.10	-	-	
63199	-	-	\$1,703.35	-	-	
63200	-	-	\$1,193.86	-	-	
63250	-	-	\$2,310.27	-	-	
63251	-	-	\$2,362.08	-	-	
63252	-	-	\$2,361.52	-	-	
63265	-	-	\$1,303.86	-	-	
63266	-	-	\$1,343.27	-	-	
63267	-	-	\$1,074.53	-	-	
63268	-	-	\$1,107.46	-	-	
63270	-	-	\$1,616.34	-	-	
63271	-	-	\$1,612.38	-	-	
63272	-	-	\$1,473.47	-	-	
63273	-	-	\$1,452.58	-	-	
63275	-	-	\$1,406.98	-	-	
63276	-	-	\$1,396.06	-	-	
63277	-	-	\$1,219.38	-	-	
63278	-	-	\$1,239.56	-	-	
63280	-	-	\$1,650.23	-	-	
63281	-	-	\$1,631.20	-	-	
63282	-	-	\$1,539.39	-	-	
63283	-	-	\$1,480.06	-	-	
63285	-	-	\$2,035.22	-	-	
63286	-	-	\$2,011.41	-	-	
63287	-	-	\$2,135.65	-	-	
63290	-	-	\$2,172.28	-	-	
63295	-	-	\$255.51	-	-	
63300	-	-	\$1,434.67	-	-	
63301	-	-	\$1,716.26	-	-	
63302	-	-	\$1,695.69	-	-	
63303	-	-	\$1,800.71	-	-	
63304	-	-	\$1,827.98	-	-	
63305	-	-	\$1,945.82	-	-	
63306	-	-	\$1,912.37	-	-	
63307	-	-	\$1,872.25	-	-	
63308	-	-	\$251.09	-	-	
63600	-	-	\$850.16	-	-	
63610	-	-	\$449.63	-	-	
63620	-	-	\$871.96	-	-	
63621	-	-	\$195.17	-	-	
63650	\$1,549.30	\$324.75	-	-	-	
63655	-	-	\$653.52	-	-	
63661	\$514.67	\$254.11	-	-	-	
63662	-	-	\$661.46	-	-	
63663	\$682.90	\$353.07	-	-	-	
63664	-	-	\$687.89	-	-	
63685	-	-	\$283.17	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
63688	-	-	\$292.06	-	-	
63700	-	-	\$1,018.42	-	-	
63702	-	-	\$1,113.06	-	-	
63704	-	-	\$1,292.26	-	-	
63706	-	-	\$1,436.31	-	-	
63707	-	-	\$729.14	-	-	
63709	-	-	\$869.64	-	-	
63710	-	-	\$852.74	-	-	
63740	-	-	\$764.24	-	-	
63741	-	-	\$529.64	-	-	
63744	-	-	\$533.44	-	-	
63746	-	-	\$474.05	-	-	
64400	\$85.75	\$39.08	-	-	-	
64405	\$56.74	\$41.67	-	-	-	
64408	\$54.85	\$33.98	-	-	-	
64415	\$89.52	\$49.23	-	-	-	
64416	-	-	\$49.49	-	-	
64417	\$109.13	\$47.11	-	-	-	
64418	\$66.90	\$44.29	-	-	-	
64420	\$79.46	\$46.70	-	-	-	
64421	\$26.66	\$19.70	-	-	-	
64425	\$89.51	\$43.42	-	-	-	
64430	\$71.54	\$43.13	-	-	-	
64435	\$58.24	\$34.18	-	-	-	
64445	\$100.61	\$42.06	-	-	-	
64446	-	-	\$45.73	-	-	
64447	\$70.22	\$41.24	-	-	-	
64448	-	-	\$47.34	-	-	
64449	-	-	\$48.22	-	-	
64450	\$60.94	\$33.40	-	-	-	
64451	\$169.20	\$61.96	-	-	-	
64454	\$170.94	\$63.99	-	-	-	
64455	\$37.89	\$26.87	-	-	-	
64461	\$103.81	\$59.46	-	-	-	
64462	\$58.05	\$38.05	-	-	-	
64463	\$159.87	\$63.93	-	-	-	
64479	\$203.81	\$102.65	-	-	-	
64480	\$101.14	\$48.68	-	-	-	
64483	\$189.58	\$87.56	-	-	-	
64484	\$82.93	\$40.61	-	-	-	
64486	\$88.26	\$43.34	-	-	-	
64487	\$145.43	\$49.49	-	-	-	
64488	\$108.28	\$53.50	-	-	-	
64489	\$226.57	\$60.21	-	-	-	
64490	\$151.81	\$82.83	-	-	-	
64491	\$75.49	\$46.80	-	-	-	
64492	\$76.07	\$47.38	-	-	-	
64493	\$138.57	\$70.46	-	-	-	
64494	\$70.47	\$40.32	-	-	-	
64495	\$70.47	\$40.90	-	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
64505	\$100.32	\$76.26	-	-	-	
64510	\$110.99	\$59.11	-	-	-	
64517	\$152.28	\$98.08	-	-	-	
64520	\$172.61	\$65.08	-	-	-	
64530	\$172.91	\$72.63	-	-	-	
64553	\$1,647.45	\$279.13	-	-	-	
64555	\$1,525.67	\$268.36	-	-	-	
64561	\$602.76	\$237.85	-	-	-	
64566	\$102.17	\$24.21	-	-	-	
64568	-	-	\$490.84	-	-	
64569	-	-	\$593.07	-	-	
64570	-	-	\$573.48	-	-	
64575	-	-	\$268.36	-	-	
64580	-	-	\$245.09	-	-	
64581	-	-	\$518.58	-	-	
64585	\$197.89	\$113.55	-	-	-	
64590	\$212.15	\$126.65	-	-	-	
64595	\$191.59	\$100.00	-	-	-	
64600	\$357.62	\$179.37	-	-	-	
64605	\$497.79	\$276.64	-	-	-	
64610	\$618.87	\$378.01	-	-	-	
64611	\$96.47	\$83.42	-	-	-	
64612	\$106.04	\$92.42	-	-	-	
64615	\$118.05	\$95.73	-	-	-	
64616	\$104.80	\$85.09	-	-	-	
64617	\$128.31	\$84.84	-	-	-	
64620	\$164.38	\$137.43	-	-	-	
64624	\$328.12	\$115.38	-	-	-	
64625	\$400.06	\$152.25	-	-	-	
64630	\$191.81	\$148.33	-	-	-	
64632	\$69.03	\$52.80	-	-	-	
64633	\$334.97	\$176.14	-	-	-	
64634	\$150.99	\$53.03	-	-	-	
64635	\$331.44	\$173.77	-	-	-	
64636	\$137.81	\$46.51	-	-	-	
64640	\$198.66	\$92.29	-	-	-	
64642	\$115.81	\$83.93	-	-	-	
64643	\$72.82	\$55.72	-	-	-	
64644	\$135.59	\$91.54	-	-	-	
64645	\$92.42	\$64.02	-	-	-	
64646	\$121.55	\$89.96	-	-	-	
64647	\$139.82	\$105.04	-	-	-	
64650	\$64.45	\$32.28	-	-	-	
64653	\$77.85	\$41.33	-	-	-	
64680	\$269.07	\$127.34	-	-	-	
64681	\$454.01	\$204.17	-	-	-	
64702	-	-	\$399.87	-	-	
64704	-	-	\$254.48	-	-	
64708	-	-	\$399.57	-	-	
64712	-	-	\$464.33	-	-	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
64713	-	-	\$615.48	-	-	
64714	-	-	\$577.36	-	-	
64716*	-	-	\$406.94	-	-	
64718	-	-	\$472.55	-	-	
64719	-	-	\$319.66	-	-	
64721	\$346.92	\$341.99	-	-	-	
64722	-	-	\$284.31	-	-	
64726	-	-	\$211.85	-	-	
64727	-	-	\$142.34	-	-	
64732	-	-	\$349.71	-	-	
64734	-	-	\$394.87	-	-	
64736	-	-	\$275.30	-	-	
64738	-	-	\$358.56	-	-	
64740	-	-	\$373.44	-	-	
64742	-	-	\$388.10	-	-	
64744	-	-	\$390.37	-	-	
64746	-	-	\$337.97	-	-	
64755	-	-	\$723.93	-	-	
64760	-	-	\$408.35	-	-	
64763	-	-	\$404.13	-	-	
64766	-	-	\$498.22	-	-	
64771*	-	-	\$481.38	-	-	
64772	-	-	\$445.55	-	-	
64774	-	-	\$323.73	-	-	
64776	-	-	\$308.04	-	-	
64778	-	-	\$142.89	-	-	
64782	-	-	\$359.56	-	-	
64783	-	-	\$170.44	-	-	
64784	-	-	\$575.91	-	-	
64786	-	-	\$789.23	-	-	
64787	-	-	\$188.17	-	-	
64788	-	-	\$318.61	-	-	
64790	-	-	\$657.04	-	-	
64792	-	-	\$830.05	-	-	
64795	-	-	\$150.58	-	-	
64802	-	-	\$654.07	-	-	
64804	-	-	\$924.63	-	-	
64809	-	-	\$847.25	-	-	
64818	-	-	\$615.30	-	-	
64820	-	-	\$575.60	-	-	
64821	-	-	\$549.87	-	-	
64822	-	-	\$549.87	-	-	
64823	-	-	\$623.89	-	-	
64831	-	-	\$545.77	-	-	
64832	-	-	\$263.58	-	-	
64834	-	-	\$584.47	-	-	
64835	-	-	\$644.37	-	-	
64836	-	-	\$644.37	-	-	
64837	-	-	\$287.40	-	-	
64840	-	-	\$758.78	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
64856	-	-	\$797.56	-	-	
64857	-	-	\$830.61	-	-	
64858	-	-	\$926.64	-	-	
64859	-	-	\$195.28	-	-	
64861	-	-	\$1,181.47	-	-	
64862	-	-	\$1,082.96	-	-	
64864	-	-	\$677.63	-	-	
64865	-	-	\$857.47	-	-	
64866	-	-	\$1,009.90	-	-	
64868	-	-	\$784.98	-	-	
64872	-	-	\$91.56	-	-	
64874	-	-	\$136.43	-	-	
64876	-	-	\$154.29	-	-	
64885	-	-	\$868.28	-	-	
64886	-	-	\$1,000.54	-	-	
64890	-	-	\$851.05	-	-	
64891	-	-	\$905.01	-	-	
64892	-	-	\$827.60	-	-	
64893	-	-	\$882.87	-	-	
64895	-	-	\$1,044.69	-	-	
64896	-	-	\$1,126.63	-	-	
64897	-	-	\$998.22	-	-	
64898	-	-	\$1,080.98	-	-	
64901	-	-	\$467.93	-	-	
64902	-	-	\$542.40	-	-	
64905	-	-	\$805.22	-	-	
64907	-	-	\$1,025.02	-	-	
64910	-	-	\$624.94	-	-	
64911	-	-	\$810.42	-	-	
64912	-	-	\$721.90	-	-	
64913	-	-	\$140.02	-	-	
64999	-	-	I.C.	-	-	
65091	-	-	\$545.50	-	-	
65093	-	-	\$540.53	-	-	
65101	-	-	\$628.38	-	-	
65103	-	-	\$651.02	-	-	
65105	-	-	\$713.01	-	-	
65110	-	-	\$1,000.50	-	-	
65112	-	-	\$1,152.36	-	-	
65114	-	-	\$1,204.84	-	-	
65125	\$366.47	\$230.25	-	-	-	
65130	-	-	\$624.89	-	-	
65135	-	-	\$632.86	-	-	
65140	-	-	\$683.52	-	-	
65150	-	-	\$505.20	-	-	
65155	-	-	\$713.76	-	-	
65175	-	-	\$566.80	-	-	
65205	\$29.43	\$22.76	-	-	-	
65210	\$36.05	\$28.51	-	-	-	
65220	\$47.12	\$32.34	-	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
65222	\$53.65	\$40.03	-	-	-	
65235	-	-	\$564.43	-	-	
65260	-	-	\$762.69	-	-	
65265	-	-	\$855.99	-	-	
65270	\$224.76	\$110.27	-	-	-	
65272	\$413.14	\$276.91	-	-	-	
65273	-	-	\$298.60	-	-	
65275	\$462.36	\$362.37	-	-	-	
65280	-	-	\$525.42	-	-	
65285	-	-	\$867.81	-	-	
65286	\$559.45	\$388.73	-	-	-	
65290	-	-	\$384.68	-	-	
65400	\$541.63	\$472.65	-	-	-	
65410	\$114.15	\$80.53	-	-	-	
65420	\$422.90	\$296.82	-	-	-	
65426	\$528.83	\$375.22	-	-	-	
65430	\$90.96	\$79.95	-	-	-	
65435	\$64.91	\$54.77	-	-	-	
65436	\$304.25	\$289.76	-	-	-	
65450	\$258.07	\$253.14	-	-	-	
65600	\$327.73	\$266.87	-	-	-	
65710	-	-	\$882.92	-	-	
65730	-	-	\$975.45	-	-	
65750	-	-	\$979.47	-	-	
65755	-	-	\$975.10	-	-	
65756	-	-	\$922.23	-	-	
65757	-	-	I.C.	-	-	
65760	-	-	I.C.	-	-	
65765	-	-	I.C.	-	-	
65767	-	-	I.C.	-	-	
65770	-	-	\$1,091.77	-	-	
65771	-	-	I.C.	-	-	
65772	\$357.07	\$317.65	-	-	-	
65775	-	-	\$442.44	-	-	
65778	\$1,150.86	\$42.24	-	-	-	
65779	\$990.95	\$116.81	-	-	-	
65780	-	-	\$524.31	-	-	
65781	-	-	\$1,041.28	-	-	
65782	-	-	\$899.48	-	-	
65785	\$1,939.86	\$347.50	-	-	-	
65800	\$94.00	\$70.53	-	-	-	
65810	-	-	\$364.57	-	-	
65815	\$511.37	\$373.98	-	-	-	
65820	-	-	\$618.96	-	-	
65850	-	-	\$659.75	-	-	
65855	\$194.19	\$161.73	-	-	-	
65860	\$244.15	\$196.04	-	-	-	
65865	-	-	\$373.72	-	-	
65870	-	-	\$465.48	-	-	
65875	-	-	\$496.19	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
65880	-	-	\$521.86	-	-	
65900	-	-	\$769.48	-	-	
65920	-	-	\$620.50	-	-	
65930	-	-	\$501.50	-	-	
66020	\$154.55	\$102.67	-	-	-	
66030	\$138.71	\$86.83	-	-	-	
66130	\$555.85	\$442.52	-	-	-	
66150	-	-	\$689.96	-	-	
66155	-	-	\$689.40	-	-	
66160	-	-	\$774.99	-	-	
66170	-	-	\$857.88	-	-	
66172	-	-	\$935.40	-	-	
66174	-	-	\$740.06	-	-	
66175	-	-	\$774.76	-	-	
66179	-	-	\$845.81	-	-	
66180	-	-	\$892.26	-	-	
66183	-	-	\$807.22	-	-	
66184	-	-	\$618.21	-	-	
66185	-	-	\$664.91	-	-	
66225	-	-	\$730.01	-	-	
66250	\$599.27	\$436.38	-	-	-	
66500	-	-	\$295.40	-	-	
66505	-	-	\$322.38	-	-	
66600	-	-	\$685.01	-	-	
66605	-	-	\$845.51	-	-	
66625	-	-	\$336.75	-	-	
66630	-	-	\$445.17	-	-	
66635	-	-	\$449.00	-	-	
66680	-	-	\$407.92	-	-	
66682	-	-	\$532.58	-	-	
66700	\$356.90	\$307.05	-	-	-	
66710	\$349.66	\$307.05	-	-	-	
66711	-	-	\$396.74	-	-	
66720	\$366.15	\$320.94	-	-	-	
66740	\$346.47	\$307.05	-	-	-	
66761	\$237.67	\$185.21	-	-	-	
66762	\$376.56	\$333.08	-	-	-	
66770	\$417.92	\$377.92	-	-	-	
66820	-	-	\$341.82	-	-	
66821	\$262.88	\$245.78	-	-	-	
66825	-	-	\$626.83	-	-	
66830	-	-	\$555.72	-	-	
66840	-	-	\$543.72	-	-	
66850	-	-	\$619.19	-	-	
66852	-	-	\$659.12	-	-	
66920	-	-	\$588.47	-	-	
66930	-	-	\$670.47	-	-	
66940	-	-	\$613.30	-	-	
66982	-	-	\$585.86	-	-	
66983	-	-	I.C.	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
66984	-	-	\$427.36	-	-	
66985	-	-	\$601.77	-	-	
66986	-	-	\$708.98	-	-	
66987	-	-	I.C.	-	-	
66988	-	-	I.C.	-	-	
66990	-	-	\$69.70	-	-	
66999	-	-	I.C.	-	-	
67005	-	-	\$370.78	-	-	
67010	-	-	\$424.35	-	-	
67015	-	-	\$465.56	-	-	
67025	\$583.14	\$495.03	-	-	-	
67027	-	-	\$665.23	-	-	
67028	\$78.86	\$76.83	-	-	-	
67030	-	-	\$428.69	-	-	
67031	\$308.14	\$279.16	-	-	-	
67036	-	-	\$703.50	-	-	
67039	-	-	\$752.73	-	-	
67040	-	-	\$812.85	-	-	
67041	-	-	\$897.53	-	-	
67042	-	-	\$897.24	-	-	
67043	-	-	\$946.52	-	-	
67101	\$262.35	\$223.51	-	-	-	
67105	\$233.97	\$215.71	-	-	-	
67107	-	-	\$882.00	-	-	
67108	-	-	\$933.94	-	-	
67110	\$699.14	\$637.70	-	-	-	
67113	-	-	\$1,043.98	-	-	
67115	-	-	\$391.59	-	-	
67120	\$527.68	\$435.51	-	-	-	
67121	-	-	\$708.72	-	-	
67141	\$413.23	\$381.35	-	-	-	
67145	\$415.62	\$389.54	-	-	-	
67208	\$471.41	\$451.42	-	-	-	
67210	\$406.83	\$391.47	-	-	-	
67218	-	-	\$1,085.49	-	-	
67220	\$419.58	\$391.47	-	-	-	
67221	\$221.02	\$164.79	-	-	-	
67225	\$23.26	\$22.10	-	-	-	
67227	\$231.62	\$200.03	-	-	-	
67228	\$268.05	\$238.20	-	-	-	
67229	-	-	\$909.49	-	-	
67250	-	-	\$663.93	-	-	
67255	-	-	\$537.46	-	-	
67299	-	-	I.C.	-	-	
67311	-	-	\$467.89	-	-	
67312	-	-	\$561.40	-	-	
67314	-	-	\$531.44	-	-	
67316	-	-	\$629.27	-	-	
67318	-	-	\$554.93	-	-	
67320	-	-	\$248.64	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
67331	-	-	\$236.35	-	-	
67332	-	-	\$256.03	-	-	
67334	-	-	\$232.83	-	-	
67335	-	-	\$113.94	-	-	
67340	-	-	\$276.60	-	-	
67343	-	-	\$515.41	-	-	
67345	\$191.33	\$169.88	-	-	-	
67346	-	-	\$149.92	-	-	
67399	-	-	I.C.	-	-	
67400	-	-	\$776.44	-	-	
67405	-	-	\$668.30	-	-	
67412	-	-	\$727.82	-	-	
67413	-	-	\$718.80	-	-	
67414	-	-	\$1,096.32	-	-	
67415	-	-	\$80.88	-	-	
67420	-	-	\$1,316.85	-	-	
67430	-	-	\$1,038.99	-	-	
67440	-	-	\$1,006.41	-	-	
67445	-	-	\$1,154.10	-	-	
67450	-	-	\$1,044.44	-	-	
67500	\$56.69	\$47.13	-	-	-	
67505	\$64.81	\$54.08	-	-	-	
67515	\$50.35	\$46.29	-	-	-	
67550	-	-	\$807.92	-	-	
67560	-	-	\$827.27	-	-	
67570	-	-	\$988.77	-	-	
67599	-	-	I.C.	-	-	
67700	\$225.62	\$91.13	-	-	-	
67710	\$190.58	\$76.67	-	-	-	
67715	\$204.69	\$84.12	-	-	-	
67800	\$101.54	\$80.38	-	-	-	
67801	\$128.34	\$103.12	-	-	-	
67805	\$159.49	\$127.90	-	-	-	
67808	-	-	\$289.00	-	-	
67810	\$145.29	\$54.57	-	-	-	
67820	\$20.86	\$22.31	-	-	-	
67825	\$105.26	\$95.41	-	-	-	
67830	\$215.97	\$107.57	-	-	-	
67835	-	-	\$344.33	-	-	
67840	\$223.41	\$123.41	-	-	-	
67850	\$172.52	\$103.83	-	-	-	
67875	\$141.40	\$75.02	-	-	-	
67880	\$366.81	\$288.27	-	-	-	
67882	\$449.74	\$369.74	-	-	-	
67900	\$510.95	\$397.33	-	-	-	
67901	\$619.98	\$457.96	-	-	-	
67902	-	-	\$566.49	-	-	
67903	\$474.39	\$377.59	-	-	-	
67904	\$583.93	\$466.83	-	-	-	
67906	-	-	\$396.02	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
67908	\$408.88	\$336.13	-	-	-	
67909	\$431.38	\$343.85	-	-	-	
67911	-	-	\$438.65	-	-	
67912	\$726.18	\$380.98	-	-	-	
67914	\$385.07	\$257.25	-	-	-	
67915	\$245.34	\$155.49	-	-	-	
67916	\$481.92	\$336.71	-	-	-	
67917	\$490.49	\$358.03	-	-	-	
67921	\$378.06	\$244.16	-	-	-	
67922	\$238.47	\$154.42	-	-	-	
67923	\$481.96	\$337.34	-	-	-	
67924	\$512.85	\$358.08	-	-	-	
67930	\$292.65	\$186.28	-	-	-	
67935	\$472.35	\$344.82	-	-	-	
67938	\$209.53	\$91.27	-	-	-	
67950	\$459.19	\$362.68	-	-	-	
67961	\$461.43	\$356.22	-	-	-	
67966	\$611.21	\$512.96	-	-	-	
67971	-	-	\$564.58	-	-	
67973	-	-	\$725.68	-	-	
67974	-	-	\$724.15	-	-	
67975	-	-	\$535.27	-	-	
67999	-	-	I.C.	-	-	
68020	\$94.94	\$86.25	-	-	-	
68040	\$49.28	\$38.26	-	-	-	
68100	\$142.85	\$75.02	-	-	-	
68110	\$187.11	\$116.10	-	-	-	
68115	\$259.63	\$143.41	-	-	-	
68130	\$435.30	\$323.13	-	-	-	
68135	\$124.04	\$117.66	-	-	-	
68200	\$33.06	\$27.27	-	-	-	
68320	\$586.53	\$423.06	-	-	-	
68325	-	-	\$513.91	-	-	
68326	-	-	\$504.57	-	-	
68328	-	-	\$554.07	-	-	
68330	\$489.88	\$360.90	-	-	-	
68335	-	-	\$506.21	-	-	
68340	\$462.62	\$312.19	-	-	-	
68360	\$427.84	\$321.47	-	-	-	
68362	-	-	\$512.80	-	-	
68371	-	-	\$324.03	-	-	
68399	-	-	I.C.	-	-	
68400	\$235.71	\$102.67	-	-	-	
68420	\$264.37	\$131.05	-	-	-	
68440	\$81.80	\$78.32	-	-	-	
68500	-	-	\$795.70	-	-	
68505	-	-	\$792.13	-	-	
68510	\$361.08	\$226.31	-	-	-	
68520	-	-	\$557.37	-	-	
68525	-	-	\$203.94	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
68530	\$345.57	\$199.20	-	-	-	
68540	-	-	\$748.88	-	-	
68550	-	-	\$924.29	-	-	
68700	-	-	\$472.72	-	-	
68705	\$202.49	\$129.74	-	-	-	
68720	-	-	\$613.39	-	-	
68745	-	-	\$616.13	-	-	
68750	-	-	\$643.19	-	-	
68760	\$170.97	\$114.17	-	-	-	
68761	\$117.86	\$92.36	-	-	-	
68770	-	-	\$491.60	-	-	
68801	\$73.12	\$60.95	-	-	-	
68810	\$126.44	\$100.06	-	-	-	
68811	-	-	\$105.86	-	-	
68815	\$312.36	\$174.11	-	-	-	
68816	\$639.30	\$123.10	-	-	-	
68840	\$103.64	\$91.18	-	-	-	
68850	\$49.85	\$43.76	-	-	-	
68899	-	-	I.C.	-	-	
69000	\$150.05	\$95.85	-	-	-	
69005	\$172.42	\$123.72	-	-	-	
69020	\$185.09	\$111.48	-	-	-	
69090	-	-	I.C.	-	-	
69100	\$78.47	\$37.31	-	-	-	
69105	\$113.35	\$49.01	-	-	-	
69110	\$370.46	\$258.00	-	-	-	
69120	-	-	\$310.72	-	-	
69140	-	-	\$695.79	-	-	
69145	\$320.33	\$198.60	-	-	-	
69150	-	-	\$805.38	-	-	
69155	-	-	\$1,280.41	-	-	
69200	\$64.57	\$36.74	-	-	-	
69205	-	-	\$76.59	-	-	
69209	-	-	\$11.55	-	-	
69210	\$37.51	\$25.92	-	-	-	
69220	\$62.68	\$39.78	-	-	-	
69222	\$169.97	\$105.92	-	-	-	
69300	\$491.78	\$360.77	-	-	-	
69310	-	-	\$864.37	-	-	
69320	-	-	\$1,207.14	-	-	
69399	-	-	I.C.	-	-	
69420	\$149.66	\$94.01	-	-	-	
69421	-	-	\$116.52	-	-	
69424	\$102.34	\$47.56	-	-	-	
69433	\$158.04	\$102.97	-	-	-	
69436	-	-	\$123.65	-	-	
69440	-	-	\$541.80	-	-	
69450	-	-	\$429.68	-	-	
69501	-	-	\$562.73	-	-	
69502	-	-	\$747.15	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
69505	-	-	\$951.37	-	-	
69511	-	-	\$974.05	-	-	
69530	-	-	\$1,300.14	-	-	
69535	-	-	\$2,072.34	-	-	
69540	\$165.09	\$99.88	-	-	-	
69550	-	-	\$822.86	-	-	
69552	-	-	\$1,232.88	-	-	
69554	-	-	\$1,964.48	-	-	
69601	-	-	\$805.29	-	-	
69602	-	-	\$853.00	-	-	
69603	-	-	\$994.87	-	-	
69604	-	-	\$871.40	-	-	
69610	\$297.80	\$225.05	-	-	-	
69620	\$562.62	\$384.37	-	-	-	
69631	-	-	\$696.34	-	-	
69632	-	-	\$846.23	-	-	
69633	-	-	\$820.65	-	-	
69635	-	-	\$975.07	-	-	
69636	-	-	\$1,090.25	-	-	
69637	-	-	\$1,085.39	-	-	
69641	-	-	\$816.88	-	-	
69642	-	-	\$1,048.02	-	-	
69643	-	-	\$957.56	-	-	
69644	-	-	\$1,165.28	-	-	
69645	-	-	\$1,147.23	-	-	
69646	-	-	\$1,214.17	-	-	
69650	-	-	\$629.65	-	-	
69660	-	-	\$724.42	-	-	
69661	-	-	\$944.97	-	-	
69662	-	-	\$900.48	-	-	
69666	-	-	\$634.94	-	-	
69667	-	-	\$634.24	-	-	
69670	-	-	\$741.68	-	-	
69676	-	-	\$653.11	-	-	
69700	-	-	\$527.85	-	-	
69705	\$2585.15	\$136.75	-	-	-	
69706	\$2659.15	\$190.09	-	-	-	
69710	-	-	I.C.	-	-	
69711	-	-	\$663.62	-	-	
69714	-	-	\$828.58	-	-	
69715	-	-	\$1,022.28	-	-	
69717	-	-	\$868.82	-	-	
69718	-	-	\$1,032.83	-	-	
69720	-	-	\$932.00	-	-	
69725	-	-	\$1,462.23	-	-	
69740	-	-	\$909.15	-	-	
69745	-	-	\$969.62	-	-	
69799	-	-	I.C.	-	-	
69801	\$169.03	\$96.57	-	-	-	
69805	-	-	\$810.79	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
69806	-	-	\$728.14	-	-	
69905	-	-	\$719.61	-	-	
69910	-	-	\$782.44	-	-	
69915	-	-	\$1,183.36	-	-	
69930	-	-	\$952.74	-	-	
69949	-	-	I.C.	-	-	
69950	-	-	\$1,371.25	-	-	
69955	-	-	\$1,537.98	-	-	
69960	-	-	\$1,480.59	-	-	
69970	-	-	\$1,664.10	-	-	
69979	-	-	I.C.	-	-	
69990	-	-	\$168.46	-	-	
80500	\$17.55	\$15.23	-	-	-	
80502	\$57.53	\$54.92	-	-	-	
83020	-	-	-	\$14.36	-	
84165	-	-	-	\$14.36	-	
84166	-	-	-	\$14.36	-	
84181	-	-	-	\$14.36	-	
84182	-	-	-	\$14.36	-	
85060	-	-	\$19.05	-	-	
85097	\$54.85	\$38.62	-	-	-	
85390	-	-	-	\$29.04	-	
85396	-	-	\$15.81	-	-	
85576	-	-	-	\$14.36	-	
86077	\$42.68	\$39.78	-	-	-	
86078	\$42.68	\$39.78	-	-	-	
86079	\$42.68	\$39.49	-	-	-	
86153	-	-	\$26.86	\$26.86	-	
86255	-	-	-	\$14.36	-	
86256	-	-	-	\$14.36	-	
86320	-	-	-	\$14.36	-	
86325	-	-	-	\$14.36	-	
86327	-	-	-	\$17.47	-	
86334	-	-	-	\$14.36	-	
86335	-	-	-	\$14.36	-	
86486	-	-	\$4.30	-	-	
86490	-	-	\$71.83	-	-	
86510	-	-	\$5.46	-	-	
86580	-	-	\$7.49	-	-	
87164	-	-	-	\$15.57	-	
87207	-	-	-	\$14.36	-	
88104	-	-	\$54.47	\$22.06	\$32.42	
88106	-	-	\$52.04	\$15.28	\$36.76	
88108	-	-	\$49.55	\$17.71	\$31.84	
88112	-	-	\$53.60	\$21.77	\$31.84	
88120	-	-	\$470.18	\$45.37	\$424.81	
88121	-	-	\$359.12	\$38.32	\$320.80	
88125	-	-	\$21.01	\$10.91	\$10.10	
88141	-	-	\$20.47	-	-	
88160	-	-	\$56.94	\$20.47	\$36.47	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
88161	-	-	\$54.62	\$19.89	\$34.74	
88162	-	-	\$79.15	\$30.26	\$48.89	
88172	-	-	\$44.01	\$28.40	\$15.61	
88173	-	-	\$122.73	\$55.87	\$66.86	
88177	-	-	\$23.27	\$17.47	\$5.80	
88182	-	-	\$110.68	\$30.53	\$80.15	
88184	-	-	\$54.69	-	-	
88185	-	-	\$17.97	-	-	
88187	-	-	\$29.55	-	-	
88188	-	-	\$49.82	-	-	
88189	-	-	\$66.72	-	-	
88199	-	-	I.C.	-	-	
88291	-	-	\$26.41	-	-	
88299	-	-	I.C.	-	-	
88300	-	-	\$12.47	\$3.53	\$8.94	
88302	-	-	\$24.81	\$5.43	\$19.37	
88304	-	-	\$32.99	\$8.98	\$24.01	
88305	-	-	\$55.46	\$29.71	\$25.75	
88307	-	-	\$221.90	\$65.52	\$156.38	
88309	-	-	\$336.22	\$115.50	\$220.72	
88311	-	-	\$17.00	\$9.80	\$7.20	
88312	-	-	\$84.67	\$20.95	\$63.72	
88313	-	-	\$61.35	\$9.51	\$51.84	
88314	-	-	\$77.93	\$17.40	\$60.53	
88319	-	-	\$89.91	\$21.26	\$68.65	
88321	\$77.91	\$66.31	-	-	-	
88323	-	-	\$89.86	\$68.46	\$21.40	
88325	\$136.22	\$113.61	-	-	-	
88329	\$41.89	\$28.56	-	-	-	
88331	-	-	\$77.52	\$49.45	\$28.07	
88332	-	-	\$43.10	\$24.59	\$18.50	
88333	-	-	\$70.83	\$49.42	\$21.40	
88334	-	-	\$44.54	\$30.04	\$14.49	
88341	-	-	\$74.23	\$22.35	\$51.88	
88344	-	-	\$138.88	\$30.24	\$108.64	
88346	-	-	\$101.27	\$28.28	\$72.99	
88348	-	-	\$312.43	\$60.26	\$252.18	
88350	-	-	\$74.11	\$22.85	\$51.26	
88355	-	-	\$107.82	\$64.39	\$43.43	
88356	-	-	\$185.71	\$100.43	\$85.28	
88358	-	-	\$106.80	\$39.60	\$67.20	
88360	-	-	\$100.14	\$33.23	\$66.91	
88361	-	-	\$101.34	\$35.01	\$66.33	
88362	-	-	\$180.97	\$89.18	\$91.79	
88363	\$18.42	\$15.52	-	-	-	
88365	-	-	\$145.48	\$34.56	\$110.92	
88366	-	-	\$222.85	\$49.04	\$173.81	
88367	-	-	\$90.58	\$26.86	\$63.72	
88368	-	-	\$105.23	\$32.57	\$72.66	
88369	-	-	\$91.81	\$25.48	\$66.33	

316.05: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at https://www.mass.gov/regulations/101-CMR-31600-surgery-and-anesthesia</i>)
88371	-	-	-	\$15.57	-	
88372	-	-	-	\$14.36	-	
88374	-	-	\$277.32	\$34.77	\$242.55	
88375	-	-	\$38.70	-	-	
88377	-	-	\$327.08	\$50.67	\$276.41	
88380	-	-	\$107.74	\$43.48	\$64.25	
88381	-	-	\$145.47	\$19.52	\$125.94	
88387	-	-	\$27.37	\$21.62	\$5.75	
88388	-	-	\$28.95	\$18.85	\$10.10	
88399	-	-	I.C.	-	-	
89049	\$202.72	\$46.79	-	-	-	
89060	-	-	-	\$14.36	-	
89220	-	-	\$13.29	-	-	
89230	-	-	\$1.98	-	-	
89240	-	-	I.C.	-	-	
G0105	\$414.57	\$204.78	-	-	-	
G0121	\$414.80	\$205.01	-	-	-	
S2260	-	-	I.C.	-	-	

* See 101 CMR 316.05(1)

- (c) Surgical Services. Fee Schedule for Facial Feminization Surgery Services to Treat Gender Dysphoria.
1. NFAC – “Non-facility”. These amounts apply when service is performed in a non-facility setting.
 2. FAC – “Facility”. These amounts, also known as the Facility Setting Fee, apply when service is performed in a facility setting.
 3. Global Fee. These amounts apply when no site of service differential rate is specified.

Code	NFAC	FAC	Global	PC	TC	Description (<i>see surgery services code spreadsheet at www.mass.gov/regulations/101-CMR-31600-surgery</i>)
14301	\$1,200.35	\$962.30	-	-	-	
14302	-	-	\$239.98	-	-	
20912	-	-	\$526.00	-	-	
21120	\$758.87	\$587.56	-	-	-	
21123	-	-	\$978.12	-	-	
21137	-	-	\$838.34	-	-	
21139	-	-	\$1,236.88	-	-	
21208	\$1,936.84	\$838.59	-	-	-	
21209	\$902.84	\$677.82	-	-	-	
21210	\$2,253.17	\$863.16	-	-	-	
21296	-	-	\$451.89	-	-	
30410	-	-	\$1,558.11	-	-	
30420	-	-	\$1,567.75	-	-	
30465	-	-	\$1,107.96	-	-	
31750	-	-	\$1,524.31	-	-	
64716	-	-	\$571.32	-	-	
64771	-	-	\$675.82	-	-	

316.06: Severability

The provisions of 101 CMR 316.00 are hereby declared to be severable, and if any such provisions or the application of such provisions to any person or circumstances shall be held to be invalid or unconstitutional, such invalidity shall not be construed to affect the validity or constitutionality of any remaining provisions to eligible providers or circumstances other than those held invalid.

REGULATORY AUTHORITY

101 CMR 316.00: M.G.L. c. 118E.



THE COMMONWEALTH OF MASSACHUSETTS

William Francis Galvin

Secretary of the Commonwealth

Regulation Filing *To be completed by filing agency*CHAPTER NUMBER: **101 CMR 317.00**CHAPTER TITLE: **Rates for Medicine Services**AGENCY: **Executive Office of Health and Human Services**SUMMARY OF REGULATION: *State the general requirements and purposes of this regulation.***101 CMR 317.00 governs the payment rates used by all governmental units for medical services provided to publicly aided patients.**REGULATORY AUTHORITY: **M.G.L. c. 118E**AGENCY CONTACT: **Deborah Briggs, MassHealth Publications** PHONE: **617-847-3302**ADDRESS: **100 Hancock Street, 6th floor, Quincy, MA 02171****Compliance with M.G.L. c. 30A**EMERGENCY ADOPTION - *if this regulation is adopted as an emergency, state the nature of the emergency.*PRIOR NOTIFICATION AND/OR APPROVAL - *If prior notification to and/or approval of the Governor, Legislature or others was required, list each notification, and/or approval and date, including notice to the Local Government Advisory Commission.***Executive Order 145 notifications: 3/25/21****Executive Order 562 approval: 7/2/21**PUBLIC REVIEW - *M.G.L. c. 30A sections 2 and/or 3 requires notice of the hearing or comment period, including a small business impact statement, be filed with the Secretary of the Commonwealth, published in appropriate newspapers, and sent to persons to whom specific notice must be given at least 21 days prior to such hearing or comment period.*Date of public hearing or comment period: **5/7/21**

FISCAL EFFECT - *Estimate the fiscal effect of the public and private sectors.*

For the first and second year: \$402,000 estimated annual aggregate increase (along w/ 101 CMR 316 & 318)

For the first five years: _____

No fiscal effect: _____

SMALL BUSINESS IMPACT - *M.G.L. c. 30A section 5 requires each agency to file an amended small business impact statement with the Secretary of the Commonwealth prior to the adoption of a proposed regulation. If the purpose of this regulation is to set rates for the state, this section does not apply.*

Date amended small business impact statement was filed: _____

CODE OF MASSACHUSETTS REGULATIONS INDEX - *List key subjects that are relevant to this regulation:*

PROMULGATION - *State the action taken by this regulation and its effect on existing provisions of the Code of Massachusetts Regulations (CMR) or repeal, replace or amend. List by CMR number:*

101 CMR 317.00 is being amended.

ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.* ATTEST:

SIGNATURE: SIGNATURE ON FILE DATE: Jul 9 2021

Publication - *To be completed by the Regulations Division*

MASSACHUSETTS REGISTER NUMBER: 1448 DATE: 07/23/2021

EFFECTIVE DATE: 07/23/2021

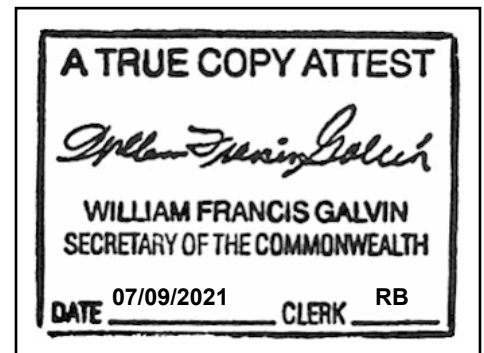
CODE OF MASSACHUSETTS REGULATIONS

Remove these pages:

721 - 750.2

Insert these pages:

721 - 750.2.6



101 CMR 317.00: RATES FOR MEDICINE SERVICES

Section

- 317.01: General Provisions
- 317.02: General Definitions
- 317.03: General Rate Provisions
- 317.04: Maximum Allowable Fees – Medical Services
- 317.05: Severability

317.01: General Provisions

(1) Scope, Purpose, and Effective Date. 101 CMR 317.00 governs the payment rates used by all governmental units for medical services provided to publicly aided patients. Rates for services provided to individuals covered by the Workers' Compensation Act, M.G.L. c. 152, are not set forth in 101 CMR 317.00, but are at 114.3 CMR 40.00: *Rates for Services under M.G.L. c. 152, Worker's Compensation Act.*

(2) Applicable Dates of Service. Rates contained in 101 CMR 317.00 apply for dates of service on or after August 1, 2021, except as otherwise noted.

(3) Coverage.

(a) Payment rates in 101 CMR 317.00 are used to pay for medical services rendered to patients in a private medical office, licensed clinic, hospital or other inpatient or outpatient facility or department, independent diagnostic testing facility, patient's residence, or other appropriate setting by an individual eligible provider, when an eligible provider bills for the medical services rendered and no other payment method applies.

(b) The rates of payment under 101 CMR 317.00 are full compensation for patient care rendered to publicly aided patients as well as for any related administrative or supervisory duties in connection with patient care. The rates of payment also reimburse all overhead expenses associated with the service provided, without regard to where the care is rendered.

(4) Disclaimer of Authorization of Services. 101 CMR 317.00 is not authorization for or approval of the procedures for which rates are determined pursuant to 101 CMR 317.00. Governmental units that purchase care are responsible for the definition, authorization, coverage policies, and approval of care and services provided to publicly aided patients.

(5) Coding Updates and Corrections. EOHHS may publish procedure code updates and corrections in the form of an administrative bulletin. Updates may reference coding systems including, but not limited to, the American Medical Association's *Current Procedural Terminology (CPT)*.

(a) The publication of such updates and corrections will list

1. codes for which the code numbers change, with the corresponding cross references between the new codes and the codes being replaced. Rates for such updated codes are set at the rate of the code that is being replaced;
2. deleted codes for which there are no corresponding new codes; and
3. codes for entirely new services that require pricing. EOHHS will list these codes and apply Individual Consideration (I.C.) reimbursement for these codes until appropriate rates can be developed.

(b) For entirely new codes that require new pricing and have Medicare assigned relative value units (RVUs), EOHHS may list these codes and price them according to the rate methodology used in setting physician rates. When RVUs are not available, EOHHS may apply Individual Consideration in reimbursing for these new codes until appropriate rates can be developed.

(6) Administrative Bulletins. EOHHS may issue Administrative Bulletins to add, delete, or otherwise update codes or modifiers, and to clarify its policy on and understanding of substantive provisions of 101 CMR 317.00. EOHHS may also issue Administrative Bulletins to clarify to which duly licensed or certified health care professionals or students the rate methods in this regulation apply, including in the event that the Department of Public Health issues an Order pursuant to M.G.L. c. 94C, and 105 CMR 700.003(H).

317.02: General Definitions

Meaning of Terms: The five-digit procedure codes, and two-digit modifier codes included in 101 CMR 317.00, and their corresponding descriptions, utilize the Healthcare Common Procedure Code System (HCPCS) for Level I and Level II coding. Level I CPT-4 codes are obtained from the Physicians' 2020 *Current Procedural Terminology* (CPT), copyright 2019 by the American Medical Association (AMA), unless otherwise specified. Level II codes are obtained from the 2020 HCPCS, maintained jointly by the Centers for Medicare & Medicaid Services (CMS), the Blue Cross and Blue Shield Association, and the Health Insurance Association of America. HCPCS is a listing of descriptive terms and identifying codes and modifiers for reporting medical services and procedures performed by physicians and other health care professionals, as well as associated nonphysician services. No fee schedules, basic unit value, relative value guides, conversion factors, or scales are included in any part of the Physicians' *Current Procedural Terminology*. For code descriptions, *see* the medicine services code spreadsheet on the EOHHS rates website at: www.mass.gov/regulations/101-CMR-31700-medicine.

In addition, terms used in 101 CMR 317.00 have the meanings set forth in 101 CMR 317.02.

Child and Adolescent Needs and Strengths (CANS). A tool that provides a standardized way to organize information gathered during a psychiatric diagnostic assessment and is a treatment and service decision support tool for children and adolescents younger than 21 years old.

CMS. Centers for Medicare & Medicaid Services.

Early and Periodic Screening, Diagnostic and Treatment (EPSDT). A program of health screening and other medical services for publicly assisted individuals younger than 21 years old as required by federal law.

Eligible Provider. The rates established in 101 CMR 317.00 apply in accordance with 101 CMR 317.01 to the following types of providers who meet conditions of participation of the governmental unit purchasing such services, and to the extent specified by such governmental unit. Eligible providers must provide such services in accordance with generally accepted professional standards and in accordance with state licensing requirements and certification by national credentialing bodies as required by law.

(a) A licensed physician (other than an intern, resident, fellow, or house officer), licensed podiatrist, licensed dentist, licensed chiropractor, and licensed optometrist.

(b) A provider of diagnostic medical services. Such medical diagnostic services may be rendered by eligible providers such as, but not limited to, independent diagnostic testing facilities (IDTFs). These eligible providers must be physically and financially independent of a hospital or a physician's office.

(c) A provider of radiation oncology services. Radiation oncology services may be rendered by eligible providers such as, but not limited to, independent radiation oncology centers. These eligible providers must be physically and financially independent of a hospital or a physician's office.

(d) A clinic licensed by the Massachusetts Department of Public Health in accordance with 105 CMR 140.000: *Licensure of Clinics* to provide medical diagnostic services.

(e) A freestanding birth center facility that is not operating under a hospital's license, and is licensed as a birth center by the Massachusetts Department of Public Health pursuant to 105 CMR 142.000: *The Operation and Maintenance of Birth Centers*.

(f) An advanced practice registered nurse who is authorized by the Board of Registration in Nursing to practice as a certified nurse practitioner, certified nurse midwife, clinical nurse specialist, psychiatric clinical nurse specialist, or a certified registered nurse anesthetist (CRNA).

(g) A licensed physician assistant, who is authorized by the Board of Registration for Physician Assistants to practice as a physician assistant.

(h) A registered nurse providing tobacco cessation services.

(i) A tobacco cessation counselor, who has completed appropriate training in tobacco cessation counseling according to the qualification criteria established by the purchasing governmental unit.

(j) A pharmacist who is registered by the Board of Registration in Pharmacy.

(k) An acupuncturist who is licensed by the Board of Registration in Medicine to practice acupuncture.

317.02: continued

Eligible Provider for Administration of Vaccines. A licensed physician, certified nurse practitioner, certified nurse midwife, clinical nurse specialist, psychiatric clinical nurse specialist, physician assistant, registered pharmacist or other health care professional certified in accordance with 105 CMR 700.000: *Implementation of M.G.L. c. 94C*, and any home health agency certified as a provider of home health services under the Medicare Health Insurance Program for the Aged (Title XVIII) is eligible to administer vaccines, if it otherwise meets such conditions of participation and coverage set forth by a purchasing governmental unit. Any other providers authorized by the Massachusetts Department of Public Health to possess and administer vaccines are also eligible if they otherwise meet such conditions of participation and coverage set forth by a purchasing governmental unit.

EOHHS. The Executive Office of Health and Human Services established under M.G.L. c. 6A.

Facility Setting Fee. Payments for services provided by an individual eligible provider in a hospital (including, without limitation, a hospital inpatient department, outpatient department, emergency department, and hospital licensed health center), or skilled nursing facility or freestanding ambulatory surgical center (ASC), will be made according to a facility setting fee when an applicable facility setting fee has been established for that procedure.

Governmental Unit. The Commonwealth, any department, agency, board or commission of the Commonwealth and any political subdivision of the Commonwealth.

Individual Consideration. Medical services that are authorized but not listed in 101 CMR 317.00, medical services performed in unusual circumstances, and services designated "I.C." are Individually Considered items. The governmental unit or purchaser analyzes the eligible provider's report of services rendered and charges submitted under the appropriate unlisted services or procedures category. The governmental unit or purchaser determines appropriate payment for procedures designated I.C. in accordance with the following standards and criteria:

- (a) the amount of time required to perform the service;
- (b) the degree of skill required to perform the service;
- (c) the severity or complexity of the patient's disease, disorder, or disability;
- (d) any applicable relative-value studies;
- (e) any complications or other circumstances that may be deemed relevant;
- (f) the policies, procedures, and practices of other third-party insurers;
- (g) the payment rate for prescribed drugs as set forth in 101 CMR 331.00: *Prescribed Drugs*; and
- (h) a copy of the current invoice from the supplier.

Modifiers. Listed services may be modified under certain circumstances. When applicable, the modifying circumstances should be identified by the addition of the appropriate two-digit number or letters.

Physical Medicine. The physical medicine procedure codes apply only when

- (a) the physician prescribed the needed therapy; and
- (b) the services are provided by the physician or a licensed physical or occupational therapist employed by the physician.

Primary Care Clinician (PCC) Plan. A managed care option administered by the MassHealth agency through which enrolled members receive primary care and certain other medical services.

Publicly Aided Individual (or Publicly Aided Patient). A person who receives health care and services for which a governmental unit is in whole or in part liable under a statutory program of public assistance.

Referral. The transfer of the total or specific care from one eligible provider to another.

317.02: continued

Separate Procedure. Some of the listed procedures are commonly carried out as an integral part of a total service, and as such do not warrant a separate identification. When, however, such a procedure is performed independently of, and is not immediately related to, other services, it may be listed as a separate procedure in the procedure description. Thus, when a procedure that is ordinarily a component of a larger procedure is performed alone for a specific purpose, it may be considered to be a separate procedure.

Unlisted Procedure or Service. A service or procedure may be provided that is not listed in 101 CMR 317.04. When reporting such a service, the appropriate "Unlisted Procedure" code may be used to indicate the service.

317.03: General Rate Provisions

(1) Rate Determination. Rates of payment for services for which 101 CMR 317.00 applies are the lowest of

- (a) the eligible provider's usual fee to patients other than publicly aided individuals;
- (b) the eligible provider's actual charge submitted; or
- (c) 1. the schedule of allowable fees set forth in 101 CMR 317.04(4), taking into account appropriate modifiers and any other applicable rate provision(s) in accordance with 101 CMR 317.03 or 317.04(1); or
- 2. for drugs, vaccines, and immune globulins administered in a physician's office, the fee specified in 101 CMR 317.04(1)(a), taking into account any other applicable rate provision(s) in accordance with 101 CMR 317.04(1).

(2) Supplemental Payment.

(a) Eligibility. An eligible provider who is a physician, certified nurse practitioner, physician assistant, or CRNA is eligible for a supplemental payment for services to publicly aided individuals eligible under Titles XIX and XXI of the Social Security Act if the following conditions are met:

- 1. the eligible provider is employed by a nonprofit group practice that was established in accordance with St. 1997, c. 163 and is affiliated with a Commonwealth-owned medical school;
- 2. such nonprofit group practice must have been established on or before January 1, 2000, in order to support the purposes of a teaching hospital affiliated with and appurtenant to a Commonwealth-owned medical school; and
- 3. the services are provided at a teaching hospital affiliated with and appurtenant to a Commonwealth-owned medical school.

(b) Payment Method. This supplemental payment may not exceed the difference between

- 1. payments to the eligible provider made pursuant to the rates applicable under 101 CMR 316.03(1): *Rate Determination*, 101 CMR 317.03(1), and 101 CMR 318.03(1): *Rate Determination*; and
- 2. the federal upper payment limit established by the Centers for Medicare & Medicaid Services.

(3) Rate Variations Based on Practice Site. Payments for certain services provided by individual eligible providers that can be routinely furnished in physicians' offices are reduced when such services are furnished in facility settings. 101 CMR 317.04 establishes facility setting fees applied to services rendered in a facility when a practice site differential is warranted.

(4) The sum of the professional and technical components of an individual procedure will not be greater than the allowable global fee set forth in 101 CMR 317.04(4).

317.03: continued

(5) Allowable Fee for Certain Eligible Providers. Payment for services provided by eligible providers who are certified nurse practitioners, certified nurse midwives, psychiatric clinical nurse specialists, clinical nurse specialists, physician assistants, registered nurses, tobacco cessation counselors, pharmacies that utilize pharmacists, or other health care professionals certified in accordance with 105 CMR 700.000: *Implementation of M.G.L. c. 94C*, and home health agencies as specified in 101 CMR 317.02 is 85% of the fees contained in 101 CMR 317.04. 101 CMR 317.03(5) does not apply to the EPSDT add-on code S0302 described in 101 CMR 317.03(7) or for tobacco cessation services, for medical nutrition therapy (97802, 97803, 97804, G0270, G0271), for diabetes self-management training (G0108, G0109), for the administration of behavioral health or developmental screenings (96110, 96127, and related modifiers), or for the perinatal depression screening (S3005 and related modifiers) services listed in 101 CMR 317.04(4). The rates listed in 101 CMR 317.04(4) for tobacco cessation services performed by certain eligible providers already reflect the appropriate rate and no further rate adjustment applies (*see* codes 99407, 99407-SA, -TD, -TF, -HQ, -U1, -U2, and -U3).

(6) Behavioral Health and Developmental Screening Services. Payment for the administration and scoring of standardized behavioral health and developmental screening tools is available to certain eligible providers (physicians, certified nurse midwives, certified nurse practitioners, physician assistants, community health centers, hospital outpatient departments, or such eligible providers employed by a physician or community health center if authorized by the governmental unit) and is allowed for MassHealth purchase only when accompanied by a modifier. Appropriate code and related modifiers for the standardized behavioral health screening tools are listed in a separate fee table in 101 CMR 317.04(4). For purposes of these modifiers, "Behavioral health need identified" or "Developmental services need identified" means the provider administering the screening tool, in her or his professional judgment, identifies a child with a potential behavioral health or developmental services need.

(7) Early and Periodic Screening, Diagnostic and Treatment (EPSDT) Add-on Code. To identify a completed well child office visit including all age-appropriate components of the EPSDT schedule, use code S0302 in addition to the appropriate preventive medicine service in 101 CMR 317.04(4). S0302 is always performed in addition to the primary procedure and must never be reported as a stand-alone code.

(8) Services and Payments Covered Under Other Regulations. Rules and reimbursement rates for the Medicine service codes listed in the chart below are contained in other EOHHS regulations, except when an eligible provider that is a licensed physician is billing those codes in conjunction with a medical (nonroutine) diagnosis code.

Regulation Title	Regulation Number	Affected Services
Hearing Services	101 CMR 323.00	Audiologic Codes 92590 to 92595
Vision Care Services and Ophthalmic Materials	101 CMR 315.00	Ophthalmological Service Codes 92002, 92004, 92012, 92014, 92015; Spectacle Service Codes 92340-92342, 92370 and Screening Code 99173

(9) CPT Category III Codes. All medicine related CPT category III codes are included as a part of 101 CMR 317.00 and have an assigned fee of I.C.

(10) PCC Plan Enhanced Fee. Primary Care Clinicians (PCCs) receive an enhanced rate for certain types of primary and preventive care visits provided to PCC Plan members enrolled with the PCC on the date of service. The enhanced fee specified in 114.3 CMR 53.03(1): *PCC Plan Enhanced Fee* is added to the rate for the procedure code billed. The MassHealth agency pays PCCs an enhanced fee for delivering primary care services in accordance with the terms of the PCC provider contract.

317.03: continued

(11) Child and Adolescent Needs and Strengths (CANS): Psychiatric Diagnostic Interview Examination for Children and Adolescents Younger than 21 Years Old. Psychiatrists or psychiatric clinical nurse specialists who complete the CANS for a MassHealth child or adolescent younger than 21 years old during a Psychiatric Diagnostic Interview Examination should bill using procedure code 90791 accompanied by modifier HA.

317.04: Maximum Allowable Fees – Medical Services(1) Drugs, Medications, Supplies, and Laboratory Specimen Collections.

(a) Payment rates for drugs, vaccines, and immune globulins administered in a physician's office are equal to the fee listed in the Quarterly Average Sales Price (ASP) Medicare Part B Drug Pricing File. For drugs, vaccines, and immune globulins administered in a physician's office that are not listed in the Quarterly ASP Medicare Part B Drug Pricing File, codes are listed in 101 CMR 317.04(4) with payment set by I.C., which shall apply until such time as the code is listed in the Quarterly ASP Medicare Part B Drug Pricing File.

(b) Supplies and materials used in preparation for or as part of a procedure (*e.g.*, bandages, laboratory kits, syringes, or disposable gloves) are not reimbursed separately, but are included in the office visit rate. In addition, no supplemental charge can be submitted nor payment allowed for routine specimen collection in a physician's office and preparation for clinical laboratory analysis (and activities related thereto), *e.g.*, venipuncture, urine, fecal and sputum samples, culturing, swabbing, and scraping for removal of tissues.

(c) Where applicable, payments for drugs, medicines, supplies, and related materials dispensed to patients are in accordance with rates that are the subject matter of other regulations that may be in effect and germane to the item in question (*e.g.*, laboratory, pharmacy, medical supplies, *etc.*). In other instances where the use of another regulation is not appropriate, certain supplies and materials (except eyeglasses) provided by the physician over and above those usually included with the office visit or other services rendered should be billed under code 99070.

(d) Payment for drugs and/or biologicals may be claimed in addition to an office visit. Drugs that are considered routine and integral to the delivery of a physician's professional services in the course of diagnosis or treatment are not reimbursable. Such drugs are commonly provided without charge or are included in the physician's fee for the service.

Drugs and/or biologicals available free of charge from the Massachusetts Department of Public Health are not payable items. When an immunization or injection is the primary purpose of an office or other outpatient visit, the provider may bill only for the injectable material and its administration. Payment for both vaccine administration and an office visit is allowable only when the vaccine administration is a medically necessary, separately identifiable service.

(2) Unless otherwise specified, guidelines, notes, and definitions provided in the 2020 CPT Coding Handbook are applicable to the use of the procedure codes and modifiers listed below, as well as their corresponding descriptions. For code descriptions, *see* the medicine services code spreadsheet at www.mass.gov/regulations/101-CMR-31700-medicine.

(3) Modifiers.

(a) 24: Unrelated Evaluation and Management Service by the Same Physician or Other Qualified Health Care Professional During Postoperative Period.

(b) 25: Significant, Separately Identifiable Evaluation and Management Service by the Same Physician or Other Qualified Health Care Professional on the Same Day of the Procedure or Other Service. Modifier 25 is used to facilitate billing of evaluation and management services on the day of a procedure for which separate payment may be made. The physician or other qualified health care professional may indicate that on the day a procedure or service code was performed, the patient's condition required a significant, separately identifiable evaluation and management service above and beyond the usual preoperative and postoperative care associated with the procedure or service that was performed.

317.04: continued

- (c) 26: Professional Component. The component of a service or procedure representing the physician's or other qualified health care professional's work interpreting or performing the service or procedure. (When the physician or other qualified health care professional component is reported separately, the addition of modifier 26 to the appropriate procedure code will allow payment of the professional component allowable fee (PC Fee) contained in 101 CMR 317.04(4), adjusted by 101 CMR 317.03 as applicable.)
- (d) 50: Bilateral Procedures. Payment for bilateral procedures performed at the same operative session must be identified by the appropriate service code and modifier 50. Only one claim line is billed for both procedures. (The addition of modifier 50 to the bilateral code will allow payment of 150% of the allowable fee contained in 101 CMR 317.04(4), adjusted by 101 CMR 317.03 as applicable, to the eligible provider for performance of both bilateral procedures.)
- (e) 51: Multiple Procedures. This modifier must be used to report multiple procedures performed at the same session. The service code for the major procedure or service must be reported without a modifier. The secondary, additional, or lesser procedure(s) must be identified by adding modifier 51 to the end of the service code for the secondary procedure(s). (The addition of modifier 51 to the second and subsequent procedure codes allows payment of 50% of the allowable fee contained in 101 CMR 317.04(4), adjusted by 101 CMR 317.03 as applicable, to the eligible provider. Note: This modifier should not be used with designated "add-on" codes or with codes in which the narrative begins with "each additional.")
- (f) 52: Reduced Services. Under certain circumstances a service or procedure is partially reduced or eliminated at the physician's or other qualified health care professional's election. Under these circumstances, the service provided can be identified by its usual procedure number and addition of modifier 52 signifying that the service is reduced. This provides a means of reporting reduced services without disturbing the identification of the basic service.
- (g) 57: Decision for Surgery.
- (h) 59: Distinct Procedural Service. To identify a procedure distinct or independent from other services performed on the same day add modifier 59 to the end of the appropriate service code. Modifier 59 is used to identify services/procedures that are not normally reported together, but are appropriate under certain circumstances, for example, different site or organ system. However, when another already established modifier is appropriate, it should be used rather than modifier 59.
- (i) GO: Services Delivered Personally by an Occupational Therapist or under an Outpatient Occupational Therapy Plan of Care.
- (j) GP: Services Delivered Personally by a Physical Therapist or under an Outpatient Physical Therapy Plan of Care.
- (k) HA: Child and Adolescent Needs and Strengths (CANS): Psychiatric Diagnostic Interview Examination for Children and Adolescents Younger than 21 Years Old. This modifier should only be applied to service code 90791 billed by psychiatrists or psychiatric clinical nurse specialists to identify a Psychiatric Diagnostic Interview Examination for a MassHealth child or adolescent younger than 21 years old using the CANS.
- (l) LM: Left Main Coronary Artery.
- (m) PA: Surgical or Other Invasive Procedure Performed on the Wrong Body Part. This modifier is applied to report Provider Preventable Conditions in accordance with 42 CFR 447.26, and results in nonpayment for services.
- (n) PB: Surgical or Other Invasive Procedure Performed on the Wrong Patient. This modifier is applied to report Provider Preventable Conditions in accordance with 42 CFR 447.26, and results in nonpayment for services.
- (o) PC: Wrong Surgical or Other Invasive Procedure Performed on a Patient. This modifier is applied to report Provider Preventable Conditions in accordance with 42 CFR 447.26, and results in nonpayment for services.
- (p) RI: Ramus Intermedius Coronary Artery.
- (q) SA: Nurse Practitioner Rendering Service in Collaboration with a Physician. This modifier is to be applied to service codes billed by a physician that were performed by a certified nurse practitioner employed by the physician (the physician employer must be practicing as an individual and not practicing as a professional corporation or as a member of a group practice). A certified nurse practitioner billing under his or her own individual provider number, or a group practice, should not use this modifier.

317.04: continued

- (r) SL: State Supplied Vaccine. This modifier is to be applied to codes 90460 and 90461 to identify administration of vaccines provided at no cost by the Massachusetts Department of Public Health (DPH) for individuals younger than 18 years old, including those administered under the Vaccine for Children (VFC) Program, where counseling is included.) It is also to be applied to codes 90471 and 90473 to identify administration of vaccines provided at no cost by DPH for all individuals, including those administered under VFC to individuals younger than 18 years old.
- (s) TC: Technical Component. The component of a service or procedure representing the cost of rent, equipment, utilities, supplies, administrative and technical salaries and benefits, and other overhead expenses of the service or procedures, excluding the physician’s or other qualified health care professional’s professional component. (When the technical component is reported separately, the addition of modifier TC to the procedure code will allow payment of the technical component allowable fee (TC Fee) contained in 101 CMR 317.04(4), as adjusted by 101 CMR 317.03 as applicable.)
- (t) XE: Separate Encounter. A service that is distinct because it occurred during a separate encounter.
- (u) XS: Separate Structure. A service that is distinct because it was performed on a separate organ/structure.
- (v) XP: Separate Practitioner. A service that is distinct because it was performed by a different practitioner.
- (w) XU: Unusual Non-overlapping Service. The use of a service that is distinct because it does not overlap usual components of the main service.

- (4) Fee Schedule.
- (a) NFAC – “Nonfacility”: These amounts apply when the service is performed in a nonfacility setting.
- (b) FAC – “Facility”: These amounts, also known as the Facility Setting Fee, apply when the service is performed in a facility setting.
- (c) Global Fee – These amounts apply when no site of service differential rate is specified.

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
90281	-	-	I.C.	-	-	
90283	-	-	I.C.	-	-	
90284	-	-	I.C.	-	-	
90287	-	-	I.C.	-	-	
90288	-	-	I.C.	-	-	
90291	-	-	I.C.	-	-	
90296	-	-	I.C.	-	-	
90377	-	-	I.C.			
90378	-	-	I.C.	-	-	
90384	-	-	I.C.	-	-	
90385	-	-	I.C.	-	-	
90386	-	-	I.C.	-	-	
90389	-	-	I.C.	-	-	
90393	-	-	I.C.	-	-	
90396	-	-	I.C.	-	-	
90399	-	-	I.C.	-	-	
90460	-	-	\$20.45	-	-	
90461	-	-	\$9.84	-	-	
90471	-	-	\$20.45	-	-	
90472	-	-	\$9.84	-	-	
90473	-	-	\$20.45	-	-	

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
90474	-	-	\$9.84	-	-	
90476	-	-	I.C.	-	-	
90477	-	-	I.C.	-	-	
90581	-	-	I.C.	-	-	
90586	-	-	I.C.	-	-	
90587	-	-	I.C.	-	-	
90619	-	-	I.C.	-	-	
90620	-	-	I.C.	-	-	
90621	-	-	I.C.	-	-	
90625	-	-	I.C.	-	-	
90630	-	-	I.C.	-	-	
90633	-	-	I.C.	-	-	
90634	-	-	I.C.	-	-	
90636	-	-	\$122.36	-	-	
90644	-	-	I.C.	-	-	
90647	-	-	I.C.	-	-	
90648	-	-	I.C.	-	-	
90649	-	-	I.C.	-	-	
90650	-	-	I.C.	-	-	
90651	-	-	I.C.	-	-	
90653	-	-	I.C.	-	-	
90654	-	-	I.C.	-	-	
90655	-	-	I.C.	-	-	
90656	-	-	I.C.	-	-	
90657	-	-	I.C.	-	-	
90658	-	-	I.C.	-	-	
90660	-	-	I.C.	-	-	
90661	-	-	I.C.	-	-	
90664	-	-	I.C.	-	-	
90666	-	-	I.C.	-	-	
90667	-	-	I.C.	-	-	
90668	-	-	I.C.	-	-	
90672	-	-	I.C.	-	-	
90673	-	-	I.C.	-	-	
90676	-	-	I.C.	-	-	
90680	-	-	I.C.	-	-	
90681	-	-	I.C.	-	-	
90682	-	-	I.C.	-	-	
90685	-	-	I.C.	-	-	
90687	-	-	I.C.	-	-	
90689	-	-	I.C.	-	-	
90690	-	-	I.C.	-	-	
90694	-	-	I.C.	-	-	
90696	-	-	I.C.	-	-	
90697	-	-	I.C.	-	-	
90698	-	-	I.C.	-	-	
90700	-	-	I.C.	-	-	
90702	-	-	I.C.	-	-	

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
90707	-	-	I.C.	-	-	
90710	-	-	I.C.	-	-	
90713	-	-	I.C.	-	-	
90716	-	-	I.C.	-	-	
90717	-	-	I.C.	-	-	
90723	-	-	I.C.	-	-	
90733	-	-	I.C.	-	-	
90734	-	-	I.C.	-	-	
90736	-	-	I.C.	-	-	
90738	-	-	I.C.	-	-	
90739	-	-	I.C.	-	-	
90743	-	-	I.C.	-	-	
90744	-	-	I.C.	-	-	
90748	-	-	I.C.	-	-	
90749	-	-	I.C.	-	-	
90750	-	-	I.C.	-	-	
90756	-	-	I.C.	-	-	
90785	\$11.61	\$10.45	-	-	-	
90791	\$108.94	\$94.74	-	-	-	
90792	\$120.79	\$106.30	-	-	-	
90832	\$53.14	\$47.35	-	-	-	
90833	\$54.59	\$49.38	-	-	-	
90834	\$70.67	\$63.13	-	-	-	
90836	\$69.17	\$62.51	-	-	-	
90837	\$105.75	\$94.45	-	-	-	
90838	\$90.84	\$82.15	-	-	-	
90839	\$110.36	\$98.77	-	-	-	
90840	\$52.85	\$47.35	-	-	-	
90845	\$75.01	\$67.77	-	-	-	
90846	\$76.88	\$76.31	-	-	-	
90847	\$79.54	\$79.25	-	-	-	
90849	\$28.02	\$22.23	-	-	-	
90853	\$21.07	\$18.75	-	-	-	
90863	\$20.62	\$19.17	-	-	-	
90865	\$131.65	\$97.16	-	-	-	
90867	-	-	I.C.	-	-	
90868	-	-	I.C.	-	-	
90869	-	-	I.C.	-	-	
90870	\$138.08	\$83.60	-	-	-	
90875	\$47.66	\$47.37	-	-	-	
90876	\$83.93	\$75.23	-	-	-	
90880	\$83.49	\$69.57	-	-	-	
90882	-	-	I.C.	-	-	
90885	-	-	\$38.66	-	-	
90887	\$68.33	\$58.47	-	-	-	
90889	-	-	I.C.	-	-	
90899	-	-	I.C.	-	-	
90901	\$32.23	\$15.42	-	-	-	

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
90912	\$63.36	\$34.08	-	-	-	
90913	\$25.30	\$18.93	-	-	-	
90935	-	-	\$56.25	-	-	
90937	-	-	\$80.36	-	-	
90940	-	-	I.C.	-	-	
90945	-	-	\$66.48	-	-	
90947	-	-	\$95.74	-	-	
90951	-	-	\$720.32	-	-	
90952	-	-	I.C.	-	-	
90953	-	-	I.C.	-	-	
90954	-	-	\$624.95	-	-	
90955	-	-	\$352.86	-	-	
90956	-	-	\$246.03	-	-	
90957	-	-	\$496.14	-	-	
90958	-	-	\$337.49	-	-	
90959	-	-	\$228.72	-	-	
90960	-	-	\$219.78	-	-	
90961	-	-	\$184.88	-	-	
90962	-	-	\$142.99	-	-	
90963	-	-	\$419.27	-	-	
90964	-	-	\$366.89	-	-	
90965	-	-	\$350.74	-	-	
90966	-	-	\$184.59	-	-	
90967	-	-	\$13.83	-	-	
90968	-	-	\$12.22	-	-	
90969	-	-	\$11.66	-	-	
90970	-	-	\$6.28	-	-	
90989	-	-	I.C.	-	-	
90993	-	-	I.C.	-	-	
90997	-	-	\$69.18	-	-	
90999	-	-	I.C.	-	-	
91010	-	-	\$161.70	\$51.37	\$110.34	
91013	-	-	\$20.67	\$7.34	\$13.33	
91020	-	-	\$209.18	\$57.68	\$151.49	
91022	-	-	\$134.40	\$57.68	\$76.72	
91030	-	-	\$111.74	\$36.47	\$75.27	
91034	-	-	\$154.10	\$39.08	\$115.02	
91035	-	-	\$392.92	\$64.29	\$328.63	
91037	-	-	\$133.86	\$38.84	\$95.02	
91038	-	-	\$357.87	\$44.03	\$313.85	
91040	-	-	\$414.58	\$39.57	\$375.00	
91065	-	-	\$64.92	\$7.87	\$57.05	
91110	-	-	\$699.77	\$99.56	\$600.20	
91111	-	-	\$671.43	\$40.22	\$631.22	
91112	-	-	\$1,182.47	\$84.04	\$1,098.43	
91117	-	-	\$106.92	-	-	
91120	-	-	\$397.03	\$38.26	\$358.77	
91122	-	-	\$201.81	\$69.16	\$132.65	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
91132	-	-	\$264.08	\$20.95	\$243.13	
91133	-	-	\$282.86	\$26.40	\$256.46	
91200	-	-	\$29.68	\$10.89	\$18.79	
91299	-	-	I.C.	-	-	
91300	-	-	I.C.	-	-	
91301	-	-	I.C.	-	-	
92002	\$66.44	\$36.59	-	-	-	
92004	\$117.91	\$75.59	-	-	-	
92012	\$69.78	\$40.21	-	-	-	
92014	\$99.18	\$60.92	-	-	-	
92018	-	-	\$111.04	-	-	
92019	-	-	\$56.55	-	-	
92020	\$21.65	\$16.15	-	-	-	
92025	-	-	\$29.19	\$15.33	\$13.87	
92060	-	-	\$50.10	\$29.27	\$20.82	
92065	-	-	\$42.19	\$13.83	\$28.36	
92071	\$29.13	\$25.66	-	-	-	
92072	\$99.95	\$75.02	-	-	-	
92081	-	-	\$26.71	\$12.55	\$14.16	
92082	-	-	\$37.77	\$16.65	\$21.11	
92083	-	-	\$50.27	\$21.33	\$28.94	
92100	\$65.94	\$25.66	-	-	-	
92132	-	-	\$24.97	\$12.84	\$12.13	
92133	-	-	\$29.36	\$17.23	\$12.13	
92134	-	-	\$32.14	\$19.72	\$12.42	
92136	-	-	\$49.60	\$24.13	\$25.46	
92145	-	-	\$11.84	\$6.09	\$5.75	
92201	\$19.51	\$17.77	-	-	-	
92202	\$12.36	\$11.49	-	-	-	
92227	-	-	\$10.97	-	-	
92228	-	-	\$26.83	\$16.15	\$10.68	
92229	-	-	I.C.	-	-	
92230	\$61.58	\$25.93	-	-	-	
92235	-	-	\$82.99	\$33.47	\$49.52	
92240	-	-	\$162.68	\$36.65	\$126.03	
92242	-	-	\$192.06	\$42.26	\$149.80	
92250	-	-	\$35.74	\$16.65	\$19.08	
92260	\$15.40	\$8.45	-	-	-	
92265	-	-	\$68.93	\$36.22	\$32.71	
92270	-	-	\$76.96	\$32.95	\$44.01	
92273	-	-	\$104.83	\$28.69	\$76.14	
92274	-	-	\$70.58	\$25.41	\$45.17	
92283	-	-	\$42.68	\$7.07	\$35.60	
92284	-	-	\$47.97	\$9.80	\$38.17	
92285	-	-	\$17.76	\$2.44	\$15.32	
92286	-	-	\$30.81	\$17.23	\$13.58	
92287	-	-	\$123.66	\$36.22	\$87.44	
92310	\$79.61	\$46.28	-	-	-	

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
92311	\$82.76	\$41.89	-	-	-	
92312	\$95.94	\$48.12	-	-	-	
92313	\$77.98	\$34.51	-	-	-	
92314	\$68.47	\$27.60	-	-	-	
92315	\$63.19	\$16.53	-	-	-	
92316	\$78.28	\$24.95	-	-	-	
92317	\$66.09	\$16.53	-	-	-	
92325	-	-	\$36.18	-	-	
92326	-	-	\$30.68	-	-	
92352	\$34.90	\$14.61	-	-	-	
92353	\$40.28	\$19.99	-	-	-	
92354	-	-	\$10.68	-	-	
92355	-	-	\$16.72	-	-	
92358	-	-	\$8.94	-	-	
92371	-	-	\$9.23	-	-	
92499	-	-	I.C.	-	-	
92502	-	-	\$73.85	-	-	
92504	\$23.28	\$7.34	-	-	-	
92507	-	-	\$61.80	-	-	
92508	-	-	\$18.85	-	-	
92511	\$90.44	\$29.58	-	-	-	
92512	\$47.41	\$21.90	-	-	-	
92516	\$55.04	\$17.65	-	-	-	
92517	\$70.51	\$34.42	-	-	-	
92518	\$65.56	\$34.42	-	-	-	
92519	\$109.62	\$51.71	-	-	-	
92520	\$64.02	\$31.84	-	-	-	
92521	-	-	\$88.38	-	-	
92522	-	-	\$71.89	-	-	
92523	-	-	\$151.55	-	-	
92524	-	-	\$70.15	-	-	
92526	-	-	\$68.36	-	-	
92531	-	-	I.C.	-	-	
92532	-	-	I.C.	-	-	
92533	-	-	I.C.	-	-	
92534	-	-	I.C.	-	-	
92537	-	-	\$32.64	\$24.57	\$8.07	
92538	-	-	\$17.72	\$12.55	\$5.17	
92540	-	-	\$84.16	\$61.59	\$22.56	
92541	-	-	\$19.80	\$16.36	\$3.43	
92542	-	-	\$23.08	\$19.64	\$3.43	
92544	-	-	\$13.74	\$11.18	\$2.56	
92545	-	-	\$12.92	\$10.35	\$2.56	
92546	-	-	\$90.45	\$11.71	\$78.75	
92547	-	-	\$6.96	-	-	
92548	-	-	\$39.09	\$26.96	\$12.13	
92549	-	-	\$49.90	\$34.87	\$15.03	
92550	-	-	\$17.31	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
92551	-	-	\$9.52	-	-	
92552	-	-	\$25.75	-	-	
92553	-	-	\$31.26	-	-	
92555	-	-	\$19.37	-	-	
92556	-	-	\$30.97	-	-	
92557	\$29.69	\$25.35	-	-	-	
92558	\$7.65	\$6.78	-	-	-	
92559	-	-	I.C.	-	-	
92560	-	-	I.C.	-	-	
92561	-	-	\$31.79	-	-	
92562	-	-	\$36.18	-	-	
92563	-	-	\$24.88	-	-	
92564	-	-	\$19.37	-	-	
92565	-	-	\$12.71	-	-	
92567	\$12.51	\$8.45	-	-	-	
92568	\$12.24	\$11.95	-	-	-	
92570	\$25.76	\$23.15	-	-	-	
92571	-	-	\$21.98	-	-	
92572	-	-	\$28.31	-	-	
92575	-	-	\$53.24	-	-	
92576	-	-	\$29.52	-	-	
92577	-	-	\$11.26	-	-	
92579	\$36.40	\$29.74	-	-	-	
92582	-	-	\$59.91	-	-	
92583	-	-	\$39.37	-	-	
92584	-	-	\$60.20	-	-	
92585	-	-	\$109.31	\$20.71	\$88.60	
92587	-	-	\$17.31	\$14.46	\$2.85	
92588	-	-	\$26.38	\$22.66	\$3.72	
92596	-	-	\$53.28	-	-	
92597	-	-	\$56.92	-	-	
92601	\$131.04	\$98.00	-	-	-	
92602	\$82.37	\$55.42	-	-	-	
92603	\$121.89	\$94.93	-	-	-	
92604	\$73.22	\$52.93	-	-	-	
92605	\$73.37	\$69.03	-	-	-	
92606	\$65.34	\$55.48	-	-	-	
92607	-	-	\$101.18	-	-	
92608	-	-	\$40.75	-	-	
92609	-	-	\$85.32	-	-	
92610	\$68.13	\$56.53	-	-	-	
92611	-	-	\$72.24	-	-	
92612	\$160.86	\$53.04	-	-	-	
92613	-	-	\$29.33	-	-	
92614	\$118.79	\$51.83	-	-	-	
92615	-	-	\$25.76	-	-	
92616	\$172.85	\$77.49	-	-	-	
92617	-	-	\$32.04	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
92618	\$26.00	\$25.71	-	-	-	
92620	\$73.43	\$63.58	-	-	-	
92621	\$17.65	\$14.75	-	-	-	
92625	\$54.92	\$48.54	-	-	-	
92626	\$70.54	\$59.23	-	-	-	
92627	\$16.82	\$13.93	-	-	-	
92630	-	-	I.C.	-	-	
92633	-	-	I.C.	-	-	
92640	\$89.32	\$74.82	-	-	-	
92650	-	-	\$23.40	-	-	
92651	-	-	\$73.44	-	-	
92652	-	-	\$95.50	-	-	
92653	-	-	\$70.12	-	-	
92700	-	-	I.C.	-	-	
92920	-	-	\$412.71	-	-	
92921	-	-	I.C.	-	-	
92924	-	-	\$491.92	-	-	
92925	-	-	I.C.	-	-	
92928	-	-	\$459.00	-	-	
92929	-	-	I.C.	-	-	
92933	-	-	\$515.16	-	-	
92934	-	-	I.C.	-	-	
92937	-	-	\$458.44	-	-	
92938	-	-	I.C.	-	-	
92941	-	-	\$516.02	-	-	
92943	-	-	\$516.02	-	-	
92944	-	-	I.C.	-	-	
92950	\$253.91	\$143.77	-	-	-	
92953	-	-	\$0.80	-	-	
92960	\$125.22	\$84.93	-	-	-	
92961	-	-	\$192.96	-	-	
92970	-	-	\$146.94	-	-	
92971	-	-	\$78.28	-	-	
92973	-	-	\$137.10	-	-	
92974	-	-	\$125.39	-	-	
92975	-	-	\$292.73	-	-	
92977	-	-	\$43.27	-	-	
92978	-	-	-	\$73.55	-	
92979	-	-	-	\$59.30	-	
92986	-	-	\$1,028.64	-	-	
92987	-	-	\$1,060.97	-	-	
92990	-	-	\$848.38	-	-	
92997	-	-	\$496.57	-	-	
92998	-	-	\$250.87	-	-	
93000	-	-	\$13.40	-	-	
93005	-	-	\$6.91	-	-	
93010	-	-	\$6.49	-	-	
93015	-	-	\$55.95	-	-	

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
93016	-	-	\$17.06	-	-	
93017	-	-	\$27.49	-	-	
93018	-	-	\$11.39	-	-	
93024	-	-	\$86.66	\$44.15	\$42.52	
93025	-	-	\$113.33	\$28.50	\$84.83	
93040	-	-	\$9.98	-	-	
93041	-	-	\$4.59	-	-	
93042	-	-	\$5.38	-	-	
93050	-	-	\$12.82	\$6.49	\$6.33	
93224	-	-	\$70.71	-	-	
93225	-	-	\$20.82	-	-	
93226	-	-	\$29.52	-	-	
93227	-	-	\$20.37	-	-	
93228	-	-	\$20.53	-	-	
93229	-	-	\$574.38	-	-	
93241	-	-	I.C.	-	-	
93242	-	-	\$12.73	-	-	
93243	-	-	I.C.	-	-	
93244	-	-	\$19.30	-	-	
93245	-	-	I.C.	-	-	
93246	-	-	\$12.73	-	-	
93247	-	-	I.C	-	-	
93248	-	-	\$21.21	-	-	
93260	-	-	\$56.86	\$33.43	\$23.43	
93261	-	-	\$52.25	\$28.82	\$23.43	
93264	\$39.50	\$27.91	-	-	-	
93268	-	-	\$162.01	-	-	
93270	-	-	\$7.20	-	-	
93271	-	-	\$135.31	-	-	
93272	-	-	\$19.50	-	-	
93278	-	-	\$23.93	\$9.78	\$14.16	
93279	-	-	\$48.12	\$24.98	\$23.14	
93280	-	-	\$56.77	\$29.86	\$26.91	
93281	-	-	\$60.63	\$33.14	\$27.49	
93282	-	-	\$58.02	\$33.14	\$24.88	
93283	-	-	\$72.26	\$45.06	\$27.20	
93284	-	-	\$78.10	\$48.88	\$29.23	
93285	-	-	\$42.64	\$20.37	\$22.27	
93286	-	-	\$32.21	\$11.97	\$20.24	
93287	-	-	\$38.18	\$17.93	\$20.24	
93288	-	-	\$39.14	\$16.29	\$22.85	
93289	-	-	\$52.18	\$29.04	\$23.14	
93290	-	-	\$37.65	\$16.82	\$20.82	
93291	-	-	\$34.36	\$14.41	\$19.95	
93292	-	-	\$35.62	\$16.53	\$19.08	
93293	-	-	\$41.46	\$11.66	\$29.81	
93294	-	-	\$24.10	-	-	
93295	-	-	\$29.55	-	-	

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
93296	-	-	\$20.82	-	-	
93297	-	-	\$20.82	-	-	
93298	-	-	\$21.11	-	-	
93303	-	-	\$187.20	\$49.04	\$138.16	
93304	-	-	\$128.94	\$28.17	\$100.77	
93306	-	-	\$165.85	\$56.38	\$109.47	
93307	-	-	\$113.16	\$34.71	\$78.46	
93308	-	-	\$79.43	\$19.77	\$59.66	
93312	-	-	\$195.58	\$84.38	\$111.21	
93313	-	-	\$8.84	-	-	
93314	-	-	\$188.30	\$69.85	\$118.45	
93315	-	-	-	\$99.36	\$386.60	
93316	-	-	\$20.91	-	-	
93317	-	-	-	\$70.63	-	
93318	-	-	-	\$80.26	\$386.60	
93320	-	-	\$42.74	\$14.09	\$28.65	
93321	-	-	\$21.32	\$5.67	\$15.65	
93325	-	-	\$20.12	\$2.44	\$17.68	
93350	-	-	\$151.45	\$54.74	\$96.71	
93351	-	-	\$187.46	\$65.57	\$121.89	
93352	-	-	\$26.98	-	-	
93355	-	-	\$177.83	-	-	
93356	\$32.07	\$9.17	-	-	-	
93451	-	-	\$685.68	\$102.09	\$583.59	
93452	-	-	\$736.13	\$183.93	\$552.20	
93453	-	-	\$947.91	\$246.16	\$701.76	
93454	-	-	\$737.63	\$186.01	\$551.62	
93455	-	-	\$837.76	\$216.58	\$621.18	
93456	-	-	\$933.15	\$242.12	\$691.03	
93457	-	-	\$1,032.88	\$273.16	\$759.72	
93458	-	-	\$862.77	\$229.70	\$633.07	
93459	-	-	\$938.26	\$260.27	\$677.99	
93460	-	-	\$1,038.15	\$291.18	\$746.97	
93461	-	-	\$1,162.33	\$322.04	\$840.30	
93462	-	-	\$163.99	-	-	
93463	-	-	\$76.24	-	-	
93464	-	-	\$194.83	\$68.79	\$126.03	
93503	-	-	\$68.19	-	-	
93505	-	-	\$570.68	\$173.69	\$396.98	
93530	-	-	-	\$158.82	-	
93531	-	-	-	\$329.88	-	
93532	-	-	-	\$410.11	-	
93533	-	-	-	\$274.68	-	
93561	-	-	-	\$35.50	-	
93562	-	-	-	\$28.70	-	
93563	-	-	\$44.87	-	-	
93564	-	-	\$47.64	-	-	
93565	-	-	\$34.69	-	-	

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
93566	\$118.23	\$35.91	-	-	-	
93567	\$99.52	\$40.97	-	-	-	
93568	\$108.32	\$36.74	-	-	-	
93571	-	-	-	\$56.88	-	
93572	-	-	-	\$41.08	-	
93580	-	-	\$758.40	-	-	
93581	-	-	\$1,032.09	-	-	
93582	-	-	\$516.38	-	-	
93583	-	-	\$577.42	-	-	
93590	-	-	\$844.76	-	-	
93591	-	-	\$700.45	-	-	
93592	-	-	\$307.58	-	-	
93600	-	-	-	\$92.98	-	
93602	-	-	-	\$91.00	-	
93603	-	-	-	\$91.00	-	
93609	-	-	-	\$216.87	-	
93610	-	-	-	\$127.53	-	
93612	-	-	-	\$126.22	-	
93613	-	-	\$232.06	-	-	
93615	-	-	-	\$29.69	-	
93616	-	-	-	\$46.58	-	
93618	-	-	-	\$171.96	-	
93619	-	-	-	\$305.19	-	
93620	-	-	-	\$489.17	-	
93621	-	-	-	\$91.58	-	
93622	-	-	-	\$134.11	-	
93623	-	-	-	\$123.65	-	
93624	-	-	-	\$186.68	-	
93631	-	-	-	\$306.53	-	
93640	-	-	-	\$139.14	-	
93641	-	-	-	\$243.64	-	
93642	-	-	\$266.09	\$199.23	\$66.86	
93644	-	-	\$155.26	\$112.99	\$42.27	
93650	-	-	\$462.27	-	-	
93653	-	-	\$653.09	-	-	
93654	-	-	\$874.59	-	-	
93655	-	-	\$333.12	-	-	
93656	-	-	\$877.15	-	-	
93657	-	-	\$332.83	-	-	
93660	-	-	\$125.38	\$72.48	\$52.90	
93662	-	-	-	\$110.97	-	
93668	-	-	\$12.66	-	-	
93701	-	-	\$21.40	-	-	
93702	-	-	\$112.95	-	-	
93724	-	-	\$220.28	\$189.02	\$31.26	
93740	-	-	\$6.23	-	-	
93745	-	-	I.C.	-	-	
93750	\$44.78	\$37.24	-	-	-	

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
93770	-	-	\$6.23	-	-	
93784	-	-	\$36.90	-	-	
93786	-	-	\$18.50	-	-	
93788	-	-	\$4.01	-	-	
93790	-	-	\$14.38	-	-	
93792	-	-	\$53.19	-	-	
93793	-	-	\$9.08	-	-	
93797	\$12.85	\$6.76	-	-	-	
93798	\$20.09	\$10.82	-	-	-	
93799	-	-	I.C.	-	-	
93880	-	-	\$161.14	\$30.52	\$130.63	
93882	-	-	\$103.82	\$19.28	\$84.54	
93886	-	-	\$220.58	\$36.62	\$183.96	
93888	-	-	\$110.33	\$20.28	\$90.05	
93890	-	-	\$223.88	\$39.93	\$183.96	
93892	-	-	\$136.18	\$46.38	\$89.80	
93893	-	-	\$136.27	\$46.47	\$89.80	
93895	-	-	I.C.	-	-	
93922	-	-	\$68.77	\$9.69	\$59.08	
93923	-	-	\$106.98	\$16.93	\$90.05	
93924	-	-	\$132.36	\$18.84	\$113.53	
93925	-	-	\$205.44	\$29.94	\$175.50	
93926	-	-	\$108.59	\$18.55	\$90.05	
93930	-	-	\$166.51	\$30.67	\$135.84	
93931	-	-	\$103.96	\$18.84	\$85.12	
93970	-	-	\$157.62	\$26.41	\$131.21	
93971	-	-	\$98.42	\$17.02	\$81.40	
93975	-	-	\$223.55	\$43.99	\$179.56	
93976	-	-	\$120.61	\$30.56	\$90.05	
93978	-	-	\$151.73	\$30.09	\$121.64	
93979	-	-	\$97.54	\$18.79	\$78.75	
93980	-	-	\$96.94	\$47.43	\$49.52	
93981	-	-	\$59.07	\$16.51	\$42.56	
93985	-	-	\$215.74	\$29.51	\$186.23	
93986	-	-	\$109.04	\$18.99	\$90.05	
93990	-	-	\$108.99	\$18.94	\$90.05	
93998	-	-	I.C.	-	-	
94002	-	-	\$70.66	-	-	
94003	-	-	\$51.21	-	-	
94004	-	-	\$38.01	-	-	
94005	-	-	\$72.05	-	-	
94010	-	-	\$28.48	\$6.49	\$21.98	
94011	-	-	\$66.51	-	-	
94012	-	-	\$108.42	-	-	
94013	-	-	\$14.80	-	-	
94014	-	-	\$44.38	-	-	
94015	-	-	\$24.88	-	-	
94016	-	-	\$19.50	-	-	

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317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
94060	-	-	\$47.60	\$10.02	\$37.59	
94070	-	-	\$46.79	\$21.91	\$24.88	
94150	-	-	\$20.32	\$2.97	\$17.35	
94200	-	-	\$18.05	\$3.60	\$14.45	
94375	-	-	\$31.03	\$11.37	\$19.66	
94450	-	-	\$53.33	\$14.58	\$38.75	
94452	-	-	\$42.04	\$11.08	\$30.97	
94453	-	-	\$57.72	\$14.58	\$43.14	
94610	-	-	\$42.83	-	-	
94617	-	-	\$72.83	\$25.68	\$47.15	
94618	-	-	\$26.22	\$17.57	\$8.65	
94619	-	-	\$60.49	\$18.45	\$42.04	
94621	-	-	\$126.44	\$53.83	\$72.61	
94640	-	-	\$14.45	-	-	
94642	-	-	I.C.	-	-	
94644	-	-	\$43.72	-	-	
94645	-	-	\$13.58	-	-	
94660	\$50.32	\$29.46	-	-	-	
94662	-	-	\$27.72	-	-	
94664	-	-	\$13.58	-	-	
94667	-	-	\$20.20	-	-	
94668	-	-	\$23.39	-	-	
94669	-	-	\$23.97	-	-	
94680	-	-	\$43.04	\$9.75	\$33.29	
94681	-	-	\$42.60	\$7.87	\$34.74	
94690	-	-	\$41.18	\$2.97	\$38.21	
94726	-	-	\$43.04	\$9.46	\$33.58	
94727	-	-	\$34.92	\$9.46	\$25.46	
94728	-	-	\$32.60	\$9.75	\$22.85	
94729	-	-	\$45.53	\$7.02	\$38.50	
94760	-	-	\$1.98	-	-	
94761	-	-	\$3.14	-	-	
94762	-	-	\$21.40	-	-	
94772	-	-	I.C.	-	-	
94774	-	-	I.C.	-	-	
94775	-	-	I.C.	-	-	
94776	-	-	I.C.	-	-	
94777	-	-	I.C.	-	-	
94780	\$40.13	\$18.40	-	-	-	
94781	\$15.77	\$6.49	-	-	-	
94799	-	-	I.C.	-	-	
95004	-	-	\$3.41	-	-	
95012	-	-	\$16.19	-	-	
95017	\$6.74	\$2.97	-	-	-	
95018	\$17.00	\$5.41	-	-	-	
95024	\$6.60	\$0.80	-	-	-	
95027	-	-	\$3.99	-	-	
95028	-	-	\$10.39	-	-	

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
95044	-	-	\$4.30	-	-	
95052	-	-	\$5.17	-	-	
95056	-	-	\$37.92	-	-	
95060	-	-	\$28.65	-	-	
95065	-	-	\$21.11	-	-	
95070	-	-	\$26.86	-	-	
95076	\$93.72	\$57.78	-	-	-	
95079	\$65.95	\$53.19	-	-	-	
95115	-	-	\$7.49	-	-	
95117	-	-	\$8.65	-	-	
95120	-	-	I.C.	-	-	
95125	-	-	I.C.	-	-	
95130	-	-	I.C.	-	-	
95131	-	-	I.C.	-	-	
95132	-	-	I.C.	-	-	
95133	-	-	I.C.	-	-	
95134	-	-	I.C.	-	-	
95144	\$11.98	\$2.42	-	-	-	
95145	\$25.02	\$2.42	-	-	-	
95146	\$46.18	\$2.42	-	-	-	
95147	\$46.47	\$2.42	-	-	-	
95148	\$67.92	\$2.42	-	-	-	
95149	\$90.24	\$2.42	-	-	-	
95165	\$11.69	\$2.42	-	-	-	
95170	\$8.79	\$2.42	-	-	-	
95180	\$106.83	\$80.16	-	-	-	
95199	-	-	I.C.	-	-	
95249	-	-	\$44.50	-	-	
95250	-	-	\$122.37	-	-	
95251	-	-	\$27.62	-	-	
95700	-	-	I.C.	-	-	
95705	-	-	I.C.	-	-	
95706	-	-	I.C.	-	-	
95707	-	-	I.C.	-	-	
95708	-	-	I.C.	-	-	
95709	-	-	I.C.	-	-	
95710	-	-	I.C.	-	-	
95711	-	-	I.C.	-	-	
95712	-	-	I.C.	-	-	
95713	-	-	I.C.	-	-	
95714	-	-	I.C.	-	-	
95715	-	-	I.C.	-	-	
95716	-	-	I.C.	-	-	
95717	\$79.76	\$78.60	-	-	-	
95718	\$105.22	\$103.48	-	-	-	
95719	\$123.56	\$122.11	-	-	-	
95720	\$162.87	\$160.26	-	-	-	
95721	\$164.32	\$160.84	-	-	-	

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
95722	\$199.33	\$195.56	-	-	-	
95723	\$203.76	\$199.12	-	-	-	
95724	\$254.57	\$249.35	-	-	-	
95725	\$232.66	\$226.57	-	-	-	
95726	\$321.74	\$315.07	-	-	-	
95782	-	-	\$731.14	\$97.26	\$633.88	
95783	-	-	\$777.11	\$105.68	\$671.43	
95800	-	-	\$133.38	\$31.98	\$101.40	
95801	-	-	\$70.77	\$31.98	\$38.79	
95803	-	-	\$119.92	\$34.46	\$85.46	
95805	-	-	\$335.82	\$45.52	\$290.30	
95806	-	-	\$93.18	\$34.68	\$58.50	
95807	-	-	\$329.25	\$47.35	\$281.89	
95808	-	-	\$528.93	\$67.63	\$461.30	
95810	-	-	\$491.77	\$93.45	\$398.32	
95811	-	-	\$513.84	\$96.97	\$416.87	
95812	-	-	\$266.24	\$44.66	\$221.59	
95813	-	-	\$330.17	\$67.81	\$262.37	
95816	-	-	\$295.52	\$44.66	\$250.86	
95819	-	-	\$351.37	\$44.95	\$306.42	
95822	-	-	\$318.33	\$44.95	\$273.38	
95824	-	-	-	\$30.51	-	
95829	-	-	\$1,516.06	\$261.73	\$1,254.34	
95830	\$407.68	\$72.05	-	-	-	
95836	-	-	\$86.02	-	-	
95851	\$17.53	\$6.23	-	-	-	
95852	\$15.34	\$4.61	-	-	-	
95857	\$43.98	\$23.40	-	-	-	
95860	-	-	\$95.92	\$40.60	\$55.31	
95861	-	-	\$136.96	\$64.26	\$72.70	
95863	-	-	\$169.48	\$77.65	\$91.83	
95864	-	-	\$199.58	\$82.82	\$116.76	
95865	-	-	\$121.53	\$65.35	\$56.18	
95866	-	-	\$107.67	\$52.06	\$55.60	
95867	-	-	\$86.19	\$33.19	\$52.99	
95868	-	-	\$112.77	\$49.05	\$63.72	
95869	-	-	\$77.50	\$15.52	\$61.98	
95870	-	-	\$73.15	\$15.52	\$57.63	
95872	-	-	\$156.35	\$118.42	\$37.92	
95873	-	-	\$61.94	\$15.57	\$46.37	
95874	-	-	\$63.68	\$15.28	\$48.40	
95875	-	-	\$106.59	\$45.77	\$60.82	
95885	-	-	\$50.40	\$14.46	\$35.94	
95886	-	-	\$77.46	\$35.72	\$41.74	
95887	-	-	\$67.68	\$29.42	\$38.26	
95905	-	-	\$44.13	\$2.15	\$41.98	
95907	-	-	\$75.82	\$41.95	\$33.87	
95908	-	-	\$96.36	\$52.35	\$44.01	

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
95909	-	-	\$115.41	\$62.71	\$52.70	
95910	-	-	\$151.73	\$83.95	\$67.78	
95911	-	-	\$181.51	\$103.88	\$77.63	
95912	-	-	\$207.40	\$123.72	\$83.67	
95913	-	-	\$239.84	\$146.90	\$92.95	
95921	-	-	\$68.04	\$35.04	\$33.00	
95922	-	-	\$78.19	\$37.42	\$40.78	
95923	-	-	\$103.02	\$35.53	\$67.49	
95924	-	-	\$118.73	\$68.10	\$50.63	
95925	-	-	\$112.93	\$21.73	\$91.21	
95926	-	-	\$107.47	\$21.19	\$86.28	
95927	-	-	\$107.14	\$20.90	\$86.24	
95928	-	-	\$180.92	\$62.13	\$118.79	
95929	-	-	\$186.42	\$62.13	\$124.29	
95930	-	-	\$53.54	\$14.46	\$39.08	
95933	-	-	\$65.90	\$24.50	\$41.40	
95937	-	-	\$75.32	\$26.96	\$48.36	
95938	-	-	\$283.80	\$35.92	\$247.87	
95939	-	-	\$423.96	\$92.90	\$331.06	
95940	-	-	\$25.55	-	-	
95941	-	-	I.C.	-	-	
95943	-	-	I.C.	-	-	
95954	-	-	\$312.91	\$87.40	\$225.51	
95955	-	-	\$169.41	\$41.93	\$127.48	
95957	-	-	\$204.44	\$79.94	\$124.49	
95958	-	-	\$465.73	\$176.25	\$289.47	
95961	-	-	\$246.26	\$125.49	\$120.77	
95962	-	-	\$206.86	\$134.20	\$72.66	
95965	-	-	-	\$326.90	-	
95966	-	-	-	\$165.90	-	
95967	-	-	-	\$144.95	-	
95970	\$14.95	\$14.66	-	-	-	
95971	\$39.46	\$31.64	-	-	-	
95972	\$44.58	\$32.12	-	-	-	
95976	\$32.05	\$31.47	-	-	-	
95977	\$41.85	\$41.27	-	-	-	
95980	-	-	\$35.48	-	-	
95981	\$28.31	\$13.82	-	-	-	
95982	\$44.57	\$28.63	-	-	-	
95983	\$39.68	\$39.10	-	-	-	
95984	\$35.02	\$34.44	-	-	-	
95990	-	-	\$73.68	-	-	
95991	\$91.61	\$31.32	-	-	-	
95992	\$34.74	\$29.24	-	-	-	
95999	-	-	I.C.	-	-	
96000	-	-	\$72.43	-	-	
96001	-	-	\$85.63	-	-	
96002	-	-	\$17.12	-	-	

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
96003	-	-	\$13.25	-	-	
96004	-	-	\$87.84	-	-	
96020	-	-	-	\$125.86	-	
96040	-	-	\$37.16	-	-	
96105	-	-	\$80.22	-	-	
96110	-	-	\$10.27	-	-	
96112	\$105.87	\$98.63	-	-	-	
96113	\$47.31	\$44.70	-	-	-	
96116	\$75.02	\$64.59	-	-	-	
96121	\$64.67	\$59.74	-	-	-	
96125	-	-	\$85.31	-	-	
96127	-	-	\$10.27	-	-	
96130	\$91.27	\$82.58	-	-	-	
96131	\$70.14	\$63.47	-	-	-	
96132	\$102.87	\$81.42	-	-	-	
96133	\$77.14	\$62.65	-	-	-	
96136	\$37.06	\$18.80	-	-	-	
96137	\$34.14	\$14.72	-	-	-	
96138	-	-	\$30.97	-	-	
96139	-	-	\$30.97	-	-	
96146	-	-	\$1.69	-	-	
96156	\$74.72	\$67.19	-	-	-	
96158	\$50.99	\$45.78	-	-	-	
96159	\$17.81	\$15.78	-	-	-	
96160	-	-	\$2.03	-	-	
96161	-	-	\$2.03	-	-	
96164	\$7.55	\$6.69	-	-	-	
96165	\$3.52	\$2.94	-	-	-	
96167	\$54.76	\$48.96	-	-	-	
96168	\$19.43	\$17.40	-	-	-	
96170	\$62.48	\$59.30	-	-	-	
96171	\$22.79	\$21.64	-	-	-	
96360	-	-	\$27.32	-	-	
96361	-	-	\$10.75	-	-	
96365	-	-	\$57.23	-	-	
96366	-	-	\$17.19	-	-	
96367	-	-	\$24.66	-	-	
96368	-	-	\$16.64	-	-	
96369	-	-	\$129.53	-	-	
96370	-	-	\$11.98	-	-	
96371	-	-	\$51.88	-	-	
96372	-	-	\$11.13	-	-	
96373	-	-	\$14.61	-	-	
96374	-	-	\$31.64	-	-	
96375	-	-	\$13.04	-	-	
96376	-	-	I.C.	-	-	
96377	-	-	\$15.77	-	-	
96379	-	-	I.C.	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
96401	-	-	\$63.60	-	-	
96402	-	-	\$25.24	-	-	
96405	\$66.70	\$22.93	-	-	-	
96406	\$102.40	\$35.73	-	-	-	
96409	-	-	\$87.45	-	-	
96411	-	-	\$47.40	-	-	
96413	-	-	\$113.39	-	-	
96415	-	-	\$24.08	-	-	
96416	-	-	\$113.56	-	-	
96417	-	-	\$54.91	-	-	
96420	-	-	\$84.10	-	-	
96422	-	-	\$138.50	-	-	
96423	-	-	\$63.95	-	-	
96425	-	-	\$146.90	-	-	
96440	\$724.17	\$96.10	-	-	-	
96446	\$163.00	\$19.53	-	-	-	
96450	\$142.94	\$61.21	-	-	-	
96521	-	-	\$118.78	-	-	
96522	-	-	\$99.07	-	-	
96523	-	-	\$22.42	-	-	
96542	\$105.62	\$32.87	-	-	-	
96549	-	-	I.C.	-	-	
96567	-	-	\$109.22	-	-	
96570	-	-	\$43.69	-	-	
96571	-	-	\$20.16	-	-	
96573	-	-	\$173.50	-	-	
96574	-	-	\$216.99	-	-	
96900	-	-	\$18.21	-	-	
96902	\$17.41	\$16.25	-	-	-	
96904	-	-	\$55.85	-	-	
96910	-	-	\$94.98	-	-	
96912	-	-	\$81.11	-	-	
96913	-	-	\$117.58	-	-	
96920	\$130.57	\$51.44	-	-	-	
96921	\$142.95	\$57.74	-	-	-	
96922	\$194.14	\$93.27	-	-	-	
96931	-	-	\$139.01	-	-	
96932	-	-	\$103.43	-	-	
96933	-	-	\$35.58	-	-	
96934	-	-	\$84.08	-	-	
96935	-	-	\$50.14	-	-	
96936	-	-	\$33.94	-	-	
96999	-	-	I.C.	-	-	
97010	-	-	\$5.02	-	-	
97012	-	-	\$11.80	-	-	
97014	-	-	\$11.40	-	-	
97016	-	-	\$9.66	-	-	
97018	-	-	\$4.73	-	-	

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
97022	-	-	\$14.32	-	-	
97024	-	-	\$5.60	-	-	
97026	-	-	\$5.02	-	-	
97028	-	-	\$6.42	-	-	
97032	-	-	\$11.51	-	-	
97033	-	-	\$16.42	-	-	
97034	-	-	\$11.90	-	-	
97035	-	-	\$11.32	-	-	
97036	-	-	\$28.25	-	-	
97039	-	-	I.C.	-	-	
97110	-	-	\$24.02	-	-	
97112	-	-	\$27.67	-	-	
97113	-	-	\$30.61	-	-	
97116	-	-	\$23.73	-	-	
97124	-	-	\$23.15	-	-	
97129	\$18.39	\$18.10	-	-	-	
97130	-	-	\$17.57	-	-	
97139	-	-	I.C.	-	-	
97140	-	-	\$22.04	-	-	
97150	-	-	\$14.31	-	-	
97151	-	-	I.C.	-	-	
97152	-	-	I.C.	-	-	
97153	-	-	I.C.	-	-	
97154	-	-	I.C.	-	-	
97155	-	-	I.C.	-	-	
97156	-	-	I.C.	-	-	
97157	-	-	I.C.	-	-	
97158	-	-	I.C.	-	-	
97161	-	-	\$67.26	-	-	
97162	-	-	\$67.26	-	-	
97163	-	-	\$67.26	-	-	
97164	-	-	\$46.43	-	-	
97165	-	-	\$71.61	-	-	
97166	-	-	\$71.32	-	-	
97167	-	-	\$71.32	-	-	
97168	-	-	\$49.61	-	-	
97169	-	-	I.C.	-	-	
97170	-	-	I.C.	-	-	
97171	-	-	I.C.	-	-	
97172	-	-	I.C.	-	-	
97530	-	-	\$31.29	-	-	
97533	-	-	\$41.34	-	-	
97535	-	-	\$26.92	-	-	
97537	-	-	\$25.69	-	-	
97542	-	-	\$25.98	-	-	
97545	-	-	I.C.	-	-	
97546	-	-	I.C.	-	-	
97597	\$77.25	\$28.27	-	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
97598	\$36.47	\$19.95	-	-	-	
97602	-	-	I.C.	-	-	
97605	\$34.50	\$20.01	-	-	-	
97606	\$40.75	\$21.62	-	-	-	
97607	\$273.98	\$17.47	-	-	-	
97608	\$274.68	\$19.62	-	-	-	
97610	\$263.88	\$14.33	-	-	-	
97750	-	-	\$27.50	-	-	
97755	-	-	\$29.98	-	-	
97760	-	-	\$39.26	-	-	
97761	-	-	\$33.17	-	-	
97763	-	-	\$42.21	-	-	
97799	-	-	I.C.	-	-	
97802	\$29.33	\$26.43	-	-	-	
97803	\$25.47	\$22.28	-	-	-	
97804	\$13.25	\$12.38	-	-	-	
97810	\$28.73	\$23.81	-	-	-	
97811	\$21.73	\$19.99	-	-	-	
97813	\$32.09	\$25.71	-	-	-	
97814	\$26.25	\$21.90	-	-	-	
98925	\$24.53	\$18.44	-	-	-	
98926	\$35.42	\$27.88	-	-	-	
98927	\$46.11	\$36.55	-	-	-	
98928	\$56.18	\$45.74	-	-	-	
98929	\$67.02	\$56.01	-	-	-	
98940	\$22.01	\$17.38	-	-	-	
98941	\$31.54	\$26.62	-	-	-	
98942	\$41.03	\$36.10	-	-	-	
98943	\$21.54	\$18.64	-	-	-	
98960	-	-	\$22.23	-	-	
98961	-	-	\$10.68	-	-	
98962	-	-	\$7.78	-	-	
98966	\$10.89	\$10.02	-	-	-	
98967	\$21.15	\$19.99	-	-	-	
98968	\$30.93	\$29.77	-	-	-	
98970	-	-	I.C.	-	-	
98971	-	-	I.C.	-	-	
98972	-	-	I.C.	-	-	
99000	-	-	I.C.	-	-	
99001	-	-	I.C.	-	-	
99002	-	-	I.C.	-	-	
99024	-	-	I.C.	-	-	
99026	-	-	I.C.	-	-	
99027	-	-	I.C.	-	-	
99050	-	-	I.C.	-	-	
99051	-	-	I.C.	-	-	
99053	-	-	I.C.	-	-	
99056	-	-	I.C.	-	-	

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
99058	-	-	I.C.	-	-	
99060	-	-	I.C.	-	-	
99070	-	-	I.C.	-	-	
99071	-	-	I.C.	-	-	
99075	-	-	I.C.	-	-	
99078	-	-	I.C.	-	-	
99080	-	-	I.C.	-	-	
99082	-	-	I.C.	-	-	
99091	-	-	\$44.47	-	-	
99100	-	-	I.C.	-	-	
99116	-	-	I.C.	-	-	
99135	-	-	I.C.	-	-	
99140	-	-	I.C.	-	-	
99151	\$59.41	\$17.97	-	-	-	
99152	\$40.74	\$9.44	-	-	-	
99153	-	-	\$8.65	-	-	
99155	-	-	\$64.82	-	-	
99156	-	-	\$59.62	-	-	
99157	-	-	\$48.99	-	-	
99170	\$125.05	\$66.51	-	-	-	
99172	-	-	I.C.	-	-	
99174	-	-	\$4.59	-	-	
99175	-	-	\$20.24	-	-	
99177	-	-	\$3.72	-	-	
99183	-	-	\$85.19	-	-	
99184	-	-	\$171.07	-	-	
99188	-	-	\$26.00	-	-	
99190	-	-	I.C.	-	-	
99191	-	-	I.C.	-	-	
99192	-	-	I.C.	-	-	
99195	-	-	\$82.33	-	-	
99199	-	-	I.C.	-	-	
99202	\$59.34	\$38.76	-	-	-	
99203	\$84.35	\$58.59	-	-	-	
99204	\$128.18	\$99.46	-	-	-	
99205	\$160.51	\$129.50	-	-	-	
99211	\$18.35	\$7.10	-	-	-	
99212	\$35.70	\$19.75	-	-	-	
99213	\$58.41	\$39.28	-	-	-	
99214	\$84.51	\$60.45	-	-	-	
99215	\$113.27	\$85.44	-	-	-	
99217	-	-	\$55.87	-	-	
99218	-	-	\$76.30	-	-	
99219	-	-	\$103.81	-	-	
99220	-	-	\$141.38	-	-	
99221	-	-	\$77.90	-	-	
99222	-	-	\$105.35	-	-	
99223	-	-	\$154.76	-	-	

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
99224	-	-	\$30.33	-	-	
99225	-	-	\$55.60	-	-	
99226	-	-	\$80.01	-	-	
99231	-	-	\$30.04	-	-	
99232	-	-	\$55.31	-	-	
99233	-	-	\$79.72	-	-	
99234	-	-	\$102.04	-	-	
99235	-	-	\$129.26	-	-	
99236	-	-	\$166.29	-	-	
99238	-	-	\$56.16	-	-	
99239	-	-	\$82.32	-	-	
99241	\$37.33	\$25.16	-	-	-	
99242	\$70.12	\$53.02	-	-	-	
99243	\$95.86	\$74.12	-	-	-	
99244	\$143.04	\$119.28	-	-	-	
99245	\$174.02	\$147.35	-	-	-	
99251	-	-	\$38.01	-	-	
99252	-	-	\$57.56	-	-	
99253	-	-	\$88.97	-	-	
99254	-	-	\$129.54	-	-	
99255	-	-	\$155.68	-	-	
99281	-	-	\$17.15	-	-	
99282	-	-	\$32.96	-	-	
99283	-	-	\$49.26	-	-	
99284	-	-	\$90.36	-	-	
99285	-	-	\$131.18	-	-	
99288	-	-	I.C.	-	-	
99291	\$215.83	\$169.16	-	-	-	
99292	\$94.68	\$85.12	-	-	-	
99304	-	-	\$69.39	-	-	
99305	-	-	\$99.43	-	-	
99306	-	-	\$128.14	-	-	
99307	-	-	\$33.85	-	-	
99308	-	-	\$53.31	-	-	
99309	-	-	\$70.28	-	-	
99310	-	-	\$103.49	-	-	
99315	-	-	\$56.45	-	-	
99316	-	-	\$80.92	-	-	
99318	-	-	\$73.85	-	-	
99324	-	-	\$41.93	-	-	
99325	-	-	\$60.83	-	-	
99326	-	-	\$105.99	-	-	
99327	-	-	\$142.52	-	-	
99328	-	-	\$168.53	-	-	
99334	-	-	\$46.37	-	-	
99335	-	-	\$73.34	-	-	
99336	-	-	\$103.51	-	-	
99337	-	-	\$149.05	-	-	

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
99339	-	-	\$60.00	-	-	
99340	-	-	\$83.39	-	-	
99341	-	-	\$41.93	-	-	
99342	-	-	\$59.96	-	-	
99343	-	-	\$98.41	-	-	
99344	-	-	\$139.98	-	-	
99345	-	-	\$170.42	-	-	
99347	-	-	\$41.95	-	-	
99348	-	-	\$64.46	-	-	
99349	-	-	\$98.90	-	-	
99350	-	-	\$137.61	-	-	
99354	\$99.68	\$93.31	-	-	-	
99355	\$75.73	\$70.23	-	-	-	
99356	-	-	\$70.95	-	-	
99357	-	-	\$71.53	-	-	
99358	-	-	\$85.56	-	-	
99359	-	-	\$41.82	-	-	
99360	-	-	\$47.37	-	-	
99366	\$33.57	\$32.99	-	-	-	
99367	-	-	\$43.56	-	-	
99368	-	-	\$28.68	-	-	
99374	\$54.28	\$43.56	-	-	-	
99375	\$80.96	\$68.49	-	-	-	
99377	\$54.28	\$43.56	-	-	-	
99378	\$80.96	\$68.49	-	-	-	
99379	\$54.28	\$43.56	-	-	-	
99380	\$80.96	\$68.49	-	-	-	
99381	\$86.71	\$59.30	-	-	-	
99382	\$90.60	\$63.35	-	-	-	
99383	\$94.36	\$67.12	-	-	-	
99384	\$106.53	\$79.29	-	-	-	
99385	\$103.30	\$76.05	-	-	-	
99386	\$119.26	\$92.30	-	-	-	
99387	\$129.72	\$99.28	-	-	-	
99391	\$78.16	\$54.40	-	-	-	
99392	\$83.15	\$59.30	-	-	-	
99393	\$82.86	\$59.30	-	-	-	
99394	\$90.89	\$67.12	-	-	-	
99395	\$93.08	\$69.03	-	-	-	
99396	\$99.00	\$75.23	-	-	-	
99397	\$106.53	\$79.29	-	-	-	
99401	\$31.06	\$19.17	-	-	-	
99402	\$50.81	\$39.21	-	-	-	
99403	\$69.25	\$57.65	-	-	-	
99404	\$88.44	\$77.14	-	-	-	
99406	\$11.78	\$9.46	-	-	-	
99407	\$58.08	\$54.04	-	-	-	
99408	\$27.74	\$25.71	-	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
99409	\$53.70	\$51.67	-	-	-	
99411	\$15.82	\$5.96	-	-	-	
99412	\$19.87	\$10.02	-	-	-	
99415	-	-	\$8.07	-	-	
99416	-	-	\$3.48	-	-	
99417	-	-	I.C.	-	-	
99421	\$11.76	\$10.02	-	-	-	
99422	\$23.47	\$20.57	-	-	-	
99423	\$37.96	\$32.75	-	-	-	
99429	-	-	I.C.	-	-	
99439	\$29.82	\$21.96	-	-	-	
99441	\$10.89	\$10.02	-	-	-	
99442	\$21.15	\$19.99	-	-	-	
99443	\$30.93	\$29.77	-	-	-	
99446	-	-	\$13.79	-	-	
99447	-	-	\$27.86	-	-	
99448	-	-	\$41.65	-	-	
99449	-	-	\$55.48	-	-	
99450	-	-	I.C.	-	-	
99451	-	-	\$28.20	-	-	
99452	-	-	\$28.20	-	-	
99453	-	-	\$15.03	-	-	
99454	-	-	\$50.10	-	-	
99455	-	-	I.C.	-	-	
99456	-	-	I.C.	-	-	
99457	\$39.72	\$24.65	-	-	-	
99458	\$32.19	\$24.65	-	-	-	
99460	-	-	\$100.99	-	-	
99461	\$70.99	\$48.09	-	-	-	
99462	-	-	\$43.82	-	-	
99463	-	-	\$125.76	-	-	
99464	-	-	\$57.07	-	-	
99465	-	-	\$160.43	-	-	
99466	-	-	\$182.19	-	-	
99467	-	-	\$91.40	-	-	
99468	-	-	\$702.35	-	-	
99469	-	-	\$304.15	-	-	
99471	-	-	\$607.96	-	-	
99472	-	-	\$307.49	-	-	
99473	-	-	\$8.94	-	-	
99474	\$11.69	\$6.76	-	-	-	
99475	-	-	\$427.94	-	-	
99476	-	-	\$265.26	-	-	
99477	-	-	\$266.81	-	-	
99478	-	-	\$104.89	-	-	
99479	-	-	\$95.16	-	-	
99480	-	-	\$91.40	-	-	
99483	\$203.50	\$138.87	-	-	-	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
99484	\$36.83	\$24.65	-	-	-	
99485	-	-	\$59.30	-	-	
99486	-	-	\$51.67	-	-	
99487	\$71.47	\$40.17	-	-	-	
99489	\$34.58	\$19.80	-	-	-	
99490	\$32.19	\$24.65	-	-	-	
99491	-	-	\$63.57	-	-	
99492	\$121.41	\$67.79	-	-	-	
99493	\$97.28	\$61.05	-	-	-	
99494	\$49.06	\$32.54	-	-	-	
99495	\$144.33	\$94.48	-	-	-	
99496	\$190.65	\$124.57	-	-	-	
99497	\$65.76	\$60.54	-	-	-	
99498	\$57.31	\$57.02	-	-	-	
99499	-	-	I.C.	-	-	
99500	-	-	I.C.	-	-	
99501	-	-	I.C.	-	-	
99502	-	-	I.C.	-	-	
99503	-	-	I.C.	-	-	
99504	-	-	I.C.	-	-	
99505	-	-	I.C.	-	-	
99506	-	-	I.C.	-	-	
99507	-	-	I.C.	-	-	
99509	-	-	I.C.	-	-	
99510	-	-	I.C.	-	-	
99511	-	-	I.C.	-	-	
99512	-	-	I.C.	-	-	
99600	-	-	I.C.	-	-	
99601	-	-	I.C.	-	-	
99602	-	-	I.C.	-	-	
99605	-	-	I.C.	-	-	
99606	-	-	I.C.	-	-	
99607	-	-	I.C.	-	-	
90460-SL	-	-	\$17.70	-	-	
90461-SL	-	-	\$8.52	-	-	
90471-SL	-	-	\$17.70	-	-	
90473-SL	-	-	\$17.70	-	-	
G0108	-	-	\$43.36	-	-	
G0109	-	-	\$12.09	-	-	
G0270	\$25.47	\$22.28	-	-	-	
G0271	\$13.25	\$12.38	-	-	-	
G0399	-	-	I.C.	-	-	
J0131	-	-	I.C.	-	-	
J0135	-	-	I.C.	-	-	
J0215	-	-	I.C.	-	-	
J0222	-	-	I.C.	-	-	
J0291	-	-	I.C.	-	-	
J0364	-	-	I.C.	-	-	

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
J0400	-	-	I.C.	-	-	
J0565	-	-	I.C.	-	-	
J0567	-	-	I.C.	-	-	
J0571	-	-	I.C.	-	-	
J0572	-	-	I.C.	-	-	
J0573	-	-	I.C.	-	-	
J0574	-	-	I.C.	-	-	
J0575	-	-	I.C.	-	-	
J0584	-	-	I.C.	-	-	
J0593	-	-	I.C.	-	-	
J0599	-	-	I.C.	-	-	
J0604	-	-	I.C.	-	-	
J0715	-	-	I.C.	-	-	
J0716	-	-	I.C.	-	-	
J0841	-	-	I.C.	-	-	
J0883	-	-	I.C.	-	-	
J0884	-	-	I.C.	-	-	
J0890	-	-	I.C.	-	-	
J1094	-	-	I.C.	-	-	
J1096	-	-	I.C.	-	-	
J1097	-	-	I.C.	-	-	
J1130	-	-	I.C.	-	-	
J1260	-	-	I.C.	-	-	
J1301	-	-	I.C.	-	-	
J1320	-	-	I.C.	-	-	
J1322	-	-	I.C.	-	-	
J1324	-	-	I.C.	-	-	
J1428	-	-	I.C.	-	-	
J1438	-	-	I.C.	-	-	
J1444	-	-	I.C.	-	-	
J1455	-	-	I.C.	-	-	
J1562	-	-	I.C.	-	-	
J1573	-	-	I.C.	-	-	
J1595	-	-	I.C.	-	-	
J1599	-	-	I.C.	-	-	
J1628	-	-	I.C.	-	-	
J1655	-	-	I.C.	-	-	
J1700	-	-	I.C.	-	-	
J1710	-	-	I.C.	-	-	
J1726	-	-	I.C.	-	-	
J1741	-	-	I.C.	-	-	
J1744	-	-	I.C.	-	-	
J1746	-	-	I.C.	-	-	
J1790	-	-	I.C.	-	-	
J1826	-	-	I.C.	-	-	
J1830	-	-	I.C.	-	-	
J1840	-	-	I.C.	-	-	
J1850	-	-	I.C.	-	-	

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
J1890	-	-	I.C.	-	-	
J1990	-	-	I.C.	-	-	
J2062	-	-	I.C.	-	-	
J2170	-	-	I.C.	-	-	
J2182	-	-	I.C.	-	-	
J2212	-	-	I.C.	-	-	
J2265	-	-	I.C.	-	-	
J2326	-	-	I.C.	-	-	
J2440	-	-	I.C.	-	-	
J2460	-	-	I.C.	-	-	
J2502	-	-	I.C.	-	-	
J2760	-	-	I.C.	-	-	
J2786	-	-	I.C.	-	-	
J2793	-	-	I.C.	-	-	
J2797	-	-	I.C.	-	-	
J2840	-	-	I.C.	-	-	
J2910	-	-	I.C.	-	-	
J2940	-	-	I.C.	-	-	
J2941	-	-	I.C.	-	-	
J3030	-	-	I.C.	-	-	
J3031	-	-	I.C.	-	-	
J3110	-	-	I.C.	-	-	
J3145	-	-	I.C.	-	-	
J3245	-	-	I.C.	-	-	
J3302	-	-	I.C.	-	-	
J3303	-	-	I.C.	-	-	
J3316	-	-	I.C.	-	-	
J3397	-	-	I.C.	-	-	
J3398	-	-	I.C.	-	-	
J3472	-	-	I.C.	-	-	
J3490	-	-	I.C.	-	-	
J3590	-	-	I.C.	-	-	
J3591	-	-	I.C.	-	-	
J7131	-	-	I.C.	-	-	
J7175	-	-	I.C.	-	-	
J7177	-	-	I.C.	-	-	
J7178	-	-	I.C.	-	-	
J7179	-	-	I.C.	-	-	
J7181	-	-	I.C.	-	-	
J7202	-	-	I.C.	-	-	
J7203	-	-	I.C.	-	-	
J7207	-	-	I.C.	-	-	
J7209	-	-	I.C.	-	-	
J7210	-	-	I.C.	-	-	
J7211	-	-	I.C.	-	-	
J7296	-	-	I.C.	-	-	
J7297	-	-	I.C.	-	-	
J7298	-	-	I.C.	-	-	

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
J7301	-	-	I.C.	-	-	
J7303	-	-	I.C.	-	-	
J7304	-	-	I.C.	-	-	
J7307	-	-	I.C.	-	-	
J7309	-	-	I.C.	-	-	
J7310	-	-	I.C.	-	-	
J7314	-	-	I.C.	-	-	
J7315	-	-	I.C.	-	-	
J7318	-	-	I.C.	-	-	
J7322	-	-	I.C.	-	-	
J7328	-	-	I.C.	-	-	
J7329	-	-	I.C.	-	-	
J7331	-	-	I.C.	-	-	
J7332	-	-	I.C.	-	-	
J7340	-	-	I.C.	-	-	
J7342	-	-	I.C.	-	-	
J7345	-	-	I.C.	-	-	
J7401	-	-	I.C.	-	-	
J7599	-	-	I.C.	-	-	
J7633	-	-	I.C.	-	-	
J7665	-	-	I.C.	-	-	
J7669	-	-	I.C.	-	-	
J7676	-	-	I.C.	-	-	
J7677	-	-	I.C.	-	-	
J7699	-	-	I.C.	-	-	
J7799	-	-	I.C.	-	-	
J7999	-	-	I.C.	-	-	
J8562	-	-	I.C.	-	-	
J8670	-	-	I.C.	-	-	
J9015	-	-	I.C.	-	-	
J9020	-	-	I.C.	-	-	
J9022	-	-	I.C.	-	-	
J9023	-	-	I.C.	-	-	
J9057	-	-	I.C.	-	-	
J9118	-	-	I.C.	-	-	
J9160	-	-	I.C.	-	-	
J9173	-	-	I.C.	-	-	
J9199	-	-	I.C.	-	-	
J9210	-	-	I.C.	-	-	
J9212	-	-	I.C.	-	-	
J9213	-	-	I.C.	-	-	
J9215	-	-	I.C.	-	-	
J9216	-	-	I.C.	-	-	
J9219	-	-	I.C.	-	-	
J9229	-	-	I.C.	-	-	
J9262	-	-	I.C.	-	-	
J9269	-	-	I.C.	-	-	
J9313	-	-	I.C.	-	-	

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
J9340	-	-	I.C.	-	-	
J9999	-	-	I.C.	-	-	
Q2009	-	-	I.C.	-	-	
Q2017	-	-	I.C.	-	-	
Q2028	-	-	I.C.	-	-	
Q2036	-	-	I.C.	-	-	
Q2038	-	-	I.C.	-	-	
Q2042	-	-	I.C.	-	-	
Q2049	-	-	I.C.	-	-	
Q4103	-	-	I.C.	-	-	
Q4104	-	-	I.C.	-	-	
Q4108	-	-	I.C.	-	-	
Q4110	-	-	I.C.	-	-	
Q4161	-	-	I.C.	-	-	
Q4162	-	-	I.C.	-	-	
Q4163	-	-	I.C.	-	-	
Q4164	-	-	I.C.	-	-	
Q4165	-	-	I.C.	-	-	
Q4183	-	-	I.C.	-	-	
Q4184	-	-	I.C.	-	-	
Q4185	-	-	I.C.	-	-	
Q4187	-	-	I.C.	-	-	
Q4188	-	-	I.C.	-	-	
Q4189	-	-	I.C.	-	-	
Q4190	-	-	I.C.	-	-	
Q4191	-	-	I.C.	-	-	
Q4192	-	-	I.C.	-	-	
Q4193	-	-	I.C.	-	-	
Q4194	-	-	I.C.	-	-	
Q4197	-	-	I.C.	-	-	
Q4198	-	-	I.C.	-	-	
Q4200	-	-	I.C.	-	-	
Q4201	-	-	I.C.	-	-	
Q4202	-	-	I.C.	-	-	
Q4203	-	-	I.C.	-	-	
Q4204	-	-	I.C.	-	-	
Q4205	-	-	I.C.	-	-	
Q4206	-	-	I.C.	-	-	
Q4208	-	-	I.C.	-	-	
Q4209	-	-	I.C.	-	-	
Q4210	-	-	I.C.	-	-	
Q4211	-	-	I.C.	-	-	
Q4212	-	-	I.C.	-	-	
Q4213	-	-	I.C.	-	-	
Q4214	-	-	I.C.	-	-	
Q4215	-	-	I.C.	-	-	
Q4216	-	-	I.C.	-	-	
Q4217	-	-	I.C.	-	-	

317.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at http://www.mass.gov/regulations/101-CMR-31700-medicine)
Q4218	-	-	I.C.	-	-	
Q4219	-	-	I.C.	-	-	
Q4220	-	-	I.C.	-	-	
Q4221	-	-	I.C.	-	-	
Q4222	-	-	I.C.	-	-	
Q4226	-	-	I.C.	-	-	
Q5107	-	-	I.C.	-	-	
Q5109	-	-	I.C.	-	-	
Q5112	-	-	I.C.	-	-	
Q5113	-	-	I.C.	-	-	
Q5114	-	-	I.C.	-	-	
Q5115	-	-	I.C.	-	-	
Q5116	-	-	I.C.	-	-	
Q5118	-	-	I.C.	-	-	
S0302	-	-	I.C.	-	-	
S3005-U1	-	-	\$10.27	-	-	
S3005-U2	-	-	\$10.27	-	-	
T1023	-	-	I.C.	-	-	
G2212	\$26.08	\$25.21	-	-	-	
J0179	-	-	I.C.	-	-	
J0223	-	-	I.C.	-	-	
J0693	-	-	I.C.	-	-	
J0742	-	-	I.C.	-	-	
J1201	-	-	I.C.	-	-	
J1429	-	-	I.C.	-	-	
J1610	-	-	I.C.	-	-	
J1823	-	-	I.C.	-	-	
J3032	-	-	I.C.	-	-	
J3241	-	-	I.C.	-	-	
J3398	-	-	I.C.	-	-	
J7192	-	-	I.C.	-	-	
J7212	-	-	I.C.	-	-	
J7351	-	-	I.C.	-	-	
J7352	-	-	I.C.	-	-	
J8499	-	-	I.C.	-	-	
J8999	-	-	I.C.	-	-	
J9118	-	-	I.C.	-	-	
J9144	-	-	I.C.	-	-	
J9223	-	-	I.C.	-	-	
J9281	-	-	I.C.	-	-	
J9316	-	-	I.C.	-	-	
J9317	-	-	I.C.	-	-	
Q5115	-	-	I.C.	-	-	
Q5119	-	-	I.C.	-	-	
G2066	-	-	I.C.	-	-	
G2211	-	-	I.C.	-	-	
99607	-	-	I.C.	-	-	

317.04: continued

Tobacco Cessation Codes

Code	NFAC	FAC	Description (<i>see</i> medicine services code spreadsheet at www.mass.gov/regulations/101-CMR-31700-medicine)
99407	\$58.08	\$54.04	
99407 SA	\$58.08	\$54.04	
99407 TD	\$49.37	\$45.93	
99407 U1	\$49.37	\$45.93	
99407 TF	\$87.12	\$81.06	
99407 U2	\$74.05	\$68.90	
99407 HQ	\$37.03	\$34.45	
99407 U3	\$31.47	\$29.28	

Behavioral Health and Developmental Screening Services

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> medicine services code spreadsheet at www.mass.gov/regulations/101-CMR-31700-medicine)
96110 U1	-	-	\$10.27	-	-	
96110 U2	-	-	\$10.27	-	-	
96127 U1	-	-	\$10.27	-	-	
96127 U2	-	-	\$10.27	-	-	

317.05: Severability

The provisions of 101 CMR 317.00 are severable, and if any such provision or the application of such provisions to any person or circumstances shall be held to be invalid or unconstitutional, such invalidity shall not be construed to affect the validity or constitutionality of any remaining provisions to eligible providers or circumstances other than those held invalid.

REGULATORY AUTHORITY

101 CMR 317.00: M.G.L. c. 118E.



THE COMMONWEALTH OF MASSACHUSETTS

William Francis Galvin

Secretary of the Commonwealth

Regulation Filing *To be completed by filing agency*CHAPTER NUMBER: **101 CMR 318.00**CHAPTER TITLE: **Rates for Radiology Services**AGENCY: **Executive Office of Health and Human Services**SUMMARY OF REGULATION: *State the general requirements and purposes of this regulation.***101 CMR 318.00 governs the payment rates used by all governmental units for radiology care and services provided to publicly aided patients.**REGULATORY AUTHORITY: **M.G.L. c. 118E**AGENCY CONTACT: **Deborah Briggs, MassHealth Publications** PHONE: **617-847-3302**ADDRESS: **100 Hancock Street, 6th floor, Quincy, MA 02171****Compliance with M.G.L. c. 30A**EMERGENCY ADOPTION - *if this regulation is adopted as an emergency, state the nature of the emergency.*PRIOR NOTIFICATION AND/OR APPROVAL - *If prior notification to and/or approval of the Governor, Legislature or others was required, list each notification, and/or approval and date, including notice to the Local Government Advisory Commission.***Executive Order 145 notifications: 3/25/21****Executive Order 562 approval: 7/2/21**PUBLIC REVIEW - *M.G.L. c. 30A sections 2 and/or 3 requires notice of the hearing or comment period, including a small business impact statement, be filed with the Secretary of the Commonwealth, published in appropriate newspapers, and sent to persons to whom specific notice must be given at least 21 days prior to such hearing or comment period.*Date of public hearing or comment period: **5/7/21**

FISCAL EFFECT - *Estimate the fiscal effect of the public and private sectors.*

For the first and second year: \$402,000 estimated annual aggregate increase (along w/ 101 CMR 316 & 317)

For the first five years: _____

No fiscal effect: _____

SMALL BUSINESS IMPACT - *M.G.L. c. 30A section 5 requires each agency to file an amended small business impact statement with the Secretary of the Commonwealth prior to the adoption of a proposed regulation. If the purpose of this regulation is to set rates for the state, this section does not apply.*

Date amended small business impact statement was filed: _____

CODE OF MASSACHUSETTS REGULATIONS INDEX - *List key subjects that are relevant to this regulation:*

PROMULGATION - *State the action taken by this regulation and its effect on existing provisions of the Code of Massachusetts Regulations (CMR) or repeal, replace or amend. List by CMR number:*

101 CMR 318.00 is being amended.

ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.* ATTEST:

SIGNATURE: SIGNATURE ON FILE DATE: Jul 9 2021

Publication - *To be completed by the Regulations Division*

MASSACHUSETTS REGISTER NUMBER: 1448 DATE: 07/23/2021

EFFECTIVE DATE: 07/23/2021

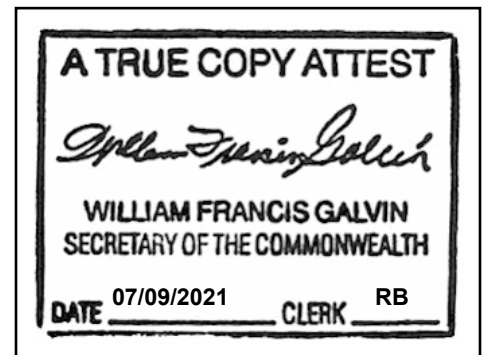
CODE OF MASSACHUSETTS REGULATIONS

Remove these pages:

750.3 - 750.26

Insert these pages:

750.3 - 750.22



101 CMR 318.00: RATES FOR RADIOLOGY SERVICES

Section

- 318.01: General Provisions
- 318.02: General Definitions
- 318.03: General Rate Provisions
- 318.04: Maximum Allowable Fees - Radiology Services
- 318.05: Severability

318.01: General Provisions

- (1) Scope, Purpose, and Effective Date. 101 CMR 318.00 governs the payment rates used by all governmental units for radiology care and services provided to publicly aided patients. Rates for services provided to individuals covered by M.G.L. c. 152 (the Workers' Compensation Act) are not set forth in 101 CMR 318.00, but are at 114.3 CMR 40.00: *Rates for Services under M.G.L. c. 152, Worker's Compensation Act.*
- (2) Applicable Dates of Service. Rates contained in 101 CMR 318.00 apply for dates of service on or after August 1, 2021, except as otherwise noted.
- (3) Coverage.
 - (a) Payment rates in 101 CMR 318.00 are used to pay for radiology services rendered to patients in a private medical office, licensed clinic, hospital, or other inpatient or outpatient facility or department, independent diagnostic testing facility, patient's residence, or other appropriate setting by an individual eligible provider, when an eligible provider bills for the medical services rendered and no other payment method applies.
 - (b) The rates of payment under 101 CMR 318.00 are full compensation for patient care rendered to publicly aided patients as well as for any related administrative or supervisory duties in connection with patient care. The rates of payment also reimburse all overhead expenses associated with the service provided, without regard to where the care is rendered.
- (4) Disclaimer of Authorization of Services. 101 CMR 318.00 is not authorization for or approval of the procedures for which rates are determined pursuant to 101 CMR 318.00. Governmental units that purchase care are responsible for the definition, authorization, coverage policies, and approval of care and services provided to publicly aided patients.
- (5) Coding Updates and Corrections. EOHHS may publish procedure code updates and corrections in the form of an administrative bulletin. Updates may reference coding systems including, but not limited to, the American Medical Association's *Current Procedural Terminology (CPT)*.
 - (a) The publication of such updates and corrections will list
 1. codes for which the code numbers change, with the corresponding cross-references between the new codes and the codes being replaced. Rates for such updated codes are set at the rate of the code that is being replaced;
 2. deleted codes for which there are no corresponding new codes; and
 3. codes for entirely new services that require pricing. EOHHS will list these codes and apply Individual Consideration (I.C.) reimbursement for these codes until appropriate rates can be developed.
 - (b) For entirely new codes that require new pricing and have Medicare assigned relative value units (RVUs) (or, for applicable services, Medicare rates), EOHHS may list these codes and price them according to the appropriate rate methodology used in setting physician rates. When Medicare RVUs (or, for applicable services, Medicare rates) are not available, EOHHS may apply individual consideration in reimbursing for these new codes until appropriate rates can be developed.
- (6) Administrative Bulletins. EOHHS may issue administrative bulletins to add, delete, or otherwise update codes or modifiers, and to clarify its policy on and understanding of substantive provisions of 101 CMR 318.00. EOHHS may also issue administrative bulletins to clarify to which duly licensed or certified health care professionals or students the rate methods in this regulation apply.

318.02: General Definitions

The five-digit procedure codes and two-digit modifiers included in 101 CMR 318.00, and their corresponding descriptions, utilize the Healthcare Common Procedure Code System (HCPCS) for Level I and Level II coding. Level I CPT-4 codes are obtained from the Physicians' 2020 *Current Procedural Terminology* (CPT), copyright 2019 by the American Medical Association (AMA), unless otherwise specified. Level II codes are obtained from the 2020 HCPCS, maintained jointly by the Centers for Medicare and Medicaid Services (CMS), the Blue Cross and Blue Shield Association, and the Health Insurance Association of America. HCPCS is a listing of descriptive terms and identifying codes and modifiers for reporting medical services and procedures performed by physicians and other health care professionals, as well as associated nonphysician services. No fee schedules, basic unit value, relative value guides, conversion factors, or scales are included in any part of the Physicians' *Current Procedural Terminology*. For code descriptions, *see* the radiology services code spreadsheet on the EOHHS rates website: www.mass.gov/regulations/101-CMR-31800-radiology.

In addition, terms used in 101 CMR 318.00 have the meanings set forth in 101 CMR 318.02.

Eligible Provider. The established rates apply in accordance with 101 CMR 318.01 to the following types of providers who meet conditions of participation of the governmental unit purchasing such services, and to the extent specified by such governmental unit. Eligible providers must provide such services in accordance with accepted professional standards and in accordance with state licensing requirements and certification by national credentialing bodies as required by law.

- (a) A licensed physician (other than an intern, resident, fellow, or house officer), licensed podiatrist, licensed dentist, licensed chiropractor, and licensed optometrist.
- (b) A provider of therapeutic and diagnostic radiology services. Such radiology services may be rendered by eligible providers such as, but not limited to, independent diagnostic testing facilities (IDTFs). These eligible providers must be independent of a hospital or a physician's office.
- (c) A provider of radiation oncology services. Radiation oncology services may be rendered by eligible providers such as, but not limited to, independent radiation oncology centers. These eligible providers must be independent of a hospital or a physician's office.
- (d) A clinic licensed by the Massachusetts Department of Public Health in accordance with 105 CMR 140.000: *Licensure of Clinics* to provide radiology services.
- (e) A freestanding birth center facility that is not operating under a hospital's license, and is licensed as a birth center by the Massachusetts Department of Public Health pursuant to 105 CMR 142.000: *The Operation and Maintenance of Birth Centers*.
- (f) An advanced practice registered nurse who is authorized by the Board of Registration in Nursing to practice as a certified nurse practitioner, certified nurse midwife, clinical nurse specialist, psychiatric clinical nurse specialist, or a certified registered nurse anesthetist (CRNA).
- (g) A licensed physician assistant who is authorized by the Board of Registration for Physician Assistants to practice as a physician assistant.

EOHHS. The Executive Office of Health and Human Services established under M.G.L. c. 6A.

Governmental Unit. The Commonwealth, any department, agency, board, or commission of the Commonwealth and any political subdivision of the Commonwealth.

Individual Consideration (I.C.). Radiology services that are authorized but not listed in 101 CMR 318.00, radiology services performed in unusual circumstances, and services designated "I.C." are individually considered items. The governmental unit or purchaser analyzes the eligible provider's report of services rendered and charges submitted under the appropriate unlisted services or procedures category. The governmental unit or purchaser determines appropriate payment for procedures designated I.C. in accordance with the following standards and criteria:

- (a) the amount of time required to perform the service;
- (b) the degree of skill required to perform the service;
- (c) the severity or complexity of the patient's disease, disorder, or disability;
- (d) any applicable relative value studies;
- (e) any complications or other circumstances that may be deemed relevant;

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- (f) the policies, procedures, and practices of other third-party insurers;
- (g) the payment rate for prescribed drugs as set forth in 101 CMR 331.00: *Prescribed Drugs*; and
- (h) a copy of the current invoice from the supplier.

Modifiers. Listed services and procedures may be modified under certain circumstances. When applicable, the modifying circumstances should be identified by the addition of the appropriate two-digit number.

Publicly Aided Individual (or Publicly Aided Patient). A person who receives health care and services for which a governmental unit is in whole or in part liable under a statutory program of public assistance.

Radiology Services. Radiology services including diagnostic ultrasound, radiation oncology, and nuclear medicine provided for the assessment and/or treatment of a medical condition, injury, or illness.

Separate Procedure. Some of the listed procedures are commonly carried out as an integral part of a total service, and as such do not warrant a separate identification. When, however, such a procedure is performed independently of, and is not immediately related to, other services, it may be listed as a separate procedure in the procedure description. Thus, when a procedure that is ordinarily a component of a larger procedure is performed alone for a specific purpose, it may be considered to be a separate procedure.

Supervision and Interpretation Only. When a procedure is performed by two eligible physicians, the radiologic portion of the procedure is designated as "radiological supervision and interpretation". When an eligible physician performs both the procedure and the imaging supervision and interpretation, a combination of procedure codes outside the 70000 series and imaging supervision and interpretation codes are to be used. The radiological supervision and interpretation codes are not applicable to the Radiology Oncology subsection.

Unlisted Procedure or Service. A service or procedure that may be provided that is covered, but not listed in 101 CMR 318.04. When reporting such a service, the appropriate "Unlisted Procedure" code may be used to indicate the service.

318.03: General Rate Provisions

(1) Rate Determination. Rates of payment for services for which 101 CMR 318.00 applies are the lowest of

- (a) the eligible provider's usual fee to patients other than publicly aided individuals;
- (b) the eligible provider's actual charge submitted; or
- (c) the schedule of allowable fees set forth in 101 CMR 318.04(3), taking into account appropriate modifiers and any other applicable rate provision(s) in accordance with 101 CMR 318.03.

(2) Supplemental Payment.

(a) Eligibility. An eligible provider who is a physician, certified nurse practitioner, physician assistant, or CRNA is eligible for a supplemental payment for services to publicly aided individuals eligible under Titles XIX and XXI of the Social Security Act if the following conditions are met:

1. the eligible provider is employed by a nonprofit group practice that was established in accordance with St.1997, c.163 and is affiliated with a Commonwealth-owned medical school;
2. such nonprofit group practice must have been established on or before January 1, 2000, in order to support the purposes of a teaching hospital affiliated with and appurtenant to a Commonwealth-owned medical school; and
3. the services are provided at a teaching hospital affiliated with and appurtenant to a Commonwealth-owned medical school.

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- (b) Payment Method. This supplemental payment may not exceed the difference between
 - 1. payments to the eligible provider made pursuant to the rates applicable under 101 CMR 316.03(1), 317.03(1) and 318.03(1); and
 - 2. the federal upper payment established by the Centers for Medicare & Medicaid Services.
- (3) The sum of the professional and technical components of an individual procedure will not be greater than the allowable global fee set forth in 101 CMR 318.04(3).
- (4) Allowable Fee for Certain Eligible Providers. Payment for services provided by eligible providers who are certified nurse practitioners, certified nurse midwives, psychiatric clinical nurse specialists, clinical nurse specialists, and physician assistants as specified in 101 CMR 318.02, is 85% of the fees contained in 101 CMR 318.04.
- (5) CPT Category III Codes. All radiology-related CPT category III codes are included as a part of 101 CMR 318.00 and have an assigned fee of I.C.

318.04: Maximum Allowable Fees - Radiology Services

- (1) Unless otherwise specified, guidelines, notes, and definitions provided in the 2020 CPT Coding Handbook are applicable to the use of the procedure codes and modifiers listed below, as well as their corresponding descriptions. For code descriptions, *see* the radiology services code spreadsheet at: www.mass.gov/regulations/101-CMR-31800-radiology.
- (2) Modifiers.
 - (a) 26: Professional Component. The component of a service or procedure representing the physician's or other qualified health care professional's work interpreting or performing the service or procedure. (When the physician or other qualified health care professional component is reported separately, the addition of modifier 26 to the procedure code will allow payment of the professional component allowable fee (PC Fee) contained in 101 CMR 318.04(3), adjusted by 101 CMR 318.03 as applicable.)
 - (b) 51: Multiple Procedures. Most radiology services do not require modifier 51. Modifier 51 applies only to nuclear medicine procedure codes 78306, 78320, 78802, 78803, 78806 and 78807 and should be used only when a whole body bone, tumor, or infection study is performed on the same day prior to a SPECT bone, tumor, or infection study, respectively. Under these circumstances, the modifier must be used to report multiple procedures performed at the same session. The service code for the major procedure or service must be reported without a modifier. The secondary, additional, or lesser procedure(s) must be identified by adding modifier 51 to the end of the service code for the secondary procedure(s). (The addition of modifier 51 to the second and subsequent procedure codes allows payment of 50% of the allowable fee contained in 101 CMR 318.04(3), adjusted by 101 CMR 318.03 as applicable, to the eligible provider. Note: This modifier should not be used with designated "add-on" codes or with codes in which the narrative begins with "each additional".)
 - (c) 52: Reduced Services. Under certain circumstances, a service or procedure is partially reduced or eliminated at the physician's or other qualified health care professional's election. Under these circumstances, the service provided can be identified by its usual procedure number and addition of modifier 52, signifying that the service is reduced. This provides a means of reporting reduced services without disturbing the identification of the basic service.
 - (d) 59: Distinct Procedural Service. To identify a procedure distinct or independent from other services performed on the same day, add modifier 59 to the end of the appropriate service code. Modifier 59 is used to identify services/procedures that are not normally reported together, but are appropriate under certain circumstances, for example, different site or organ system. However, when another already established modifier is appropriate, it should be used rather than modifier 59.

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- (e) PA: Surgical or Other Invasive Procedure Performed on the Wrong Body Part. This modifier is applied to report Provider Preventable Conditions in accordance with 42 CFR 447.26 and results in nonpayment for services.
- (f) PB: Surgical or Other Invasive Procedure Performed on the Wrong Patient. This modifier is applied to report Provider Preventable Conditions in accordance with 42 CFR 447.26 and results in nonpayment for services.
- (g) PC: Wrong Surgical or Other Invasive Procedure Performed on a Patient. This modifier is applied to report Provider Preventable Conditions in accordance with 42 CFR 447.26 and results in nonpayment for services.
- (h) SA: Nurse Practitioner Rendering Service in Collaboration with a Physician. This modifier is to be applied to service codes billed by a physician that were performed by a certified nurse practitioner employed by the physician (the physician employer must be practicing as an individual and not practicing as a professional corporation or as a member of a group practice). A certified nurse practitioner billing under his/her own individual provider number, or a group practice, should not use this modifier.
- (i) TC: Technical Component. The component of a service or procedure representing the cost of rent, equipment, utilities, supplies, administrative and technical salaries and benefits, and other overhead expenses of the service or procedures, excluding the physician's or other qualified health care professional's professional component. (When the technical component is reported separately, the addition of modifier TC to the procedure code will allow payment of the technical component allowable fee (TC Fee) contained in 101 CMR 318.04(3), adjusted by 101 CMR 318.03 as applicable.)
- (j) XE: Separate Encounter. A service that is distinct because it occurred during a separate encounter.
- (k) XS: Separate Structure. A service that is distinct because it was performed on a separate organ/structure.
- (l) XP: Separate Practitioner. A service that is distinct because it was performed by a different practitioner.
- (m) XU: Unusual Non-overlapping Service. The use of a service that is distinct because it does not overlap usual components of the main service.

- (3) Fee Schedule.
 - (a) NFAC – "Non-facility". These amounts apply when the service is performed in a nonfacility setting.
 - (b) FAC – "Facility". These amounts, also known as the Facility Setting Fee, apply when the service is performed in a facility setting.
 - (c) Global Fee. These amounts apply when no site of service differential rate is specified.

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> radiology services code spreadsheet at www.mass.gov/regulations/101-CMR-31800-radiology)
70010	-	-	\$46.52	-	-	
70015	-	-	\$130.09	\$45.79	\$84.30	
70030	-	-	\$24.71	\$6.49	\$18.21	
70100	-	-	\$29.32	\$7.05	\$22.27	
70110	-	-	\$33.79	\$9.78	\$24.01	
70120	-	-	\$29.32	\$7.05	\$22.27	
70130	-	-	\$47.72	\$13.28	\$34.45	
70134	-	-	\$45.16	\$13.61	\$31.55	
70140	-	-	\$24.95	\$7.89	\$17.06	
70150	-	-	\$36.66	\$10.33	\$26.33	
70160	-	-	\$29.06	\$6.78	\$22.27	
70170	-	-	-	\$11.39	\$187.19	
70190	-	-	\$30.70	\$8.71	\$21.98	

318.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> radiology services code spreadsheet at www.mass.gov/regulations/101-CMR-31800-radiology)
70200	-	-	\$37.19	\$10.86	\$26.33	
70210	-	-	\$24.71	\$6.78	\$17.92	
70220	-	-	\$29.22	\$8.69	\$20.53	
70240	-	-	\$26.69	\$7.60	\$19.08	
70250	-	-	\$28.45	\$7.92	\$20.53	
70260	-	-	\$35.16	\$11.15	\$24.01	
70300	-	-	\$10.97	\$4.35	\$6.62	
70310	-	-	\$31.40	\$5.94	\$25.46	
70320	-	-	\$44.58	\$8.98	\$35.60	
70328	-	-	\$26.71	\$7.05	\$19.66	
70330	-	-	\$41.35	\$9.51	\$31.84	
70332	-	-	\$64.87	\$20.86	\$44.01	
70336	-	-	\$298.41	\$56.87	\$241.54	
70350	-	-	\$13.69	\$7.07	\$6.62	
70355	-	-	\$15.07	\$8.16	\$6.91	
70360	-	-	\$24.39	\$7.05	\$17.35	
70370	-	-	\$71.29	\$11.34	\$59.95	
70371	-	-	\$85.44	\$32.74	\$52.70	
70380	-	-	\$28.77	\$6.49	\$22.27	
70390	-	-	\$90.52	\$14.63	\$75.89	
70450	-	-	\$91.84	\$32.76	\$59.08	
70460	-	-	\$129.99	\$43.37	\$86.62	
70470	-	-	\$152.50	\$48.78	\$103.72	
70480	-	-	\$139.14	\$49.05	\$90.09	
70481	-	-	\$179.26	\$43.37	\$135.89	
70482	-	-	\$194.77	\$48.49	\$146.28	
70486	-	-	\$111.26	\$33.05	\$78.21	
70487	-	-	\$133.18	\$43.37	\$89.80	
70488	-	-	\$162.64	\$48.78	\$113.86	
70490	-	-	\$130.74	\$49.34	\$81.40	
70491	-	-	\$161.50	\$53.15	\$108.35	
70492	-	-	\$195.27	\$62.57	\$132.70	
70496	-	-	\$213.45	\$67.18	\$146.28	
70498	-	-	\$213.45	\$67.18	\$146.28	
70540	-	-	\$277.15	\$51.48	\$225.67	
70542	-	-	\$431.34	\$62.57	\$368.77	
70543	-	-	\$471.81	\$82.14	\$389.67	
70544	-	-	\$295.37	\$46.06	\$249.31	
70545	-	-	\$317.29	\$46.06	\$271.23	
70546	-	-	\$488.62	\$57.16	\$431.46	
70547	-	-	\$296.18	\$46.35	\$249.83	
70548	-	-	\$350.24	\$57.69	\$292.55	
70549	-	-	\$501.87	\$69.37	\$432.50	
70551	-	-	\$265.46	\$57.16	\$208.30	
70552	-	-	\$331.04	\$68.55	\$262.49	
70553	-	-	\$465.47	\$88.08	\$377.39	
70554	-	-	\$370.32	\$81.07	\$289.25	
70555	-	-	-	\$96.74	-	

318.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> radiology services code spreadsheet at www.mass.gov/regulations/101-CMR-31800-radiology)
70557	-	-	-	\$123.41	\$386.60	
70558	-	-	-	\$132.71	\$146.32	
70559	-	-	-	\$126.37	\$146.32	
71045	-	-	\$20.34	\$7.05	\$13.29	
71046	-	-	\$26.03	\$8.40	\$17.63	
71047	-	-	\$32.87	\$10.60	\$22.27	
71048	-	-	\$35.67	\$12.53	\$23.14	
71100	-	-	\$28.35	\$8.69	\$19.66	
71101	-	-	\$32.58	\$10.31	\$22.27	
71110	-	-	\$34.27	\$11.42	\$22.85	
71111	-	-	\$40.86	\$12.50	\$28.36	
71120	-	-	\$26.08	\$7.87	\$18.21	
71130	-	-	\$31.83	\$8.69	\$23.14	
71250	-	-	\$125.86	\$44.46	\$81.40	
71260	-	-	\$156.63	\$47.99	\$108.64	
71270	-	-	\$185.56	\$52.86	\$132.70	
71271	-	-	\$209.27	\$41.23	\$168.04	
71275	-	-	\$216.18	\$69.90	\$146.28	
71550	-	-	\$333.21	\$56.34	\$276.87	
71551	-	-	\$621.66	\$66.36	\$555.30	
71552	-	-	\$538.57	\$86.21	\$452.36	
71555	-	-	\$370.10	\$68.77	\$301.33	
72020	-	-	\$19.23	\$6.23	\$13.00	
72040	-	-	\$30.38	\$8.69	\$21.69	
72050	-	-	\$40.40	\$10.60	\$29.81	
72052	-	-	\$47.58	\$11.68	\$35.89	
72070	-	-	\$25.21	\$7.87	\$17.35	
72072	-	-	\$30.65	\$8.95	\$21.69	
72074	-	-	\$34.37	\$9.49	\$24.88	
72080	-	-	\$27.22	\$8.42	\$18.79	
72081	-	-	\$33.18	\$10.33	\$22.85	
72082	-	-	\$54.17	\$12.48	\$41.69	
72083	-	-	\$63.06	\$14.12	\$48.94	
72084	-	-	\$74.80	\$16.00	\$58.79	
72100	-	-	\$30.38	\$8.69	\$21.69	
72110	-	-	\$38.69	\$10.04	\$28.65	
72114	-	-	\$47.58	\$11.68	\$35.89	
72120	-	-	\$31.54	\$8.69	\$22.85	
72125	-	-	\$124.22	\$38.48	\$85.75	
72126	-	-	\$156.10	\$46.88	\$109.22	
72127	-	-	\$184.38	\$48.78	\$135.60	
72128	-	-	\$124.22	\$38.48	\$85.75	
72129	-	-	\$157.26	\$46.88	\$110.38	
72130	-	-	\$184.67	\$48.78	\$135.89	
72131	-	-	\$123.64	\$38.48	\$85.17	
72132	-	-	\$156.39	\$46.88	\$109.51	
72133	-	-	\$183.51	\$48.49	\$135.02	
72141	-	-	\$263.11	\$57.16	\$205.95	

318.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> radiology services code spreadsheet at www.mass.gov/regulations/101-CMR-31800-radiology)
72142	-	-	\$436.30	\$68.84	\$367.46	
72146	-	-	\$263.24	\$57.16	\$206.08	
72147	-	-	\$435.23	\$68.55	\$366.68	
72148	-	-	\$263.11	\$57.16	\$205.95	
72149	-	-	\$434.44	\$68.55	\$365.89	
72156	-	-	\$466.25	\$88.08	\$378.17	
72157	-	-	\$466.51	\$88.08	\$378.43	
72158	-	-	\$465.86	\$88.08	\$377.78	
72159	-	-	\$379.29	\$69.37	\$309.92	
72170	-	-	\$22.68	\$6.78	\$15.90	
72190	-	-	\$32.34	\$9.78	\$22.56	
72191	-	-	\$215.05	\$68.77	\$146.28	
72192	-	-	\$115.60	\$41.73	\$73.86	
72193	-	-	\$190.78	\$44.46	\$146.32	
72194	-	-	\$193.15	\$46.88	\$146.28	
72195	-	-	\$296.77	\$56.34	\$240.43	
72196	-	-	\$442.99	\$66.65	\$376.34	
72197	-	-	\$480.76	\$84.04	\$396.72	
72198	-	-	\$371.26	\$68.21	\$303.05	
72200	-	-	\$25.58	\$6.78	\$18.79	
72202	-	-	\$30.36	\$8.95	\$21.40	
72220	-	-	\$25.00	\$6.78	\$18.21	
72240	-	-	\$88.50	\$35.22	\$53.28	
72255	-	-	\$89.82	\$36.53	\$53.28	
72265	-	-	\$81.74	\$31.36	\$50.39	
72270	-	-	\$112.35	\$51.82	\$60.53	
72275	-	-	\$104.81	\$30.37	\$74.44	
72285	-	-	\$96.83	\$45.57	\$51.26	
72295	-	-	\$85.22	\$32.81	\$52.42	
73000	-	-	\$25.02	\$6.52	\$18.50	
73010	-	-	\$22.10	\$7.07	\$15.03	
73020	-	-	\$16.93	\$5.96	\$10.97	
73030	-	-	\$26.42	\$7.34	\$19.08	
73040	-	-	\$96.75	\$21.15	\$75.60	
73050	-	-	\$24.97	\$7.34	\$17.63	
73060	-	-	\$25.02	\$6.52	\$18.50	
73070	-	-	\$22.70	\$6.52	\$16.19	
73080	-	-	\$24.71	\$6.78	\$17.92	
73085	-	-	\$90.57	\$22.51	\$68.07	
73090	-	-	\$22.99	\$6.52	\$16.48	
73092	-	-	\$24.15	\$6.23	\$17.92	
73100	-	-	\$26.18	\$6.52	\$19.66	
73110	-	-	\$31.08	\$6.78	\$24.30	
73115	-	-	\$101.68	\$21.73	\$79.95	
73120	-	-	\$24.15	\$6.52	\$17.63	
73130	-	-	\$27.90	\$6.78	\$21.11	
73140	-	-	\$28.57	\$5.43	\$23.14	
73200	-	-	\$128.57	\$38.48	\$90.09	

318.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> radiology services code spreadsheet at www.mass.gov/regulations/101-CMR-31800-radiology)
73201	-	-	\$178.32	\$44.46	\$133.86	
73202	-	-	\$193.15	\$46.88	\$146.28	
73206	-	-	\$215.05	\$68.77	\$146.28	
73218	-	-	\$312.99	\$52.06	\$260.93	
73219	-	-	\$461.80	\$62.86	\$398.94	
73220	-	-	\$507.37	\$82.43	\$424.94	
73221	-	-	\$265.83	\$52.84	\$212.99	
73222	-	-	\$591.26	\$62.86	\$528.40	
73223	-	-	\$496.52	\$82.43	\$414.09	
73225	-	-	\$380.30	\$66.94	\$313.36	
73501	-	-	\$25.26	\$7.34	\$17.92	
73502	-	-	\$36.18	\$8.69	\$27.49	
73503	-	-	\$44.75	\$10.60	\$34.16	
73521	-	-	\$31.83	\$8.69	\$23.14	
73522	-	-	\$41.51	\$11.42	\$30.10	
73523	-	-	\$47.26	\$12.24	\$35.02	
73525	-	-	\$98.98	\$22.79	\$76.18	
73551	-	-	\$23.28	\$6.52	\$16.77	
73552	-	-	\$27.58	\$7.05	\$20.53	
73560	-	-	\$26.76	\$6.52	\$20.24	
73562	-	-	\$31.35	\$7.34	\$24.01	
73564	-	-	\$35.02	\$8.69	\$26.33	
73565	-	-	\$31.11	\$6.81	\$24.30	
73580	-	-	\$109.70	\$22.22	\$87.49	
73590	-	-	\$24.44	\$6.23	\$18.21	
73592	-	-	\$24.15	\$6.23	\$17.92	
73600	-	-	\$25.31	\$6.52	\$18.79	
73610	-	-	\$27.90	\$6.78	\$21.11	
73615	-	-	\$103.03	\$22.51	\$80.53	
73620	-	-	\$22.12	\$5.94	\$16.19	
73630	-	-	\$26.16	\$6.49	\$19.66	
73650	-	-	\$22.41	\$6.23	\$16.19	
73660	-	-	\$22.49	\$5.14	\$17.35	
73700	-	-	\$123.64	\$38.48	\$85.17	
73701	-	-	\$154.84	\$44.46	\$110.38	
73702	-	-	\$186.82	\$46.59	\$140.24	
73706	-	-	\$218.30	\$72.03	\$146.28	
73718	-	-	\$290.63	\$51.77	\$238.86	
73719	-	-	\$330.25	\$62.57	\$267.68	
73720	-	-	\$479.65	\$82.14	\$397.51	
73721	-	-	\$265.05	\$52.06	\$212.99	
73722	-	-	\$592.17	\$62.86	\$529.31	
73723	-	-	\$496.39	\$82.43	\$413.96	
73725	-	-	\$371.39	\$69.03	\$302.36	
74018	-	-	\$23.23	\$7.05	\$16.19	
74019	-	-	\$28.62	\$8.95	\$19.66	
74021	-	-	\$33.16	\$10.31	\$22.85	
74022	-	-	\$38.54	\$12.21	\$26.33	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

318.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> radiology services code spreadsheet at www.mass.gov/regulations/101-CMR-31800-radiology)
74150	-	-	\$118.49	\$45.79	\$72.70	
74160	-	-	\$195.39	\$49.07	\$146.32	
74170	-	-	\$200.16	\$53.88	\$146.28	
74174	-	-	\$324.38	\$83.95	\$240.43	
74175	-	-	\$215.89	\$69.61	\$146.28	
74176	-	-	\$158.45	\$66.91	\$91.54	
74177	-	-	\$261.97	\$70.19	\$191.78	
74178	-	-	\$294.55	\$76.97	\$217.58	
74181	-	-	\$284.10	\$56.34	\$227.76	
74182	-	-	\$371.04	\$66.65	\$304.39	
74183	-	-	\$409.75	\$84.04	\$325.71	
74185	-	-	\$373.61	\$68.50	\$305.11	
74190	-	-	-	\$17.82	\$386.60	
74210	-	-	\$75.47	\$22.76	\$52.70	
74220	-	-	\$76.89	\$23.03	\$53.86	
74221	-	-	\$86.79	\$26.84	\$59.95	
74230	-	-	\$104.06	\$20.35	\$83.72	
74235	-	-	-	\$45.79	-	
74240	-	-	\$96.02	\$31.14	\$64.88	
74246	-	-	\$110.56	\$34.66	\$75.89	
74248	-	-	\$65.39	\$26.84	\$38.55	
74250	-	-	\$96.57	\$31.41	\$65.17	
74251	-	-	\$191.29	\$44.97	\$146.32	
74261	-	-	\$182.25	\$92.16	\$90.09	
74262	-	-	\$242.29	\$95.97	\$146.32	
74263	-	-	\$606.91	\$88.19	\$518.72	
74270	-	-	\$122.96	\$39.83	\$83.14	
74280	-	-	\$177.45	\$48.23	\$129.22	
74283	-	-	\$197.47	\$79.85	\$117.63	
74290	-	-	\$66.08	\$12.21	\$53.86	
74300	-	-	-	\$13.81	-	
74301	-	-	-	\$8.13	-	
74328	-	-	-	\$27.42	-	
74329	-	-	-	\$27.42	-	
74330	-	-	-	\$35.24	-	
74340	-	-	-	\$20.86	-	
74355	-	-	-	\$29.50	-	
74360	-	-	-	\$21.64	-	
74363	-	-	-	\$33.55	-	
74400	-	-	\$103.00	\$18.71	\$84.30	
74410	-	-	\$104.74	\$18.42	\$86.33	
74415	-	-	\$122.71	\$18.71	\$104.01	
74420	-	-	\$58.87	\$19.50	\$39.37	
74425	-	-	\$104.69	\$19.24	\$85.46	
74430	-	-	\$31.88	\$12.21	\$19.66	
74440	-	-	\$74.04	\$14.09	\$59.95	
74445	-	-	-	\$42.28	\$90.09	
74450	-	-	-	\$12.48	\$187.19	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

318.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> radiology services code spreadsheet at www.mass.gov/regulations/101-CMR-31800-radiology)
74455	-	-	\$78.51	\$12.48	\$66.04	
74470	-	-	-	\$20.28	\$386.60	
74485	-	-	\$90.24	\$30.87	\$59.37	
74710	-	-	\$31.49	\$13.28	\$18.21	
74712	-	-	\$340.28	\$114.94	\$225.34	
74713	-	-	\$212.15	\$71.28	\$140.87	
74740	-	-	\$72.55	\$14.63	\$57.92	
74742	-	-	-	\$23.58	-	
74775	-	-	-	\$23.85	\$187.19	
75557	-	-	\$296.43	\$88.89	\$207.54	
75559	-	-	\$457.20	\$109.16	\$348.04	
75561	-	-	\$409.25	\$97.84	\$311.41	
75563	-	-	\$553.55	\$113.00	\$440.55	
75565	-	-	\$50.73	\$9.49	\$41.24	
75571	-	-	\$83.90	\$22.21	\$61.69	
75572	-	-	\$198.43	\$66.64	\$131.78	
75573	-	-	\$243.53	\$97.29	\$146.23	
75574	-	-	\$237.07	\$90.80	\$146.28	
75600	-	-	\$162.15	\$19.01	\$143.13	
75605	-	-	\$103.12	\$42.01	\$61.11	
75625	-	-	\$109.22	\$53.33	\$55.89	
75630	-	-	\$133.60	\$74.52	\$59.08	
75635	-	-	\$236.98	\$90.71	\$146.28	
75705	-	-	\$198.52	\$89.05	\$109.47	
75710	-	-	\$128.86	\$65.72	\$63.14	
75716	-	-	\$137.40	\$72.85	\$64.54	
75726	-	-	\$145.10	\$75.00	\$70.10	
75731	-	-	\$130.21	\$43.93	\$86.28	
75733	-	-	\$140.47	\$49.02	\$91.45	
75736	-	-	\$119.89	\$41.43	\$78.46	
75741	-	-	\$113.14	\$48.26	\$64.88	
75743	-	-	\$127.26	\$61.51	\$65.75	
75746	-	-	\$114.80	\$42.43	\$72.37	
75756	-	-	\$130.47	\$42.74	\$87.73	
75774	-	-	\$85.18	\$37.11	\$48.07	
75801	-	-	-	\$33.17	\$506.30	
75803	-	-	-	\$45.01	\$1,309.72	
75805	-	-	-	\$31.41	\$1,309.72	
75807	-	-	-	\$42.65	\$2,225.31	
75809	-	-	\$73.15	\$18.13	\$55.02	
75810	-	-	-	\$37.71	\$1,309.72	
75820	-	-	\$86.08	\$26.41	\$59.66	
75822	-	-	\$100.13	\$39.60	\$60.53	
75825	-	-	\$99.51	\$42.16	\$57.34	
75827	-	-	\$103.52	\$42.41	\$61.11	
75831	-	-	\$103.99	\$41.43	\$62.56	
75833	-	-	\$124.42	\$55.24	\$69.18	
75840	-	-	\$112.00	\$43.93	\$68.07	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

318.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> radiology services code spreadsheet at www.mass.gov/regulations/101-CMR-31800-radiology)
75842	-	-	\$136.17	\$57.72	\$78.46	
75860	-	-	\$109.50	\$42.88	\$66.62	
75870	-	-	\$146.01	\$48.67	\$97.34	
75872	-	-	\$112.00	\$43.93	\$68.07	
75880	-	-	\$94.91	\$26.84	\$68.07	
75885	-	-	\$118.03	\$52.00	\$66.04	
75887	-	-	\$118.90	\$52.58	\$66.33	
75889	-	-	\$107.31	\$41.28	\$66.04	
75891	-	-	\$109.05	\$42.15	\$66.91	
75893	-	-	\$92.60	\$20.77	\$71.83	
75894	-	-	-	\$54.92	-	
75898	-	-	-	\$68.93	\$1,309.72	
75901	-	-	\$176.82	\$18.08	\$158.74	
75902	-	-	\$68.42	\$14.56	\$53.86	
75956	-	-	-	\$261.22	-	
75957	-	-	-	\$223.53	-	
75958	-	-	-	\$148.26	-	
75959	-	-	-	\$130.34	-	
75970	-	-	-	\$30.49	-	
75984	-	-	\$78.83	\$26.70	\$52.13	
75989	-	-	\$96.09	\$44.83	\$51.26	
76000	-	-	\$33.28	\$11.88	\$21.40	
76010	-	-	\$22.94	\$7.05	\$15.90	
76080	-	-	\$46.90	\$19.99	\$26.91	
76098	-	-	\$34.17	\$12.19	\$21.98	
76100	-	-	\$78.01	\$23.86	\$54.15	
76101	-	-	\$78.27	\$20.69	\$57.59	
76102	-	-	\$114.28	\$24.24	\$90.05	
76120	-	-	\$87.58	\$14.58	\$72.99	
76125	-	-	-	\$10.31	-	
76140	-	-	I.C.	-	-	
76145	-	-	\$703.38	-	-	
76376	-	-	\$18.26	\$7.58	\$10.68	
76377	-	-	\$56.63	\$30.59	\$26.04	
76380	-	-	\$113.94	\$37.08	\$76.86	
76390	-	-	\$422.96	\$54.26	\$368.70	
76391	-	-	\$256.61	\$42.87	\$213.74	
76496	-	-	-	-	\$64.01	
76497	-	-	-	-	\$64.01	
76498	-	-	-	-	\$76.86	
76499	-	-	I.C.	-	-	
76506	-	-	\$92.38	\$24.60	\$67.78	
76510	-	-	\$72.39	\$37.07	\$35.31	
76511	-	-	\$49.06	\$27.95	\$21.11	
76512	-	-	\$41.72	\$24.38	\$17.35	
76513	-	-	\$79.73	\$27.90	\$51.84	
76514	-	-	\$9.42	\$6.28	\$3.14	
76516	-	-	\$38.35	\$17.81	\$20.53	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

318.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> radiology services code spreadsheet at www.mass.gov/regulations/101-CMR-31800-radiology)
76519	-	-	\$53.07	\$24.13	\$28.94	
76529	-	-	\$66.62	\$25.51	\$41.11	
76536	-	-	\$93.22	\$21.68	\$71.54	
76604	-	-	\$63.00	\$22.18	\$40.82	
76641	-	-	\$85.56	\$27.93	\$57.63	
76642	-	-	\$69.74	\$26.02	\$43.72	
76700	-	-	\$98.31	\$31.41	\$66.91	
76705	-	-	\$72.86	\$22.47	\$50.39	
76706	-	-	\$91.51	\$21.12	\$70.38	
76770	-	-	\$90.46	\$28.19	\$62.27	
76775	-	-	\$46.51	\$22.21	\$24.30	
76776	-	-	\$125.64	\$29.50	\$96.14	
76800	-	-	\$113.69	\$44.75	\$68.94	
76801	-	-	\$97.29	\$38.21	\$59.08	
76802	-	-	\$49.42	\$31.74	\$17.68	
76805	-	-	\$111.78	\$38.21	\$73.57	
76810	-	-	\$72.39	\$37.95	\$34.45	
76811	-	-	\$140.18	\$72.74	\$67.44	
76812	-	-	\$157.87	\$68.11	\$89.76	
76813	-	-	\$95.96	\$45.28	\$50.68	
76814	-	-	\$61.73	\$38.01	\$23.72	
76815	-	-	\$66.91	\$24.93	\$41.98	
76816	-	-	\$90.19	\$32.56	\$57.63	
76817	-	-	\$76.23	\$28.75	\$47.49	
76818	-	-	\$93.71	\$40.18	\$53.53	
76819	-	-	\$68.94	\$29.57	\$39.37	
76820	-	-	\$36.90	\$19.26	\$17.63	
76821	-	-	\$72.05	\$26.60	\$45.46	
76825	-	-	\$219.05	\$63.21	\$155.84	
76826	-	-	\$130.48	\$31.45	\$99.03	
76827	-	-	\$58.44	\$21.96	\$36.47	
76828	-	-	\$41.10	\$21.43	\$19.66	
76830	-	-	\$98.70	\$26.57	\$72.12	
76831	-	-	\$95.44	\$27.66	\$67.78	
76856	-	-	\$87.68	\$26.28	\$61.40	
76857	-	-	\$38.34	\$18.97	\$19.37	
76870	-	-	\$84.04	\$24.38	\$59.66	
76872	-	-	\$115.84	\$25.75	\$90.09	
76873	-	-	\$139.68	\$60.31	\$79.37	
76881	-	-	\$61.79	\$24.16	\$37.63	
76882	-	-	\$45.33	\$18.71	\$26.62	
76885	-	-	\$92.49	\$28.48	\$64.01	
76886	-	-	\$84.38	\$23.85	\$60.53	
76932	-	-	-	\$26.53	-	
76936	-	-	\$214.93	\$74.45	\$140.48	
76937	-	-	\$29.03	\$11.06	\$17.97	
76940	-	-	-	\$78.97	-	
76941	-	-	-	\$51.55	-	

318.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> radiology services code spreadsheet at www.mass.gov/regulations/101-CMR-31800-radiology)
76942	-	-	\$45.13	\$24.31	\$20.82	
76945	-	-	-	\$25.51	-	
76946	-	-	\$25.35	\$14.38	\$10.97	
76948	-	-	\$60.53	\$25.51	\$35.02	
76965	-	-	\$72.96	\$52.42	\$20.53	
76975	-	-	-	\$32.12	\$187.19	
76977	-	-	\$5.58	\$2.15	\$3.43	
76978	-	-	\$262.51	\$61.99	\$200.52	
76979	-	-	\$179.03	\$33.00	\$146.03	
76981	-	-	\$86.48	\$22.76	\$63.72	
76982	-	-	\$76.92	\$22.76	\$54.15	
76983	-	-	\$47.08	\$19.26	\$27.82	
76998	-	-	-	\$48.28	-	
76999	-	-	I.C.	-	-	
77001	-	-	\$77.43	\$14.29	\$63.14	
77002	-	-	\$86.89	\$21.44	\$65.46	
77003	-	-	\$80.95	\$23.03	\$57.92	
77011	-	-	\$187.00	\$49.08	\$137.92	
77012	-	-	\$119.34	\$56.78	\$62.56	
77013	-	-	-	\$146.35	-	
77014	-	-	\$97.73	\$34.88	\$62.85	
77021	-	-	\$375.64	\$56.04	\$319.60	
77022	-	-	-	\$166.16	-	
77046	-	-	\$267.96	\$55.79	\$212.17	
77047	-	-	\$273.28	\$61.50	\$211.78	
77048	-	-	\$361.54	\$80.52	\$281.02	
77049	-	-	\$367.98	\$88.34	\$279.64	
77053	-	-	\$45.35	\$13.81	\$31.55	
77054	-	-	\$58.76	\$17.35	\$41.40	
77061	-	-	I.C.	-	-	
77062	-	-	I.C.	-	-	
77063	-	-	\$43.32	\$23.03	\$20.29	
77065	-	-	\$107.30	\$31.41	\$75.89	
77066	-	-	\$135.24	\$38.48	\$96.76	
77067	-	-	\$148.95	\$42.79	\$106.16	
77071	-	-	\$42.11	-	-	
77072	-	-	\$20.02	\$7.31	\$12.71	
77073	-	-	\$35.17	\$10.58	\$24.59	
77074	-	-	\$50.38	\$17.09	\$33.29	
77075	-	-	\$76.15	\$21.41	\$54.73	
77076	-	-	\$82.15	\$26.84	\$55.31	
77077	-	-	\$36.44	\$13.30	\$23.14	
77078	-	-	\$73.49	\$9.49	\$64.01	
77080	-	-	\$31.59	\$7.58	\$24.01	
77081	-	-	\$25.79	\$7.87	\$17.92	
77084	-	-	\$362.09	\$61.79	\$300.30	
77085	-	-	\$42.65	\$11.39	\$31.26	
77086	-	-	\$27.61	\$6.49	\$21.11	

318.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> radiology services code spreadsheet at www.mass.gov/regulations/101-CMR-31800-radiology)
77261	-	-	\$55.53	-	-	
77262	-	-	\$84.06	-	-	
77263	-	-	\$131.24	-	-	
77280	-	-	\$225.62	\$29.16	\$196.46	
77285	-	-	\$378.24	\$45.02	\$333.22	
77290	-	-	\$403.90	\$64.30	\$339.60	
77293	-	-	\$364.67	\$82.50	\$282.16	
77295	-	-	\$388.49	\$175.45	\$213.05	
77299	-	-	I.C.	-	-	
77300	-	-	\$52.83	\$25.34	\$27.49	
77301	-	-	\$1,543.26	\$326.63	\$1,216.63	
77306	-	-	\$118.85	\$57.49	\$61.35	
77307	-	-	\$229.82	\$118.75	\$111.07	
77316	-	-	\$174.94	\$57.49	\$117.45	
77317	-	-	\$229.40	\$75.43	\$153.97	
77318	-	-	\$327.36	\$118.46	\$208.90	
77321	-	-	\$75.07	\$39.47	\$35.60	
77331	-	-	\$51.01	\$35.70	\$15.32	
77332	-	-	\$37.60	\$18.51	\$19.08	
77333	-	-	\$96.81	\$30.77	\$66.04	
77334	-	-	\$101.54	\$47.38	\$54.15	
77336	-	-	\$64.94	-	-	
77338	-	-	\$387.82	\$175.45	\$212.38	
77370	-	-	\$101.24	-	-	
77371	-	-	I.C.	-	-	
77372	-	-	\$858.11	-	-	
77373	-	-	\$987.48	-	-	
77385	-	-	I.C.	-	-	
77386	-	-	I.C.	-	-	
77387	-	-	I.C.	-	-	
77399	-	-	I.C.	-	-	
77401	-	-	\$19.95	-	-	
77402	-	-	I.C.	-	-	
77407	-	-	I.C.	-	-	
77412	-	-	I.C.	-	-	
77417	-	-	\$9.23	-	-	
77423	-	-	I.C.	-	-	
77424	-	-	I.C.	-	-	
77425	-	-	I.C.	-	-	
77427	-	-	\$148.27	-	-	
77431	-	-	\$82.50	-	-	
77432	-	-	\$330.47	-	-	
77435	-	-	\$499.16	-	-	
77469	-	-	\$247.74	-	-	
77470	-	-	\$104.41	\$83.59	\$20.82	
77499	-	-	I.C.	-	-	
77520	-	-	I.C.	-	-	
77522	-	-	I.C.	-	-	

318.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> radiology services code spreadsheet at www.mass.gov/regulations/101-CMR-31800-radiology)
77523	-	-	I.C.	-	-	
77525	-	-	I.C.	-	-	
77600	-	-	\$378.00	\$55.35	\$322.65	
77605	-	-	\$689.46	\$79.30	\$610.17	
77610	-	-	\$555.43	\$53.66	\$501.77	
77615	-	-	\$869.35	\$75.70	\$793.65	
77620	-	-	\$496.21	\$65.45	\$430.76	
77750	-	-	\$302.61	\$204.29	\$98.32	
77761	-	-	\$321.26	\$157.49	\$163.78	
77762	-	-	\$423.90	\$236.15	\$187.74	
77763	-	-	\$597.05	\$354.66	\$242.39	
77767	-	-	\$193.48	\$43.28	\$150.20	
77768	-	-	\$290.54	\$57.49	\$233.05	
77770	-	-	\$270.26	\$80.06	\$190.20	
77771	-	-	\$481.53	\$155.29	\$326.24	
77772	-	-	\$726.12	\$219.49	\$506.63	
77778	-	-	\$688.25	\$358.14	\$330.12	
77789	-	-	\$102.10	\$47.41	\$54.69	
77790	-	-	\$12.42	-	-	
77799	-	-	I.C.	-	-	
78012	-	-	\$66.88	\$7.31	\$59.57	
78013	-	-	\$158.03	\$13.83	\$144.20	
78014	-	-	\$197.28	\$18.68	\$178.60	
78015	-	-	\$184.36	\$25.46	\$158.89	
78016	-	-	\$231.90	\$26.06	\$205.85	
78018	-	-	\$257.22	\$31.66	\$225.56	
78020	-	-	\$67.04	\$21.33	\$45.70	
78070	-	-	\$243.46	\$29.78	\$213.67	
78071	-	-	\$289.92	\$44.94	\$244.98	
78072	-	-	\$365.41	\$58.99	\$306.42	
78075	-	-	\$369.35	\$28.48	\$340.87	
78099	-	-	I.C.	-	-	
78102	-	-	\$139.57	\$20.30	\$119.28	
78103	-	-	\$177.54	\$26.76	\$150.78	
78104	-	-	\$204.62	\$29.78	\$174.84	
78110	-	-	\$57.03	\$6.15	\$50.88	
78111	-	-	\$60.43	\$7.24	\$53.19	
78120	-	-	\$58.38	\$7.51	\$50.88	
78121	-	-	\$63.67	\$10.47	\$53.19	
78122	-	-	\$78.42	\$16.24	\$62.18	
78130	-	-	\$102.28	\$19.62	\$82.67	
78140	-	-	\$90.69	\$19.62	\$71.07	
78185	-	-	\$140.19	\$12.89	\$127.30	
78191	-	-	\$102.28	\$19.62	\$82.67	
78195	-	-	\$290.79	\$44.65	\$246.13	
78199	-	-	I.C.	-	-	

318.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> radiology services code spreadsheet at www.mass.gov/regulations/101-CMR-31800-radiology)
78201	-	-	\$156.85	\$16.22	\$140.63	
78202	-	-	\$168.86	\$18.37	\$150.49	
78215	-	-	\$160.50	\$18.42	\$142.08	
78216	-	-	\$105.23	\$20.83	\$84.41	
78226	-	-	\$269.69	\$27.90	\$241.79	
78227	-	-	\$364.52	\$34.37	\$330.14	
78230	-	-	\$143.30	\$17.35	\$125.94	
78231	-	-	\$85.98	\$16.65	\$69.33	
78232	-	-	\$84.37	\$15.03	\$69.33	
78258	-	-	\$177.28	\$26.79	\$150.49	
78261	-	-	\$167.30	\$22.03	\$145.27	
78262	-	-	\$196.80	\$25.73	\$171.07	
78264	-	-	\$273.62	\$29.81	\$243.82	
78265	-	-	\$323.45	\$37.08	\$286.38	
78266	-	-	\$353.73	\$37.79	\$315.94	
78267	-	-	I.C.	-	-	
78268	-	-	I.C.	-	-	
78278	-	-	\$286.08	\$37.63	\$248.45	
78282	-	-	-	\$12.35	\$295.59	
78290	-	-	\$271.57	\$25.44	\$246.13	
78291	-	-	\$208.97	\$32.97	\$175.99	
78299	-	-	I.C.	-	-	
78300	-	-	\$188.34	\$23.85	\$164.49	
78305	-	-	\$228.02	\$31.65	\$196.37	
78306	-	-	\$247.28	\$32.73	\$214.54	
78315	-	-	\$284.27	\$38.72	\$245.55	
78350	-	-	\$25.74	\$8.40	\$17.35	
78351	-	-	\$11.93	-	-	
78399	-	-	I.C.	-	-	
78414	-	-	-	\$16.82	-	
78428	-	-	\$151.43	\$28.96	\$122.47	
78429	-	-	-	\$64.10	\$11.55	
78430	-	-	-	\$60.84	\$11.55	
78431	-	-	-	\$70.91	\$1,807.37	
78432	-	-	-	\$75.42	\$2,208.79	
78433	-	-	-	\$82.45	\$2,208.79	
78434	-	-	-	\$23.87	-	
78445	-	-	\$160.74	\$19.44	\$141.30	
78451	-	-	\$275.27	\$51.46	\$223.82	
78452	-	-	\$384.64	\$60.68	\$323.97	
78453	-	-	\$248.09	\$38.19	\$209.91	
78454	-	-	\$356.14	\$51.22	\$304.93	
78456	-	-	\$252.82	\$37.12	\$215.70	
78457	-	-	\$143.34	\$28.70	\$114.64	
78458	-	-	\$167.85	\$34.95	\$132.90	
78459	-	-	-	\$58.14	\$1,021.63	
78466	-	-	\$163.82	\$27.15	\$136.67	
78468	-	-	\$157.37	\$29.78	\$127.59	

101 CMR: EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

318.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> radiology services code spreadsheet at www.mass.gov/regulations/101-CMR-31800-radiology)
78469	-	-	\$182.59	\$34.71	\$147.88	
78472	-	-	\$185.92	\$37.08	\$148.84	
78473	-	-	\$235.34	\$54.42	\$180.92	
78481	-	-	\$143.02	\$37.08	\$105.94	
78483	-	-	\$195.73	\$55.00	\$140.72	
78491	-	-	-	\$56.52	\$1,158.72	
78492	-	-	-	\$66.61	\$1,158.72	
78494	-	-	\$184.15	\$44.68	\$139.48	
78496	-	-	\$34.29	\$18.68	\$15.61	
78499	-	-	I.C.	-	-	
78579	-	-	\$153.92	\$18.42	\$135.51	
78580	-	-	\$194.13	\$27.90	\$166.23	
78582	-	-	\$273.43	\$40.33	\$233.09	
78597	-	-	\$164.30	\$27.05	\$137.25	
78598	-	-	\$249.71	\$31.40	\$218.31	
78599	-	-	I.C.	-	-	
78600	-	-	\$151.06	\$16.80	\$134.26	
78601	-	-	\$178.13	\$19.24	\$158.89	
78605	-	-	\$163.88	\$20.35	\$143.53	
78606	-	-	\$271.96	\$24.09	\$247.87	
78608	-	-	-	\$54.93	\$1,158.72	
78609	-	-	\$58.56	\$58.56	-	
78610	-	-	\$143.13	\$11.39	\$131.74	
78630	-	-	\$277.95	\$25.73	\$252.22	
78635	-	-	\$278.12	\$23.58	\$254.54	
78645	-	-	\$267.25	\$21.12	\$246.13	
78650	-	-	\$226.91	\$19.62	\$207.30	
78660	-	-	\$151.22	\$20.35	\$130.87	
78699	-	-	I.C.	-	-	
78700	-	-	\$140.40	\$16.77	\$123.62	
78701	-	-	\$179.63	\$18.42	\$161.21	
78707	-	-	\$190.22	\$35.97	\$154.26	
78708	-	-	\$143.24	\$45.21	\$98.03	
78709	-	-	\$300.41	\$52.25	\$248.16	
78725	-	-	\$88.74	\$13.80	\$74.93	
78730	-	-	\$62.48	\$6.01	\$56.47	
78740	-	-	\$178.27	\$20.83	\$157.44	
78761	-	-	\$173.54	\$27.40	\$146.14	
78799	-	-	I.C.	-	-	
78800	-	-	\$212.55	\$24.58	\$187.97	
78801	-	-	\$233.39	\$27.84	\$205.56	
78802	-	-	\$256.50	\$29.49	\$227.01	
78803	-	-	\$319.17	\$40.28	\$278.89	
78804	-	-	\$543.81	\$37.87	\$505.94	
78808	-	-	\$32.51	-	-	
78811	-	-	-	\$57.88	\$1,021.63	
78812	-	-	-	\$71.13	\$1,158.72	
78813	-	-	-	\$71.34	\$1,158.72	

318.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> radiology services code spreadsheet at www.mass.gov/regulations/101-CMR-31800-radiology)
78814	-	-	-	\$81.43	\$1,158.72	
78815	-	-	-	\$91.28	\$1,158.72	
78816	-	-	-	\$92.00	\$1,158.72	
78830	-	-	\$403.64	\$55.20	\$348.45	
78831	-	-	\$584.58	\$67.34	\$517.24	
78832	-	-	\$761.47	\$78.44	\$683.03	
78835	-	-	\$84.21	\$17.31	\$66.91	
78999	-	-	I.C.	-	-	
79005	-	-	\$108.75	\$67.68	\$41.07	
79101	-	-	\$117.34	\$75.69	\$41.65	
79200	-	-	\$106.81	\$63.43	\$43.39	
79300	-	-	-	\$50.81	-	
79403	-	-	\$150.20	\$83.67	\$66.53	
79440	-	-	\$95.80	\$63.43	\$32.37	
79445	-	-	-	\$87.52	-	
79999	-	-	I.C.	-	-	
0394T	-	-	I.C.	-	-	
0395T	-	-	I.C.	-	-	
A4641	-	-	I.C.	-	-	
A9500	-	-	I.C.	-	-	
A9502	-	-	I.C.	-	-	
A9503	-	-	I.C.	-	-	
A9505	-	-	I.C.	-	-	
A9512	-	-	I.C.	-	-	
A9537	-	-	I.C.	-	-	
A9552	-	-	I.C.	-	-	
A9586	-	-	I.C.	-	-	
A9587	-	-	I.C.	-	-	
A9588	-	-	I.C.	-	-	
A9591	-	-	I.C.	-	-	
G0279	-	-	\$43.32	\$23.03	\$20.29	
G0297	-	-	\$191.42	\$39.30	\$152.12	
G6001	-	-	\$94.38	\$24.86	\$69.52	
G6002	-	-	\$60.40	\$15.81	\$44.59	
G6003	-	-	\$152.41	-	-	
G6004	-	-	\$115.31	-	-	
G6005	-	-	\$115.31	-	-	
G6006	-	-	\$115.31	-	-	
G6007	-	-	\$216.46	-	-	
G6008	-	-	\$159.07	-	-	
G6009	-	-	\$157.92	-	-	
G6010	-	-	\$157.92	-	-	
G6011	-	-	\$213.85	-	-	
G6012	-	-	\$210.96	-	-	
G6013	-	-	\$211.24	-	-	
G6014	-	-	\$211.24	-	-	
G6015	-	-	\$296.86	-	-	
G6016	-	-	\$295.88	-	-	

318.04: continued

Code	NFAC	FAC	Global	PC	TC	Description (<i>see</i> radiology services code spreadsheet at www.mass.gov/regulations/101-CMR-31800-radiology)
G6017	-	-	\$60.40	\$15.81	\$44.59	
R0075	-	-	I.C.	-	-	

318.05: Severability

The provisions of 101 CMR 318.00 are hereby declared to be severable, and if any such provisions or the application of such provisions to any person or circumstances shall be held to be invalid or unconstitutional, such invalidity shall not be construed to affect the validity or constitutionality of any remaining provisions to eligible providers or circumstances other than those held invalid.

REGULATORY AUTHORITY

101 CMR 318.00: M.G.L. c. 118E.

(PAGES 750.23 THROUGH 750.80 ARE RESERVED FOR FUTURE USE)



THE COMMONWEALTH OF MASSACHUSETTS

William Francis Galvin

Secretary of the Commonwealth

Regulation Filing *To be completed by filing agency*CHAPTER NUMBER: **118 CMR 1.00**CHAPTER TITLE: **Scope and Authority**AGENCY: **Disabled Persons Protection Commission**SUMMARY OF REGULATION: *State the general requirements and purposes of this regulation.***118 CMR 1.00 describes the scope, purpose, and authority of the operations of the Disabled Persons Protection Commission.**REGULATORY AUTHORITY: **M.G.L. c. 19C, §§ 2, 3(b), 4(b), 11 and 15**AGENCY CONTACT: **Andrew Levrault** PHONE: **(617) 727-6465**ADDRESS: **Disabled Persons Protection Commission, 300 Granite Street, Suite 404,
Braintree, MA 02184****Compliance with M.G.L. c. 30A**EMERGENCY ADOPTION - *if this regulation is adopted as an emergency, state the nature of the emergency.*PRIOR NOTIFICATION AND/OR APPROVAL - *If prior notification to and/or approval of the Governor, Legislature or others was required, list each notification, and/or approval and date, including notice to the Local Government Advisory Commission.***Local Government Advisory Commission: June 22, 2021 Acknowledgement that regulatory amendments do not impact local government or local officials.**PUBLIC REVIEW - *M.G.L. c. 30A sections 2 and/or 3 requires notice of the hearing or comment period, including a small business impact statement, be filed with the Secretary of the Commonwealth, published in appropriate newspapers, and sent to persons to whom specific notice must be given at least 21 days prior to such hearing or comment period.*Date of public hearing or comment period: **June 4, 2021**

FISCAL EFFECT - *Estimate the fiscal effect of the public and private sectors.*

For the first and second year: N/A

For the first five years: N/A

No fiscal effect: _____

SMALL BUSINESS IMPACT - *M.G.L. c. 30A section 5 requires each agency to file an amended small business impact statement with the Secretary of the Commonwealth prior to the adoption of a proposed regulation. If the purpose of this regulation is to set rates for the state, this section does not apply.*

Date amended small business impact statement was filed: June 25, 2021

CODE OF MASSACHUSETTS REGULATIONS INDEX - *List key subjects that are relevant to this regulation:*
Abuse of Disabled Person (Persons with Disabilities)
Disabled Persons Protection Commission

PROMULGATION - *State the action taken by this regulation and its effect on existing provisions of the Code of Massachusetts Regulations (CMR) or repeal, replace or amend. List by CMR number:*

Amend the purpose of Title 118 CMR to incorporate the administration of the registry of care providers against whom the Commission has made a substantiated finding of registrable abuse and clarify the scope of Title 118 CMR.

ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.* ATTEST:

SIGNATURE: SIGNATURE ON FILE DATE: Jun 29 2021

Publication - *To be completed by the Regulations Division*

MASSACHUSETTS REGISTER NUMBER: 1448 DATE: 07/23/2021

EFFECTIVE DATE: 07/23/2021

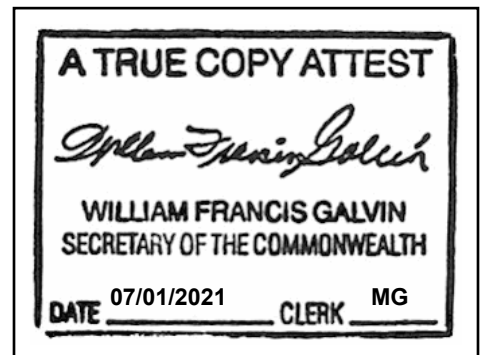
CODE OF MASSACHUSETTS REGULATIONS

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118 CMR: DISABLED PERSONS PROTECTION COMMISSION

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118 CMR: DISABLED PERSONS PROTECTION COMMISSION

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NON-TEXT PAGE

118 CMR 1.00: SCOPE AND AUTHORITY

Section

1.01: Scope and Purpose

1.02: Commentaries

1.03: Construction

1.04: Severability

1.01: Scope and Purpose

(1) Scope.

(a) 118 CMR applies to all cases of abuse and retaliation reported to, investigated by or on the behalf of the Disabled Persons Protection Commission and remediated as a result of such investigations pursuant to M.G.L. c. 19C and 118 CMR.

(b) 118 CMR does not provide for an adjudicatory hearing within the meaning of M.G.L. c. 30A, § 1(1), except as provided for in 118 CMR 5.04(4). 118 CMR is not intended to constitute an administrative remedy under the doctrine of exhaustion of administrative remedies or otherwise, except in cases appealed to the Division of Administrative Law Appeals pursuant to M.G.L. c. 19C, § 15, and 118 CMR 14.03: *Entry of Care Provider's Name on the Registry* or 118 CMR 14.04: *Removal of Care Provider's Name from the Registry: Petitions for Removal*.

(2) Purpose. The purpose of 118 CMR is to establish the procedures and standards the Commission utilizes to effectuate the purposes of the Commission including, but not limited to, the investigation and remediation of abuse of persons with disabilities who reside in the Commonwealth of Massachusetts, or of nonresident persons with disabilities who are abused while in the Commonwealth of Massachusetts, the investigation and remediation of instances of retaliation against a person for having reported such abuse or cooperated in the investigation of abuse, and the administration of the registry of care providers against whom the Commission has made a substantiated finding of registrable abuse. In pursuing its statutory purposes, the Commission shall endeavor to respect the privacy, self-determination rights and dignity of persons with disabilities.

1.02: Commentaries

Commentaries may be used throughout 118 CMR to clarify certain issues, concepts, or problems, as well as to give specific examples of typical situations that may arise under 118 CMR. These commentaries are intended to be illustrative only, and do not apply to fact situations different from those specifically described in 118 CMR.

1.03: Construction

(1) In interpreting 118 CMR, words and phrases shall be construed according to common and approved usage; provided, however, that technical words and phrases and such others as may have acquired a special and appropriate meaning in law shall be construed and understood according to such meaning.

(2) The generally accepted rules of construction shall be observed in 118 CMR, unless their observance requires a construction inconsistent with the manifest intent of M.G.L. c. 19C or is repugnant to its context.

(3) The time frames for performing acts required by M.G.L. c. 19C, and 118 CMR shall be determined as follows: a time requirement which refers to "business days" shall refer to Mondays through Fridays, excluding legal holidays; a time requirement which refers to "calendar days", shall refer to all the days of the week within the time frame, provided that if the final day of the time frame regarding either "business days" or "calendar days" is a Saturday or Sunday or a legal holiday, the time requirement shall be extended to the next regular business day. References to "days" shall refer to calendar days, unless otherwise specifically indicated.

1.04: Severability

If any regulation, section, sub-section, division, subdivision, sentence, clause, phrase, word, or portion of 118 CMR is found to be invalid by a court of competent jurisdiction for any reason, said portion shall be deemed a separate, distinct, and independent provision, and the validity of the remainder of 118 CMR shall be unaffected.

REGULATORY AUTHORITY

118 CMR 1.00: M.G.L. c. 19C, §§ 2, 3(b), 4(b), 11 and 15.



THE COMMONWEALTH OF MASSACHUSETTS

William Francis Galvin

Secretary of the Commonwealth

Regulation Filing *To be completed by filing agency*CHAPTER NUMBER: 118 CMR 2.00CHAPTER TITLE: DefinitionsAGENCY: Disabled Persons Protection CommissionSUMMARY OF REGULATION: *State the general requirements and purposes of this regulation.*

Amend the definitions utilized in Title 118 CMR to include those applicable to the registry of care providers against whom the Commission has made a substantiated finding of registrable abuse by adding: care provider; department; division; employer; mandated reporter; registry; and registrable abuse. Additional modifications were made to existing definitions to clarify their intent.

REGULATORY AUTHORITY: M.G.L. c. 19C, §§ 1, 3(b) and 15AGENCY CONTACT: Andrew Levrault PHONE: 617-727-6465ADDRESS: Disabled Persons Protection Commission, 300 Granite Street, Suite 404,
Braintree, MA 02184**Compliance with M.G.L. c. 30A**EMERGENCY ADOPTION - *if this regulation is adopted as an emergency, state the nature of the emergency.*PRIOR NOTIFICATION AND/OR APPROVAL - *If prior notification to and/or approval of the Governor, Legislature or others was required, list each notification, and/or approval and date, including notice to the Local Government Advisory Commission.*

Local Government Advisory Commission: June 22, 2021: Acknowledgement that regulatory amendments do not impact local government or local officials.

PUBLIC REVIEW - *M.G.L. c. 30A sections 2 and/or 3 requires notice of the hearing or comment period, including a small business impact statement, be filed with the Secretary of the Commonwealth, published in appropriate newspapers, and sent to persons to whom specific notice must be given at least 21 days prior to such hearing or comment period.*

Date of public hearing or comment period: June 4, 2021

FISCAL EFFECT - *Estimate the fiscal effect of the public and private sectors.*

For the first and second year: N/A

For the first five years: N/A

No fiscal effect: _____

SMALL BUSINESS IMPACT - *M.G.L. c. 30A section 5 requires each agency to file an amended small business impact statement with the Secretary of the Commonwealth prior to the adoption of a proposed regulation. If the purpose of this regulation is to set rates for the state, this section does not apply.*

Date amended small business impact statement was filed: June 25, 2021

CODE OF MASSACHUSETTS REGULATIONS INDEX - *List key subjects that are relevant to this regulation:*
Abuse of Disabled Person (Persons with Disabilities)
Disabled Persons Protection Commission

PROMULGATION - *State the action taken by this regulation and its effect on existing provisions of the Code of Massachusetts Regulations (CMR) or repeal, replace or amend. List by CMR number:*

118 CMR 2.02

ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.* ATTEST:

SIGNATURE: SIGNATURE ON FILE DATE: Jun 29 2021

Publication - *To be completed by the Regulations Division*

MASSACHUSETTS REGISTER NUMBER: 1448 DATE: 07/23/2021

EFFECTIVE DATE: 07/23/2021

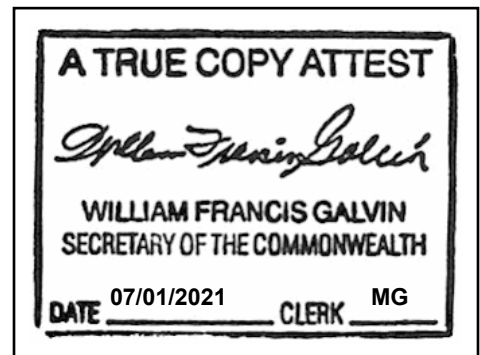
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118 CMR 2.00: DEFINITIONS

Section

2.01: Scope and Purpose

2.02: Meaning of Terms

2.01: Scope and Purpose

118 CMR 2.00 provides definitions for terms frequently used in M.G.L. c. 19C and 118 CMR. The terms are based on M.G.L. c. 19C and Disabled Persons Protection Commission usage common to the implementation of the Commission's duties and obligations. The terms used in 118 CMR have the meanings ascribed in M.G.L. c. 19C, unless otherwise specified in 118 CMR 2.00, elsewhere in 118 CMR, or unless the context otherwise requires. In any event no term shall be given a meaning that is either inconsistent with the manifest intent of M.G.L. c. 19C or repugnant to its context.

2.02: Meaning of Terms

Abuse. An Act or Omission which results in Serious Physical Injury or Serious Emotional Injury to a Person with a Disability.

However, no person shall be considered to be abused or subjected to Abuse *Per Se* for the sole reason that such person is being furnished or relies upon treatment in accordance with the tenets and teachings of a church or religious denomination by a duly accredited practitioner thereof; nor for the sole reason that, consistent with the stated or implied wishes of a competent person or a duly appointed representative of an incapacitated person, he or she is not receiving medical treatment or care. As used throughout 118 CMR, the term Abuse shall be construed to include Abuse *Per Se*, regardless of whether Abuse *Per Se* is explicitly referenced.

Abuse *Per Se*. An Act or Omission of a Caretaker that includes or results in the following, regardless of whether a Serious Physical Injury or Serious Emotional Injury is manifested:

- (a) Sexual Abuse;
- (b) the withholding of adaptive aids used by the Person with a Disability, provided that said withholding is unrelated to safety, care or treatment;

Commentary: For purposes of 118 CMR 2.02: Abuse *Per Se*(b), examples of the withholding of adaptive aids include, but are not limited to, prevention of access to and/or removal of a presently relied upon means of communication, in the case of a deaf or hard-of-hearing person or other Person with a Disability with communication deficits, or of a presently relied upon apparatus to assist mobility, in the case of a Person with a Physical Disability.

(c) a pattern of touching neither required nor appropriate for tending to the safety and welfare of a Person with a Disability. For purposes of 118 CMR 2.02: Abuse *Per Se*(c) only, the term "pattern" shall mean "two or more separate instances of touching";

(d) the intentional, wanton or reckless application of a physical force in a manner that inflicts physical pain or Serious Emotional Injury as determined by an evaluation of the totality of the circumstances. For the exclusive purposes of 118 CMR 2.02: Abuse *Per Se*(d), when a person as a result of his or her disability is unable to express or demonstrate a Serious Emotional Injury or a reaction to physical pain, the investigator may use the reasonable person standard solely for the purposes of evaluating whether the intentional, wanton or reckless application of a physical force inflicted physical pain or Serious Emotional Injury. Using the reasonable person standard, the investigator determines whether, by a preponderance of the evidence, given the same set of factual circumstances, a reasonable person would have experienced physical pain or Serious Emotional Injury.

Reasonable person shall mean "A person who in similar circumstances would exercise the qualities of attention, knowledge, intelligence and judgment which society requires of its members for the protection of himself or herself and the interest of others."

2.02: continued

Accident. It shall be considered an Accident and not Abuse when a Person with a Disability incurs a Serious Physical Injury or Serious Emotional Injury and/or is subjected to Abuse *Per Se*, and the injury at the time it is incurred:

- (a) is not the result of a Caretaker's negligent Act;
- (b) is not the result of a Caretaker's reckless Act;
- (c) is not the result of a Caretaker's Omission;
- (d) is caused by a Caretaker's application of an appropriate degree of physical force given the circumstances; or
- (e) is caused by a Caretaker's good faith attempt to prevent physical injury, pain or Serious Emotional Injury to the Person with a Disability.

Act. A Caretaker's intentional, reckless, or negligent action, regardless of whether the Act is performed with an intent to harm.

Capacity to Consent. The ability of the Person with a Disability to make informed decisions concerning his or her own person or property including, but not limited to, whether or not to accept Protective Services.

Caretaker. Any State Agency or any individual responsible for the health and welfare of a Person with a Disability by providing for or directly providing assistance in meeting a Daily Living Need, which cannot otherwise be performed by the Person with a Disability without assistance, regardless of the location at which such assistance occurs. Minor children, unless the minor child is receiving compensation for serving as a Caretaker, and adults adjudicated incapacitated by a court of law shall not be deemed to be Caretakers. Caregiver and Caretaker may be used interchangeably without changing the meaning of either.

Care Provider. A Caretaker who is employed by, or contracts with, the Department or an Employer to provide services or supports to a Person with an Intellectual Disability or a Person with a Developmental Disability. Care Providers include Caretakers in any program licensed, contracted, or funded by the Department.

A Care Provider shall be considered to be contracting with or employed by the Department or an Employer irrespective of whether the Care Provider is receiving compensation for services, including volunteers, interns, work-study participants, or any other similar unpaid position.

Commission. The Disabled Persons Protection Commission.

Commissioners. The Commissioners of the Disabled Persons Protection Commission.

Department. The Department of Developmental Services (DDS), as organized under M.G.L. c. 19B.

Daily Living Needs. The essential requirements necessary to safeguard the well-being, physical and mental health and welfare, and basic safe daily functioning of a Person with a Disability including, but not limited to, the provision of medical care for physical and mental health needs, assistance with personal hygiene, the provision of food, clothing, heated and ventilated habitable shelter, transportation, and protection from health and safety hazards.

Division. The Division of Administrative Law Appeals, as organized under M.G.L. c. 7, § 4H.

Disclosure of Documents. The right of the assigned investigator to inspect and copy any document required to be made available pursuant to M.G.L. c. 19C, § 5(1), including any document plainly not irrelevant to any matter under investigation pursuant to M.G.L. c. 19C and in the possession of any Mandated Reporter or any State Agency, Employer, or any other entity which employs a mandated reporter and which is acting as custodian of the documents, provided that a written request has been submitted by the assigned investigator.

Emergency. A situation involving an allegation of the presence of imminent Serious Physical Injury or Serious Emotional Injury or Abuse *Per Se*, to a Person with a Disability that requires an immediate response to protect the Person with a Disability from such Serious Physical Injury, Serious Emotional Injury or Abuse *Per Se*.

2.02: continued

Emergency Protective Services. Those services provided in response to an Emergency to mitigate and/or eliminate imminent Serious Physical Injury or Serious Emotional Injury or Abuse *Per Se*, to a Person with a Disability.

Employer. An entity that provides services or treatment to a Person with an Intellectual Disability or a Person with a Developmental Disability pursuant to:

- (a) a contract or agreement with the Department;
- (b) funding administered by the Department; or
- (c) a license issued pursuant to M.G.L. c. 19B, § 15 or 15A.

False Report. A report of Abuse which at the time it is made is known by the reporter not to be true and is maliciously made for: the purpose of harassing, embarrassing or harming another person; the personal financial gain of the reporter; acquiring custody of the Person with a Disability; or the personal benefit of the reporter in any other private dispute. A False Report does not include a report of Abuse of a Person with a Disability that is made in good faith to the Commission and subsequently is unsubstantiated or screened out for lack of jurisdiction under M.G.L. c. 19C.

Formal Investigation. Any discretionary investigation conducted at the direction of the Commissioners pursuant to M.G.L. c. 19C, § 8, and 118 CMR 6.00: *Formal Commissioners' Investigations*. A Formal Investigation may also be known as a Commissioners' Investigation.

Intake Form. The document generated by the Commission based upon the initial report of an allegation of Abuse of a Person with a Disability.

Long-term Care Facility. A convalescent home, nursing home, rest home, or charitable home for the aged licensed by the Department of Public Health under the provisions of M.G.L. c. 111, § 71.

Mandated Reporter. Any physician, medical intern, or hospital personnel engaged in the examination, care or treatment of persons; medical examiner; dentist; psychologist; nurse; chiropractor; podiatrist; osteopath; public or private school teacher; educational administrator; guidance or family counselor; day care worker; probation officer; animal control officer; social worker; foster parent; police officer; or person employed by a state agency within the executive office of health and human services as defined by M.G.L. c. 6A, § 16, or employed by a private agency providing services to a Person with a Disability who, in his Professional Capacity, shall have Reasonable Cause to Believe that a Person with a Disability is suffering from a Reportable Condition.

Nonemergency. A situation of alleged Abuse that is not an Emergency.

Omission. A Caretaker's failure, whether intentional or not, to take action to protect a Person with a Disability, or to provide for the Daily Living Needs of a Person with a Disability including, but not limited to, failing to prevent another person from committing Abuse or Abuse *Per Se* against a Person with a Disability.

Partially Dependent. A determination made by the Commission that as a result of a disability, a Person with a Disability is unable to meet some, but not all, of his or her Daily Living Needs without the intervention of at least a single caretaker.

Commentary. Partial Dependence is not established by the mere existence of a disability. Partial dependence is established by the existence of both a disability and the individual's partial inability to provide for his or her Daily Living Needs without assistance because of the underlying disability.

2.02: continued

Person with a Developmental Disability. A person with a severe, chronic disability that is attributable to a mental or physical impairment resulting from intellectual disability, autism, Smith-Magenis syndrome or Prader Willi syndrome; is manifested before the individual attains 22 years of age; is likely to continue indefinitely; results in substantial functional limitations in three or more areas of major life activity; and reflects the individual's need for a combination and sequence of special, interdisciplinary or generic services, supports or other assistance that is of a lifelong or extended duration and is individually planned and coordinated; as delineated and more specifically defined in the statute and regulations of the Department of Developmental Services at M.G.L. c. 123B, and 115 CMR 2.01: *Definitions*.

Person with a Disability. A person 18 through 59 years of age, who is a Person with an Intellectual Disability or a Person with a Developmental Disability, as used in M.G.L. c. 123B, § 1, or who is otherwise mentally or physically disabled, and such mental or physical disability prevents or restricts the individual's ability to provide for his or her own Daily Living Needs; provided, however, that a person who is temporarily dependent upon a medically prescribed device or procedure to solely treat a transitory physical ailment or injury shall not be considered a Person with a Disability for the purposes of M.G.L. c. 19C, unless that person otherwise meets the definition of a Person with a Disability.

Person with an Intellectual Disability. A person who has an intellectual disability, characterized by significant limitations in both intellectual functioning and adaptive behavior beginning before 18 years of age, as expressed in conceptual, social and practical adaptive skills as delineated and more specifically defined in the statute and regulations of the Department of Developmental Services at M.G.L. c. 123B, and 115 CMR 2.01: *Definitions*, and consistent with the most recent definition provided by the American Association on Intellectual and Developmental Disabilities.

Person with a Mental Disability. An individual having a condition, not including an intellectual or developmental disability, causing mental dysfunction or emotional impairment as determined by a mental health professional.

Person with a Physical Disability. A person with a permanent or long-term physical impairment.

Professional Capacity. The activities that are performed in conjunction with an individual's employment or volunteer service during which they may come in contact with Persons with Disabilities.

Commentary. The purpose of mandating certain professions to report instances of Abuse is to require reports from those individuals who, as part of their employment or voluntary service, have contact with Persons with Disabilities and thus a greater opportunity to observe Abuse or its effects. As a result, the mandate applies, as specifically stated in the statute, when the Mandated Reporter, working in a Professional Capacity, has Reasonable Cause to Believe that Abuse exists.

Protective Services. The services arranged for or implemented by a protective service agency as designated by the Commission pursuant to M.G.L. c. 19C, § 3(d) and provided to a Person with a Disability who has been determined to be in a state of Abuse or neglect. Protective Services include, but are not limited to, social casework, case management, arranging for medical/psychiatric evaluations, home care, day care, social service, health care and other services as may be required to ensure that the Person with a Disability is protected from Abuse or neglect and that the effects of Abuse or neglect are remediated.

Reasonable Cause to Believe.

(a) For purposes of reporting and screening allegations of Abuse pursuant to M.G.L. c. 19C, §§ 4, 5(4) and 10, Reasonable Cause to Believe is a threshold function of judgment triggered by a presentation of facts either directly observed or obtained from reliable sources that creates a suspicion that Abuse exists.

2.02: continued

(b) For purposes of substantiating or un-substantiating the existence of Abuse after investigation, Reasonable Cause to Believe pursuant to M.G.L. c. 19C, §§ 5 and 8 is a basis for judgment that rests upon specific facts, either directly observed or obtained from reliable sources, which leads to a conclusion regarding whether Abuse and/or Abuse *Per Se* occurred based upon the preponderance of the evidence.

Records. All documents, papers, letters, maps, books, tapes, photographs, films, sound recordings, videotapes, digital files, electronic files, or other documentary material, regardless of physical form or characteristics, collected or generated as a result of a report or investigation of Abuse or retaliation pursuant to M.G.L. c. 19C. Such records shall not be considered "public records" and the disclosure of the material and data contained therein shall be limited to the extent required by M.G.L. c. 19C, §§ 3 and 15, c. 66, c. 66A, and c. 4, § 7, cl. 26.

Referral Agency. An agency of the Commonwealth that receives from the Commission a report of Abuse of a Person with a Disability in order to perform investigations, protective service assessments, or to provide Protective Services pursuant to M.G.L. c. 19C, §§ 4, 5 and 6.

Registry. The registry of Care Providers against whom the Commission has made a substantiated finding of Registrable Abuse as organized under M.G.L. c. 19C, § 15.

Registrable Abuse. An Act or Omission of a Care Provider that results in Serious Physical Injury or Serious Emotional Injury or constitutes Abuse *Per Se* of a Person with an Intellectual Disability or a Person with a Developmental Disability between 18 and 59 years of age. Registrable Abuse shall not include instances in which the Commission, after review of an objection under 118 CMR 14.02(3), issues a decision pursuant to 118 CMR 14.02(4)(b)2., that upon weighing the conduct of the Care Provider and its outcome, the Commission determines that the incident was isolated and unlikely to reoccur and that the Care Provider is fit to provide services or supports to persons with intellectual or developmental disabilities.

Reportable Condition. A Serious Physical Injury or Serious Emotional Injury incurred by a Person with a Disability and for which there is Reasonable Cause to Believe resulted from the Act or Omission of a Caretaker or an Act or Omission of a Caretaker that a reporter has Reasonable Cause to Believe constitutes Abuse *Per Se*.

Screener. A Commission employee who determines the urgency and nature of each report of alleged Abuse received by the Commission and who refers it for investigation and/or Protective Services pursuant to M.G.L. c. 19C, § 4, and 118 CMR.

Serious Emotional Injury. An injury to the intellectual functioning or emotional state of a Person with a Disability including, but not limited to, coercion; harassment; the inappropriate isolation of a Person with a Disability from family, friends or regular activity; and verbal assault including, but not limited to, ridiculing, intimidating, yelling or swearing. A Serious Emotional Injury is evidenced by an observable or measurable reduction in the person's ability to function from the person's customary range of performance or customary behavior including, but not limited to, a state of anxiety, fear, depression or withdrawal; or the development of post-traumatic stress disorder including, but not limited to, symptoms resulting from being forced to engage in nonconsensual sexual activity.

Commentary. Finding a reduction of function is not solely dependent upon the duration of the reduction. The fact that the resulting reduction of function from the person's customary range of performance or customary behavior does not extend for a particular period of time does not preclude a finding that a Serious Emotional Injury has occurred. The length of time the reduction in function lasts must be evaluated in conjunction with the severity of the reduction in function in determining whether a Serious Emotional Injury has occurred.

Serious Physical Injury. Impairment of the physical condition of a Person with a Disability including, but not limited to:

2.02: continued

- (a) death;
- (b) brain damage; permanent disfigurement; fracture of any bone; subdural hematoma; intramuscular injury;
- (c) bedsores or similar condition;
- (d) any significant: bleeding; bruising; burn; sunburn; abrasion; laceration; or puncture of the skin;
- (e) any significant impairment of a: bodily system; function; limb; or organ, including human skin;
- (f) harmful symptoms resulting from the use of medication or chemicals without informed consent or appropriate authorization; or
- (g) malnutrition or dehydration.

Commentary. In determining whether there is Reasonable Cause to Believe that the injury is a Serious Physical Injury resulting from Abuse, the Commission shall consider the significance of the injury in the totality of the circumstances including, but not limited to:

- the shape, size, number and/or pattern of the injury(ies), including indicators that the injury(ies) may have been sustained by the application of force from an identifiable object (*i.e.*, belt, hand, blunt object);
- the location of the injury on the Person with a Disability;
- prior injuries of a similar nature;
- the level of dependence of the Person with a Disability including, but not limited to, his or her supervision requirements; ability to ambulate; the requirements of his or her care; and the extent to which the individual is able to participate in activities of daily living;
- the effect the injury had on the Person with a Disability's ability to function physically;
- the nature and history, if any, of prior self-injurious behavior by the Person with a Disability; and
- the nature and extent of any medical treatment needed to address the injury.

Sexual Abuse. Occurs when a Caretaker forces, tricks, threatens, coerces, exploits or otherwise engages a Person with a Disability or permits another person to force, trick, threaten, coerce, exploit or otherwise engage a Person with a Disability in nonconsensual sexual activity. Sexual activities may include, but are not limited to, unwanted or inappropriate touching, kissing, touching of the clothed or unclothed inner thigh, breast, groin, buttock, anus, pubes or genitalia; or any nonconsensual sex act including, but not limited to, sexual intercourse; sexually explicit photographing, including the use, publication or dissemination of nude or sexually explicit photographs or recordings to exploit, manipulate, threaten or coerce; or exposure to sexually explicit material, activity or language. Sexual Abuse also includes, but is not limited to, instances in which:

- (a) the Person with a Disability lacks the capacity to consent to the sexual activity with the Caretaker or other person, even if the Person with a Disability has purportedly consented; or
- (b) due to the nature of his or her disability, fear of retribution or hardship, or the inequality of position and power, the Person with a Disability was inappropriately engaged in the sexual activity with the Caretaker or other person.

Commentary. Sexual Abuse does not include a touching which is part of a necessary examination, treatment or care by a Caretaker acting within the scope of the practice or employment of the Caretaker; or the exchange of a brief touch or hug between the Person with a Disability and a Caretaker for the purpose of reassurance, comfort, or casual friendship.

Special Investigative Unit. The investigative unit within the Commission to which state police are assigned to coordinate and conduct investigations of reports of Abuse received by the Commission where there is an allegation of criminal conduct pursuant to M.G.L. c. 19C, §§ 3(i) and 4.

2.02: continued

Staff Investigation. An investigation conducted by the staff of the Commission that is not a Formal Investigation pursuant to M.G.L. c. 19C, § 8, and 118 CMR 6.00: *Formal Commissioners' Investigations*.

State Agency. Any agency of the Commonwealth that provides services or treatment to Persons with Disabilities, as well as private agencies or other entities providing any services or treatment pursuant to a contract, license, or agreement including, but not limited to, a contract, license, or agreement for reimbursement, with an agency of the Commonwealth.

Wholly Dependent. A determination made by the Commission that as a result of a disability, a Person with a Disability is completely unable to meet all of his or her Daily Living Needs without the intervention of at least a single Caretaker.

Commentary. The state of being Wholly Dependent is not established by the mere existence of a disability. The state of being Wholly Dependent is established by the existence of both a disability and the individual's complete inability to provide for all of his or her Daily Living Needs without assistance because of his or her underlying disability.

REGULATORY AUTHORITY

118 CMR 2.00: M.G.L. c. 19C, §§ 1, 3(b) and 15.

NON-TEXT PAGE



THE COMMONWEALTH OF MASSACHUSETTS

William Francis Galvin
Secretary of the Commonwealth

Regulation Filing *To be completed by filing agency*CHAPTER NUMBER: 118 CMR 3.00CHAPTER TITLE: ReportersAGENCY: Disabled Persons Protection CommissionSUMMARY OF REGULATION: *State the general requirements and purposes of this regulation.*

Describes the requirements for reporting abuse and/or death of persons with disabilities to the Commission, the penalties for not reporting and the protections afforded to reports and participants in investigations conducted pursuant to M.G.L. c. 19C.

REGULATORY AUTHORITY: M.G.L. c. 19C, §§ 3(b), 5(4), 10, 11, 13 and 14; c. 66, and c. 66AAGENCY CONTACT: Andrew Levrault PHONE: 617-727-6465ADDRESS: Disabled Persons Protection Commission, 300 Granite Street, Suite 404,
Braintree, MA 02184Compliance with M.G.L. c. 30AEMERGENCY ADOPTION - *if this regulation is adopted as an emergency, state the nature of the emergency.*

PRIOR NOTIFICATION AND/OR APPROVAL - *If prior notification to and/or approval of the Governor, Legislature or others was required, list each notification, and/or approval and date, including notice to the Local Government Advisory Commission.*

Local Government Advisory Commission: June 22, 2021: Acknowledgement that regulatory amendments do not impact local government or local officials.

PUBLIC REVIEW - *M.G.L. c. 30A sections 2 and/or 3 requires notice of the hearing or comment period, including a small business impact statement, be filed with the Secretary of the Commonwealth, published in appropriate newspapers, and sent to persons to whom specific notice must be given at least 21 days prior to such hearing or comment period.*

Date of public hearing or comment period: June 4, 2021

FISCAL EFFECT - *Estimate the fiscal effect of the public and private sectors.*

For the first and second year: N/A

For the first five years: N/A

No fiscal effect: _____

SMALL BUSINESS IMPACT - *M.G.L. c. 30A section 5 requires each agency to file an amended small business impact statement with the Secretary of the Commonwealth prior to the adoption of a proposed regulation. If the purpose of this regulation is to set rates for the state, this section does not apply.*

Date amended small business impact statement was filed: June 25, 2021

CODE OF MASSACHUSETTS REGULATIONS INDEX - *List key subjects that are relevant to this regulation:*
Abuse of Disabled Person (Persons with Disabilities)
Disabled Persons Protection Commission

PROMULGATION - *State the action taken by this regulation and its effect on existing provisions of the Code of Massachusetts Regulations (CMR) or repeal, replace or amend. List by CMR number:*

118 CMR 3.00: Modify the requirements of reporting abuse to the Commission to reflect current operating procedures.

ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.* ATTEST:

SIGNATURE: SIGNATURE ON FILE DATE: Jun 29 2021

Publication - *To be completed by the Regulations Division*

MASSACHUSETTS REGISTER NUMBER: 1448 DATE: 07/23/2021

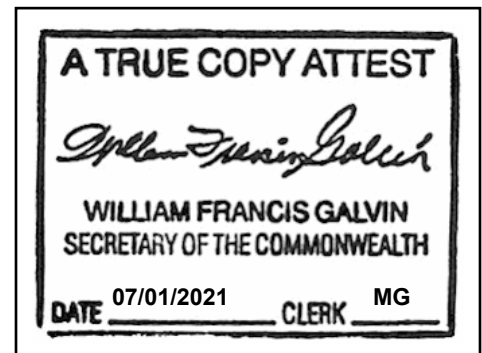
EFFECTIVE DATE: 07/23/2021

CODE OF MASSACHUSETTS REGULATIONS

Remove these pages: _____ *Insert these pages:* _____

11 - 14

13 - 16



118 CMR 3.00: REPORTERS

Section

- 3.01: Scope and Purpose
- 3.02: Contents of Reports of Abuse
- 3.03: Mandated Reporters
- 3.04: Non-mandated Reporters
- 3.05: Reports Involving Deaths of Individuals with Disabilities Whose Caretaker Was a State Agency, an Agency of Any Subdivision of the Commonwealth or a Private Entity Contracting with or Licensed by the Commonwealth
- 3.06: Reporter Immunity
- 3.07: Penalties for Failure of a Mandated Reporter to Report
- 3.08: Penalties for Retaliation against Reporters

3.01: Scope and Purpose

118 CMR 3.00 establishes the requirements for reporting abuse and/or death of persons with disabilities to the Commission, the penalties for not reporting and the protections afforded to reporters and participants in investigations conducted pursuant to M.G.L. c. 19C.

3.02: Contents of Reports of Abuse

Each oral and written report of abuse and/or death of a person with a disability made to the Commission shall contain information as deemed appropriate and relevant by the Commission.

3.03: Mandated Reporters

- (1) A mandated reporter as defined by M.G.L. c. 19C, § 1 shall immediately make to the Commission's Hotline an oral report of suspected abuse when the mandated reporter has reasonable cause to believe that a reportable condition exists.
- (2) A mandated reporter is required to report suspected abuse without regard to professional privileges established by statute, code of ethics or court decision. However, no mandate to report exists after a person with a disability invokes a privilege established by law or professional code and thereby requests that a report not be made. The invocation of such a privilege by a person with a disability shall convert a mandated reporter to a non-mandated reporter.
- (3) In addition to making an oral report to the Commission's Hotline, a mandated reporter shall also send to the Commission a written report regarding the existence of a reportable condition as prescribed by M.G.L. c. 19C, § 10.
- (4) In all events in which the allegation being reported is a death which the mandated reporter has reasonable cause to believe was the result of a reportable condition, the mandated reporter shall file a written report with the Commission, the District Attorney for the county in which the death occurred, and the Office of the Chief Medical Examiner.
- (5) If an investigator designated by the Commission has reasonable cause to believe that a person with a disability has died as a result of abuse, the investigator shall immediately report said death to the Commission, the Attorney General, the District Attorney for the county in which such death occurred, and the Office of the Chief Medical Examiner.
- (6) It is the personal responsibility of each mandated reporter to ensure that he or she makes a report to the Commission when he or she has reasonable cause to believe that a reportable condition exists based upon the facts known to him or her. However, when more than one mandated reporter is aware of the same situation of suspected abuse, one mandated reporter may report on behalf of all the mandated reporters by making a report which contains the names of all the mandated reporters. If such a report by multiple reporters is received by the Commission, that single report shall satisfy the reporting requirement for all the named mandated reporters. It shall be the responsibility of each of the mandated reporters to ensure that such a report is actually made on his or her behalf in order to satisfy his or her responsibility to report pursuant to M.G.L. c. 19C, § 10.

3.04: Non-mandated Reporters

Any person, who is not a mandated reporter and has reasonable cause to believe that a reportable condition may exist, may make a report to the Commission pursuant to the requirements contained in 118 CMR. Said reporter shall be referred to in 118 CMR as a "non-mandated reporter".

3.05: Reports Involving Deaths of Individuals with Disabilities Whose Caretaker Was a State Agency, an Agency of Any Subdivision of the Commonwealth or a Private Entity Contracting with or Licensed by the Commonwealth

(1) Upon the death of a person with a disability whose caretaker was a state agency, an agency of any subdivision of the Commonwealth or a private entity contracting with or licensed by an agency of the Commonwealth, even if there is no suspicion that the death is the result of abuse, the caretaker agency is required to immediately provide an oral report of said death to the Commission's Hotline, and to local law enforcement officials and to provide within 24 hours a written report to the Commission and to local law enforcement officials.

(2) Each oral and written report of a death made to the Commission shall contain information as deemed appropriate and relevant by the Commission.

3.06: Reporter Immunity

(1) A mandated reporter shall not be liable in any civil or criminal action by reason of having made a report under M.G.L. c. 19C; provided, however, that if said report is a false report, the protections provided by M.G.L. c. 19C, §§ 10 and 11 shall not be available to the mandated reporter.

(2) A non-mandated reporter shall not be liable in any civil or criminal action by reason of having made a report under M.G.L. c. 19C; provided, however, that if said report is a false report, the protections provided by M.G.L. c. 19C, §§ 10 and 11 shall not be available to the non-mandated reporter.

(3) In no event shall a person who abuses a person with a disability be exempt from civil or criminal liability for such abuse by reason of his or her reporting such abuse.

3.07: Penalties for Failure of a Mandated Reporter to Report

(1) Upon completion of an investigation and determination by the Commission that:

- (a) a mandated reporter has failed to report either a reportable condition or a death when required; and
- (b) the person with a disability has not knowingly invoked a privilege in accordance with M.G.L. c. 19C, § 10.

(2) The Commission may cause a fine of up to \$1,000.00 to be imposed upon a mandated reporter who fails to comply with the requirements of M.G.L. c. 19C, § 10.

3.08: Penalties for Retaliation against Reporters

(1) Any person who is discharged, disciplined or in any manner discriminated against for filing a report with or providing information to the Commission or to any agency conducting an investigation under M.G.L. c. 19C shall have the right to have the Commission review and, at its discretion, further investigate an allegation of retaliation.

(2) Upon the completion of an investigation and a determination by a preponderance of the evidence by the Commission that the alleged retaliation occurred as a result of the complainant's filing a report with or providing information during an investigation conducted pursuant to M.G.L. c. 19C, the Commission, at its discretion, may:

3.08: continued

(a) request from the Attorney General appointment of Commission's counsel as a Special Assistant Attorney General to prosecute such cases, and if so appointed, file an application for a complaint at the state District Court for the judicial district in which the alleged violation of M.G.L. c. 19C, § 11 occurred; or

(b) refer the matter for prosecution to the Attorney General, or the District Attorney for the county where the alleged violation occurred. If the Commission reports a case to the Attorney General or to a District Attorney, consistent with the provisions of M.G.L. c. 19C, § 3, a copy of the Commission's investigation report and all relevant information in the possession of the Commission shall be sent to the Attorney General or to the appropriate District Attorney.

(3) When an individual notifies the Commission of alleged retaliation or provides the Commission with information during the course of an investigation, all information that the individual provides to the Commission, including his or her own identity, shall be maintained as confidential information. The Commission shall not release such information, except as provided in 118 CMR, M.G.L. c. 19C, § 3, c. 66 and c. 66A.

REGULATORY AUTHORITY

118 CMR 3.00: M.G.L. c. 19C, §§ 3(b), 5(4), 10, 11, 13 and 14; c. 66 and c. 66A.

NON-TEXT PAGE



THE COMMONWEALTH OF MASSACHUSETTS

William Francis Galvin

Secretary of the Commonwealth

Regulation Filing *To be completed by filing agency*CHAPTER NUMBER: 118 CMR 4.00CHAPTER TITLE: Screening of Reports and Referrals to Other AgenciesAGENCY: Disabled Persons Protection CommissionSUMMARY OF REGULATION: *State the general requirements and purposes of this regulation.***Details the Commission's procedures for screening, referring, and assigning allegations of abuse of persons with disabilities.**REGULATORY AUTHORITY: M.G.L. c. 19C, §§ 3(b), (c), 4, 5(4), 11 and 13AGENCY CONTACT: Andrew Levrault PHONE: 617-727-6465ADDRESS: Disabled Persons Protection Commission, 300 Granite Street, Suite 404,
Braintree, MA 02184Compliance with M.G.L. c. 30AEMERGENCY ADOPTION - *if this regulation is adopted as an emergency, state the nature of the emergency.*PRIOR NOTIFICATION AND/OR APPROVAL - *If prior notification to and/or approval of the Governor, Legislature or others was required, list each notification, and/or approval and date, including notice to the Local Government Advisory Commission.***Local Government Advisory Commission: June 22, 2021: Acknowledgement that regulatory amendments do not impact local government or local officials.**PUBLIC REVIEW - *M.G.L. c. 30A sections 2 and/or 3 requires notice of the hearing or comment period, including a small business impact statement, be filed with the Secretary of the Commonwealth, published in appropriate newspapers, and sent to persons to whom specific notice must be given at least 21 days prior to such hearing or comment period.*Date of public hearing or comment period: June 4, 2021

FISCAL EFFECT - *Estimate the fiscal effect of the public and private sectors.*

For the first and second year: N/A

For the first five years: N/A

No fiscal effect: _____

SMALL BUSINESS IMPACT - *M.G.L. c. 30A section 5 requires each agency to file an amended small business impact statement with the Secretary of the Commonwealth prior to the adoption of a proposed regulation. If the purpose of this regulation is to set rates for the state, this section does not apply.*

Date amended small business impact statement was filed: June 25, 2021

CODE OF MASSACHUSETTS REGULATIONS INDEX - *List key subjects that are relevant to this regulation:*
Abuse of Disabled Person (Persons with Disabilities)
Disabled Persons Protection Commission

PROMULGATION - *State the action taken by this regulation and its effect on existing provisions of the Code of Massachusetts Regulations (CMR) or repeal, replace or amend. List by CMR number:*

118 CMR 4.00: Modify the Commission's screening and referral practices to better reflect current operating procedures.

ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.* ATTEST:

SIGNATURE: SIGNATURE ON FILE DATE: Jun 29 2021

Publication - *To be completed by the Regulations Division*

MASSACHUSETTS REGISTER NUMBER: 1448 DATE: 07/23/2021

EFFECTIVE DATE: 07/23/2021

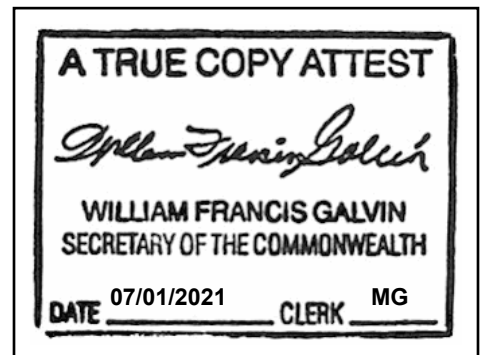
CODE OF MASSACHUSETTS REGULATIONS

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118 CMR 4.00: SCREENING OF REPORTS AND REFERRALS TO OTHER AGENCIES

Section

- 4.01: Scope and Purpose
- 4.02: Screening
- 4.03: Determination of Jurisdiction
- 4.04: Determination of Urgency
- 4.05: Referral to Other Agencies
- 4.06: Reports Involving Deaths of Individuals with Disabilities
- 4.07: Reports Involving Suspected Criminal Activity
- 4.08: Reports Not within the Jurisdiction of M.G.L. c. 19C
- 4.09: Monitoring of Referrals, Concurrent or Joint Investigations, and Agency Deferral

4.01: Scope and Purpose

118 CMR 4.00 establishes the procedures and requirements to be followed to determine the nature of the reports received by the Commission and the processing of those reports based upon that determination.

4.02: Screening

- (1) Immediately upon its receipt, a report of abuse of a person with a disability shall be evaluated to determine:
 - (a) whether the Commission has jurisdiction over the complaint;
 - (b) the urgency of the complaint; and
 - (c) the appropriate action to be taken by the Commission.
- (2) If the Commission is unable to make a screening decision based upon the information received from the reporter, the Commission shall immediately seek such further information as is necessary to facilitate the making of such a decision.

4.03: Determination of Jurisdiction

- (1) Based upon the information contained in any report received and any additional information otherwise obtained by the Commission, the Commission shall determine whether it has jurisdiction over the matter reported.
- (2) A jurisdictional determination shall be based upon the following factors:
 - (a) Whether the alleged victim is a person with a disability as defined by M.G.L. c. 19C, and 118 CMR.
 - (b) Whether the alleged abuser is a caretaker, as defined by M.G.L. c. 19C, and 118 CMR, of the alleged victim.
 - (c) Whether it appears the acts or omissions of the alleged victim's caretaker have resulted in the alleged victim suffering serious physical injury or serious emotional injury, or both, or because of the nature of the caretaker's act or omission it is reasonable to conclude that abuse *per se* may have occurred.

4.04: Determination of Urgency

- (1) The Commission shall determine the urgency of all reports it receives based upon the information which the Commission deems appropriate to collect in all such cases. The urgency of these reports shall be classified:
 - (a) Emergency; or
 - (b) Nonemergency.
- (2) Emergencies.
 - (a) If the Commission determines that an emergency exists, the Commission shall:
 - 1. immediately refer the case to the appropriate agency pursuant to the requirements of M.G.L. c. 19C, § 4, and 118 CMR 4.05 to ensure immediate action is taken to end the emergency situation; and

4.04: continued

2. subsequently refer the report for investigation, if appropriate.
 - (b) The designated investigator shall conduct and complete an initial response within 24 hours of the investigating agency's receipt of the report of the existence of an emergency and shall submit an Initial Response form as required by 118 CMR 5.02(4)(a)1: *Requirements of Initial Response*.
 - (c) The designated investigator shall subsequently prepare and submit to the Commission an Investigation Report as required by 118 CMR 5.02(4)(a)2: *Requirements of Investigation Report*.
 - (d) In the event that the report concerns a situation involving an immediate danger to the alleged victim, the Commission shall take appropriate steps to end the abusive situation including, but not limited to, calling local police authorities or referring the report pursuant to 118 CMR 4.05 for the provision of protective services before making a screening decision, as set out in 118 CMR 4.03.
- (3) Nonemergencies. If the Commission determines that a nonemergency exists, the Commission shall:
- (a) note that the report has been designated a nonemergency; and
 - (b) refer the report to the appropriate agency within 24 hours of the day of receipt of the report; or
 - (c) refer the report to the appropriate agency on the next business day if the report is received by the Commission during nonbusiness hours.
- (4) Downgrading Urgency Determination.
- (a) In cases designated an emergency, the referral agency shall:
 1. investigate the matter as required by M.G.L. c. 19C, and 118 CMR;
 2. ensure that the emergency is ended and that the person with a disability is safe from further abuse through the implementation of protective services;
 3. report to the Commission what protective actions have been offered/taken to ensure the safety of the person with a disability and confirm that the emergency situation no longer exists.
 - (b) Based upon all the information received by the Commission, the Commission will determine whether and when the urgency determination originally made should be downgraded.

4.05: Referral to Other Agencies

- (1) Reports regarding Elders, Children, or Patients/Residents of Certain Long-term Care Facilities.
 - (a) Upon receipt of a report alleging abuse of an elderly person (defined as an individual who is 60 years of age or older), the Commission shall immediately refer such report to the Executive Office of Elder Affairs for appropriate action pursuant to M.G.L. c. 19A.
 - (b) Upon receipt of a report alleging abuse of a child (defined as an individual who is younger than 18 years old), the Commission shall immediately refer such report to the Department of Children and Families for appropriate action pursuant to M.G.L. c. 119.
 - (c) Upon receipt of a report alleging abuse of a patient or resident of a long-term care facility as defined in M.G.L. c. 111, § 71, and 118 CMR 2.02: *Meaning of Terms*, the Commission shall immediately refer such report to the Department of Public Health for appropriate action pursuant to M.G.L. c. 111.
- (2) Reports regarding Individuals Whose Caretaker is a State Agency.
 - (a) Upon receipt of a report alleging abuse of a person with a disability whose caretaker is a state agency, the Commission, after making the jurisdictional and urgency determinations required by 118 CMR 4.03 and 4.04, shall refer the report for investigation to either an investigator of the Commission, or to the investigation division of the agency within the Executive Office of Health and Human Services that has jurisdiction over the entity providing services or treatment to the person with a disability or that provides or has contracted for or licensed the provision of services or treatment to the person with a disability.

4.05: continued

(b) For purposes of investigation, when a person with a disability has multiple caretaker agencies, the agency which is designated as the referral agency shall be that agency which is deemed by the Commission to be the agency with sufficient contacts with the person with a disability and the circumstances of the alleged abuse so as to allow for the most efficient and expedient investigation of the alleged abuse and the provision of protective services. Unless the Commission intervenes in the case pursuant to 118 CMR 4.09(2)(b) or (c), each referral agency shall collaborate, as needed, with other agencies in the investigation of cases involving such individuals, but shall retain the responsibility for completing the investigation and preparing an evaluation and investigation report.

(c) If the referral agency objects to the Commission's designation of that agency as the appropriate referral agency, the referral agency shall immediately contact the Executive Director of the Commission, or his or her designee, and request an immediate ruling on the designation. The ruling of the Executive Director or designee shall be final.

(3) Reports regarding Individuals Whose Caretaker Is Not a State Agency.

(a) Upon receipt of a report alleging abuse of a person with a disability whose caretaker is not a state agency, and the person with a disability has a single type of disability, the Commission, after making the determinations required by 118 CMR 4.03 and 4.04, shall refer the report for investigation to either an investigator of the Commission or to the appropriate agency as specified in 118 CMR 4.05(3)(b) and (c) which agency shall appoint an investigator who shall conduct an investigation pursuant to the time requirements of M.G.L. c. 19C, § 5, and 118 CMR 5.01(2): *Substantiated Investigations of Abuse of Persons with an Intellectual or Developmental Disability*. Unless the Commission intervenes in the case pursuant to 118 CMR 4.09(2)(b), each referral agency shall collaborate, as needed, with other agencies in the investigation of cases involving such individuals, but shall retain the responsibility for completing the investigation and preparing an evaluation and investigation report.

(b) The case shall be referred by the Commission as follows:

1. When, as can best be determined from the intake, the alleged victim is a person with a developmental disability or a person with an intellectual disability, as defined by M.G.L. c. 123B, the case shall be referred to and investigated by the Department of Developmental Services or an investigator of the Commission.
2. When, as can best be determined from the intake, the alleged victim has a mental disability which is not the result of a head injury nor is the alleged victim a person with a developmental disability or person with an intellectual disability, the case shall be referred to and investigated by the Department of Mental Health or an investigator of the Commission.
3. When, as can best be determined from the intake, the person who is the subject of the abuse report has a head injury or one or more other physical disabilities and does not have a mental disability, the case shall be referred to and investigated by the Massachusetts Rehabilitation Commission or an investigator of the Commission.
4. When a person with a disability who is the subject of an abuse report has more than one type of disability, the agency which is designated as the referral agency shall be that agency deemed by the Commission to be the agency with sufficient contacts with the person with a disability and the circumstances of the alleged abuse so as to allow for the most efficient and expedient investigation of the alleged abuse and the provision of protective services.

(c) If the referral agency objects to the designation of that agency as the appropriate referral agency, the referral agency shall immediately contact the Executive Director of the Commission, or his or her designee, and request an immediate ruling on the designation. The ruling of the Executive Director or designee shall be final.

4.06: Reports Involving Deaths of Individuals with Disabilities

(1) Reports Involving Deaths of Individuals with Disabilities as the Result of Abuse. Upon receipt of a report of death as the result of abuse, the Commission shall process and assign said report for investigation in conformance with the provisions of 118 CMR 4.00.

4.06: continued

(2) Reports Involving Deaths of Individuals with Disabilities Whose Caretaker Was a State Agency, an Agency of Any Subdivision of the Commonwealth or a Private Agency Contracting with or Licensed by the Commonwealth. Upon receipt of a report involving the death of an individual with a disability whose caretaker was a state agency, an agency of any subdivision of the Commonwealth, or a private agency contracting with or licensed by the Commonwealth, the Commission, pursuant to the authority contained in M.G.L. c. 19C, § 13 shall make an initial determination of whether there is reasonable cause to believe that abuse contributed to the death of a person with a disability. If so, it shall be assigned for investigation pursuant to the provisions of M.G.L. c. 19C, and 118 CMR regarding investigations of abuse conducted by and for the Commission. In addition, the Commission shall give notice of the death to the Attorney General, the Office of the Chief Medical Examiner and the District Attorney for the county in which the death occurred.

4.07: Reports Involving Suspected Criminal Activity

Upon the receipt of a report that indicates to the Commission that there is reasonable cause to believe that a person with a disability is the victim of criminal activity, the Commission shall:

- (1) Review and screen the report;
- (2) Refer the matter to the Special Investigations Unit assigned to the Commission for further evaluation, investigation and/or referral, including:
 - (a) Referring the matter to the Attorney General or to the District Attorney for the county in which the criminal activity allegedly occurred in cases involving sexual abuse; assault or battery; or where it is indicated the person with a disability has suffered brain injury, loss or substantial impairment of a bodily function or organ, substantial disfigurement, or a serious bodily injury as a result of a pattern of repetitive actions or inactions by a caretaker; and
 - (b) Referring, as it may determine, any report indicating criminal activity to the Attorney General or to the District Attorney for the county or the local police department in the municipality in which the criminal activity allegedly occurred.

4.08: Reports Not within the Jurisdiction of M.G.L. c. 19C

Upon the receipt of a report or a request for assistance which does not fall within the jurisdiction of M.G.L. c. 19C and 118 CMR, the Commission shall make all reasonable efforts to refer the reporter and the matter to an appropriate agency including, but not limited to, legal services, law enforcement, advocacy, and/or human services agencies.

4.09: Monitoring of Referrals, Concurrent or Joint Investigations, and Agency Deferral

- (1) All adult protective services (APS) investigations which are referred by the Commission to other agencies to be conducted pursuant to M.G.L. c. 19C shall be conducted subject to the Commission's oversight authority and subject to the Commission's authority to conduct its own investigations.
- (2) The Commission shall exercise its authority in this matter as follows:
 - (a) The Commission shall monitor the APS investigation conducted by any referral agency to ensure such an investigation is completed in accordance with M.G.L. c. 19C, § 5, and 118 CMR 5.00: *Investigations*.
 - (b) If the Commission determines that the best interests of the person with a disability require that the Commission conduct a staff investigation in place of, concurrently with, or jointly with that of the referral agency, the Commission shall so inform the referral agency and commence such an investigation; and
 - (c) If, based upon the circumstances of the case, the Commission determines that the Commission should conduct its staff investigation under M.G.L. c. 19C prior to or in place of that of the referral agency, the Commission shall inform the referral agency to defer its investigation under M.G.L. c. 19C until further notice from the Commission.

4.09: continued

(3) All criminal investigations which are referred by the Commission to its Special Investigations Unit, the Attorney General, the appropriate District Attorney or the local police department in the municipality in which the criminal activity allegedly occurred shall be coordinated with any APS investigation being conducted pursuant to M.G.L. c. 19C and shall be conducted so as to ensure the safety of the victim with a disability.

(4) Where the Commission has agreed to defer or delay the APS investigation being conducted pursuant to M.G.L. c. 19C during the pendency of a criminal investigation, the Commission shall monitor the progress of the criminal investigation and shall determine, after consultation with the Special Investigations Unit and/or the law enforcement agency(ies) conducting the criminal investigation, when or whether the Commission's investigation should be initiated or resumed.

(5) While an investigation conducted by or on behalf of the Commission pursuant to M.G.L. c. 19C, and 118 CMR is independent of an investigation conducted by any agency within the Executive Office of Health and Human Services pursuant to the respective statutory and regulatory authority of each such agency, in all cases in which an investigation is being conducted by or on behalf of the Commission (the M.G.L. c. 19C investigation), the referral agency within the Executive Office of Health and Human Services shall take reasonable steps to avoid unnecessary, unwarranted or counterproductive duplication between any investigation or inquiry being conducted by said agency and the investigation being conducted by or on behalf of the Commission by utilizing the M.G.L. c. 19C investigation in *lieu* of an investigation conducted by said agency.

(6) While an investigation conducted by or on behalf of the Commission pursuant to M.G.L. c. 19C, and 118 CMR is independent of an investigation conducted by the police, the District Attorney, or the Attorney General, the Commission may establish policies and procedures pertaining to such investigations to avoid unnecessary, unwarranted, or counterproductive duplication of investigatory efforts.

REGULATORY AUTHORITY

118 CMR 4.00: M.G.L. c. 19C, §§ 3(b), (c), 4, 5(4), 11 and 13.

NON-TEXT PAGE



THE COMMONWEALTH OF MASSACHUSETTS

William Francis Galvin

Secretary of the Commonwealth

Regulation Filing *To be completed by filing agency*CHAPTER NUMBER: 118 CMR 5.00CHAPTER TITLE: InvestigationsAGENCY: Disabled Persons Protection CommissionSUMMARY OF REGULATION: *State the general requirements and purposes of this regulation.*

Establishes the requirements for investigations conducted by and on the behalf of the Commission, the standards to be used in delaying or deferring the investigation, and the review and oversight standards to be used by the Commission.

REGULATORY AUTHORITY: M.G.L. c. 19C, §§ 3(b), (c), (e), (h), 4, 5, 12 and 15AGENCY CONTACT: Andrew Levrault PHONE: 617-727-6465ADDRESS: Disabled Persons Protection Commission, 300 Granite Street, Suite 404,
Braintree, MA 02184Compliance with M.G.L. c. 30AEMERGENCY ADOPTION - *if this regulation is adopted as an emergency, state the nature of the emergency.*

PRIOR NOTIFICATION AND/OR APPROVAL - *If prior notification to and/or approval of the Governor, Legislature or others was required, list each notification, and/or approval and date, including notice to the Local Government Advisory Commission.*

Local Government Advisory Commission: June 22, 2021: Acknowledgement that regulatory amendments do not impact local government or local officials.

PUBLIC REVIEW - *M.G.L. c. 30A sections 2 and/or 3 requires notice of the hearing or comment period, including a small business impact statement, be filed with the Secretary of the Commonwealth, published in appropriate newspapers, and sent to persons to whom specific notice must be given at least 21 days prior to such hearing or comment period.*

Date of public hearing or comment period: June 4, 2021

FISCAL EFFECT - *Estimate the fiscal effect of the public and private sectors.*

For the first and second year: N/A

For the first five years: N/A

No fiscal effect: _____

SMALL BUSINESS IMPACT - *M.G.L. c. 30A section 5 requires each agency to file an amended small business impact statement with the Secretary of the Commonwealth prior to the adoption of a proposed regulation. If the purpose of this regulation is to set rates for the state, this section does not apply.*

Date amended small business impact statement was filed: June 25, 2021

CODE OF MASSACHUSETTS REGULATIONS INDEX - *List key subjects that are relevant to this regulation:*
Abuse of Disabled Person (Persons with Disabilities)
Disabled Persons Protection Commission

PROMULGATION - *State the action taken by this regulation and its effect on existing provisions of the Code of Massachusetts Regulations (CMR) or repeal, replace or amend. List by CMR number:*

118 CMR 5.00: Amend the section to detail the requirements for investigations of registrable abuse and registry compliance.

ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.* ATTEST:

SIGNATURE: SIGNATURE ON FILE DATE: Jun 29 2021

Publication - *To be completed by the Regulations Division*

MASSACHUSETTS REGISTER NUMBER: 1448 DATE: 07/23/2021

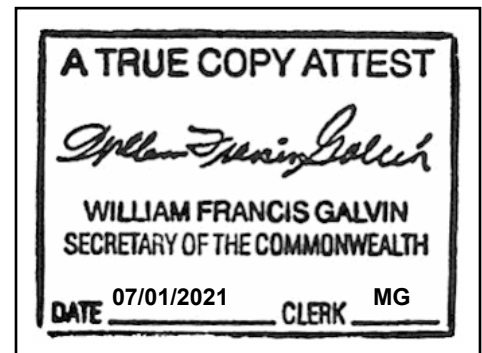
EFFECTIVE DATE: 07/23/2021

CODE OF MASSACHUSETTS REGULATIONS

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118 CMR 5.00: INVESTIGATIONS

Section

- 5.01: Scope and Purpose
- 5.02: Conduct of Abuse Investigations
- 5.03: Conduct of Retaliation Investigations
- 5.04: Registry Compliance Investigations
- 5.05: Delay or Deferral of Abuse Investigations
- 5.06: Commission Review of Investigation Report

5.01: Scope and Purpose

118 CMR 5.00 establishes the requirements for investigations conducted by and on the behalf of the Commission, the standards to be used in delaying or deferring the investigation, and the review and oversight standards to be used by the Commission.

5.02: Conduct of Abuse Investigations

All investigations conducted pursuant to M.G.L. c. 19C shall be conducted by all investigators in accordance with 118 CMR 5.00 and with any standards approved and adopted by the Commission for the conducting of such investigations.

(1) Minimum Requirements of Abuse Investigations. Each investigation conducted pursuant to M.G.L. c. 19C, § 5 by the Commission or the referral agency, at a minimum, shall be conducted in accordance with 118 CMR 5.02 and with any additional standards for the conduct of investigations adopted by the Commission including, but not limited to:

- (a) an interview with the person with a disability who was allegedly abused. Such an interview does not require the prior permission of the guardian of the alleged victim, however the guardian may be notified that such an interview is to take place, unless it is determined by the assigned investigator that giving such notification to the guardian would not be in the best interests of the alleged victim. Such an interview shall include a review of the allegations and a discussion with the person with a disability regarding the needs and wishes of that person regarding protective services. The interview must take place, unless it will create a foreseeable risk of harm to the person with a disability. The interview shall occur at such time and in such place that it may be conducted without a risk of harm to the person with a disability;
- (b) a visit to and evaluation of the site of alleged abuse, including, the victim's residence and day program. The evaluation shall include a determination of the risk of physical or emotional injury to the victim or other persons with disabilities at the same location;
- (c) a determination of the nature, extent, and cause or causes of the injuries, if possible; or a determination of whether abuse *per se* exists;
- (d) use of the preponderance of evidence standard to substantiate or unsubstantiate the existence of abuse leading the investigator to conclude that it is more likely than not that abuse does or does not exist;
- (e) a determination or confirmation, if possible, of the identity of the alleged abuser(s), whether named or not named in the Intake, and who shall be referred to as an "alleged abuser", by whose act or omission the person with a disability has incurred a serious physical injury, serious emotional injury, or has been subjected to abuse *per se*;
- (f) a determination of the identity of the person(s) who was/were responsible for the health and welfare of the alleged victim(s) when the alleged incident occurred, whether said person(s) is/are named or not named in the Intake;
- (g) an initial assessment of the immediate protective services needs of the person with a disability who is the alleged victim of abuse (*See 118 CMR 7.03: Protective Services Assessment* for requirements of the protective services assessment);
- (h) an interview with all available witnesses to the abuse, subject to the following conditions:

5.02: continued

1. If any said witness falls within the category of a mandated reporter, he or she has an obligation pursuant to M.G.L. c. 19C to cooperate in the investigation and truthfully provide to the investigator all information he or she may possess that is relevant to the matter under investigation. Refusal to be interviewed or to otherwise cooperate in the investigation will be made a part of the report, and if the witness is an employee of a state agency, unless a mandated reporter's response to a question could be used against him or her in a criminal proceeding, his or her failure to cooperate shall be reported to the person's supervisor and to the appropriate public agency for possible disciplinary action under that agency's regulations or pursuant to the provisions of any relevant collective bargaining agreement or any other contract;
 2. Said witness may be accompanied during an interview by a person of his or her own choice who is 18 years of age or older, provided that said companion shall not be a supervisor or administrator employed by the alleged abuser's employer, unless requested by said witness and agreed to by the investigator; or is not otherwise involved or has an interest in the matter under investigation. Other than being present during the interview, said companion shall not participate in the actual conduct of the interview;
 3. Said witness shall be informed of the existence of the complaint and the general nature of the allegations. Under no circumstances shall the identity of the reporter be disclosed.
- (i) an interview with the alleged abuser(s), unless such an interview would create additional risk of harm to the person with a disability;
 - (j) a determination that all relevant physical evidence of the alleged abuse has been preserved, if possible, including taking measures to ensure that such evidence is preserved by the person having control of the evidence;
 - (k) the review and obtaining of copies of all documents which are not plainly irrelevant to the matter under investigation, as permitted by M.G.L. c. 19C, § 5(1), from a mandated reporter or a mandated reporter's employer acting as custodian of the documents including, but not limited to:
 1. medical and clinical records pertaining to any injury sustained by any person with a disability involved in the matter under investigation;
 2. any other medical and clinical records of the alleged victim, or of any other party with a disability involved in the matter under investigation including, but not limited to, any records designated as subject to the "peer review privilege" pursuant to M.G.L. c. 111, § 204 and any psychotherapeutic records including, but not limited to, hospital admissions, hospital discharges, dates of hospitalization, purpose of admission, notations of objective *indicia* of emotional disturbance, and objective accounts of a patient's past medical and psychiatric histories which may include earlier hospitalizations, treatments and diagnoses. If such psychotherapeutic records contain the communications or notes of communications between the patient and the psychotherapist, such communications or notes of communications between the patient and the psychotherapist shall be deleted before the remaining portions of the psychotherapeutic record are provided to the investigator. If the investigator submits a release of the psychotherapeutic records executed by the patient or the patient's guardian, the entire psychotherapeutic record, including the communications or notes of communications between the patient and the psychotherapist, shall be released to the investigator;
 3. any incident report filed pursuant to the requirements of any state agency;
 4. relevant portions of the case records of any person with a disability provided services and involved in the matter under investigation;
 5. any restraint forms completed in connection with any person with a disability who is involved in the matter under investigation;
 6. personnel records including, but not limited to, documents regarding employee disciplinary action, employee evaluations, employee training, employment application and an employee's medical information that is plainly not irrelevant to either the allegation of abuse being investigated by the Commission or to the Commission's ability to ensure appropriate protective services to the alleged victim of abuse;
 7. any policies, procedures or guidelines of the state agency or of the service provider involved in the matter under investigation or employing the alleged abuser;
 8. any existent photographs of any physical injury or property damage plainly not irrelevant to the incident being investigated;

5.02: continued

9. any documents relating to previous cases involving the alleged victim or the alleged abuser in which a complaint was filed or investigated pursuant to M.G.L. c. 19C or pursuant to the authority of any other agency of the Commonwealth; and
10. any other documents specifically identified by the investigator and which are plainly not irrelevant to the matter under investigation.

- (l) an interview with the reporter;
- (m) a determination in cases in which abuse is not substantiated as to whether the allegation reported to the Commission constitutes a false report and if so, an explanation of the investigator's rationale which supports this conclusion;
- (n) any other tasks that, in the discretion of the Commission, are deemed appropriate and are plainly not irrelevant to the investigation; and
- (o) if an investigator does not perform one or more of the requirements in 118 CMR 5.02(1)(a) through (n), the investigator shall detail in the Investigation Report why the requirement was not met and the Commission shall determine whether said requirement(s) is material to the investigation.

(2) Substantiated Investigations of Abuse of Persons with an Intellectual or Developmental Disability.

- (a) Each investigation conducted pursuant to M.G.L. c. 19C, §§ 5 and 15 by the Commission or the referral agency as assigned by the Commission, shall be conducted in accordance with 118 CMR 5.02(1), and if substantiated for abuse of a person with an intellectual or developmental disability, must also meet the following additional standards including, but not limited to:
 1. a determination of the identity of the caretaker, and whether the caretaker is a care provider;
 2. a determination of whether the care provider is employed by the department or an employer;
 3. obtaining a copy from the department or employer of the personnel, training, and disciplinary records of the care provider at the time of the substantiated finding of abuse or abuse *per se* and verifying and documenting the care provider's name, date of birth, and any other unique identifiers such as last four digits of Social Security number, and any known aliases; and
 4. if there is reasonable cause to believe that an employer or the department failed to comply with M.G.L. c. 19C, § 15(d), provide the basis for this belief.
- (b) If, after an investigation conducted pursuant to 118 CMR 5.02(2)(a), a caretaker is determined to be a care provider employed by the department or an employer, the Commission shall find that registrable abuse occurred.

(3) Rights of the Alleged Abuser. During interviews, the alleged abuser shall have the following rights:

- (a) to be accompanied during an interview by a person of his or her own choice who is 18 years of age or older, provided that said companion shall not be a supervisor or administrator employed by the alleged abuser's employer, unless requested by the alleged abuser and agreed to by the investigator; or is not otherwise involved or has an interest in the matter under investigation. Other than being present during the interview, said companion shall not participate in the actual conduct of the interview;
- (b) to be informed of the existence of the complaint and the general nature of the allegations. Under no circumstances shall the identity of the reporter be disclosed;
- (c) to be informed that if he or she falls within the category of a mandated reporter, he or she has an obligation pursuant to M.G.L. c. 19C to cooperate in the investigation and truthfully provide to the investigator all information he or she may possess that is relevant to the matter under investigation;
- (d) if alleged victim is a person with an intellectual or developmental disability, to be informed of the existence of the Registry and its potential impact on his or her employment status; and

5.02: continued

(e) to be informed that his or her refusal to be interviewed or to otherwise cooperate in the investigation will be made a part of the report, and that if the person is an employee of a state agency, unless his or her response to a question could be used against him or her in a criminal proceeding, his or her failure to cooperate shall be reported to the person's supervisor and to the appropriate public agency for possible disciplinary action under that agency's regulations or pursuant to the provisions of any relevant collective bargaining agreement or any other contract.

(4) Requirements of Evaluation and Investigation Reports.

(a) Evaluation and Investigation Report. The evaluation and investigation report required to be filed with the Commission pursuant to M.G.L. c. 19C, § 5(1) shall be composed of two distinct parts which shall be respectively known as the "Initial Response" and the "Investigation Report".

1. Requirements of Initial Response.

a. The initial portion of the report shall be known as the "Initial Response", and shall be submitted to the Commission by the investigator within 24 hours after a case is initially reported pursuant to M.G.L. c. 19C, § 4 if the case has been determined to be an emergency, and within ten calendar days for nonemergency reports of abuse. The Commission may extend these filing deadlines, provided protective services have been put in place to address risk.

b. The Initial Response shall contain all the information deemed appropriate by the Commission to ensure that the designated investigator has conducted a preliminary evaluation of the allegation of abuse reported to the Commission and determined whether the allegation is within the jurisdiction of M.G.L. c. 19C, whether the person with a disability is at risk, and if so, that appropriate protective action has been taken.

2. Requirements of Investigation Report.

a. The second portion of the report shall be known as the "Investigation Report", and shall be submitted to the Commission by the investigator within 45 calendar days from the date the report of abuse was referred by the Commission for investigation. The Commission may extend this filing deadline, provided protective services have been put in place to address risk.

b. The Investigation Report shall contain the information acquired during the completion of the required tasks set out in 118 CMR 5.02(1) and, when applicable 118 CMR 5.02(2), and all other information deemed appropriate by the Commission to ensure that the designated investigator has properly investigated and evaluated the allegation of abuse reported to the Commission; has made appropriate findings of fact and conclusions; and has made appropriate recommendations regarding the protective services required to remedy the situation when abuse is substantiated.

c. In addition, regardless of whether abuse is substantiated or not, the designated investigator may make a determination that a violation of other state statutes and/or regulations may exist and whether such a violation poses a risk of harm to persons with disabilities. If such a violation is suspected the investigator may make recommendations regarding actions needed to remedy the suspected violation including, but not limited to, referral of the matter to the appropriate agency of the Commonwealth that has jurisdiction over the violation. The investigator may also make recommendations for remedial actions based upon the statutory and regulatory authority of the agency conducting the investigation for the Commission.

d. If during the course of an investigation, the investigator has knowledge of or observes an animal whom he or she knows or reasonably suspects has been the victim of animal cruelty, abuse or neglect, the investigator may report the allegation to entities that investigate reports of animal cruelty, abuse or neglect as described in M.G.L. c. 22C, § 57, or any local animal control authority. Any applicable privilege that relates to confidential communication shall not prohibit the filing of such report, and any report made in good faith shall be immune from all criminal and civil liability.

5.02: continued

(b) Recipients of Report.

1. Initial Response. Consistent with its authority pursuant to M.G.L. c. 19C, § 3, as part of its case processing, the Commission shall distribute a copy of the Initial Response to the designated service-providing agency within the Executive Office of Health and Human Services.

2. Investigation Report. Consistent with its authority pursuant to M.G.L. c. 19C, § 3, as part of its case processing, the Commission shall forward a copy of the Investigation Report to the appropriate agency within the Executive Office of Health and Human Services and any other agency of the Commonwealth including, but not limited to, the Attorney General or appropriate District Attorney, who has jurisdiction over the alleged victim, the matter under investigation, or jurisdiction over professional misconduct, for possible prosecution or the imposition of remedial or disciplinary measures in accordance with the requirements of any applicable law or regulation.

5.03: Conduct of Retaliation Investigations

(1) Minimum Requirements of Retaliation Investigation. Each retaliation investigation conducted by the Commission, at minimum, shall include:

- (a) an interview of the alleged victim of retaliation;
- (b) an interview of the alleged retaliator;
- (c) interviews with any witnesses to the alleged retaliatory incident(s) subject to the following conditions:
 - 1. If any witness falls within the category of a mandated reporter, he or she has an obligation pursuant to M.G.L. c. 19C to cooperate in the investigation and truthfully provide to the investigator all information he or she may possess that is relevant to the matter under investigation. Refusal to be interviewed or to otherwise cooperate in the investigation will be made a part of the report, and if the witness is an employee of a state agency, unless a mandated reporter's response to a question could be used against him or her in a criminal proceeding, his or her failure to cooperate shall be reported to the person's supervisor and to the appropriate public agency for possible disciplinary action under that agency's regulations or pursuant to the provisions of any relevant collective bargaining agreement or any other contract;
 - 2. Said witness may be accompanied during an interview by a person of his or her own choice who is 18 years of age or older; provided that said companion shall not be a supervisor or administrator employed by his or her employer, unless requested by said witness and agreed to by the investigator; or is not otherwise involved or has an interest in the matter under investigation. Other than being present during the interview, said companion shall not participate in the actual conduct of the interview; and
 - 3. Said witness shall be informed of the existence of the complaint and the general nature of the allegations. Under no circumstances shall the identity of the reporter be disclosed.
- (d) the review and obtaining of copies of all documents which are not plainly irrelevant to the matter under investigation, from a mandated reporter or a mandated reporter's employer acting as custodian of the documents, and of which disclosure is required pursuant to M.G.L. c. 19C, § 5(1), and 118 CMR;
- (e) any other tasks which, in the discretion of the Commission, are deemed appropriate and are not plainly irrelevant to the investigation; and
- (f) if an investigator does not perform one or more of the requirements in 118 CMR 5.03(1)(a) through (e), the investigator shall detail in the Investigation Report why the requirement was not met and the Commission shall determine whether said requirement(s) is material to the investigation.

5.03: continued

(2) Requirements of Retaliation Investigation Report. The Investigation Report of the investigation conducted by the Commission shall be submitted to the Commission's Director of Investigations within 60 business days from the date on which the allegation of retaliation was assigned for investigation. Said Report shall contain the information acquired during the completion of the required tasks set out in 118 CMR 5.03(1) and all other information deemed appropriate by the Commission to ensure that the designated investigator has properly investigated and evaluated the allegation of retaliation reported to the Commission and has made appropriate findings of fact and conclusions. The Commission may extend this filing deadline.

(3) Rights of the Alleged Retaliator. During an interview the alleged retaliator shall have the following rights:

- (a) to be informed of the existence of the complaint and the general nature of the allegations. Under no circumstances shall the identity of the reporter of the complaint be disclosed;
- (b) to be accompanied during an interview by a person of his or her own choice who is 18 years of age or older, provided that said companion shall not be a supervisor or administrator, unless requested by the alleged retaliator and agreed to by the investigator; or not otherwise involved or has an interest in the matter under investigation. Other than being present during the interview, said companion shall not participate in the actual conduct of the interview; and
- (c) to be informed that a refusal to be interviewed will be made a part of the report and that if the person is an employee of a state agency, unless his or her response to a question could be used against him or her in a criminal proceeding, his or her failure to cooperate shall be reported to the person's supervisor and to the appropriate state agency for possible disciplinary action under that agency's regulations or pursuant to the provisions of any collective bargaining agreement or any other contract.

5.04: Registry Compliance Investigations

The Commission may initiate an investigation upon learning of a suspected violation of any provision of 118 CMR 15.00: *Department and Employer Registry-related Hiring and Retention Procedures* by an employer or the department in the hiring or retention of a care provider.

(1) Minimum Requirements of a Registry Compliance Investigation. Each Compliance investigation conducted by the Commission at minimum, shall include:

- (a) an interview with a representative of the employer or department who is responsible for or knowledgeable of compliance procedures pursuant to 118 CMR 15.00: *Department and Employer Registry-related Hiring and Retention Procedures*;
- (b) an interview with all other relevant witnesses with regard to the employer's or department's compliance with provisions of 118 CMR 15.00: *Department and Employer Registry-related Hiring and Retention Procedures*;
 - 1. If any witness falls within the category of a mandated reporter, he or she has an obligation pursuant to M.G.L. c. 19C to cooperate in the investigation and truthfully provide to the investigator all information he or she may possess that is relevant to the matter under investigation. Refusal to be interviewed or to otherwise cooperate in the investigation will be made a part of the report, and if the witness is an employee of a state agency, unless a mandated reporter's response to a question could be used against him or her in a criminal proceeding, his or her failure to cooperate shall be reported to the person's supervisor and to the appropriate public agency for possible disciplinary action under that agency's regulations or pursuant to the provisions of any relevant collective bargaining agreement or any other contract;
 - 2. Said witness may be accompanied during an interview by a person of his or her own choice who is 18 years of age or older; provided that said companion shall not be a supervisor or administrator of the employer or department whose compliance is at issue, unless requested by said witness and agreed to by the investigator; or is not otherwise involved or has an interest in the matter under investigation. Other than being present during the interview, said companion shall not participate in the actual conduct of the interview; and

5.04: continued

3. Said witness shall be informed of the existence of the complaint and the general nature of the allegations. Under no circumstances shall the identity of the reporter be disclosed.
 - (d) the review and obtaining of copies of all documents which are plainly not irrelevant to the matter under investigation from the employer or department and of which disclosure is required pursuant to M.G.L. c. 19C, §§ 5(1) and 15, and 118 CMR;
 - (e) any other tasks which, in the discretion of the Commission, are deemed appropriate and are not plainly irrelevant to the compliance investigation; and
 - (f) if an investigator does not perform one or more of the requirements in 118 CMR 5.04(1)(a) through (e), the investigator shall detail in the Compliance Investigation Report why the requirement was not met and the Commission shall determine whether said requirement(s) is material to the compliance investigation.
- (2) Requirements of a Registry Compliance Investigation Report. The Investigation Report of the registry compliance investigation conducted by the Commission shall be submitted to the Commission's Director of Investigations within 60 business days from the date on which the allegation was assigned for investigation. Said Report shall contain the information acquired during the investigation of an alleged violation of 118 CMR 15.00: *Department and Employer Registry-related Hiring and Retention Procedures*, completion of the required tasks set out in 118 CMR 5.04(1) and all other information deemed appropriate by the Commission to ensure that the designated investigator has properly investigated and evaluated the allegation reported to the Commission and has made appropriate findings of fact and conclusions. Upon request, the Commission may extend this filing deadline.
- (3) In the event the Registry Compliance Investigation Report finds the employer failed to comply with 118 CMR 15.00: *Department and Employer Registry-related Hiring and Retention Procedures*, the Report may recommend one or more of the following:
- (a) the imposition of a monetary fine of not more than \$5,000;
 - (b) the revocation or downgrade of a license maintained by the employer; or
 - (c) the forfeiture of a state contract.
- (4) The Commission may cause a fine of up to \$5,000.00 to be imposed upon an employer who fails to comply with the requirements of M.G.L. c. 19C, § 15.
- (a) If the Commission seeks to impose a fine on an employer, the employer may request a hearing be held pursuant to 801 CMR 1.00: *Standard Adjudicatory Rules of Practice and Procedure* by filing a Notice of Claim for a hearing and an answer within 21 days of receipt of the Compliance Investigation Report.
 - (b) A hearing officer shall be designated by the Executive Director. The hearing officer shall enter a recommended decision. A final agency decision shall be issued by the Executive Director or his or her designee. Hearings shall be in accordance with the provisions of 801 CMR 1.01: *Formal Rules*. Failure to request a hearing and file timely answers may be deemed a waiver of such right and a fine may be imposed by the Commission without further notice.
- (5) The Commission may refer any recommendation made pursuant to 118 CMR 5.04 to the department or any other applicable state agency.

5.05: Delay or Deferral of Abuse Investigations

- (1) The Commission may determine that an abuse investigation pursuant to M.G.L. c. 19C, §§ 4 and 5, and 118 CMR would duplicate or jeopardize either an ongoing investigation by law enforcement officials concerning possible criminal conduct involved in the case of abuse reported to the Commission, or any corrective action undertaken by the referral agency. If such a determination is made by the Commission, the M.G.L. c. 19C investigation may be delayed or deferred.
- (2) The delay or deferral of investigations pursuant to M.G.L. c. 19C, § 12 can occur only after the Commission has determined that:

5.05: continued

- (a) appropriate protective services have been provided to ensure the continued safety of the alleged victim from further risk of harm;
- (b) the delay or deferral will not adversely affect the ongoing provision of protective services nor the health and safety of persons with disabilities found at risk of harm;
- (c) the Commission's ability to conduct a later investigation will not be unreasonably impaired; and
- (d) all corrective action taken by another official or agency will be conducted in good faith in an impartial manner by qualified personnel.

(3) The Commission shall monitor the progress of any criminal investigations and any corrective action taken by the referral agency to determine when or whether any investigation by the Commission pursuant to M.G.L. c. 19C, §§ 4 and 5 should be initiated or resumed. Such initiation or resumption of an investigation shall be at the sole discretion of the Commission.

5.06: Commission Review of Investigation Report

(1) Upon receipt by the Commission of the Initial Response or the Investigation Report prepared by the designated investigator, the Commission shall review each document and determine whether each document contains the information as required by the Commission; and whether the Initial Response or the Investigation Report are filed with the Commission within their respective time frames.

(2) If following a review of either the Initial Response or the Investigation Report, the Commission determines that the investigator must obtain further information for the document to be complete, and/or must perform additional work on a task previously begun or required for either document to be complete, the Commission shall require the obtaining of such information or performing of such tasks. Determination of the completeness of either document for the purposes of M.G.L. c. 19C is solely within the discretion of the Commission. Additional tasks as may be required by the Commission, and the resubmission of the revised Initial Response or Investigation Report, shall be completed within such timeframe as determined appropriate by the Commission.

(3) In addition, where the investigation has been conducted by a referral agency, the Commission not only may request further investigation as set out in 118 CMR 5.06(2), but the Commission, in its discretion, may conduct an investigation utilizing Commission staff in accordance with M.G.L. c. 19C, §§ 4 and 5, and 118 CMR 5.00. The Commission shall notify the designated referral agency of the Commission's decision to conduct an investigation utilizing Commission staff.

REGULATORY AUTHORITY

118 CMR 5.00: M.G.L. c. 19C, §§ 3(b), (c), (e), (h), 4, 5, 12 and 15.



THE COMMONWEALTH OF MASSACHUSETTS

William Francis Galvin

Secretary of the Commonwealth

Regulation Filing *To be completed by filing agency*CHAPTER NUMBER: 118 CMR 6.00CHAPTER TITLE: Formal Commissioners' InvestigationsAGENCY: Disabled Persons Protection CommissionSUMMARY OF REGULATION: *State the general requirements and purposes of this regulation.*

Establishes the requirements for initiation and conducting of a Commissioners' Investigation, the actions to be taken as a result of the conducting of such investigation, and the requirements for the delay or deferral of a Commissioners' Investigation

REGULATORY AUTHORITY: M.G.L. c. 19C, §§ 3(b), (e), (h), 5, 8, 9 and 12AGENCY CONTACT: Andrew Levrault PHONE: 617-727-6465ADDRESS: Disabled Persons Protection Commission, 300 Granite Street, Suite 404,
Braintree, MA 02184Compliance with M.G.L. c. 30AEMERGENCY ADOPTION - *if this regulation is adopted as an emergency, state the nature of the emergency.*

PRIOR NOTIFICATION AND/OR APPROVAL - *If prior notification to and/or approval of the Governor, Legislature or others was required, list each notification, and/or approval and date, including notice to the Local Government Advisory Commission.*

Local Government Advisory Commission: June 22, 2021: Acknowledgement that regulatory amendments do not impact local government or local officials.

PUBLIC REVIEW - *M.G.L. c. 30A sections 2 and/or 3 requires notice of the hearing or comment period, including a small business impact statement, be filed with the Secretary of the Commonwealth, published in appropriate newspapers, and sent to persons to whom specific notice must be given at least 21 days prior to such hearing or comment period.*

Date of public hearing or comment period: June 4, 2021

FISCAL EFFECT - *Estimate the fiscal effect of the public and private sectors.*

For the first and second year: N/A

For the first five years: N/A

No fiscal effect: _____

SMALL BUSINESS IMPACT - *M.G.L. c. 30A section 5 requires each agency to file an amended small business impact statement with the Secretary of the Commonwealth prior to the adoption of a proposed regulation. If the purpose of this regulation is to set rates for the state, this section does not apply.*

Date amended small business impact statement was filed: June 25, 2021

CODE OF MASSACHUSETTS REGULATIONS INDEX - *List key subjects that are relevant to this regulation:*
Abuse of Disabled Person (Persons with Disabilities)
Disabled Persons Protection Commission

PROMULGATION - *State the action taken by this regulation and its effect on existing provisions of the Code of Massachusetts Regulations (CMR) or repeal, replace or amend. List by CMR number:*

118 CMR 6.00: Update cross-referenced citations to reflect changes made to other sections of Title 118 CMR.

ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.* ATTEST:

SIGNATURE: SIGNATURE ON FILE DATE: Jun 29 2021

Publication - *To be completed by the Regulations Division*

MASSACHUSETTS REGISTER NUMBER: 1448 DATE: 07/23/2021

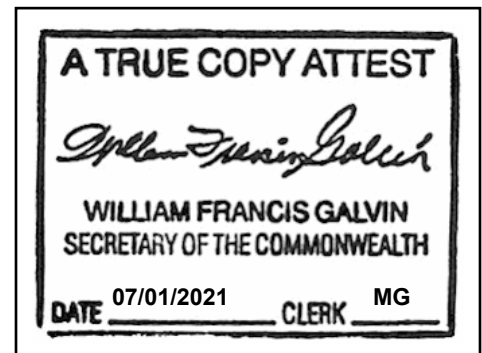
EFFECTIVE DATE: 07/23/2021

CODE OF MASSACHUSETTS REGULATIONS

Remove these pages: _____ *Insert these pages:* _____

27 - 30

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118 CMR 6.00: FORMAL COMMISSIONERS' INVESTIGATIONS

Section

- 6.01: Scope and Purpose
- 6.02: Initiation
- 6.03: Requirements of Commissioners' Investigation
- 6.04: Investigatory Hearings
- 6.05: Actions Following Commissioners' Investigation
- 6.06: Delay or Deferral of Commissioners' Investigation

6.01: Scope and Purpose

118 CMR 6.00 establishes the requirements for initiation and conducting of Commissioners' Investigation, the actions to be taken as a result of the conducting of such investigation and the requirements for the delay or deferral of Commissioners' Investigation.

6.02: Initiation

- (1) Pursuant to M.G.L. c. 19C, § 8, the Commission by a majority vote of the Commissioners may initiate a formal investigation which shall be referred to as Commissioners' Investigation when:
 - (a) upon completion of an investigation pursuant to M.G.L. c. 19C, § 5, where the caretaker of the person with a disability is a state agency and the investigation report finds that the allegation of abuse is substantiated; or
 - (b) at their discretion, the Commissioners determine that the best interests of persons with disabilities would be served by the initiation of such an investigation to ascertain the scope, remedy for and recommendations regarding abuse of persons with disabilities whose caretaker is a state agency.
- (2) In determining whether to initiate Commissioners' Investigation, the Commissioners shall consider:
 - (a) possible duplication of investigations;
 - (b) the best interests of the particular person(s) with a disability(ies) involved; or
 - (c) the best interests of persons with disabilities in general.

6.03: Requirements of Commissioners' Investigation

Commissioners' Investigation shall include:

- (1) The investigation requirements enumerated in 118 CMR 5.02: *Conduct of Abuse Investigations*; and
- (2) An investigatory hearing, unless it is determined by a majority vote of the Commissioners, following an investigation and a review of the results of the investigation, that a hearing is not required; and
- (3) Any other measures determined by the Commissioners as appropriate for and not plainly irrelevant to the investigation.

6.04: Investigatory Hearings

- (1) Conduct of Investigatory Hearings.
 - (a) The attendance of at least two Commissioners, which shall be a quorum, shall be required to conduct an investigatory hearing pursuant to 118 CMR 6.04.
 - (b) The Commissioners shall preside over the process of conducting investigatory hearings pursuant to M.G.L. c. 19C, § 8 and 118 CMR. The Commissioners shall:
 - 1. determine the parties to each hearing;
 - 2. determine which evidence they wish to consider;
 - 3. receive evidence;
 - 4. determine the conduct and scope of such hearing; and

6.04: continued

5. make findings at the conclusion of the hearing based upon the preponderance of evidence presented.
 - (c) General Counsel for the Commission shall represent the Commission at said hearings and shall act at the direction of the Commissioners.
 - (d) Unless an emergency investigatory hearing is convened by a majority vote of the Commissioners, in which case 72-hour telephone notice shall be given to all the parties enumerated in 118 CMR 6.04(2)(a), the Commission shall give written notice of an investigatory hearing at least ten business days prior to the commencement of the hearing.
 - (e) Unless otherwise required by 118 CMR, notice of said hearings shall be made:
 1. by posting said notice at the office of the Secretary of the Commonwealth;
 2. by certified or first class mail to required parties; and
 3. by mail to federal protection and advocacy agencies for persons with disabilities which have filed with the Commission a request to be so notified.
- (2) Parties to Investigatory Hearings.
- (a) Required parties to investigatory hearings shall be as follows:
 1. a representative from the state agency that provided services to the person(s) with a disability(ies) at the time of the alleged abuse;
 2. a representative from the state agency which is providing services to the person(s) with a disability(ies) at the time of the hearing, if different from that state agency providing services to the person(s) with a disability(ies) at the time of the alleged abuse;
 3. a representative from the referral agency which performed the initial investigation of the initial report of abuse, if not the Commission; and
 4. any other person or entity that the Commissioners, in their discretion, determine may provide relevant information to the Commission regarding the matter under investigation.
 - (b) Other interested parties may be allowed to participate in the hearing at the discretion of the Commissioners under such terms and conditions as the Commissioners may determine appropriate.
 - (c) The failure of a required party to attend a hearing after receiving notice shall not prevent a hearing from proceeding; however, the Commissioners may determine not to proceed without the absent required party.
- (3) Testimony.
- (a) Testimony taken at investigatory hearings shall be recorded by the Commission, either by electronic or video recording device or stenographic method. All other recording or transcription of hearings shall be prohibited, unless specifically authorized by the Commissioners after a written request made to them at least two business days prior to the commencement of the hearing.
 - (b) At the discretion of the presiding Commissioners, testimony at any hearing may be taken under oath.
- (4) Witnesses.
- (a) Prior to testifying, each witness called by the Commission shall be given a copy of 118 CMR 6.00 and any protocols and procedures published thereto.
 - (b) Each witness shall have the right to be represented by counsel at a hearing.
 - (c) Each witness may refuse to submit evidence or give testimony if such evidence or testimony could tend to incriminate him or her, but witnesses who are mandated reporters who refuse to submit evidence or to give testimony, unless a response to a question could be used against him or her in a criminal proceeding, shall have his or her failure to cooperate reported to the person's supervisor and to the appropriate state agency for possible disciplinary action.
- (5) Evidence.
- (a) The rules of evidence observed by courts shall not be observed in any hearing conducted pursuant to M.G.L. c. 19C, and 118 CMR; however, subject to the exemptions contained in M.G.L. c. 19C, § 5(1), the rules of privilege as recognized by law shall be observed.
 - (b) Unless it is determined by the Commissioners that such disclosure is required to carry out the responsibilities of M.G.L. c. 19C, personally identifiable and confidential information shall not be revealed at a hearing.

6.04: continued

(c) If the Commissioners determine that during the course of the hearing disclosure of personally identifiable or confidential information will occur, the Commissioners or their designee shall:

1. give notice ten business days prior to the commencement of the hearing to the person whose data will be disclosed or to his or her authorized representative of the Commission's intent to disclose personally identifiable or confidential information;
2. give that person or authorized representative an opportunity to object to the disclosure prior to the commencement of the hearing;
3. presume that the person has no objection to such disclosure if the person fails to affirmatively notify the Commission of his or her objection regarding the disclosure of such information within five business days of being notified by the Commission;
4. seek a judicial determination regarding the proposed disclosure if the affected person is a person with a disability and deemed by the Commission to be incapable of exercising his or her rights to object to such disclosure and there is no authorized representative, or the authorized representative is the alleged abuser;
5. not disclose the information if the person with a disability, authorized representative or the Court, as the case may be, expressly objects to the disclosure;
6. disclose as little information as is necessary in the event disclosure of personally identifiable or confidential information is made during a hearing; or
7. vote to go into executive session in accordance with the provisions of the Open Meeting Law, M.G.L. c. 30A, §§ 18 through 25, and the requirements of M.G.L. c. 19C, §§ 3 and 8, to consider the reputation, character, physical condition or mental health of an individual.

6.05: Actions Following Commissioners' Investigation

(1) Commissioners' Investigation Report.

- (a) Upon completion of the investigative activities of the Commissioners' Investigation including the conducting of a hearing, if one is held, a report shall be prepared by the staff of the Commission, which shall be known as the Commissioners' Investigation Report.
- (b) Unless otherwise determined by the Commissioners, Commissioners' Investigation shall be completed and the Commissioners' Investigation Report shall be issued within a reasonable time from the date on which the Commissioners initially authorized the investigation.
- (c) The requirements enumerated in 118 CMR 5.02(4)(b): *Recipients of Report* shall apply to Commissioners' Investigation Report.
- (d) Upon completion of the report, the Commissioners shall vote to approve it by a majority vote.
- (e) Upon its approval by the Commissioners, the report, with an Executive Summary appended, shall be issued by the Commission.

(2) Other Actions to Be Taken. Upon the completion of Commissioners' Investigation and the issuance of the Commissioners' Investigation Report, the Commission shall:

- (a) ensure that the matters contained therein, if appropriate, be referred to the Commission's Oversight Unit for protective service monitoring.
- (b) take all other appropriate actions consistent with the provisions of M.G.L. c. 19C, § 3, to have the recommendations contained in the Commissioners' Investigation Report implemented including, but not limited to, those referral activities enumerated in M.G.L. c. 19C, § 9, referral to all parties to the Commissioner's Investigation, to the Commissioner of the public agency that licensed or approved the service provider against which there is reason to believe that professional misconduct has occurred, to the Commissioner of the public agency that has licensed or approved the service provider for state funding, to the Secretary of the Executive Office of Health and Human Services, and to any other agency which requested to be so notified.

6.06: Delay or Deferral of Commissioners' Investigation

(1) The Commissioners may determine, in their discretion, based upon the standards enunciated in M.G.L. c. 19C, § 12, to delay or defer the commencement of Commissioners' Investigation pursuant to M.G.L. c. 19C, § 8, and 118 CMR 6.00 because they have determined that said Commissioners' Investigation would duplicate or jeopardize an investigation then being conducted by law enforcement officials or another agency of the Commonwealth.

(2) The delay or deferral of Commissioners' Investigations pursuant to M.G.L. c. 19C, § 12 can occur only after the Commission has determined that:

- (a) appropriate protective services have been provided to ensure the continued safety of the alleged victim from further risk of harm;
- (b) the delay or deferral will not adversely affect the ongoing provision of protective services nor the health and safety of persons with disabilities found at risk of harm;
- (c) the Commission's ability to conduct a later investigation will not be unreasonably impaired; and
- (d) the investigation of the incident by another official or agency will be conducted in good faith by an impartial, qualified investigator.

(3) If such determination to delay or defer the commencement of Commissioners' Investigation is made, the Commission shall exercise its monitoring responsibilities pursuant to M.G.L. c. 19C, § 12 on a continuing basis until the conclusion of the investigation and issuance of a report in such other investigation.

REGULATORY AUTHORITY

118 CMR 6.00: M.G.L. c. 19C, §§ 3(b), (e), (h), 5, 8, 9 and 12.



THE COMMONWEALTH OF MASSACHUSETTS

William Francis Galvin

Secretary of the Commonwealth

Regulation Filing *To be completed by filing agency*CHAPTER NUMBER: 118 CMR 7.00CHAPTER TITLE: Protective ServicesAGENCY: Disabled Persons Protection CommissionSUMMARY OF REGULATION: *State the general requirements and purposes of this regulation.*

Establishes the responsibilities and obligations of the Commission in ensuring that protective services are provided to persons with disabilities who are subjects of reports made to the Commission and who require such protective services.

REGULATORY AUTHORITY: M.G.L. c. 19C, §§ 3(b), (d), 4, 5, 6 and 7AGENCY CONTACT: Andrew Levrault PHONE: 617-727-6465ADDRESS: Disabled Persons Protection Commission, 300 Granite Street, Suite 404,
Braintree, MA 02184Compliance with M.G.L. c. 30AEMERGENCY ADOPTION - *if this regulation is adopted as an emergency, state the nature of the emergency.*

PRIOR NOTIFICATION AND/OR APPROVAL - *If prior notification to and/or approval of the Governor, Legislature or others was required, list each notification, and/or approval and date, including notice to the Local Government Advisory Commission.*

Local Government Advisory Commission: June 22, 2021: Acknowledgement that regulatory amendments do not impact local government or local officials.

PUBLIC REVIEW - *M.G.L. c. 30A sections 2 and/or 3 requires notice of the hearing or comment period, including a small business impact statement, be filed with the Secretary of the Commonwealth, published in appropriate newspapers, and sent to persons to whom specific notice must be given at least 21 days prior to such hearing or comment period.*

Date of public hearing or comment period: June 4, 2021

FISCAL EFFECT - *Estimate the fiscal effect of the public and private sectors.*

For the first and second year: N/A

For the first five years: N/A

No fiscal effect: _____

SMALL BUSINESS IMPACT - *M.G.L. c. 30A section 5 requires each agency to file an amended small business impact statement with the Secretary of the Commonwealth prior to the adoption of a proposed regulation. If the purpose of this regulation is to set rates for the state, this section does not apply.*

Date amended small business impact statement was filed: June 25, 2021

CODE OF MASSACHUSETTS REGULATIONS INDEX - *List key subjects that are relevant to this regulation:*
Abuse of Disabled Person (Persons with Disabilities)
Disabled Persons Protection Commission

PROMULGATION - *State the action taken by this regulation and its effect on existing provisions of the Code of Massachusetts Regulations (CMR) or repeal, replace or amend. List by CMR number:*

118 CMR 7.00: Modify the Commission's protective services assessment process to better reflect current operating procedures.

ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.* ATTEST:

SIGNATURE: SIGNATURE ON FILE DATE: Jun 29 2021

Publication - *To be completed by the Regulations Division*

MASSACHUSETTS REGISTER NUMBER: 1448 DATE: 07/23/2021

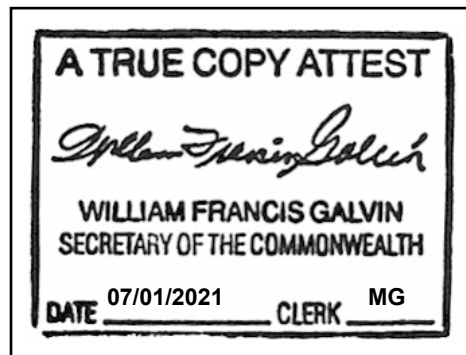
EFFECTIVE DATE: 07/23/2021

CODE OF MASSACHUSETTS REGULATIONS

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118 CMR 7.00: PROTECTIVE SERVICES

Section

- 7.01: Scope and Purpose
- 7.02: General Principles
- 7.03: Protective Services Assessment
- 7.04: Provision of Protective Services
- 7.05: Monitoring

7.01: Scope and Purpose

118 CMR 7.00 establishes the responsibilities and obligations of the Commission in ensuring that protective services are provided to persons with disabilities who are the subjects of reports made to the Commission and who require such protective services.

7.02: General Principles

Regarding the provision of protective services, the Commission shall:

- (1) ensure that protective services are provided in the least restrictive and most appropriate manner possible to a person with a disability with his or her consent, or that of his or her guardian, or by order of a court of competent jurisdiction as indicated in 118 CMR 7.02(4);
- (2) designate a state agency to act as a protective services provider, and cooperate with that agency and any other agency to provide those protective services that ensure that the person with a disability is protected from abuse and that the effects of abuse are remediated;
- (3) ensure the appropriate provision of emergency protective services by the designated protective services provider; and
- (4) petition the Probate and Family Court for the county in which the person with a disability resides, pursuant to M.G.L. c. 19C, § 7 and 118 CMR, for a judicial determination regarding the issue of the provision of protective services, the appointment or removal of a conservator, limited or general guardian, or for issuance of an order for protective services when a person with a disability refuses or is unable to consent to the provision of necessary protective services or when the guardian of a person with a disability is: unavailable or unwilling to consent to the provision of necessary protective services; suspected of involvement with the alleged abuse; or is not acting in the best interests of the person with a disability.

7.03: Protective Services Assessment

- (1) The initial determination of the need for and requirements of protective services shall be part of the investigative process conducted pursuant to M.G.L. c. 19C, §§ 4 and 5, shall be consistent with the protocols adopted by the Commission and shall be made part of the Initial Response submitted pursuant to M.G.L. c. 19C, § 5 and 118 CMR 5.00: *Investigations*. Said determination shall, at minimum, include the following:
 - (a) A finding regarding whether the person with a disability is at risk of further harm; and
 - (b) A finding and recommendation identifying an appropriate protective service provider to respond to the abuse which occurred and to prevent further risk of harm to the person with a disability.
- (2) Upon receipt of the Initial Response completed by the referral agency or by the Commission, the Commission shall refer the matter to the designated state agency within the Executive Office of Health and Human Services for purposes of providing timely protective services.
- (3) The designated protective services provider shall complete and file with the Commission a protective services plan within 30 days of acceptance of the Investigation Report by the Commission. The plan shall contain, at minimum, the following information:

7.03: continued

- (a) a narrative description of the protective service activity(ies) or task(s) to be provided;
- (b) identification of the individual(s) responsible for supervising the provision of and for performing the identified protective service activity(ies) or task(s);
- (c) identification of the proposed or actual start date for the provision of the identified protective service(s); and
- (d) such other information the Commission may determine to be necessary to fulfill its responsibility to monitor the provision of protective services.

(4) After receipt of the protective services plan, the Commission shall review and approve the plan in accordance with its monitoring responsibilities.

7.04: Provision of Protective Services

- (1) Protective services shall:
 - (a) be provided by agencies of the Commonwealth and vendors who contract or license with such agencies pursuant to the approved protective services plan filed with the Commission;
 - (b) be provided in the least restrictive manner possible; and
 - (c) be provided to protect a person with a disability from abuse, to remedy the effects of abuse and to respond to the underlying abusive situation, to the extent possible.
- (2) Protective services may include, but are not limited to:
 - (a) Social services casework and case management including, but not limited to, evaluations of functional capacity and resources, development of a service plan, appropriate referral services, and emergency response;
 - (b) Counseling;
 - (c) Homemaker/chore services;
 - (d) Temporary shelter;
 - (e) Dietary services;
 - (f) Emergency services;
 - (g) Respite services;
 - (h) Alternative housing;
 - (i) Housing assistance;
 - (j) Special attendants;
 - (k) Adaptive equipment;
 - (l) Transportation;
 - (m) Psychology services;
 - (n) Health-related services;
 - (o) Referral to legal services;
 - (p) Recommendations for staff focused actions including, but not limited to, recommendations for staff training and corrective action; and
 - (q) Recommendations for implementation of corrective agency policies and procedures.
- (3) Unless the person with a disability has been found incapacitated and/or protective services are being implemented pursuant to a court order, the person with a disability may refuse any or all protective services.

7.05: Monitoring

- (1) The Commission shall monitor the provision of protective services for each person with a disability who is determined to require protective services.
- (2) The monitoring of each case shall continue until the Commission closes the case.
- (3) The monitoring by the Commission for each case may include, but shall not be limited to:
 - (a) a review of emergency protective services provided by the designated protective services provider;
 - (b) a visit to the person with a disability;
 - (c) a determination of the status of the alleged abuser, if identified;

7.05: continued

- (d) a review of case records of the Commission, of the referral agency which conducted the abuse investigation, and of the agency providing the protective services, if different from the referral agency including, but not limited to, the protective service plan submitted to the Commission; and
- (e) a review of any plan for transition to any needed long-term services.

REGULATORY AUTHORITY

118 CMR 7.00: M.G.L. c. 19C, §§ 3(b), (d), 4, 5, 6 and 7.

NON-TEXT PAGE



THE COMMONWEALTH OF MASSACHUSETTS

William Francis Galvin

Secretary of the Commonwealth

Regulation Filing *To be completed by filing agency*CHAPTER NUMBER: **118 CMR 8.00**CHAPTER TITLE: **Petition for Protective Order**AGENCY: **Disabled Persons Protection Commission**SUMMARY OF REGULATION: *State the general requirements and purposes of this regulation.***Establishes the requirements for the filing of a petition for court ordered protective services pursuant to M.G.L. c. 19C, § 7.**REGULATORY AUTHORITY: **M.G.L. c. 19C, §§ 3(b) and 7.**AGENCY CONTACT: **Andrew Levrault** PHONE: **617-727-6465**ADDRESS: **Disabled Persons Protection Commission, 300 Granite Street, Suite 404,
Braintree, MA 02184****Compliance with M.G.L. c. 30A**EMERGENCY ADOPTION - *if this regulation is adopted as an emergency, state the nature of the emergency.*PRIOR NOTIFICATION AND/OR APPROVAL - *If prior notification to and/or approval of the Governor, Legislature or others was required, list each notification, and/or approval and date, including notice to the Local Government Advisory Commission.***Local Government Advisory Commission: June 22, 2021: Acknowledgement that regulatory amendments do not impact local government or local officials.**PUBLIC REVIEW - *M.G.L. c. 30A sections 2 and/or 3 requires notice of the hearing or comment period, including a small business impact statement, be filed with the Secretary of the Commonwealth, published in appropriate newspapers, and sent to persons to whom specific notice must be given at least 21 days prior to such hearing or comment period.*Date of public hearing or comment period: **June 4, 2021**

FISCAL EFFECT - *Estimate the fiscal effect of the public and private sectors.*

For the first and second year: N/A

For the first five years: N/A

No fiscal effect: _____

SMALL BUSINESS IMPACT - *M.G.L. c. 30A section 5 requires each agency to file an amended small business impact statement with the Secretary of the Commonwealth prior to the adoption of a proposed regulation. If the purpose of this regulation is to set rates for the state, this section does not apply.*

Date amended small business impact statement was filed: June 25, 2021

CODE OF MASSACHUSETTS REGULATIONS INDEX - *List key subjects that are relevant to this regulation:*
Abuse of Disabled Person (Persons with Disabilities)
Disabled Persons Protection Commission

PROMULGATION - *State the action taken by this regulation and its effect on existing provisions of the Code of Massachusetts Regulations (CMR) or repeal, replace or amend. List by CMR number:*

118 CMR 8.00: Update cross-referenced citations to reflect changes made to other sections of Title 118 CMR.

ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.* ATTEST:

SIGNATURE: SIGNATURE ON FILE DATE: Jun 29 2021

Publication - *To be completed by the Regulations Division*

MASSACHUSETTS REGISTER NUMBER: 1448 DATE: 07/23/2021

EFFECTIVE DATE: 07/23/2021

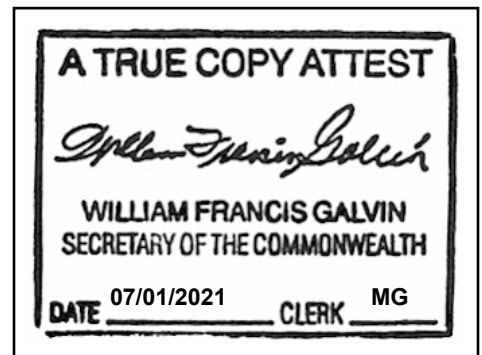
CODE OF MASSACHUSETTS REGULATIONS

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118 CMR 8.00: PETITION FOR PROTECTIVE ORDER

Section

- 8.01: Scope and Purpose
- 8.02: Nonemergency petitions
- 8.03: Emergency Petitions
- 8.04: Modification or Rescission of Protective Orders

8.01: Scope and Purpose

118 CMR 8.00 establishes the requirements for the filing of a petition for court ordered protective services pursuant to M.G.L. c. 19C, § 7.

8.02: Nonemergency Petitions

Pursuant to the terms and conditions contained in M.G.L. c. 19C, § 7(a), after the initiation of an investigation pursuant to M.G.L. c. 19C, and 118 CMR, when the Commission, the Department of Mental Health, the Department of Developmental Services, or the Massachusetts Rehabilitation Commission, has reasonable cause to believe that a person with a disability is suffering from abuse and lacks the capacity to consent to the provision of protective services, said Commission, Department of Mental Health, Department of Developmental Services, or Massachusetts Rehabilitation Commission may petition the Probate and Family Court for the county where the person with a disability resides, for a finding that the person with a disability lacks such capacity and requires the provision of protective services.

8.03: Emergency Petitions

(1) Emergency Petitions.

(a) Upon determining that:

1. an emergency exists; and
2. the person with a disability lacks the capacity to consent to the provision of protective services, the Commission, the Department of Mental Health, the Department of Developmental Services, the Massachusetts Rehabilitation Commission, a caretaker or a member of the immediate family of the person with a disability may petition the Probate and Family Court for the county where the person with a disability resides, for an emergency order of protective services.

(b) Each petition for an emergency order of protective services shall contain a statement of the specific facts upon which the petitioner relies in seeking such determination.

(2) Emergency Hearings.

(a) Pursuant to the authority granted it by M.G.L. c. 19C, § 7, the Court shall:

1. give notice to the person with a disability who is the subject of the petition at least 24 hours prior to the hearing. The court may dispense with notice upon finding that immediate and reasonably foreseeable harm to the person with a disability or others will result from the 24-hour delay and that reasonable attempts have been made to give such notice;
2. appoint counsel to represent the subject of the petition if he or she is indigent;
3. appoint a guardian *ad litem* to represent the interest of the subject of the petition regarding the right to counsel if the court determines that he or she lacks the capacity to waive the right of counsel;
4. hold a hearing on an emergency petition for protective services no more than 72 hours of its being filed; and
5. issue an appropriate order.

(b) No more than 144 hours after the issuance date of the original order authorizing the provision of emergency protective services, the original petitioner may petition the court to:

1. continue emergency protective services with the consent of the person with a disability pursuant to 118 CMR 7.02(1);
2. continue emergency protective services pursuant to the previously entered order of the court for an additional duration as determined appropriate by the court; or

8.03: continued

3. entertain a petition for the appointment of a guardian or a conservator.
- (c) If the court entertains a petition for the appointment of a guardian or conservator, the court, for good cause shown, may order continued protective services as part of its determination regarding such petition.
- (d) If an order to continue emergency protective services is issued, it must state the services to be provided and designate an individual or agency to be responsible for performing or obtaining the services required by the person with a disability.

8.04: Modification or Rescission of Protective Orders

The person with a disability or his or her court-appointed representative, the Commission, the Department of Mental Health, the Department of Developmental Services, or the Massachusetts Rehabilitation Commission, may petition the court to have any order issued pursuant to M.G.L. c. 19C, § 7, modified or rescinded.

REGULATORY AUTHORITY

118 CMR 8.00: M.G.L. c. 19C, §§ 3(b) and 7.



THE COMMONWEALTH OF MASSACHUSETTS

William Francis Galvin

Secretary of the Commonwealth

Regulation Filing *To be completed by filing agency*CHAPTER NUMBER: 118 CMR 9.00CHAPTER TITLE: RecordsAGENCY: Disabled Persons Protection CommissionSUMMARY OF REGULATION: *State the general requirements and purposes of this regulation.***Governs the protections afforded to and release of information in the possession of the Commission.**REGULATORY AUTHORITY: M.G.L. c. 19C, §§ 3(b), 3(g), 3(i), 15; chs. 4, 66, and 66A; Massachusetts
Guide to Evidence Section 515AGENCY CONTACT: Andrew Levrault PHONE: 617-727-6465ADDRESS: Disabled Persons Protection Commission, 300 Granite Street, Suite 404,
Braintree, MA 02184Compliance with M.G.L. c. 30AEMERGENCY ADOPTION - *if this regulation is adopted as an emergency, state the nature of the emergency.*PRIOR NOTIFICATION AND/OR APPROVAL - *If prior notification to and/or approval of the Governor, Legislature or others was required, list each notification, and/or approval and date, including notice to the Local Government Advisory Commission.***Local Government Advisory Commission: June 22, 2021: Acknowledgement that regulatory amendments do not impact local government or local officials.**PUBLIC REVIEW - *M.G.L. c. 30A sections 2 and/or 3 requires notice of the hearing or comment period, including a small business impact statement, be filed with the Secretary of the Commonwealth, published in appropriate newspapers, and sent to persons to whom specific notice must be given at least 21 days prior to such hearing or comment period.*Date of public hearing or comment period: June 4, 2021

FISCAL EFFECT - *Estimate the fiscal effect of the public and private sectors.*

For the first and second year: N/A

For the first five years: N/A

No fiscal effect: _____

SMALL BUSINESS IMPACT - *M.G.L. c. 30A section 5 requires each agency to file an amended small business impact statement with the Secretary of the Commonwealth prior to the adoption of a proposed regulation. If the purpose of this regulation is to set rates for the state, this section does not apply.*

Date amended small business impact statement was filed: June 25, 2021

CODE OF MASSACHUSETTS REGULATIONS INDEX - *List key subjects that are relevant to this regulation:*
Abuse of Disabled Person (Persons with Disabilities)
Disabled Persons Protection Commission

PROMULGATION - *State the action taken by this regulation and its effect on existing provisions of the Code of Massachusetts Regulations (CMR) or repeal, replace or amend. List by CMR number:*

118 CMR 9.00: Amend the Commission's regulations pertaining to the confidentiality requirements for and dissemination of its records to incorporate the provisions of Chapter 19 of the Acts of 2020.

ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.* ATTEST:

SIGNATURE: SIGNATURE ON FILE DATE: Jun 29 2021

Publication - *To be completed by the Regulations Division*

MASSACHUSETTS REGISTER NUMBER: 1448 DATE: 07/23/2021

EFFECTIVE DATE: 07/23/2021

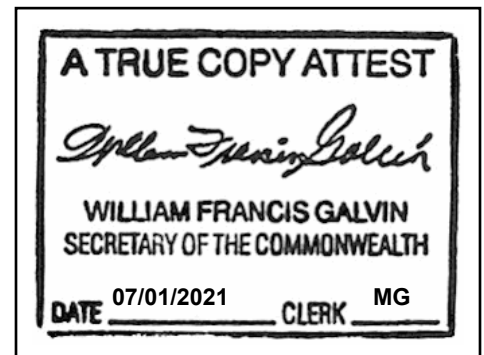
CODE OF MASSACHUSETTS REGULATIONS

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118 CMR 9.00: RECORDS

Section

- 9.01: Scope and Purpose
- 9.02: Controlling Statutes
- 9.03: Release of Information

9.01: Scope and Purpose

118 CMR 9.00 governs the release of information in the possession of the Disabled Persons Protection Commission.

9.02: Controlling Statutes

All records of the Commission shall be subject to the provisions of M.G.L. c. 4, § 7, cl. 26, c. 19C, §§ 3 and 15, c. 66 and c. 66A.

9.03: Release of Information

(1) Limitation on Release of Information. For the purposes of dissemination, the records of the Commission shall not be considered "public records" and any release of said records shall be pursuant to the provisions of M.G.L. c. 4, § 7, cl. 26, c. 66, c. 66A, and 118 CMR 9.00. The following information shall be confidential and shall not be disclosed or otherwise made available to any person, except duly authorized staff of the Commission and the duly authorized staff of an agency within the Executive Office of Health and Human Services to which the Commission has referred a report of abuse for investigation or for the provision of protective services:

- (a) all personal data contained within the report of abuse including, but not limited to, personally identifying information of the person with a disability who is the alleged victim of abuse, of the alleged abuser, of the person who made the report of abuse to the Commission, and of any other third-party;
- (b) any and all notes, papers, documents or other investigative materials including, but not limited to, interview summaries, collected or compiled by personnel duly authorized by the Commission during the course of an investigation;
- (c) all material subject to "peer review privilege" pursuant to M.G.L. c. 111, § 204 and within the possession of personnel duly authorized by the Commission; and
- (d) the information maintained in the registry, including the records of its proceedings.

(2) Release of Investigation Reports to Appropriate Governmental Agencies. Consistent with M.G.L. c. 19C, § 3, as part of its case processing, the Commission shall forward a copy of the Investigation Report or any information maintained in the registry or the records of its proceedings, pursuant to M.G.L. 19C, § 15(e) to the appropriate agency within the Executive Office of Health and Human Services and any other agency of the Commonwealth, to facilitate the performance of that governmental agency's statutory functions, including such releases authorized by 118 CMR 5.02(4)(b)2: *Investigation Report*.

(3) Discretionary Release.

- (a) Consistent with M.G.L. c. 19C, § 3, the Commission may release any records, documents, data, or information that serves a public interest. The exercise of the Commission's discretion shall be based upon a balancing of the respective interests of the public in the protection of persons with disabilities, the privacy of the person whose records are being considered for release, and that such a release serves a public interest in protecting citizens of the Commonwealth. In any event, the discretionary release of information shall contain only that much of the personally identifiable and confidential information the disclosure of which is required by the public interest underlying the release of the information; and
- (b) Personally identifying and confidential information of data subjects and of reporters of abuse that are contained in the records of the Commission shall be redacted from the records when disclosure of such information is not required by the public interest underlying the discretionary release of such records.

9.03: continued

(4) Release Pursuant to Legal Process. Subject to the provisions of 118 CMR 9.00, whenever information or data contained in the documents or data in the possession of the Commission is sought by compulsory legal process in any civil or criminal proceeding, the Commission shall respond to the legal process as the Commission deems appropriate pursuant to M.G.L. c. 19C, § 3 and/or 118 CMR 9.00 which may include, but is not limited to, requesting a protective order or an order quashing the process.

(5) Disclosure of Records to the District Attorney and the Attorney General.

(a) Where litigation or other legal proceeding has been threatened or instituted by a data subject against the Commonwealth, the Commission or a referral agency, or an official or employee of any said entity arising from his or her official duties or scope of employment on behalf of the Commission, any personal data concerning said data subject, held by the Commission, including in the registry or the records of its proceedings, pursuant to M.G.L. 19C, § 15(e) which is relevant to a determination of the issues in dispute, shall be furnished to the Attorney General or authorized assistant attorney general, who may further disclose such personal data to the extent he or she deems necessary for purposes of representing the defendant(s), subject to the conditions in 118 CMR 9.03(5)(a).1 and 2.:

1. Disclosure shall be furnished in response to a written request from the office of the Attorney General which shall indicate the purpose for which the personal data is requested and identify the data requested.

2. Personal data of persons not parties to the litigation or other legal proceeding may be redacted by the Commission to protect the privacy interests of such persons.

(b) In the event that any data maintained by the Commission, including in the registry or the records of its proceedings, pursuant to M.G.L. 19C, § 15(e) indicates a violation or potential violation of law, whether civil, criminal or regulatory in nature, and whether arising under a state law or regulation, rule or order issued pursuant thereto, consistent with M.G.L. c. 19C, § 3, the relevant data may be referred to the District Attorney for the county within which said violation occurred or may occur, to the Attorney General, and to the appropriate regulatory agency, as the case may be, to enforce or implement the statute, rule, regulation or order issued pursuant thereto, or to investigate or prosecute such violation.

(c) Nothing in 118 CMR 9.03(5) shall be construed to authorize the Commission or a referral agency to release information the disclosure of which is prohibited by any statute other than M.G.L. c. 66A.

(6) Release of Information to Data Subjects.

(a) Generally.

1. Subject to the provisions of M.G.L. c. 19C, § 3 and c. 66A, under which such disclosure may be made, any person who is mentioned in an investigation report shall have access to, and may have a copy of, that portion of the investigation report in which he or she is mentioned.

2. To obtain a copy of such information, any data subject including, but not limited to, the person with a disability and the alleged abuser, or their respective legal representatives, must file a written request for such information with the Commission.

3. The Commission shall respond to said request, subject to those restrictions in 118 CMR 9.00, pursuant to the time frames and procedures established in M.G.L. c. 66 and 66A.

(b) The Person with a Disability.

1. Subject to 118 CMR 9.00, M.G.L. c. 19C, § 3 and c. 66A, information contained in the Commission's investigation report regarding the person with a disability shall be available to that person with a disability, his or her legal representative or his or her legally appointed conservator or guardian where the person with a disability has been determined by a court of competent jurisdiction to be incapacitated.

2. When requesting records, the said legally appointed conservator or guardian shall provide the Commission with court documentation verifying his or her appointment by a court of competent jurisdiction.

(c) The Alleged Abuser.

1. Subject to 118 CMR 9.00, M.G.L. c. 19C, § 3 and c. 66A, information contained in the Commission's investigation report regarding the alleged abuser shall be available to that person or his or her legal representative unless the Commission determines that the granting of the request would be contrary to the safety of the person with a disability.

9.03: continued

2. The decision of the Commission not to release such records shall be final and not subject to administrative review; however, the aggrieved party may exercise any other rights or remedies which may be available at law.

(7) Other Provisions.

(a) Prior to the release of any records pursuant to 118 CMR 9.03, the general counsel for the Commission or his or her designee shall review the records and remove any portion of the records which:

1. may be considered attorney work product or privileged;
2. may be personally identifying or confidential information regarding any data subject, including the individual who reported the abuse to the Commission; and
3. is subject to any further provisions contained in 118 CMR 9.00, M.G.L. c. 19C, §§ 3 and 15, c. 66A, and/or c. 4, § 7, cl. 26.

(b) Upon the written request of any individual or any authorized representative of the individual as to whether the Commission has any records in its possession regarding that individual the Commission shall respond pursuant to 118 CMR 9.00, M.G.L. c. 19C, § 3 and/or c. 66A.

(c) The Commission may deny access to information which, at the time the request for such data is received by the Commission, is subject to further investigation by the Commission, a referral agency, or another law enforcement agency, or a registry proceeding, provided that such denial of access shall not in any way affect a data subject's rights under judicial or administrative discovery procedures. Such denial and notification thereof shall be governed by M.G.L. c. 66A, and may continue until said further investigation has been completed, any resulting administrative or judicial proceeding has concluded or one year from the commencement of said further action, whichever is sooner.

(d) Neither the Commission nor the referral agency shall disclose any information about a pending investigation or registry proceeding, except as may be determined by the Commissioners or their designee to be necessary to fulfill the purposes of M.G.L. c. 19C.

(e) The Executive Director, General Counsel and/or a designee of either may determine, in their discretion, that due to either the specific nature of the request and/or the extensive publicity accorded an investigation or a registry proceeding, that mere removal of identifying personal data would be insufficient to protect existing privacy interests, or that disclosure would not be in the public interest; and that accordingly, certain documents or data otherwise subject to disclosure should not be disclosed. In such event, the Executive Director, General Counsel, or a designee shall file in the investigation case file a statement of such determination, together with a specification of the document(s) or data to be withheld as an exemption to the definition of a "public record" set forth in M.G.L. c. 4, § 7, cl. 26, the conditions of withholding such information and a brief statement of reasons for withholding such information. Such withholding of data shall be governed by M.G.L. c. 66A, § 2(i).

(f) Any employee of the Commission who is found to have breached the confidentiality of a data subject through the willful violation of 118 CMR 9.00, in addition to any other applicable penalty, shall be subject to disciplinary action including, but not limited to, reprimand, suspension, dismissal or other such action consistent with the rules and regulations of Massachusetts governing its employees, any relevant collective bargaining agreement or any other contract, and said employee may be denied future access to personal data.

(g) When any employee of a referral agency is found by the Commission to have breached the confidentiality of a data subject during the course of an investigation through a violation of 118 CMR 9.00, the Commission shall refer the matter to the appropriate agency of the Commonwealth for consideration by that agency of imposition of disciplinary measures in accordance with the requirements of any applicable law, regulation, or collective bargaining agreement.

9.03: continued

(h) If an employer has been found to have breached the confidentiality of data subjects, which the employer is entitled to access pursuant to M.G.L. c. 19C, §§ 15(d) and (e), the Commission may take any and all actions necessary to address said breach.

REGULATORY AUTHORITY

118 CMR 9.00: M.G.L. c. 19C, §§ 3(b), 3(g), 3(i) and 15; M.G.L. chs. 4, 66 and 66A; *Massachusetts Guide to Evidence* Section 515.



THE COMMONWEALTH OF MASSACHUSETTS

William Francis Galvin

Secretary of the Commonwealth

Regulation Filing *To be completed by filing agency*CHAPTER NUMBER: 118 CMR 10.00CHAPTER TITLE: Annual ReportsAGENCY: Disabled Persons Protection CommissionSUMMARY OF REGULATION: *State the general requirements and purposes of this regulation.*

Identifies the manner in which the Commission shall make annual reports of its activities to the Governor and the General Court.

REGULATORY AUTHORITY: M.G.L. c. 19C, §§ 3(b), 15(d) and 15(f)AGENCY CONTACT: Andrew Levrault PHONE: 617-727-6465ADDRESS: Disabled Persons Protection Commission, 300 Granite Street, Suite 404,
Braintree, MA 02184Compliance with M.G.L. c. 30AEMERGENCY ADOPTION - *if this regulation is adopted as an emergency, state the nature of the emergency.*

PRIOR NOTIFICATION AND/OR APPROVAL - *If prior notification to and/or approval of the Governor, Legislature or others was required, list each notification, and/or approval and date, including notice to the Local Government Advisory Commission.*

Local Government Advisory Commission: June 22, 2021: Acknowledgement that regulatory amendments do not impact local government or local officials.

PUBLIC REVIEW - *M.G.L. c. 30A sections 2 and/or 3 requires notice of the hearing or comment period, including a small business impact statement, be filed with the Secretary of the Commonwealth, published in appropriate newspapers, and sent to persons to whom specific notice must be given at least 21 days prior to such hearing or comment period.*

Date of public hearing or comment period: June 4, 2021

FISCAL EFFECT - *Estimate the fiscal effect of the public and private sectors.*

For the first and second year: N/A

For the first five years: N/A

No fiscal effect: _____

SMALL BUSINESS IMPACT - *M.G.L. c. 30A section 5 requires each agency to file an amended small business impact statement with the Secretary of the Commonwealth prior to the adoption of a proposed regulation. If the purpose of this regulation is to set rates for the state, this section does not apply.*

Date amended small business impact statement was filed: June 25, 2021

CODE OF MASSACHUSETTS REGULATIONS INDEX - *List key subjects that are relevant to this regulation:*
Abuse of Disabled Person (Persons with Disabilities)
Disabled Persons Protection Commission

PROMULGATION - *State the action taken by this regulation and its effect on existing provisions of the Code of Massachusetts Regulations (CMR) or repeal, replace or amend. List by CMR number:*

118 CMR 10.00: Amend the Commission's reporting requirements to incorporate the provisions of Chapter 19 of the Acts of 2020.

ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.* ATTEST:

SIGNATURE: SIGNATURE ON FILE DATE: Jun 29 2021

Publication - *To be completed by the Regulations Division*

MASSACHUSETTS REGISTER NUMBER: 1448 DATE: 07/23/2021

EFFECTIVE DATE: 07/23/2021

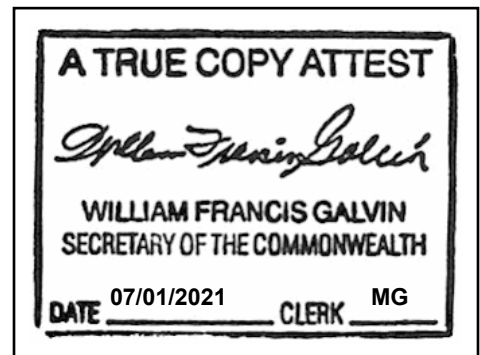
CODE OF MASSACHUSETTS REGULATIONS

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118 CMR 10.00: ANNUAL REPORTS

Section

- 10.01: Scope and Purpose
- 10.02: Time and Recipients of Commission Annual Report
- 10.03: Contents of Commission Annual Report
- 10.04: Time and Recipients of Annual Registry Audit Report
- 10.05: Contents of Annual Registry Audit Report

10.01: Scope and Purpose

118 CMR 10.00 identifies the manner in which the Commission shall make annual reports of its activities to the Governor and the General Court.

10.02: Time and Recipients of Commission Annual Report

The Commission shall report annually to the Governor and the General Court regarding its activities during the previous fiscal year. Said report shall be filed on or about September 15th, and the original shall be presented to the Governor, with copies presented to the President of the Senate and the Speaker of the House of Representatives. Copies shall be filed with the State Library and made available to the public.

10.03: Contents of Commission Annual Report

The annual report may contain:

- (1) statistics of the cases of suspected abuse of persons with disabilities reported to the Commission including, but not limited to, information regarding reporters, referrals made by the Commission, results of and/or actions taken as a result of investigations, and information regarding the delivery of protective services;
- (2) recommendations of the Commission for proposed legislation regarding the protection of persons with disabilities;
- (3) review and analysis of the activities of the Commission's Special Investigation Unit staffed by State Troopers including, but not limited to, the number of criminal cases reported to the Commission, the number of such cases investigated and the type of crimes being committed against persons with disabilities and being reported to the Commission;
- (4) recommendations regarding resource development and unmet needs of persons with disabilities; and
- (5) any other information that the Commission deems relevant to the protection of persons with disabilities.

10.04: Time and Recipients of Annual Registry Audit Report

Annually, the Commission shall perform an audit of the registry to ensure compliance with M.G.L. c. 19C, § 15, including that the Commission added all substantiated findings of registrable abuse to the registry and made proper notification to the department, employers and care providers. A summary of the audit shall be filed not later than October 31st of each year with the clerks of the house of representatives and senate, the house and senate committees on ways and means and the joint committee on children, families and persons with disabilities.

10.05: Contents of Annual Registry Audit Report

The annual registry audit report shall include, in a de-identified and aggregate form:

- (1) the number of substantiated findings of abuse found or not found to have been registrable;

10.05: continued

- (2) the number of people on the registry;
- (3) the number of people who were added to the registry in the last fiscal year;
- (4) the number of substantiated findings of registrable abuse that were appealed in the last fiscal year;
- (5) the number of substantiated findings of registrable abuse that were overturned on appeal in the last fiscal year;
- (6) the number of requests made by employers for information from the registry and the number of such requests that were granted in the last fiscal year;
- (7) the total number of instances in the last fiscal year in which the Commission failed to notify the department or the last known employer of a care provider who was placed on the registry and the reasons for such failures; and
- (8) the number of employers found to have failed to meet the requirements of M.G.L. c. 19C, § 15(d) in the last fiscal year.

REGULATORY AUTHORITY

118 CMR 10.00: M.G.L. c. 19C, §§ 3(b), 15(d) and 15(f).



THE COMMONWEALTH OF MASSACHUSETTS

William Francis Galvin

Secretary of the Commonwealth

Regulation Filing *To be completed by filing agency*CHAPTER NUMBER: 118 CMR 11.00CHAPTER TITLE: Interagency AgreementsAGENCY: Disabled Persons Protection CommissionSUMMARY OF REGULATION: *State the general requirements and purposes of this regulation.*

Identifies the circumstances and purpose for which the Commission may enter into interagency agreements in furtherance of the Commission's statutory mandate.

REGULATORY AUTHORITY: M.G.L. c. 19C, § 3(b)AGENCY CONTACT: Andrew Levrault PHONE: 617-727-6465ADDRESS: Disabled Persons Protection Commission, 300 Granite Street, Suite 404,
Braintree, MA 02184Compliance with M.G.L. c. 30AEMERGENCY ADOPTION - *if this regulation is adopted as an emergency, state the nature of the emergency.*

PRIOR NOTIFICATION AND/OR APPROVAL - *If prior notification to and/or approval of the Governor, Legislature or others was required, list each notification, and/or approval and date, including notice to the Local Government Advisory Commission.*

Local Government Advisory Commission: June 22, 2021: Acknowledgement that regulatory amendments do not impact local government or local officials.

PUBLIC REVIEW - *M.G.L. c. 30A sections 2 and/or 3 requires notice of the hearing or comment period, including a small business impact statement, be filed with the Secretary of the Commonwealth, published in appropriate newspapers, and sent to persons to whom specific notice must be given at least 21 days prior to such hearing or comment period.*

Date of public hearing or comment period: June 4, 2021

FISCAL EFFECT - *Estimate the fiscal effect of the public and private sectors.*

For the first and second year: N/A

For the first five years: N/A

No fiscal effect: _____

SMALL BUSINESS IMPACT - *M.G.L. c. 30A section 5 requires each agency to file an amended small business impact statement with the Secretary of the Commonwealth prior to the adoption of a proposed regulation. If the purpose of this regulation is to set rates for the state, this section does not apply.*

Date amended small business impact statement was filed: June 25, 2021

CODE OF MASSACHUSETTS REGULATIONS INDEX - *List key subjects that are relevant to this regulation:*
Abuse of Disabled Person (Persons with Disabilities)
Disabled Persons Protection Commission

PROMULGATION - *State the action taken by this regulation and its effect on existing provisions of the Code of Massachusetts Regulations (CMR) or repeal, replace or amend. List by CMR number:*

118 CMR 11.00: Update cross-referenced citations to reflect changes made to other sections of Title 118 CMR.

ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.* ATTEST:

SIGNATURE: SIGNATURE ON FILE DATE: Jun 29 2021

Publication - *To be completed by the Regulations Division*

MASSACHUSETTS REGISTER NUMBER: 1448 DATE: 07/23/2021

EFFECTIVE DATE: 07/23/2021

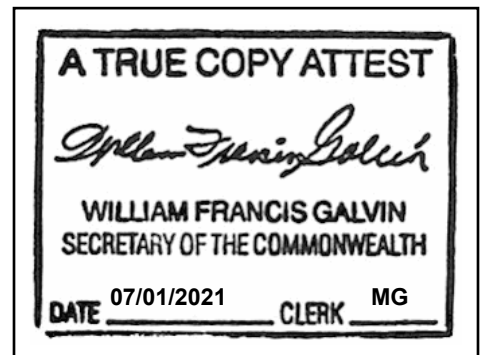
CODE OF MASSACHUSETTS REGULATIONS

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118 CMR: DISABLED PERSONS PROTECTION COMMISSION

118 CMR 11.00: INTERAGENCY AGREEMENTS

Section

11.01: Scope and Purpose

11.02: Discretionary Authority to Enter Agreements

11.01: Scope and Purpose

118 CMR 11.00 identifies the circumstances and purposes for which the Commission may enter into interagency agreements in furtherance of the Commission's statutory mandate.

11.02: Discretionary Authority to Enter Agreements

The Commission may, at the discretion of the Commissioners, enter into agreements with state and federal agencies, agencies established by the federal government, and private entities to fulfill the mandate of M.G.L. c. 19C and the requirements of 118 CMR.

REGULATORY AUTHORITY

118 CMR 11.00: M.G.L. c. 19C, § 3(b).

NON-TEXT PAGE



THE COMMONWEALTH OF MASSACHUSETTS

William Francis Galvin

Secretary of the Commonwealth

Regulation Filing *To be completed by filing agency*CHAPTER NUMBER: **118 CMR 12.00**CHAPTER TITLE: **Non-discrimination**AGENCY: **Disabled Persons Protection Commission**SUMMARY OF REGULATION: *State the general requirements and purposes of this regulation.***Identifies that in pursuing its statutory mandate the Commission will not discriminate against any party to an investigation.**REGULATORY AUTHORITY: **M.G.L. c. 19C, § 3(b).**AGENCY CONTACT: **Andrew Levrault** PHONE: **617-727-6465**ADDRESS: **Disabled Persons Protection Commission, 300 Granite Street, Suite 404,
Braintree, MA 02184****Compliance with M.G.L. c. 30A**EMERGENCY ADOPTION - *if this regulation is adopted as an emergency, state the nature of the emergency.*PRIOR NOTIFICATION AND/OR APPROVAL - *If prior notification to and/or approval of the Governor, Legislature or others was required, list each notification, and/or approval and date, including notice to the Local Government Advisory Commission.***Local Government Advisory Commission: June 22, 2021: Acknowledgement that regulatory amendments do not impact local government or local officials.**PUBLIC REVIEW - *M.G.L. c. 30A sections 2 and/or 3 requires notice of the hearing or comment period, including a small business impact statement, be filed with the Secretary of the Commonwealth, published in appropriate newspapers, and sent to persons to whom specific notice must be given at least 21 days prior to such hearing or comment period.*Date of public hearing or comment period: **June 4, 2021**

FISCAL EFFECT - *Estimate the fiscal effect of the public and private sectors.*

For the first and second year: N/A

For the first five years: N/A

No fiscal effect: _____

SMALL BUSINESS IMPACT - *M.G.L. c. 30A section 5 requires each agency to file an amended small business impact statement with the Secretary of the Commonwealth prior to the adoption of a proposed regulation. If the purpose of this regulation is to set rates for the state, this section does not apply.*

Date amended small business impact statement was filed: June 25, 2021

CODE OF MASSACHUSETTS REGULATIONS INDEX - *List key subjects that are relevant to this regulation:*
Abuse of Disabled Person (Persons with Disabilities)
Disabled Persons Protection Commission

PROMULGATION - *State the action taken by this regulation and its effect on existing provisions of the Code of Massachusetts Regulations (CMR) or repeal, replace or amend. List by CMR number:*

118 CMR 12.00: Update cross-referenced citations to reflect changes made to other sections of Title 118 CMR.

ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.* ATTEST:

SIGNATURE: SIGNATURE ON FILE DATE: Jun 29 2021

Publication - *To be completed by the Regulations Division*

MASSACHUSETTS REGISTER NUMBER: 1448 DATE: 07/23/2021

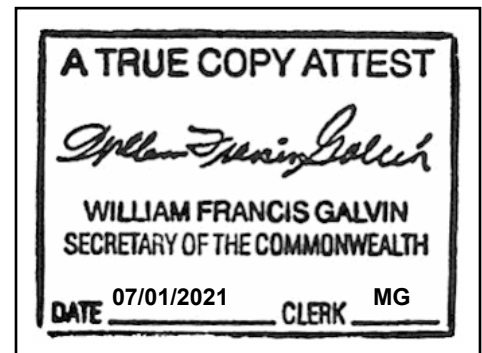
EFFECTIVE DATE: 07/23/2021

CODE OF MASSACHUSETTS REGULATIONS

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118 CMR: DISABLED PERSONS PROTECTION COMMISSION

118 CMR 12.00: NON-DISCRIMINATION

Section

12.01: Scope and Purpose

12.02: Statement of Non-discrimination Policy

12.01: Scope and Purpose

118 CMR 12.00 identifies that in pursuing its statutory mandate the Commission will not discriminate against any party to an investigation.

12.02: Statement of Non-discrimination Policy

No subject of a report or recipient of protective services shall be excluded from participation in, denied the benefits of, or otherwise be subjected to discrimination in connection with any services provided or performed by the Commission, on the basis of race, creed, color, religion, age, ancestry, marital status, gender identity, sex, language, disability, national origin, or sexual orientation.

REGULATORY AUTHORITY

118 CMR 12.00: M.G.L. c. 19C, § 3(b).

NON-TEXT PAGE



THE COMMONWEALTH OF MASSACHUSETTS

William Francis Galvin

Secretary of the Commonwealth

Regulation Filing *To be completed by filing agency*CHAPTER NUMBER: 118 CMR 13.00CHAPTER TITLE: Advisory CouncilAGENCY: Disabled Persons Protection CommissionSUMMARY OF REGULATION: *State the general requirements and purposes of this regulation.*

Establishes an Advisory Council to assist the Commission in developing policies that are consistent with and responsive to the needs of persons with disabilities.

REGULATORY AUTHORITY: M.G.L. c. 19C, §§ 3(b) and 3(f).AGENCY CONTACT: Andrew Levrault PHONE: 617-727-6465ADDRESS: Disabled Persons Protection Commission, 300 Granite Street, Suite 404,
Braintree, MA 02184Compliance with M.G.L. c. 30AEMERGENCY ADOPTION - *if this regulation is adopted as an emergency, state the nature of the emergency.*

PRIOR NOTIFICATION AND/OR APPROVAL - *If prior notification to and/or approval of the Governor, Legislature or others was required, list each notification, and/or approval and date, including notice to the Local Government Advisory Commission.*

Local Government Advisory Commission: June 22, 2021: Acknowledgement that regulatory amendments do not impact local government or local officials.

PUBLIC REVIEW - *M.G.L. c. 30A sections 2 and/or 3 requires notice of the hearing or comment period, including a small business impact statement, be filed with the Secretary of the Commonwealth, published in appropriate newspapers, and sent to persons to whom specific notice must be given at least 21 days prior to such hearing or comment period.*

Date of public hearing or comment period: June 4, 2021

FISCAL EFFECT - *Estimate the fiscal effect of the public and private sectors.*

For the first and second year: N/A

For the first five years: N/A

No fiscal effect: _____

SMALL BUSINESS IMPACT - *M.G.L. c. 30A section 5 requires each agency to file an amended small business impact statement with the Secretary of the Commonwealth prior to the adoption of a proposed regulation. If the purpose of this regulation is to set rates for the state, this section does not apply.*

Date amended small business impact statement was filed: June 25, 2021

CODE OF MASSACHUSETTS REGULATIONS INDEX - *List key subjects that are relevant to this regulation:*
Abuse of Disabled Person (Persons with Disabilities)
Disabled Persons Protection Commission

PROMULGATION - *State the action taken by this regulation and its effect on existing provisions of the Code of Massachusetts Regulations (CMR) or repeal, replace or amend. List by CMR number:*

118 CMR 13:00: Update cross-referenced citations to reflect changes made to other sections of Title 118 CMR.

ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.* ATTEST:

SIGNATURE: SIGNATURE ON FILE DATE: Jun 29 2021

Publication - *To be completed by the Regulations Division*

MASSACHUSETTS REGISTER NUMBER: 1448 DATE: 07/23/2021

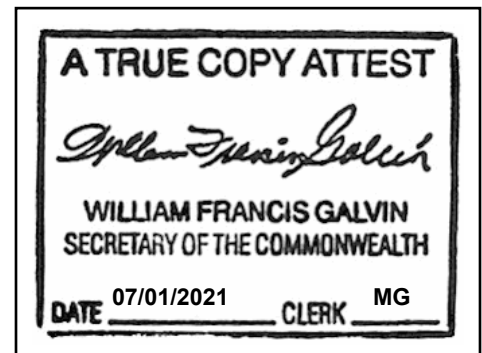
EFFECTIVE DATE: 07/23/2021

CODE OF MASSACHUSETTS REGULATIONS

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118 CMR: DISABLED PERSONS PROTECTION COMMISSION

118 CMR 13.00: ADVISORY COUNCIL

Section

13.01: Scope and Purpose

13.02: Nature and Purpose of the Advisory Council

13.01: Scope and Purpose

118 CMR 13.00 identifies the establishment of an Advisory Council to assist the Commission in developing policy that is consistent with and responsive to the needs of persons with disabilities.

13.02: Nature and Purpose of the Advisory Council

- (1) The Commissioners shall appoint a council of citizens of the Commonwealth who shall advise the Commissioners on matters of policy regarding M.G.L. c. 19C. No employee of the Commission may be a voting member of the Advisory Council.
- (2) The Advisory Council shall have no fewer than three but no more than 15 members. A Chairperson shall be selected from the membership of the Advisory Council by its members. Said chairperson shall serve in that position for one year, beginning on September 1st, and may serve successive terms.
- (3) The Advisory Council shall meet at least annually at a place and time determined by the Council.
- (4) For purposes of tort claims and conflicts of interest, all members of the Commission's Advisory Council shall be special state employees.

REGULATORY AUTHORITY

118 CMR 13.00: M.G.L. c. 19C, §§ 3(b) and 3(f).

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THE COMMONWEALTH OF MASSACHUSETTS

William Francis Galvin

Secretary of the Commonwealth

Regulation Filing *To be completed by filing agency*CHAPTER NUMBER: 118 CMR 14.00CHAPTER TITLE: Filing Objections and Administrative ReviewAGENCY: Disabled Persons Protection CommissionSUMMARY OF REGULATION: *State the general requirements and purposes of this regulation.*

Governs the petition process available to certain parties to a M.G.L. c. 19C investigation and the objection process available to data subjects.

REGULATORY AUTHORITY: M.G.L. c. 19C, §§ 3, 3(b), 3(g), 3(i), 15; c. 66, c. 66A; c. 214, § 3BAGENCY CONTACT: Andrew Levrault PHONE: 617-727-6465ADDRESS: Disabled Persons Protection Commission, 300 Granite Street, Suite 404,
Braintree, MA 02184Compliance with M.G.L. c. 30AEMERGENCY ADOPTION - *if this regulation is adopted as an emergency, state the nature of the emergency.*

PRIOR NOTIFICATION AND/OR APPROVAL - *If prior notification to and/or approval of the Governor, Legislature or others was required, list each notification, and/or approval and date, including notice to the Local Government Advisory Commission.*

Local Government Advisory Commission: June 22, 2021: Acknowledgement that regulatory amendments do not impact local government or local officials.

PUBLIC REVIEW - *M.G.L. c. 30A sections 2 and/or 3 requires notice of the hearing or comment period, including a small business impact statement, be filed with the Secretary of the Commonwealth, published in appropriate newspapers, and sent to persons to whom specific notice must be given at least 21 days prior to such hearing or comment period.*

Date of public hearing or comment period: June 4, 2021

FISCAL EFFECT - *Estimate the fiscal effect of the public and private sectors.*

For the first and second year: N/A

For the first five years: N/A

No fiscal effect: _____

SMALL BUSINESS IMPACT - *M.G.L. c. 30A section 5 requires each agency to file an amended small business impact statement with the Secretary of the Commonwealth prior to the adoption of a proposed regulation. If the purpose of this regulation is to set rates for the state, this section does not apply.*

Date amended small business impact statement was filed: June 25, 2021

CODE OF MASSACHUSETTS REGULATIONS INDEX - *List key subjects that are relevant to this regulation:*
Abuse of Disabled Person (Persons with Disabilities)
Disabled Persons Protection Commission

PROMULGATION - *State the action taken by this regulation and its effect on existing provisions of the Code of Massachusetts Regulations (CMR) or repeal, replace or amend. List by CMR number:*

118 CMR 14.00: Amend the Commission's administrative review process to incorporate the requirements of Chapter 19 of the Acts of 2020.

ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.* ATTEST:

SIGNATURE: SIGNATURE ON FILE DATE: Jun 29 2021

Publication - *To be completed by the Regulations Division*

MASSACHUSETTS REGISTER NUMBER: 1448 DATE: 07/23/2021

EFFECTIVE DATE: 07/23/2021

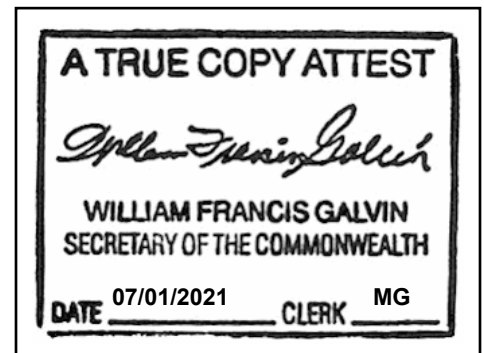
CODE OF MASSACHUSETTS REGULATIONS

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118 CMR 14.00: FILING OBJECTIONS AND ADMINISTRATIVE REVIEW

Section

- 14.01: Scope and Purpose
- 14.02: Petitions for Review
- 14.03: Entry of Care Provider's Name on the Registry
- 14.04: Removal of Care Provider's Name from the Registry: Petitions for Removal
- 14.05: Notification regarding Registrable Abuse Cases and Proceedings
- 14.06: Requests for Reconsideration
- 14.07: Objections Filed Pursuant to M.G.L. c. 66A

14.01: Scope and Purpose

118 CMR 14.00 governs the petition process available to certain parties to a M.G.L. c. 19C investigation and the objection process available to data subjects.

14.02: Petitions for Review

(1) Parties Who May File Petitions for Review. The identified abuser, or their respective legal representative, who is aggrieved by the disposition of an investigation conducted pursuant to M.G.L. c. 19C may file with the Commission an objection to the conclusion contained in the M.G.L. c. 19C investigation report, except for decisions regarding the screening of an intake, the assignment of an investigator, a jurisdictional determination, the deferral of an investigation pursuant to M.G.L. c. 19C, § 12, or findings in a Compliance Investigation Report.

(2) Grounds for Objection to a Determination of Abuse or Registrable Abuse. The grounds for filing a Petition for Review objecting to a determination of abuse are:

- (a) The investigation report is based on an investigation that was not conducted in accordance with:
 - 1. 118 CMR 5.02(1): Minimum Requirements of Abuse Investigations and/or 118 CMR 5.02(2): *Substantiated Investigations of Abuse of Persons with Intellectual or Developmental Disability*; and
 - 2. said non-compliance resulted in the reasonable likelihood of substantial prejudice to the petitioner;
- (b) The preponderance of evidence does not support the conclusions reached in the investigation report; or
- (c) The preponderance of evidence supports conclusions not reached in the investigation report.

(3) Grounds for Objection by a Care Provider to Placement on the Abuser Registry.

- (a) A care provider substantiated for registrable abuse pursuant to 118 CMR 5.02(2)(b) may file a Petition for Review to provide information that demonstrates, based upon the totality of the circumstances, the incident was isolated and unlikely to reoccur, and that the care provider is fit to provide services or supports to persons with intellectual or developmental disabilities, and that the care provider should not be placed on the registry.
- (b) Factors that may be considered by the Commission in determining whether the incident was isolated and unlikely to reoccur and the care provider is fit to provide services and supports to persons with intellectual or developmental disabilities may include, but are not limited to:
 - 1. the nature and extent of the serious physical injury, serious emotional injury, or abuse *per se* sustained by the person with an intellectual disability or person with a developmental disability; and
 - 2. relevant details about the care provider, such as whether the care provider received training relevant to the incident at issue; the care provider's employment history in working with individuals with disabilities; prior instances of similar conduct by the care provider, regardless of whether said conduct constituted abuse or abuse *per se*; any statements or communication regarding the care provider's work history and fitness to provide services and supports to persons with disabilities; and whether the care provider's conduct could reasonably be addressed through training, education, rehabilitation, or other corrective employment action and the care provider's willingness to engage in said training, education, or other corrective employment action.

14.02: continued

(4) Petition Process.

(a) Petition for Review.

1. A petitioner shall file a Petition for Review which:
 - a. shall be in writing;
 - b. shall set forth with sufficient specificity, including supporting evidence and documentation, the grounds for the petition; and
 - c. shall be filed with the Executive Director of the Commission, or his or her designee.
2. Said Petition for Review shall be filed with the Commission within ten business days of the petitioner's receipt of a copy of the investigation report from the Commission.
3. For good cause shown by the petitioner, the Commission may, at its sole discretion, provide up to an additional 30 calendar days for the filing of a Petition for Review.

(b) Action upon Petition for Review.

1. Within a reasonable time from the filing of the Petition for Review, the Executive Director or his or her designee shall render a decision in writing on the issue(s) in contention in the petition, including a statement of the nature of the decision and the reasons underlying said decision.
2. A decision rendered by the Executive Director or his or her designee shall be the final and conclusive determination of the Commission of the objection raised in the filed petition in each case.

(c) Time Frames. The Commission's good faith failure to meet the time frames set forth in 118 CMR 14.00 shall not confer any rights, either expressly or impliedly, upon the petitioner.

(5) Notification of Right to Petition for Review:

(a) Notification to Caretaker. If, after investigation, the Commission determines that a caretaker has committed abuse, the Commission shall notify the caretaker of his or her right to file a petition for review of the finding with the Commission.

1. Said notification shall be provided to the caretaker by first-class mail to the caretaker's last known address.
2. If notice provided pursuant to 118 CMR 14.02(5)(a)1. cannot be accomplished, the Commission, at its sole discretion, may provide for any other means of service that is necessary and effective.
3. Unless otherwise established by the petitioner, and subject to the provisions of 118 CMR 14.02(5)(a)2., the petitioner shall be deemed to have received notification three business days after mailing by the Commission.

(b) Notification to Care Provider. If the Commission determines that a care provider has committed registrable abuse pursuant to 118 CMR 5.02(2)(b), the Commission shall:

1. notify the care provider of his or her:
 - a. right to file a petition for review of the finding of registrable abuse with the Commission;
 - b. right to appeal the final decision of the Commission that the care provider committed registrable abuse to the division; and
 - c. right to seek removal of his or her name from the registry as provided in M.G.L. c. 19C, § 15(g).
2. Said notification shall be provided to the care provider by certified mail, return receipt requested and by separate first-class mail to the care provider's last known address.
3. Unless otherwise established by the petitioner, and subject to the provisions of 118 CMR 14.02(5)(b)2., the care provider shall be deemed to have received notification three business days after first-class mailing by the Commission.
4. If notice pursuant to 118 CMR 14.02(5)(b)2. cannot be accomplished, the Commission, at its sole discretion, may provide for any other means of service that is necessary and effective.
5. Said notification shall instruct the care provider of the opportunity to offer evidence that the incident was isolated and unlikely to reoccur and that the care provider is fit to provide services or supports to persons with intellectual or developmental disabilities pursuant to 118 CMR 14.02(3).

14.03: Entry of Care Provider's Name on the Registry

- (1) If, after notification has been made to the care provider pursuant to 118 CMR 14.02(5)(b) and no petition for review is received by the Commission within the timeframe as prescribed by 118 CMR 14.02(4)(a), then the Commission shall enter the care provider's name and date of birth, and any other unique identifiers which confirm the identity of a care provider, on the registry.
- (2) In any petition decision on an objection filed pursuant to 118 CMR 14.02(3), the Commission shall notify the care provider of his or her right to appeal said decision with the division by initiating an appeal in the form and manner prescribed by the division within 13 business days after mailing of such decision to the care provider's last known address by the Commission.
- (3) If, after a final decision by the Commission pursuant to 118 CMR 14.02(4)(b)2. on a petition for review that the care provider has committed registrable abuse, the care provider does not seek further review with the division as provided by 118 CMR 14.03(2), then the Commission shall enter on the registry the care provider's name and date of birth, and any other unique identifiers which confirm the identity of the care provider
- (4) If the care provider seeks review of a petition decision with the division, the Commission shall not enter the care provider's identifying information on the registry, unless and until the division issues a final decision affirming the finding of the Commission. Upon said affirmance by the division, the Commission shall enter the care provider's name and date of birth, and any other unique identifiers which confirm the identity of a care provider, on the registry.

14.04: Removal of Care Provider's Name from the Registry: Petitions for Removal

- (1) Five years following the entry of the care provider's name on the registry as provided in 118 CMR 14.03, or five years after the conclusion of any prior petition initiated under 118 CMR 14.04, the registered abuser shall have the right to petition for removal from the registry.
 - (a) Said petition shall be in the form as prescribed by 118 CMR 14.02(4)(a)1.; and
 - (b) Said petition shall set forth the grounds on which the registered abuser asserts that, based upon the preponderance of evidence, in considering the totality of the circumstances it is no longer in the interest of persons with intellectual or developmental disabilities and it is no longer in the public interest to exclude the registered abuser from working as a care provider.
- (2) In reviewing a petition filed pursuant to this section, the Commission's consideration of the totality of the circumstances since the care provider's name was entered on the registry or the last petition for removal may include, but need not be limited to, the following factors:
 - (a) The nature and seriousness of the offense that caused the care provider to be placed on the registry;
 - (b) any subsequent education, training, counseling, or other efforts at rehabilitation made by the registered abuser;
 - (c) the registered abuser's employment history, including statements of current or former employers;
 - (d) any statement or communication by the victim of registrable abuse or if applicable, his or her legal representative;
 - (e) the status or outcome of any criminal investigation or proceeding related to the abuse at issue;
 - (f) the outcome of any other regulatory, administrative, licensing, or disciplinary proceeding pertaining to the registered abuser; and
 - (g) any material changes in life circumstances of the registered abuser.

14.05: Notification regarding Registrable Abuse Cases and Proceedings

In a form and manner prescribed by the Commission, the Commission shall notify the department, the care provider's last known employer(s), the victim of registrable abuse, and if applicable, the guardian of said victim of the following:

14.05: continued

- (1) a substantiated finding of registrable abuse against a care provider;
- (2) the care provider has filed a petition with the Commission;
- (3) the Commission has issued a decision on a petition by a care provider;
- (4) the care provider has initiated an appeal of a petition decision with the division;
- (5) the division has issued a decision on an appeal of a petition decision;
- (6) the care provider has sought judicial review of a decision by the division; or
- (7) any final decision issued by a court as it pertains to the finding of registrable abuse or removal from the registry by the care provider.

14.06: Requests for Reconsideration

- (1) The alleged victim or his or her legal representative, who is aggrieved by the disposition of an investigation conducted pursuant to M.G.L. c. 19C may file with the Commission a request for reconsideration. The alleged victim shall not be considered aggrieved by decisions regarding the screening of an intake, the assignment of an investigator, the deferral of an investigation pursuant to M.G.L. c. 19C, § 12, a jurisdictional determination, a finding of abuse or registrable abuse that has been substantiated against one or more abusers, or a Commission decision on a Petition for Review or Petition for Removal.
- (2) The grounds for filing a request for reconsideration are:
 - (a) The investigation report was not conducted in accordance with:
 1. 118 CMR 5.02(1): *Minimum Requirements of Abuse Investigations*; or 118 CMR 5.02(2): *Additional Minimum Requirements of Investigations of Registrable Abuse*; and
 2. said noncompliance resulted in the reasonable likelihood of substantial prejudice to the alleged victim; or
 - (b) The conclusions reached in the investigation report are not supported by the preponderance of evidence.
- (3) Action upon Request for Reconsideration.
 - (a) Within a reasonable time frame from the filing of a Request for Reconsideration, the Executive Director or his or her designee shall render a decision in writing on the issue(s) in contention in the Request, including a statement of the nature of the decision, and the reason underlying said decision. If the decision finds that further investigation is warranted, said investigation shall proceed in accordance with 118 CMR 5.06: *Commission Review of Investigation Report*.
 - (b) A decision rendered by the Executive Director or his or her designee shall be the final and conclusive determination of the Commission of the grounds raised in the Request for Reconsideration.

14.07: Objections Filed Pursuant to M.G.L. c. 66A

- (1) Objections by Data Subjects regarding Data Held by the Commission.
 - (a) A data subject who objects to the accuracy, completeness, pertinence, timeliness, relevance or dissemination of personal data held by the Commission regarding him or her, may file an objection with the Executive Director of the Commission pursuant to M.G.L. c. 66A.
 - (b) The objection shall:
 1. be in writing; and
 2. set forth with specificity the reason(s) for the objection.
 - (c) Within a reasonable time after the receipt of such an objection, the Executive Director or his or her designee shall review the objection and:

14.07: continued

1. correct or amend the personal data if there is no disagreement with the data subject as to whether the change or amendment should be made; or
 2. if there is disagreement with the data subject as to whether the change or amendment should be made, assure the data subject's claim is noted and included as part of the data subject's personal data and included in any subsequent disclosure or dissemination of the disputed data.
- (d) notify the data subject in writing of a decision and the reasons underlying said decision.
- (2) Objection by Data Subjects to Denial of Access to Data Held by the Commission.
- (a) A data subject who objects to the Commission's denial of access to that person's own data held by the Commission may file an objection with the Executive Director of the Commission pursuant to M.G.L. c. 66A.
 - (b) Such objection shall be:
 1. in writing; and
 2. filed within 30 days of the data subject's receipt of notification of said denial to access to data held by the Commission.
 - (c) Within a reasonable time after the receipt of such an objection, the Executive Director or his or her designee shall review the objection and send written notification of his or her decision to the objector, including a statement of the nature of the decision and the reasons therefore. Said objection and decision shall be retained by the Commission.
 - (d) The action taken by the Executive Director or his or her designee pursuant to 118 CMR 14.03 shall be the final and conclusive administrative determination concerning denied access to the data held by the Commission.
- (3) Time Frames. The time periods contemplated by 118 CMR 14.07 may be extended by the Executive Director or his or her designee for good cause shown. The Commission's good faith failure to meet the time frames set forth within 118 CMR 14.07 shall not confer any rights, either expressly or impliedly, upon the objector.
- (4) Judicial Relief. Any data subject who wishes to challenge any decision of the Executive Director of the Commission regarding personal data may seek judicial review of said decision pursuant to M.G.L. c. 214, § 3B. In the event of any civil action filed pursuant to M.G.L. c. 214, § 3B, the failure to exhaust available administrative remedies shall be an absolute defense.

REGULATORY AUTHORITY

118 CMR 14.00: M.G.L. c. 19C, §§ 3, 3(b), 3(g), 3(i) and 15; c. 66, c. 66A, and c. 214, § 3B.

NON-TEXT PAGE



THE COMMONWEALTH OF MASSACHUSETTS

William Francis Galvin
Secretary of the Commonwealth

Regulation Filing *To be completed by filing agency*CHAPTER NUMBER: 118 CMR 15.00CHAPTER TITLE: Department and Employer Registry-related Hiring and Retention ProceduresAGENCY: Disabled Persons Protection CommissionSUMMARY OF REGULATION: *State the general requirements and purposes of this regulation.*

Establish the standards for the Department and Employers to vet prospective and current employers through the registry of abusers of persons with intellectual and developmental disabilities as required by Chapter 19 of the Acts of 2020. Describe processes for ensuring compliance as well as the resolution of disputes regarding the identity of care providers.

REGULATORY AUTHORITY: M.G.L. c. 19C, § 15AGENCY CONTACT: Andrew Levrault PHONE: 617-727-6465ADDRESS: Disabled Persons Protection Commission, 300 Granite Street, Suite 404,
Braintree, MA 02184Compliance with M.G.L. c. 30AEMERGENCY ADOPTION - *if this regulation is adopted as an emergency, state the nature of the emergency.*

PRIOR NOTIFICATION AND/OR APPROVAL - *If prior notification to and/or approval of the Governor, Legislature or others was required, list each notification, and/or approval and date, including notice to the Local Government Advisory Commission.*

Local Government Advisory Commission: June 22, 2021: Acknowledgement that regulatory amendments do not impact local government or local officials.

PUBLIC REVIEW - *M.G.L. c. 30A sections 2 and/or 3 requires notice of the hearing or comment period, including a small business impact statement, be filed with the Secretary of the Commonwealth, published in appropriate newspapers, and sent to persons to whom specific notice must be given at least 21 days prior to such hearing or comment period.*

Date of public hearing or comment period: June 4, 2021

FISCAL EFFECT - *Estimate the fiscal effect of the public and private sectors.*

For the first and second year: N/A

For the first five years: N/A

No fiscal effect: _____

SMALL BUSINESS IMPACT - *M.G.L. c. 30A section 5 requires each agency to file an amended small business impact statement with the Secretary of the Commonwealth prior to the adoption of a proposed regulation. If the purpose of this regulation is to set rates for the state, this section does not apply.*

Date amended small business impact statement was filed: June 25, 2021

CODE OF MASSACHUSETTS REGULATIONS INDEX - *List key subjects that are relevant to this regulation:*
Abuse of Disabled Person (Persons with Disabilities)
Disabled Persons Protection Commission

PROMULGATION - *State the action taken by this regulation and its effect on existing provisions of the Code of Massachusetts Regulations (CMR) or repeal, replace or amend. List by CMR number:*

118 CMR 15.00: Creates this section.

ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.* ATTEST:

SIGNATURE: SIGNATURE ON FILE DATE: Jun 29 2021

Publication - *To be completed by the Regulations Division*

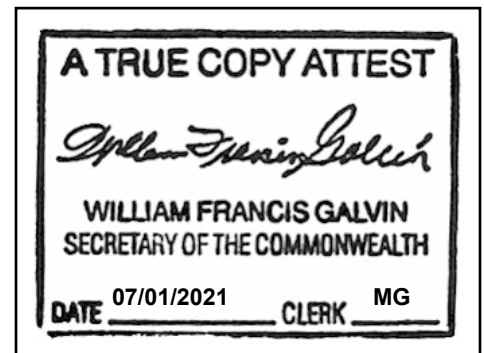
MASSACHUSETTS REGISTER NUMBER: 1448 DATE: 07/23/2021

EFFECTIVE DATE: 07/23/2021

CODE OF MASSACHUSETTS REGULATIONS

Remove these pages: _____ *Insert these pages:* _____

59 & 60



118 CMR 15.00: DEPARTMENT AND EMPLOYER REGISTRY-RELATED HIRING AND RETENTION PROCEDURES

Section

- 15.01: Scope and Purpose
- 15.02: Policy
- 15.03: Responsibilities of the Department or the Employer
- 15.04: Recurrent Registry Screening
- 15.05: Compliance Reviews
- 15.06: Disputes regarding the Identity of a Care Provider

15.01: Scope and Purpose

118 CMR 15.00 governs the operations of the registry of care providers against whom the Commission has made a substantiated finding of registrable abuse as prescribed by M.G.L. c. 19C, § 15. 118 CMR 15.00 is applicable to all current and prospective care providers in any program licensed, contracted, or funded by the department; and any individual who provides services on behalf of any program licensed or funded by, or contracting with the department.

15.02: Policy

In order to ensure that care providers in any facility or program licensed or funded by the department or contracting with the department are appropriate for serving in their respective capacities, employers and the department must meet all requirements of 118 CMR 15.02 in performing inquiries to the abuser registry.

15.03: Responsibilities of the Department or the Employer

- (1) The department or the employer shall ensure that all requirements of 118 CMR 15.00 have been met, as applicable.
- (2) In accordance with M.G.L. c. 19C, § 15, prior to employing, contracting with, or utilizing the services of a care provider, the department or the employer shall perform a search of the registry for the care provider's identity. The department or the employer shall require as a condition of employment the satisfactory completion of a registry search. The department or the employer shall offer employment, contract with, or agree to utilize services only after the results of a registry search have found the prospective care provider absent from the abuser registry.
- (3) The department or the employer shall ensure each prospective care provider signs a written consent to a search of the registry prior to performing the search. The department or the employer shall inform the prospective care provider that his or her personal information will be used to make a registry search. Documentation of such consent and notification shall be included in the employer's or the department's employment application materials.
- (4) A search of the registry shall be conducted on care providers who have had a break in employment of one year or more from the department or employer prior to recommencing employment in same manner as a prospective care provider pursuant to 118 CMR 15.03(2) and (3).
- (5) If the care provider's identifying information appears on the registry, or if the care provider declines to consent to a registry search, the department or the employer shall not employ, contract with, or utilize the services of the care provider.
- (6) If the department or the employer receives notification pursuant to 118 CMR 14.05: *Notification Regarding Registrable Abuse Cases and Proceedings* that it is currently employing, contracting with, or utilizing the services of a care provider listed on the registry, the department or employer shall immediately terminate the employment, contract, or utilization of services of said care provider.

15.03: continued

(7) Upon any failure to hire or termination effective pursuant to 118 CMR 15.03, the department or employer shall provide the care provider with the contact information for the Commission.

15.04: Recurrent Registry Screening

(1) The department or employer may, at its own discretion, perform a registry search for any current care provider who the department or employer employs, contracts with, or utilizes the services of.

(2) The department or the employer shall ensure each care provider signs a written consent to a search of the abuser registry prior to performing the search. The department or the employer shall inform the care provider that his or her personal information will be used to make a registry search. Documentation of such consent and notification shall be included in the care provider's personnel file.

(3) If the care provider's identity appears on the registry, or if the care provider declines to consent to a registry search, the department or the employer shall immediately terminate the employment, contract, or utilization of services of the care provider.

(4) Upon any termination effective pursuant to 118 CMR 15.04, the department or employer shall provide the care provider with the contact information for the Commission.

15.05: Compliance Reviews

(1) The Commission may conduct periodic reviews of the department's or an employer's compliance with 118 CMR 15.00. In doing so, the Commission may require the department or employer to submit any information not plainly irrelevant to determine whether the department or employer has complied with 118 CMR 15.00.

(2) If such review or other relevant information obtained by the Commission raises concerns about the department's or employer's compliance, the Commission may require the department or employer to submit any information demonstrating its compliance with 118 CMR 15.00. The Commission may also initiate a compliance investigation pursuant to 118 CMR 5.04: *Registry Compliance Investigations*.

15.06: Disputes regarding the Identity of a Care Provider

(1) The Commission will make every reasonable effort to confirm identity of a care provider whose personal information appears on the registry by including name, date of birth, and any other unique characteristics such as maiden names, aliases, or last four digits of Social Security number. The Commission shall maintain procedures to resolve any disputes regarding the identity of a care provider when contested by the care provider, department, or employer.

(2) The department or employer shall provide to the Commission any information requested by the Commission that will confirm the identity of the care provider.

REGULATORY AUTHORITY

118 CMR 15.00: M.G.L. c. 19C, § 15.



THE COMMONWEALTH OF MASSACHUSETTS

William Francis Galvin

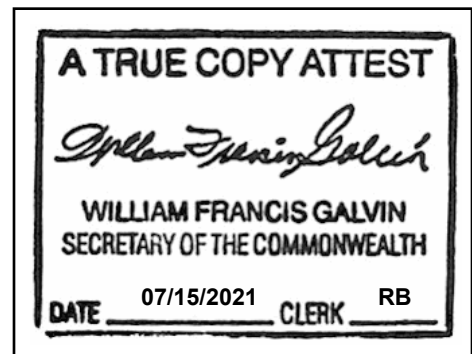
Secretary of the Commonwealth

Notice of CorrectionRegulation Filing *To be completed by filing agency*CHAPTER NUMBER: **225 CMR 14.00**CHAPTER TITLE: **Renewable Energy Portfolio Standard - Class I**AGENCY: **Department of Energy Resources**ORIGINAL PUBLICATION REFERENCE: **1447** Date: **07/09/2021**

SUMMARY OF CORRECTION:

Before page 126.20, an incorrect page 119 was put in. This corrects that page by inserting 126.19AGENCY CONTACT: **Regulations Division** PHONE: **617-727-2831**ADDRESS: **State House, 24 Beacon Street, Boston, MA 02133**ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.* ATTEST:SIGNATURE: _____ SIGNATURE ON FILE _____ DATE: **Jul 15 2021**Publication *To be completed by the Regulations Division*MASSACHUSETTS REGISTER NUMBER: **1448** DATE: **07/23/2021**EFFECTIVE DATE: **07/09/2021**

CODE OF MASSACHUSETTS REGULATIONS

*Remove these pages:***126.19 & 126.20***Insert these pages:***126.19 & 126.20**

14.08: continued

Compliance Year	ACP Rate per MWh
2003	\$50.00
2004	\$51.41
2005	\$53.19
2006	\$55.13
2007	\$57.12
2008	\$58.58
2009	\$60.92
2010	\$60.93
2011	\$62.13
2012	\$64.02
2013	\$65.27
2014	\$66.16
2015	\$67.07
2016	\$66.99
2017	\$67.70
2018	\$68.95
2019	\$70.44
2020	\$71.57

3. The Retail Electricity Supplier shall include with its Annual Compliance Filing copies of any ACP receipt(s) for ACPs made to the MassCEC for the Compliance Year.
- (b) Solar Carve-out Renewable Generation Procedures. A Retail Electricity Supplier shall receive solar carve-out Alternative Compliance Credits from the Department, subject to the following:
1. The quantity of solar carve-out Alternative Compliance Credits, specified in MWhs, that can be applied to its obligations under 225 CMR 14.07(2) shall be determined by calculating the ratio of the total of solar carve-out ACPs paid for the Compliance Year to the solar carve-out ACP Rate for that Compliance Year.
 2. The ACP Rate for the Solar Carve-out Minimum Standard shall be set annually according to the following schedule:

14.08: continued

Compliance Year	ACP Rate per Mwh
2010	\$600
2011	\$550
2012	\$550
2013	\$550
2014	\$523
2015	\$496
2016	\$472
2017	\$448
2018	\$426
2019	\$404
2020	\$384
2021	\$365
2022	\$347
2023	\$330
2024 (if necessary)	\$330
2025 (if necessary)	\$330

3. The Retail Electricity Supplier shall include with its Annual Compliance Filing copies of any ACP receipt(s) for solar carve-out ACPs made to the MassCEC for the Compliance Year.
- (c) Solar Carve-out II Renewable Generation Procedures. A Retail Electricity Supplier shall receive solar carve-out II Alternative Compliance Credits from the Department, subject to the following:

1. The quantity of solar carve-out II Alternative Compliance Credits, specified in MWhs, that can be applied to its obligations under 225 CMR 14.07(3) shall be determined by calculating the ratio of the total of solar carve-out II ACPs paid for the Compliance Year to the solar carve-out II ACP Rate for that Compliance Year.

2. The ACP Rate for the Solar Carve-out II Minimum Standard shall be set annually according to the following schedule:

**THE COMMONWEALTH OF MASSACHUSETTS****William Francis Galvin**

Secretary of the Commonwealth

Regulation Filing *To be completed by filing agency*CHAPTER NUMBER: **454 CMR 25.00**CHAPTER TITLE: **Occupational Safety and Health for Public Sector Workers**AGENCY: **Department of Labor Standards**SUMMARY OF REGULATION: *State the general requirements and purposes of this regulation.*

The purpose of 454 CMR 25.00 is to provide public-sector employees safe and healthful work environments free from recognized hazards that may cause serious injury, physical harm, or death on par with the level of protection provided under the Occupational Safety and Health Act of 1970.

REGULATORY AUTHORITY: **M.G.L. c. 149, §§ 6, 6½, 10 & 17**AGENCY CONTACT: **Michael Flanagan** PHONE: **617-626-6958**ADDRESS: **19 Staniford Street, Boston, MA 02114****Compliance with M.G.L. c. 30A**EMERGENCY ADOPTION - *if this regulation is adopted as an emergency, state the nature of the emergency.*

PRIOR NOTIFICATION AND/OR APPROVAL - *If prior notification to and/or approval of the Governor, Legislature or others was required, list each notification, and/or approval and date, including notice to the Local Government Advisory Commission.*

Governor's Office – Approved amendment of 454 CMR 25.00**Local Government Advisory Committee (Mass. Municipal Association) – Notified on May 25, 2021****Department of Housing and Community Development – Notified on May 25, 2021**

PUBLIC REVIEW - *M.G.L. c. 30A sections 2 and/or 3 requires notice of the hearing or comment period, including a small business impact statement, be filed with the Secretary of the Commonwealth, published in appropriate newspapers, and sent to persons to whom specific notice must be given at least 21 days prior to such hearing or comment period.*

Date of public hearing or comment period: **July 6, 2021**

FISCAL EFFECT - *Estimate the fiscal effect of the public and private sectors.*

For the first and second year: _____

For the first five years: _____

No fiscal effect: There should be no change in fiscal impact.

SMALL BUSINESS IMPACT - *M.G.L. c. 30A section 5 requires each agency to file an amended small business impact statement with the Secretary of the Commonwealth prior to the adoption of a proposed regulation. If the purpose of this regulation is to set rates for the state, this section does not apply.*

Date amended small business impact statement was filed: July 8, 2021

CODE OF MASSACHUSETTS REGULATIONS INDEX - *List key subjects that are relevant to this regulation:*
Occupational Safety
Public Sector

PROMULGATION - *State the action taken by this regulation and its effect on existing provisions of the Code of Massachusetts Regulations (CMR) or repeal, replace or amend. List by CMR number:*

Occupational safety for public sector regulation 454 CMR 25.00 is being amended to add references to state statutes and promote alignment with OSHA safety standards.

ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.* ATTEST:

SIGNATURE: SIGNATURE ON FILE DATE: Jul 9 2021

Publication - *To be completed by the Regulations Division*

MASSACHUSETTS REGISTER NUMBER: 1448 DATE: 07/23/2021

EFFECTIVE DATE: 07/23/2021

CODE OF MASSACHUSETTS REGULATIONS

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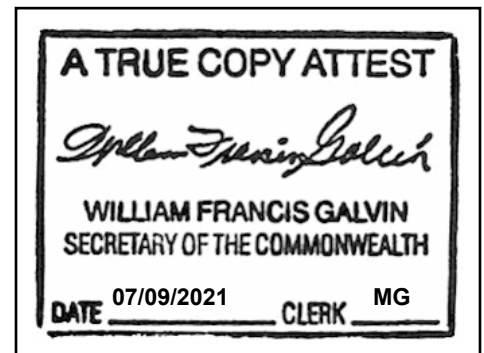


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454 CMR 25.00: OCCUPATIONAL SAFETY AND HEALTH FOR PUBLIC SECTOR WORKERS

Section

- 25.01: Purpose and Scope
- 25.02: Applicable Standards
- 25.03: Inspections
- 25.04: Posting of Notice
- 25.05: Compliance
- 25.06: Recordkeeping and Reporting Requirements
- 25.07: Retaliation
- 25.08: Imminent Danger Procedures
- 25.09: State Plan
- 25.10: Severability

25.01: Purpose and Scope

(1) Purpose. The purpose of 454 CMR 25.00 is to provide public-sector employees safe and healthful work environments free from recognized hazards that may cause serious injury, physical harm, or death on par with the level of protection provided under the Occupational Safety and Health Act of 1970.

(2) Scope. 454 CMR 25.00 shall apply to all "public employers" and "public employees" as defined in M.G.L. c. 149, § 6½.

25.02: Applicable Standards

The standards set forth under the Occupational Safety and Health Act of 1970, 29 U.S.C. § 651, *et seq.*, including the General Duty Clause under 29 U.S.C. § 654, which provides, "Each employer (a) shall furnish to each of its employees employment and a place of employment which are free from recognized hazards that are causing or are likely to cause death or serious physical harm to its employees; (b) shall comply with occupational safety and health standards promulgated under this act. Each employee shall comply with occupational safety and health standards and all rules, regulations, and orders issued pursuant to this act which are applicable to the employee's own actions and conduct." All current and updated regulations and references at 29 CFR Parts 1903, 1904, 1910, 1915, 1917, 1918, 1926, 1928 and 1977 are incorporated by reference, and applicable to all places of employment covered by 454 CMR 25.00.

25.03: Inspections

(1) The Department of Labor Standards shall have the authority set forth in M.G.L. c. 149, §§ 6, 6½, 10 and 17 and 29 CFR Part 1903 to conduct inspections of all places of employment covered by M.G.L. c. 149 § 6½ including, but not limited to, the authority to:

- (a) enter without delay and at reasonable times any place of employment where work is performed by an employee or where there is reason to believe that a violation of safety or health standard exists or where there is reason to believe the employer is not furnishing to each employee a place of employment which is free from recognized hazards, per the General Duty Clause and examine the methods of protection from accident, the means of escape from fire, the sanitary provisions, the lighting and means of ventilation, and determine what suitable safety devices or other reasonable means or requirements for the prevention of accidents or industrial or occupational diseases shall be adopted or followed, and conduct such investigations as the department may deem necessary;
- (b) inspect and investigate during the employer's regular working hours and at other reasonable times any place of employment and all pertinent conditions, structures, machines, apparatus, devices, equipment and materials therein; and
- (c) question privately any employer, owner, manager, agent or employee, and review all records required by 454 CMR 25.06 or 454 CMR 25.02 including, but not limited to, records regarding:

25.03: continued

1. Any claimed safety or health violation;
2. Work-related deaths, injuries and illnesses other than minor injuries which require only first aid treatment and which do not involve medical treatment, loss of consciousness, restriction of work or of motion, or transfer to another job;
3. Any potential safety or health hazard at any place of employment;
4. Employee exposure to potentially toxic materials or other harmful physical agents which 454 CMR 25.06 requires to be monitored or measured;
5. Any other employer activities relating to 29 U.S.C. § 651, *et seq.*;
6. Training records including, but not limited to, certificates, letters of completion and other personnel records, as well as agency records of training, such as rosters, agendas, and curriculum; and
7. Written programs, including required safety programs as stipulated by the applicable standards referenced in 454 CMR 25.02, standard operating procedures, policies, and other written programs.

(2) When an employer requires security clearances for entry into a particular area, the employer shall provide appropriate clearances to the department. In the event the employer does not control the security clearances, the employer shall make reasonable effort to obtain access for the department.

(3) The inspection shall be conducted in such a manner as to preclude unreasonable disruption of the employer's operations.

(4) Any person who gives advance notice of any inspection to be conducted pursuant to 454 CMR 25.00 without authority from the Director shall, upon conviction, be punished per M.G.L. c. 268A, §§ 23 and 26.

(5) Employees or employee representatives shall have the right to report unsafe and unhealthful working conditions to the employer and/or to the Department in accordance with 29 CFR Part 1903.

(6) The Department shall direct inspections and questioning of persons. A representative of the employer and an employee-authorized representative shall be given an opportunity to accompany the Department during the physical inspection of any workplace, if it does not interfere with the conduct of the inspection or present a safety or health hazard as determined in the sole discretion of the Department in accordance with 29 CFR Part 1903.

(7) The department shall have the right to compel witnesses and evidence, and to issue fines and stop work orders for violations of its safety regulations.

25.04: Posting of Notice

- (1) (a) Each employer shall post and keep posted a notice or notices furnished by the Department, informing employees of the protections and obligations provided by 454 CMR 25.00 and for assistance and information, including copies of 29 U.S.C. § 651, *et seq.* and of specific safety and health standards. Such notice or notices shall be posted by the employer in each worksite and facility in a conspicuous place or places where notices to employees are customarily posted. Each employer shall take steps to ensure that such notices are not altered, defaced, or covered by other material.
- (b) Reproductions or facsimiles of such federal or state posters shall constitute compliance with the posting.

(2) Any employer failing to comply with the provisions of 454 CMR 25.04 shall be subject to citation and penalty.

25.05: Compliance

- (1) In exercising the authority set forth in 454 CMR 25.00, the Department may take action and shall follow the procedures set forth in 454 CMR 29.00: *Civil Administrative Penalties*.

25.05: continued

- (2) If the Department determines that an employer has violated a provision of 454 CMR 25.00, the Department shall, within 180 days of the completion of inspection processes conducted by the Department, issue to the employer a written Order to Correct, which shall include:
 - (a) A description of the nature of each violation, including a reference to the provision of the section, standard, regulation, or order alleged to have been violated;
 - (b) the corrective action(s) to abate the violations; and
 - (c) an abatement date for each violation.
- (3) The Department shall provide written notification of any Order to Correct to the appropriate governing official, public administrator, agency head, and/or personnel director.
- (4) The Attorney General may bring a civil action for declaratory or injunctive relief to enforce any order of the Department or the Attorney General.
- (5) The Director shall have the authority to make reasonable rules, requirements, or orders necessary to prevent accidents and injuries to ensure the safe working environments consistent with 454 CMR 25.00. The Director shall make all rules, requirements, and orders publicly known to affected employees and employers. The Director shall post all rules, requirements, and orders to the Department's website.
- (6) Variances. The Director, on the record, after notice, an inspection when warranted, and an opportunity for a hearing may provide such reasonable limitations and may make such rules and regulations allowing reasonable variations, tolerances, and exemptions to and from any or all provisions of 454 CMR 25.00 as found necessary and proper. Such action shall not be in effect for more than six months without notification to affected employees and an opportunity being afforded for a hearing.
 - (a) Any affected employer may apply to the Director for a rule or order for a variance from a standard under 454 CMR 25.02. Affected employees shall be given notice by the employer of each such application and an opportunity to participate in a hearing. The Director shall issue such rule or order if it is determined on the record, after opportunity for an inspection where appropriate and a hearing, that the proponent of the variance has demonstrated by a preponderance of the evidence that the conditions, practices, means, methods, operations, or processes used or proposed to be used by an employer will provide employment and places of employment to the employees which are as safe and healthful as those which would prevail if the employer complied with the standard. The rule or order so issued shall prescribe the conditions the employer must maintain, and the practices, means, methods, operations, and processes which must be adopted and utilized to the extent they differ from the standard in question. Such a rule or order may be modified or revoked upon application by an employer, employees, or by the Director, in the manner prescribed for its issuance under 454 CMR 25.05(6)(a) at any time.
 - (b) The Director shall make all variances known to affected employees and employers. The Director shall post all variances to the Department's website.

25.06: Recordkeeping and Reporting Requirements

- (1) All employers shall keep records concerning occupational injuries, illnesses, deaths, and exposure to toxic materials in compliance with regulations promulgated under 29 U.S.C. § 651, *et seq.*, as set forth in 29 CFR Part 1904.
- (2) The personnel administrator shall prescribe the recordkeeping mechanism state agencies shall use to keep such required records under 29 CFR Part 1904, provided the Department has full access to the agency records.
- (3) All employers that have workplaces selected by the Bureau of Labor Statistics as sample units for participation in the annual Bureau of Labor of Statistics' Survey of Occupational Injuries and Illnesses shall comply with the survey's reporting requirements relating to injury and illness data.

25.06: continued

(4) Per 29 CFR Part 1904, all employers shall report work-related injuries and illnesses that result in the death of an employee within eight hours of the occurrence, and those that result in amputation, loss of an eye, or in-patient hospitalization to the Department within 24 hours.

25.07: Retaliation

(1) No person shall discharge or in any manner discriminate against any employee because the employee has:

- (a) filed any complaint under or related to 454 CMR 25.00;
- (b) instituted or caused to be instituted any proceeding under or related to 454 CMR 25.00;
- (c) testified or is about to testify in any proceeding under or related to 454 CMR 25.00; or
- (d) exercised on his or her own behalf or on behalf of others any right afforded by 454 CMR 25.00.

(2) Any employee who believes that he or she has been discriminated against in violation of 454 CMR 25.07 or 29 U.S.C. § 660 may seek remedy through the Department pursuant to 29 CFR Part 1977 or file a private right of action in accordance with M.G.L. c. 149, § 185.

25.08: Imminent Danger Procedures

The Department will follow the procedures in 29 CFR Part 1903 for cases of imminent danger.

25.09: State Plan

The Department may, after consultation with its occupational health and safety hazard advisory board, develop a State plan which provides an occupational safety and health program for the protection of public employees for approval by the Assistant Secretary of Labor for Occupational Safety and Health under 29 CFR Part 1956.10.

25.10: Severability

If any provision of 454 CMR 25.00 shall be held inconsistent with the laws of the Commonwealth, or held unconstitutional, either on its face, or as applied, the inconsistency or unconstitutionality shall not affect the remaining provisions.

REGULATORY AUTHORITY

454 CMR 25.00: M.G.L. c. 149, §§ 6, 6½, 10 and 17.



THE COMMONWEALTH OF MASSACHUSETTS

William Francis Galvin

Secretary of the Commonwealth

Regulation Filing *To be completed by filing agency*CHAPTER NUMBER: **454 CMR 29.00**CHAPTER TITLE: **Civil Administrative Penalties**AGENCY: **Department of Labor Standards**SUMMARY OF REGULATION: *State the general requirements and purposes of this regulation.*

Purpose. 454 CMR 29.00 is intended to: (a) Promote the health, safety, and welfare of workers, businesses, and the general public by deterring noncompliance with the laws, regulations, and related requirements to which 454 CMR 29.00 applies. (b) Ensure that the Department assesses civil administrative penalties lawfully, fairly, and consistently.

REGULATORY AUTHORITY: **M.G.L. c. 111, § 197B; c. 140, § 46R; c. 149, §§ 6, 6½, & 6F½**AGENCY CONTACT: **Michael Flanagan** PHONE: **617-626-6958**ADDRESS: **19 Staniford Street, Boston, MA 02114****Compliance with M.G.L. c. 30A**EMERGENCY ADOPTION - *if this regulation is adopted as an emergency, state the nature of the emergency.*

PRIOR NOTIFICATION AND/OR APPROVAL - *If prior notification to and/or approval of the Governor, Legislature or others was required, list each notification, and/or approval and date, including notice to the Local Government Advisory Commission.*

Governor's Office – Approved amendment of 454 CMR 29.00**Local Government Advisory Committee (Mass. Municipal Association) – Notified on May 25, 2021****Department of Housing and Community Development – Notified on May 25, 2021**

PUBLIC REVIEW - *M.G.L. c. 30A sections 2 and/or 3 requires notice of the hearing or comment period, including a small business impact statement, be filed with the Secretary of the Commonwealth, published in appropriate newspapers, and sent to persons to whom specific notice must be given at least 21 days prior to such hearing or comment period.*

Date of public hearing or comment period: **July 6, 2021**

FISCAL EFFECT - *Estimate the fiscal effect of the public and private sectors.*

For the first and second year: _____

For the first five years: _____

No fiscal effect: There should be no change in fiscal impact.

SMALL BUSINESS IMPACT - *M.G.L. c. 30A section 5 requires each agency to file an amended small business impact statement with the Secretary of the Commonwealth prior to the adoption of a proposed regulation. If the purpose of this regulation is to set rates for the state, this section does not apply.*

Date amended small business impact statement was filed: July 8, 2021

CODE OF MASSACHUSETTS REGULATIONS INDEX - *List key subjects that are relevant to this regulation:*
Civil Administrative Penalties

PROMULGATION - *State the action taken by this regulation and its effect on existing provisions of the Code of Massachusetts Regulations (CMR) or repeal, replace or amend. List by CMR number:*

Civil Administrative Penalties regulation 454 CMR 29.00 is being amended to add reference to the occupational protection of public employee's statute and promote alignment with OSHA safety standards.

ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.* ATTEST:

SIGNATURE: SIGNATURE ON FILE DATE: Jul 9 2021

Publication - *To be completed by the Regulations Division*

MASSACHUSETTS REGISTER NUMBER: 1448 DATE: 07/23/2021

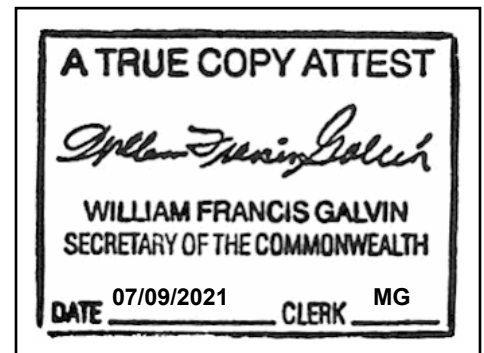
EFFECTIVE DATE: 07/23/2021

CODE OF MASSACHUSETTS REGULATIONS

Remove these pages: _____ *Insert these pages:* _____

449-454

449-454



454 CMR 29.00: CIVIL ADMINISTRATIVE PENALTIES

Section

29.01: Purpose and Scope

29.02: Definitions

29.03: Issuance of Written Warnings

29.04: Civil Citations

29.05: Temporary Restraining Orders and Preliminary and Permanent Injunctions for Certain Asbestos and Lead Violations

29.06: Service of Written Warnings and Civil Citations

29.07: Severability

29.01: Purpose and Scope

(1) Purpose. 454 CMR 29.00 is intended to:

(a) Promote the health, safety, and welfare of workers, businesses, and the general public by deterring noncompliance with the laws, regulations, and related requirements to which 454 CMR 29.00 applies.

(b) Ensure that the Department assesses civil administrative penalties lawfully, fairly, and consistently.

(2) Scope. 454 CMR 29.00 applies to M.G.L. c. 111, § 197B; M.G.L. c. 140, §§ 46A through 46R; and M.G.L. c. 149, §§ 6, 6½ and 6A through 6F½.

29.02: Definitions

As used throughout 454 CMR 29.00, the following terms shall have the following meanings, unless the context clearly indicates otherwise:

Civil Citation. A citation issued by the Director or his or her representative pursuant to 454 CMR 29.00 for a violation or violations of a law or regulation enforced by the Department, as set forth at 454 CMR 29.01(2). Such citation shall identify each violation upon which it is based and may include an Order that the infraction be rectified or a civil penalty imposed or both.

Civil Penalty. A monetary penalty, payable to the Commonwealth of Massachusetts, ordered as part of a Civil Citation issued by the Director or his or her representative pursuant to 454 CMR 29.00 for a violation or violations of a law or regulation enforced by the Department, as specified in 454 CMR 29.01(2).

Department. The Department of Labor Standards of the Massachusetts Executive Office of Labor and Workforce Development.

Director. The Director of the Massachusetts Department of Labor Standards who has been authorized to administer and enforce 454 CMR 29.00 by the Secretary of the Executive Office of Labor and Workforce Development.

License. Any document issued by the Department of Labor Standards pursuant to M.G.L. c. 111, § 197B; M.G.L. c. 140, §§ 46A through 46R; or M.G.L. c. 149, §§ 6A through 6F½, that is nominally referred to as a license, certification, or registration and which authorizes the holder to exercise a certain privilege that would otherwise be prohibited without such license, certification, or registration.

Order. Any order issued by the Director or his or her representative under the provisions of 454 CMR 29.00 including, but not limited to, an order for the cessation of all relevant activities of the person, firm, corporation, or other entity for failure to comply with the requirements of a Civil Citation.

29.02: continued

Specific Intent. The mental purpose, aim, or design to accomplish a specific act prohibited by a law or regulation enforced by the Department, as specified in 454 CMR 29.01(2).

Violation. Any act or failure to act that results in one or more of the following:

- (a) engaging in any business or other activity without a license, certification, registration, or approval whenever such a license, certification, registration, or approval is required by the applicable regulation or statute.
- (b) engaging in any activity prohibited by, or not in compliance with, any requirement of an applicable regulation or statute.
- (c) not fully doing, or not doing in a timely fashion, anything required by any applicable regulation or statute.

Written Warning. A warning issued in writing by the Director or his or her representative pursuant to 454 CMR 29.00 for a violation or violations of a law or regulation enforced by the Department, as set forth at 454 CMR 29.01(2).

29.03: Issuance of Written Warnings

The Director, at his or her discretion, may issue a Written Warning for Violations of requirements of regulations and statutes to which 454 CMR 29.00 applies. Written Warnings shall identify the specific requirement(s) of the applicable regulation or statute that has been violated and shall serve as official, legal notice to the person, firm, corporation, or other entity of the occurrence or existence of the Violation(s). Said Written Warning may contain an Order to correct the Violation and specify a period of time for the correction of said Violation. Failure to correct the Violation within the period of time specified may result in the issuance of a Civil Citation or other enforcement action.

29.04: Civil Citations

(1) General. In addition to the penalties permitted by M.G.L. c. 111, § 197B; M.G.L. c. 140, §§ 46A through 46R; and M.G.L. c. 149, §§ 6, 6½ and 6A through 6F½, the Director or his or her representative may issue a Civil Citation for each Violation. Said Civil Citation may include an Order to correct the deficiency or infraction that resulted in the issuance of the Civil Citation, a Civil Penalty, or both. Said Civil Citation shall include:

- (a) A statement of the alleged act or omission for which the Civil Citation is issued;
- (b) Identification of the law, regulation or order that has not been complied with as a result of such alleged act or omission;
- (c) If a Civil Penalty is issued, the amount of the Civil Penalty for each alleged act or omission for which the Civil Penalty is assessed;
- (d) A statement that the person to whom the Civil Citation is issued has a right to appeal the Civil Citation through an adjudicatory hearing;
- (e) A statement that sets forth the actions that must be taken by the person to whom the Civil Citation is issued in order for said person to avoid being deemed to have waived his or her right to an adjudicatory hearing; and
- (f) If a Civil Penalty is assessed, a statement of how and when the Civil Penalty must be paid.

(2) Maximum Amounts of Civil Penalties. The maximum amounts of Civil Penalties that may be assessed under 454 CMR 29.00 are:

- (a) A monetary penalty of not more than \$1,000 may be issued for each Violation if:
 1. the person, firm, corporation or other entity has not previously been criminally convicted of a Violation of M.G.L. c. 111, § 197B; M.G.L. c. 140, §§ 46A through 46R; or M.G.L. c. 149, §§ 6A through 6F½; or has not previously been issued a Civil Citation pursuant to 454 CMR 29.00; and
 2. the Director has determined that the person, firm, corporation or other entity lacked Specific Intent to violate M.G.L. c. 111, § 197B; M.G.L. c. 140, §§ 46A through 46R; or M.G.L. c. 149, §§ 6A through 6F½; or 454 CMR 29.00.

29.04: continued

- (b) A monetary penalty of not more than \$2,500 may be issued for each Violation if:
 - 1. the person, firm, corporation or other entity has not previously been criminally convicted of a Violation of M.G.L. c. 111, § 197B; M.G.L. c. 140, §§ 46A through 46R; or M.G.L. c. 149, §§ 6A through 6F½; or been issued a Civil Citation pursuant to 454 CMR 29.00; and
 - 2. the Director has determined that the person, firm, corporation, or other entity possessed a Specific Intent.
- (c) A monetary penalty of not more than \$5,000 may be issued for each Violation if the person, firm, corporation or other entity has previously been criminally convicted of a Violation of M.G.L. c. 111, § 197B; M.G.L. c. 140, §§ 46A through 46R; or M.G.L. c. 149, §§ 6A through 6F½; or been issued a Civil Citation pursuant to 454 CMR 29.00.
- (d) A monetary penalty may be issued pursuant to M.G.L. c. 149 § 6 for violations of M.G.L. c. 149, § 6½, and 454 CMR 25.00.

(3) Determination of the Amount of a Civil Penalty. In determining the amount of each Civil Penalty, the Department shall consider various factors including, but not limited to, the following:

- (a) The actual and potential impact on public health, safety and welfare, and the environment of the failure to comply;
- (b) Whether the person, firm, corporation, or other entity being assessed the Civil Penalty took steps to prevent noncompliance, to promptly come into compliance and to remedy and mitigate whatever harm might have been done as a result of such noncompliance;
- (c) Whether the person, firm, corporation, or other entity being assessed the Civil Penalty has previously failed to comply with any regulation, order, license, or approval issued or adopted by the Department, or any law which the Department has authority or responsibility to enforce;
- (d) The deterrence of future noncompliance by the person, firm, corporation, or other entity, or by other such persons, firms, corporations or entities;
- (e) The financial condition of the person, firm, corporation, or other entity being assessed the civil penalty; and
- (f) The public interest.

(4) Payment of a Civil Penalty. Payment of a Civil Penalty shall be made by certified check, cashier's check, money order, or credit card payable to the Commonwealth of Massachusetts. No other form of payment shall be accepted. Payment of Civil Penalties shall be made within 21 calendar days of the issuance of a Civil Citation, or if the Civil Citation is appealed, within 21 calendar days of settlement or final administrative or judicial adjudication of the appeal, whichever is later.

(5) Consequence(s) of Failure to Comply with the Requirements of a Civil Citation.

- (a) If a person, firm, corporation, or other entity to whom a Civil Citation is issued fails to pay a Civil Penalty or otherwise fails to comply with the requirements set forth in a Civil Citation, the Department may order the cessation of all relevant activities of the person, firm, corporation, or other entity. Said Order shall be effective immediately upon service.
- (b) If a person, firm, corporation, or other entity to whom an Order has been issued pursuant to 454 CMR 29.04(5)(a) is also the holder of a License issued by the Department pursuant to M.G.L. c. 111, § 197B; M.G.L. c. 140, §§ 46A through 46R; or M.G.L. c. 149, §§ 6A through 6F½, the Director shall propose the suspension or revocation of the License at the same time the Order is issued and shall schedule an administrative hearing on said proposed suspension or revocation, within ten days after such Order is issued. Said administrative hearing shall be held in accordance with the requirements of M.G.L. c. 30A, §§ 8 through 13, and 801 CMR 1.00: *Standard Adjudicatory Rules of Practice and Procedure*. Any License suspension or revocation shall also apply to all affiliates of the person, firm, corporation, or other entity, as well as to any successor company or corporation that the Director, upon investigation, determines not to have true independent existence apart from that of the violating person, firm, corporation, or other entity.
- (c) No officer of any corporation, which has failed to pay a Civil Penalty issued pursuant to 454 CMR 29.04, shall incorporate or serve as an officer of any corporation which did not have a legal existence as of the date that the penalty became due and payable to the Commonwealth.

29.04: continued

(6) Appeals of Civil Citations, Orders and Penalties. Any person, firm, corporation or other entity aggrieved by a Civil Citation, Order, or Penalty issued pursuant 454 CMR 29.04 may request that an administrative hearing be held on the Civil Citation or Order by submitting a written request to the Director or his or her representative within 15 business days after the receipt of the Civil Citation or Order. All administrative hearings shall be held in accordance with the requirements of M.G.L. c. 30A, and 801 CMR 1.00: *Standard Adjudicatory Rules of Practice and Procedure*. Any person, firm, corporation or other entity aggrieved of the decision of such an administrative hearing may appeal said decision pursuant to the provisions of M.G.L. c. 30A, § 14.

(7) Conditional Licenses, Consent Agreements, and Settlement Agreements. The Director may issue licenses to any person, firm, corporation or other entity, subject to conditions specified therein, or enter into consent agreements or settlement agreements with the holder of the license.

29.05: Temporary Restraining Orders and Preliminary and Permanent Injunctions for Asbestos and Lead Violations

(1) Initiation. Whenever the Director has reason to believe that a person, firm, corporation, or other entity is engaging in, or is about to engage in, a Violation of M.G.L. c. 111, § 197 or 197B; or M.G.L. c. 149, §§ 6A through 6E, he or she may bring an action in the name of the Commonwealth against such person, firm, corporation, or other entity to restrain the Violation by temporary restraining order or preliminary or permanent injunction. The action may be brought in the superior court of the county in which such person, firm, corporation, or other entity resides or has as his or her principal place of business, or the action may be brought in the superior court of Suffolk County with the consent of the parties or if the person, firm, corporation, or other entity has no place of business within the Commonwealth. If more than one person, firm, corporation, or other entity is joined as a defendant, the action may be brought in the superior court of the county where any one of the defendants reside or has his or her principal place of business, or in Suffolk County.

(2) Penalty for Violation of an Injunction. Any person, firm, corporation, or other entity that violates an injunction issued pursuant to 454 CMR 29.05 shall be subject to a Civil Penalty of not more than \$10,000 for each such Violation. Each day during which a person, firm, corporation, or other entity fails to correct the Violation that formed the basis for the injunction shall be considered a separate Violation. For the purposes of 454 CMR 29.05(2), the Department may petition the court retaining jurisdiction for recovery of this Civil Penalty.

29.06: Service of Written Warnings and Civil Citations

(1) Date of Issuance.

(a) Service in Hand. Written Warnings and Civil Citations issued by the Department pursuant to 454 CMR 29.00 shall be deemed to have been issued on the date delivered, when served in hand to:

1. the person, firm, corporation, or other entity to whom the Written Warning or Civil Citation is addressed;
2. any officer, employee, or agent of the person, firm, corporation, or entity to whom the Written Warning or Civil Citation is addressed, who has been authorized by said person, firm, corporation, or entity, or by law, to accept service;
3. the last known address of said person, firm, corporation, or other entity; or
4. the last known address of any officer, employee, or agent of the person, firm, corporation, or entity to whom the Written Warning or Civil Citation is addressed, who has been authorized by said person, firm, corporation, or entity, or by law, to accept service.

(b) Mail Delivery. If served by First Class or Certified Mail, the notice shall be deemed to be issued when postmarked by the U.S. Postal Service.

(c) Electronic Delivery. If served by email, the notice shall be deemed to be issued on the date of the electronic delivery.

29.06: continued

(2) Date Received.

(a) Service in Hand. Written Warnings or Civil Citations issued by the Department pursuant to 454 CMR 29.00 shall be deemed to have been received on the date delivered, when served in hand to:

1. the person, firm, corporation, or other entity to whom the Written Warning or Civil Citation is addressed;
2. any officer, employee, or agent of the person, firm, corporation, or entity to whom the Written Warning or Civil Citation is addressed, who has been authorized by said person, firm, corporation, or entity, or by law, to accept service;
3. the last known address of said person, firm, corporation or other entity; or
4. the last known address of any officer, employee, or agent of the person, firm, corporation, or entity to whom the Written Warning or Civil Citation is addressed, who has been authorized by said person, firm, corporation, or entity, or by law, to accept service.

(b) Mail Delivery. Written Warnings and Civil Citations posted as First Class Mail with the U.S. Postal Service shall be deemed to have been received no later than the third business day after mailing, or when returned by the U.S. Postal Service to the Department as unclaimed, unless the Director determines that the said Written Warning or Civil Citation was not claimed for reasons beyond the control of the person to whom the Written Warning or Civil Citation was sent. Written Warnings or Civil Citations posted with the U.S. Postal Service by Certified Mail shall be deemed to have been received when signed for by:

1. the person, firm, corporation, or other entity to whom the Written Warning or Civil Citation is addressed; or
2. any officer, employee, or agent of the person, firm corporation, or entity to whom the Written Warning or Civil Citation is addressed, who has been authorized by said person, firm, corporation, or entity, or by law, to accept service.

(c) Electronic Delivery. Written Warnings or Civil Citations issued electronically by the Department pursuant to 454 CMR 29.00 shall be deemed to have been received on the date of electronic delivery.

29.07: Severability

If any provision of 454 CMR 29.00 shall be held inconsistent with the laws of the Commonwealth, or held unconstitutional, either on its face, or as applied, the inconsistency or unconstitutionality shall not affect the remaining provisions.

REGULATORY AUTHORITY

454 CMR 29.00: M.G.L. c. 111, § 197B; M.G.L. c. 140, § 46R; and M.G.L. c. 149, §§ 6, 6½ and 6F½.

NON-TEXT PAGE



THE COMMONWEALTH OF MASSACHUSETTS

William Francis Galvin

Secretary of the Commonwealth

Notice of Compliance

Regulation Filing

*To be completed by filing agency*CHAPTER NUMBER: **801 CMR 4.00**CHAPTER TITLE: **Rates**AGENCY: **Executive Office for Administration and Finance**

THIS REGULATION WAS ORIGINALLY FILED AS AN EMERGENCY:

Published in Massachusetts Register Number: **1442** *Date:* **04/30/2021**

PRIOR NOTIFICATION AND/OR APPROVAL - *If prior notification to and/or approval of the Governor, Legislature or others was required, list each notification, and/or approval and date, including notice to the Local Government Advisory Commission.*

N/A

PUBLIC REVIEW - *M.G.L. c. 30A sections 2 and/or 3 requires notice of the hearing or comment period, including a small business impact statement, be filed with the Secretary of the Commonwealth, published in appropriate newspapers, and sent to persons to whom specific notice must be given at least 21 days prior to such hearing or comment period.*

Date of public hearing or comment period: **6/22/21**

SMALL BUSINESS IMPACT - *M.G.L. c. 30A section 5 requires each agency to file an amended small business impact statement with the Secretary of the Commonwealth prior to the adoption of a proposed regulation. If the purpose of this regulation is to set rates for the state, this section does not apply.*

Date amended small business impact statement was filed: **N/A**AGENCY CONTACT: **Patrick Lynch** PHONE: **857-400-5405**ADDRESS: **24 Beacon Street, Room 373, Boston, MA 02133**

ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.*

ATTEST:

SIGNATURE: _____ SIGNATURE ON FILE _____ DATE: **Jul 8 2021**

Publication - *To be completed by the Regulations Division*

MASSACHUSETTS REGISTER NUMBER: 1448

DATE: 7/23/21

EFFECTIVE DATE: 4/13/21

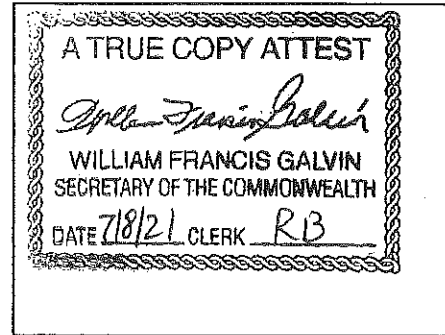
CODE OF MASSACHUSETTS REGULATIONS

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46 & 47

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4.02: continued

- (b) Trust Assets .0075 per 1000
- (c) If the assessments from 801 CMR 4.02: 209 Division of Banks and Loans Agencies(4)(a) and (b) are insufficient to pay for the operations of the Division of Banks in the amount set out in its annual appropriation, the Division of Banks shall assess the remaining amount as a flat fee upon all depository and nondepository financial institutions under its supervision; provided, however, that this assessment may contain such classifications and differentiations based upon the regulatory condition of each institution or such other factors as the Division of Banks consider necessary.
- (5) Debt Collector – Annual License \$1,000 per year
- (6) Motor Vehicle Financing – Annual License 1,000 per year
- (7) Retail Installment – Annual License 1,000 per year
- (8) Small Loan Agencies – Annual License 1,000 per year
- (9) Insurance Premium Financing – Annual License 1,000 per year
- (10) Check Cashers – Annual License 1,000 per year
- (11) Third Party Loan Servicer Registration 500 per year
- (12) Non-bank License Application – Investigation Fee 300
- (13) Non-bank Licensee – Office Relocation Investigation Fee 200

Commercial, Savings, and Cooperative Banks:

- (14) New Bank Charter Applications \$2500 per filing
- (15) Merger Applications 2500 per filing
- (16) Bank Holding Company Reorganization Application 1500 per filing
- (17) Conversion to Federal Charter 5000 per filing
- (18) Stock Conversion Application, Savings, and Cooperative 5000 per filing
- (19) Branch Relocation Application 500 per filing
- (20) New Domestic Branch Application 500 per filing
- (21) Main Office Redesignation Application 250 per filing
- (22) Trust Powers Application 1000 per filing
- (23) Conversion to State Charter 1000 per filing
- (24) Application for Time Extension on Previously Approved Actions 250 per filing
- (25) Foreign Branch Application 1000 per filing
- (26) Stock Thrift Merger Application, Savings and Cooperation Banks 1500 per filing
- (27) Main Office Relocation Application 500 per filing
- (28) Depot Relocation or Closing Application 250 per filing

Credit Unions:

- (29) New Charter Application \$500 per filing
- (30) Merger Application 250 per filing
- (31) Conversion to State Charter 250 per filing
- (32) Branch Relocation or Closing Application 250 per filing
- (33) New Branch or Depot Application 500 per filing

4.02: continued

(34) Branch Closing Application	\$250	per filing
(35) Membership By-Law Change Application	500	per filing
(36) Application for Time Extension on Previously Approved Actions	100	per filing
(37) Main Office Relocation Application	250	per filing
(38) Main Office Redesignation Application	100	per filing
(39) Check Sales – Annual License	1,000	per year
(40) Foreign Transmittal Agencies		
(a) Annual License	1,000	per year for initial licensed location
(b) License for Additional Locations	200	per year for each additional licensed location
(41) Mortgage Broker License	500	per year
(42) Mortgage Lender License	1,000	per year
(43) Mortgage Loan Originator License	500	per year
(44) Mortgage Loan Originator Investigation Fee	115	per investigation
(45) Course Provider Application	250	
(46) Mortgage Loan Originator Education Course Application	250	
(47) Continuing Education Course Application (Per Course)	125	
(48) Student Loan Servicer - Annual License Fee	1,000	per year
(49) Student Loan Servicer Application - Investigation Fee	300	per investigation
(50) Automatic Federal Student Loan Servicer - License Fee	1,000	
(51) Automatic Federal Student Loan Servicer Application - Investigation Fee	300	

211 Division of Insurance

(1) Agent License, Individual - life, accident and health	\$50	annual
(2) Agent License - Fraternal Organization	6	annual
(3) Agency License, Organization - life, accident and health	50	annual
(4) Fire Loss Adjustor - Individual License Fee	200	3 years
(5) Adviser - Individual License	200	3 years
(6) Producer License/Renewal - Individual	225	3 years
(6)(a) Business Entity Producer License/Renewal	75	per member per yr.
(7) Special Brokers - License and Renewals	150	annual
(8) Special Brokers - Annual Fee (Percent of Gross Premiums, Less Return Premiums)	4	annual
(9) Certified Copy of Record of File	20	per certification
(10) Motor Vehicle Damage Appraisers		
(a) Certified Copy of Record on File	20	per certification
(b) Examination Fee	50	per exam
(c) Re-Examination Fee	50	per exam
(11) Motor Clubs License	200	per year
(12) Motor Clubs Agent	25	annual
(13) Rating Organizations	30	3 years
(14) Fraternal Benefit Society	25	annual
(15) Agents Registration Fee	40	per year
(16) Charter		
(a) Admission	125	per admission
(b) Amendment	65	per amendment
(17) Examination of Company Prior To Licensing	1000	per exam
(18) Company License		
(a) Foreign	250	annual
(b) Special License Stock and Mutual Companies	29	annual



THE COMMONWEALTH OF MASSACHUSETTS

William Francis Galvin

Secretary of the Commonwealth

Regulation Filing *To be completed by filing agency*CHAPTER NUMBER: **830 CMR 63.00**CHAPTER TITLE: **Taxation of Corporations**AGENCY: **Department of Revenue**SUMMARY OF REGULATION: *State the general requirements and purposes of this regulation.*

830 CMR 63.38Q.1 explains the provisions of the brownfields tax credit for environmental Response Actions, as set out in M.G.L. c. 62, § 6(j) and M.G.L. c. 63, § 38Q. An Eligible Person that remediates certain contaminated properties may be eligible for a credit against their Massachusetts personal income tax or corporate excise liability equal to a percentage of the Net Response and Removal Costs incurred for the remediation in compliance with M.G.L. c. 21E. This regulation explains who is eligible for the credit, Eligible Costs, and the limitations on how much credit may be claimed in any tax year. It also sets out rules regarding the carryforward of unused credits, the transfer, sale or assignment of unused credits, recapture rules, and the appeals process where the credit is fully or partially denied.

REGULATORY AUTHORITY: **M.G.L. c. 14, § 6; M.G.L. c. 62C, § 3**AGENCY CONTACT: **Rebecca Forter, Chief**PHONE: **617-852-3106**ADDRESS: **Rulings and Regulations Bureau, 100 Cambridge Street, 8th Floor, Boston,
MA02114****Compliance with M.G.L. c. 30A**EMERGENCY ADOPTION - *if this regulation is adopted as an emergency, state the nature of the emergency.*PRIOR NOTIFICATION AND/OR APPROVAL - *If prior notification to and/or approval of the Governor, Legislature or others was required, list each notification, and/or approval and date, including notice to the Local Government Advisory Commission.***Approved by the Secretary of Administration & Finance on December 14, 2020.****Notice sent to the Local Government Advisory Commission on December 23, 2020.**PUBLIC REVIEW - *M.G.L. c. 30A sections 2 and/or 3 requires notice of the hearing or comment period, including a small business impact statement, be filed with the Secretary of the Commonwealth, published in appropriate newspapers, and sent to persons to whom specific notice must be given at least 21 days prior to such hearing or comment period.*Date of public hearing or comment period: **February 11, 2021**

FISCAL EFFECT - *Estimate the fiscal effect of the public and private sectors.*

For the first and second year: No fiscal effect

For the first five years: No fiscal effect

No fiscal effect: No fiscal effect

SMALL BUSINESS IMPACT - *M.G.L. c. 30A section 5 requires each agency to file an amended small business impact statement with the Secretary of the Commonwealth prior to the adoption of a proposed regulation. If the purpose of this regulation is to set rates for the state, this section does not apply.*

Date amended small business impact statement was filed: July 2, 2021

CODE OF MASSACHUSETTS REGULATIONS INDEX - *List key subjects that are relevant to this regulation:*
brownfields
eligible costs
corporate excise
credit

PROMULGATION - *State the action taken by this regulation and its effect on existing provisions of the Code of Massachusetts Regulations (CMR) or repeal, replace or amend. List by CMR number:*

Adds new 830 CMR 63.38Q.1

ATTESTATION - *The regulation described herein and attached hereto is a true copy of the regulation adopted by this agency.* ATTEST:

SIGNATURE: SIGNATURE ON FILE DATE: Jul 8 2021

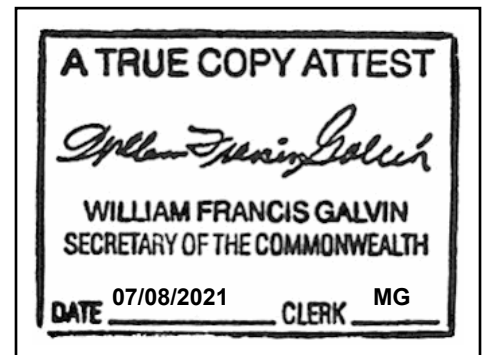
Publication - *To be completed by the Regulations Division*

MASSACHUSETTS REGISTER NUMBER: 1448 DATE: 07/23/2021

EFFECTIVE DATE: 07/23/2021

CODE OF MASSACHUSETTS REGULATIONS

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830 CMR 63.00: TAXATION OF CORPORATIONS

Section

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- 63.30.2: Net Operating Loss Deductions and Carryover
- 63.31.1: Add Back of Interest or Intangible Expense
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- 63.38Q.1: Massachusetts Brownfields Tax Credit
- 63.38R.1: Massachusetts Historic Rehabilitation Tax Credit
- 63.38T.1: Taxation of Unrelated Business Income of Exempt Organizations
- 63.39.1: Corporate Nexus
- 63.42.1: Section 42 - Application for Alternative Apportionment

63.29.1: Credits for Insurance Companies

(1) Statement of Purpose; Outline of Topics; Effective Date.

- (a) Statement of Purpose. The purpose of 830 CMR 63.29.1 is to explain the credits available to life insurance companies as provided in M.G.L. c. 63, § 29C and property and casualty insurance companies as provided in M.G.L. c. 63, §§ 29D and 29E. *See* St. 1998, c. 259.
- (b) Outline of Topics. 830 CMR 63.29.1 is organized as:
 - 1. Statement of Purpose; Outline of Topics; Effective Date
 - 2. Definitions
 - 3. Life Insurance Premiums Excise Credit
 - 4. Net Investment Income Tax Rate Reduction
 - 5. Property and Casualty Insurance Premiums Excise Credit
 - 6. Gross Investment Income Tax Rate Reduction
 - 7. Retaliatory Taxes Credit For Domestic Property and Casualty Insurance Companies
 - 8. Corporate Restructuring
- (c) Effective Date. The provisions of 830 CMR 63.29.1 shall take effect April 11, 2003.

(2) Definitions. For the purposes of 830 CMR 63.29.1, the following terms shall have the following meanings, unless the context requires otherwise:

Commissioner, the Commissioner of Revenue, or the Commissioner's duly authorized representative.

Department, the Department of Revenue.

Domestic Property and Casualty Insurance Company, a property and casualty insurance company organized or domiciled in Massachusetts.

Gross Investment Income Tax, the tax imposed under M.G.L. c. 63, § 22A.

Life Insurance Company, a corporation which satisfies the definition of either a domestic or foreign life insurance company in either M.G.L. c. 175, §§ 19F or 118, and which is subject to the provisions of M.G.L. c. 63.

63.29.1: continued

Life Insurance Premiums Excise, the excise imposed on life insurance companies under M.G.L. c. 63, §§ 20 and 22.

Massachusetts Life Insurance Company Community Investment Initiative (“Life Initiative”), an entity or its successor, created by life insurance companies, or the successor to such companies, pursuant to St. 1998, c. 259, § 2.

Massachusetts Property and Casualty Insurance Company Economic Development Initiative (“P&C Initiative”), an entity, or its successor, created by property and casualty insurance companies, or the successor to such companies, pursuant to St. 1998, c. 259, § 3.

Net Investment Income Tax, the tax imposed under M.G.L. c. 63, § 22B.

Property and Casualty Insurance Company, an insurance company which satisfies the definition of either a domestic or foreign insurance company in M.G.L. c. 175, § 1, except life insurance companies as defined in M.G.L. c. 175, § 118, and which is subject to the provisions of M.G.L. c. 63.

Property and Casualty Insurance Premiums Excise, the excise imposed on property and casualty insurance companies under M.G.L. c. 63, §§ 22 and 23.

Retaliatory Taxes, those taxes imposed or assessed by and paid to another jurisdiction by any domestic property and casualty insurance company due to the surtax imposed by St. 1969, c. 546, § 18. This term, however, shall not include penalties or interest for late payment of taxes.

Surtax, the tax imposed under St. 1969, c. 546, § 18.

(3) Life Insurance Premiums Excise Credit.

(a) General Rule. A life insurance company subject to the life insurance premiums excise will be allowed an annual credit against such excise if the company invests in the Life Initiative an amount equal to 1.5% of the company’s total capital contribution to the Life Initiative in excess of their full proportionate share. For taxable years beginning on or after the fifth year in which a life insurance company contributes to the Life Initiative, the amount of the credit available to a life insurance company shall be equal to 1.5% of the company’s total capital contribution to the Life Initiative. The credit is effective for tax years beginning after investments in the Life Initiative reaches \$100,000,000 or the tax year 2004, whichever is later.

(b) Full Proportionate Share. A life insurance company’s full proportionate share shall mean an investment in the Life Initiative equal to at least the product of:

1. \$20,000,000;
2. multiplied by a fraction, the numerator of which shall be the life insurance company’s total net investment income tax due and payable for the tax year ending on or before December 31, 1997, and the denominator of which shall be the total net investment income tax due and payable for all life insurance companies doing business in Massachusetts for the tax year ending on or before December 31, 1997.

The Department shall determine each life insurance company’s full proportionate share. Such information shall be provided to each life insurance company within 30 days of receipt of written request by such company. Full proportionate share determination requests are to be sent to the Commissioner at the following address:

Massachusetts Department of Revenue
Bureau of Desk Audit, Banking and Insurance Unit
P.O. Box 7052
Boston, MA 02204

(c) Full Proportionate Share Determinations for New Life Insurance Companies. If a life insurance company was not subject to the net investment income tax in the tax year ending on or before December 31, 1997, such company’s full proportionate share shall mean an investment in the Life Initiative equal to at least the product of:

1. \$20,000,000;

63.38N.1: continued

(d) Carry Over. Subject to the carry over provisions of 830 CMR 63.38N.1(10), each member of a combined group may carry over any unexpired amounts of the credit that have not been used to reduce the corporate excise liability of any member of the combined group. Each member of a combined group may carry over amounts of unused, unexpired, credit only to the extent that such amounts are generated by the member itself. The combined group, therefore, has no credit or carry over of its own.

63.38Q.1: Massachusetts Brownfields Tax Credit(1) Statement of Purpose, Outline of Topics, Effective Date.

(a) Statement of Purpose. 830 CMR 63.38Q.1 explains the provisions of the brownfields tax credit for environmental Response Actions, as set out in M.G.L. c. 62, § 6(j) and M.G.L. c. 63, § 38Q. Under these statutes an Eligible Person that remediates certain contaminated properties may be eligible for a credit against that person's Massachusetts personal income tax or corporate excise liability equal to a percentage of the Net Response and Removal Costs incurred for such remediation in compliance with M.G.L. c. 21E.

830 CMR 63.38Q.1 explains who is eligible for purposes of the credit and what costs are Eligible Costs for purposes of the credit, as well as the limitations on how much credit may be claimed in any tax year.

Additionally, 830 CMR 63.38Q.1 sets out rules pertaining to the carryforward of unused credits, the procedure to transfer, sell or assign unused credits, the circumstances under which a credit will be recaptured, and the appeals process in instances where the credit is fully or partially denied.

(b) Outline of Topics. 830 CMR 63.38Q.1 is organized as follows:

1. Statement of Purpose; Outline of Topics; Effective Date;
2. Definitions;
3. General Rule;
4. Net Response and Removal Costs; 15% of Assessed Value Requirement;
5. Eligible Costs;
6. Application Process;
7. Limitations; Claiming and Carryforward of Credit; Deductibility of Net Response and Removal Costs;
8. Transfer of the Credit;
9. Allocation of Credit Among Partners, Members or Owners;
10. Ordering; Nonrefundability of Credit;
11. Recapture; Payments in Error; and
12. Appeal Process for Denial or Partial Denial of Applications for Credit.

(c) Effective Date. 830 CMR 63.38Q.1 is effective for credit applications received by the Department on or after July 9, 2021.

(2) Definitions. For purposes of 830 CMR 63.38Q.1, the following terms shall have the following meanings.

Active Remedial Monitoring Programs, as defined in the MCP.

Active Remedial System, as defined in the MCP.

Activity and Use Limitation (AUL), as defined in the MCP.

Assessed Value, as defined in 830 CMR 63.38Q.1(4)(c).

Background, as defined in the MCP.

Contaminated Groundwater, as defined in the MCP.

Contaminated Media, as defined in the MCP.

Contaminated Sediments, as defined in the MCP.

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Contaminated Soil, as defined in the MCP.

Contaminated Surface Water, as defined in the MCP.

Commissioner, the Commissioner of Revenue, or the Commissioner's duly authorized representative.

Department, the Department of Revenue.

Department of Environmental Protection (MassDEP), the state agency within the Executive Office of Energy and Environmental Affairs tasked with enforcement of the Massachusetts Oil and Hazardous Material Release Prevention and Response Act, M.G.L. c. 21E.

Economically Distressed Area (EDA), as defined in pertinent part in M.G.L. c. 21E, § 2.

Eligible Costs, as identified in 830 CMR 63.38Q.1(5)(a).

Eligible Person, as defined in M.G.L. c. 21E, § 2 and the MCP, an owner or operator of a site or a portion thereof from or at which there is or has been a Release of OHM who would be liable under M.G.L. c. 21E solely pursuant to M.G.L. c. 21E, § 5(a)(1), and who did not cause or contribute to the Release of OHM from or at the site and did not own or operate the site at the time of the Release.

Historic Fill, as defined in the MCP.

Immediate Response Action (IRA), as defined in the MCP.

Licensed Site Professional (LSP), as defined in the MCP.

Massachusetts Contingency Plan (MCP), the Department of Environmental Protection's Regulation found at 310 CMR 40.0000: *Massachusetts Contingency Plan* pursuant to which a credit applicant must have submitted a Permanent Solution Statement or ROS Submittal to MassDEP prior to filing an application for the credit with the Department.

Net Response and Removal Costs, as identified in 830 CMR 63.38Q.1(4)(b). No Significant Risk, as defined in the MCP.

No Significant Risk, as defined in the MCP.

Oil and/or Hazardous Material (OHM), as defined in the MCP.

Permanent Solution, as defined in the MCP. Permanent Solution includes both a "Permanent Solution With Conditions" and a "Permanent Solution Without Conditions."

Permanent Solution Statement, as defined in the MCP.

Potentially Responsible Party (PRP), as defined in the MCP.

Release, as defined in M.G.L. c. 21E, § 2 and the MCP.

Release Abatement Measure (RAM), as defined in the MCP.

Remedy Operation Status (ROS), as defined in M.G.L. c. 21E, § 2 and the MCP.

Reportable Concentration, as defined in the MCP.

Response Action, as defined in M.G.L. c. 21E, § 2 and the MCP.

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(3) General Rule. A credit is allowed to Eligible Persons under M.G.L. c. 62, § 6(j) and M.G.L. c. 63, § 38Q for certain costs incurred for the purpose of remediating contaminated property located in an Economically Distressed Area that has been reported to MassDEP. The credit is generally equal to either 25% (if an AUL is in place) or 50% of the applicant's Net Response and Removal Costs incurred in the remediation of such a property. Net Response and Removal Costs, as further described in 830 CMR 63.38Q.1(4), are expenses paid by the taxpayer for purpose of achieving a permanent solution or remedy operation status, in compliance with M.G.L. c. 21E. To be eligible for the credit with respect to a property, an applicant must commence and diligently pursue an environmental Response Action on or before the date listed in M.G.L. c. 62, § 6(j) or M.G.L. c. 63, § 38Q, and must achieve and maintain a Permanent Solution or ROS in compliance with M.G.L. c. 21E, § 2 and the MCP. In addition, the applicant may not be subject to any enforcement action under M.G.L. c. 21E, the applicant must be an Eligible Person with an ownership or leasehold interest in the property, and the applicant must own or lease the property for business purposes. The credit may be transferred, but is not refundable. For purposes of determining if an applicant is an Eligible Person, the provisions of M.G.L. c. 21E, § 5(i), and 310 CMR 40.0570(3)(d) are taken into account.

(4) Net Response and Removal Costs; 15% of Assessed Value Requirement.

(a) In General. An applicant may apply to the Department for a credit equal to either 25% (if an AUL is in place) or 50% of the Net Response and Removal Costs incurred by an applicant with respect to a particular property, in compliance with M.G.L. c. 21E. The applicant will not be entitled to any credit, unless the Net Response and Removal Costs are equal to or greater than 15% of the Assessed Value of the property.

(b) Net Response and Removal Costs. An applicant's Net Response and Removal Costs are the applicant's total Eligible Costs less any reimbursement that is received, or will be received, by the applicant for these costs. Such reimbursement may include, but is not limited to, the amount of any state financial assistance received from the Redevelopment Access to Capital Program established pursuant to M.G.L. c. 23A, § 60, or from the Brownfields Redevelopment Fund, established pursuant to M.G.L. c. 23G, § 29A, or any recovery or damages (net of any attorney's fees and other litigation costs) received by the applicant as a result of any lawsuit against any person or entity on the grounds that such person or entity was responsible for a Release. With respect to the Redevelopment Access to Capital Program, the amount of state financial assistance is calculated as the amount of state funds paid on behalf of the borrower for participation in the program. If the taxpayer has borrowed funds subject to a state guarantee in order to finance the expenses of remediation, the amount of the loan is permitted to be included in the expense base for which the credit is available. However, if the borrower defaults on the loan and the guarantee is invoked, any credit taken for the amount of the loan will be recaptured as taxes due in the year the loan is paid. Loans and grants received from the Brownfields Redevelopment Fund constitute state financial assistance that must be excluded from Net Response and Removal Costs.

(c) 15% of Assessed Value Requirement. The applicant will not be entitled to any credit unless the Net Response and Removal Costs are equal to or exceed 15% of the Assessed Value of the property. For purposes of 830 CMR 63.38Q.1, the Assessed Value of the property shall be the January 1st valuation that applies to the municipal fiscal year during which Net Response and Removal Costs begin to be incurred. For purposes of the following two examples, municipal fiscal year 2018 begins on July 1, 2017, ends on June 30, 2018, and assessments for that fiscal year are based on a valuation as of January 1, 2017; similarly, municipal fiscal year 2019 begins on July 1, 2018, ends on June 30, 2019, and assessments for that fiscal year are based upon a valuation as of January 1, 2018. For example, if remediation commenced in February 2018 (*i.e.*, during fiscal year 2018), the Assessed Value of the property prior to remediation would be the Assessed Value as of January 1, 2017. If remediation commenced in August 2018 (*i.e.*, during fiscal year 2019), the Assessed Value of the property prior to remediation would be the Assessed Value as of January 1, 2018.

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(d) Multiple Releases. Where a Permanent Solution or ROS has already been achieved on a property, and an additional Release is discovered with respect to that property, an applicant may still apply for credit in connection with Net Response and Removal Costs incurred in obtaining a Permanent Solution or ROS with respect to such additional Release, regardless of whether a credit application had already been submitted and/or approved with respect to the earlier Permanent Solution or ROS. The additional Net Response and Removal Costs associated with each such additional Release must independently equal or exceed 15% of the Assessed Value of the property. However, for purposes of the 15% threshold, applicants may aggregate the Net Response and Removal Costs of multiple Permanent Solutions or Remedy Operations Statuses that are achieved within a single three-year period. Applicants may not aggregate the Net Response and Removal Costs of any Permanent Solutions or Remedy Operations Statuses achieved more than three years apart, and may not aggregate the Net Response and Removal Costs of any Permanent Solution or Remedy Operation Status more than once. For purposes of the 15% threshold of 830 CMR 63.38Q.1(4)(c), when applications aggregate the Net Response and Removal Costs of multiple Permanent Solutions or Remedy Operations Statuses within a three-year period, the Net Response and Removal Costs must equal or exceed 15% of the Assessed Value of the property as of the January 1st valuation that applies to the municipal fiscal year during which the first Net Response and Removal Cost was incurred.

(e) Costs Incurred to Remove All or Part of an AUL. Where a Permanent Solution with an AUL has already been achieved on a property, an applicant may still apply for credit in connection with Net Response and Removal Costs incurred to remove all or part of that AUL, regardless of whether a credit application had already been submitted and/or approved with respect to the earlier Permanent Solution. The additional Net Response and Removal Costs associated with the removal of all or part of the AUL must independently equal or exceed 15% of the Assessed Value of the property. However, for purposes of the 15% threshold, applicants may aggregate the Net Response and Removal Costs of multiple Permanent Solutions or Remedy Operations Statuses that removed all or part of an AUL that are achieved within a single three-year period. Applicants may not aggregate the Net Response and Removal Costs of any Permanent Solutions or Remedy Operations Statuses achieved more than three years apart, and may not aggregate the Net Response and Removal Costs of any Permanent Solution or Remedy Operation Status more than once. For purposes of the 15% threshold of 830 CMR 63.38Q.1(4)(c), when applications aggregate the Net Response and Removal Costs of multiple Permanent Solutions or Remedy Operations Statuses within a three-year period, the Net Response and Removal Costs must equal or exceed 15% of the Assessed Value of the property as of the January 1st valuation that applies to the municipal fiscal year during which the first Net Response and Removal Cost was incurred.

(5) Eligible Costs.

(a) In General. Eligible Costs are costs incurred by an Eligible Person in performing Response Actions for the purpose of achieving a Permanent Solution or ROS in compliance with M.G.L. c. 21E. A cost will not be an Eligible Cost simply because it is incurred in compliance with M.G.L. c. 21E; rather, it must also be incurred for the purpose of achieving a Permanent Solution or ROS. A cost will be considered to be incurred for the purpose of achieving a Permanent Solution or ROS if it was:

1. reasonable; and
2. for Response Actions that are a direct and necessary part of attaining such Permanent Solution or ROS.

(b) Persons Who Do Not Own or Lease the Property. Costs are not Eligible Costs if they are incurred when the applicant does not own or lease the property or if they are incurred by persons that do not own or lease the property at the time the Permanent Solution or ROS is achieved. As an example of a developer or other person with a development agreement or a purchase and sale agreement may incur costs with respect to a property during a time when they do not yet own or lease the property. Such costs are not Eligible Costs and do not become Eligible Costs when the developer or other person subsequently acquires ownership or leases the property. A developer's right to enter a property for surveys, test borings, engineering and architectural studies or other limited purposes does not rise to the level of a leasehold or ownership interest required for eligibility for the credit. As an example of: a developer or other person may incur costs with respect to a property after buying that property, but may then sell the property prior to achieving a Permanent Solution or ROS (without retaining a leasehold interest in such property). Such costs are not Eligible Costs.

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(c) Types of Costs Generally Considered Eligible. Because all projects are different, the examples in 830 CMR 63.38Q.1 are provided only as guidelines. In some instances the Department may determine that a cost on this list is ineligible due to the particular circumstances of the Response Action. Furthermore, the Department does not exclude the possibility that an applicant may be able to show that a cost outside this list was incurred for the purpose of achieving a Permanent Solution or ROS and is an Eligible Cost. In general, however, an Eligible Cost will be found among the following types of costs:

1. Costs incurred for assessment activities performed prior to notification of a release or threat of release of OHM to MassDEP that identify an obligation to notify MassDEP (*e.g.*, the portion of a surveyor's costs attributable to laying out a pre-characterization sample grid, when the surveyor has been contracted to conduct a property survey);
2. Costs incurred after the notification of a release or threat of release of OHM to MassDEP for any assessment, containment, or removal action required to achieve a Permanent Solution or ROS;
3. Costs incurred for the preparation and filing of all MCP submittals to MassDEP, provided that such costs are incurred for the purpose of achieving a Permanent Solution or ROS (plans, reports, completion statements, status reports and/or remedial monitoring reports);
4. Costs incurred for the assessment, containment, treatment, removal, transport, storage, reuse, recycling and/or disposal of Contaminated Groundwater, Contaminated Surface Water, Contaminated Soil or Contaminated Sediment, unless the costs relate to a Response Action that is not required to achieve a Permanent Solution or ROS;
5. Costs associated with treatment systems (including Active Remedial Systems, Active Remedial Monitoring Programs, and vapor mitigation systems such as active ventilation systems, passive ventilation systems, impermeable vapor barriers or waterproofing), provided that such costs are incurred for the purpose of achieving a Permanent Solution or ROS;
6. Costs associated with an engineered barrier or with a paved area, marker barrier, clean soil cover, vegetation and/or building slab acting as a barrier or cap, provided that the Permanent Solution or ROS requires such engineered barrier or paved area, marker barrier, clean soil cover, vegetation and/or building slab acting as a barrier or cap to be in place, and provided that such engineered barrier, barrier or cap is in compliance with the MCP;
7. Costs incurred to achieve or approach Background if:
 - a. the applicant can show the costs were incurred for such purpose by a verification process that complies with 830 CMR 63.38Q.1(5)(f)2.; and
 - b. the Permanent Solution Statement to MassDEP documents that Background has been achieved or approached at the site or portion thereof;
8. Costs incurred for removal of soils or sediments if the removal of such soils or sediments is necessary to remove Contaminated Media under such soils or sediments, unless the costs relate to a Response Action that is not required to achieve a Permanent Solution or ROS;
9. Demolition costs (other than extraordinary costs of the type listed in 830 CMR 63.38Q.1(5)(d)15.) pertaining to an existing building or structure if, prior to any such demolition, it has been determined that such demolition:
 - a. is necessary to remove Contaminated Media under such building or structure; and
 - b. is required to achieve a Permanent Solution or ROS.
10. Costs incurred for development and implementation of assessment and remediation plans, including pilot testing and treatability tests;
11. Costs incurred for environmental testing if such tests are pertinent to the remediation of the Release to which the Permanent Solution or ROS relates;
12. Costs incurred for hydrogeologic/aquifer tests if such tests are pertinent to the remediation of the Release to which the Permanent Solution or ROS relates;
13. Costs incurred in provisions for the temporary and/or permanent replacement or treatment of potable drinking water supply contaminated by OHM;
14. Costs incurred for installation of test pits, test borings, monitoring wells, recovery wells, and/or gaseous monitoring points or injection or extraction wells, and for the sampling of drinking water and indoor air;
15. Attorney fees for compliance assistance for the purpose of achieving a Permanent Solution or ROS (*e.g.*, in the preparation of submittals documenting Response Actions and preparing Activity and Use Limitations);

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16. Permit fees, and cost of paid police details and security details required during eligible activities; and.

17. Costs incurred for the removal and disposal of asbestos or asbestos-containing material from a building that is to be demolished, but only if the soil immediately under the building contains Contaminated Media that must be accessed in order to achieve a Permanent Solution or ROS, and the applicant can demonstrate that it knew, at the time the asbestos was removed from the building, that Contaminated Media was present immediately under the building.

(d) Types of Costs Generally Not Considered Eligible. Because all projects are different, the examples in this section are provided as guidelines. This list is not exhaustive, and other costs not found on this list may also be ineligible. Furthermore, the Department does not exclude the possibility that an applicant may be able to show that a cost on this list was incurred for the purpose of achieving a Permanent Solution or ROS and is an Eligible Cost. However, unless the applicant can show that an exception should be made due to the particular circumstances of the Response Action, the following types of costs will generally not be considered Eligible Costs:

1. Costs incurred for retro-fitting, relining or replacing underground storage tank systems;
2. Loss of business revenue because of shutdown of business due to a Release or the performance of Response Actions;
3. Landscaping expenses including expenses related to the loss, replacement, or installation of trees, shrubs, or signs, unless these costs are incurred in accordance with 830 CMR 63.38Q.1(5)(c)6.;
4. Costs incurred for the replacement or repair of asphalt pavement, bituminous concrete or concrete areas, unless these costs are incurred in accordance with 830 CMR 63.38Q.1(5)(c)6.;
5. Costs of managing environmental media for which the excavation, removal, transport, storage, reuse, recycling and/or disposal is not necessary to achieve a Permanent Solution or ROS;
6. Costs incurred for the containment, treatment, removal, transport, storage, reuse, recycling and/or disposal of Historic Fill where such activities were not taken for the purposes of achieving a Permanent Solution or ROS;
7. All federal, state, local and other governmental oversight fees;
8. Compliance fees, including annual compliance fees owing under 310 CMR 4.00: *Timely Action Schedule and Fee Provisions* punitive damages, civil or administrative penalties, and criminal fines;
9. Interest payments or any finance charges;
10. Costs incurred for small tools;
11. Except as specifically provided in 830 CMR 63.38Q.1(5)(c)1., costs that are incurred prior to notifying MassDEP of the Release;
12. Ordinary business expenses or capital improvements, including:
 - a. oil and hazardous materials management; and/or
 - b. replacement of tanks.
13. Insurance costs associated with remediation;
14. Costs attributable to the time and expense of an owner, operator, or principal of the applicant;
15. Except as specifically provided in 830 CMR 63.38Q.1(5)(c)(17), extraordinary costs associated with the demolition of a building or structure, such as:
 - (a) the costs of removal, disposal or preservation of machinery, inventory, fuel, furniture, furnishings, artwork or tangible property located within the building or structure;
 - (b) the costs of removal or disposal of hazardous materials to the extent they are not regulated under the MCP, did not constitute a release or threat of release, or were not discussed in the MCP Response Action including (but not limited to) any such costs related to the removal and disposal of nuclear waste, unexploded ordnance, medical waste, biohazards, asbestos, or lead paint; or
 - (c) the costs of replacing or relocating stormwater systems or other utilities;
16. Except as specifically provided in 830 CMR 63.38Q.1(5)(c)(17), costs associated with the disposal of solid waste, asbestos-containing materials, asphalt binder in bituminous pavement or demolition debris (other than debris that is Contaminated Media);

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17. Costs of constructing foundations, including but not limited to load-bearing elements, driven piles, geopiers, rammed aggregate piers, grade beams or pile caps;
18. Any other construction expenses that are not necessary for achieving a Permanent Solution or ROS;
19. Any expense incurred in compliance with M.G.L. c. 21E that is not incurred for the purpose of achieving a Permanent Solution or ROS; and
20. Any expense required by the MCP that is not incurred for the purpose of achieving a Permanent Solution or ROS.

Example 1. Company A undertakes to redevelop a site containing an existing building, and intends to demolish that building as part of the redevelopment. Prior to the demolition of the building, Company A has its LSP conduct tests on the soil at the site and determines that OHM levels exceed MCP Reportable Concentrations, thus requiring notification to MassDEP. Additionally, the testing determined that the soil under the building requires remediation or removal for the purposes of achieving a Permanent Solution. Demolition of the building was determined to be necessary to access the contamination and achieve a Permanent Solution. In compliance with a Release Abatement Measure Plan, Company A then demolishes the building and removes, transports and disposes of the soil below the building that contains OHM in excess of Reportable Concentrations. Because Company A undertook to demolish the building for the purpose of achieving a Permanent Solution, its costs of demolishing the building are Eligible Costs. Furthermore, to the extent they relate to the soil under the building that contained OHM equal to or greater than Reportable Concentrations, Company A's costs of removing, transporting and disposing of such soil are Eligible Costs.

Example 2. Assume the same facts as in Example 1, except that when the consultant tests under the building prior to demolition, no soil is discovered with OHM equal to or above Reportable Concentrations. After demolition has started, as the ground-level slab of the building is being demolished, visual and olfactory evidence of contamination is encountered in the soil below the building. Company A again has the soil below the building tested; some of that soil is found to be Contaminated Soil, and this result is reported to MassDEP. In compliance with a RAM Plan, Company A then excavates, transports and disposes of the Contaminated Soil located below the building. Because Company A did not undertake to demolish the building for the purpose of achieving a Permanent Solution or ROS, and because it demolished the building prior to any report of a Release to MassDEP, its costs of demolishing the building are not Eligible Costs. However, Company A's costs of removing, transporting and disposing of soil with OHM equal to or greater than Reportable Concentrations are Eligible Costs.

Example 3. Assume the same facts as in Example 2, except that Company A conducted no tests of the soil prior to demolition. After finding visual and olfactory evidence of contamination during demolition, Company A has the soil tested by an LSP, who concludes that some of that soil contains OHM above Reportable Concentrations. This result is reported to MassDEP. Company A's costs of demolishing the building are not Eligible Costs. However, to the extent they relate to Contaminated Soil that had been located under the building prior to demolition, Company A's costs of removing, transporting and disposing of such soil are Eligible Costs.

Example 4. Company B discovers OHM on its property that exceeds Reportable Concentrations, and this result is reported to MassDEP. Company B engages an LSP, who determines that the OHM above Reportable Concentrations is located in soil located more than ten feet below the ground surface. Company B now undertakes to achieve a Permanent Solution with respect to the site, and determines in conjunction with its LSP that removal, transport and disposal of the Contaminated Soil is a direct and necessary part of achieving such a Permanent Solution. The LSP reports to MASSDEP in the RAM Plan that (1) removal of the uncontaminated soil located in the 10 feet above the Contaminated Soil and (2) removal, transportation and disposal of the Contaminated Soil are among the planned RAM activities. In compliance with the RAM Plan, Company B then removes the uncontaminated soil from above the Contaminated Soil and removes, transports and disposes of the Contaminated Soil. Company B also transports and disposes of the uncontaminated soil that it removed from above the Contaminated Soil.

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Company B's costs for removal of the uncontaminated soil, and its costs for removal, transport and disposal of the Contaminated Soil are Eligible Costs. Company B's costs for transporting and disposing of the uncontaminated soil are not Eligible Costs.

Example 5. Company C discovers OHM on its property that exceeds Reportable Concentrations, and this result is reported to MassDEP. Company C engages an LSP, who selects a remedial alternative that requires that a paved area acting as a cap be placed on the site. Company C constructs a paved area to act as a cap and creates a parking lot on the paved area. The LSP submits a Permanent Solution with Conditions with an AUL that requires a cap to be maintained and an AUL to be placed on the property. Because the paved area acting as a cap is required to be in place by the Permanent Solution and the accompanying AUL, Company C's costs of paving are Eligible Costs. Company C's costs of creating the parking lot on the paved area (*e.g.*, line striping, signage, planters or median dividers, or curbing) are not Eligible Costs.

Example 6. Company D discovers OHM on its property that exceeds Reportable Concentrations, and reports this to MassDEP. Company D's LSP creates a RAM Plan that indicates that all Contaminated Media will be removed from the site. As part of the construction accompanying the remediation, Company D paves over the site and creates a parking lot. The LSP submits a Permanent Solution without Conditions, which does not require a cap to be maintained or an AUL to be placed on the property. Because the paving is not necessary to create a cap that is required to be in place by the Permanent Solution, Company D's costs of paving are not Eligible Costs.

Example 7. Company E discovers OHM that exceeds Reportable Concentrations in two locations on property that it owns, and this is reported to MassDEP. Company E's LSP researches the origin of the two Releases and determines they occurred at different times. One Release occurred prior to the purchase of the property by Company E, while the other occurred after Company E purchased the property. With respect to costs incurred to remediate the first Release, which occurred prior to the purchase of the property, Company E may qualify as an Eligible Person. With respect to costs incurred to remediate the second Release, which occurred during the period that Company E owned the property, Company E is not an Eligible Person.

Example 8. Company F discovers OHM on its property that exceeds Reportable Concentrations, and this result is reported to MassDEP. Company F engages an LSP, who selects a Remedial Alternative that requires that a cap be placed on the site. Company F creates this cap in part by building a three-story parking garage over a portion of the site. The LSP submits a Permanent Solution with Conditions with an AUL that requires a cap to be maintained and an AUL to be placed on the property. Because the three-story parking garage serves as a cap that is required to be in place by the Permanent Solution and the accompanying AUL, that portion of Company F's costs of building the three-story parking garage that is reasonable will be considered Eligible Costs. The cost of constructing a three-story parking garage is not the type of cost generally recognized as necessary and appropriate for the purpose of achieving a Permanent Solution as a "capping" expense, and so Company F's costs of building the walls, the upper two floors and the load-bearing structural elements that support them (*e.g.*, piles, pile caps, and cap beams) will not be considered reasonable and will be disallowed as an Eligible Cost. The cost of pouring a building slab is the type of cost generally recognized as necessary and appropriate for the purpose of achieving a Permanent Solution as a "capping" expense, and Company F's cost of pouring the building slab will be considered reasonable to the extent needed to satisfy the intended use as a cap (*i.e.*, by backing out the additional design and construction costs needed to satisfy the intended use as a garage floor that will support anticipated loads associated with vehicle weight).

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Example 9. Company G discovers OHM on its property that exceeds Reportable Concentrations, and this result is reported to MassDEP. Company G engages an LSP, who selects a remedial alternative that requires the soil in a certain location of the site to be excavated to a depth that would require support of excavation to resist the lateral pressure from the abutting parcels. Company G decides to provide this support of excavation by constructing a slurry wall that will be made up in part of load-bearing elements that will also serve as the foundations of a 30-story building and thus will need to withstand forces of compression and tension in addition to lateral forces. These load-bearing elements designed for these additional loads will be more expensive than a section of slurry wall that only needs to withstand lateral forces. Company G's implementation of the remedial alternative selected by its LSP has been done in a manner that increases its cost because it serves other purposes unrelated to remediation. Thus, Company G's additional cost attributable to its additional construction purposes is not reasonable and will be disallowed as an Eligible Cost.

(e) Timing of Costs. For the costs of a remediation to be eligible for the credit, the remediation must begin on or before the date listed in M.G.L. c. 62, § 6(j) or M.G.L. c. 63, § 38Q, and the costs must be incurred on or after August 1, 1998. Except as specifically provided in 830 CMR 63.38Q.1(5)(c)1., the costs must also be incurred after notifying MassDEP of the Release. Furthermore, the costs must also be incurred prior to the submittal of a Permanent Solution Statement or ROS Submittal to MassDEP. The costs for actions or expenses that have occurred prior to the submittal of a Permanent Solution Statement or ROS to MassDEP, but that are billed to and paid by an applicant after such submittal, will still be eligible, provided they meet all other requirements of 830 CMR 63.38Q.1(4) and are billed and paid prior to the Brownfields Credit Application being submitted to the Department.

Example. Company X performs work on a site for Owner Y in June. Owner Y achieves a Permanent Solution in July of the same year, as documented in a Permanent Solution Statement submitted to MassDEP at that time. Company X does its billing quarterly and does not issue an invoice until September. Provided that the work or expense to which the invoice relates is done before the Permanent Solution Statement was submitted to MassDEP, the expense is billed and paid before the credit application is submitted, and the expense meets all other criteria to constitute a qualified expense, such expense will be allowed as an Eligible Cost.

(f) Verification of Costs.

1. Listing of Eligible Costs in Electronic Format. To be eligible for the credit, an applicant must provide a listing of all Eligible Costs and certain related information, including invoice dates and numbers, the name of the vendor and a brief description of the services provided. This listing should be submitted electronically, in a standard database spreadsheet format. The Department may also require proof of payment (e.g., cancelled checks) or additional information regarding the nature of the services provided with respect to any cost items. In all cases, the Commissioner may require additional information or records or otherwise take such steps necessary to verify the eligibility and accuracy of the costs submitted.

2. Special Verification with Respect to the Costs Associated with Approaching or Achieving Background. As part of its verification of the eligibility of a cost under 830 CMR 63.38Q.1(5)(c)7., an applicant must provide the following information:

- a. a calculation and documentation of the cost required to achieve a condition of No Significant Risk for the Permanent Solution as implemented; and
- b. a calculation and documentation of any additional costs required to achieve or approach Background. If the cost required to achieve or approach Background was greater than 20% of the cost required to achieve No Significant Risk for the Permanent Solution, then the Department will treat such costs as having been incurred for a purpose other than that of achieving a Permanent Solution, such as a construction purpose, unless the applicant can otherwise show it was incurred for the purpose of achieving a Permanent Solution. Where the Permanent Solution achieves or approaches Background for a portion of the site, the analysis described above shall apply to the costs associated with that portion of the site.

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3. Verification of Whether a Cost Was Incurred for the Purpose of Achieving a Permanent Solution or ROS. In order to evaluate this criterion, the Department will require an applicant to state the rationale for any particular cost whose purpose is not readily evident. If the Department determines that the proffered justification is pretextual, that the cost is not reasonable, or that the cost is not a direct and necessary part of attaining a Permanent Solution or ROS, the cost will be disallowed. The fact that a cost was incurred as part of a Response Action is not by itself a sufficient reason to deem it to have been incurred for the purpose of attaining a Permanent Solution or ROS. Similarly, the fact that a cost was incurred in compliance with a requirement of M.G.L. c. 21E or the MCP is not a sufficient reason, standing alone, for that cost to be considered to have been incurred for the purpose of achieving a Permanent Solution or ROS. Additionally, the fact that an activity was mentioned in a work plan submitted as part of MCP Response Actions is not by itself a sufficient reason to deem the costs of that activity to have been incurred for the purpose of attaining a Permanent Solution or ROS.

Example 1. Company H discovers OHM on its property that exceeds Reportable Concentrations, and this result is reported to MassDEP. Company H engages an LSP, who selects a remedial alternative that requires the soil at the site to be excavated to Depth X. Company H decides that it wishes to build a building on the site. The design of the building requires excavation to Depth Y, a depth that is deeper than Depth X. Company H also determines that the soil between Depth X and Depth Y is not suitable for re-use on the site, and will need to be shipped off-site for disposal. Company H and its LSP determine that any decision to excavate the soils between Depth X and Depth Y and to dispose of them off-site will give rise to additional obligations under 310 CMR 40.0032(3), referred to as the antidegradation provision of the MCP. Company H and its LSP further determine that if Company H decides to go forward with this decision, compliance with the additional obligations that will arise under the MCP will become an additional condition of attaining a Permanent Solution or ROS. Because these additional obligations only became a condition of the Permanent Solution or ROS as a result of Company H's decision to excavate to Depth Y, the expenses of fulfilling these obligations, although required by the MCP, were not incurred for the purpose of achieving a Permanent Solution or ROS, and thus will not be considered Eligible Costs.

Example 2. Company J discovers OHM on its property that exceeds Reportable Concentrations, and this result is reported to MassDEP. Company J engages an LSP, who selects a remedial alternative of a type generally recognized as necessary and appropriate for the purpose of achieving a Permanent Solution with respect to the type of contamination located on Company J's property. Acting on the LSP's advice, Company J implements this remedial alternative with the purpose of achieving a Permanent Solution. The LSP then conducts further assessment after the remedial alternative is implemented and determines that it did not succeed in achieving a condition of "No Significant Risk". The LSP then selects a second remedial alternative that is also of a type generally recognized as necessary and appropriate for the purpose of achieving a Permanent Solution with respect to the type of contamination located on Company J's property. Again acting on the LSP's advice, Company J implements the second remedial alternative with the purpose of achieving a Permanent Solution, after which the LSP determines that a condition of "No Significant Risk" has been achieved and submits a Permanent Solution Statement to MassDEP. Even though, in hindsight, the LSP has determined that the first remedial alternative was not necessary, the costs of both remedial alternatives will be considered direct and necessary parts of attaining a Permanent Solution because both remedial alternatives were of the type generally recognized as necessary and appropriate for the purpose of achieving a Permanent Solution with respect to the type of contamination located on Company J's property, and because both remedial alternatives were implemented by Company J with the purpose of achieving a Permanent Solution.

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Example 3. Company K discovers OHM on its property that exceeds Reportable Concentrations, and this result is reported to MassDEP. Company K engages an LSP, who determines that the soil with OHM above Reportable Concentrations is Historic Fill that is consistent with Anthropogenic Background and its removal is not necessary to achieve a Permanent Solution or ROS. Company K decides that it wishes to build a building on the site. The design of the building requires excavation to Depth Z. Company K also determines that the soil above Depth Z consists of Historic Fill that is not suitable for reuse on the site and will need to be shipped off-site for disposal. Company K and its LSP determine that any decision to excavate the Historic Fill above Depth Z and to dispose of it off-site will give rise to additional obligations under certain provisions of the MCP that would not have applied otherwise, for example, those located at 310 CMR 40.0030 for the storage, transportation and disposal of Remediation Waste. Because the removal and disposal of the soil above Depth Z was not necessary to achieve a Permanent Solution or ROS since Historic Fill is consistent with Anthropogenic Background, but instead was completed for construction purposes, Company K's costs for fulfilling these additional MCP obligations for off-site management of the Historic Fill will not be Eligible Costs.

(g) Denial or Proration of Certain Costs.

1. Dual Purpose Costs. Costs that are higher than they would otherwise be because they are serving an additional purpose that is not eligible (*i.e.*, a purpose other than the purpose of achieving a Permanent Solution or ROS) may be prorated, unless proration is not representative of the relative costs. For example, costs related to excavation of soil may be prorated based upon the depth of soil needed to be removed for remediation purposes.

Example 1. An applicant plans to erect a new building on the property that requires the digging of a foundation of 15 feet. Based on information from its LSP, the applicant determines that excavation of soil to a depth of ten feet below ground surface is necessary for remediation. The Commissioner may disallow $\frac{5}{15}$ th, or 33%, of the costs associated with excavation and removal of the soil.

Example 2. Assume the same facts as above except that erection of a new building on the site requires digging a foundation of 100 feet and the use of bracing and other support measures to complete the digging. In this circumstance direct proration (*i.e.*, allowance of $\frac{10}{100}$ th, or 10%, of the costs) may not be representative of the costs necessary for excavation down to ten feet. In such a case, the Commissioner will allow a lesser percentage of the excavation costs, to the extent proven by the taxpayer.

2. Soft Costs. Costs that are allocable to both eligible and ineligible expenses, also known as “soft” costs, will also generally be prorated. Soft costs may include such items as general conditions, general requirements, police details, or other similar overhead costs. The proration of soft costs will generally be done by determining the percentage of “hard” costs (*i.e.*, all items that are not soft costs) that are eligible, and multiplying that percentage by the soft costs.

(6) Application Process.

(a) Once an applicant has completed its remediation work and submitted evidence that it has achieved a Permanent Solution or ROS to MassDEP, it may apply to the Department for a credit by utilizing Form BCA: Brownfields Credit Application or such other form as the Commissioner may prescribe. Such application must be filed on or before December 31st of the fifth year after the year in which the Permanent Solution or ROS is achieved, or the applicant will not be eligible for the brownfields credit. Such application may be filed even before the applicant has completed cost recovery under other reimbursement pathways (*e.g.*, M.G.L. c. 21J, or a lawsuit against another PRP), provided that the applicant discloses their existence on its credit application.

(b) Required Documentation. An applicant must furnish the Department with the following documentation and representations as part of a completed application:

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1. A detailed narrative written by a qualified environmental professional in support of the submitted costs explaining (a) why they should be considered to have been taken for the purpose of achieving a Permanent Solution or ROS, (b) why they were reasonable and (c) why they were a direct and necessary part of achieving a permanent solution or ROS.
 2. Documentation showing the Assessed Value of the property;
 3. The applicant's deed or lease agreement for the property;
 4. A description of the business purpose for which the property is owned or leased, *i.e.*, the business activity taking place on this site once the Permanent Solution was achieved;
 5. A copy of the construction plan for the property or site, including a cross-sectional diagram if available;
 6. Daily or weekly field reports or field log books prepared by contractors and/or on-site engineering oversight personnel that describe the activities related to the performance of Response Actions;
 7. Soil transportation logs (or their equivalent, such as bills of lading or manifests) if soil was transported as part of the remediation;
 8. A detailed statement of the property's contamination history to the extent known or discoverable by the applicant, including dates of the Release(s), identification of the person(s) who caused the Release(s), and identification of the person(s) who owned, leased or operated the property at the time of the Release(s);
 9. A complete list of all Eligible Costs, submitted electronically in a standard database spreadsheet format, that includes with respect to each item the invoice date, the invoice number, the vendor, the amount of the cost and a brief description of the service(s) provided;
 10. With respect to any general requirements or general conditions payment item claimed as an Eligible Cost on the application, an itemized breakdown of the costs that are included in such general requirements or general conditions payment item;
 11. A representation by the applicant or an officer of the applicant, provided under the pains and penalties of perjury, that all requirements of 830 CMR 63.38Q.1 have been met, including without limitation:
 - (a) that the applicant is an Eligible Person;
 - (b) that the property is located in an Economically Distressed Area;
 - (c) that only Eligible Costs are claimed in the application;
 - (d) that all of the claimed costs relate to one of the release tracking numbers for which a Permanent Solution or ROS was achieved;
 - (e) that, to the best of the applicant's knowledge, all statements contained within the application are accurate;
 - (f) that all reimbursements received or that will be received by the applicant with respect to its Eligible Costs have been reported in the application;
 - (g) an acknowledgement that the applicant has a duty to notify the DOR of any reimbursements it may receive in the future other than those disclosed in the application; and
 - (h) an acknowledgement that if the applicant does receive any such reimbursement not disclosed in the application and the applicant has received a credit that was attributable to costs that were ultimately reimbursed, the applicant has a duty to pay back to the DOR the corresponding (whether 25% or 50%) amount of credit attributable to the amount of the reimbursement; and
 12. A site investigation report, pre-characterization report or other similar report of the location of Contaminated Media as determined prior to or during remedial activities.
- (c) Additional Documentation. An applicant must furnish any additional information or documentation that the Department deems necessary to determine and to verify the eligibility of costs. As noted in 830 CMR 63.38Q.1(5)(f), the Department reserves the right to request, *inter alia*, all invoices and proof of payment thereof.
- (d) Duty to Report Changes in Circumstances. After an application has been submitted, the applicant has the duty to report to the Department any subsequent material changes to its application. Some such circumstances include, but are not limited to:
1. The applicant receives a reimbursement with respect to any of its Eligible Costs that was not already reported on its application, regardless of whether such reimbursement was anticipated;

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2. The Permanent Solution or ROS is retracted or otherwise modified such that it is no longer valid or no longer in the form described in the application (*e.g.*, a Permanent Solution without an AUL that is modified to a Permanent Solution with an AUL); or
 3. The applicant or the person acting on its behalf through a Power of Attorney becomes aware that any statement contained within the application was not materially accurate at the time it was made, or is no longer materially accurate.
- (e) Credit Certificate. If an application is approved, the Department will issue a notice of credit approval and a “Form BCC – Brownfields Credit Certificate”, indicating a certificate number, the expiration date of the credit, and the amount of credit approved. The expiration date of the credit shall be the same as the date by which an application must be filed as set out in 830 CMR 63.38Q.1(6)(a). The applicant may use the credit for any tax year ending on or before the expiration date on the tax certificate, in accordance with 830 CMR 63.38Q.1(7)(b).

(7) Limitations; Claiming and Carryforward of Credit; Deductibility of Net Response and Removal Costs.

(a) Limitations on Use of the Credit.

1. 50% Limitation for Personal Income Taxpayers. Pursuant to M.G.L. c. 62, § 6(j)(3), the maximum amount of credit that may be taken for a single tax year may not exceed 50% of the claimant’s personal income tax liability for such year.
2. 50% Limitation for Certain Business Corporations. Pursuant to M.G.L. c. 63, § 38Q(c), the maximum amount of credit that may be taken for a single year may not exceed 50% of the claimant’s corporate excise liability for such year. This limitation does not apply to financial institutions or insurance companies that are subject to a financial institution excise or an insurance premium excise, respectively, set out in M.G.L. c. 63.
3. Minimum Excise Limitation. Pursuant to M.G.L. c. 63, § 38Q(e), the credit may not be used to reduce the tax liability of a business corporation below the minimum excise. Pursuant to M.G.L. c. 63, § 2(b) the credit may not be used to reduce the financial institution excise liability of a financial institution below the minimum excise.

(b) Claiming and Carryforward of Credit. A taxpayer may claim the credit for the tax year in which the credit is generated. A taxpayer may also carry over the portion of the credit, as reduced from year to year, that it was unable to claim based upon the limitations set out in M.G.L. c. 63, § 38Q(c) and (e) and M.G.L. c. 62, § 6(j)(3). The taxpayer may claim such carryover credit against its tax liability for any subsequent taxable year ending on or before the expiration date on the certificate. For purposes of 830 CMR 63.38Q.1(7), the tax year in which the credit is generated is the tax year in which the Permanent Solution Statement or ROS Submittal is filed with MassDEP. If a taxpayer does not claim the credit on its original return for an eligible tax year, such taxpayer may claim the credit by filing an amended return with respect to such year so long as the year ended on or before the expiration date of the certificate and the statute of limitations is still open for filing an amended return for that year. The period of time for filing an amended tax return is set forth in M.G.L. c. 62C, § 37. If the period of limitations for filing an amended return for a particular year was open at the time that a credit application was filed but then closes before the date that the certificate is issued or within 90 days thereafter, then the Commissioner will treat the credit application as an amended return for the limited purposes of claiming the credit for that year and apply the credits from that certificate to that year at such time. For purposes of 830 CMR 63.38Q.1(7)(b), the application will be considered filed on the date it was received by the Commissioner. However, in no event may a taxpayer claim the credit for a taxable year during which it ceased to maintain the ROS or the Permanent Solution for which the credit was granted.

(c) Deductibility of Net Response and Removal Costs. Where a taxpayer has claimed a deduction on any Massachusetts tax return for any expense which qualifies as a Net Response and Removal Cost, and a brownfields credit is awarded with respect to any such Net Response and Removal Cost, the taxpayer’s income for the tax year in which the credit was awarded shall be increased to the extent of such credit.

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(8) Transfer of the Credit.

(a) Transfer, Sale or Assignment of the Credit. A recipient of a credit seeking to transfer, sell or assign the credit, or any unused portion thereof, must complete and submit to the Department a transfer application on Form BCTA before making a transfer. The recipient must submit the transfer application to the Commissioner on or before the expiration date of the credit certificate that it seeks to transfer or within one year of the date that the original credit certificate was issued, whichever is later. The transfer application requires a statement describing the amount of the credit available for transfer, sale or assignment, as well as a statement as to the amount of the credit to be transferred. A transferor may also be required to acknowledge the transfer and its amount on a form prescribed by the Commissioner. If the transfer is approved, the Department will issue a certificate to the transferee stating the amount of the credit transferred. The new certificate to the transferee will have the same expiration date as the original certificate for such credit.

(b) Claiming the Credit as a Transferee. A person that receives a valid transfer of the credit may, subject to the requirements and limitations of 830 CMR 63.38Q.1, apply such credit to either the tax imposed under M.G.L. c. 62 or the excise imposed under M.G.L. c. 63. The transfer, sale or assignment of a credit does not extend the carryforward period. A transferee may claim the credit for any year in which it could have been claimed by the original credit recipient as set out in 830 CMR 63.38Q.1(7)(b), either by including the credit on its original return or by filing an amended return, provided that the transferee's statute of limitations is still open for filing an amended return for that tax year. The period of time for filing an amended tax return is set forth in M.G.L. c. 62C, § 37.

(c) Gain from Sale or Transfer of Credit. The granting of a credit to a taxpayer is not considered income to the taxpayer to the extent the credit is used to actually offset a tax owed by that taxpayer. However, the sale of a credit to a transferee is a taxable event that could trigger gain to the transferor. Additionally, a nonprofit organization that recognizes gain from the sale of a credit may be required to report such gain as unrelated business income. *See 830 CMR 63.38T.1: Taxation of Unrelated Business Income of Exempt Organizations.*

(9) Allocation of Credit among Partners, Members or Owners. A credit granted to a partnership, a limited liability company taxed as a partnership or multiple owners of a property shall be passed through to the persons designated as partners, members or owners, respectively. This pass-through shall be *pro rata* or pursuant to an executed agreement among such persons documenting an alternative allocation method.

(10) Ordering; Nonrefundability of Credit.

(a) Ordering of Credits. The credit may be applied in combination with other credits allowed under M.G.L. c. 62 in any order. Similarly, the credit may be applied in combination with other credits allowed under M.G.L. c. 63 in any order.

(b) Combined Group Members. A taxpayer that participates in the filing of a Massachusetts combined report under M.G.L. c. 63, § 32B may apply the credit against its liability as determined through such filing, and may share the credit with the other taxable members of the combined group in accordance with the provisions of 830 CMR 63.32B.2(9).

(c) Credit Nonrefundable. The credit is nonrefundable.

(11) Recapture; Payments in Error.

(a) Recapture in General. If a credit recipient ceases to maintain the Permanent Solution or the ROS in violation of the MCP prior to its sale of the property or the termination of the property lease, the recipient shall add back as additional taxes due the difference between the credit taken and the credit allowed for maintaining the remedy. The recipient shall report such amounts on its return for the year the recipient fails to maintain the Permanent Solution or ROS. As set out in M.G.L. c. 63, § 38Q(b) and M.G.L. c. 62, § 6(j)(2), the amount of the credit allowed for maintaining the remedy shall be determined by multiplying the original credit by the ratio of the number of months the remedy was adequately maintained over the number of months of the useful life of the property. Pursuant to M.G.L. c. 63, § 38Q(b) and M.G.L. c. 62, § 6(j)(2), the useful life of the property shall be deemed to be the same as that applied by corporations for depreciation purposes when computing federal income tax liability; provided, however, that in the case of real property that is not depreciable, the useful life shall be deemed to be 12 months. For purposes of determining whether a given

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Permanent Solution or ROS has, in violation of the MCP, ceased to be adequately maintained, the Department will consult letters, electronic correspondence, enforcement documents and other official records issued by MassDEP that are publicly available on its website, or that have otherwise been made available to the Department.

(b) Recapture Where a Credit Has Been Transferred. For purposes of determining the amount of recapture (as set forth in 830 CMR 63.38Q.1(11)(a)) following a transfer of the credit, any credit, or portion thereof, that has been transferred by a credit recipient will be treated as having been taken by the credit recipient prior to the transfer. In the absence of fraud by the transferee, where a credit recipient ceases to maintain the property in compliance with the MCP prior to the sale, transfer or assignment of a credit or portion thereof, the Department will seek recapture against the transferor rather than the transferee.

(c) Payments Made in Error. The Department is directed to recover "payments in error" pursuant to M.G.L. c. 62C, § 36A. A payment in error includes the Department's allowance of an incorrect amount of credit to an applicant, including one who in turn has sold the credit to a third-party to offset the third party's tax liability. The Commissioner will only seek recovery of a brownfields credit issued in error in the event of fraud or a material misrepresentation or omission by the applicant. Material misrepresentations and omissions include the failure to disclose a material fact or to correct the Commissioner's misunderstanding of such a fact. In the event of such fraud or material misrepresentation or omission by the applicant, a demand for repayment of a brownfields credit issued in error may be made at any time within six years from the date of the credit in error. If the Department has issued a brownfields credit in error, has demanded repayment of that credit, and the full amount has not been repaid within 30 days, the amount demanded is considered a tax assessed under M.G.L. c. 62C. Where a credit has been transferred, the Commissioner may seek recovery of the payment in error from the original applicant (*i.e.*, the transferor) but, in the absence of fraud by the transferee, will not seek recovery from the transferee. An example of such a payment in error is a situation where the applicant has received a reimbursement that was not disclosed on its application, the applicant has received a credit that was, in whole or in part, attributable to costs for which it ultimately received the reimbursement, and the applicant has not paid back to the DOR the corresponding (whether 25% or 50%) amount of credit attributable to the amount of the reimbursement.

(12) Appeal Process for Denial or Partial Denial of Applications for Credit

(a) Written Notification of a Proposed Denial or Partial Denial. If the Department determines that an application for the credit should be denied, in whole or in part, the Department will send written notification to the applicant of its denial. The written notification will include an explanation of why the credit was denied and will explain that the applicant has the right to file a written appeal of such denial or partial denial. In the case of a partial denial, the Department will issue a credit certificate with respect to the approved credit amount.

(b) Appealing a Denial or Partial Denial.

1. Requesting an Appeal. Upon receipt of notification of a denial or partial denial of a credit, an applicant may make a written request for a conference with the Department's Office of Appeals. Such request must be filed with and received by the Department within 30 days of the date set forth in the notification of denial or partial denial.

2. Appeals Process. The appeals officer will review only the amounts of the credit that the Department denied, provided that the credit application contained no material misrepresentations or omissions of fact with regard to amounts previously approved. The appeals officer may consider all issues concerning the amounts of the credit that the Department denied, regardless of whether they were previously raised by the Department. As part of this review, the appeals officer may require the applicant to provide additional information relevant to the application. The Office of Appeals will schedule a conference and notify the applicant in writing of the date and time of such conference and of any disputed issues to be addressed at the conference. If the appeals officer determines that the applicant made a material misrepresentation or omission on the credit application, or during the Department's review of the credit application, which affected the amount of the credit previously approved by the Department, the appeals officer may review the amount of the credit affected by the misrepresentation or omission to determine whether the amount of the credit approved by the Department should be reduced. Material misrepresentations and omissions include the failure to disclose a material fact or to correct the Commissioner's misunderstanding of such a fact.

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3. Decision by the Office of Appeals. The Office of Appeals will notify the applicant as to its decision by a letter of determination, which will explain the reasons for the decision. If the Office of Appeals in its letter of determination approves the applicant's credit application, in whole or in part, the Department will send the applicant a credit certificate with the amount of approved credit eligible for the applicant's own use and/or for transfer, sale, or assignment, to the extent that a certificate was not previously issued for such amount. In the event of a material misrepresentation or omission, if the credit amount approved pursuant to the letter of determination is less than the amount reflected on any credit certificate previously issued with respect to the credit application, the applicant is responsible for repayment of any excess credit previously issued.
4. Time Period for Appeals Requests. An appeal of a denial or partial denial must be made within the 30-day period set forth in 830 CMR 63.38Q.1(12)(b)1. If such an appeal is not timely filed, the applicant's right to appeal is waived. Costs or other issues raised in an application where no timely appeal from a denial or partial denial is taken, and costs or other issues directly implicated by such application, whether or not previously raised, will not be considered in any subsequent application or request for appeal.

63.38R.1: Massachusetts Historic Rehabilitation Tax Credit(1) Statement of Purpose, Effective Date.

(a) Statement of Purpose. 830 CMR 63.38R.1 explains the calculation of the historic rehabilitation tax credit established by M.G.L. c. 62, § 6J and M.G.L. c. 63, § 38R (St. 2003, c. 141, §§ 22, 24 and 82, as amended by St. 2004, c. 65, §§ 5 through 9, 13 through 18, and 54). Under the statute, the Commissioner, in consultation with the Massachusetts Historical Commission, shall authorize credits annually, for the period and amounts allowed under M.G.L. c. 62, § 6J and M.G.L. c. 63, § 38R.

(b) Outline of Topics. 830 CMR 63.38R.1 is organized as follows:

1. Statement of Purpose; Outline of Topics, Effective Date;
2. Definitions;
3. Amount of Credit;
4. Certification of Rehabilitation; Chosen Projects; Written Notice;
5. Chosen Projects; Application of Criteria;
6. Application Process and Administrative Fees;
7. Transferability of Credit;
8. Allotment of Credit Among Partners, Members or Owners;
9. First Tax Year for Claiming Credit;
10. Carryforward of Credit;
11. Limitations on Credit; Ordering of Credit;
12. Recapture; and
13. Authorization to Take Further Actions.

(c) Effective Date. 830 CMR 63.38R.1 takes effect April 13, 2004 and applies to tax years beginning on or after January 1, 2005.

(2) Definitions. For purposes of 830 CMR 63.38R.1, the following terms shall have the following meanings, unless the context requires otherwise:

Certified Rehabilitation, the rehabilitation of a qualified historic structure that has been approved and certified by the Chairperson of the Massachusetts Historical Commission as being consistent with the standards established by the Secretary of the United States Department of the Interior for rehabilitation of historic properties.

Chosen Projects, projects which have received second certification under 830 CMR 63.38R.1(4)(b).

Code, the Internal Revenue Code of 1986, as amended and in effect for the taxable year.

Commission, the Massachusetts Historical Commission.

Commissioner, the Commissioner of Revenue.

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Completed Projects, chosen projects which have received final certification under 830 CMR 63.38R.1(4)(c) and which have been substantially rehabilitated and placed in service.

Placed in Service, this term shall have the same meaning as the term is given under 47 I.R.C. and any federal regulations thereunder.

Project, any building or structure, submitted by the taxpayer to the Commission for certification of rehabilitation.

Qualified Historic Structure, any building or structure, located within the Commonwealth that is individually listed on the *National Register of Historic Places* or is a contributing building within a district that is listed on the *National Register of Historic Places* or has been determined by the Massachusetts Historical Commission to be eligible for listing on the *National Register of Historic Places*, and which all or any portion of which is owned, in whole or in part, by the taxpayer.

Qualified Rehabilitation Expenditure, any amount properly chargeable to a capital account and described in 47 I.R.C. § 47(c)(2)(A)(i), as amended and in effect for the taxable year, incurred in connection with the certified rehabilitation of a qualified historic structure, but the term shall not include personal property, personal use property or the cost of acquiring any building or interest therein.

Substantial Rehabilitation and Substantially Rehabilitated, the qualified rehabilitation expenditures of the building during the 24-month period selected by the taxpayer ending with or within the taxable year exceed 25% of the taxpayer's adjusted basis in such building and its structural components as of the beginning of such period. In the case of any rehabilitation that may reasonably be expected to be completed in phases set forth in architectural plans and specifications completed before the rehabilitation begins, the applicable period referred to in 830 CMR 63.38R.1(2): Substantial Rehabilitation and Substantially Rehabilitated shall be 60 months.

Taxpayer, a corporation or other entity subject to an excise imposed by M.G.L. c. 63 and a person, firm, partnership, trust, estate, limited liability company or other entity subject to the income tax imposed by M.G.L. c. 62.

(3) Amount of Credit.

(a) Calculation of Credit. The credit shall be equal to a percentage, not to exceed 20%, of the qualified rehabilitation expenditures made by the taxpayer with respect to a qualified historic structure which has received final certification and has been placed in service as provided for in 830 CMR 63.38R.1(9).

(b) Available Credit for Allocation. The Commission shall determine and account for the amount of credit available for allocation. The amount available in any given year shall be equal to the sum of:

1. the annual authorized credit amount for that year under M.G.L. c. 62, § 6J and M.G.L. c. 63, § 38R;
2. any recapture amounts;
3. any credit amount previously allocated to a chosen project under 830 CMR 63.38R.1(3)(c), which is disallowed by the Commission upon final certification under 830 CMR 63.38R.1(4)(c);
4. any credit amount previously allocated to a chosen project under 830 CMR 63.38R.1(3)(c), which is disallowed by the Commission upon the Commission's determination that the chosen project cannot move forward due to financial infeasibility or other impediment or the chosen project is materially changed from its plans as submitted and approved by the Commission when allocated the credit under 830 CMR 63.38R.1(3)(c); and

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5. any credit amount authorized but not allocated in a previous year. Upon the Commission's determination that the project cannot move forward under 830 CMR 63.38R.1(3)(b)4., the Commission shall issue a written notice to the chosen project containing a statement of reason for the Commission's determination. In no event shall the total amount of credits allocated during any given year exceed the amount that is available for allocation as set forth in 830 CMR 63.38R.1(3)(b).
- (c) Allocation of Credit. The Commission shall allocate the available credit among projects chosen to receive second certification. Each chosen project shall be allocated a percentage, not to exceed 20%, of qualified rehabilitation expenditures as proposed and certified under 830 CMR 63.38R.1(4). The Commission shall apply the criteria set forth under 830 CMR 63.38R.1(5) and assess and prioritize each initially certified project within the deadlines set forth under 830 CMR 63.38R.1(6). After such assessment, the Commission may issue the second certification to one or more projects and allocate some or all of the available credit among such chosen projects.
- (d) Credit Certificates. The Commission may issue a credit certificate to a completed project on or after the date it issues the final certification as allowed under 830 CMR 63.38R.1(4)(c). In no event shall the total amount of credit certificates issued for any given year exceed the total amount of credits that are available to be allocated for such year, as set forth in 830 CMR 63.38R.1(3)(b).
- (e) Examples. The following examples illustrate the application of 830 CMR 63.38R.1(3).
- Example 1. The annual authorized credit amount under M.G.L. c. 62, § 6J and M.G.L. c. 63, § 38R is \$15 million per calendar year for five years. In calendar year one the Commission issues to ten projects second certifications totaling \$11 million in allocated credits. The Commission will rollover into calendar year two the \$4 million of unallocated credits. Therefore, in calendar year two the Commission may allocate up to \$19 million in credits.
- Example 2. The annual authorized credit amount under M.G.L. c. 62, § 6J and M.G.L. c. 63, § 38R is \$15 million per calendar year for five years. In calendar year one the Commission issues to ten projects second certifications totaling \$11 million in allocated credits and in calendar year two the Commission issues second certifications to twelve additional projects totaling \$17 million in allocated credits. Therefore, at the end of calendar year two the cumulative authorized maximum is \$30 million of which the Commission has allocated \$28 million. The Commission will rollover into calendar year three the \$2 million of unallocated credits. Therefore, in calendar year three the Commission may allocate up to \$17 million in credits.
- (4) Certification of Rehabilitation.
- (a) Initial Certification. An initial certification is the certification by the Commission that the structure meets the definition of a qualified historic structure.
- (b) Second Certification; Chosen Projects; Written Notice. A second certification is issued by the Commission prior to construction, certifying that if completed as proposed, the rehabilitation work will meet the standards required for a certified rehabilitation. The Commission may issue a second certification during or after the construction process.
1. Projects which receive second certification are chosen projects. The Commission shall allocate some or all of the available credit among chosen projects as provided for in 830 CMR 63.38R.1(3)(c).
 2. The Commission shall issue a written notice to applicants for second certification within such time as prescribed by the Commission. A chosen project shall receive a written notice of acceptance that contains a statement detailing the allocation of credit as determined by the Commission under 830 CMR 63.38R.1(3)(c). An applicant that is not chosen for second certification shall receive a written notice that contains a statement of reason for its not having been selected.
- (c) Final Certification. A final certification is issued by the Commission when construction is completed, certifying that the work was completed as proposed and that the costs are consistent with the work completed. Such final certification shall be acceptable as proof that the expenditures related to such construction qualify as qualified rehabilitation expenditures for purposes of the credit allowed under M.G.L. c. 62, § 6J or M.G.L. c. 63, § 38R, and 830 CMR 63.38R.1.

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(5) Chosen Projects; Application of Criteria. Within the application schedule provided for in 830 CMR 38R.1(6)(a), the Commission shall assess each initially certified project's contribution to the significance of the area and the relative public benefit of its proposed rehabilitation to the Commonwealth by applying the following criteria:

- (a) Affordable Housing. At least 25% of the tax credits shall be allowed for projects that contain affordable housing whenever possible and consistent with the criteria set forth in 830 CMR 63.38R.1(5).
- (b) Preservation. The extent to which historic, architectural or cultural preservation is achieved for the features and portions of the structure and its site and environment. In considering the extent of historic preservation, the Commission will review the project's utilization of traditional materials and technology and the retention of historic fabric. The project, when necessary, will be consistent with local and state planning priorities for development or protection. In addition, the Commission will consider the extent to which the project complements other state revitalization efforts. The Commission will give consideration to the level of historic significance as defined by the *National Register of Historic Places*.
- (c) Potential for Loss or Destruction. Consideration of the potential loss or destruction of the historic structure(s), but for the financial assistance of the credit, by evaluating the overall condition of the property including, but not limited to, an assessment of deferred maintenance, water penetration or structural failure.
- (d) Statement of Need. Assessment and demonstration of the impact and need for the financial assistance of the credit utilizing an evaluation of the extent of benefit from other funding sources.
- (e) Geographic Diversity. The project's potential for enhancing the geographic distribution of tax credit allocations throughout the Commonwealth.
- (f) Administration and Feasibility of the Project. The relative soundness and feasibility of the proposal as reflected in a budget that details eligible costs and a proposal consistent with the Secretary of Interior's Standards for the Rehabilitation of Historic Properties. Submission to the Commission of a conditions survey or work progress checklist. Compliance with relevant state laws or any pertinent Executive Orders such as Executive Orders regarding housing, affirmative action or sprawl and growth planning.
- (g) Public Support. The extent to which the taxpayer has sought public comments or received public support for the project from public organizations including, but not limited to, the Statewide Preservation Organization, the National Trust for Historic Preservation and any local historical commission.
- (h) State of Utility. The extent to which the project will transform a structure or site that currently lacks beneficial or practical use into one that reflects positively on the community and the Commonwealth.
- (i) Economic Impact. The project's economic impact on the surrounding community and the Commonwealth as a whole.

The Commission shall determine, utilizing the criteria set forth in 830 CMR 38R.1(5) and within the application schedule provided for in 830 CMR 38R.1(6), which projects, if any, are eligible to receive second certification under 830 CMR 38R.1(4)(b). The Commission's determination is not an adjudicatory proceeding under M.G.L. c. 30A, § 1 and therefore is not subject to review under M.G.L. c. 30A, § 14.

(6) Application Process and Administrative Fees.

- (a) Application Deadlines. Applications for initial, second and final certification are to be submitted to the Commission. Applications for initial and final certification are accepted and considered on a rolling basis. Applications for second certification are accepted and considered on a schedule as follows:
 1. applications received by the Commission by April 30th will be considered for approval within such time as prescribed by the Commission;
 2. applications received by the Commission by August 31st will be considered for approval within such time as prescribed by the Commission; and
 3. applications received by the Commission by January 15th will be considered for approval within such time as prescribed by the Commission.

The Commission is not required to issue second certifications in all application cycles.

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- (b) Application Forms. Application forms can be obtained from the Commission.
- (c) Initial Applications. Applications for certification may be accepted under the application schedule on or after April 13, 2004; provided, however, that the Commission shall not issue final certifications before January 1, 2005.
- (d) Application Fees. The Commission may impose a fee for any stage of the application and certification process.

(7) Transferability of Credit.

- (a) Transferors, Transferees. Any taxpayer allowed to take the historic rehabilitation credit may transfer the credit, in whole or in part, to any individual or entity, without the requirement of transferring any ownership interest in the project or any interest in the entity which owns the project. Transferees are entitled to apply the credits against the tax or excise with the same effect as if the transferee had incurred the qualified rehabilitation expenditures. For treatment of carryover credit, see 830 CMR 63.38R.1(10). The credit can be transferred only on or after the date a chosen project becomes a completed project. For recapture treatment, see 830 CMR 63.38R.1(12).
- (b) Notice and Transfer Statement. The Commission, in consultation with the Department of Revenue, shall promulgate a form of transfer statement to be filed by the transferor of the rehabilitation credit. The transfer statement shall be required in addition to the transfer contract required in 830 CMR 63.38R.1(7)(c). Transfer Statement forms may be obtained from the Commission. The transferor shall file a transfer statement and a copy of the proposed transfer contract with the Department of Revenue prior to the transfer and shall further file with the Department of Revenue the executed transfer contract within 30 days after the completed transfer. The transfer statement shall provide the name and federal taxpayer identification number of each transferor and transferee. Further, such statement shall indicate the amount of historic rehabilitation credit transferred to each transferee. The statement shall also contain such other information as the Department of Revenue or the Commission may from time to time require.
- (c) Transfer Contract Requirements. Any taxpayer transferring his or her credit must enter into a transfer contract with the transferee. The transfer contract must specify the following:
 1. description and address for all structures in the project;
 2. the date each structure in the project was placed in service;
 3. the schedule of years during which the credit may be taken and the amount of credit previously taken for the project including all previous transferees; and
 4. the amount of credit being transferred.
- (d) Transferred Eligibility to Claim Credit. Any taxpayer who is a transferee of the historic rehabilitation credit may, provided all transfer and other requirements or limitations are met, apply such credit to either the tax imposed under M.G.L. c. 62 or the excise imposed under M.G.L. c. 63.

(8) Allotment of Credit among Partners, Members or Owners. Historic rehabilitation tax credits allowed to a partnership, a limited liability company taxed as a partnership or multiple owners of property shall be passed through to the persons designated as partners, members or owners, respectively, *pro rata* or, without regard to their sharing of other tax or economic attributes of such entity, pursuant to an executed agreement among such persons designated as partners, members or owners documenting an alternative distribution method.

(9) First Tax Year for Claiming Credit. A taxpayer may apply the credit against the tax or excise imposed by M.G.L. c. 62 or c. 63, beginning with the tax year a chosen project becomes a completed project.

(10) Carryforward of Credit.

- (a) Carryforward Period. Any taxpayer allowed a credit under M.G.L. c. 62, § 6J or c. 63, § 38R, and 830 CMR 63.38R.1 for any taxable year may carry over and apply to the tax imposed by M.G.L. c. 62 or the excise imposed by M.G.L. c. 63, in any of the succeeding five taxable years, the portion, as reduced from year to year, of those credits which exceed such tax or excise for the taxable year. The carryover period, for any taxpayer, cannot exceed five taxable years after the close of the taxable year during which the chosen project becomes a completed project as provided for in 830 CMR 63.38R.1(9).

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(b) Carryforward of Transferred Credits. A transferee shall use the credit in the year it is transferred. If the credit allowable for any tax year exceeds the transferee's tax liability for that tax year, the transferee may carryforward and apply in a subsequent taxable year the portion, as reduced from year to year, of those credits which exceed such tax for the taxable year; provided, however, that the carryover period cannot exceed five taxable years after the close of the taxable year during which the chosen project becomes a completed project as provided for in 830 CMR 63.38R.1(9).

(11) Ordering of Credit; Limitations on Credit.

(a) Ordering of Credit. The credit may be applied in combination with other credits allowed under M.G.L. c. 62 in any order. Similarly, the credit may be applied in combination with other credits allowed under M.G.L. c. 63 in any order.

(b) Minimum Excise Limitation. The credit may not be applied to reduce the minimum excise due under M.G.L. c. 63, §§ 32(b) and 39(b).

(c) 50% Limitation Inapplicable. In determining the amount of the credit allowable for a taxable year, the 50% limitation imposed by M.G.L. c. 63, § 32C does not apply.

(d) Combined Group Members. A taxpayer that participates in the filing of a combined Massachusetts return of income may apply the credit against the portions of the combined group's excise liability attributable to the taxpayer, determined in accordance with the provisions of 830 CMR 63.32B.1(8), and not against the excise liability of other group members.

(e) Credit Nonrefundable. The credit is nonrefundable.

(12) Recapture.

(a) Recapture. If, before the end of the five year period beginning on the date on which the chosen project becomes a completed project, the taxpayer disposes of such taxpayer's interest in the project, the taxpayer's tax for the taxable year in which such disposition occurs shall be increased by the recapture amount. Any carryforward credit shall be adjusted by reason of such disposition.

(b) Transferees; Recapture. Only taxpayers with an ownership interest on the date on which the chosen project becomes a completed project shall be subject to recapture. Transferees are not subject to recapture.

(c) Amount of Recapture. The recapture amount shall equal the amount of the credit taken by the taxpayer, including any transferred credit, minus the credit allowed for ownership, but not less than zero. The credit allowed for ownership shall be the product of the amount of the credit allowed multiplied by a ratio, the numerator of which is the number of months the rehabilitated structure is owned by the taxpayer, and the denominator of which is 60. Credit taken includes any credit transferred. The month of disposition is considered a month owned by the taxpayer.

(d) Partial Disposition. In the case of a partial disposition of the taxpayer's ownership interest in the project the recapture amount shall be pro rated.

(e) Examples. The following examples illustrate the application of 830 CMR 63.38R.1(12).

Example 1. Calendar year taxpayer is allowed \$100,000 of credit for a completed project as of April 30, 2005. In tax year 2005 taxpayer takes \$40,000 of credit on his return, transfers \$10,000 of credit and carries forward \$50,000 of credit. On April 30, 2006 taxpayer disposes of 100% of his interest in the project. The taxpayer has owned the project for 20% of the required time (12 months divided by 60 months) and is therefore allowed 20% of the \$100,000 credit for ownership, or \$20,000. The taxpayer has taken \$50,000 of credit (\$40,000 on his or her return plus the \$10,000 transferred credit) and will have a \$30,000 recapture tax in his 2006 tax year. The \$50,000 carryforward is disallowed.

Example 2. Same facts as Example 1, except that in tax year 2005 taxpayer takes \$10,000 of credit on his or her return, transfers \$5,000 of credit and carries forward \$85,000 of credit. The taxpayer has taken \$15,000 of the credit but is allowed \$20,000 of the credit for ownership. There is no recapture tax, but the carryforward is reduced to \$5,000.

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Example 3. Same facts as Example 2, except the taxpayer disposes of 10% of his ownership interest on April 30, 2006. In this case 10% of the taxpayer's \$100,000 allowed credit is subject to recapture. The taxpayer has owned this portion (\$10,000) of the project for 20% of the required time (12 months divided by 60 months) and is allowed 20% of the \$10,000 credit for ownership, or \$2,000. In addition, the taxpayer still is entitled to 90% of \$100,000 of the allowed credit. Therefore, the taxpayer is allowed \$92,000 of the credit. There is no recapture tax, but the carryforward is reduced by \$8,000.

(13) Authorization to Take Further Actions. Nothing in 830 CMR 63.38R.1 shall be deemed to limit the express or implied authority of the Commission or the Department of Revenue to take all actions deemed by the Commission or the Department of Revenue in their discretion to be consistent with the authority granted under M.G.L. c. 62, § 6J and c. 63, § 38R (St. 2003, c. 141, §§ 22, 24, 82 and St. 2004, c. 65, §§ 5 through 9, 13 through 18, and 54).

63.38T.1: Taxation of Unrelated Business Income of Exempt Organizations(1) Statement of Purpose, Outline of Topics.

(a) Purpose. The purpose of 830 CMR 63.38T.1 is to explain the Massachusetts taxation, pursuant to M.G.L. c. 62 or c. 63, of income from unrelated business activities of corporations, trusts and unincorporated associations exempt from taxation under 47 I.R.C. § 501.

(b) Outline of Topics. 830 CMR 63.38T.1, is organized as follows:

1. Statement of Purpose, Outline of Topics;
2. Definitions;
3. Taxation of Exempt Corporations;
4. Taxation of Exempt Trusts;
5. Taxation of Exempt Unincorporated Associations; and
6. Filing Requirement.

(2) Definitions. For purposes of 830 CMR 63.38T.1, the following terms have the following meanings, unless the context requires otherwise:

Code, the Internal Revenue Code of the United States, as defined under M.G.L. c. 62 or c. 63, as applicable.

Commissioner, the Commissioner of Revenue.

Exempt Corporation, a domestic or foreign corporation, as defined in M.G.L. c. 63, § 30, that is exempt from taxation under 47 I.R.C. § 501.

Exempt Trust, a trust, as determined under Massachusetts law, that is exempt from taxation under 47 I.R.C. § 501, but not including a corporate trust, as defined in M.G.L. c. 62, § 1(j).

Exempt Unincorporated Association, an association, organization or similar enterprise that is exempt from taxation under 47 I.R.C. § 501 and that is not an exempt corporation or exempt trust. Exempt Unincorporated Association includes limited liability companies in the instance in which the LLC is not treated as a corporation within the meaning of M.G.L. c. 63 and the LLC is exempt from taxation under 47 I.R.C. § 501.

Federal Unrelated Business Taxable Income, income as determined under 47 I.R.C. § 512.

(3) Taxation of Exempt Corporations.

(a) General. An exempt corporation is subject to tax under M.G.L. c. 63, § 39 on its Massachusetts unrelated business taxable income. However, the property or net worth of the exempt corporation shall not be subject to tax under M.G.L. c. 63, § 39. Also, the exempt corporation shall not be subject to the minimum excise. The provisions of M.G.L. c. 63, § 39, and 830 CMR 63.39.1 shall be applicable to determine whether a foreign corporation exempt from taxation under 47 I.R.C. § 501 is subject to the tax jurisdiction of Massachusetts.

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(b) Massachusetts Unrelated Business Taxable Income. An exempt corporation's Massachusetts unrelated business taxable income is its federal unrelated business taxable income with the modifications referenced in 830 CMR 63.38T.1(3)(c).

(c) Adjustments. An exempt corporation shall add back to its unrelated business taxable income items that must be added back to income pursuant to M.G.L. c. 63. For example, any federal net operating loss deduction claimed under section 172 of the Code must be added back by such corporations. Further, to the extent that it has unrelated business taxable income, an exempt corporation may deduct items that are deductible under M.G.L. c. 63 that are directly connected with carrying on its unrelated trade or business, such as, where appropriate, the Massachusetts net operating loss (NOL) and carryover deduction provided in M.G.L. c. 63, § 30(5). Carryover of the NOL generated in any taxable years in which an exempt corporation was not subject to taxation in Massachusetts on its unrelated business taxable income shall not be allowed.

(d) Apportionment. If an exempt corporation has unrelated business taxable income that is taxable both within and without the Commonwealth it may apportion its net income to the Commonwealth pursuant to M.G.L. c. 63, § 38. The apportionment factors shall be determined only with respect to the unrelated business activity of the exempt corporation.

(e) Credits. The credits allowed to corporations under M.G.L. c. 63 are allowed to exempt corporations. However, the credits must be determined only with respect to the unrelated business activity of the corporation.

(f) Local Property Tax. The exempt corporation is not a domestic corporation or a foreign corporation for purposes of M.G.L. c. 59.

(g) Effective Date. 830 CMR 63.38T.1(3) is effective for tax years beginning on or after January 1, 2006.

(4) Taxation of Exempt Trusts.

(a) General. The Massachusetts unrelated business income of an exempt trust is subject to tax under M.G.L. c. 62, § 10. However, pursuant to M.G.L. c. 62, § 5(b), any stock bonus, pension, or profit-sharing trust qualifying under 47 I.R.C. § 401 or any individual retirement account qualifying under 47 I.R.C. § 408 is not subject to tax under M.G.L. c. 62.

(b) Massachusetts Unrelated Business Income. In the case of an exempt trust, Massachusetts unrelated business income is the exempt trust's federal gross income derived from any unrelated business activity with the modifications set forth in M.G.L. c. 62, § 2. In the case of a nonresident exempt trust, Massachusetts unrelated business income is the portion of its federal gross income from unrelated business activity that is derived from sources in Massachusetts.

(c) Trustee Deductions. The trustee of an exempt trust is entitled to any deductions allowed under M.G.L. c. 62 that are directly connected with carrying on the trust's unrelated trade or business. In addition, the trustee is allowed the deductions under M.G.L. c. 62, §§ 3A(a), 3B(a)(2) and 3C(a)(2) for such net amount of Part A, Part B, and Part C adjusted gross income of the trustee as is pursuant to the terms of the trust currently payable to or irrevocably set aside for public charitable purposes, or to or for the benefit of an organization or organizations established and operated exclusively for charitable purposes. The deductions under M.G.L. c. 62, §§ 3A(a)(2), 3B(a)(2) and 3C(a)(2) may reduce the trust income to zero.

(5) Taxation of Exempt Unincorporated Associations.

(a) General. The Massachusetts unrelated business income of an unincorporated association is subject to tax under M.G.L. c. 62. For purposes of reporting the income, an exempt unincorporated association is considered an entity separate from its members and is required to file as a fiduciary on behalf of these members.

(b) Massachusetts Unrelated Business Income. In the case of an exempt unincorporated association, Massachusetts unrelated business income is the exempt unincorporated association's federal gross income derived from any unrelated business activity with the modifications set forth in M.G.L. c. 62, § 2.

(c) Deductions. An exempt unincorporated association is entitled to any deductions allowed under M.G.L. c. 62 that are directly connected with carrying on the association's unrelated trade or business.

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(6) Filing Requirement. An exempt corporation, trust or unincorporated association is required to file a Massachusetts return if it has federal gross income from an unrelated trade or business of \$1,000 or more even if the exempt organization's taxable income is zero.

